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House of Representatives

The House met at 9 a.m. and was called to order by the Speaker pro tempore (Mr. CUELLAR).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
July 23, 2020.

I hereby appoint the Honorable HENRY CUELLAR to act as Speaker pro tempore on this day.

NANCY PELOSI,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 7, 2020, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 9:50 a.m.

REST IN PEACE, JOHN LEWIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. MCCARTHY) for 5 minutes.

Mr. MCCARTHY. Mr. Speaker, in ''The Columbian Orator,'' a collection of speeches that Frederick Douglass read as a young man, there is a speech that says: ''Let it be remembered, there is no luxury so exquisite as the exercise of humanity, and no post so honorable as his, who defends the rights of man.''

Now, I don't know if Douglass read those exact words, but I do know a man who embodied them better than anyone else in my lifetime: John Lewis. John's legacy is his love of country and humanity. He rose above prejudice and responded to force with forgiveness.

In his time, there was a lot that he couldn't love about America, but he never gave up on it or wanted to destroy it. Instead, he used what is right with America to fix what was wrong with it.

Because of his patriotism, our Nation has come a long way, not perfect, but more perfect, as we must always strive to be.

John was unquestionably one of the great champions of freedom in the modern age, and he secured his place as a giant in American history long before his career in Congress even began.

Born on a farm without running water or power, the son of a sharecropper rose to become a founding leader of the civil rights movement by the age of 23. As a young student, he showed courage and patience and dignity beyond his years.

From his lunch counter sit-ins, to the Freedom Riders, to Bloody Sunday in Selma, Alabama, his unflinching example of nonviolence was a powerful call to arms. It was made irresistible by the fact that he, like Dr. King, sought to vindicate the core ideas of our founding documents by applying them to everyone.

Today, our task is to continue to uphold these timeless principles for all people. It will not be easy, but I am confident we will succeed, because we have the memories of leaders like John to guide us and inspire us.

I have several memories of my friendship with John that I will always treasure.

I remember my last time speaking with him, just 2 weeks before he passed away, talking about the latest uprising in America. I asked if John would spend a moment in time and do a conference call with the freshmen. They had not had the opportunity to walk through Selma with him to give them the example of which he lived.

You see, my family and I have joined John many times in Selma, but the one that I will remember the most is on the 50th anniversary. To think for a moment that 50 years before, John came very close to death, and on that day 50 years later, he was introducing the President of the United States. Not only the idea that John would stand for all, he always had the patience to tell a student about what it was like before.

I remember at the State of the Union of 2015, there was Amelia Boynton Robinson. You see, she was with John that day 50 years prior, and she came here in hopes of meeting President Obama. She came by my office. And before, we stopped by John's office.

I told Amelia: Just wait right outside the Chambers here, because the President has an escort party, and in that escort party, I am one of them, but stand there and we will make sure when the President comes out, you will greet.

She had a picture of that day, and you will see John leading.

When John would tell you the story of the march across the bridge, he would walk you up to one certain place, then he said: I can tell you no more, because I cannot remember.

You see, they beat him unconscious, almost to his death, on that Bloody Sunday.

I remember sitting with TIM SCOTT, watching John speak about what happened that fateful day. I will never forget what he said.

When he would tell the story of the march, he would stop at a moment, as I said before, and say: I cannot remember past this point because I had been beaten. And I was carried back, and I almost died.

Reflecting on the violence he endured, he said with humility that he

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''gave a little blood.'' In fact, John gave so much more than that. He gave his country his all, and he was willing to give his life to make America a more perfect Union, but he never gave himself over to anger or allowed himself to harbor hatred in his heart for those who persecuted him.

In a true mark of his character, he famously forgave George Wallace, saying: ''. . . to do otherwise—to hate him—would only perpetuate the evil system we sought to destroy.''

John continued: ''Our ability to forgive serves a higher moral purpose in our society. Through genuine repentance and forgiveness, the soul of our Nation is redeemed.''

This, he said, was the ''very essence of the civil rights movement.''

Mr. Speaker, as I reflect on John's life, those words sum up why he was a great man and why we will always honor him.

It was truly the privilege of my life to call him my friend. We are a better country because of him. His legacy of change will last as long as America does. Everyone should strive to honor his incredible life. More importantly, we should all strive to learn from it.

But today, we mourn his loss, celebrate his life, and thank Almighty God for sending a great man who helped change a nation and serves as the highest example of courage, compassion, and moral character.

HONORING REPRESENTATIVE JOHN LEWIS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. ADAMS) for 5 minutes.

Ms. ADAMS. Mr. Speaker, today I rise in honor of our colleague, my friend, John Lewis.

Everything John Lewis did was in the service of justice—a courageous, compassionate man who gave everything, including his blood and his body, to the civil rights movement.

From the Edmund Pettus Bridge in Selma to the floor of the House of Representatives, John was never afraid to put it on the line, everything, for what he believed in.

John was many things: a fighter, a leader, one of the ''Big Six,'' an HBCU graduate, a ''good trouble'' maker.

He was honored with the Presidential Medal of Freedom and over 50 honorary degrees, from Portland State University in Oregon to Bates College in Maine, and yet he was always humble.

Many have called him a hero, a living legend, but most of us here just knew him as John, our colleague, our friend. It was an amazing privilege to serve in Congress with John Lewis.

John was not only a leader of the civil rights movement, he was a modern-day Founding Father. Because, while the Founding Fathers assured us that ''all men are created equal,'' it was the sweat and the blood and the sacrifice of people like Congressman John Robert Lewis that made that assurance true, that made our Nation more perfect and made our form of government turn towards justice.

John Lewis earned the respect of men, women, and little children, and he made our world and our community and our Nation much better than he found it.

My prayers are with his family and every seeker of justice who mourns him today.

Thank you, brother Lewis. Thank you.

Rest in peace.

VALLEY GROVE SCHOOL DISTRICT AND BROADBAND CONNECTIVITY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to commend Valley Grove School District of Venango County, Pennsylvania, for truly going above and beyond to connect with their students during the COVID–19 pandemic.

Due to coronavirus, we saw school doors close across the country. Many parents found themselves in unexpected homeschooling situations, and the teachers of Valley Grove School District rose to the occasion.

In an effort to connect with students during the quarantine, teachers and administrators created VGTV, a YouTube channel to share video lessons and updates with children and families.

Videos can range from a music class piano lesson to a banana bread tutorial from home economics or the early childhood education teachers reading storybooks.

Teachers from all grades have gotten involved to contribute something to VGTV. J.G. Resig, a high school teacher, said the project ''started out just as a morale boost to stay in contact with our students and let them know that we still care about them, even though we are stuck at home.''

Third grade teacher Julie Plumer has used her everyday surroundings to create informative videos for her students. For example, Ms. Plumer has created a variety of videos about baby chickens she had been raising to teach students about what it takes to raise and to care for animals.

Content varies, but the thing that each of these videos has in common are the dedicated educators behind the camera.

None of this work would be possible, however, without reliable broadband connectivity. As coronavirus has transitioned most classrooms to distance learning, the importance of broadband infrastructure has never been more apparent.

Connectivity is something that many of us take for granted. While there is broadband available in many areas of the United States, more than 21 million Americans, including more than 800,000 Pennsylvanians, lack access. It is imperative that we do what we can to address this critical digital divide.

The CARES Act provided $100 million for the ReConnect Pilot Program, which provides grants for the costs of broadband infrastructure development and improvement in rural areas. The CARES Act also provided $25 million for the Distance Learning, Telemedicine, and Broadband program.

These funds will certainly have an impact on distance learning in the age of coronavirus, but broadband connectivity is crucial regardless. We need to continue to make rural broadband and reliable broadband infrastructure a priority long after coronavirus is a thing of the past.

Mr. Speaker, I thank the dedicated educators of Valley Grove School District for going the extra mile to support their students during these extraordinary times.

They are hometown heroes.

REMEMBERING REPRESENTATIVE JOHN LEWIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. KENNEDY) for 5 minutes.

Mr. KENNEDY. Mr. Speaker, I rise with a heavy heart this morning to remember our colleague, John Lewis.

He was a hero to me. He was my friend. I am going to miss his smile, his soft voice that could quickly become a bellow. I will miss his hugs, his eternal optimism, and his hope that we would heed his advice and ''keep the faith.''

John had a long and special relationship with my family, with my grandmother in particular. They went through a lot together. They survived a lot. They witnessed a lot.

She asked me to read a letter here today in his memory. She writes:

Dear friends,

Our hearts are heavy, but also grateful for the gift of John Lewis, a man who devoted his life to making gentle the life of this world.

John's loving demeanor enveloped a mighty determination and passion for justice, equality, and the realization of his dream for the ''Beloved Community.''

A young man full of fire and ideals, qualities that he never lost, he was a trusted voice to my husband, Robert Kennedy, relied upon, first, as a student demonstrator and, later, as a campaign aide.

Activist, lawmaker, champion, he was also a teacher and a cherished friend.

He and Bobby learned from one another. They listened, they understood, they acted.

As a Freedom Rider, John was badly beaten at a bus stop in Montgomery, Alabama, in 1961. From the basement of the First Baptist Church where John, Martin Luther King Jr., and Ralph Abernathy sought refuge, they called Bobby asking for protection from a crowd of armed White supremacists surrounding the church. President Kennedy sent in the National Guard.

In Indianapolis, the night we lost Dr. King, John influenced Bobby's decision to ignore Mayor Lugar's plea to cancel a rally, instead seeking to comfort and seeking comfort from a devastated crowd of Black supporters.

As the youngest speaker at the March on Washington, his was a clarion call to end racial segregation and discrimination in the United States. Over half a century later, as unrest over systemic violence against Black Americans gripped our Nation in recent weeks, John reinforced what he knew was true:

''You cannot stop the call of history,'' the Congressman said. ''You may use troopers. You may use fire hoses and water, but it cannot be stopped. There cannot be any turning back. We have come too far. We have made too much progress to stop now and go back.''

John was witness to our Nation's history; he shaped it and his legacy will forever be part of that history. When I think of John and Bobby, I am reminded of Stephen Spender's poem, ''The Truly Great.''

. . . those who in their lives fought for life,
Who wore at their hearts the fire's centre.
Born of the sun, they travelled a short while toward the sun,
And left the vivid air signed with their honour.

Sincerely,
Ethel Kennedy.

□ 0915

80TH ANNIVERSARY OF THE WELLES DECLARATION

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. SHIMKUS) for 5 minutes.

Mr. SHIMKUS. Mr. Speaker, in 1939, Hitler's Nazi Germany and Stalin's Communist Soviet Union signed a secret agreement to invade and create spheres of influence. The Molotov-Ribbentrop agreement allowed Hitler to invade the free and sovereign country of Poland, while the Soviet Union invaded the free and sovereign countries of Estonia, Latvia, and Lithuania.

Eighty years ago today the United States responded with the Welles Declaration. Let me read it.

''Department of State, July 23, 1940, Statement by the Acting Secretary of State, the Honorable Sumner Welles.

''During these past few days the devious processes whereunder the political independence and territorial integrity of the three small Baltic republics, Estonia, Latvia, and Lithuania, were to be deliberately annihilated by one of their more powerful neighbors, have been rapidly drawing to their conclusion.

''From the day when the people of these republics first gained their independent and democratic form of government the people of the United States have watched their admirable progress and self-government with deep and sympathetic interest.

''The policy of this Government is universally known. The people of the United States are opposed to predatory activities no matter whether they are carried on by the use of force or by the threat of force. They are likewise opposed to any form of intervention on the part of one state, however powerful, in the domestic concerns of any other sovereign state, however weak.

''These principles constitute the very foundations upon which the existing relationship between the 21 sovereign republics of the New World rests.

''The United States will continue to stand by these principles, because of the conviction of the American people that unless the doctrine in which these principles are inherent once again governs the relations between nations, the rule of reason, of justice and of law—in other words, the basis of modern civilization itself—cannot be preserved.''

Mr. Speaker, this declaration here refused to recognize the Soviet annexation of Estonia, Latvia, and Lithuania. This nonrecognition lasted 5 decades.

This declaration enabled the Baltic States to maintain free, diplomatic missions. And with this declaration, Executive Order 8484 protected Baltic financial assets.

Today, the United States joins Estonia, Latvia, and Lithuania in remembering this declaration and recommitting ourselves to peace, democracy, freedom, and the rule of law.

Subsequently, their entrance into NATO and the European Union assures them of being part of the family of western democracies.

HONORING THE LIFE AND LEGACY OF CONGRESSMAN JOHN LEWIS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Massachusetts (Mrs. TRAHAN) for 5 minutes.

Mrs. TRAHAN. Mr. Speaker, walking the halls of the United States Capitol this week has felt different, like a piece of what makes this institution great is missing, because he is. It has been a somber reminder that this body and our country will never be the same without our guiding light, our moral compass, Congressman John Lewis.

I have never known someone to be more devoted to our Nation than John Lewis. He demonstrated that devotion by setting standards high and requiring her continuous improvement; calling out when our policies or practices didn't live up to the words written in our Constitution; and never giving up on the pursuit of freedom and equality for everyone in our country.

He committed his life to the fight for civil rights and, along the way, he persuaded a Nation, through steadfast, peaceful protests.

Yes, John Lewis is a hero. He is also the closest example I will likely ever know of a saint. But more than that, he was a friend.

To those of us who are new to Congress, John Lewis welcomed us. He made time for each of us; got to know us and, somehow, made you feel like the only person in his presence. He wanted you to know that he truly heard your words and that they mattered.

Part of what makes this job the honor of a lifetime is serving alongside giants like Congressman Lewis. Like so many in this Chamber, I stood in absolute awe of him. He embodied decency, perseverance, justice, courage, and compassion, traits that he used to great effect in changing hearts and minds by meeting hate with love, and cruelty with kindness.

I will forever remember and cherish the opportunity to join John Lewis in Selma, Alabama, this past March with my husband, my mom, and two daughters. The time he spent with Grace and Caroline, describing to them what ''good trouble'' was; walking across the Edmund Pettus Bridge one last time, and reminding us what happened there 55 years ago.

He said: ''On this bridge, some of us gave a little blood to redeem the soul of America. Our country is a better country; we are a better people. But we have still a distance to travel to go before we get there.''

Thank you, John, for never giving up, for never giving in, for keeping the faith, and for always keeping your eyes on the prize.

We know the work we have left to do, and you gave us the tools and the courage to continue your legacy.

Rest in peace, Congressman Lewis.

HIGHLIGHTING CORRECTIONS OFFICERS AND STAFF AT FCC ALLENWOOD AND USP LEWISBURG AS PA–12 COVID–19 HEROES

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. KELLER) for 5 minutes.

Mr. KELLER. Mr. Speaker, I rise today to highlight the work of the outstanding corrections officers and staff at FCC Allenwood and USP Lewisburg during the COVID–19 pandemic and recognize them as PA–12 COVID–19 heroes.

Prior to and during the pandemic, the corrections officers at these two facilities, located within Pennsylvania's 12th Congressional District, stepped up in a big way.

These dedicated men and women went to work every day, overseeing Federal inmates, many of whom had been moved across State lines to Central Pennsylvania. In the face of these unprecedented challenges, our corrections officers took on expanded responsibility at great personal risk.

These corrections officers and staff at USP Lewisburg and FCC Lewisburg answered the call and they deployed to other BOP hotspot facilities to assist with diminished staffing capacities due to COVID–19.

Answering the ongoing call to duty, USP Lewisburg was asked to step up in a big way when storms destroyed portions of FCI Estill in South Carolina, requiring nearly 1,000 new inmates to be moved from that facility to Central Pennsylvania.

For dealing with unprecedented challenges under pressing conditions and answering the call to duty, it makes me proud to recognize the corrections officers and staff at FCC Allenwood and USP Lewisburg as PA–12 COVID–19 heroes.

RECOGNIZING ORRSTOWN BANK AS A PA–12 COVID–19 HERO

Mr. KELLER. Mr. Speaker, for their work in facilitating paycheck protection loans for small businesses across Pennsylvania's 12th Congressional District, I recognize Orrstown Bank as a PA–12 COVID–19 hero.

Enacted as part of the CARES Act, and later replenished due to its success, the Paycheck Protection Program has been a tremendous asset to small businesses and their employees across the country, and the employees were able to stay employed.

In April, to highlight the success of the program, Orrstown Bank's Executive Vice President, Luke Bernstein, I was welcomed to the White House to discuss the bank's work in processing and facilitating loans.

Asked to facilitate loans with little Federal red tape and even less notice in order to help our economy survive this terrible virus, banks like Orrstown have been instrumental in keeping America employed and small businesses operating. I thank them for their work and again recognize them as a PA–12 COVID–19 hero.

RECOGNIZING PENN STATE UNIVERSITY AS A PA–12 COVID–19 HERO

Mr. KELLER. Mr. Speaker, Penn State University is undoubtedly a PA–12 COVID–19 hero.

During the COVID–19 pandemic, Penn State University, one of the world's best research institutions, put their assets to use in a new way. They scoured their campuses and schools for personal protective equipment that might be used in research or other academic endeavors and found 10,000 pieces of PPE they donated to local hospitals to aid in the fight against COVID–19.

Not only that, but Penn State put their academic skills to practice by partnering with local businesses in the State College area to use 3D printing to make PPE for smaller healthcare providers and nursing homes.

While President Trump and his administration worked to make sure our hospitals and healthcare providers had what they needed to meet the surge capacity and combat COVID–19, critical community partners like Penn State helped to meet the need.

For their work in providing needed PPE supplies, Penn State University is recognized as a PA–12 COVID–19 hero.

RECOGNIZING LEWISTOWN PRINTWORKS AS A PA–12 COVID–19 HERO

Mr. KELLER. Mr. Speaker, Lewistown Printworks is a central Pennsylvania small business that is undoubtedly a PA–12 COVID–19 hero.

Lewistown Printworks is a small business in Mifflin County, Pennsylvania, that experienced the struggles of operating a small business through the COVID–19 pandemic. This small, family-owned business saw an opportunity to help others. In their ''Support Small'' project, Michelle and Caleb Fetter, the owners of this small, family-owned business, asked local businesses for logos that could be printed on T-shirts. Those T-shirts were then sold as part of an online fundraiser with $20 of each sale going to local businesses whose logo was on the shirt. As of mid-May, the project earned $5,300 for local businesses to help them weather the COVID–19 pandemic.

For their ingenuity, resourcefulness, and generous spirit, Michelle and Caleb Fetter of Lewistown Printworks are recognized as being PA–12 COVID–19 heroes.

□ 0930

HONORING CONGRESSMAN JOHN LEWIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, it is an honor and a joy to acknowledge my one-quarter century relationship with our friend, John Lewis. The better I got to know him, the deeper my respect for his courage, his determination, and his strength.

People have remarked about his gentle spirit, his kindness, and his generosity. I watched countless young people be introduced to him in awe, including my own grandson.

I just heard Leader MCCARTHY acknowledge being in Selma with John on the 50th anniversary of that Bloody Sunday. It was beyond my ability for words to express watching John. On that stage near where he was once almost beaten to death, he spoke as a Member of Congress and then he introduced the first Black President of the United States, Barack Obama.

It is heartening to hear so many who were polar opposites of John politically honor and praise his life and his service. They sincerely mourn his passing and salute his career. I would hope, Mr. Speaker, however, that we would not just repeat his words, but listen and understand and honor his lifework and his lifetime commitment to lifting people up and helping them find their voices and express their wishes by exercising the precious right of voting.

When John started, the vote was suppressed by violence and intimidation. Today people are suppressing the votes using computers, legal challenges, and capricious voting standards against the poor, people of color, the young, and the marginalized. These are people John knew should have special help, but instead he was outraged in his own gentle but forceful way that they got special barriers shutting them out.

I would hope that those who come to the floor to issue their tributes to John Lewis would join me in respecting his life's work. Let's find ways to work together to protect the political process for those whom he fought so valiantly to be able to engage and protect.

I will be forever grateful for his friendship and his example. I hope we will all find it in our hearts to honor his mission which should be the mission of us all.

CELEBRATING THE LIFE OF RON RICE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. ARRINGTON) for 5 minutes.

Mr. ARRINGTON. Mr. Speaker, I rise today to honor and celebrate the life, love, and special friendship of Ron Rice.

He had a heart as big as the Texas Panhandle, and he was a friend as faithful as the west Texas sunrise. His signature contagious laugh can be heard from heaven even in this day of profound grief.

But Uncle Ronnie, Joy, Tracey, Darren, and Rusty know what the Scripture tells us and what God promises: that to be absent from the body as a child of God is to be present with the Lord. So on this day, Mr. Speaker, we don't grieve as the world grieves. As the Scripture says, we should be pitied among all men if our hope is in this fallen world. No, sir. We rally around the Rice family today. We join them in thanking God and worshiping and praising God because Ron is home with his Lord and Savior, Jesus, in eternal happiness, joy unspeakable, and peace everlasting.

God bless the Rice family.

Guns up, Ron. You got the best seat in the House.

REDUCING NATIONAL DEBT

Mr. ARRINGTON. Mr. Speaker, Admiral Mullen was asked at a hearing what he thought the greatest threat to national security was. His response was powerful, simple, and very clear. He said the greatest threat to our national security is our national debt. I would add that it is not just a threat to our security, but it is a threat to our prosperity; it is a threat to the blessings of liberty and opportunity for our children; and it is a threat to domestic tranquility.

There is not a greater threat that looms larger on the horizon. There is not a greater challenge in this 21st century and for my generation than the potential and the prospects of a sovereign debt crisis.

We have no doubt experienced an unprecedented public health and economic disaster as a result of the pandemic. But if we don't commit to reducing our national debt, we will indeed face a crisis far graver than what could come out of this pandemic.

We have experienced the largest generational retirement in history, runaway healthcare costs, and record spending. Discretionary, nondefense, and defense spending all have amassed a whopping $1 trillion in debt. This is pre-COVID. That is $1 trillion in annual deficit spending, spending $1 trillion more on our Nation's priorities and our budget over what we have to spend.

We have done that year in and year out, to the tune now of a $23-trillion debt and climbing. This is pre-COVID, I want to remind you, Mr. Speaker.

Prior to COVID and the trillions of dollars that we are spending, we were

on course to spend more to service our debt to bondholders like China than all of our national defense combined in less than 10 years.

Now, the CBO has projected that we will add almost $4 trillion to our national debt by the end of this fiscal year. As a result, we put ourselves in a very, very tenuous position. We will exceed, Mr. Speaker, our debt per the size of our economy as it was in World War II, which was the largest debt position we ever held. We will set a very dangerous precedent for the next generation. We will put them in a very, very bad position.

So, SCOTT PETERS and I got 30 Democrats and 30 Republicans, and we picked a few budget reforms that would put us in a place and force Congress to reduce our debt and hand this country in a better fiscal position to our children.

We sent a letter with these three initiatives and reforms to our leadership. We are imploring all of our colleagues and leadership from both Houses: Please seize this opportunity to include these budget process reforms so that, when we get through this crisis, we won't have to endure the ultimate crisis.

We will not, Mr. Speaker, be able to bail out of that, print money, or borrow enough. It will be a disaster of epic proportions, so I implore my colleagues to please support budget process reforms in this next COVID legislation.

CALLING ON SENATE REPUBLICANS TO FUND SCHOOLS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Michigan (Mr. LEVIN) for 5 minutes.

Mr. LEVIN of Michigan. Mr. Speaker, I rise on behalf of the public schools in Macomb and Oakland Counties.

In between votes earlier this week, I hosted a Zoom call with the superintendents in my district. I was struck by how much they figured out in such a short time about operating a school during a pandemic.

Educators are nimble and creative. They are used to doing a lot with a little. The PPE, the cleaning, the social distancing, the technology needs, and the social and emotional health, they are up for figuring it all out on top of already having one of the hardest jobs there is.

The problem is, they don't have a fraction of the resources they need to put their plans into place. While they have spent their summer days and probably fitful nights determining how to keep their students, educators, and other school professionals safe, this administration has offered no plan other than: Reopen or else.

As a father of four, as a lifetime advocate for and product of public schools, as a union organizer with worker safety top of mind, and as a human being with compassion and common sense, I am calling on the Senate to offer a real plan in this next relief package, one that acknowledges that we must contain this pandemic and provide schools with the resources they need to reopen safely.

It has been nearly 10 weeks since the House passed the HEROES Act to put us on a path required to reengage our schools and the economy as a whole safely.

Mr. Speaker, 59,679 Americans have perished from COVID–19 since May 15 when the House passed the HEROES Act, yet here we are, still trying to push public health common sense uphill in the face of denial, politicization, and the most disastrous vacuum of leadership in modern times.

The HEROES Act directs more than $100 billion in emergency education funding to cover unexpected costs and $75 billion for COVID–19 testing and contact tracing, including key provisions of the coronavirus containment corps legislation I wrote with Senator ELIZABETH WARREN.

What has happened in the intervening 10 weeks with their 60,000 deaths? The need has not only grown; it has doubled. Just this week, national health organizations and child advocates, led by the American Academy of Pediatrics, wrote to House and Senate leadership, calling on Congress to pass at least $200 billion in K–12 education funding. Meanwhile, Senate Republicans have met this growing need with the inaction we have come to expect: ignoring this proposal.

What is even more dangerous, Trump and DeVos threaten to strip funding from public schools, a threat they have no authority to fulfill unless they put students in the classroom full-time even as daily cases are higher than they were when schools went online in the first place during the spring.

Nowhere is this more dangerous than in our communities of color, where schools are disproportionately underfunded even in normal times. These are some of the same communities that have been the hardest hit by the coronavirus and may need more time to reopen safely. If we are at long last serious about racial justice, we must offer resources and flexibility, not ultimatums.

Senate Republicans can choose to be redefined by the vanity projects of a President only concerned with pretending this virus is over and a Secretary of Education continuing her lifelong crusade to defund public schools and even spreading outright falsehoods, such that children are stoppers of COVID–19, or they can do their job: represent the educators, school professionals, parents, and students in their States by doing what is in the best interest of the health and safety of our citizens.

NOTICE OF INTENTION TO OFFER RESOLUTION RAISING A QUESTION OF THE PRIVILEGES OF THE HOUSE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. GOHMERT) for 3 minutes.

Mr. GOHMERT. Mr. Speaker, pursuant to clause 2(a)(1) of rule IX, I rise to give notice of my intention to raise a question of the privileges of the House with the form of the resolution to be as follows.

The SPEAKER pro tempore. The gentleman will suspend. This is not in order during morning hour.

Mr. GOHMERT. My understanding is that the rules allow any time a Member is properly recognized to speak that that privileged resolution then takes priority over all other business at that point.

The SPEAKER pro tempore. The House has not convened for legislative business for the day; therefore, the gentleman's motion is not recognized for that purpose.

Mr. GOHMERT. Mr. Speaker, I will wait for 1 minutes.

The SPEAKER pro tempore. Does the gentleman yield back?

Mr. GOHMERT. Yes.

REMEMBERING CONGRESSMAN JOHN LEWIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Maryland (Mr. SARBANES) for 1 minute.

Mr. SARBANES. Mr. Speaker, I rise to remember John Lewis, our colleague, our friend, our inspiration.

In life, you are blessed if the chance comes to cross paths with those history has anointed to be great difference-makers in the journey towards a more compassionate and just world. I will forever be grateful for the last 14 years. I had the opportunity to serve with this extraordinary man, to witness his commitment to improving the lives of every American.

Mr. Speaker, I had the privilege to work closely with John in our efforts to clear a path to the ballot box, to insist on accountability and transparency in government, and to push back on the influence of money and special interests in our politics.

Whatever the issue, whatever the struggle, John Lewis' exhortation to us was consistent: ''Keep your eyes on the prize.'' ''Never give up'' and ''never give in.''

We carry his legacy forward—his struggle for voting rights, civil rights, and human rights, for the voiceless, for a democracy that respects the people and lifts our Nation.

His struggle is our struggle, and we will keep marching, knowing that he is at our side.

May his memory be eternal.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair

declares the House in recess until 10 a.m. today.

Accordingly (at 9 o'clock and 45 minutes a.m.), the House stood in recess.

□ 1000

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Ms. MCCOLLUM) at 10 a.m.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Lord our God, thank You for giving us another day.

Please bless the Members of this people's House as they address the funding issues facing our Nation. While Americans still face the double challenge of a threatening coronavirus and struggling economy, may their leadership in legislation and modelling necessary compromise lift the spirits of so many citizens looking for hope in these perilous times.

Continue to bless the men and women who attend to those who are sick—the number continuing to grow throughout our country. Keep our healthcare professionals safe and inspire those who labor to find treatments and cures for this dangerous virus.

May all that is done be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER pro tempore. Pursuant to section 4(a) of House Resolution 967, the Journal of the last day's proceedings is approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Pennsylvania (Mr. THOMPSON) come forward and lead the House in the Pledge of Allegiance.

Mr. THOMPSON of Pennsylvania led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

REMEMBERING JOSE ORNELAS

(Mr. COX of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COX of California. Madam Speaker, I rise today in honor of Jose Ornelas, who passed away on July 19. Jose was a friend and a dedicated public servant, serving as a council member in San Joaquin, California.

The son of farmworkers, Mr. Ornelas earned many academic degrees and was a successful small business owner.

But his passion was community service, public service. Always a fierce advocate for rural communities, Jose believed deeply in the attainability of the American Dream for all Central Valley families.

He spearheaded the group Nueva Alianza, an organization composed of farmworker families dedicated to fighting for workers' rights and environmental justice.

He was also a founding member of the influential Central Valley Leadership Roundtable that advocates for expanded opportunity in rural communities throughout the Valley.

As a mentor to many young people, Jose was a youth soccer coach. He promoted civic engagement and tirelessly worked to expand access to clean drinking water for our families.

He is survived by his parents, siblings, his lovely wife, Nadia, and their six children: Jose Jr., Gustavo, Angel, Oscar, Giselle, and Shayla. He will always be remembered for his generous spirit and always as a steadfast champion for rural farmworker families.

SUPPORTING THE PAYCHECK PROTECTION FOR PRODUCERS ACT

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Madam Speaker, I rise today to share my support for H.R. 7175, the Paycheck Protection for Producers Act. I was pleased to cosponsor this legislation with Representatives JOYCE, KIND, and BRINDISI.

The bill is simple. It would expand access to the Paycheck Protection Program for farmers and ranchers, folks who are no strangers to economic hardship.

Many farmers and ranchers, particularly our dairy farmers, have been deemed ineligible to receive PPP loans due to negative net incomes. With this legislation, producers filing a schedule F will be allowed to use their gross income rather than their net income when calculating their PPP loans.

We owe these folks a great deal of gratitude for working around the clock through the COVID–19 pandemic to ensure the continuity of the food supply chain. The Paycheck Protection for Producers Act will allow these producers to be on an even footing with every other American small business, and I urge my colleagues to join us in supporting our farmers and our ranchers.

REMEMBERING CONGRESSMAN JOHN LEWIS

(Ms. TLAIB asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. TLAIB. Madam Speaker, we learned from civil rights giant Congressman John Lewis that we have a moral obligation, a mission, and a mandate to speak up, to speak out, and do it in good trouble.

In honor of your legacy, Congressman Lewis, I will continue the path of good trouble by demanding that water is a human right, by banning racist facial recognition technology, repealing the opportunity zones and spend that money on helping end poverty in Black communities. I will continue to fight to pass your Voting Rights Act.

You reminded us every single day in this Chamber that waiting isn't always the right option. Too many of our residents don't have time to wait any longer. The oppression is killing them.

It is an honor to have served with you, Congressman. I will never forget walking across the Pettus Bridge with you and my young son.

Peace and love.

REMEMBERING ROSEMARY STRATIOTI

(Mr. STAUBER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. STAUBER. Madam Speaker, I rise today to honor a remarkable woman named Rosemary Stratioti, a well-known West Duluth native who recently passed away from COVID–19.

Her life serves as an example of what it means to be a friend, a neighbor, and a patriot. As a daughter of a World War I veteran and a spouse of a World War II veteran, Rosemary dedicated her life to honoring those who fought and sacrificed for our country.

Rosemary served as the president of the West Duluth American Legion auxiliary for over 50 years. She helped lead and organize the West Duluth Memorial Day parade.

Rosemary made a special effort to ensure the children in her community knew the real meaning behind Memorial Day and that it is not just another day off from school. She was known to say: ''If it wasn't for the soldiers who gave their lives for you and me, we wouldn't be here today.''

She held this patriotic spirit yearround, and when vandals knocked down a concrete eagle from a military veteran's monument in Duluth, it was Rosemary who led an effort to restore the monument honoring veterans.

Madam Speaker, I know that Rosemary Stratioti is already missed by her family, friends, and our whole community of West Duluth, but I hope they are comforted in knowing that she will be long remembered for her many contributions.

Rosemary, rest in peace, faithful servant.

HONORING THE GRAND COLUMBIA COUNCIL OF THE BOY SCOUTS OF AMERICA

(Mr. NEWHOUSE asked and was given permission to address the House for 1 minute.)

Mr. NEWHOUSE. Madam Speaker, I rise to honor the Grand Columbia Council of the Boy Scouts of America. This organization has enriched the communities of central Washington through its efforts to promote conservation, outdoor recreation, and youth development.

Since its founding 95 years ago, volunteers for the Grand Columbia Council have sought to teach the values of the Scout oath and Scout law to over 1,000 boys and girls every year, making an investment in our youth by supporting leadership, character, career development, and healthy habits.

Every year these volunteers host the River Run Regatta, a month of scouting activities that culminates in Scout Me In Day, an event that encourages the expansion of the Scouts and seeks to foster the relationships between our lakes, forests, mountains, and the future generations who will harbor them.

Madam Speaker, I join my colleagues in supporting the Grand Columbia Council and the efforts of the Boy Scouts of America throughout the Nation.

REOPEN THE SCHOOLS RESPONSIBLY

(Mr. MEUSER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MEUSER. Madam Speaker, as America continues to battle the coronavirus, many of us in Congress have worked to protect both lives and livelihoods. Now, we must focus our efforts on supporting the safe reopening of our schools.

Every child deserves to receive an in-person education, if they so choose. Schools in Pennsylvania's Ninth District, for instance, Lake Lehman Township, are preparing in a smart, innovative, and safe manner.

As the American Academy of Pediatrics has said: ''All policy considerations for the coming school year should start with a goal of having students physically present in school.''

Congress must work with school districts to provide support for social distancing, PPEs, temperature checks, any equipment necessary for those who choose to learn remotely, and even perhaps an on-site health and safety coordinator. We must also pass legislation to create liability protection for schools to reopen without the threat of predatory lawsuits.

Let's put politics aside, follow the science, follow the recommendations of AAOP and the President's task force and open schools safely for the millions of American families who want their children safely back in the classroom this fall.

SUPPORTING THE TRUMP ADMINISTRATION'S DEALINGS WITH CHINA

(Mr. WATKINS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WATKINS. Madam Speaker, today I rise in support of President Trump and fellow Kansan, Secretary Mike Pompeo, in their dealings with China. This includes closing the consulate in Houston.

The CCP has for decades been using meticulous multidimensional strategies to degrade and undermine American hegemony and democracies around the world.

Chairman Ghee has accelerated these efforts. That is clearly apparent in the CCP's dealings with COVID–19, their mass detention of more than a million Uighurs, and their violation of Hong Kong's sovereignty.

Every action that China takes affects the global economy and security and, more importantly, the lives of Americans.

China's repeated aggression and nefarious actions have proven China cannot be trusted.

Thankfully, we now have an American President and a Secretary of State who won't be treating China with kid gloves and a President unlike any other in history who will be tough on China.

REMEMBERING THE CARR FIRE

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Madam Speaker, 2 years ago, on July 23, the Carr fire broke out in Shasta County, California, near the city of Redding. For over a month, the Carr fire burned nearly 230,000 acres and 1,600 structures. Tragically, it claimed eight lives.

In the 2 years since this fire, people in northern California have proven to be resilient in the face of this adversity.

We continue the recovery process, but for those impacted, it is difficult to make them whole again.

The Carr fire, caused by a wheel sparking against the asphalt from a flat tire, is a sobering reminder that fires are preventable.

So I have introduced the CARR Act, which allows us to clear vegetation sources of ignition within 150 feet of rural roads.

Better management of our vegetation and our forests near power lines and roads and elsewhere on our public lands would prevent much human-caused wildfire.

As we remember the Carr fire victims, I will continue to advocate for better fire prevention to prevent further disasters.

REMEMBERING CONGRESSMAN JOHN LEWIS

(Mr. GOHMERT asked and was given permission to address the House for 1 minute.)

Mr. GOHMERT. Madam Speaker, recognition has properly gone to a great man, John Lewis, a colleague who will be sorely missed.

He, along with the great Dr. Martin Luther King, Jr., some people say: ''Oh, they did much for African Americans.'' But actually, they did a great deal for everyone in this country.

As a young Christian, their efforts enabled me to treat brothers and sisters as brothers and sisters. For that, I will be ever thankful.

NOTICE OF INTENTION TO OFFER RESOLUTION RAISING A QUESTION OF THE PRIVILEGES OF THE HOUSE

Mr. GOHMERT. Madam Speaker, pursuant to clause 2(a)(1) of rule IX, I rise to give notice of my intention to raise a question of the privileges of the House.

The form of the resolution is as follows:

Raising a question of the privileges of the House:

Whereas, on July 22, 2020, House Resolution 7573 was brought to the House floor for a vote with the purpose of eliminating four specific statues or busts from the United States Capitol, along with all others that include individuals ''who served as an officer or voluntarily with the Confederate States of America or the military forces or government of a State while the State was in rebellion against the United States,'' yet failed to address the most ever-present historical stigma of the United States Capitol; that is, the source that so fervently supported, condoned, and fought for slavery was left untouched, without whom, the evil of slavery could never have continued as it did, to such extreme that it is necessary to address it here in order for the U.S. House of Representatives to avoid degradation of historical fact and blatant hypocrisy for generations to come.

□ 1015

Whereas, the Democratic Party Platform of 1840, 1844, 1848, 1852, and 1856 states: ''That Congress has no power under the Constitution to interfere with or control the domestic institutions of the several States, and that such States are the sole and proper judges of everything appertaining to their own affairs, not prohibited by the Constitution; that all efforts of the abolitionists, or others, made to induce Congress to interfere with questions of slavery . . . are calculated to lead to the most alarming and dangerous consequences; and that all such efforts have an inevitable tendency to diminish the happiness of the people and endanger the stability and permanency of

the Union, and ought not to be countenanced by any friend of our political institutions.''

Again, from the Democratic Party Platform of those years.

Whereas, the Democrat Party Platform of 1856 further declares that new States to the Union should be admitted ''with or without domestic slavery, as the State may elect.''

Whereas, the Democratic Party Platform of 1856 also resolves that ''we recognize the right of the people of all the territories . . . to form a Constitution, with or without domestic slavery.''

Whereas, the Fugitive Slave Law of 1850 penalized officials who did not arrest an alleged runaway slave and made them liable for a fine of $1,000, which is about $28,000 in present-day value. Law enforcement officials everywhere were required to arrest people suspected of being a runaway slave on as little as a claimant's sworn testimony of ownership. The Democratic Party Platform of 1860 directly, in seeking to uphold to Fugitive Slave Act, states that ''the enactments of the State legislatures to defeat the faithful execution of the Fugitive Slave Law are hostile in character, subversive of the Constitution, and revolutionary in their effect.''

The Democratic Party Platform again.

Whereas, the 14th Amendment, giving full citizenship to freed slaves, passed in 1868 with 94 percent Republican support, 0 percent Democratic support in Congress; the 15th Amendment, giving freed slaves the right to vote, passed in 1870 with 100 percent Republican support and 0 percent Democratic support in Congress.

Whereas, Democrats systematically suppressed African Americans' right to vote, and by specific example in the 1902 constitution of the State of Virginia actually disenfranchised about 90 percent of the Black men who still voted at the beginning of the 20th century and nearly half of the White men.

So they suppressed Republican voters as well.

The number of eligible African-American voters were thereby forcibly reduced from about 147,000 in 1901 to about 10,000 by 1905; that measure was supported almost exclusively by Virginia Democrats.

Whereas, Virginia's 1902 constitution was engineered by Carter Glass, the future Democratic U.S. Representative, Senator, and Secretary of the Treasury under Democrat President Woodrow Wilson, who proclaimed the goal of the constitutional convention as follows: This Democrat exclaimed: ''Discrimination! Why, that is precisely what we propose. That, exactly, is what this Convention was elected for—to discriminate to the very extremity of permissible action under the limits of the Federal Constitution, with a view to the elimination of every,'' and I won't use his word, but African-American ''voter who can be gotten rid of legally,'' which was said by a Democrat and applauded by his fellow Democrats.

Whereas, in 1912, Democratic President Woodrow Wilson's administration began a racial segregation policy for U.S. Government employees, and by 1914, the Wilson administration's civil service instituted the requirement that a photograph be submitted with each employment application.

Whereas, the 1924 Democratic National Convention convened in New York City at Madison Square Garden; the convention commonly was known as the ''Klan-Bake'' due to the overwhelming influence of the Ku Klux Klan in the Democratic Party.

Whereas, in 1964, the Democratic Party led a 75-calendar-day filibuster against the 1964 Civil Rights Act.

Whereas, leading the Democrats in their opposition to civil rights for African Americans was a member of the Democratic Party, Senator Robert Byrd from West Virginia, who was a known recruiter for the Ku Klux Klan.

Whereas, Democrats enacted and enforced Jim Crow laws and civil codes that forced segregation and restricted freedoms of Black Americans in the United States.

Whereas, on June 18, 2020, House Speaker NANCY PELOSI ordered the removal from the Capitol portraits of four previous Speakers of the House who served in the Confederacy, saying this these portraits ''set back our Nation's work to confront and combat bigotry''; the men depicted in the portraits were Democrat Robert M.T. Hunter, Democrat Howell Cobb, Democrat James L. Orr, and Democrat Charles F. Crisp.

Resolved,

One, that the Speaker of the House of Representatives shall remove any item that names, symbolizes, or mentions any political organization or party that has ever held a public position that supported slavery or the Confederacy, from any area within the House wing of the Capitol or any House office building, and shall donate such item or symbol to the Library of Congress.

Two, that any political organization or party that has ever held a public position that supported slavery or the Confederacy shall either change its name or be barred from participation in the House of Representatives.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Under rule IX, a resolution offered from the floor by a Member other than the majority leader or the minority leader as a question of the privileges of the House has immediate precedence only at a time designated by the Chair within 2 legislative days after the resolution is properly noticed.

Pending that designation, the form of the resolution noticed by the gentleman from Texas will appear in the RECORD at this point.

The Chair will not at this point determine whether the resolution constitutes a question of privilege. That determination will be made at the time designated for consideration of the resolution.

STOP THE CANCEL CULTURE TRAIN

(Mr. WEBER of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WEBER of Texas. Madam Speaker, the cancel culture train, a/k/a/ H.R. 7573 that passed yesterday, was wrong on a deep level.

I am not going to get on that cancel culture train that says we have to do away with any mention or remembrance of everybody or everything that we don't agree with; or that might have said something that we don't like, didn't like; or that might have stood for something that we don't stand for, didn't stand for.

The First Amendment was put in the Constitution to prevent exactly this. I am not going to get on the cancel culture train because the next thing you know, I will get thrown off for saying something that somebody didn't like or didn't agree with or, Lord forbid, that I would do something that somebody didn't like or didn't agree with.

Madam Speaker, if we are going to do this, what happened yesterday, then the building names, street names, plaques, and all remembrances of Democrats that Judge Gohmert just read about need to be removed from every street, every building, anything that honors them.

Madam Speaker, that is a dangerous slope to be on, the cancel culture train. People better sit up and take notice.

QUESTION OF PERSONAL PRIVILEGE

Ms. OCASIO-CORTEZ. Madam Speaker, I seek recognition for a question of personal privilege.

The SPEAKER pro tempore. The Chair has been made aware of a valid basis for the gentlewoman's point of personal privilege.

The gentlewoman from New York is recognized for 1 hour.

Ms. OCASIO-CORTEZ. Madam Speaker, I would also like to thank many of my colleagues for the opportunity to not only speak today but for the many Members from both sides of the aisle who have reached out to me in support following an incident earlier this week.

About 2 days ago, I was walking up the steps of the Capitol when Representative YOHO suddenly turned a corner, and he was accompanied by Representative ROGER WILLIAMS, and accosted me on the steps right here in front of our Nation's Capitol.

I was minding my own business, walking up the steps, and Representative YOHO put his finger in my face. He called me disgusting; he called me crazy; he called me out of my mind; and he called me dangerous.

And then he took a few more steps, and after I had recognized his comments as rude, he walked away, and said: I'm rude? You are calling me rude?

I took a few steps ahead, and I walked inside and cast my vote because my constituents send me here each and every day to fight for them and to make sure that they are able to keep a roof over their head, that they are able to feed their families, and that they are able to carry their lives with dignity.

I walked back out, and there were reporters in the front of the Capitol. And in front of reporters, Representative YOHO called me, and I quote, ''a fucking bitch.''

These are the words that Representative YOHO levied against a Congresswoman, a Congresswoman that not only represents New York's 14th Congressional District but every Congresswoman and every woman in this country because all of us have had to deal with this in some form, some way, some shape, at some point in our lives.

And I want to be clear that Representative YOHO's comments were not deeply hurtful or piercing to me because I have worked a working-class job; I have waited tables in restaurants; I have ridden the subway; I have walked the streets in New York City, and this kind of language is not new.

I have encountered words uttered by Mr. YOHO and men uttering the same words as Mr. YOHO while I was being harassed in restaurants. I have tossed men out of bars that have used language like Mr. YOHO's, and I have encountered this type of harassment riding the subway in New York City.

This is not new, and that is the problem.

Mr. YOHO was not alone. He was walking shoulder-to-shoulder with Representative ROGER WILLIAMS.

□ 1030

And that is when we start to see that this issue is not about one incident. It is cultural. It is a culture of lack of impunity, of accepting of violence and violent language against women and an entire structure of power that supports that.

Because not only have I been spoken to disrespectfully, particularly by Members of the Republican Party and elected officials in the Republican Party—not just here, but the President of the United States last year told me to ''go home'' to another country, was the implication, that I don't even belong in America. The Governor of Florida, Governor DeSantis, before I even was sworn in, called me a ''whatever that is.''

Dehumanizing language is not new, and what we are seeing is that incidents like these are happening in a pattern. This is a pattern of an attitude towards women and dehumanization of others.

So while I was not deeply hurt or offended by little comments that are made, when I was reflecting on this, I honestly thought that I was just going to pack it up and go home. It is just another day, right?

But then, yesterday, Representative YOHO decided to come to the floor of the House of Representatives and make excuses for his behavior, and that I could not let go. I could not allow my nieces, I could not allow the little girls that I go home to, I could not allow victims of verbal abuse and worse to see that, to see that excuse and to see our Congress accept it as legitimate and accept it as an apology and to accept silence as a form of acceptance. I could not allow that to stand, which is why I am rising today to raise this point of personal privilege.

And I do not need Representative YOHO to apologize to me. Clearly, he does not want to. Clearly, when given the opportunity, he will not. And I will not stay up late at night waiting for an apology from a man who has no remorse over calling women and using abusive language towards women. But what I do have issue with is using women, our wives and daughters, as shields and excuses for poor behavior.

Mr. YOHO mentioned that he has a wife and two daughters. I am 2 years younger than Mr. YOHO's youngest daughter. I am someone's daughter, too.

My father, thankfully, is not alive to see how Mr. YOHO treated his daughter. My mother got to see Mr. YOHO's disrespect on the floor of this House towards me on television. And I am here because I have to show my parents that I am their daughter and that they did not raise me to accept abuse from men.

Now, what I am here to say is that this harm that Mr. YOHO tried to levy against me was not just an incident directed at me, but when you do that to any woman, what Mr. YOHO did was give permission to other men to do that to their daughters.

In using that language in front of the press, he gave permission to use that language against his wife, his daughters, women in his community, and I am here to stand up to say that is not acceptable.

I do not care what your views are. It does not matter how much I disagree or how much it incenses me or how much I feel that people are dehumanizing others, I will not do that myself. I will not allow people to change and create hatred in our hearts.

And so what I believe is that having a daughter does not make a man decent. Having a wife does not make a decent man. Treating people with dignity and respect makes a decent man. And when a decent man messes up, as we all are bound to do, he tries his best and does apologize—not to save face, not to win a vote. He apologizes genuinely to repair and acknowledge the harm done so that we can all move on.

Lastly, what I want to express to Mr. YOHO is gratitude. I want to thank him for showing the world that you can be a powerful man and accost women. You can have daughters and accost women without remorse. You can be married and accost women. You can take photos and project an image to the world of being a family man and accost women without remorse and with a sense of impunity.

It happens every day in this country. It happened here on the steps of our Nation's Capitol. It happens when individuals who hold the highest office in this land admit to hurting women and using this language against all of us.

Once again, I thank my colleagues for joining us today.

Madam Speaker, I yield to my colleague from Washington (Ms. JAYAPAL).

Ms. JAYAPAL. Madam Speaker, I thank the gentlewoman for yielding.

Madam Speaker, that was brilliance, grace, intelligence, and complete dedication to what justice, equality, and dignity in the United States looks like. That is our colleague, ALEXANDRIA OCASIO-CORTEZ, and we are so grateful to her for her voice.

What my colleague from Florida did was unacceptable. It was violent. It was sexist. And I do believe he needs to apologize, not because it is going to make our colleague, Ms. OCASIO-CORTEZ, feel any better, but because he, too, needs to learn what unacceptable behavior looks like and rise to the level of the office that he has been elected to. It does not dignify just him, but the 750,000 people that he represents.

And I thought, Madam Speaker, that it would be good to review for my colleagues a little bit of the history of the word that was used, the word that begins with a b that is five letters and that rhymes with ''witch,'' that word.

From 1915 to 1930, Madam Speaker, that word suddenly took off in usage in newspaper reports and articles. And do you know why? Because, in 1920, this body gave women the right to vote, and that was just a little too much power for too many men across the country.

And so all of a sudden, that word rose in prominence because, God forbid, that women would have the right to vote, that we would have power in this body, that we would have power anywhere in this country. God forbid, that women would actually have a voice to speak out on issues that matter and be the arbiters of what is fair and right and spoken with dignity and truism. And so that is when that word started to take off.

Now, I want to be clear that this violent language is about power. It is about power. It is about exerting power. It is about wielding power over people. It is about fear of people who may well be smarter than you, harder working than you, and more dedicated to achieving justice than you. It just may be that. It may be that fear. It is about diminishing and disrespecting when you have no other tools to do so.

And it is not new. Madam Speaker, you were right here managing time on this floor when I, as a new Member of Congress, was told by one of my Republican colleagues that I was a young lady, and I didn't know a damn thing about what I was talking about. You

were right here managing the time for our side, and you helped me through that moment. Thank you. And I did get an apology on this floor from my colleague across the aisle.

I was also told in Judiciary Committee to learn how to read by another one of my Members across the aisle. These are the things that happen to us all the time. These are not jokes. They are not little things, not because they hurt us—we are way too strong for that—but because they say something about the caliber of person that is here in the United States Congress.

Do you know, Madam Speaker, out of the 11,000 people who have ever served in the United States Congress, there are only 79 of us women of color who have ever served in this body. And, yes, we bring a new voice.

And so I say to my colleague, Representative OCASIO-CORTEZ, thank you for your grace and for your brilliance and for your dignity.

And to everybody who is out there watching us and to our colleagues across the aisle, let me say this: We are not going away. There are going to be more of us here. There is going to be more power in the hands of women across this country. And we are going to continue to speak up. We are going to continue to say, ''Madam Speaker.'' We are going to continue to have a voice for people so that everyday working people, our daughters and our mothers and our wives across the country, understand that somebody is standing up for them.

So, Madam Speaker, I believe Mr. YOHO should apologize. I have been on a trip with him across the globe. I never thought I would hear this kind of language from him. I really didn't. And I am stunned, and yet, at the same time, it is a pattern, and it is an old pattern.

Ms. OCASIO-CORTEZ. Madam Speaker, I thank Representative JAYAPAL for giving context of how these words and this language have always been levied towards the ascent of women and women who are ascending in power.

Madam Speaker, I yield to the gentlewoman from New York (Ms. VELÁZQUEZ), another phenomenal leader from my own home State.

Ms. VELÁZQUEZ. Madam Speaker, I thank the gentlewoman for yielding.

My friends, at times like this, it will benefit us all to remember what the word ''Congress'' actually means. ''Congress'' means a coming together. That is the entire point of this institution.

People from different regions of the country, with varying political views, individuals of different backgrounds, ethnicities, sexual orientations, and, yes, genders come together to solve problems on behalf of the American people who elect us.

That is where the word ''Congress'' originates from. A coming together.

We will frequently disagree heatedly. We argue on this floor and in committee hearings and meetings. We may even disagree on the steps of the Capitol. However, let us disagree agreeably.

The words being discussed today did not live up to those ideals, and the gentleman must say that he is sorry. He must apologize. It is not to apologize to ALEXANDRIA OCASIO-CORTEZ. He must apologize to his wife, to his daughters, to women in this country.

Today, our political discourse is too often infected with an anger and a malice unbecoming of our democratic traditions. As elected officials, we are expected to do better, to act as an example of how we can debate passionately but treat one another with compassion, dignity, and respect.

It saddens me that the words that we are discussing today failed to live up to that standard.

For those reasons, Madam Speaker, I stand with my friend from New York in condemning the remarks that were made.

Madam Speaker, I ask all of us to do better. We must do better.

□ 1045

Ms. OCASIO-CORTEZ. Madam Speaker, I would take a moment to thank Representative VELÁZQUEZ for her precedent and her leadership as well. Before I was a young Puerto Rican woman upending an incumbent, VELÁZQUEZ was as well.

Every single one of us, as women, have to stand on the shoulders and the efforts made by other women who had to fight—fight hatred, fight patriarchy, fight hateful men—in order to simply exist in bodies like this.

So, Madam Speaker, I also thank not only Representative VELÁZQUEZ, but Representative LAWRENCE, who is a leader in the Women's Caucus, ensuring that others and other women who will walk through these doors not just today but in generations to come, continue to be protected and amplified.

Madam Speaker, I yield to the gentlewoman from Michigan (Mrs. LAWRENCE).

Mrs. LAWRENCE. Madam Speaker, I stand here today in support of women.

I stand here today condemning the words of, unfortunately, a colleague of mine.

I want to reflect on history.

The first African-American woman was elected in 1968, the first Hispanic woman in 1989. Madam Speaker, we are here to stay. This year is the 100th year that women have had the right to vote.

For far too long, women and people of color have been subjected to being mistreated, humiliated, and trying desperately with words to minimize us.

Women of color have traditionally been excluded from the Halls of Congress, but I am here today saying, in a Congress where we have the largest number of diversity in women in the history of this Congress, our diversity is our strength and our unity is our power.

We will see, today, speakers coming to this mike. Yes, we are standing up because of the words of one Member, but I am standing here today after generations of assault, generations of abuse, and I stand here proud, as a survivor.

Our constituents expect leadership, not schoolyard bullying, from their elected colleagues.

Almost 100 years after the ratification of the 19th Amendment to the Constitution and now, at a time when this body is the most diverse it has ever been, this is the time we should be celebrating each other, thanking God that we have opportunities to serve with legends like John Lewis; but, instead, we are trying to roll back the clock with behavior that is unacceptable.

I am the little Black girl from the east side of Detroit who was raised by a woman who is the grandchild of an emancipated slave. I am not scared of you. I will call you out. I demand respect, and I will respect you.

Ms. OCASIO-CORTEZ. Madam Speaker, I thank my colleague from Michigan (Representative LAWRENCE) for her comments.

As I had indicated earlier, having a daughter does not make a decent man, having a wife does not make a decent man, but treating people with dignity and respect makes a decent man. I am incredibly thankful to have the honor and privilege to serve with decent men in this body each and every day.

Madam Speaker, it is an honor and I am thankful to serve with Representative AL GREEN, who is a sterling example of such a decent man.

Madam Speaker, I yield to the gentleman from Texas (Mr. GREEN).

Mr. GREEN of Texas. Madam Speaker, I thank the gentlewoman for this opportunity, Ms. OCASIO-CORTEZ.

Madam Speaker, I am 72 years old. I have no children. But if I had a daughter, I would name her Alexandria, because my name is Alexander.

If I had a daughter, I would want her to be bold; I would want her to be courageous; I would want her to speak truth to power; I would want her to be just like ALEXANDRIA OCASIO-CORTEZ. The name means helper of humankind, and that is what she is about the business of doing.

Madam Speaker, I salute Ms. OCASIO-CORTEZ for the positions that she has taken.

Madam Speaker, this is not the first time we have heard this ''b'' word used by people in positions of authority. A higher office in this country has corrupted the discourse. It came from a higher office, and we all took it for granted. We just assumed, well, that is just a person saying something.

''SOB'': You are talking about the mother. This is unacceptable. It is absolutely unacceptable.

I believe that we must change the tide of discourse in the country, and I believe that what Ms. OCASIO-CORTEZ has said is something that all of us should take notice of.

She spoke from her heart, as she usually does, by the way—a brilliant head with a compassionate heart.

Madam Speaker, I am proud of Ms. OCASIO-CORTEZ. I will stand with her not only today, but in the future. I don't have to agree with everything she says to respect her dignity, to respect her humanity.

And finally this. I grew up in a home where scatology was commonplace. I don't think ''scatologist'' is a word, but if such a word existed, there were many scatologists in my home. ''Scatology'' is a word.

I learned early on how that impacts the psyche of people. We cannot allow what happened to go unnoticed, which is why I am here today.

Madam Speaker, this scatology with the ''b'' word is something that demeans every woman when it is used. I will stand against it, and I will stand with the Honorable ALEXANDRIA OCASIO-CORTEZ.

Ms. OCASIO-CORTEZ. Madam Speaker, I thank Representative GREEN for his comments. His words brought tears to my eyes.

I think that the relationship particularly between fathers and daughters is a very sacred one, and it is a very special one. But I also know, if my father were publicly using that language to another woman, particularly my age, but any woman, I would tell him that he needed to apologize and that his behavior was reprehensible and embarrassing.

Madam Speaker, I yield to the gentlewoman from California (Ms. SPEIER).

Ms. SPEIER. Madam Speaker, I thank the gentlewoman for yielding.

I want to compliment her on a profound, articulate, and accurate statement of what is wrong with what is going on in this country and what is going on wrong in this body.

As one of the co-chairs of the Democratic Women's Caucus, I stand here as the author of the letter, along with my colleagues, calling on Mr. YOHO to apologize, demanding an apology from him to Ms. OCASIO-CORTEZ. He didn't give an apology yesterday, as Ms. OCASIO-CORTEZ indicated.

We really are at a watershed moment in this body. We have mourned the loss of two great leaders of this body. John Lewis, we sat on this floor last night for hours on both sides of the aisle talking about his greatness. And what did he call us? He called us a family. A family does not talk to each other as Mr. YOHO had talked to Ms. OCASIO-CORTEZ.

We mourn the loss of Congressman Elijah Cummings, who said, ''We are better than this.''

We are better than this. We are the most diverse Congress ever in the history of this country. Twenty-four percent of us are women; 8 percent of us are women of color.

Now, where does this all come from? It comes from the top. It comes from the White House, who calls women ''crazy Nancy'' or ''such a nasty woman'' or ''a low-IQ person'' of a colleague of ours who serves as the chair of a committee, a ''crazed, crying lowlife.''

Our colleague, Mr. YOHO, conducted himself like a hit-and-run driver, and he does not want to take responsibility for his conduct. I believe he must take responsibility for his conduct.

We are not, as women in this House, going anywhere. We are here to stay. We belong here, and we will demand respect for Ms. OCASIO-CORTEZ and every other woman in this House who has been demeaned by a colleague, whether a Democrat or a Republican. It is not right, and we can do better.

Ms. OCASIO-CORTEZ. Madam Speaker, I yield to the gentleman from Wisconsin (Mr. POCAN), who is also the co-chair of the Congressional Progressive Caucus and another wonderful champion for all people.

Mr. POCAN. Madam Speaker, I thank the gentlewoman for yielding.

Earlier this week, a Member of this body attacked another Member over their viewpoint, but it wasn't the ordinary debate over ideology. It turned personal and misogynistic all too quickly.

What was the egregious offense? She said what we all know to be true: that poverty is a leading path to crime; that if you can't pay your rent or feed your family, you will do whatever you have to do to survive, and you could turn to crime so you aren't homeless or so your family doesn't starve. That is called survival.

Thanks to our Nation's disastrous response to COVID–19, more people aren't working, and that will cause poverty—pretty simple, honest logic.

Well, one Member not only took offense to that truism, but they also took offense to the person who said it, in the most frightening manner. They started to attack a person not just for their values, but for who they are, with the most antiquated view and response I have seen in this body.

By swearing at someone and calling them an f-ing b, you don't denigrate the person you are attacking as much as you denigrate yourself and, honestly, this institution.

By not properly apologizing for that incident, you further dig yourself into a dinosaur-sized misogynistic hole.

For the Republican Party to not deal with that Member swiftly and strongly, they show a greater problem with their party.

It is likely not a coincidence that half of this body looks more like a ''Mad Men'' episode than a representative governing body for the greatest Nation on the planet.

Madam Speaker, I am so proud to serve with ALEXANDRIA OCASIO-CORTEZ and every other woman and woman of color in this body. This country is not just made up of older, White, wealthy men alone. We are a rich tapestry of genders, races, sexual orientations, economic backgrounds, and more.

We can't be afraid to look like the very country we represent, and smart women, smart women of color, shouldn't make anybody afraid. They should make everyone proud of our Nation and proud that we finally—finally—are starting to look more like it.

If our actions in this body on issues like COVID if done improperly can lead to joblessness and poverty and could lead to more hunger and homelessness and, potentially, crime, if that truth, combined with the truth teller who looks like the Nation as a whole as opposed to this Congress, if that scares anyone, well, then they should learn how not to be scared or figure out their next career, because we have got more of this coming: truth telling and representative democracy. It couldn't be coming quickly enough.

Madam Speaker, I thank Ms. OCASIO-CORTEZ for giving me this opportunity to speak.

Ms. OCASIO-CORTEZ. Madam Speaker, I thank Representative POCAN for his brilliance.

Madam Speaker, I think the gentleman brings up such an excellent point, something we had all seen, that what we are seeing here is a resounding rejection of abuse and accosting of women.

But why is this only happening from one party?

□ 1100

This should not be a partisan issue. Yet, when Mr. YOHO walked down those steps and accosted me, and used these words, he was next to a Republican colleague, and that Republican colleague did nothing. Not only did that colleague do nothing, he pretended he didn't even hear it, when he had, in fact, jumped in. So not only did a person do it, but a bystander did nothing.

And I have yet to hear from the leader of the Republican Party personally. I have yet to have gotten a call from Representative MCCARTHY addressing his Member's behavior. I have yet to see Republican colleagues standing up for their daughters and saying that this behavior was unacceptable.

So, in the resounding standing and loud calls for justice, equally loud is the silence and the pin drop from the Republican Party about this type of misconduct.

No matter because, with that, we have an incredible champion for women, for men, for gender nonconforming people, and for justice, and I am proud to call her my sister.

Madam Speaker, I yield to the gentlewoman from Massachusetts (Ms. PRESSLEY).

Ms. PRESSLEY. Madam Speaker, I rise today to condemn in the strongest form the vulgar language and blatant disrespect a colleague directed at Congresswoman OCASIO-CORTEZ.

As the Congresswoman stated, we are not on the House floor today because of just one callous incident. Unfortunately, what brings us to this moment are the structural and cultural conditions, and, yes, the very men that have normalized the marginalization of women and, specifically, women of color, since this Nation's very inception.

Madam Speaker, patriarchy, is a tool of oppression that is very much at home in the halls of this powerful institution; not unlike the hostile working environments and harassment experienced by countless women across the Nation who dare to speak truth to power.

Today, we rise for every woman that has dealt with these dynamics as a conflated part of their walk in life; every woman that has repressed the painful rhetoric inflicted on our bodies and our lives.

So, suffice it to say that these tired tactics to debase and marginalize are familiar. And, yet, still, we rise.

Our foremothers, the trailblazing women elected to Congress before us, equipped us to take on a world that was built on contradictions and injustice. Because of them, we have learned how to walk with our heads held high; our legacy defined by the laws we write and the good we do on behalf of those we serve.

I first set foot in this institution at the age of 19. My mother poured into me a sense of reverence for this institution, of the awesome power that it held. I walked through hallways, and still do, flanked by the statues of men that enslaved my ancestors, in a building built by my enslaved ancestors.

Madam Speaker, while there may still be some specters in this hallway set on upholding oppression and misogyny, I know that when my 12-year old daughter walks through these hallways today, she sees my name embossed on a plaque outside the door and lit up on the voting board above this House floor. And she sees TLAIB, and OMAR, and CHU, and JAYAPAL, and ESCOBAR, and TRAHAN, and UNDERWOOD. Our very existence is proof that progress has been made.

And yet, although in some instances we are better than we used to be, we are still not who we can be. And so, with my eyes fixed clear on the challenges of the moment, but clearer still on the promise of the future, I speak to our daughters, for they are watching and carefully taking note of how we respond in this moment.

So, in this moment, I say to my Cora, and all our daughters, you are powerful. You are limitless. Your contributions to this world are brilliant, needed, and uniquely yours. Your ideas are substantive. Your lived experiences, your kind heart, and your critical eye belong at every single table where decisions are being made.

You deserve a life free from fear and filled with dignity and love. You are not defined by your productivity or your chosen work.

We affirm these truths to be self-evident that women are the backbone of every family, of our communities, and we are nation builders. We believe in you fully, without reservation. You have a right to show up in the world exactly as you are. And who you are is always enough. Cora, you belong everywhere.

And I will close with the words of Reverend William Barber who aptly points out that we find ourselves, as a Nation, in a moment of reckoning, a reckoning which calls for reconstruction. Old fights, but this is a new day.

Let's build the world that Cora and all girls and women deserve and let us begin with this very institution.

Ms. OCASIO-CORTEZ. Madam Speaker, I yield to the gentlewoman from California (Ms. JUDY CHU).

Ms. JUDY CHU of California. Madam Speaker, I rise today in support of my friend and colleague, Representative OCASIO-CORTEZ, but most of all, I rise in support of basic human decency.

I condemn remarks that are disrespectful and offensive; and recent remarks reflected a hostility that should alarm my colleagues on both sides of the aisle.

It is not expected that everyone in this Chamber agrees with each other. It is expected, however, that we treat each other with dignity and respect. There should never be a reason that anyone fails to meet this low bar.

Turning policy disputes into personal disputes is dangerous. As leaders, we risk inciting violence in others. As Congress Members, it indicates a focus more on fighting than governing.

We should never utter comments that are misogynistic and hateful to any Congress Member. This week, it was Congress Member OCASIO-CORTEZ, but if we don't speak out against this, tomorrow it could be any Congress Member who is a woman or person of color; and that is why this must end now.

If any such ugly curse words are uttered, decorum dictates that there should be an apology, a real apology, a sincere apology, not words that simply deflect and blame others.

On the great seal of the United States, it says, ''e pluribus unum;'' out of many, one. Disagreement and different perspectives were baked into this country, and it is our ability to work with others that we do not always agree with that has allowed America to be the beacon of hope. We should never betray these values of unity, despite disagreement.

Congress Member ALEXANDRIA OCASIO-CORTEZ deserves respect. Congress Member ALEXANDRIA OCASIO-CORTEZ deserves a real apology now.

Ms. OCASIO-CORTEZ. Madam Speaker, once again, I am so thankful to all of our colleagues who are coming and standing up today, again, not just for one incident, but for all of us in this country.

I yield to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ).

Ms. WASSERMAN SCHULTZ. Madam Speaker, I thank the gentlewoman for yielding, and I stand here in support of her courage.

I rise to remind every man and woman on this floor that we were sent to Washington to destroy hostile work environments, not build them.

Few women here, or watching, have not felt a man's bullying breath or menacing finger in our face as we were told exactly what our place was at work. I certainly saw and felt it as a 20-something lawmaker and had a highly public, similar experience here in the Halls of Congress as a 30-something Member, once again, from a then-Florida Member of Congress. That former Member was just elected as the Chair of the Republican Party of Texas, by the way; so bullies continue advancing unchecked.

Today, we take a stand for my colleague and friend, Ms. OCASIO-CORTEZ, and all women who endure this archaic behavior. Today, we take a stand and say enough is enough.

Sadly, most capitols, including this one, endure this archaic behavior, and we must stand shoulder to shoulder to say that today is the last day that we will tolerate it.

Sadly, most capitols, including this one, are still undeniably boys' clubs, but women have critical numbers now, my friends, and all of us, women and men, have had it with bullies.

The Halls of Congress are not middle school playgrounds. We have serious business to do. People across the country are sick, dying, unemployed, and facing eviction; yet, misogyny was this Member's highest priority messaging. Unbelievable. I guess really not unbelievable.

It is a new day, gentlemen, and I use that term loosely with some cases. So just to reminder for those who still want to wield the workplace tool of intimidation, your time is up.

To my sisters on this floor, and listening at home, to my daughters, listening at home, we must not let those who may be intimidated by our strength scare us away.

I am proud of and proud to stand by my colleague and friend, Congresswoman ALEXANDRIA OCASIO-CORTEZ today.

Ms. OCASIO-CORTEZ. Madam Speaker, I yield to the gentlewoman from Massachusetts (Mrs. TRAHAN).

Mrs. TRAHAN. Madam Speaker, I thank the gentlewoman for yielding.

Madam Speaker, we can disagree on issues that we face as a Nation, and we can disagree on the policies and the prescriptions that we develop to fix them. In fact, this very body was built on the belief that productive tension and spirited debate would force legislators to do the hard work of creating laws that will benefit all Americans.

For centuries, the House of Representatives has rejected personal attacks like those hurled at Congresswoman OCASIO-CORTEZ on the steps of the U.S. Capitol earlier this week. This institution has maintained rules that hold us, as Members of Congress, to a higher standard because that is what the hardworking people we represent expect from us, and that is what we owe to them.

Madam Speaker, when we learn of the kind of personal attack levied against Congresswoman OCASIO-CORTEZ, we cannot sit idly by. We cannot

let it go unaddressed, as many of us women have long been expected to do. We must call it out. We must demand accountability, like we are here today. That is what we owe to all women, especially to our daughters.

We have to send the message loud and clear because, apparently, people still aren't getting it. The days of bullying women you disagree with, whether it is in a boardroom, in a newsroom, or a military base, or in these hallowed Halls of Congress, are over.

If my colleagues on the other side of the aisle don't believe me, watch as we continue winning in districts across America. Watch as women band together to say enough to being publicly humiliated simply because they disagree. And watch as we make up for lost time by course-correcting the behaviors that women like us have had to endure so that our daughters, and yours, will never have to.

I want to thank my fearless colleague for the grace, the courage, and the intellect that she brings to this Chamber every day.

Ms. OCASIO-CORTEZ. Madam Speaker, I yield to the gentleman from Maryland (Mr. HOYER), our majority leader, who has stood up for every Member in this body, and for decency across parties.

Mr. HOYER. Madam Speaker, this is an issue of who we are as a people. Many women have spoken on this floor, but this is an issue for fathers. This is an issue for sons. This is an issue for brothers.

I have three daughters, two granddaughters, and three great granddaughters. They must not be confronted with this kind of attack, and that is what it was.

Some have tried to demonize the gentlewoman from New York who does, in fact, bring the intellect, the passion, and the focus on issues surprisingly that the gentleman mentioned yesterday in his non-apology. All the men on this side of the aisle are supportive of ALEXANDRIA OCASIO-CORTEZ and all of her sisters and all of her mothers as well.

□ 1115

Ms. OCASIO-CORTEZ. Madam Speaker, I yield to the gentlewoman from New Jersey (Ms. SHERRILL).

Ms. SHERRILL. Madam Speaker, I thank the gentlewoman from New York for yielding.

Madam Speaker, the 116th Congress has the largest number of women serving in this body's history: 101 women serving in the House and 26 women in the Senate. This historic class of women represents the broad and diverse America that we live in.

We are all public servants. We all came here to serve our country and our communities. I frequently disagree with colleagues, but policy differences are no excuse for personal attacks, and we know that some of the harshest personal attacks are often reserved for women of color. Furthermore, telling a woman, ''I am sorry you heard it that way,'' is a cliche as old as time to belittle and dismiss women after attacking them.

We have got to do better. We are role models for our children. I am standing here not just for my two daughters but for my two sons. We have got to do better.

Ms. OCASIO-CORTEZ. Madam Speaker, I yield to the gentlewoman from California (Ms. LEE).

Ms. LEE of California. Madam Speaker, first of all, let me just say, I rise today to support not only my colleague, Congresswoman ALEXANDRIA OCASIO-CORTEZ, but I rise in strong support of this privileged resolution.

As an African-American woman, first let me just say that I personally have experienced a lifetime of insults, racism, and sexism. And believe you me, Madam Speaker, this did not stop after being elected to public office.

It is past time that this body understands that women of color are here to stay. Congresswoman AOC is here to stay. It is past time that this House recognizes that women will not tolerate these personal attacks and insist that we be treated with the respect due to anyone in this House representing over 700,000 people.

The impact of using this language against any woman dehumanizes women and girls and sends the message to other men that women are valued less than a human being.

Now, my mentor, Congresswoman Shirley Chisholm from Brooklyn, New York, was the first Black woman elected to Congress. As a member of the late Congressman Ron Dellums' staff, I spent many years on Capitol Hill and witnessed the personal attacks and curse words against her as a Black female Member of Congress.

But do you know what, Madam Speaker? Just like the gentlewoman, she would not tolerate such behavior, and she had to fight, oftentimes alone, against such despicable language and behavior.

Well, we are here today with the Congresswoman. We are here supporting her right to speak out, to represent her constituents, and to be who she is: a brave and bold Member of Congress, which we know her to be.

Now, the gentleman from Florida, yes, he must apologize to the Congresswoman. He must apologize, though, to all the little girls who aspire to be who they are without being called disgusting names and without barriers to keep their voices silent.

Madam Speaker, I close with reading you just one verse of our beloved Dr. Maya Angelou's poem, ''Still I Rise.'' I am reminded of the gentlewoman today.

You may shoot me with your words,
You may cut me with your eyes,
You may kill me with your hatefulness,
But still, like air, I'll rise.

So, yes, the Congresswoman has risen once again.

Ms. OCASIO-CORTEZ. Madam Speaker, I thank Representative LEE not just for her comments but for her leadership.

Madam Speaker, I yield to the gentlewoman from Minnesota (Ms. OMAR), who is another incredible, resilient, and passionate leader.

Ms. OMAR. Madam Speaker, I am here not only to defend my friend and colleague, ALEXANDRIA OCASIO-CORTEZ; I am here on behalf of women around the world. This is not just about one woman, one incident, or one verbal assaulter. This is about respect and fundamental equality.

Like ALEXANDRIA, I was raised by a dignified man who told me that I deserved equality because I was an equal human being to my brothers. I am appalled often, like ALEX was, when we hear men say: I would never do this because I have a wife, I have a daughter, I have sisters.

Madam Speaker, you don't only respect women because they could be your mother, they could be your wife, and they could be your sister. No. You respect women because they are equal human beings to you. That is how my father raised me, and that is how ALEXANDRIA's father raised her.

Nearly every woman in the world has experienced verbal abuse, not just once, but since they were little girls. We experience it on playgrounds; we experience it in workplaces; and we experience it in our social media feeds. We see it coming regularly from the President of the United States, and now we see it coming from his partisan lackeys. From birth, little girls are sent the message that they don't matter.

In this body, we have seen men who are afraid of Muslim women like me and RASHIDA TLAIB because we say proudly that you cannot ban us from this country because we pray differently than you. They are afraid of women everywhere fighting systems of repression and sexual harassment through the Me Too movement. They are afraid not just of us but of losing their own power.

It is no accident that ALEX was verbally abused for speaking up for poverty in her district and its relation to unrest because when you push power, power pushes back. When we speak for people from marginalized communities, we understand, as people who come from those marginalized communities, that is a threat to those who wield power against marginalized communities.

So, we are here to say that we will not allow sexism, misogyny, and patriarchy to hold us back. We will not apologize for advocating for women everywhere. We will not apologize for claiming the power that women deserved for centuries. And we will send a message to our daughters and their daughters that they deserve fundamental equality.

Ms. OCASIO-CORTEZ. Madam Speaker, I thank so many Members who have shown up today in support. Although not everyone has been able to

speak, Representatives CASTRO, DELAURO, and BARRAGÁN have also risen, along with many, many others, and I appreciate everyone's presence.

Madam Speaker, I yield to the gentlewoman from Massachusetts (Ms. CLARK).

Ms. CLARK of Massachusetts. Madam Speaker, as we all know, sexism isn't new to Congress, and it is not new to America. It happens in homes, in schools, and in all places of work.

The behavior, the language, and the assault wielded against my colleague was disgusting, inappropriate, and endemic of the toxic masculinity that permeates our culture and our country.

Slurs like the one used by Representative YOHO are meant to degrade, objectify, and belittle women. It was an attempt to dismiss her, her role in this body, and her position altogether.

All women have experienced this to some degree, but so often, it is women of color who are singled out. When we hear comments like this, men and boys think it is appropriate. Women and girls expect it.

Today, we stand with our colleague. We will not accept this behavior anymore. We will not be made to feel less than. This is our House, and we are claiming our space.

Ms. OCASIO-CORTEZ. Madam Speaker, I yield to the gentlewoman from Michigan (Ms. TLAIB).

Ms. TLAIB. Madam Speaker, I rise today as a proud Member of this body, as a woman of color, and as a sister in service to my colleague, Congresswoman ALEXANDRIA OCASIO-CORTEZ, who was verbally assaulted by a Member of this same Chamber.

Gaslighting my colleague in our country won't work here. I rise to tell my sister in service: I believe you. I believe you not just because reporters happened to be standing there to hear the sexist attack, but because I believe women across our country when they tell us of the violence they experience at the workplace.

Violence against women in politics specifically is a global problem. I know. I would invite any of my colleagues across the aisle to answer the calls into my office for just 1 day to hear the vile sexist remarks made about me and other women serving in this Chamber.

When my colleague from Florida made the remark in question, he echoed and perpetuated those sexist and violent calls.

Madam Speaker, we must condemn in the strongest terms possible this kind of violent sexism so that women and girls across the country know that there is no room for it in any workplace, not in Congress, not anywhere.

Ms. OCASIO-CORTEZ. Madam Speaker, I yield back the balance of my time.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Mr. Brian Pate, one of his secretaries.

□ 1130

PROVIDING FOR CONSIDERATION OF H.R. 7608, DEPARTMENT OF STATE, FOREIGN OPERATIONS, AND RELATED PROGRAMS APPROPRIATIONS ACT, 2021

Ms. SHALALA. Madam Speaker, by direction of the Committee on Rules, I call up House Resolution 1060 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 1060

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 7608) making appropriations for the Department of State, foreign operations, and related programs for the fiscal year ending September 30, 2021, and for other purposes. All points of order against consideration of the bill are waived. An amendment in the nature of a substitute consisting of the text of Rules Committee Print 116–59 shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. Clause 2(e) of rule XXI shall not apply during consideration of the bill. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations; (2) the further amendments described in section 2 of this resolution; (3) the amendments en bloc described in section 3 of this resolution; and (4) one motion to recommit with or without instructions.

SEC. 2. After debate pursuant to the first section of this resolution, each further amendment printed in the report of the Committee on Rules not earlier considered as part of amendments en bloc pursuant to section 3 of this resolution shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, may be withdrawn by the proponent at any time before the question is put thereon, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

SEC. 3. It shall be in order at any time after debate pursuant to the first section of this resolution for the chair of the Committee on Appropriations or her designee to offer amendments en bloc consisting of further amendments printed in the report of the Committee on Rules accompanying this resolution not earlier disposed of. Amendments en bloc offered pursuant to this section shall be considered as read, shall be debatable for 30 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

SEC. 4. All points of order against the further amendments printed in the report of the Committee on Rules or amendments en bloc described in section 3 of this resolution are waived.

SEC. 5. During consideration of the amendments described in sections 2 and 3 of this resolution, it shall not be in order to consider an amendment proposing both a decrease in an appropriation designated pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985 and an increase in an appropriation not so designated, or vice versa.

The SPEAKER pro tempore. The gentlewoman from Florida is recognized for 1 hour.

Ms. SHALALA. Madam Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Texas (Mr. BURGESS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Ms. SHALALA. Madam Speaker, I ask unanimous consent that all Members be given 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Florida?

There was no objection.

Ms. SHALALA. Madam Speaker, on Wednesday, the Rules Committee met and reported a rule, House Resolution 1060, providing for consideration of H.R. 7608, the State, Foreign Operations, Agriculture, Rural Development, Interior, Environment, Military Construction, and Veterans Affairs Appropriations Act, 2021, under a structured rule.

The rule makes in order 132 amendments. The rule provides 1 hour of debate, equally divided and controlled by the chair and the ranking member of the Committee on Appropriations.

The rule provides that the chair of the Committee on Appropriations or her designee may offer amendments en bloc, which will be debatable for 30 minutes.

Finally, the rule provides one motion to recommit, with or without instructions.

Madam Speaker, I rise today in strong support of the bill in this rule. This appropriations package provides urgent and essential resources not only for the American people, but particularly for my fellow Floridians.

Among its provisions, the State, Foreign Operations, and Related Programs bill provides emergency funding for coronavirus preparedness, response, and relief.

There is much we do not know about this virus. The one thing we do know is that it respects no border. South Florida, which is now the epicenter of this pandemic, and as the capital of the Americas, knows all too well how diseases can spread. This emergency funding will save lives both at home and abroad.

The SFOPS bill provides robust funding to advance our global priorities and strengthens the international partnerships that are critical to supporting American influence and effectiveness across the globe. This includes specifically restoring funding for the World Health Organization, which this administration has threatened and is trying to cut off.

Nearly 150,000 Americans have, tragically, died from COVID–19. It is more important than ever that we are able to share information, best practices, and our skill and deep knowledge with our international partners. Many of those international partners were trained at the Centers for Disease Control over the years, and we simply can't afford to play politics with WHO funding.

Madam Speaker, I led the American delegation to WHO for 8 years. I am well aware of its limitations and its strengths. We need WHO more than ever. And, as I said, this virus knows no borders.

Madam Speaker, this bill also supports the people of Venezuela in their fight to restore democracy to their country. It includes an amendment I filed with Representative MURPHY that increases the funding made available for programs to promote democracy and the rule of law in Venezuela.

I am also very proud that this legislation provides security assistance to our friends and ally Israel, fully funding our commitment to Israel's security.

Madam Speaker, also in this package is the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies bill.

In this country, no one should ever be hungry, especially children, as this pandemic has made it only harder for hardworking families in my district and across the country to put food on the table. This bill provides robust funding for food and nutrition programs, which have never been more important.

The bill provides for more than $25 billion in mandatory funding for the child nutrition programs. This is an increase above the fiscal year 2020 enacted level, and the bill provides for $68 billion in required mandatory spending for SNAP. This includes $3 billion for the SNAP reserve fund.

As my friend Marian Wright Edelman once said: ''If we don't stand up for children, then we don't stand for much.''

Madam Speaker, also in this package is the Interior, Environment, and Related Agencies bill, which provides funding for meaningful action on climate change and protects our environment. I am particularly proud of the provisions that provide robust funding for the Department of the Interior bureaus working together to restore the Everglades, including the National Park Service, the Fish and Wildlife Service, and the South Geographic Program.

Lastly, among its most important provisions, this package upholds our commitment to our troops, investing in housing, in medical care, in programs to reduce veteran homelessness.

Simply put, with this legislation, we are fulfilling our obligations to our planet, to our American values, to our veterans, and to our children.

Madam Speaker, I reserve the balance of my time.

Mr. BURGESS. Madam Speaker, I thank Ms. SHALALA for yielding me the customary 30 minutes, and I yield myself such time as I may consume.

Madam Speaker, the bill we are debating today, in some ways I am reminded of a Clint Eastwood movie. We have some good, some bad, and some really ugly. But this bill gives consideration for fiscal year 2021 appropriations, as the gentlewoman from Florida just outlined: State and Foreign Operations, Agriculture, Food and Drug Administration, Interior, Environment, Military Construction, and Veterans Affairs Administration.

It is appropriate that we are considering these bills. The fiscal year ends on September 30, and we need to provide funding for the next fiscal year; and without the appropriations bills, that doesn't occur.

But we never did a budget this year, and since we never did a budget, House Democratic leadership decided to go without a budget. The only budgetary reference we can make is to the Bipartisan Budget Act of 2019, which did include spending limits. But, unfortunately, today, many of those limits are going to be jettisoned.

So division A of this bill appropriates $65 billion for State and Foreign Operations, including $8 billion in cap-exempt Overseas Contingency Operations funding and $10 billion in emergency coronavirus funding. Funding is continued for important global programs to support maternal and child health; combat AIDS, tuberculosis, and malaria; contribute to vaccine administration; and for the PEPFAR program.

Funding to the northern triangle countries of El Salvador, Guatemala, and Honduras is provided to help those countries create economic opportunities for their citizens, reduce violence, and strengthen the rule of law. The Secretary of State is required to certify that these countries meet certain conditions before 50 percent of that funding can be obligated.

The good news is they have made some recent progress, but we are obligated to continue the oversight of taxpayer-funded foreign assistance to ensure that the citizens of the recipient countries, the citizens, are benefiting and that we are effectively working to combat the drivers of illegal immigration. It is unfair to ask our taxpayers to have to subsidize this activity twice.

However, this division also prohibits the use of funds to implement the Mexico City policy, which requires nongovernmental organizations to certify that they will not perform or actively promote abortion as a condition of receiving United States funds. It also removes conditions that promote transparency and accountability at international organizations, including the World Health Organization.

We know that China withheld information from the World Health Organization. We know that that contributed to the excesses of the global pandemic, under which we now suffer.

It is disappointing that these partisan provisions were included in this bill. We could have had a bipartisan bill to provide for the American people. The poison pill provisions virtually guarantee that that will not be the case.

The Agriculture and Food and Drug Administration division appropriates nearly $24 billion in discretionary funding, $487 million over the fiscal year 2020 level. In the midst of a global pandemic, it is critical that our Food and Drug Administration be fully funded and staffed to stand at the ready to process applications for medical countermeasures as they are developed, things such as therapeutics and vaccines against this novel coronavirus.

The bill continues to fund the FDA Innovation Account. This was part of the 21st Century Cures Act and the various user fee arrangements that have proven to be so successful. But, again, you have to have concerns about the attempts to include authorizing language in the appropriations bill, issues that authorizing committees have not yet debated.

One of the issues is giving the FDA mandatory recall authority. Currently, manufacturers typically recall products if the FDA requests that they do so, because if they fail to act on a voluntary recall, guess what? Big liability for them.

But the FDA also has other tools to keep a product off the market. The section of code that this appropriations bill seeks to amend is specific to controlled substances, which may not be an appropriate place to incorporate such a policy.

Future considerations of such policies should happen within the committee of jurisdiction, which would be the Committee on Energy and Commerce.

Agriculture is the lifeblood for many American families, especially in rural communities. This coronavirus pandemic has greatly impacted our Nation's food supply, and this bill works to strengthen food security and promote agricultural research. That is good.

As communities continue to work through the ''new normal'' we are experiencing, with many people working from home and remote learning, efforts to bolster rural broadband are, indeed, critical.

□ 1145

Once more, rather than simply providing for the American people, this bill includes language that would permanently prevent any administration—Republican or Democrat—from making changes to the Supplemental Nutritional Assistance Program. This policy would result in working age, nondisabled adults without children not being required to seek employment in times of low unemployment in order to seek benefits. When we are in the

middle of a national emergency, flexibility is appropriate. However, the administration should not be permanently barred from making the program more beneficial to both the recipient and the taxpayer.

Next, division C of this bill includes provisions that ensure that our Nation's environment and public lands are preserved for future generations. These funds will be used to combat invasive species, mitigate harmful algae blooms, stop the trafficking of endangered animals. They will also provide essential resources to maintain our Nation's national park system.

Unfortunately, the bill threatens the advancement of fundamentally probusiness and pro-worker policies. It adds unnecessary barriers to administrative efforts to reduce regulation. Eliminating bureaucratic red tape will be the key to unlocking future economic growth, which I would submit is still important.

Division C also threatens the continued development of America's energy resources, thus its energy independence and the thousands of jobs tied to the energy sector. Specifically, it prohibits Federal funds to be used for oil and gas sales on Federal lands and offshore leases in Federal waters. These projects are important to America's economic recovery, they are important to America's national security, and they are important to America's energy independence. We, in the House, should not be limiting the economic opportunities in the middle of a global recession.

Division C of this bill contains many important provisions, but it is pro-regulation and anti-energy in ways that will harm our economy and thus hurt jobs throughout the country.

I would last like to discuss the Military Construction and Veterans Affairs division. As a historically bipartisan committee, I am grateful for the support that the committee has provided for important veterans' programs, particularly in veterans' health and military construction, and for prioritizing military family housing.

We have learned during the past couple of Congresses about the unacceptable condition of private military housing that is part of the military housing privatization initiative. Some reforms were included in last year's National Defense Authorization Act, and my hope is that we can continue the funding and the oversight necessary to ensure that our Armed Forces and their families feel safe in their homes on their bases.

Although I agree with and support the veterans' healthcare programs, I am encouraged by the robust mental health programs and the opioid abuse prevention and treatment assistance included in the bill, it is also a time when we must be at least cognizant of where the Federal Congressional Budget Office estimates are taking us with the budget deficit exceeding over $3.7 trillion for this fiscal year. So I do share some of the other Members' concerns on designating the $12.5 billion as emergency funding and disregarding the Bipartisan Budget Act of 2019. Again, we are functioning without a current congressional budget in this session of the House. Why do we even work on spending caps in the first place if we are only going to ultimately disregard them for partisan priorities?

Furthermore, I have serious concerns regarding provisions which would restrict funds for military construction projects, specifically a prohibition on funding for any type of border barrier. These restrictions unfairly jeopardize our military's safety and well-being. We are in the middle of a global pandemic. Mexico agreed to limit border crossings with the United States. So legal and illegal entries have been significantly reduced, limiting unexpected coronavirus transmission to domestic cases. Despite our best hopes, coronavirus cases are increasing, particularly along our southern border and our southern States. Now is not the time to restrict the ability of the President to act to further protect the country.

Last, I would like to note report language that presents pro-life concerns. The language grants flexibility to the VA without pro-life protections, thus including abortion referrals for those referred to outside care resources for services not provided by the Department.

Again, this appropriations package incorporates many provisions that both Democrats and Republicans can agree on. But it disregards the Bipartisan Budget Act agreement and includes poison pill policy provisions that, frankly, I will find, and many Republicans will find difficult to support.

I hope my Democratic colleagues will come to the table and negotiate so we don't abandon the American people as the end of the fiscal year approaches.

With that, I urge opposition to the rule, and I will reserve the balance of my time.

Ms. SHALALA. Madam Speaker, I yield 4 minutes to the gentleman from Mississippi (Mr. THOMPSON), the distinguished chairman of the Committee on Homeland Security.

Mr. THOMPSON of Mississippi. Madam Speaker, I would like to enter into a colloquy with the agriculture chair, Mr. BISHOP of Georgia.

Mr. BISHOP, I have a concern about the eligibility of Piney Woods School and Farm in Piney Woods, Mississippi, which is the only African-American boarding school left in America to receive Community Facilities Grant funding.

Currently, Piney Woods is ineligible to receive Community Facilities Grant funding because its geographic location is considered to be in a suburban area in Mississippi, when, in fact, the school's location should be designated as rural. The current designation is limiting Piney Woods from receiving much-needed funding.

Can we work together to try and find a solution?

I yield to the gentleman from Georgia (Mr. BISHOP), the subcommittee chair, for an answer.

Mr. BISHOP of Georgia. Madam Speaker, I appreciate my colleague's longtime interest in institutions such as Piney Woods. These institutions provide an opportunity to learn and to help these students go on to live extraordinary lives.

As a matter of fact, my father's roots are in Mississippi. And about 60 years ago, when I was 13 years old, my parents were strongly considering sending me to Piney Woods to complete my high school education. Piney Woods has a strong reputation.

I have worked with the gentleman on issues like this over the years. I, too, share your interest in preserving institutions like this for future generations.

Congress has developed programs like the Community Facilities program to help institutions just like this. I look forward to working with my colleague to take steps toward making resources available to preserve historic institutions and facilities like the Piney Woods School in Mississippi.

Mr. THOMPSON of Mississippi. Madam Speaker, reclaiming my time.

I look forward to working with the gentleman from Georgia. There is no question that Piney Woods Country Life School is a model for helping shape minds for the future. Their record speaks for itself. The kids who are fortunate to matriculate there come out and actually do very well in society. And so it is with this spirit that I offer the opportunity for us to help Piney Woods be even better. I look forward to working on crafting a solution.

Mr. BURGESS. Madam Speaker, I yield 2 minutes to the gentleman from Minnesota (Mr. STAUBER).

Mr. STAUBER. Madam Speaker, I thank the gentleman for the opportunity to express my disappointment, once again, with being denied the opportunity to amend this harmful piece of legislation on the floor.

The Interior appropriations bill was introduced by my colleague from St. Paul and produced by the subcommittee she chairs. Having anti-mining riders attached was no surprise, as Twin Cities Democrat politicians have leveled attacks at future mining projects multiple times this Congress.

However, section 435 of division C is a new low. It directly attacks three existing iron ore operations: The Minntac mine, the Minorca Mine, and the Northshore mine, along with the Coldspring Mesabi Black quarry. Combined, this places more than 2,000 jobs in my district on the chopping block. These blue-collar jobs support families in my district, jobs we need, especially during this pandemic.

Twin Cities anti-job environmentalists continue to level bolder and bolder attacks on our way of life in northern Minnesota by now putting iron mining squarely in the crosshairs.

China controls more than half the world's steel market with a cheap, low-quality product built with horrific and zero labor standards and environmental standards.

In my district, reclaimed mines provide drinking water for entire communities. Northern Minnesota has the cleanest air and water in the world and much cleaner than the brown water in St. Paul.

We all care for our environment, but this legislation is no longer about environmental protections. This is about ideology and our way of life.

I will fight for northern Minnesota and our blue-collar jobs with every fiber in my body.

Ms. SHALALA. Madam Speaker, I yield 1 minute to the gentlewoman from California (Ms. LEE).

Ms. LEE of California. Madam Speaker, I thank my friend, Congresswoman SHALALA, for her tremendous work and support. Her leadership certainly is warranted and necessary and needed right at this moment in our country's history.

Let me first take a moment to thank Congresswoman NITA LOWEY for her years of leadership both on the full Committee on Appropriations as well as the State, Foreign Operations, and Related Programs Subcommittee.

Over the years, the chairwoman has been a steadfast and effective advocate for a humane and generous American role in the world, especially through her work to expand education, especially for girls and women, focused on creating many opportunities for millions of girls around the world.

I will miss Chairwoman LOWEY, but I just want to say that her legacy as our chair is going to remain very close to all of us, and it will remind us of the work which we must continue for future generations.

I serve as the vice chair of our State, Foreign Operations, and Related Programs subcommittee and as a member of the Agriculture Committee. I rise to support this rule, which provides for the consideration——

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Ms. SHALALA. Madam Speaker, I yield an additional 30 seconds to the gentlewoman from California.

Ms. LEE of California. Madam Speaker, I rise to support this rule. It provides for the consideration of appropriations bill and contains the emergency funds to respond to the impact of COVID around the world and also to ensure that our diplomacy and development programs can sustain their efforts in the face of this pandemic.

I am pleased that we provide almost $6 billion for PEPFAR, including $1.5 billion for the Global Fund. We provide $55 million for UNFPA, and, yes, we repeal the global gag rule.

The SPEAKER pro tempore. The time of the gentlewoman has again expired.

Ms. SHALALA. Madam Speaker, I yield an additional 1 minute to the gentlewoman from California.

Ms. LEE of California. Madam Speaker, let me just be very quick in terms of just laying out why I support this rule again.

We provide $55 million for UNFPA and $68 billion for SNAP, which is extremely important now, with so many people needing food security falling through the cracks.

We provide $90 billion for veterans' health and more than a half billion to get lead out of drinking water, which really, in this country, should be no more. It is a shame and a disgrace.

And as we consider this rule, I urge my colleagues to examine the appropriations bill through the lens of racial justice. These bills contain important provisions that respond to this moment in American history when people are marching in the streets to demand that our country dismantle systemic racism.

So I ask that we look at these bills and understand that equity has got to be so much a part of our funding priorities.

Madam Speaker, I support this rule, and I hope we adopt the important funding in this package.

□ 1200

Mr. BURGESS. Madam Speaker, I yield 2 minutes to the gentleman from Minnesota (Mr. EMMER), a valuable member of our Republican House leadership.

Mr. EMMER. Madam Speaker, the conversation we are having here today does not need to be as divisive and destructive to hardworking Minnesotans as my Democrat colleagues from Minnesota are pushing.

Today, I stand with the Representative of northern Minnesota, PETE STAUBER, who is advocating for those Minnesotans who will be directly impacted by this shortsighted effort. We both firmly believe that American mining is the safest and environmentally responsible way to help America.

We have been told, time and time again, not this mine, not this location. Unfortunately, the reality is, our Democrat colleagues want to ban all mining. They want to eliminate good-paying jobs in construction—labor—and allow countries like China and Russia to utilize child labor and environmentally disastrous practices to mine for the minerals our everyday items need, like cellphones and cars.

This bill doesn't simply attack the future of mining. It impacts existing mines in operation today. This bill will decimate those jobs.

I urge all of our colleagues to vote against this rule and the bill in order to preserve mining in our great State. It will also help secure America's mineral independence and give miners the opportunity to do what they do best, mine responsibly in our country for the benefit of all Americans.

Ms. SHALALA. Madam Speaker, I yield 3 minutes to the gentleman from Maine (Mr. GOLDEN).

Mr. GOLDEN. Madam Speaker, the purpose of my amendment is to call attention to the shortage of VA mental health and substance use disorder facilities.

For example, veterans in my home State of Maine must travel hundreds of miles out of State to access long-term treatment facilities. That is just unacceptable.

A proposed residential unit at the Togus VA hospital in Maine would provide treatment beds to 24 veterans. But until VA approves this new construction project, veterans in Maine have few options.

VA needs to ensure long-term inpatient mental healthcare and substance use disorder services are provided as close to each veteran's home as possible.

That is why I am proud to have worked with you, Madam Chair, to secure $20 million above the budget request in the MILCON-VA bill for medical facilities. I thank the gentlewoman for her strong leadership on this and also other critically important issues for our Nation's veterans.

In addition to the extra funding, the bill directs VA to prioritize construction that expands access to overnight bed space for veterans seeking mental healthcare.

Moving forward, I ask that the committee continue to push VA for answers on progress toward boosting inpatient capacity, prioritizing construction for these lifesaving services.

Ms. SHALALA. Madam Speaker, I yield to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ), the Subcommittee on Military Construction, Veterans Affairs, and Related Agencies chairwoman.

Ms. WASSERMAN SCHULTZ. Madam Speaker, I thank Mr. GOLDEN for his extraordinary military service to our country and for his leadership on this urgent issue.

Madam Speaker, no veteran should be forced to choose between seeking care away from loved ones or forgoing treatment altogether. I applaud my friend for his tireless advocacy for local mental health services for veterans in the VA appropriations bill.

I look forward to continuing to work together to prioritize greater accessibility to these vital mental health services to veterans.

Madam Speaker, I wish the gentleman a happy birthday this Saturday.

Ms. SHALALA. Madam Speaker, I yield to the gentleman from Maine (Mr. GOLDEN).

Mr. GOLDEN. Madam Speaker, I am not sure who outed me on the birthday, but I appreciate the well wishes.

Madam Speaker, I thank the subcommittee chairwoman for her strong support on this issue. This is the second year in a row that the chairwoman and her committee and the committee staff have supported an increase like this for inpatient facilities for veterans who are struggling with mental health

or substance use issues and need treatment, and I appreciate their advocacy very much.

Mr. BURGESS. Mr. Speaker, I yield 3 minutes to the gentleman from Arizona (Mr. GOSAR), chairman of the Congressional Western Caucus.

Mr. GOSAR. Mr. Speaker, I rise in opposition to the rule and the underlying bill.

The underlying bill contains a wish list of provisions from far-left environmentalists that prevent job creation and energy development in rural communities.

One in particular is the proposed buffer zone around the Chaco Canyon national park. This provision is an assault on the private property rights of hundreds of Navajo allottees who own oil and gas rights in the area surrounding the park.

This buffer expansion in this bill would make these assets worthless, taking away valuable royalty payments from these impoverished communities. To put this in perspective, in 2015 alone, the Federal Indian Minerals Office distributed $96 million to 20,835 allottees around the country.

Instead of listening to all voices, the proponents of this provision have only listened to environmental groups who claim to represent all the relevant stakeholders on this matter but clearly do not. Allottees in the Chaco region have consistently expressed opposition to this proposed withdrawal.

Any uncertainty amongst the oil and gas industry when it comes to the ability to extract oil and gas from this region has negative consequences for them and the local economy.

In my role as the ranking member of the Natural Resources Subcommittee on Energy and Mineral Resources, I sent two of my staff to meet with Navajo allottees in New Mexico. The response from these allottees was overwhelming, as hundreds and hundreds of people showed up to express their opposition to a proposed buffer zone around Chaco Canyon national park.

The facts are, Mr. Speaker, there are already laws on the books to protect Chaco national park and the pristine artifacts that may lay outside of its borders. The oil and gas industry has both a legal and moral obligation to protect the artifacts of the Chaco people, as well as avoiding impacts on newly discovered artifacts, which has always been done.

This provision is clearly unnecessary, and I would urge that it be removed in conference if this bill is passed by the House.

It would also be remiss of me not to mention the equally egregious provision in the legislation that prevents copper, nickel, and iron mining in northern Minnesota. Copper, nickel, and iron mining is the historic lifeblood of the economy in northern Minnesota and has the potential to create thousands of good-paying jobs that can be done in an environmentally safe way.

The SPEAKER pro tempore (Mr. CARSON of Indiana). The time of the gentleman has expired.

Mr. BURGESS. Mr. Speaker, I yield an additional 30 seconds to the gentleman from Arizona.

Mr. GOSAR. Mr. Speaker, we, as Congress, need to wake up and stop talking out of both sides of our mouth. In fact, we cannot continue to rely on foreign adversaries to take care of our mineral needs. We can take care of our own needs with our own domestic resources in the most environmentally safe way. We do it better than anyone in the world, and yes, we do it without slave child labor like they do in the Congo with cobalt as China does.

Mr. Speaker, I, once again, urge my colleagues to oppose the previous question, the rule, and the underlying bill.

Ms. SHALALA. Mr. Speaker, I yield 2 minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM).

Ms. MCCOLLUM. Mr. Speaker, the Interior and Environment division of this bill makes many critical investments in protecting our natural resources and contains several provisions designated to stop the Trump administration from moving forward on disastrous environmental policies.

This bill puts a halt on the use of funds in the next fiscal year to review approved mine plans within the watershed in the Nation's most visited wilderness, the Boundary Waters Canoe Area.

This provision does not—does not—impact the operations of current mines that already have their plans approved and are operating. There is no iron ore mine plan under review within the watershed or anywhere in the Superior National Forest.

Sulfide-ore mines are toxic. They produce acid mine drainage, which includes heavy metals like lead and cadmium. This poses a significant risk to surface waters and ground waters.

The Trump administration cannot be trusted to conduct an environmental review of sulfide-ore mining that could devastate this wilderness. They have already shown a lack of transparency and a willingness not to be guided by science.

Multiple Cabinet members have pledged to members of the Appropriations Committee in congressional hearings that they would complete a mineral withdrawal study within this very watershed. Instead, they abandoned this review 20 months into a 24-month plan, and they have refused to release any of the information.

Mr. Speaker, I would submit the report that they did finally show me, but I have no idea how the good people who work at this front desk could put in 60 pages of redacted material, 60 blank pages of a taxpayer-funded report.

This is a 1-year halt on a mine plan in a wilderness area from an administration that has shown a total lack of transparency and respect for science.

Mr. BURGESS. Mr. Speaker, I yield 4 minutes to the gentleman from New Jersey (Mr. SMITH).

Mr. SMITH of New Jersey. Mr. Speaker, someday, future generations of Americans will look back on us and wonder how and why a society that prided itself on the commitment to human rights precluded virtually all protections to the weakest and most vulnerable—unborn children.

I believe they will demand to know why dismembering a child with razor-sharp knives, pulverizing an infant with powerful suction devices, or chemically poisoning a baby with any number of toxic chemicals failed to elicit empathy for victim babies.

The bill before us today reverses several modest but important pro-life policies, including the Protecting Life in Global Health Assistance policy, which is a reiteration and expansion of President Ronald Reagan's Mexico City policy. Announced by Ronald Reagan at the UN conference on population growth in Mexico City in 1984, hence, its name, the policy was and is designed to ensure that U.S. taxpayer money is not funneled to foreign NGOs that perform or promote abortion as a method of family planning.

After Reagan announced that policy, Mr. Speaker, I offered the first amendment in 1985 to protect that policy, and we won. We lost in the Senate, but since it was an executive order, the policy did survive. And I have done it many, many times since.

The policy established pro-life safeguards, benign, humane conditions, on the $8.8 billion in annual global health assistance. For years, Mr. Speaker, foreign NGOs have been empowered by taxpayer funds, grant money, to weaken, undermine, or reverse pro-life laws in other nations, especially in Africa, and to destroy the precious lives of unborn children.

The Protecting Life in Global Health Assistance policy, which was put into effect by President Trump, mitigates U.S. taxpayer complicity in global abortion. U.S. foreign assistance, Mr. Speaker, and the foreign entities that we fund with billions of dollars of grant money should consistently affirm, care for, and tangibly assist women and all children—all children regardless of age or condition of dependency.

I have authored many laws in this body, including the PEPFAR reauthorization, the 5-year reauthorization of the President's emergency plan for AIDS relief.

When Henry Hyde, taking his cue from George W. Bush, authored that important legislation, I, and many others, joined in. We were strong supporters, but Henry Hyde was the leader.

That legislation has saved the lives of some 17 million people with ARVs, as well as with prevention strategies. And it has made all the difference in the world in the area of malaria as well as tuberculosis.

Mr. Speaker, I believe we must increase access to maternal and prenatal care and ensure access to safe blood

and better nutrition. We must also expand essential obstetrical services, including skilled birth attendants, while improving transportation to emergency care facilities to significantly reduce maternal mortality and morbidity, including obstetric fistula.

The law or the policy on the books with regard to obstetric fistula, I offered the bill on that. It passed the House. It did not pass the Senate. But then I got USAID to adopt it administratively. I have been to the Addis Ababa Fistula Hospital in Ethiopia, where many women have gotten their lives back because of reparative surgery.

No one is expendable or a throwaway, Mr. Speaker. Birth is merely an event, albeit an important one, but only an event.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. BURGESS. Mr. Speaker, I yield an additional 30 seconds to the gentleman from New Jersey.

Mr. SMITH of New Jersey. Mr. Speaker, birth is really just an event.

Ultrasound has shattered the myth that an unborn child is anything but human and alive and growing. It really is up to us to do all we can to make that life as healthy as humanly possible.

Victim babies, like their mothers, absolutely deserve respect, protection, and an abundance of compassion.

□ 1215

Ms. SHALALA. Mr. Speaker, I am prepared to close, and I reserve the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, if we defeat the previous question, I will offer an amendment to the rule to sanction any senior foreign official who conceals information about the outbreak of a pandemic, including this current coronavirus pandemic.

We know that China delayed reporting what they knew about this coronavirus. They withheld information from the World Health Organization and attempted to silence doctors, silence researchers who had alerted local health authorities.

China's continued attempts to avoid national humiliation resulted in a pandemic that has killed well more than 600,000 people globally. It is unacceptable, and we must hold China accountable.

Mr. Speaker, I ask unanimous consent to insert the text of this amendment into the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. BURGESS. Mr. Speaker, I yield 3 minutes to the gentleman from Utah (Mr. CURTIS), my good friend, to speak on the amendment.

Mr. CURTIS. Mr. Speaker, I rise today in support of my legislation, the Li Wenliang Global Health Public Accountability Act that would sanction any senior foreign official who conceals information dealing with the outbreak of a pandemic, including COVID–19.

On December 30, 2019, Li Wenliang warned his medical school classmates of an outbreak of a SARS-like virus over WeChat.

Wuhan's Public Security Bureau detained, questioned, and forced Dr. Li to sign a letter confessing he made false comments that severely disturbed the social order. Tragically, ironically, 5 weeks later on February 7, 2020, Dr. Li died of a severe case of COVID–19.

A study published in March indicated that if Chinese authorities had acted just 3 weeks earlier, the number of coronavirus cases could have been reduced by 95 percent and its geographic spread limited.

By suppressing critical public health information, officials abroad have demonstrated they care more about maintaining their grip on power than the health and wellbeing of the world population.

This bill will change that by ensuring these cronies will not see the perks created by their corruption.

By passing this bill today, we will honor Dr. Li, set the global standard for transparency, and crack down on corruption and human rights abuses. I respectfully ask my colleagues to support this legislation and urge my colleagues to defeat the previous question, so that we can consider my bill.

Ms. SHALALA. Mr. Speaker, I am prepared to close. I reserve the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, we really do not have time to waste. Not only must we provide for the American people, but we have the added responsibility of continuing to fight and recover from the coronavirus pandemic.

I hope my colleagues on the other side of the aisle will see the futility of passing purely partisan appropriations bills. That being said, there are provisions included in this bill where we can all agree, and I hope we can sit down and negotiate with the other side so we can prevent a disruption at the end of the fiscal year for the American people.

Mr. Speaker, I urge a ''no'' vote on the previous question, ''no'' on the rule, ''no'' on the underlying measure, and I yield back the balance of my time.

Ms. SHALALA. Mr. Speaker, I yield myself the balance of my time.

With this appropriations bill we are responding to the crisis of today while preparing for tomorrow. Americans are out of work, struggling to make ends meet as this virus wreaks havoc on our health, on our healthcare system, and on our economy.

The American people deserve a funding bill that makes smart investments, and this bill does just that. It addresses the hunger that is plaguing working families. It increases broadband access. It strengthens our international alliances. It combats climate change. It increases funding to provide healthcare for veterans. This bill invests in America and our collective future.

Mr. Speaker, I urge a ''yes'' vote on the rule and the previous question.

The text of the material previously referred to by Mr. BURGESS is as follows:

AMENDMENT TO HOUSE RESOLUTION 1060

At the end of the resolution, add the following:

SEC. 6. Immediately upon adoption of this resolution, the House shall resolve into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 7733) to authorize the imposition of sanctions with respect to the deliberate concealment or distortion of information about public health emergencies of international concern, and for other purposes. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Foreign Affairs. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. When the committee rises and reports the bill back to the House with a recommendation that the bill do pass, the previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 7. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 7733.

Ms. SHALALA. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Ms. SHALALA. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 230, nays 189, not voting 11, as follows:

[Roll No. 157]

YEAS—230

Adams	Brown (MD)	Clarke (NY)
Aguilar	Brownley (CA)	Clay
Allred	Bustos	Cleaver
Axne	Butterfield	Clyburn
Barragán	Carbajal	Cohen
Bass	Cárdenas	Connolly
Beatty	Carson (IN)	Cooper
Bera	Cartwright	Correa
Beyer	Case	Costa
Bishop (GA)	Casten (IL)	Courtney
Blumenauer	Castor (FL)	Cox (CA)
Blunt Rochester	Castro (TX)	Craig
Bonamici	Chu, Judy	Crist
Boyle, Brendan F.	Cicilline	Crow
	Cisneros	Cuellar
Brindisi	Clark (MA)	Cunningham

Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—189

Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Burgess
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Garcia (CA)
Gianforte
Gibbs
Gohmert
Gonzalez (OH)
Gooden
Gosar
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Holding
Hollingsworth
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Lucas
Luetkemeyer
Marchant
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Posey
Reed
Reschenthaler
Rice (SC)
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Tiffany
Tipton
Turner
Upton
Van Drew
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Wright
Yoho
Young
Zeldin

NOT VOTING—11

Abraham
Byrne
Cook
Dunn
Loudermilk
Mullin
Riggleman
Roby
Rooney (FL)
Suozzi
Timmons

□ 1307

So the previous question was ordered.

The result of the vote was announced as above recorded.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Clay (Grijalva)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Frankel (Clark (MA))
Garamendi (Boyle, Brendan F.)
Gomez (Gallego)
Hastings (Wasserman Schultz)
Horsford (Kildee)
Johnson (TX) (Jeffries)
Khanna (Sherman)
Kirkpatrick (Gallego)
Kuster (NH) (Brownley (CA))
Lawson (FL) (Evans)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Boyle, Brendan F.)
Lowenthal (Beyer)
Moore (Beyer)
Napolitano (Correa)
Pascrell (Sires)
Payne (Wasserman Schultz)
Pingree (Cicilline)
Porter (Wexton)
Price (NC) (Butterfield)
Rush (Underwood)
Serrano (Jeffries)
Sewell (AL) (DelBene)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. BURGESS. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 230, nays 188, not voting 12, as follows:

[Roll No. 158]

YEAS—230

Adams
Aguilar
Allred
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—188

Aderholt
Allen
Amash
Amodei
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Burgess
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Garcia (CA)
Gianforte
Gibbs
Gohmert
Gonzalez (OH)
Gooden
Gosar
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Holding
Hollingsworth
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)

King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Lucas
Luetkemeyer
Marchant
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Posey
Reed
Reschenthaler
Rice (SC)
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Tiffany
Tipton
Turner
Upton
Van Drew
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Wright
Yoho
Young
Zeldin

NOT VOTING—12

Abraham
Armstrong
Byrne
Cook
Dunn
Loudermilk
Mullin
Riggleman
Roby
Rooney (FL)
Suozzi
Timmons

□ 1348

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Clay (Grijalva)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Frankel (Clark (MA))
Garamendi (Boyle, Brendan F.)
Gomez (Gallego)
Hastings (Wasserman Schultz)
Horsford (Kildee)
Johnson (TX) (Jeffries)
Khanna (Sherman)
Kirkpatrick (Gallego)
Kuster (NH) (Brownley (CA))
Lawson (FL) (Evans)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Boyle, Brendan F.)
Lowenthal (Beyer)
Moore (Beyer)
Napolitano (Correa)
Pascrell (Sires)
Payne (Wasserman Schultz)
Pingree (Cicilline)
Porter (Wexton)
Price (NC) (Butterfield)
Rush (Underwood)
Serrano (Jeffries)
Sewell (AL) (DelBene)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess for a period of less than 15 minutes.

Accordingly (at 1 o'clock and 50 minutes p.m.), the House stood in recess.

□ 1404

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. HIMES) at 2 o'clock and 4 minutes p.m.

CONTINUATION OF NATIONAL EMERGENCY WITH RESPECT TO MALI—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 116–138)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Foreign Affairs and ordered to be printed:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622(d)) provides for the automatic termination of a national emergency unless, within 90 days before the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the national emergency declared with respect to the situation in Mali in Executive Order 13882 of July 26, 2019, is to continue in effect beyond July 26, 2020.

The situation in Mali, including repeated violations of ceasefire arrangements made pursuant to the 2015 Agreement on Peace and Reconciliation in Mali; the expansion of terrorist activities into southern and central Mali; the intensification of drug trafficking and trafficking in persons, human rights abuses, and hostage-taking; and the intensification of attacks against civilians, the Malian defense and security forces, the United Nations Multidimensional Integrated Stabilization Mission in Mali (MINUSMA), and international security presences, continues to pose an unusual and extraordinary threat to the national security and foreign policy of the United States. Therefore, I have determined that it is necessary to continue the national emergency declared in Executive Order 13882 with respect to the situation in Mali.

DONALD J. TRUMP.
THE WHITE HOUSE, *July 23, 2020.*

DEPARTMENT OF STATE, FOREIGN OPERATIONS, AND RELATED PROGRAMS APPROPRIATIONS ACT, 2021

Mrs. LOWEY. Mr. Speaker, pursuant to House Resolution 1060, I call up the bill (H.R. 7608) making appropriations for the Department of State, foreign operations, and related programs for the fiscal year ending September 30, 2021, and for other purposes, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 116–59, is adopted and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 7608

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''State, Foreign Operations, Agriculture, Rural Development, Interior, Environment, Military Construction, and Veterans Affairs Appropriations Act, 2021''.

SEC. 2. REFERENCES TO ACT.

Except as expressly provided otherwise, any reference to ''this Act'' contained in any division of this Act shall be treated as referring only to the provisions of that division.

SEC. 3. REFERENCES TO REPORT.

(a) Any reference to a ''report accompanying this Act'' contained in division A of this Act shall be treated as a reference to House Report 116–444. The effect of such Report shall be limited to division A and shall apply for purposes of determining the allocation of funds provided by, and the implementation of, division A.

(b) Any reference to a ''report accompanying this Act'' contained in division B of this Act shall be treated as a reference to House Report 116–446. The effect of such Report shall be limited to division B and shall apply for purposes of determining the allocation of funds provided by, and the implementation of, division B.

(c) Any reference to a ''report accompanying this Act'' contained in division C of this Act shall be treated as a reference to House Report 116–448. The effect of such Report shall be limited to division C and shall apply for purposes of determining the allocation of funds provided by, and the implementation of, division C.

(d) Any reference to a ''report accompanying this Act'' contained in division D of this Act shall be treated as a reference to House Report 116–445. The effect of such Report shall be limited to division D and shall apply for purposes of determining the allocation of funds provided by, and the implementation of, division D.

SEC. 4. AVAILABILITY OF FUNDS.

(a) Each amount designated in this Act by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 shall be available (or rescinded, if applicable) only if the President subsequently so designates all such amounts and transmits such designations to the Congress.

(b) Each amount designated in this Act by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985 shall be available (or rescinded, if applicable) only if the President subsequently so designates all such amounts and transmits such designations to the Congress.

DIVISION A—STATE, FOREIGN OPERATIONS, AND RELATED OPERATIONS APPROPRIATIONS ACT, 2021

That the following sums are appropriated, out of any money in the Treasury not otherwise appropriated, for the Department of State, foreign operations, and related programs for the fiscal year ending September 30, 2021, and for other purposes, namely:

TITLE I

DEPARTMENT OF STATE AND RELATED AGENCY

DEPARTMENT OF STATE

ADMINISTRATION OF FOREIGN AFFAIRS

DIPLOMATIC PROGRAMS

For necessary expenses of the Department of State and the Foreign Service not otherwise provided for, $9,188,195,000, of which $763,845,000 may remain available until September 30, 2022, and of which up to $4,095,899,000 may remain

available until expended for Worldwide Security Protection: Provided, That of the amount made available under this heading for Worldwide Security Protection, $2,626,122,000 is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That funds made available under this heading shall be allocated in accordance with paragraphs (1) through (4) as follows:

(1) HUMAN RESOURCES.—For necessary expenses for training, human resources management, and salaries, including employment without regard to civil service and classification laws of persons on a temporary basis (not to exceed $700,000), as authorized by section 801 of the United States Information and Educational Exchange Act of 1948 (62 Stat. 11; Chapter 36), $2,999,725,000, of which up to $543,687,000 is for Worldwide Security Protection.

(2) OVERSEAS PROGRAMS.—For necessary expenses for the regional bureaus of the Department of State and overseas activities as authorized by law, $1,840,143,000.

(3) DIPLOMATIC POLICY AND SUPPORT.—For necessary expenses for the functional bureaus of the Department of State, including representation to certain international organizations in which the United States participates pursuant to treaties ratified pursuant to the advice and consent of the Senate or specific Acts of Congress, general administration, and arms control, nonproliferation, and disarmament activities as authorized, $774,882,000: Provided, That none of the funds made available pursuant to this paragraph shall be available for the official travel of the Secretary of State from the period of time between the submission to Congress of the President's fiscal year 2022 budget and the Secretary of State providing written confirmation of a mutually agreed upon date for the Secretary's participation in a budget hearing before the Committees on Appropriations.

(4) SECURITY PROGRAMS.—For necessary expenses for security activities, $3,573,445,000, of which up to $3,552,212,000 is for Worldwide Security Protection.

(5) FEES AND PAYMENTS COLLECTED.—In addition to amounts otherwise made available under this heading—

(A) as authorized by section 810 of the United States Information and Educational Exchange Act, not to exceed $5,000,000, to remain available until expended, may be credited to this appropriation from fees or other payments received from English teaching, library, motion pictures, and publication programs and from fees from educational advising and counseling and exchange visitor programs; and

(B) not to exceed $15,000, which shall be derived from reimbursements, surcharges, and fees for use of Blair House facilities.

(6) TRANSFER OF FUNDS, REPROGRAMMING, AND OTHER MATTERS.—

(A) Notwithstanding any other provision of this Act, funds may be reprogrammed within and between paragraphs (1) through (4) under this heading subject to section 7015 of this Act.

(B) Of the amount made available under this heading, not to exceed $10,000,000 may be transferred to, and merged with, funds made available by this Act under the heading ''Emergencies in the Diplomatic and Consular Service'', to be available only for emergency evacuations and rewards, as authorized.

(C) Funds appropriated under this heading are available for acquisition by exchange or purchase of passenger motor vehicles as authorized by law and, pursuant to section 1108(g) of title 31, United States Code, for the field examination of programs and activities in the United States funded from any account contained in this title.

CAPITAL INVESTMENT FUND

For necessary expenses of the Capital Investment Fund, as authorized, $137,500,000, to remain available until expended.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General, $90,829,000, of which $13,624,000 may remain available until September 30, 2022: Provided, That funds appropriated under this heading are made available notwithstanding section 209(a)(1) of the Foreign Service Act of 1980 (22 U.S.C. 3929(a)(1)), as it relates to post inspections.

In addition, for the Special Inspector General for Afghanistan Reconstruction (SIGAR) for reconstruction oversight, $54,900,000, to remain available until September 30, 2022, which is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That funds appropriated under this heading that are made available for the printing and reproduction costs of SIGAR shall not exceed amounts for such costs during the prior fiscal year.

EDUCATIONAL AND CULTURAL EXCHANGE PROGRAMS

For necessary expenses of educational and cultural exchange programs, as authorized, $741,700,000, to remain available until expended, of which not less than $277,000,000 shall be for the Fulbright Program and not less than $116,860,000 shall be for Citizen Exchange Program: Provided, That fees or other payments received from, or in connection with, English teaching, educational advising and counseling programs, and exchange visitor programs as authorized may be credited to this account, to remain available until expended: Provided further, That a portion of the Fulbright awards from the Eurasia and Central Asia regions shall be designated as Edmund S. Muskie Fellowships, following consultation with the Committees on Appropriations: Provided further, That funds appropriated under this heading that are made available for the Benjamin Gilman International Scholarships Program shall also be made available for the John S. McCain Scholars Program, pursuant to section 7075 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2019 (division F of Public Law 116–6): Provided further, That not less than $5,000,000 of the funds appropriated under this heading shall be made available for the Global TechGirls Program in the manner specified under this heading in the report accompanying this Act: Provided further, That of the funds made available under this heading for the Fulbright Program, not less than $5,000,000 shall be made available for the English Teaching in Africa Program in the manner specified under this heading in the report accompanying this Act: Provided further, That funds appropriated under this heading may be made available for the Civil Society Exchange Program following consultation with the Committees on Appropriations: Provided further, That any substantive modifications from the prior fiscal year to programs funded by this Act under this heading shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

REPRESENTATION EXPENSES

For representation expenses as authorized, $7,415,000.

PROTECTION OF FOREIGN MISSIONS AND OFFICIALS

For necessary expenses, not otherwise provided, to enable the Secretary of State to provide for extraordinary protective services, as authorized, $30,890,000, to remain available until September 30, 2022.

EMBASSY SECURITY, CONSTRUCTION, AND MAINTENANCE

For necessary expenses for carrying out the Foreign Service Buildings Act of 1926 (22 U.S.C. 292 et seq.), preserving, maintaining, repairing, and planning for real property that are owned or leased by the Department of State, and renovating, in addition to funds otherwise available, the Harry S Truman Building, $769,800,000, to remain available until September 30, 2025, of which not to exceed $25,000 may be used for overseas representation expenses as authorized: Provided, That none of the funds appropriated in this paragraph shall be available for acquisition of furniture, furnishings, or generators for other departments and agencies of the United States Government.

In addition, for the costs of worldwide security upgrades, acquisition, and construction as authorized, $1,205,649,000, to remain available until September 30, 2025, of which $424,287,000 is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EMERGENCIES IN THE DIPLOMATIC AND CONSULAR SERVICE

For necessary expenses to enable the Secretary of State to meet unforeseen emergencies arising in the Diplomatic and Consular Service, as authorized, $7,885,000, to remain available until expended, of which not to exceed $1,000,000 may be transferred to, and merged with, funds appropriated by this Act under the heading ''Repatriation Loans Program Account'': Provided, That $1,800,000 of the funds appropriated under this heading may not be obligated until the Secretary of State provides written confirmation to the Committees on Appropriations of a mutually agreed upon date for the Secretary's participation in a budget hearing before such Committees: Provided further, That the limitation of the previous proviso shall not apply if such funds are necessary for emergency evacuations or the payment of rewards for information related to international terrorism, narcotics-related activities, transnational organized crime, and war crimes as authorized by section 36 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2708).

REPATRIATION LOANS PROGRAM ACCOUNT

For the cost of direct loans, $1,300,000, as authorized: Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That such funds are available to subsidize gross obligations for the principal amount of direct loans not to exceed $4,147,881.

PAYMENT TO THE AMERICAN INSTITUTE IN TAIWAN

For necessary expenses to carry out the Taiwan Relations Act (Public Law 96–8), $31,963,000.

INTERNATIONAL CENTER, WASHINGTON, DISTRICT OF COLUMBIA

Not to exceed $1,806,600 shall be derived from fees collected from other executive agencies for lease or use of facilities at the International Center in accordance with section 4 of the International Center Act (Public Law 90–553), and, in addition, as authorized by section 5 of such Act, $2,743,000, to be derived from the reserve authorized by such section, to be used for the purposes set out in that section.

PAYMENT TO THE FOREIGN SERVICE RETIREMENT AND DISABILITY FUND

For payment to the Foreign Service Retirement and Disability Fund, as authorized, $158,900,000.

INTERNATIONAL ORGANIZATIONS

CONTRIBUTIONS TO INTERNATIONAL ORGANIZATIONS

For necessary expenses, not otherwise provided for, to meet annual obligations of membership in international multilateral organizations, pursuant to treaties ratified pursuant to the advice and consent of the Senate, conventions, or specific Acts of Congress, $1,505,928,000, of which $96,240,000, to remain available until September 30, 2022, is designated by the Congress

for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That notwithstanding any other provision of this Act, of the funds appropriated under this heading, not less than $118,949,000 shall be made available for the World Health Organization and not less than $53,909,000 shall be made available for the North Atlantic Treaty Organization, which shall be disbursed not later than 60 days after the date of enactment of this Act: Provided further, That with the exception of organizations from which the United States has withdrawn, funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under this heading shall be made available for payment of the full United States assessment to the United Nations regular budget at 22 percent for 2019, 2020, and 2021, as agreed to by the United States Mission as a Member State to the United Nations in A/RES/73/271 on December 22, 2018: Provided further, That such funds shall also be made available for the full United States assessment for other international organizations funded under this heading unless otherwise provided for by this Act or another provision of law: Provided further, That the Secretary of State shall, at the time of the submission of the President's budget to Congress under section 1105(a) of title 31, United States Code, transmit to the Committees on Appropriations the most recent biennial budget prepared by the United Nations for the operations of the United Nations: Provided further, That the Secretary of State shall notify the Committees on Appropriations at least 15 days in advance (or in an emergency, as far in advance as is practicable) of any United Nations action to increase funding for any United Nations program without identifying an offsetting decrease elsewhere in the United Nations budget: Provided further, That any payment of arrearages under this heading shall be directed to activities that are mutually agreed upon by the United States and the respective international organization and shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That none of the funds appropriated under this heading shall be available for a United States contribution to an international organization for the United States share of interest costs made known to the United States Government by such organization for loans incurred on or after October 1, 1984, through external borrowings.

CONTRIBUTIONS FOR INTERNATIONAL PEACEKEEPING ACTIVITIES

For necessary expenses to pay assessed and other expenses of international peacekeeping activities directed to the maintenance or restoration of international peace and security, $1,456,314,000, of which $705,994,000 is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That of the funds made available under this heading, up to $818,494,000 may remain available until September 30, 2022: Provided further, That none of the funds made available by this Act shall be obligated or expended for any new or expanded United Nations peacekeeping mission unless, at least 15 days in advance of voting for such mission in the United Nations Security Council (or in an emergency as far in advance as is practicable), the Committees on Appropriations are notified of: (1) the estimated cost and duration of the mission, the objectives of the mission, the national interest that will be served, and the exit strategy; and (2) the sources of funds, including any reprogrammings or transfers, that will be used to pay the cost of the new or expanded mission, and the estimated cost in future fiscal years: Provided further, That none of the funds appropriated under this heading may be made available for obligation unless the Secretary of State certifies and reports to the Committees on Appropriations on a peacekeeping mission-by-mission basis that the United Nations is implementing effective policies and procedures to prevent United Nations employees, contractor personnel, and peacekeeping troops serving in such mission from trafficking in persons, exploiting victims of trafficking, or committing acts of sexual exploitation and abuse or other violations of human rights, and to hold accountable individuals who engage in such acts while participating in such mission, including prosecution in their home countries and making information about such prosecutions publicly available on the website of the United Nations: Provided further, That the Secretary of State shall work with the United Nations and foreign governments contributing peacekeeping troops to implement effective vetting procedures to ensure that such troops have not violated human rights: Provided further, That funds shall be available for peacekeeping expenses unless the Secretary of State determines that United States manufacturers and suppliers are not being given opportunities to provide equipment, services, and material for United Nations peacekeeping activities equal to those being given to foreign manufacturers and suppliers: Provided further, That none of the funds appropriated or otherwise made available under this heading may be used for any United Nations peacekeeping mission that will involve United States Armed Forces under the command or operational control of a foreign national, unless the President's military advisors have submitted to the President a recommendation that such involvement is in the national interest of the United States and the President has submitted to Congress such a recommendation: Provided further, That notwithstanding any other provision of law, funds appropriated or otherwise made available under this heading in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for United States assessed contributions up to the amount specified in the Annex accompanying United Nations General Assembly document A/73/350/Add.1.

INTERNATIONAL COMMISSIONS

For necessary expenses, not otherwise provided for, to meet obligations of the United States arising under treaties, or specific Acts of Congress, as follows:

INTERNATIONAL BOUNDARY AND WATER COMMISSION, UNITED STATES AND MEXICO

For necessary expenses for the United States Section of the International Boundary and Water Commission, United States and Mexico, and to comply with laws applicable to the United States Section, including not to exceed $6,000 for representation expenses; as follows:

SALARIES AND EXPENSES

For salaries and expenses, not otherwise provided for, $49,770,000, of which $7,465,000 may remain available until September 30, 2022.

CONSTRUCTION

For detailed plan preparation and construction of authorized projects, $49,000,000, to remain available until expended, as authorized.

AMERICAN SECTIONS, INTERNATIONAL COMMISSIONS

For necessary expenses, not otherwise provided, for the International Joint Commission and the International Boundary Commission, United States and Canada, as authorized by treaties between the United States and Canada or Great Britain, and the Border Environment Cooperation Commission, $15,008,000: Provided, That of the amount provided under this heading for the International Joint Commission, up to $1,250,000 may remain available until September 30, 2022, and up to $9,000 may be made available for representation expenses: Provided further, That of the amount provided under this heading for the International Boundary Commission, up to $1,000 may be made available for representation expenses.

INTERNATIONAL FISHERIES COMMISSIONS

For necessary expenses for international fisheries commissions, not otherwise provided for, as authorized by law, $60,718,000: Provided, That the United States share of such expenses may be advanced to the respective commissions pursuant to section 3324 of title 31, United States Code.

RELATED AGENCY

UNITED STATES AGENCY FOR GLOBAL MEDIA

INTERNATIONAL BROADCASTING OPERATIONS

For necessary expenses to enable the United States Agency for Global Media (USAGM), as authorized, to carry out international communication activities, and to make and supervise grants for radio, Internet, and television broadcasting to the Middle East, $632,732,000, of which $39,035,000 may remain available until September 30, 2022: Provided, That in addition to amounts otherwise available for such purposes, up to $31,637,000 of the amount appropriated under this heading may remain available until expended for satellite transmissions and Internet freedom programs, of which not less than $9,500,000 shall be for Internet freedom programs: Provided further, That of the total amount appropriated under this heading, not to exceed $35,000 may be used for representation expenses, of which $10,000 may be used for such expenses within the United States as authorized, and not to exceed $30,000 may be used for representation expenses of Radio Free Europe/Radio Liberty: Provided further, That funds appropriated under this heading shall be made available in accordance with the statutory firewall and highest standards of professional journalism described in part 531 of title 22, Code of Federal Regulations, as in effect on June 11, 2020: Provided further, That not later than 90 days after enactment of this Act the Inspector General for the Department of State and the United States Agency for Global Media shall conduct a financial and performance audit and issue a report on compliance by the USAGM Chief Executive Officer and the USAGM news media networks and entities with the requirement of the previous proviso: Provided further, That the USAGM shall notify the Committees on Appropriations within 15 days of any determination by the USAGM that any of its broadcast entities, including its grantee organizations, provides an open platform for international terrorists or those who support international terrorism, or is in violation of the principles and standards set forth in subsections (a) and (b) of section 303 of the United States International Broadcasting Act of 1994 (22 U.S.C. 6202) or part 531 of title 22, Code of Federal Regulations, as in effect on June 11, 2020: Provided further, That in addition to funds made available under this heading, and notwithstanding any other provision of law, up to $5,000,000 in receipts from advertising and revenue from business ventures, up to $500,000 in receipts from cooperating international organizations, and up to $1,000,000 in receipts from privatization efforts of the Voice of America and the International Broadcasting Bureau, shall remain available until expended for carrying out authorized purposes: Provided further, That significant modifications to USAGM broadcast hours previously justified to Congress, including changes to transmission platforms (shortwave, medium wave, satellite, Internet, and television), for all USAGM language services shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That up to $7,000,000 from the USAGM Buying Power Maintenance account may be transferred to, and merged with, funds appropriated by this Act under the heading ''International Broadcasting Operations'', which shall

remain available until expended: Provided further, That such transfer authority is in addition to any transfer authority otherwise available under any other provision of law and shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

BROADCASTING CAPITAL IMPROVEMENTS

For the purchase, rent, construction, repair, preservation, and improvement of facilities for radio, television, and digital transmission and reception; the purchase, rent, and installation of necessary equipment for radio, television, and digital transmission and reception, including to Cuba, as authorized; and physical security worldwide, in addition to amounts otherwise available for such purposes, $4,520,000, to remain available until expended, as authorized.

RELATED PROGRAMS

THE ASIA FOUNDATION

For a grant to The Asia Foundation, as authorized by The Asia Foundation Act (22 U.S.C. 4402), $20,000,000, to remain available until expended: Provided, That funds appropriated under this heading shall be apportioned and obligated to the Foundation not later than 60 days after enactment of this Act.

UNITED STATES INSTITUTE OF PEACE

For necessary expenses of the United States Institute of Peace, as authorized by the United States Institute of Peace Act (22 U.S.C. 4601 et seq.), $45,000,000, to remain available until September 30, 2022, which shall not be used for construction activities.

CENTER FOR MIDDLE EASTERN-WESTERN DIALOGUE TRUST FUND

For necessary expenses of the Center for Middle Eastern-Western Dialogue Trust Fund, as authorized by section 633 of the Departments of Commerce, Justice, and State, the Judiciary, and Related Agencies Appropriations Act, 2004 (22 U.S.C. 2078), the total amount of the interest and earnings accruing to such Fund on or before September 30, 2021, to remain available until expended.

EISENHOWER EXCHANGE FELLOWSHIP PROGRAM

For necessary expenses of Eisenhower Exchange Fellowships, Incorporated, as authorized by sections 4 and 5 of the Eisenhower Exchange Fellowship Act of 1990 (20 U.S.C. 5204–5205), all interest and earnings accruing to the Eisenhower Exchange Fellowship Program Trust Fund on or before September 30, 2021, to remain available until expended: Provided, That none of the funds appropriated herein shall be used to pay any salary or other compensation, or to enter into any contract providing for the payment thereof, in excess of the rate authorized by section 5376 of title 5, United States Code; or for purposes which are not in accordance with section 200 of title 2 of the Code of Federal Regulations, including the restrictions on compensation for personal services.

ISRAELI ARAB SCHOLARSHIP PROGRAM

For necessary expenses of the Israeli Arab Scholarship Program, as authorized by section 214 of the Foreign Relations Authorization Act, Fiscal Years 1992 and 1993 (22 U.S.C. 2452 note), all interest and earnings accruing to the Israeli Arab Scholarship Fund on or before September 30, 2021, to remain available until expended.

EAST-WEST CENTER

To enable the Secretary of State to provide for carrying out the provisions of the Center for Cultural and Technical Interchange Between East and West Act of 1960, by grant to the Center for Cultural and Technical Interchange Between East and West in the State of Hawaii, $19,700,000: Provided, That funds appropriated under this heading shall be apportioned and obligated to the Center not later than 60 days after enactment of this Act.

NATIONAL ENDOWMENT FOR DEMOCRACY

For grants made by the Department of State to the National Endowment for Democracy, as authorized by the National Endowment for Democracy Act (22 U.S.C. 4412), $300,000,000, to remain available until expended, of which $195,840,000 shall be allocated in the traditional and customary manner, including for the core institutes, and $104,160,000 shall be for democracy programs: Provided, That the requirements of section 7061(a) of this Act shall not apply to funds made available under this heading: Provided further, That funds appropriated under this heading shall be apportioned and obligated to the Endowment not later than 60 days after enactment of this Act.

OTHER COMMISSIONS

COMMISSION FOR THE PRESERVATION OF AMERICA'S HERITAGE ABROAD

SALARIES AND EXPENSES

For necessary expenses for the Commission for the Preservation of America's Heritage Abroad, $642,000, as authorized by chapter 3123 of title 54, United States Code: Provided, That the Commission may procure temporary, intermittent, and other services notwithstanding paragraph (3) of section 312304(b) of such chapter: Provided further, That such authority shall terminate on October 1, 2021: Provided further, That the Commission shall notify the Committees on Appropriations prior to exercising such authority.

UNITED STATES COMMISSION ON INTERNATIONAL RELIGIOUS FREEDOM

SALARIES AND EXPENSES

For necessary expenses for the United States Commission on International Religious Freedom, as authorized by title II of the International Religious Freedom Act of 1998 (22 U.S.C. 6431 et seq.), $4,500,000, to remain available until September 30, 2022, including not more than $4,000 for representation expenses.

COMMISSION ON SECURITY AND COOPERATION IN EUROPE

SALARIES AND EXPENSES

For necessary expenses of the Commission on Security and Cooperation in Europe, as authorized by Public Law 94–304 (22 U.S.C. 3001 et seq.), $2,908,000, including not more than $4,000 for representation expenses, to remain available until September 30, 2022.

CONGRESSIONAL-EXECUTIVE COMMISSION ON THE PEOPLE'S REPUBLIC OF CHINA

SALARIES AND EXPENSES

For necessary expenses of the Congressional-Executive Commission on the People's Republic of China, as authorized by title III of the U.S.-China Relations Act of 2000 (22 U.S.C. 6911 et seq.), $2,250,000, including not more than $3,000 for representation expenses, to remain available until September 30, 2022.

UNITED STATES-CHINA ECONOMIC AND SECURITY REVIEW COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the United States-China Economic and Security Review Commission, as authorized by section 1238 of the Floyd D. Spence National Defense Authorization Act for Fiscal Year 2001 (22 U.S.C. 7002), $4,000,000, including not more than $4,000 for representation expenses, to remain available until September 30, 2022: Provided, That the authorities, requirements, limitations, and conditions contained in the second through sixth provisos under this heading in the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2010 (division F of Public Law 111–117) shall continue in effect during fiscal year 2021 and shall apply to funds appropriated under this heading.

TITLE II

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

FUNDS APPROPRIATED TO THE PRESIDENT

OPERATING EXPENSES

For necessary expenses to carry out the provisions of section 667 of the Foreign Assistance Act of 1961, $1,364,526,000, of which up to $204,680,000 may remain available until September 30, 2022: Provided, That none of the funds appropriated under this heading and under the heading ''Capital Investment Fund'' in this title may be made available to finance the construction (including architect and engineering services), purchase, or long-term lease of offices for use by the United States Agency for International Development, unless the USAID Administrator has identified such proposed use of funds in a report submitted to the Committees on Appropriations at least 15 days prior to the obligation of funds for such purposes: Provided further, That contracts or agreements entered into with funds appropriated under this heading may entail commitments for the expenditure of such funds through the following fiscal year: Provided further, That the authority of sections 610 and 109 of the Foreign Assistance Act of 1961 may be exercised by the Secretary of State to transfer funds appropriated to carry out chapter 1 of part I of such Act to ''Operating Expenses'' in accordance with the provisions of those sections: Provided further, That of the funds appropriated or made available under this heading, not to exceed $250,000 may be available for representation and entertainment expenses, of which not to exceed $5,000 may be available for entertainment expenses, and not to exceed $100,500 shall be for official residence expenses, for USAID during the current fiscal year: Provided further, That none of the funds appropriated under this heading may be made available to hire employees under USAID's Adaptive Personnel Project.

CAPITAL INVESTMENT FUND

For necessary expenses for overseas construction and related costs, and for the procurement and enhancement of information technology and related capital investments, pursuant to section 667 of the Foreign Assistance Act of 1961, $238,000,000, to remain available until expended: Provided, That this amount is in addition to funds otherwise available for such purposes: Provided further, That funds appropriated under this heading shall be available subject to the regular notification procedures of the Committees on Appropriations.

OFFICE OF INSPECTOR GENERAL

For necessary expenses to carry out the provisions of section 667 of the Foreign Assistance Act of 1961, $75,500,000, of which up to $11,325,000 may remain available until September 30, 2022, for the Office of Inspector General of the United States Agency for International Development.

TITLE III

BILATERAL ECONOMIC ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

For necessary expenses to enable the President to carry out the provisions of the Foreign Assistance Act of 1961, and for other purposes, as follows:

GLOBAL HEALTH PROGRAMS

For necessary expenses to carry out the provisions of chapters 1 and 10 of part I of the Foreign Assistance Act of 1961, for global health activities, in addition to funds otherwise available for such purposes, $3,226,975,000, to remain available until September 30, 2022, and which shall be apportioned directly to the United States Agency for International Development not later than 60 days after enactment of this Act: Provided, That this amount shall be made available for training, equipment, and technical assistance to build the capacity of public health institutions and organizations in developing countries, and for such activities as: (1) child survival and maternal health programs; (2) immunization and oral rehydration programs; (3) other health, nutrition, water and sanitation programs which directly address the needs of mothers and children, and related education programs; (4) assistance for children displaced

or orphaned by causes other than AIDS; (5) programs for the prevention, treatment, control of, and research on HIV/AIDS, tuberculosis, polio, malaria, and other infectious diseases including neglected tropical diseases, and for assistance to communities severely affected by HIV/AIDS, including children infected or affected by AIDS; (6) disaster preparedness training for health crises; (7) programs to prevent, prepare for, and respond to, unanticipated and emerging global health threats; and (8) family planning/reproductive health: Provided further, That funds appropriated under this paragraph may be made available for a United States contribution to The GAVI Alliance: Provided further, That of the funds appropriated under this paragraph, not less than $200,000,000 shall be available for grants or contributions to the World Health Organization, which shall be allocated and allotted not later than 60 days after the date of enactment of this Act.

In addition, for necessary expenses to carry out the provisions of the Foreign Assistance Act of 1961 for the prevention, treatment, and control of, and research on, HIV/AIDS, $5,930,000,000, to remain available until September 30, 2025, which shall be apportioned directly to the Department of State not later than 60 days after enactment of this Act: Provided, That funds appropriated under this paragraph may be made available, notwithstanding any other provision of law, except for the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 (Public Law 108–25), for a United States contribution to the Global Fund to Fight AIDS, Tuberculosis and Malaria (Global Fund): Provided further, That the amount of such contribution shall be $1,560,000,000 and shall be for the second installment of the sixth replenishment: Provided further, That up to 5 percent of the aggregate amount of funds made available to the Global Fund in fiscal year 2021 may be made available to USAID for technical assistance related to the activities of the Global Fund, subject to the regular notification procedures of the Committees on Appropriations: Provided further, That of the funds appropriated under this paragraph, up to $17,000,000 may be made available, in addition to amounts otherwise available for such purposes, for administrative expenses of the Office of the United States Global AIDS Coordinator.

DEVELOPMENT ASSISTANCE

For necessary expenses to carry out the provisions of sections 103, 105, 106, 214, and sections 251 through 255, and chapter 10 of part I of the Foreign Assistance Act of 1961, $3,800,000,000, to remain available until September 30, 2022: Provided, That funds made available under this heading shall be apportioned directly to the United States Agency for International Development not later than 60 days after enactment of this Act.

INTERNATIONAL DISASTER ASSISTANCE

For necessary expenses to carry out the provisions of section 491 of the Foreign Assistance Act of 1961 for international disaster relief, rehabilitation, and reconstruction assistance, $4,395,362,000, to remain available until expended, of which $1,733,980,000 is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That funds made available under this heading shall be apportioned to the United States Agency for International Development not later than 60 days after enactment of this Act.

TRANSITION INITIATIVES

For necessary expenses for international disaster rehabilitation and reconstruction assistance administered by the Office of Transition Initiatives, United States Agency for International Development, pursuant to section 491 of the Foreign Assistance Act of 1961, and to support transition to democracy and long-term development of countries in crisis, $92,043,000, to remain available until expended: Provided, That such support may include assistance to develop, strengthen, or preserve democratic institutions and processes, revitalize basic infrastructure, and foster the peaceful resolution of conflict: Provided further, That the USAID Administrator shall submit a report to the Committees on Appropriations at least 5 days prior to beginning a new program of assistance: Provided further, That if the Secretary of State determines that it is important to the national interest of the United States to provide transition assistance in excess of the amount appropriated under this heading, up to $15,000,000 of the funds appropriated by this Act to carry out the provisions of part I of the Foreign Assistance Act of 1961 may be used for purposes of this heading and under the authorities applicable to funds appropriated under this heading: Provided further, That funds made available pursuant to the previous proviso shall be made available subject to prior consultation with the Committees on Appropriations.

COMPLEX CRISES FUND

For necessary expenses to carry out the provisions of section 509(b) of the Global Fragility Act of 2019 (title V of division J of Public Law 116–94), $30,000,000, to remain available until expended: Provided, That the notification requirement of section 509(b)(5) shall apply to funds appropriated under this heading: Provided further, That funds appropriated under this heading may be made available notwithstanding any other provision of law, except sections 7007, 7008, and 7066 of this Act and section 620M of the Foreign Assistance Act of 1961: Provided further, That funds appropriated under this heading shall be apportioned to the United States Agency for International Development not later than 60 days after enactment of this Act.

ECONOMIC SUPPORT FUND

For necessary expenses to carry out the provisions of chapter 4 of part II of the Foreign Assistance Act of 1961, $3,344,407,000, to remain available until September 30, 2022: Provided, That of the funds made available under this heading in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs, not less than $225,000,000 shall be made available for programs in the West Bank and Gaza: Provided further, That, as deemed necessary by the Secretary, a portion of such funds may also be made available as a contribution or grant to the United Nations Relief and Works Agency for activities in the West Bank and Gaza: Provided further, That of the funds appropriated under this heading, up to $208,144,000 may be transferred to, and merged with, funds made available under the heading ''International Broadcasting Operations'' for international communication activities, including for the production and dissemination of independent and reliable news and information, for technologies that improve free and open access to such information, and for the purposes described under this heading in the report accompanying this Act: Provided further, That prior to any exercise of the transfer authority of the previous proviso, the Secretary of State shall certify in writing to the appropriate congressional committees that the agency receiving the transfer of funds will adhere to the statutory firewall and highest standards of professional journalism described in part 531 of title 22 Code of Federal Regulations, as in effect on June 11, 2020: Provided further, That such transfer authority is in addition to any transfer authority otherwise available under any provision of law and shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: Provided further, That none of the funds appropriated under this heading may be made available for the Diplomatic Progress Fund.

DEMOCRACY FUND

For necessary expenses to carry out the provisions of the Foreign Assistance Act of 1961 for the promotion of democracy globally, including to carry out the purposes of section 502(b)(3) and (5) of Public Law 98–164 (22 U.S.C. 4411), $218,450,000, to remain available until September 30, 2022, which shall be made available for the Human Rights and Democracy Fund of the Bureau of Democracy, Human Rights, and Labor, Department of State, and shall be apportioned to such Bureau not later than 60 days after enactment of this Act: Provided, That funds appropriated under this heading that are made available to the National Endowment for Democracy and its core institutes are in addition to amounts otherwise available by this Act for such purposes: Provided further, That the Assistant Secretary for Democracy, Human Rights, and Labor, Department of State, shall consult with the Committees on Appropriations prior to the initial obligation of funds appropriated under this paragraph.

For an additional amount for such purposes, $105,250,000, to remain available until September 30, 2022, which shall be made available for the Bureau for Democracy, Conflict, and Humanitarian Assistance, United States Agency for International Development, and shall be apportioned to such Bureau not later than 60 days after enactment of this Act.

ASSISTANCE FOR EUROPE, EURASIA AND CENTRAL ASIA

For necessary expenses to carry out the provisions of the Foreign Assistance Act of 1961, the FREEDOM Support Act (Public Law 102–511), and the Support for Eastern European Democracy (SEED) Act of 1989 (Public Law 101–179), $770,334,000, to remain available until September 30, 2022, which shall be available, notwithstanding any other provision of law, except section 7047 of this Act, for assistance and related programs for countries identified in section 3 of the FREEDOM Support Act (22 U.S.C. 5801) and section 3(c) of the SEED Act of 1989 (22 U.S.C. 5402), in addition to funds otherwise available for such purposes: Provided, That funds appropriated by this Act under the headings ''Global Health Programs'', ''Economic Support Fund'', and ''International Narcotics Control and Law Enforcement'' that are made available for assistance for such countries shall be administered in accordance with the responsibilities of the coordinator designated pursuant to section 102 of the FREEDOM Support Act and section 601 of the SEED Act of 1989: Provided further, That funds appropriated under this heading shall be considered to be economic assistance under the Foreign Assistance Act of 1961 for purposes of making available the administrative authorities contained in that Act for the use of economic assistance: Provided further, That funds appropriated under this heading may be made available for contributions to multilateral initiatives to counter hybrid threats: Provided further, That any notification of funds made available under this heading in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs shall include information (if known on the date of transmittal of such notification) on the use of notwithstanding authority: Provided further, That if subsequent to the notification of assistance it becomes necessary to rely on notwithstanding authority, the Committees on Appropriations should be informed at the earliest opportunity and to the extent practicable: Provided further, That of the funds appropriated under this heading, not less than $2,000,000 shall be transferred to, and merged with, funds appropriated by this Act under the heading ''Economic Support Fund'' for joint dialogues in support of the Eastern Mediterranean Partnership in the manner specified under this heading in the report accompanying this Act and shall

remain available until expended: Provided further, That such funds shall be administered by, and under the policy direction of, the coordinator designated pursuant to section 102 of the FREEDOM Support Act and section 601 of the SEED Act of 1989.

DEPARTMENT OF STATE

MIGRATION AND REFUGEE ASSISTANCE

For necessary expenses not otherwise provided for, to enable the Secretary of State to carry out the provisions of section 2(a) and (b) of the Migration and Refugee Assistance Act of 1962 (22 U.S.C. 2601), and other activities to meet refugee and migration needs; salaries and expenses of personnel and dependents as authorized by the Foreign Service Act of 1980 (22 U.S.C. 3901 et seq.); allowances as authorized by sections 5921 through 5925 of title 5, United States Code; purchase and hire of passenger motor vehicles; and services as authorized by section 3109 of title 5, United States Code, $3,432,000,000, to remain available until expended, of which: $1,521,355,000 is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985; not less than $35,000,000 shall be made available to respond to small-scale emergency humanitarian requirements; and $5,000,000 shall be made available for refugees resettling in Israel; Provided, That funds appropriated under this heading shall be apportioned to the Bureau of Population, Refugees, and Migration, Department of State, not later than 60 days after enactment of this Act.

UNITED STATES EMERGENCY REFUGEE AND MIGRATION ASSISTANCE FUND

For necessary expenses to carry out the provisions of section 2(c) of the Migration and Refugee Assistance Act of 1962 (22 U.S.C. 2601(c)), $100,000, to remain available until expended: Provided, That amounts in excess of the limitation contained in paragraph (2) of such section shall be transferred to, and merged with, funds made available by this Act under the heading ''Migration and Refugee Assistance''.

INDEPENDENT AGENCIES

PEACE CORPS

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses to carry out the provisions of the Peace Corps Act (22 U.S.C. 2501 et seq.), including the purchase of not to exceed five passenger motor vehicles for administrative purposes for use outside of the United States, $410,500,000, of which $6,330,000 is for the Office of Inspector General, to remain available until September 30, 2022: Provided, That the Director of the Peace Corps may transfer to the Foreign Currency Fluctuations Account, as authorized by section 16 of the Peace Corps Act (22 U.S.C. 2515), an amount not to exceed $5,000,000: Provided further, That funds transferred pursuant to the previous proviso may not be derived from amounts made available for Peace Corps overseas operations: Provided further, That of the funds appropriated under this heading, not to exceed $104,000 may be available for representation expenses, of which not to exceed $4,000 may be made available for entertainment expenses: Provided further, That any decision to open, close, or suspend a domestic or overseas office or country program shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: Provided further, That such consultation and notification requirements shall be met prior to any actions by the Peace Corps to implement such a decision, including the communication with host country officials, current or prospective volunteers, and staff: Provided further, That prior consultation and notification procedures may be waived when there is a substantial risk to volunteers or other Peace Corps personnel, pursuant to section 7015(e) of this Act: Provided further, That none of the funds made available by this Act or prior Acts under this heading may be used to permanently close the United States-China Friendship Volunteer Program: Provided further, That none of the funds appropriated under this heading shall be used to pay for abortions: Provided further, That notwithstanding the previous proviso, section 614 of division E of Public Law 113–76 shall apply to funds appropriated under this heading.

MILLENNIUM CHALLENGE CORPORATION

For necessary expenses to carry out the provisions of the Millennium Challenge Act of 2003 (22 U.S.C. 7701 et seq.) (MCA), $905,000,000, to remain available until expended: Provided, That of the funds appropriated under this heading, up to $112,000,000 may be available for administrative expenses of the Millennium Challenge Corporation, except that such funds shall remain available for obligation until September 30, 2026: Provided further, That section 605(e) of the MCA (22 U.S.C. 7704(e)) shall apply to funds appropriated under this heading: Provided further, That funds appropriated under this heading may be made available for a Millennium Challenge Compact entered into pursuant to section 609 of the MCA (22 U.S.C. 7708) only if such Compact obligates, or contains a commitment to obligate subject to the availability of funds and the mutual agreement of the parties to the Compact to proceed, the entire amount of the United States Government funding anticipated for the duration of the Compact: Provided further, That no country should be eligible for a threshold program after such country has completed a country compact: Provided further, That of the funds appropriated under this heading, not to exceed $100,000 may be available for representation and entertainment expenses, of which not to exceed $5,000 may be available for entertainment expenses.

INTER-AMERICAN FOUNDATION

For necessary expenses to carry out the functions of the Inter-American Foundation in accordance with the provisions of section 401 of the Foreign Assistance Act of 1969, $41,500,000, to remain available until September 30, 2022: Provided, That funds appropriated under this heading shall be made available for programs in El Salvador, Guatemala, and Honduras: Provided further, That of the funds appropriated under this heading, not to exceed $2,000 may be available for representation expenses.

UNITED STATES AFRICAN DEVELOPMENT FOUNDATION

For necessary expenses to carry out the African Development Foundation Act (title V of Public Law 96–533; 22 U.S.C. 290h et seq.), $33,000,000, to remain available until September 30, 2022, of which not to exceed $2,000 may be available for representation expenses: Provided, That funds made available to grantees may be invested pending expenditure for project purposes when authorized by the Board of Directors of the United States African Development Foundation (USADF): Provided further, That interest earned shall be used only for the purposes for which the grant was made: Provided further, That notwithstanding section 505(a)(2) of the African Development Foundation Act (22 U.S.C. 290h–3(a)(2)), in exceptional circumstances the Board of Directors of the USADF may waive the $250,000 limitation contained in that section with respect to a project and a project may exceed the limitation by up to 10 percent if the increase is due solely to foreign currency fluctuation: Provided further, That the USADF shall submit a report to the appropriate congressional committees after each time such waiver authority is exercised: Provided further, That the USADF may make rent or lease payments in advance from appropriations available for such purpose for offices, buildings, grounds, and quarters in Africa as may be necessary to carry out its functions: Provided further, That the USADF may maintain bank accounts outside the United States Treasury and retain any interest earned on such accounts, in furtherance of the purposes of the African Development Foundation Act: Provided further, That the USADF may not withdraw any appropriation from the Treasury prior to the need of spending such funds for program purposes.

DEPARTMENT OF THE TREASURY

INTERNATIONAL AFFAIRS TECHNICAL ASSISTANCE

For necessary expenses to carry out the provisions of section 129 of the Foreign Assistance Act of 1961, $33,000,000, to remain available until expended, of which not more than $5,000,000 may be used for administrative expenses: Provided, That amounts made available under this heading may be made available to contract for services as described in section 129(d)(3)(A) of the Foreign Assistance Act of 1961, without regard to the location in which such services are performed.

DEBT RESTRUCTURING

For the costs, as defined in section 502 of the Congressional Budget Act of 1974, of modifying loans and loan guarantees, as the President may determine, for which funds have been appropriated or otherwise made available for programs within the International Affairs Budget Function 150, including the cost of selling, reducing, or canceling amounts owed to the United States as a result of concessional loans made to eligible countries, pursuant to part V of the Foreign Assistance Act of 1961, $15,000,000, to remain available until September 30, 2022.

In addition, for the costs, as defined in section 502 of the Congressional Budget Act of 1974, of modifying loans and loan guarantees for Somalia or credits extended to Somalia, as the President may determine, including the cost of selling, reducing, or cancelling amounts owed to the United States, $63,000,000, to remain available until expended, which may be used notwithstanding any other provision of law.

TITLE IV

INTERNATIONAL SECURITY ASSISTANCE

DEPARTMENT OF STATE

INTERNATIONAL NARCOTICS CONTROL AND LAW ENFORCEMENT

For necessary expenses to carry out section 481 of the Foreign Assistance Act of 1961, $1,391,000,000, to remain available until September 30, 2022: Provided, That the Department of State may use the authority of section 608 of the Foreign Assistance Act of 1961, without regard to its restrictions, to receive excess property from an agency of the United States Government for the purpose of providing such property to a foreign country or international organization under chapter 8 of part I of such Act, subject to the regular notification procedures of the Committees on Appropriations: Provided further, That section 482(b) of the Foreign Assistance Act of 1961 shall not apply to funds appropriated under this heading, except that any funds made available notwithstanding such section shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That funds appropriated under this heading shall be made available to support training and technical assistance for foreign law enforcement, corrections, judges, and other judicial authorities, utilizing regional partners: Provided further, That funds made available under this heading that are transferred to another department, agency, or instrumentality of the United States Government pursuant to section 632(b) of the Foreign Assistance Act of 1961 valued in excess of $5,000,000, and any agreement made pursuant to section 632(a) of such Act, shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That funds made available under this heading for Program Development and Support may be made available notwithstanding pre-obligation requirements contained in this Act, except for the notification requirements of section 7015: Provided further,

That none of the funds appropriated under this heading may be made available for the Diplomatic Progress Fund.

NONPROLIFERATION, ANTI-TERRORISM, DEMINING AND RELATED PROGRAMS

For necessary expenses for nonproliferation, anti-terrorism, demining and related programs and activities, $897,000,000, to remain available until September 30, 2022, to carry out the provisions of chapter 8 of part II of the Foreign Assistance Act of 1961 for anti-terrorism assistance, chapter 9 of part II of the Foreign Assistance Act of 1961, section 504 of the FREEDOM Support Act (22 U.S.C. 5854), section 23 of the Arms Export Control Act (22 U.S.C. 2763), or the Foreign Assistance Act of 1961 for demining activities, the clearance of unexploded ordnance, the destruction of small arms, and related activities, notwithstanding any other provision of law, including activities implemented through nongovernmental and international organizations, and section 301 of the Foreign Assistance Act of 1961 for a United States contribution to the Comprehensive Nuclear Test Ban Treaty Preparatory Commission, and for a voluntary contribution to the International Atomic Energy Agency (IAEA): Provided, That funds made available under this heading for the Nonproliferation and Disarmament Fund shall be made available, notwithstanding any other provision of law and subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations, to promote bilateral and multilateral activities relating to nonproliferation, disarmament, and weapons destruction, and shall remain available until expended: Provided further, That such funds may also be used for such countries other than the Independent States of the former Soviet Union and international organizations when it is in the national security interest of the United States to do so: Provided further, That funds appropriated under this heading may be made available for the IAEA unless the Secretary of State determines that Israel is being denied its right to participate in the activities of that Agency: Provided further, That funds made available for conventional weapons destruction programs, including demining and related activities, in addition to funds otherwise available for such purposes, may be used for administrative expenses related to the operation and management of such programs and activities, subject to the regular notification procedures of the Committees on Appropriations.

PEACEKEEPING OPERATIONS

For necessary expenses to carry out the provisions of section 551 of the Foreign Assistance Act of 1961, $457,348,000, of which $325,213,000, to remain available until September 30, 2022, is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That funds appropriated under this heading may be used, notwithstanding section 660 of the Foreign Assistance Act of 1961, to provide assistance to enhance the capacity of foreign civilian security forces, including gendarmes, to participate in peacekeeping operations: Provided further, That of the funds appropriated under this heading, not less than $31,000,000 shall be made available for a United States contribution to the Multinational Force and Observers mission in the Sinai and not less than $71,000,000 shall be made available for the Global Peace Operations Initiative, of which not less than $10,000,000 shall be made available to support the modernization of training infrastructure: Provided further, That funds appropriated under this heading may be made available to pay assessed expenses of international peacekeeping activities in Somalia under the same terms and conditions, as applicable, as funds appropriated by this Act under the heading ''Contributions for International Peacekeeping Activities'': Provided further, That none of the funds appropriated under this heading shall be obligated except as provided through the regular notification procedures of the Committees on Appropriations.

FUNDS APPROPRIATED TO THE PRESIDENT

INTERNATIONAL MILITARY EDUCATION AND TRAINING

For necessary expenses to carry out the provisions of section 541 of the Foreign Assistance Act of 1961, $112,925,000, to remain available until September 30, 2022: Provided, That the civilian personnel for whom military education and training may be provided under this heading may include civilians who are not members of a government whose participation would contribute to improved civil-military relations, civilian control of the military, or respect for human rights: Provided further, That of the funds appropriated under this heading, not to exceed $50,000 may be available for entertainment expenses.

FOREIGN MILITARY FINANCING PROGRAM

For necessary expenses for grants to enable the President to carry out the provisions of section 23 of the Arms Export Control Act (22 U.S.C. 2763), $6,156,924,000, of which $511,909,000, to remain available until September 30, 2022, is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That to expedite the provision of assistance to foreign countries and international organizations, the Secretary of State, following consultation with the Committees on Appropriations and subject to the regular notification procedures of such Committees, may use the funds appropriated under this heading to procure defense articles and services to enhance the capacity of foreign security forces: Provided further, That of the funds appropriated under this heading, not less than $3,300,000,000 shall be available for grants only for Israel which shall be disbursed within 30 days of enactment of this Act: Provided further, That to the extent that the Government of Israel requests that funds be used for such purposes, grants made available for Israel under this heading shall, as agreed by the United States and Israel, be available for advanced weapons systems, of which not less than $795,300,000 shall be available for the procurement in Israel of defense articles and defense services, including research and development: Provided further, That funds appropriated or otherwise made available under this heading shall be nonrepayable notwithstanding any requirement in section 23 of the Arms Export Control Act: Provided further, That funds made available under this heading shall be obligated upon apportionment in accordance with paragraph (5)(C) of section 1501(a) of title 31, United States Code.

None of the funds made available under this heading shall be available to finance the procurement of defense articles, defense services, or design and construction services that are not sold by the United States Government under the Arms Export Control Act unless the foreign country proposing to make such procurement has first signed an agreement with the United States Government specifying the conditions under which such procurement may be financed with such funds: Provided, That all country and funding level increases in allocations shall be submitted through the regular notification procedures of section 7015 of this Act: Provided further, That funds made available under this heading may be used, notwithstanding any other provision of law, for demining, the clearance of unexploded ordnance, and related activities, and may include activities implemented through nongovernmental and international organizations: Provided further, That only those countries for which assistance was justified for the ''Foreign Military Sales Financing Program'' in the fiscal year 1989 congressional presentation for security assistance programs may utilize funds made available under this heading for procurement of defense articles, defense services, or design and construction services that are not sold by the United States Government under the Arms Export Control Act: Provided further, That funds appropriated under this heading shall be expended at the minimum rate necessary to make timely payment for defense articles and services: Provided further, That not more than $70,000,000 of the funds appropriated under this heading may be obligated for necessary expenses, including the purchase of passenger motor vehicles for replacement only for use outside of the United States, for the general costs of administering military assistance and sales, except that this limitation may be exceeded only through the regular notification procedures of the Committees on Appropriations: Provided further, That of the funds made available under this heading for general costs of administering military assistance and sales, not to exceed $4,000 may be available for entertainment expenses and not to exceed $130,000 may be available for representation expenses: Provided further, That not more than $1,082,200,000 of funds realized pursuant to section 21(e)(1)(A) of the Arms Export Control Act (22 U.S.C. 2761(e)(1)(A)) may be obligated for expenses incurred by the Department of Defense during fiscal year 2021 pursuant to section 43(b) of the Arms Export Control Act (22 U.S.C. 2792(b)), except that this limitation may be exceeded only through the regular notification procedures of the Committees on Appropriations.

TITLE V

MULTILATERAL ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

INTERNATIONAL ORGANIZATIONS AND PROGRAMS

For necessary expenses to carry out the provisions of section 301 of the Foreign Assistance Act of 1961, $390,500,000: Provided, That section 307(a) of the Foreign Assistance Act of 1961 shall not apply to contributions to the United Nations Democracy Fund: Provided further, That not later than 60 days after enactment of this Act, such funds shall be allocated and allotted for core contributions for each entity listed in the table under this heading in the report accompanying this Act unless otherwise provided for in this Act, or if the Secretary of State has justified to the Committees on Appropriations the proposed uses of funds other than for core contributions following prior consultation with, and subject to the regular notification procedures of, the Committees on Appropriations.

INTERNATIONAL FINANCIAL INSTITUTIONS

GLOBAL ENVIRONMENT FACILITY

For payment to the International Bank for Reconstruction and Development as trustee for the Global Environment Facility by the Secretary of the Treasury, $139,575,000, to remain available until, and to be fully disbursed not later than, September 30, 2022: Provided, That of such amount, $136,563,000, which shall remain available until September 30, 2021, is only available for the third installment of the seventh replenishment of the Global Environment Facility, and shall be obligated and disbursed not later than 90 days after enactment of this Act: Provided further, That the Secretary shall report to the Committees on Appropriations on the status of funds provided under this heading not less than quarterly until fully disbursed: Provided further, That in such report the Secretary shall provide a timeline for the obligation and disbursement of any funds that have not yet been obligated or disbursed.

CONTRIBUTION TO THE INTERNATIONAL BANK FOR RECONSTRUCTION AND DEVELOPMENT

For payment to the International Bank for Reconstruction and Development by the Secretary of the Treasury for the United States share of the paid-in portion of the increases in

capital stock, $206,500,000, to remain available until expended.

LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS

The United States Governor of the International Bank for Reconstruction and Development may subscribe without fiscal year limitation to the callable capital portion of the United States share of increases in capital stock in an amount not to exceed $1,421,275,728.70.

CONTRIBUTION TO THE INTERNATIONAL DEVELOPMENT ASSOCIATION

For payment to the International Development Association by the Secretary of the Treasury, $1,001,400,000, to remain available until expended.

CONTRIBUTION TO THE ASIAN DEVELOPMENT FUND

For payment to the Asian Development Bank's Asian Development Fund by the Secretary of the Treasury, $47,395,000, to remain available until expended.

CONTRIBUTION TO THE AFRICAN DEVELOPMENT BANK

For payment to the African Development Bank by the Secretary of the Treasury for the United States share of the paid-in portion of the increases in capital stock, $54,649,000, to remain available until expended.

LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS

The United States Governor of the African Development Bank may subscribe without fiscal year limitation to the callable capital portion of the United States share of increases in capital stock in an amount not to exceed $856,174,624.

CONTRIBUTION TO THE AFRICAN DEVELOPMENT FUND

For payment to the African Development Fund by the Secretary of the Treasury, $171,300,000, to remain available until expended.

CONTRIBUTION TO THE INTERNATIONAL FUND FOR AGRICULTURAL DEVELOPMENT

For payment to the International Fund for Agricultural Development by the Secretary of the Treasury, $30,000,000, to remain available until, and to be fully disbursed no later than, September 30, 2022, for the third installment of the eleventh replenishment of the International Fund for Agricultural Development: Provided, That the Secretary of the Treasury shall report to the Committees on Appropriations on the status of such payment not less than quarterly until fully disbursed: Provided further, That in such report the Secretary shall provide a timeline for the obligation and disbursement of any funds that have not yet been obligated or disbursed.

CONTRIBUTION TO THE NORTH AMERICAN DEVELOPMENT BANK

LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS

The Secretary of the Treasury may subscribe without fiscal year limitation to the callable capital portion of the United States share of capital stock in an amount not to exceed $1,020,000,000: Provided, That this authority shall be in addition to any other authority provided by previous Acts.

TITLE VI

EXPORT AND INVESTMENT ASSISTANCE

EXPORT-IMPORT BANK OF THE UNITED STATES

INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978 (5 U.S.C. App.), $5,700,000, of which up to $855,000 may remain available until September 30, 2022.

PROGRAM ACCOUNT

The Export-Import Bank of the United States is authorized to make such expenditures within the limits of funds and borrowing authority available to such corporation, and in accordance with law, and to make such contracts and commitments without regard to fiscal year limitations, as provided by section 9104 of title 31, United States Code, as may be necessary in carrying out the program for the current fiscal year for such corporation: Provided, That none of the funds available during the current fiscal year may be used to make expenditures, contracts, or commitments for the export of nuclear equipment, fuel, or technology to any country, other than a nuclear-weapon state as defined in Article IX of the Treaty on the Non-Proliferation of Nuclear Weapons eligible to receive economic or military assistance under this Act, that has detonated a nuclear explosive after the date of enactment of this Act.

ADMINISTRATIVE EXPENSES

For administrative expenses to carry out the direct and guaranteed loan and insurance programs, including hire of passenger motor vehicles and services as authorized by section 3109 of title 5, United States Code, and not to exceed $30,000 for official reception and representation expenses for members of the Board of Directors, not to exceed $110,000,000, of which up to $16,500,000 may remain available until September 30, 2022: Provided, That the Export-Import Bank (the Bank) may accept, and use, payment or services provided by transaction participants for legal, financial, or technical services in connection with any transaction for which an application for a loan, guarantee or insurance commitment has been made: Provided further, That notwithstanding subsection (b) of section 117 of the Export Enhancement Act of 1992, subsection (a) of such section shall remain in effect until September 30, 2021: Provided further, That the Bank shall charge fees for necessary expenses (including special services performed on a contract or fee basis, but not including other personal services) in connection with the collection of moneys owed the Bank, repossession or sale of pledged collateral or other assets acquired by the Bank in satisfaction of moneys owed the Bank, or the investigation or appraisal of any property, or the evaluation of the legal, financial, or technical aspects of any transaction for which an application for a loan, guarantee or insurance commitment has been made, or systems infrastructure directly supporting transactions: Provided further, That in addition to other funds appropriated for administrative expenses, such fees shall be credited to this account for such purposes, to remain available until expended.

RECEIPTS COLLECTED

Receipts collected pursuant to the Export-Import Bank Act of 1945 (Public Law 79–173) and the Federal Credit Reform Act of 1990, in an amount not to exceed the amount appropriated herein, shall be credited as offsetting collections to this account: Provided, That the sums herein appropriated from the General Fund shall be reduced on a dollar-for-dollar basis by such offsetting collections so as to result in a final fiscal year appropriation from the General Fund estimated at $0.

UNITED STATES INTERNATIONAL DEVELOPMENT FINANCE CORPORATION

INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978 (5 U.S.C. App.), $2,000,000, to remain available until September 30, 2022.

CORPORATE CAPITAL ACCOUNT

The United States International Development Finance Corporation (the Corporation) is authorized to make such expenditures and commitments within the limits of funds and borrowing authority available to the Corporation, and in accordance with the law, and to make such expenditures and commitments without regard to fiscal year limitations, as provided by section 9104 of title 31, United States Code, as may be necessary in carrying out the programs for the current fiscal year for the Corporation: Provided, That for necessary expenses of the activities described in subsections (b), (c), (e), (f), and (g) of section 1421 of the BUILD Act of 2018 (division F of Public Law 115–254) and for administrative expenses to carry out authorized activities and project-specific transaction costs described in section 1434(d) of such Act, $311,000,000: Provided further, That of the amount provided—

(1) $131,000,000 shall remain available until September 30, 2023, for administrative expenses to carry out authorized activities (including an amount for official reception and representation expenses which shall not exceed $25,000) and project-specific transaction costs as described in section 1434(k) of such Act, of which $1,000,000 shall remain available until September 30, 2025;

(2) $180,000,000 shall remain available until September 30, 2023, for the activities described in subsections (b), (c), (e), (f), and (g) of section 1421 of the BUILD Act of 2018 (division F of Public Law 115–254), except such amounts obligated in a fiscal year for activities described in section 1421(c) of such Act shall remain available for disbursement for the term of the underlying project: Provided further, That if the term of the project extends longer than 10 fiscal years, the Chief Executive Officer of the Corporation shall inform the appropriate congressional committees prior to the obligation or disbursement of funds, as applicable: Provided further, That amounts made available under this paragraph may be paid to the ''United States International Development Finance Corporation—Program Account'' for programs authorized by subsections (b), (e), (f), and (g) of section 1421 of the BUILD Act of 2018 (division F of Public Law 115–254):

Provided further, That funds may only be obligated pursuant to section 1421(g) of the BUILD Act of 2018 subject to prior consultation with the appropriate congressional committees and the regular notification procedures of the Committees on Appropriations: Provided further, That in this fiscal year, and each fiscal year thereafter, the Corporation shall collect the amounts described in section 1434(h) of the BUILD Act of 2018: Provided further, That in fiscal year 2021 such collections shall be credited as offsetting collections to this appropriation: Provided further, That such collections collected in fiscal year 2021 in excess of $311,000,000 shall be credited to this account and shall be available in future fiscal years only to the extent provided in advance in appropriations Acts: Provided further, That in fiscal year 2021, if such collections are less than $311,000,000, receipts collected pursuant to the BUILD Act of 2018 and the Federal Credit Reform Act of 1990, in an amount equal to such shortfall, shall be credited as offsetting collections to this appropriation: Provided further, That funds appropriated or otherwise made available under this heading may not be used to provide any type of assistance that is otherwise prohibited by any other provision of law or to provide assistance to any foreign country that is otherwise prohibited by any other provision of law: Provided further, That the sums herein appropriated from the General Fund shall be reduced on a dollar-for-dollar basis by the offsetting collections described under this heading so as to result in a final fiscal year appropriation from the General Fund estimated at $0.

PROGRAM ACCOUNT

Amounts paid from ''United States International Development Finance Corporation—Corporate Capital Account'' (CCA) shall remain available until September 30, 2023: Provided, That not more than $80,000,000 of amounts paid to this account from CCA or transferred to this account pursuant to section 1434(j) of the BUILD Act of 2018 (division F of Public Law 115–254) shall be available for the costs of direct and guaranteed loans provided by the Corporation pursuant to section 1421(b) of such Act:

Provided further, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That such amounts obligated in a fiscal year shall remain available for disbursement for the following 8 fiscal years: Provided further, That funds transferred to carry out the Foreign Assistance Act of 1961 pursuant to section 1434(j) of the BUILD Act of 2018 may remain available for obligation for 1 additional fiscal year: Provided further, That the total loan principal or guaranteed principal amount shall not exceed $8,000,000,000.

TRADE AND DEVELOPMENT AGENCY

For necessary expenses to carry out the provisions of section 661 of the Foreign Assistance Act of 1961, $79,500,000, to remain available until September 30, 2022, of which no more than $18,285,000 may be used for administrative expenses: Provided, That of the funds appropriated under this heading, not more than $5,000 may be available for representation and entertainment expenses.

TITLE VII

GENERAL PROVISIONS

ALLOWANCES AND DIFFERENTIALS

SEC. 7001. Funds appropriated under title I of this Act shall be available, except as otherwise provided, for allowances and differentials as authorized by subchapter 59 of title 5, United States Code; for services as authorized by section 3109 of such title and for hire of passenger transportation pursuant to section 1343(b) of title 31, United States Code.

UNOBLIGATED BALANCES REPORT

SEC. 7002. Any department or agency of the United States Government to which funds are appropriated or otherwise made available by this Act shall provide to the Committees on Appropriations a quarterly accounting of cumulative unobligated balances and obligated, but unexpended, balances by program, project, and activity, and Treasury Account Fund Symbol of all funds received by such department or agency in fiscal year 2021 or any previous fiscal year, disaggregated by fiscal year: Provided, That the report required by this section shall be submitted not later than 30 days after the end of each fiscal quarter and should specify by account the amount of funds obligated pursuant to bilateral agreements which have not been further sub-obligated.

CONSULTING SERVICES

SEC. 7003. The expenditure of any appropriation under title I of this Act for any consulting service through procurement contract, pursuant to section 3109 of title 5, United States Code, shall be limited to those contracts where such expenditures are a matter of public record and available for public inspection, except where otherwise provided under existing law, or under existing Executive order issued pursuant to existing law.

DIPLOMATIC FACILITIES

SEC. 7004. (a) CAPITAL SECURITY COST SHARING EXCEPTION.—Notwithstanding paragraph (2) of section 604(e) of the Secure Embassy Construction and Counterterrorism Act of 1999 (title VI of division A of H.R. 3427, as enacted into law by section 1000(a)(7) of Public Law 106–113 and contained in appendix G of that Act), as amended by section 111 of the Department of State Authorities Act, Fiscal Year 2017 (Public Law 114–323), a project to construct a facility of the United States may include office space or other accommodations for members of the United States Marine Corps.

(b) NEW DIPLOMATIC FACILITIES.—For the purposes of calculating the fiscal year 2021 costs of providing new United States diplomatic facilities in accordance with section 604(e) of the Secure Embassy Construction and Counterterrorism Act of 1999 (22 U.S.C. 4865 note), the Secretary of State, in consultation with the Director of the Office of Management and Budget, shall determine the annual program level and agency shares in a manner that is proportional to the contribution of the Department of State for this purpose.

(c) CONSULTATION AND NOTIFICATION.—Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs, which may be made available for the acquisition of property or award of construction contracts for overseas United States diplomatic facilities during fiscal year 2021, shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: Provided, That notifications pursuant to this subsection shall include the information enumerated under the heading ''Embassy Security, Construction, and Maintenance'' in the report accompanying this Act.

(d) INTERIM AND TEMPORARY FACILITIES ABROAD.—

(1) SECURITY VULNERABILITIES.—Funds appropriated by this Act under the heading ''Embassy Security, Construction, and Maintenance'' shall be made available to address security vulnerabilities at interim and temporary United States diplomatic facilities abroad, including physical security upgrades and local guard staffing.

(2) CONSULTATION.—Notwithstanding any other provision of law, the opening, closure, or any significant modification to an interim or temporary United States diplomatic facility shall be subject to prior consultation with the appropriate congressional committees and the regular notification procedures of the Committees on Appropriations, except that such consultation and notification may be waived if there is a security risk to personnel.

(e) SOFT TARGETS.—Funds appropriated by this Act under the heading ''Embassy Security, Construction, and Maintenance'' shall be made available for security upgrades to soft targets, including schools, recreational facilities, and residences used by United States diplomatic personnel and their dependents.

PERSONNEL ACTIONS

SEC. 7005. Any costs incurred by a department or agency funded under title I of this Act resulting from personnel actions taken in response to funding reductions included in this Act shall be absorbed within the total budgetary resources available under title I to such department or agency: Provided, That the authority to transfer funds between appropriations accounts as may be necessary to carry out this section is provided in addition to authorities included elsewhere in this Act: Provided further, That use of funds to carry out this section shall be treated as a reprogramming of funds under section 7015 of this Act.

PROHIBITION ON PUBLICITY OR PROPAGANDA

SEC. 7006. No part of any appropriation contained in this Act shall be used for publicity or propaganda purposes within the United States not authorized before enactment of this Act by Congress: Provided, That up to $25,000 may be made available to carry out the provisions of section 316 of the International Security and Development Cooperation Act of 1980 (Public Law 96–533; 22 U.S.C. 2151a note).

PROHIBITION AGAINST DIRECT FUNDING FOR CERTAIN COUNTRIES

SEC. 7007. None of the funds appropriated or otherwise made available pursuant to titles III through VI of this Act shall be obligated or expended to finance directly any assistance or reparations for the governments of Cuba, North Korea, Iran, or Syria: Provided, That for purposes of this section, the prohibition on obligations or expenditures shall include direct loans, credits, insurance, and guarantees of the Export-Import Bank or its agents.

COUPS D'ÉTAT

SEC. 7008. None of the funds appropriated or otherwise made available by this Act under the heading ''Economic Support Fund'' and under titles IV through VI shall be obligated or expended to finance directly any assistance to the government of any country whose duly elected head of government is deposed by military coup d'état or decree or, after the date of enactment of this Act, a coup d'état or decree in which the military plays a decisive role: Provided, That assistance may be resumed to such government if the Secretary of State certifies and reports to the appropriate congressional committees that subsequent to the termination of assistance a democratically elected government has taken office: Provided further, That the provisions of this section shall not apply to assistance to promote democratic elections or public participation in democratic processes: Provided further, That funds made available pursuant to the previous provisos shall be subject to the regular notification procedures of the Committees on Appropriations.

TRANSFER OF FUNDS AUTHORITY

SEC. 7009. (a) DEPARTMENT OF STATE AND UNITED STATES AGENCY FOR GLOBAL MEDIA.—

(1) DEPARTMENT OF STATE.—

(A) IN GENERAL.—Not to exceed 5 percent of any appropriation made available for the current fiscal year for the Department of State under title I of this Act may be transferred between, and merged with, such appropriations, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 10 percent by any such transfers, and no such transfer may be made to increase the appropriation under the heading ''Representation Expenses''.

(B) EMBASSY SECURITY.—Funds appropriated under the headings ''Diplomatic Programs'', including for Worldwide Security Protection, ''Embassy Security, Construction, and Maintenance'', and ''Emergencies in the Diplomatic and Consular Service'' in this Act may be transferred to, and merged with, funds appropriated under such headings if the Secretary of State determines and reports to the Committees on Appropriations that to do so is necessary to implement the recommendations of the Benghazi Accountability Review Board, for emergency evacuations, or to prevent or respond to security situations and requirements, following consultation with, and subject to the regular notification procedures of, such Committees: Provided, That such transfer authority is in addition to any transfer authority otherwise available in this Act and under any other provision of law.

(2) UNITED STATES AGENCY FOR GLOBAL MEDIA.—Not to exceed 5 percent of any appropriation made available for the current fiscal year for the United States Agency for Global Media under title I of this Act may be transferred between, and merged with, such appropriations, but no such appropriation, except as otherwise specifically provided, shall be increased by more than 10 percent by any such transfers.

(3) TREATMENT AS REPROGRAMMING.—Any transfer pursuant to this subsection shall be treated as a reprogramming of funds under section 7015 of this Act and shall not be available for obligation or expenditure except in compliance with the procedures set forth in that section.

(b) LIMITATION ON TRANSFERS OF FUNDS BETWEEN AGENCIES.—

(1) IN GENERAL.—None of the funds made available under titles II through V of this Act may be transferred to any department, agency, or instrumentality of the United States Government, except pursuant to a transfer made by, or transfer authority provided in, this Act or any other appropriations Act.

(2) ALLOCATION AND TRANSFERS.—Notwithstanding paragraph (1), in addition to transfers made by, or authorized elsewhere in, this Act, funds appropriated by this Act to carry out the purposes of the Foreign Assistance Act of 1961 may be allocated or transferred to agencies of

the United States Government pursuant to the provisions of sections 109, 610, and 632 of the Foreign Assistance Act of 1961, and section 1434(j) of the BUILD Act of 2018 (division F of Public Law 115–254).

(3) NOTIFICATION.—Any agreement entered into by the United States Agency for International Development or the Department of State with any department, agency, or instrumentality of the United States Government pursuant to section 632(b) of the Foreign Assistance Act of 1961 valued in excess of $1,000,000 and any agreement made pursuant to section 632(a) of such Act, with funds appropriated by this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs under the headings ''Global Health Programs'', ''Development Assistance'', ''Economic Support Fund'', and ''Assistance for Europe, Eurasia and Central Asia'' shall be subject to the regular notification procedures of the Committees on Appropriations: Provided, That the requirement in the previous sentence shall not apply to agreements entered into between USAID and the Department of State.

(c) LIMITATION ON UNITED STATES INTERNATIONAL DEVELOPMENT FINANCE CORPORATION.—Amounts transferred pursuant to section 1434(j) of the BUILD Act of 2018 (division F of Public Law 115–254) may only be transferred from funds made available under title III of this Act, and such amounts shall not exceed $50,000,000: Provided, That any such transfers shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: Provided further, That the Secretary of State, the Administrator of the United States Agency for International Development, and the Chief Executive Officer of the United States International Development Finance Corporation (the Corporation), as appropriate, shall ensure that the programs funded by such transfers are coordinated with, and complement, foreign assistance programs implemented by the Department of State and USAID: Provided further, That no funds transferred pursuant to such authority or transferred pursuant to the authority of subsection (a) or (b) of section 632 of the Foreign Assistance Act of 1961 may be used by the Corporation to post personnel abroad or for activities described in section 1421(c) of the BUILD Act of 2018.

(d) TRANSFER OF FUNDS BETWEEN ACCOUNTS.—None of the funds made available under titles II through V of this Act may be obligated under an appropriations account to which such funds were not appropriated, except for transfers specifically provided for in this Act, unless the President, not less than 5 days prior to the exercise of any authority contained in the Foreign Assistance Act of 1961 to transfer funds, consults with and provides a written policy justification to the Committees on Appropriations.

(e) AUDIT OF INTER-AGENCY TRANSFERS OF FUNDS.—Any agreement for the transfer or allocation of funds appropriated by this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs entered into between the Department of State or USAID and another agency of the United States Government under the authority of section 632(a) of the Foreign Assistance Act of 1961, or any comparable provision of law, shall expressly provide that the Inspector General (IG) for the agency receiving the transfer or allocation of such funds, or other entity with audit responsibility if the receiving agency does not have an IG, shall perform periodic program and financial audits of the use of such funds and report to the Department of State or USAID, as appropriate, upon completion of such audits: Provided, That such audits shall be transmitted to the Committees on Appropriations by the Department of State or USAID, as appropriate: Provided further, That funds transferred under such authority may be made available for the cost of such audits.

(f) TRANSFER OF OVERSEAS CONTINGENCY OPERATIONS/GLOBAL WAR ON TERRORISM FUNDS.—Funds appropriated by this Act under the headings ''Peacekeeping Operations'' and ''Foreign Military Financing Program'' that are designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985 may be transferred to, and merged with, such funds appropriated under such headings: Provided, That such transfer authority may only be exercised to address contingencies: Provided further, That such transfer authority is in addition to any transfer authority otherwise available under any other provision of law, including section 610 of the Foreign Assistance Act of 1961: Provided further, That such transfer authority shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

PROHIBITION AND LIMITATION ON CERTAIN EXPENSES

SEC. 7010. (a) FIRST-CLASS TRAVEL.—None of the funds made available by this Act may be used for first-class travel by employees of United States Government departments and agencies funded by this Act in contravention of section 301–10.122 through 301–10.124 of title 41, Code of Federal Regulations.

(b) COMPUTER NETWORKS.—None of the funds made available by this Act for the operating expenses of any United States Government department or agency may be used to establish or maintain a computer network for use by such department or agency unless such network has filters designed to block access to sexually explicit websites: Provided, That nothing in this subsection shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency, or any other entity carrying out the following activities: criminal investigations, prosecutions, and adjudications; administrative discipline; and the monitoring of such websites undertaken as part of official business.

(c) PROHIBITION ON PROMOTION OF TOBACCO.—None of the funds made available by this Act shall be available to promote the sale or export of tobacco or tobacco products, or to seek the reduction or removal by any foreign country of restrictions on the marketing of tobacco or tobacco products, except for restrictions which are not applied equally to all tobacco or tobacco products of the same type.

(d) EMAIL SERVERS OUTSIDE THE .GOV DOMAIN.—None of the funds appropriated by this Act under the headings ''Diplomatic Programs'' and ''Capital Investment Fund'' in title I, and ''Operating Expenses'' and ''Capital Investment Fund'' in title II that are made available to the Department of State and the United States Agency for International Development may be made available to support the use or establishment of email accounts or email servers created outside the .gov domain or not fitted for automated records management as part of a Federal government records management program in contravention of the Presidential and Federal Records Act Amendments of 2014 (Public Law 113–187).

(e) REPRESENTATION AND ENTERTAINMENT EXPENSES.—Each Federal department, agency, or entity funded in titles I or II of this Act, and the Department of the Treasury and independent agencies funded in titles III or VI of this Act, shall take steps to ensure that domestic and overseas representation and entertainment expenses further official agency business and United States foreign policy interests, and—

(1) are primarily for fostering relations outside of the Executive Branch;

(2) are principally for meals and events of a protocol nature;

(3) are not for employee-only events; and

(4) do not include activities that are substantially of a recreational character.

(f) LIMITATIONS ON ENTERTAINMENT EXPENSES.—None of the funds appropriated or otherwise made available by this Act under the headings ''International Military Education and Training'' or ''Foreign Military Financing Program'' for Informational Program activities or under the headings ''Global Health Programs'', ''Development Assistance'', ''Economic Support Fund'', and ''Assistance for Europe, Eurasia and Central Asia'' may be obligated or expended to pay for—

(1) alcoholic beverages; or

(2) entertainment expenses for activities that are substantially of a recreational character, including entrance fees at sporting events, theatrical and musical productions, and amusement parks.

AVAILABILITY OF FUNDS

SEC. 7011. (a) No part of any appropriation contained in this Act shall remain available for obligation after the expiration of the current fiscal year unless expressly so provided by this Act: Provided, That funds appropriated for the purposes of chapters 1 and 8 of part I, section 661, chapters 4, 5, 6, 8, and 9 of part II of the Foreign Assistance Act of 1961, section 23 of the Arms Export Control Act (22 U.S.C. 2763), and funds made available for ''United States International Development Finance Corporation'' and under the heading ''Assistance for Europe, Eurasia and Central Asia'' shall remain available for an additional 2 years from the date on which the availability of such funds would otherwise have expired, if such funds are initially obligated before the expiration of their respective periods of availability contained in this Act: Provided further, That notwithstanding any other provision of this Act, any funds made available for the purposes of chapter 1 of part I and chapter 4 of part II of the Foreign Assistance Act of 1961 which are allocated or obligated for cash disbursements in order to address balance of payments or economic policy reform objectives, shall remain available for an additional 2 years from the date on which the availability of such funds would otherwise have expired, if such funds are initially allocated or obligated before the expiration of their respective periods of availability contained in this Act: Provided further, That the Secretary of State and the Administrator of the United States Agency for International Development shall provide a report to the Committees on Appropriations not later than October 31, 2021, detailing by account and source year, the use of the authority provided pursuant to this subsection during the previous fiscal year.

(b) Notwithstanding any other provision of this Act, with respect to any budget authority provided by this Act that is proposed to be rescinded or that is set to be reserved or proposed to be deferred in a special message transmitted under section 1012 or 1013 of the Congressional Budget and Impoundment Control Act of 1974 (2 U.S.C. 681 et seq.) within 90 days of the expiration of the period of availability of such funds, including, if applicable, the 90-day period before the initial period of availability for which such budget authority was provided, such budget authority—

(1) shall be made available for obligation in sufficient time to be prudently obligated as required under section 1012(b) or 1013 of the Congressional Budget and Impoundment Control Act of 1974; and

(2) shall remain available for an additional 90 days from the date on which the availability of such funds would otherwise have expired, including, if applicable, an additional 90 days after date on which such budget authority would have initially expired.

(c) Funds in this Act that are required to be apportioned within a specific time period shall be apportioned within such time period, without prior conditions or limitations, including footnotes, that are not included in this or any other Act.

LIMITATION ON ASSISTANCE TO COUNTRIES IN DEFAULT

SEC. 7012. No part of any appropriation provided under titles III through VI in this Act shall be used to furnish assistance to the government of any country which is in default during a period in excess of 1 calendar year in payment to the United States of principal or interest on any loan made to the government of such country by the United States pursuant to a program for which funds are appropriated under this Act unless the President determines, following consultation with the Committees on Appropriations, that assistance for such country is in the national interest of the United States.

PROHIBITION ON TAXATION OF UNITED STATES ASSISTANCE

SEC. 7013. (a) PROHIBITION ON TAXATION.—None of the funds appropriated under titles III through VI of this Act may be made available to provide assistance for a foreign country under a new bilateral agreement governing the terms and conditions under which such assistance is to be provided unless such agreement includes a provision stating that assistance provided by the United States shall be exempt from taxation, or reimbursed, by the foreign government, and the Secretary of State and the Administrator of the United States Agency for International Development shall expeditiously seek to negotiate amendments to existing bilateral agreements, as necessary, to conform with this requirement.

(b) NOTIFICATION AND REIMBURSEMENT OF FOREIGN TAXES.—(1) An amount equivalent to 200 percent of the total taxes assessed during fiscal year 2021 on funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs by a foreign government or entity against United States assistance programs, either directly or through grantees, contractors, and subcontractors, shall be withheld from obligation from funds appropriated for assistance for fiscal year 2022 and for prior fiscal years and allocated for the central government of such country or for the West Bank and Gaza program, as applicable, if, not later than September 30, 2022, such taxes have not been reimbursed.

(2) The Secretary of State shall report to the Committees on Appropriations not later than 30 days after enactment of this Act and then quarterly thereafter until September 30, 2021, on the foreign governments and entities that have not reimbursed such taxes, including any amount of funds withheld pursuant to this subsection.

(c) DE MINIMIS EXCEPTION.—Foreign taxes of a de minimis nature shall not be subject to the provisions of subsection (b).

(d) REPROGRAMMING OF FUNDS.—Funds withheld from obligation for each foreign government or entity pursuant to subsection (b) shall be reprogrammed for assistance for countries which do not assess taxes on United States assistance or which have an effective arrangement that is providing substantial reimbursement of such taxes, and that can reasonably accommodate such assistance in a programmatically responsible manner.

(e) DETERMINATIONS.—

(1) IN GENERAL.—The provisions of this section shall not apply to any foreign government or entity that assesses such taxes if the Secretary of State reports to the Committees on Appropriations that—

(A) such foreign government or entity has an effective arrangement that is providing substantial reimbursement of such taxes; or

(B) the foreign policy interests of the United States outweigh the purpose of this section to ensure that United States assistance is not subject to taxation.

(2) CONSULTATION.—The Secretary of State shall consult with the Committees on Appropriations at least 15 days prior to exercising the authority of this subsection with regard to any foreign government or entity.

(f) IMPLEMENTATION.—The Secretary of State shall issue and update rules, regulations, or policy guidance, as appropriate, to implement the prohibition against the taxation of assistance contained in this section.

(g) DEFINITIONS.—As used in this section:

(1) BILATERAL AGREEMENT.—The term ''bilateral agreement'' refers to a framework bilateral agreement between the Government of the United States and the government of the country receiving assistance that describes the privileges and immunities applicable to United States foreign assistance for such country generally, or an individual agreement between the Government of the United States and such government that describes, among other things, the treatment for tax purposes that will be accorded the United States assistance provided under that agreement.

(2) TAXES AND TAXATION.—The term ''taxes and taxation'' shall include value added taxes and customs duties but shall not include individual income taxes assessed to local staff.

RESERVATIONS OF FUNDS

SEC. 7014. (a) REPROGRAMMING.—Funds appropriated under titles III through VI of this Act which are specifically designated may be reprogrammed for other programs within the same account notwithstanding the designation if compliance with the designation is made impossible by operation of any provision of this or any other Act: Provided, That any such reprogramming shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That assistance that is reprogrammed pursuant to this subsection shall be made available under the same terms and conditions as originally provided.

(b) EXTENSION OF AVAILABILITY.—In addition to the authority contained in subsection (a), the original period of availability of funds appropriated by this Act and administered by the Department of State or the United States Agency for International Development that are specifically designated for particular programs or activities by this or any other Act may be extended for an additional fiscal year if the Secretary of State or the USAID Administrator, as appropriate, determines and reports promptly to the Committees on Appropriations that the termination of assistance to a country or a significant change in circumstances makes it unlikely that such designated funds can be obligated during the original period of availability: Provided, That such designated funds that continue to be available for an additional fiscal year shall be obligated only for the purpose of such designation.

(c) OTHER ACTS.—Ceilings and specifically designated funding levels contained in this Act shall not be applicable to funds or authorities appropriated or otherwise made available by any subsequent Act unless such Act specifically so directs: Provided, That specifically designated funding levels or minimum funding requirements contained in any other Act shall not be applicable to funds appropriated by this Act.

NOTIFICATION REQUIREMENTS

SEC. 7015. (a) NOTIFICATION OF CHANGES IN PROGRAMS, PROJECTS, AND ACTIVITIES.—None of the funds made available in titles I and II of this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs to the departments and agencies funded by this Act that remain available for obligation in fiscal year 2021, or provided from any accounts in the Treasury of the United States derived by the collection of fees or of currency reflows or other offsetting collections, or made available by transfer, to the departments and agencies funded by this Act, shall be available for obligation to—

(1) create new programs;

(2) suspend or eliminate a program, project, or activity;

(3) close, suspend, open, or reopen a mission or post;

(4) create, close, reorganize, downsize, or rename bureaus, centers, or offices; or

(5) contract out or privatize any functions or activities presently performed by Federal employees;

unless previously justified to the Committees on Appropriations or such Committees are notified 15 days in advance of such obligation.

(b) NOTIFICATION OF REPROGRAMMING OF FUNDS.—None of the funds provided under titles I and II of this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs, to the departments and agencies funded under titles I and II of this Act that remain available for obligation in fiscal year 2021, or provided from any accounts in the Treasury of the United States derived by the collection of fees available to the department and agency funded under title I of this Act, shall be available for obligation or expenditure for programs, projects, or activities through a reprogramming of funds in excess of $1,000,000 or 10 percent, whichever is less, that—

(1) augments or changes existing programs, projects, or activities;

(2) relocates an existing office or employees;

(3) reduces by 10 percent funding for any existing program, project, or activity, or numbers of personnel by 10 percent as approved by Congress; or

(4) results from any general savings, including savings from a reduction in personnel, which would result in a change in existing programs, projects, or activities as approved by Congress;

unless the Committees on Appropriations are notified 15 days in advance of such reprogramming of funds.

(c) NOTIFICATION REQUIREMENT.—None of the funds made available by this Act under the headings ''Global Health Programs'', ''Development Assistance'', ''International Organizations and Programs'', ''Trade and Development Agency'', ''International Narcotics Control and Law Enforcement'', ''Economic Support Fund'', ''Democracy Fund'', ''Assistance for Europe, Eurasia and Central Asia'', ''Peacekeeping Operations'', ''Nonproliferation, Anti-terrorism, Demining and Related Programs'', ''Millennium Challenge Corporation'', ''Foreign Military Financing Program'', ''International Military Education and Training'', ''United States International Development Finance Corporation'', and ''Peace Corps'', shall be available for obligation for programs, projects, activities, type of materiel assistance, countries, or other operations not justified or in excess of the amount justified to the Committees on Appropriations for obligation under any of these specific headings unless the Committees on Appropriations are notified 15 days in advance of such obligation: Provided, That the President shall not enter into any commitment of funds appropriated for the purposes of section 23 of the Arms Export Control Act for the provision of major defense equipment, other than conventional ammunition, or other major defense items defined to be aircraft, ships, missiles, or combat vehicles, not previously justified to Congress or 20 percent in excess of the quantities justified to Congress unless the Committees on Appropriations are notified 15 days in advance of such commitment: Provided further, That requirements of this subsection or any similar provision of this or any other Act shall not apply to any reprogramming for a program, project, or activity for which funds are appropriated under titles III through VI of this Act of less than 10 percent of the amount previously justified to Congress for obligation for such program, project, or activity for the current fiscal year: Provided further, That any notification submitted pursuant to subsection (f) of this section shall include information (if known on the date of transmittal of such notification) on the use of notwithstanding authority.

(d) DEPARTMENT OF DEFENSE PROGRAMS AND FUNDING NOTIFICATIONS.—

(1) PROGRAMS.—None of the funds appropriated by this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available to support or continue any program initially funded under any authority of title 10, United States Code, or any Act making or authorizing appropriations for the Department of Defense, unless the Secretary of State, in consultation with the Secretary of Defense and in accordance with the regular notification procedures of the Committees on Appropriations, submits a justification to such Committees that includes a description of, and the estimated costs associated with, the support or continuation of such program.

(2) FUNDING.—Notwithstanding any other provision of law, funds transferred by the Department of Defense to the Department of State and the United States Agency for International Development for assistance for foreign countries and international organizations shall be subject to the regular notification procedures of the Committees on Appropriations.

(3) NOTIFICATION ON EXCESS DEFENSE ARTICLES.—Prior to providing excess Department of Defense articles in accordance with section 516(a) of the Foreign Assistance Act of 1961, the Department of Defense shall notify the Committees on Appropriations to the same extent and under the same conditions as other committees pursuant to subsection (f) of that section: Provided, That before issuing a letter of offer to sell excess defense articles under the Arms Export Control Act, the Department of Defense shall notify the Committees on Appropriations in accordance with the regular notification procedures of such Committees if such defense articles are significant military equipment (as defined in section 47(9) of the Arms Export Control Act) or are valued (in terms of original acquisition cost) at $7,000,000 or more, or if notification is required elsewhere in this Act for the use of appropriated funds for specific countries that would receive such excess defense articles: Provided further, That such Committees shall also be informed of the original acquisition cost of such defense articles.

(e) WAIVER.—The requirements of this section or any similar provision of this Act or any other Act, including any prior Act requiring notification in accordance with the regular notification procedures of the Committees on Appropriations, may be waived for demining activities and funds made available under the headings ''Administration of Foreign Affairs'', ''Global Health Programs'', and ''Peace Corps'' if failure to do so would pose a substantial risk to human health or welfare: Provided, That in case of any such waiver, notification to the Committees on Appropriations shall be provided as early as practicable, but in no event later than 3 days after taking the action to which such notification requirement was applicable, in the context of the circumstances necessitating such waiver: Provided further, That any notification provided pursuant to such a waiver shall contain an explanation of the emergency circumstances.

(f) COUNTRY NOTIFICATION REQUIREMENTS.—None of the funds appropriated under titles III through VI of this Act may be obligated or expended for assistance for Afghanistan, Bahrain, Burma, Cambodia, Colombia, Cuba, Egypt, El Salvador, Ethiopia, Greenland, Guatemala, Haiti, Honduras, Iran, Iraq, Lebanon, Libya, Mexico, Nicaragua, Pakistan, Philippines, the Russian Federation, Somalia, South Sudan, Sri Lanka, Sudan, Syria, Uzbekistan, Venezuela, Yemen, and Zimbabwe except as provided through the regular notification procedures of the Committees on Appropriations.

(g) TRUST FUNDS.—Funds appropriated or otherwise made available in title III of this Act and prior Acts making funds available for the Department of State, foreign operations, and related programs that are made available for a trust fund held by an international financial institution shall be subject to the regular notification procedures of the Committees on Appropriations and such notification shall include the information specified under this section in the report accompanying this Act.

(h) OTHER PROGRAM NOTIFICATION REQUIREMENT.—

(1) DIPLOMATIC PROGRAMS.—Funds appropriated under title I of this Act under the heading ''Diplomatic Programs'' that are made available for lateral entry into the Foreign Service shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

(2) OTHER PROGRAMS.—Funds appropriated by this Act that are made available for the following programs and activities shall be subject to the regular notification procedures of the Committees on Appropriations:

(A) the Global Engagement Center, except that the Secretary of State shall consult with the Committees on Appropriations prior to submitting such notification;

(B) the Power Africa and Prosper Africa initiatives, or any successor programs;

(C) community-based police assistance conducted pursuant to the authority of section 7035(a)(1) of this Act;

(D) the Prevention and Stabilization Fund;

(E) the Indo-Pacific Strategy and the Countering Chinese Influence Fund;

(F) the Global Security Contingency Fund;

(G) the Countering Russian Influence Fund;

(H) programs to end modern slavery; and

(I) the Women's Global Development and Prosperity Fund.

(i) WITHHOLDING OF FUNDS.—Funds appropriated by this Act under titles III and IV that are withheld from obligation or otherwise not programmed as a result of application of a provision of law in this or any other Act shall, if reprogrammed, be subject to the regular notification procedures of the Committees on Appropriations.

(j) FOREIGN ASSISTANCE REVIEW OR REALIGNMENT.—Programmatic, funding, and organizational changes resulting from implementation of any foreign assistance review or realignment shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: Provided, That such notifications may be submitted in classified form, if necessary.

DOCUMENT REQUESTS, RECORDS MANAGEMENT, AND RELATED CYBERSECURITY PROTECTIONS

SEC. 7016. (a) DOCUMENT REQUESTS.—None of the funds appropriated or made available pursuant to titles III through VI of this Act shall be available to a nongovernmental organization, including any contractor, which fails to provide upon timely request any document, file, or record necessary to the auditing requirements of the Department of State and the United States Agency for International Development.

(b) RECORDS MANAGEMENT AND RELATED CYBERSECURITY PROTECTIONS.—The Secretary of State and USAID Administrator shall—

(1) regularly review and update the policies, directives, and oversight necessary to comply with Federal statutes, regulations, and presidential executive orders and memoranda concerning the preservation of all records made or received in the conduct of official business, including record emails, instant messaging, and other online tools;

(2) use funds appropriated by this Act under the headings ''Diplomatic Programs'' and ''Capital Investment Fund'' in title I, and ''Operating Expenses'' and ''Capital Investment Fund'' in title II, as appropriate, to improve Federal records management pursuant to the Federal Records Act (44 U.S.C. Chapters 21, 29, 31, and 33) and other applicable Federal records management statutes, regulations, or policies for the Department of State and USAID;

(3) direct departing employees, including senior officials, that all Federal records generated by such employees belong to the Federal Government;

(4) improve the response time for identifying and retrieving Federal records, including requests made pursuant to section 552 of title 5, United States Code (commonly known as the ''Freedom of Information Act''); and

(5) strengthen cybersecurity measures to mitigate vulnerabilities, including those resulting from the use of personal email accounts or servers outside the .gov domain, improve the process to identify and remove inactive user accounts, update and enforce guidance related to the control of national security information, and implement the recommendations of the applicable reports of the cognizant Office of Inspector General.

USE OF FUNDS IN CONTRAVENTION OF THIS ACT

SEC. 7017. If the President makes a determination not to comply with any provision of this Act on constitutional grounds, the head of the relevant Federal agency shall notify the Committees on Appropriations in writing within 5 days of such determination, the basis for such determination and any resulting changes to program or policy.

DEBT-FOR-DEVELOPMENT

SEC. 7018. In order to enhance the continued participation of nongovernmental organizations in debt-for-development and debt-for-nature exchanges, a nongovernmental organization which is a grantee or contractor of the United States Agency for International Development may place in interest bearing accounts local currencies which accrue to that organization as a result of economic assistance provided under title III of this Act and, subject to the regular notification procedures of the Committees on Appropriations, any interest earned on such investment shall be used for the purpose for which the assistance was provided to that organization.

ALLOCATIONS AND REPORTS

SEC. 7019. (a) ALLOCATION TABLES.—Subject to subsection (b), funds appropriated by this Act under titles III through V shall be made available at not less than the amounts specifically designated in the respective tables included in the report accompanying this Act: Provided, That such designated amounts for foreign countries and international organizations shall serve as the amounts for such countries and international organizations transmitted to Congress in the report required by section 653(a) of the Foreign Assistance Act of 1961, and shall be made available for such foreign countries and international organizations notwithstanding the date of the transmission of such report.

(b) AUTHORIZED DEVIATIONS BELOW MINIMUM LEVELS.—Unless otherwise provided for by this Act, the Secretary of State and the Administrator of the United States Agency for International Development, as applicable, may deviate by not more than 5 percent below the minimum amounts specifically designated in the respective tables in the report accompanying this Act: Provided, That deviations pursuant to this subsection shall be subject to prior consultation with the Committees on Appropriations.

(c) LIMITATION.—Deviations authorized by subsection (b) may only take place after submission of the report required by section 653(a) of the Foreign Assistance Act of 1961.

(d) EXCEPTIONS.—

(1) Subsections (a) and (b) shall not apply to—

(A) funds for which the initial period of availability has expired; and

(B) amounts designated by this Act as minimum funding requirements.

(2) The authority in subsection (b) to deviate below amounts designated in the respective tables included in the report accompanying this Act shall not apply to the table included under the heading ''Global Health Programs'' and to the amounts designated for Global Programs in the table under the heading ''Economic Support Fund'' in such report.

(e) REPORTS.—The Secretary of State, USAID Administrator, and other designated officials, as appropriate, shall submit the reports required, in the manner described, in the report accompanying this Act.

(f) CLARIFICATION.—Funds appropriated by this Act under the headings ''International Disaster Assistance'' and ''Migration and Refugee Assistance'' shall not be included for purposes of meeting amounts designated for countries in this Act or the report accompanying this Act, unless such headings are specifically designated as the source of funds.

MULTI-YEAR PLEDGES

SEC. 7020. None of the funds appropriated by this Act may be used to make any pledge for future year funding for any multilateral or bilateral program funded in titles III through VI of this Act unless such pledge meets one or more of the requirements enumerated under section 7066 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2019 (division F of Public Law 116–6).

PROHIBITION ON ASSISTANCE TO GOVERNMENTS SUPPORTING INTERNATIONAL TERRORISM

SEC. 7021. (a) LETHAL MILITARY EQUIPMENT EXPORTS.—

(1) PROHIBITION.—None of the funds appropriated or otherwise made available under titles III through VI of this Act may be made available to any foreign government which provides lethal military equipment to a country the government of which the Secretary of State has determined supports international terrorism for purposes of section 1754(c) of the Export Reform Control Act of 2018 (50 U.S.C. 4813(c)): Provided, That the prohibition under this section with respect to a foreign government shall terminate 12 months after that government ceases to provide such military equipment: Provided further, That this section applies with respect to lethal military equipment provided under a contract entered into after October 1, 1997.

(2) DETERMINATION.—Assistance restricted by paragraph (1) or any other similar provision of law, may be furnished if the President determines that to do so is important to the national interest of the United States.

(3) REPORT.—Whenever the President makes a determination pursuant to paragraph (2), the President shall submit to the Committees on Appropriations a report with respect to the furnishing of such assistance, including a detailed explanation of the assistance to be provided, the estimated dollar amount of such assistance, and an explanation of how the assistance furthers United States national interest.

(b) BILATERAL ASSISTANCE.—

(1) LIMITATIONS.—Funds appropriated for bilateral assistance in titles III through VI of this Act and funds appropriated under any such title in prior Acts making appropriations for the Department of State, foreign operations, and related programs, shall not be made available to any foreign government which the President determines—

(A) grants sanctuary from prosecution to any individual or group which has committed an act of international terrorism;

(B) otherwise supports international terrorism; or

(C) is controlled by an organization designated as a terrorist organization under section 219 of the Immigration and Nationality Act (8 U.S.C. 1189).

(2) WAIVER.—The President may waive the application of paragraph (1) to a government if the President determines that national security or humanitarian reasons justify such waiver: Provided, That the President shall publish each such waiver in the Federal Register and, at least 15 days before the waiver takes effect, shall notify the Committees on Appropriations of the waiver (including the justification for the waiver) in accordance with the regular notification procedures of the Committees on Appropriations.

AUTHORIZATION REQUIREMENTS

SEC. 7022. Funds appropriated by this Act, except funds appropriated under the heading ''Trade and Development Agency'', may be obligated and expended notwithstanding section 10 of Public Law 91–672 (22 U.S.C. 2412), section 15 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2680), section 313 of the Foreign Relations Authorization Act, Fiscal Years 1994 and 1995 (22 U.S.C. 6212), and section 504(a)(1) of the National Security Act of 1947 (50 U.S.C. 3094(a)(1)).

DEFINITION OF PROGRAM, PROJECT, AND ACTIVITY

SEC. 7023. For the purpose of titles II through VI of this Act ''program, project, and activity'' shall be defined at the appropriations Act account level and shall include all appropriations and authorizations Acts funding directives, ceilings, and limitations with the exception that for the ''Economic Support Fund'', ''Assistance for Europe, Eurasia and Central Asia'', and ''Foreign Military Financing Program'' accounts, ''program, project, and activity'' shall also be considered to include country, regional, and central program level funding within each such account, and for the development assistance accounts of the United States Agency for International Development, ''program, project, and activity'' shall also be considered to include central, country, regional, and program level funding, either as—

(1) justified to Congress; or

(2) allocated by the Executive Branch in accordance with the report required by section 653(a) of the Foreign Assistance Act of 1961 or as modified pursuant to section 7019 of this Act.

AUTHORITIES FOR THE PEACE CORPS, INTER-AMERICAN FOUNDATION, AND UNITED STATES AFRICAN DEVELOPMENT FOUNDATION

SEC. 7024. Unless expressly provided to the contrary, provisions of this or any other Act, including provisions contained in prior Acts authorizing or making appropriations for the Department of State, foreign operations, and related programs, shall not be construed to prohibit activities authorized by or conducted under the Peace Corps Act, the Inter-American Foundation Act, or the African Development Foundation Act: Provided, That prior to conducting activities in a country for which assistance is prohibited, the agency shall consult with the Committees on Appropriations and report to such Committees within 15 days of taking such action.

COMMERCE, TRADE AND SURPLUS COMMODITIES

SEC. 7025. (a) WORLD MARKETS.—None of the funds appropriated or made available pursuant to titles III through VI of this Act for direct assistance and none of the funds otherwise made available to the Export-Import Bank and the United States International Development Finance Corporation shall be obligated or expended to finance any loan, any assistance, or any other financial commitments for establishing or expanding production of any commodity for export by any country other than the United States, if the commodity is likely to be in surplus on world markets at the time the resulting productive capacity is expected to become operative and if the assistance will cause substantial injury to United States producers of the same, similar, or competing commodity: Provided, That such prohibition shall not apply to the Export-Import Bank if in the judgment of its Board of Directors the benefits to industry and employment in the United States are likely to outweigh the injury to United States producers of the same, similar, or competing commodity, and the Chairman of the Board so notifies the Committees on Appropriations: Provided further, That this subsection shall not prohibit—

(1) activities in a country that is eligible for assistance from the International Development Association, is not eligible for assistance from the International Bank for Reconstruction and Development, and does not export on a consistent basis the agricultural commodity with respect to which assistance is furnished; or

(2) activities in a country the President determines is recovering from widespread conflict, a humanitarian crisis, or a complex emergency.

(b) EXPORTS.—None of the funds appropriated by this or any other Act to carry out chapter 1 of part I of the Foreign Assistance Act of 1961 shall be available for any testing or breeding feasibility study, variety improvement or introduction, consultancy, publication, conference, or training in connection with the growth or production in a foreign country of an agricultural commodity for export which would compete with a similar commodity grown or produced in the United States: Provided, That this subsection shall not prohibit—

(1) activities designed to increase food security in developing countries where such activities will not have a significant impact on the export of agricultural commodities of the United States;

(2) research activities intended primarily to benefit United States producers;

(3) activities in a country that is eligible for assistance from the International Development Association, is not eligible for assistance from the International Bank for Reconstruction and Development, and does not export on a consistent basis the agricultural commodity with respect to which assistance is furnished; or

(4) activities in a country the President determines is recovering from widespread conflict, a humanitarian crisis, or a complex emergency.

(c) INTERNATIONAL FINANCIAL INSTITUTIONS.—The Secretary of the Treasury shall instruct the United States executive directors of the international financial institutions to use the voice and vote of the United States to oppose any assistance by such institutions, using funds appropriated or otherwise made available by this Act, for the production or extraction of any commodity or mineral for export, if it is in surplus on world markets and if the assistance will cause substantial injury to United States producers of the same, similar, or competing commodity.

SEPARATE ACCOUNTS

SEC. 7026. (a) SEPARATE ACCOUNTS FOR LOCAL CURRENCIES.—

(1) AGREEMENTS.—If assistance is furnished to the government of a foreign country under chapters 1 and 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961 under agreements which result in the generation of local currencies of that country, the Administrator of the United States Agency for International Development shall—

(A) require that local currencies be deposited in a separate account established by that government;

(B) enter into an agreement with that government which sets forth—

(i) the amount of the local currencies to be generated; and

(ii) the terms and conditions under which the currencies so deposited may be utilized, consistent with this section; and

(C) establish by agreement with that government the responsibilities of USAID and that government to monitor and account for deposits into and disbursements from the separate account.

(2) USES OF LOCAL CURRENCIES.—As may be agreed upon with the foreign government, local currencies deposited in a separate account pursuant to subsection (a), or an equivalent amount of local currencies, shall be used only—

(A) to carry out chapter 1 or 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961 (as the case may be), for such purposes as—

(i) project and sector assistance activities; or

(ii) debt and deficit financing; or

(B) for the administrative requirements of the United States Government.

(3) PROGRAMMING ACCOUNTABILITY.—USAID shall take all necessary steps to ensure that the

equivalent of the local currencies disbursed pursuant to subsection (a)(2)(A) from the separate account established pursuant to subsection (a)(1) are used for the purposes agreed upon pursuant to subsection (a)(2).

(4) TERMINATION OF ASSISTANCE PROGRAMS.—Upon termination of assistance to a country under chapter 1 or 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961 (as the case may be), any unencumbered balances of funds which remain in a separate account established pursuant to subsection (a) shall be disposed of for such purposes as may be agreed to by the government of that country and the United States Government.

(b) SEPARATE ACCOUNTS FOR CASH TRANSFERS.—

(1) IN GENERAL.—If assistance is made available to the government of a foreign country, under chapter 1 or 10 of part I or chapter 4 of part II of the Foreign Assistance Act of 1961, as cash transfer assistance or as nonproject sector assistance, that country shall be required to maintain such funds in a separate account and not commingle with any other funds.

(2) APPLICABILITY OF OTHER PROVISIONS OF LAW.—Such funds may be obligated and expended notwithstanding provisions of law which are inconsistent with the nature of this assistance including provisions which are referenced in the Joint Explanatory Statement of the Committee of Conference accompanying House Joint Resolution 648 (House Report No. 98–1159).

(3) NOTIFICATION.—At least 15 days prior to obligating any such cash transfer or nonproject sector assistance, the President shall submit a notification through the regular notification procedures of the Committees on Appropriations, which shall include a detailed description of how the funds proposed to be made available will be used, with a discussion of the United States interests that will be served by such assistance (including, as appropriate, a description of the economic policy reforms that will be promoted by such assistance).

(4) EXEMPTION.—Nonproject sector assistance funds may be exempt from the requirements of paragraph (1) only through the regular notification procedures of the Committees on Appropriations.

ELIGIBILITY FOR ASSISTANCE

SEC. 7027. (a) ASSISTANCE THROUGH NONGOVERNMENTAL ORGANIZATIONS.—Restrictions contained in this or any other Act with respect to assistance for a country shall not be construed to restrict assistance in support of programs of nongovernmental organizations from funds appropriated by this Act to carry out the provisions of chapters 1, 10, 11, and 12 of part I and chapter 4 of part II of the Foreign Assistance Act of 1961 and from funds appropriated under the heading ''Assistance for Europe, Eurasia and Central Asia'': Provided, That before using the authority of this subsection to furnish assistance in support of programs of nongovernmental organizations, the President shall notify the Committees on Appropriations pursuant to the regular notification procedures, including a description of the program to be assisted, the assistance to be provided, and the reasons for furnishing such assistance: Provided further, That nothing in this subsection shall be construed to alter any existing statutory prohibitions against abortion or involuntary sterilizations contained in this or any other Act.

(b) PUBLIC LAW 480.—During fiscal year 2021, restrictions contained in this or any other Act with respect to assistance for a country shall not be construed to restrict assistance under the Food for Peace Act (Public Law 83–480; 7 U.S.C. 1721 et seq.): Provided, That none of the funds appropriated to carry out title I of such Act and made available pursuant to this subsection may be obligated or expended except as provided through the regular notification procedures of the Committees on Appropriations.

(c) EXCEPTION.—This section shall not apply—

(1) with respect to section 620A of the Foreign Assistance Act of 1961 or any comparable provision of law prohibiting assistance to countries that support international terrorism; or

(2) with respect to section 116 of the Foreign Assistance Act of 1961 or any comparable provision of law prohibiting assistance to the government of a country that violates internationally recognized human rights.

LOCAL COMPETITION

SEC. 7028. (a) REQUIREMENTS FOR EXCEPTIONS TO COMPETITION FOR LOCAL ENTITIES.—Funds appropriated by this Act that are made available to the United States Agency for International Development may only be made available for limited competitions through local entities if—

(1) prior to the determination to limit competition to local entities, USAID has—

(A) assessed the level of local capacity to effectively implement, manage, and account for programs included in such competition; and

(B) documented the written results of the assessment and decisions made; and

(2) prior to making an award after limiting competition to local entities—

(A) each successful local entity has been determined to be responsible in accordance with USAID guidelines; and

(B) effective monitoring and evaluation systems are in place to ensure that award funding is used for its intended purposes; and

(3) no level of acceptable fraud is assumed.

(b) EXTENSION OF PROCUREMENT AUTHORITY.—Section 7077 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2012 (division I of Public Law 112–74) shall continue in effect during fiscal year 2021.

INTERNATIONAL FINANCIAL INSTITUTIONS

SEC. 7029. (a) EVALUATIONS.—The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to use the voice of the United States to encourage such institution to adopt and implement a publicly available policy, including the strategic use of peer reviews and external experts, to conduct independent, in-depth evaluations of the effectiveness of at least 25 percent of all loans, grants, programs, and significant analytical non-lending activities in advancing the institution's goals of reducing poverty and promoting equitable economic growth, consistent with relevant safeguards, to ensure that decisions to support such loans, grants, programs, and activities are based on accurate data and objective analysis.

(b) SAFEGUARDS.—

(1) STANDARD.—The Secretary of the Treasury shall instruct the United States Executive Director of the International Bank for Reconstruction and Development and the International Development Association to use the voice and vote of the United States to oppose any loan, grant, policy, or strategy if such institution has adopted and is implementing any social or environmental safeguard relevant to such loan, grant, policy, or strategy that provides less protection than World Bank safeguards in effect on September 30, 2015.

(2) ACCOUNTABILITY, STANDARDS, AND BEST PRACTICES.—The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to use the voice and vote of the United States to oppose loans or other financing for projects unless such projects—

(A) provide for accountability and transparency, including the collection, verification, and publication of beneficial ownership information related to extractive industries and onsite monitoring during the life of the project;

(B) will be developed and carried out in accordance with best practices regarding environmental conservation, cultural protection, and empowerment of local populations, including free, prior and informed consent of affected indigenous communities;

(C) do not provide incentives for, or facilitate, forced displacement or the violation of human rights; and

(D) do not partner with or otherwise involve enterprises owned or controlled by the armed forces.

(c) COMPENSATION.—None of the funds appropriated under title V of this Act may be made as payment to any international financial institution while the United States executive director to such institution is compensated by the institution at a rate which, together with whatever compensation such executive director receives from the United States, is in excess of the rate provided for an individual occupying a position at level IV of the Executive Schedule under section 5315 of title 5, United States Code, or while any alternate United States executive director to such institution is compensated by the institution at a rate in excess of the rate provided for an individual occupying a position at level V of the Executive Schedule under section 5316 of title 5, United States Code.

(d) HUMAN RIGHTS.—The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to use the voice and vote of the United States to promote human rights due diligence and risk management, as appropriate, in connection with any loan, grant, policy, or strategy of such institution in accordance with the requirements specified under this subsection in the report accompanying this Act: Provided, That prior to voting on any such loan, grant, policy, or strategy the executive director shall consult with the Assistant Secretary for Democracy, Human Rights, and Labor, Department of State, if the executive director has reason to believe that such loan, grant, policy, or strategy could result in forced displacement or other violation of human rights.

(e) FRAUD AND CORRUPTION.—The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to use the voice of the United States to include in loan, grant, and other financing agreements improvements in borrowing countries' financial management and judicial capacity to investigate, prosecute, and punish fraud and corruption.

(f) BENEFICIAL OWNERSHIP INFORMATION.—The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to use the voice of the United States to encourage such institution to collect, verify, and publish, to the maximum extent practicable, beneficial ownership information (excluding proprietary information) for any corporation or limited liability company, other than a publicly listed company, that receives funds from any such financial institution.

(g) WHISTLEBLOWER PROTECTIONS.—The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to use the voice of the United States to encourage each such institution to effectively implement and enforce policies and procedures which meet or exceed best practices in the United States for the protection of whistleblowers from retaliation, including the policies and procedures detailed under this section in the report accompanying this Act.

RESCISSIONS

(INCLUDING RESCISSION OF FUNDS)

SEC. 7030. (a) Of the unobligated balances available under the heading ''Economic Support Fund'', from prior Acts making appropriations for the Department of State, foreign operations, and related programs, $45,000,000 are rescinded.

(b) Of the unobligated balances available under the heading ''International Narcotics Control and Law Enforcement'', from prior Acts making appropriations for the Department of

State, foreign operations, and related programs, $30,000,000 are rescinded.

(c) For the purposes of this section, no amounts may be rescinded from amounts that were designated by Congress as an emergency requirement or for Overseas Contingency Operations/Global War on Terrorism pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

FINANCIAL MANAGEMENT AND BUDGET TRANSPARENCY

SEC. 7031. (a) LIMITATION ON DIRECT GOVERNMENT-TO-GOVERNMENT ASSISTANCE.—

(1) REQUIREMENTS.—Funds appropriated by this Act may be made available for direct government-to-government assistance only if the requirements included in section 7031(a)(1)(A) through (E) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2019 (division F of Public Law 116–6) are fully met.

(2) CONSULTATION AND NOTIFICATION.—In addition to the requirements in paragraph (1), funds may only be made available for direct government-to-government assistance subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: Provided, That the requirements of this paragraph shall only apply to direct government-to-government assistance in excess of $10,000,000 and all funds available for cash transfer, budget support, and cash payments to individuals.

(3) SUSPENSION OF ASSISTANCE.—The Administrator of the United States Agency for International Development or the Secretary of State, as appropriate, shall suspend any direct government-to-government assistance if the Administrator or the Secretary has credible information of material misuse of such assistance, unless the Administrator or the Secretary reports to the Committees on Appropriations that it is in the national interest of the United States to continue such assistance, including a justification, or that such misuse has been appropriately addressed.

(4) SUBMISSION OF INFORMATION.—The Secretary of State shall submit to the Committees on Appropriations, concurrent with the fiscal year 2022 congressional budget justification materials, amounts planned for assistance described in paragraph (1) by country, proposed funding amount, source of funds, and type of assistance.

(5) DEBT SERVICE PAYMENT PROHIBITION.—None of the funds made available by this Act may be used by the government of any foreign country for debt service payments owed by any country to any international financial institution.

(b) NATIONAL BUDGET AND CONTRACT TRANSPARENCY.—

(1) MINIMUM REQUIREMENTS OF FISCAL TRANSPARENCY.—The Secretary of State shall continue to update and strengthen the ''minimum requirements of fiscal transparency'' for each government receiving assistance appropriated by this Act, as identified in the report required by section 7031(b) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2014 (division K of Public Law 113–76).

(2) DETERMINATION AND REPORT.—For each government identified pursuant to paragraph (1), the Secretary of State, not later than 180 days after enactment of this Act, shall make or update any determination of ''significant progress'' or ''no significant progress'' in meeting the minimum requirements of fiscal transparency, and make such determinations publicly available in an annual ''Fiscal Transparency Report'' to be posted on the Department of State website: Provided, That such report shall include the elements included in the report accompanying this Act.

(3) ASSISTANCE.—Not less than $5,000,000 of the funds appropriated by this Act under the heading ''Economic Support Fund'' shall be made available for programs and activities to assist governments identified pursuant to paragraph (1) to improve budget transparency and to support civil society organizations in such countries that promote budget transparency.

(c) ANTI-KLEPTOCRACY AND HUMAN RIGHTS.—

(1) INELIGIBILITY.—

(A) Officials of foreign governments and their immediate family members about whom the Secretary of State has credible information have been involved, directly or indirectly, in significant corruption, including corruption related to the extraction of natural resources, or a gross violation of human rights shall be ineligible for entry into the United States.

(B) The Secretary shall also publicly or privately designate or identify the officials of foreign governments and their immediate family members about whom the Secretary has such credible information without regard to whether the individual has applied for a visa.

(2) EXCEPTION.—Individuals shall not be ineligible for entry into the United States pursuant to paragraph (1) if such entry would further important United States law enforcement objectives or is necessary to permit the United States to fulfill its obligations under the United Nations Headquarters Agreement: Provided, That nothing in paragraph (1) shall be construed to derogate from United States Government obligations under applicable international agreements.

(3) WAIVER.—The Secretary may waive the application of paragraph (1) if the Secretary determines that the waiver would serve a compelling national interest or that the circumstances which caused the individual to be ineligible have changed sufficiently.

(4) REPORT.—Not later than 30 days after enactment of this Act, and every 90 days thereafter until September 30, 2021, the Secretary of State shall submit a report, including a classified annex if necessary, to the appropriate congressional committees and the Committees on the Judiciary describing the information related to corruption or violation of human rights concerning each of the individuals found ineligible in the previous 12 months pursuant to paragraph (1)(A) as well as the individuals who the Secretary designated or identified pursuant to paragraph (1)(B), or who would be ineligible but for the application of paragraph (2), a list of any waivers provided under paragraph (3), and the justification for each waiver.

(5) CLARIFICATION.—For purposes of paragraphs (1), (4), and (5), the records of the Department of State and of diplomatic and consular offices of the United States pertaining to the issuance or refusal of visas or permits to enter the United States shall not be considered confidential.

(d) EXTRACTION OF NATURAL RESOURCES.—

(1) ASSISTANCE.—Funds appropriated by this Act shall be made available to promote and support transparency and accountability of expenditures and revenues related to the extraction of natural resources, including by strengthening implementation and monitoring of the Extractive Industries Transparency Initiative, implementing and enforcing section 8204 of the Food, Conservation, and Energy Act of 2008 (Public Law 110–246; 122 Stat. 2052) and the amendments made by such section, and to prevent the sale of conflict diamonds, and provide technical assistance to promote independent audit mechanisms and support civil society participation in natural resource management.

(2) PUBLIC DISCLOSURE AND INDEPENDENT AUDITS.—(A) The Secretary of the Treasury shall instruct the executive director of each international financial institution that it is the policy of the United States to use the voice and vote of the United States to oppose any assistance by such institutions (including any loan, credit, grant, or guarantee) to any country for the extraction and export of a natural resource if the government of such country has in place laws, regulations, or procedures to prevent or limit the public disclosure of company payments as required by United States law, and unless such government has adopted laws, regulations, or procedures in the sector in which assistance is being considered to meet the standards included under this section in the report accompanying this Act.

(B) The requirements of subparagraph (A) shall not apply to assistance for the purpose of building the capacity of such government to meet the requirements of such subparagraph.

(e) FOREIGN ASSISTANCE WEBSITE.—Funds appropriated by this Act under titles I and II, and funds made available for any independent agency in title III, as appropriate, shall be made available to support the provision of additional information on United States Government foreign assistance on the Department of State foreign assistance website: Provided, That all Federal agencies funded under this Act shall provide such information on foreign assistance, upon request and in a timely manner, to the Department of State.

DEMOCRACY PROGRAMS

SEC. 7032. (a) FUNDING.—Of the funds appropriated by this Act under the headings ''Development Assistance'', ''Economic Support Fund'', ''Democracy Fund'', ''Assistance for Europe, Eurasia and Central Asia'', and ''International Narcotics Control and Law Enforcement'', not less than $2,400,500,000 shall be made available for democracy programs.

(b) AUTHORITIES.—

(1) AVAILABILITY.—Funds made available by this Act for democracy programs pursuant to subsection (a) and under the heading ''National Endowment for Democracy'' may be made available notwithstanding any other provision of law, and with regard to the National Endowment for Democracy (NED), any regulation.

(2) BENEFICIARIES.—Funds made available by this Act for the NED are made available pursuant to the authority of the National Endowment for Democracy Act (title V of Public Law 98–164), including all decisions regarding the selection of beneficiaries.

(c) DEFINITION OF DEMOCRACY PROGRAMS.—For purposes of funds appropriated by this Act, the term ''democracy programs'' means programs that support good governance, credible and competitive elections, freedom of expression, association, assembly, and religion, human rights, labor rights, independent media, and the rule of law, and that otherwise strengthen the capacity of democratic political parties, governments, nongovernmental organizations and institutions, and citizens to support the development of democratic states and institutions that are responsive and accountable to citizens.

(d) PROGRAM PRIORITIZATION.—Funds made available pursuant to this section that are made available for programs to strengthen government institutions shall be prioritized for those institutions that demonstrate a commitment to democracy and the rule of law.

(e) RESTRICTION ON PRIOR APPROVAL.—With respect to the provision of assistance for democracy programs in this Act, the organizations implementing such assistance, the specific nature of that assistance, and the participants in such programs shall not be subject to the prior approval by the government of any foreign country.

(f) CONTINUATION OF CURRENT PRACTICES.—USAID shall continue to implement civil society and political competition and consensus building programs abroad with funds appropriated by this Act in a manner that recognizes the unique benefits of grants and cooperative agreements in implementing such programs.

(g) INFORMING THE NATIONAL ENDOWMENT FOR DEMOCRACY.—The Assistant Secretary for Democracy, Human Rights, and Labor, Department of State, and the Assistant Administrator for Democracy, Conflict, and Humanitarian Assistance, USAID, shall regularly inform the NED of democracy programs that are planned

and supported by funds made available by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs.

(h) PROTECTION OF CIVIL SOCIETY ACTIVISTS AND JOURNALISTS.—Of the funds appropriated by this Act under the heading ''Democracy Fund'', not less than $20,000,000 shall be made available to support and protect civil society activists and journalists who have been threatened, harassed, or attacked, including journalists affiliated with the United States Agency for Global Media, consistent with the action plan submitted pursuant to, and on the same terms and conditions of, section 7032(i) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2018 (division K of Public Law 115–141).

(i) INTERNATIONAL FREEDOM OF EXPRESSION.—

(1) OPERATIONS.—Funds appropriated by this Act under the heading ''Diplomatic Programs'' shall be made available for the Bureau of Democracy, Human Rights, and Labor, Department of State, for the costs of administering programs designed to promote and defend freedom of expression and the independence of the media in countries where such freedom and independence are restricted or denied.

(2) ASSISTANCE.—Of the funds appropriated by this Act under the heading ''Democracy Fund'', not less than $10,000,000 shall be made available for programs that promote and defend freedom of expression and the independence of the media abroad: Provided, That such funds are in addition to funds otherwise made available by this Act for such purposes, and are intended to complement emergency and safety programs for civil society, including journalists and media outlets at risk: Provided further, That such funds shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

INTERNATIONAL RELIGIOUS FREEDOM

SEC. 7033. (a) INTERNATIONAL RELIGIOUS FREEDOM OFFICE.—Funds appropriated by this Act under the heading ''Diplomatic Programs'' shall be made available for the Office of International Religious Freedom, Department of State, including for support staff at not less than the amounts specified for such office in the table under such heading in the report accompanying this Act.

(b) ASSISTANCE.—Funds appropriated by this Act under the headings ''Democracy Fund'', and ''International Broadcasting Operations'' shall be made available for international religious freedom programs and funds appropriated by this Act under the headings ''International Disaster Assistance'' and ''Migration and Refugee Assistance'' shall be made available for humanitarian assistance for vulnerable and persecuted religious minorities: Provided, That funds made available by this Act under the heading ''Democracy Fund'' pursuant to this section shall be made available at not less than the amount in the table under such heading in the report accompanying this Act and shall be the responsibility of the Ambassador-at-Large for International Religious Freedom, in consultation with other relevant United States Government officials, and shall be subject to prior consultation with the Committees on Appropriations.

(c) AUTHORITY.—Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Economic Support Fund'' may be made available notwithstanding any other provision of law for assistance for ethnic and religious minorities in Iraq and Syria.

(d) DESIGNATION OF NON-STATE ACTORS.—Section 7033(e) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2017 (division J of Public Law 115–31) shall continue in effect during fiscal year 2021.

SPECIAL PROVISIONS

SEC. 7034. (a) VICTIMS OF WAR, DISPLACED CHILDREN, AND DISPLACED BURMESE.—Funds appropriated in titles III and VI of this Act that are made available for victims of war, displaced children, displaced Burmese, and to combat trafficking in persons and assist victims of such trafficking, may be made available notwithstanding any other provision of law.

(b) FORENSIC ASSISTANCE.—

(1) Of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $10,000,000 shall be made available for forensic anthropology assistance related to the exhumation and identification of victims of war crimes, crimes against humanity, and genocide, which shall be administered by the Assistant Secretary for Democracy, Human Rights, and Labor, Department of State: Provided, That such funds shall be in addition to funds made available by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs for assistance for countries.

(2) Of the funds appropriated by this Act under the heading ''International Narcotics Control and Law Enforcement'', not less than $10,000,000 shall be made available for DNA forensic technology programs to combat human trafficking in Central America and Mexico.

(c) ATROCITIES PREVENTION.—Of the funds appropriated by this Act under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'', not less than $5,000,000 shall be made available for programs to prevent atrocities, including to implement recommendations of the Atrocities Prevention Board: Provided, That funds made available pursuant to this subsection are in addition to amounts otherwise made available for such purposes: Provided further, That such funds shall be subject to the regular notification procedures of the Committees on Appropriations.

(d) WORLD FOOD PROGRAMME.—Funds managed by the Bureau for Humanitarian Assistance, United States Agency for International Development, from this or any other Act, may be made available as a general contribution to the World Food Programme, notwithstanding any other provision of law.

(e) DIRECTIVES AND AUTHORITIES.—

(1) RESEARCH AND TRAINING.—Funds appropriated by this Act under the heading ''Assistance for Europe, Eurasia and Central Asia'' shall be made available to carry out the Program for Research and Training on Eastern Europe and the Independent States of the Former Soviet Union as authorized by the Soviet-Eastern European Research and Training Act of 1983 (22 U.S.C. 4501 et seq.).

(2) GENOCIDE VICTIMS MEMORIAL SITES.—Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the headings ''Economic Support Fund'' and ''Assistance for Europe, Eurasia and Central Asia'' may be made available as contributions to establish and maintain memorial sites of genocide, subject to the regular notification procedures of the Committees on Appropriations.

(3) PRIVATE SECTOR PARTNERSHIPS.—Of the funds appropriated by this Act under the headings ''Development Assistance'' and ''Economic Support Fund'' that are made available for private sector partnerships, up to $50,000,000 may remain available until September 30, 2023: Provided, That funds made available pursuant to this paragraph may only be made available following prior consultation with the appropriate congressional committees, and the regular notification procedures of the Committees on Appropriations.

(4) ADDITIONAL AUTHORITIES.—Of the amounts made available by title I of this Act under the heading ''Diplomatic Programs'', up to $500,000 may be made available for grants pursuant to section 504 of the Foreign Relations Authorization Act, Fiscal Year 1979 (22 U.S.C. 2656d), including to facilitate collaboration with indigenous communities, and up to $1,000,000 may be made available for grants to carry out the activities of the Cultural Antiquities Task Force.

(5) INNOVATION.—The USAID Administrator may use funds appropriated by this Act under title III to make innovation incentive awards in accordance with the terms and conditions of section 7034(e)(4) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2019 (division F of Public Law 116–6): Provided, That each individual award may not exceed $100,000: Provided further, That no more than 15 such awards may be made during fiscal year 2021.

(6) EXCHANGE VISITOR PROGRAM.—None of the funds made available by this Act may be used to modify the Exchange Visitor Program administered by the Department of State to implement the Mutual Educational and Cultural Exchange Act of 1961 (Public Law 87–256; 22 U.S.C. 2451 et seq.), except through the formal rulemaking process pursuant to the Administrative Procedure Act (5 U.S.C. 551 et seq.) and notwithstanding the exceptions to such rulemaking process in such Act: Provided, That funds made available for such purpose shall only be made available after consultation with, and subject to the regular notification procedures of, the Committees on Appropriations, regarding how any proposed modification would affect the public diplomacy goals of, and the estimated economic impact on, the United States: Provided further, That such consultation shall take place not later than 30 days prior to the publication in the Federal Register of any regulatory action modifying the Exchange Visitor Program.

(7) INTERNATIONAL FAIRS AND EXPOSITIONS.—Notwithstanding section 204 of the Admiral James W. Nance and Meg Donovan Foreign Relations Authorization Act, Fiscal Years 2000 and 2001 (22 U.S.C. 2452b), funds appropriated by this Act under the heading ''Diplomatic Programs'' for this fiscal year may be made available for United States participation in international fairs and expositions abroad, including for construction and operation of United States pavilions or other major exhibits, subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations: Provided, That any such funds shall be made available on a cost matching basis from sources other than the United States Government, to the maximum extent practicable: Provided further, That funds made available pursuant to this paragraph may not be used to reimburse any participation in international fairs and expositions abroad that took place prior to the date of enactment of this Act: Provided further, That the Office of Inspector General, Department of State, shall conduct a financial and performance audit and issue a report on the use of such authority.

(8) WORLD TOURISM ORGANIZATION.—Notwithstanding any other provision of law, the President is authorized to accept the statutes of, and to maintain membership of the United States in, the United Nations World Tourism Organization, and the United States' assessed contributions to maintain such membership may be paid from funds appropriated for ''Contributions to International Organizations''.

(f) PARTNER VETTING.—Prior to initiating a partner vetting program, or making significant changes to the scope of an existing partner vetting program, the Secretary of State and USAID Administrator, as appropriate, shall consult with the Committees on Appropriations: Provided, That the Secretary and the Administrator shall provide a direct vetting option for prime awardees in any partner vetting program initiated or significantly modified after the date of enactment of this Act, unless the Secretary of State or USAID Administrator, as applicable, informs the Committees on Appropriations on a

case-by-case basis that a direct vetting option is not feasible for such program.

(g) CONTINGENCIES.—During fiscal year 2021, the President may use up to $125,000,000 under the authority of section 451 of the Foreign Assistance Act of 1961, notwithstanding any other provision of law.

(h) INTERNATIONAL CHILD ABDUCTIONS.—The Secretary of State should withhold funds appropriated under the heading ''Economic Support Fund'' and under title IV of this Act for assistance for the central government of any country that is not taking appropriate steps to comply with the Convention on the Civil Aspects of International Child Abductions, done at the Hague on October 25, 1980: Provided, That the Secretary shall report to the Committees on Appropriations within 15 days of withholding funds under this subsection.

(i) TRANSFER OF FUNDS FOR EXTRAORDINARY PROTECTION.—The Secretary of State may transfer to, and merge with, funds under the heading ''Protection of Foreign Missions and Officials'' unobligated balances of expired funds appropriated under the heading ''Diplomatic Programs'' for fiscal year 2021, except for funds designated for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985, at no later than the end of the fifth fiscal year after the last fiscal year for which such funds are available for the purposes for which appropriated: Provided, That not more than $50,000,000 may be transferred.

(j) AUTHORITY.—Funds made available by this Act under the heading ''Economic Support Fund'' to counter extremism may be made available notwithstanding any other provision of law restricting assistance to foreign countries, except sections 502B, 620A, and 620M of the Foreign Assistance Act of 1961: Provided, That the use of the authority of this subsection shall be subject to prior consultation with the appropriate congressional committees and the regular notification procedures of the Committees on Appropriations.

(k) PROTECTIONS AND REMEDIES FOR EMPLOYEES OF DIPLOMATIC MISSIONS AND INTERNATIONAL ORGANIZATIONS.—The Secretary of State shall implement section 203(a)(2) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (Public Law 110–457): Provided, That in addition to suspension on the basis of an unpaid default or final civil judgment directly or indirectly related to human trafficking against the employer or a family member assigned to an embassy, suspension on this basis should also apply to an employer or family member assigned to any diplomatic mission, or any international organization: Provided further, That the Secretary of State should assist in obtaining payment of final court judgments awarded to A–3 and G–5 visa holders, including encouraging the sending states to provide compensation directly to victims: Provided further, That the Secretary shall include in the Trafficking in Persons annual report a concise summary of each trafficking case involving an A–3 or G–5 visa holder that meets one or more of the following criteria: (1) a final court judgment (including a default judgment) issued against a current or former employee of such diplomatic mission or international organization; (2) the issuance of a T-visa to the victim; or (3) a request by the Department of State to the sending state that immunity of individual diplomats or family members be waived to permit criminal prosecution.

(l) EXTENSION OF AUTHORITIES.—

(1) PASSPORT FEES.—Section 1(b)(2) of the Passport Act of June 4, 1920 (22 U.S.C. 214(b)(2)) shall be applied by substituting ''September 30, 2021'' for ''September 30, 2010''.

(2) INCENTIVES FOR CRITICAL POSTS.—The authority contained in section 1115(d) of the Supplemental Appropriations Act, 2009 (Public Law 111–32) shall remain in effect through September 30, 2021.

(3) USAID CIVIL SERVICE ANNUITANT WAIVER.—Section 625(j)(1) of the Foreign Assistance Act of 1961 (22 U.S.C. 2385(j)(1)) shall be applied by substituting ''September 30, 2021'' for ''October 1, 2010'' in subparagraph (B).

(4) OVERSEAS PAY COMPARABILITY AND LIMITATION.—

(A) Subject to the limitation described in subparagraph (B), the authority provided by section 1113 of the Supplemental Appropriations Act, 2009 (Public Law 111–32) shall remain in effect through September 30, 2021.

(B) The authority described in subparagraph (A) may not be used to pay an eligible member of the Foreign Service (as defined in section 1113(b) of the Supplemental Appropriations Act, 2009 (Public Law 111–32)) a locality-based comparability payment (stated as a percentage) that exceeds two-thirds of the amount of the locality-based comparability payment (stated as a percentage) that would be payable to such member under section 5304 of title 5, United States Code, if such member's official duty station were in the District of Columbia.

(5) CATEGORICAL ELIGIBILITY.—The Foreign Operations, Export Financing, and Related Programs Appropriations Act, 1990 (Public Law 101–167) is amended—

(A) in section 599D (8 U.S.C. 1157 note)—

(i) in subsection (b)(3), by striking ''and 2020'' and inserting ''2020, and 2021''; and

(ii) in subsection (e), by striking ''2020'' each place it appears and inserting ''2021''; and

(B) in section 599E(b)(2) (8 U.S.C. 1255 note), by striking ''2020'' and inserting ''2021''.

(6) INSPECTOR GENERAL ANNUITANT WAIVER.—The authorities provided in section 1015(b) of the Supplemental Appropriations Act, 2010 (Public Law 111–212) shall remain in effect through September 30, 2021, and may be used to facilitate the assignment of persons for oversight of programs in Syria, South Sudan, Yemen, Somalia, and Venezuela.

(7) ACCOUNTABILITY REVIEW BOARDS.—The authority provided by section 301(a)(3) of the Omnibus Diplomatic Security and Antiterrorism Act of 1986 (22 U.S.C. 4831(a)(3)) shall remain in effect for facilities in Afghanistan through September 30, 2021, except that the notification and reporting requirements contained in such section shall include the Committees on Appropriations.

(8) SPECIAL INSPECTOR GENERAL FOR AFGHANISTAN RECONSTRUCTION COMPETITIVE STATUS.—Notwithstanding any other provision of law, any employee of the Special Inspector General for Afghanistan Reconstruction (SIGAR) who completes at least 12 months of continuous service after enactment of this Act or who is employed on the date on which SIGAR terminates, whichever occurs first, shall acquire competitive status for appointment to any position in the competitive service for which the employee possesses the required qualifications.

(9) TRANSFER OF BALANCES.—Section 7081(h) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2017 (division J of Public Law 115–31) shall continue in effect during fiscal year 2021.

(10) DEPARTMENT OF STATE INSPECTOR GENERAL WAIVER AUTHORITY.—The Inspector General of the Department of State may waive the provisions of subsections (a) through (d) of section 824 of the Foreign Service Act of 1980 (22 U.S.C. 4064) on a case-by-case basis for an annuitant reemployed by the Inspector General on a temporary basis, subject to the same constraints and in the same manner by which the Secretary of State may exercise such waiver authority pursuant to subsection (g) of such section.

(11) AFGHAN ALLIES.—Section 602(b)(3)(F) of the Afghan Allies Protection Act of 2009 (8 U.S.C. 1101 note) is amended—

(A) in the heading, by striking ''2015 THROUGH 2020'' and inserting ''2015 THROUGH 2021'';

(B) in the matter preceding clause (i), by striking ''22,500'' and inserting ''26,500''; and

(C) in clauses (i) and (ii), by striking ''December 31, 2021'' and inserting ''December 31, 2022''.

(m) MONITORING AND EVALUATION.—Funds appropriated by this Act that are made available for monitoring and evaluation of assistance under the headings ''Development Assistance'', ''International Disaster Assistance'', and ''Migration and Refugee Assistance'' shall, as appropriate, be made available for the regular collection of feedback obtained directly from beneficiaries to enhance the quality and relevance of such assistance: Provided, That the Department of State and USAID shall establish, and post on their respective websites, updated procedures for implementing partners that receive funds under such headings for regularly collecting and responding to such feedback, including guidelines for the reporting on actions taken in response to the feedback received: Provided further, That the Department of State and USAID shall regularly conduct oversight to ensure that such feedback is regularly collected and used by implementing partners to maximize the cost-effectiveness and utility of such assistance.

(n) LOANS, CONSULTATION, AND NOTIFICATION.—

(1) LOAN GUARANTEES.—Funds appropriated under the headings ''Economic Support Fund'' and ''Assistance for Europe, Eurasia and Central Asia'' by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for the costs, as defined in section 502 of the Congressional Budget Act of 1974, of loan guarantees for Egypt, Jordan, Tunisia, and Ukraine, which are authorized to be provided: Provided, That amounts made available under this paragraph for the costs of such guarantees shall not be considered assistance for the purposes of provisions of law limiting assistance to a country.

(2) DESIGNATION REQUIREMENT.—Funds made available pursuant to paragraph (1) from prior Acts making appropriations for the Department of State, foreign operations, and related programs that were previously designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of such Act.

(3) CONSULTATION AND NOTIFICATION.—Funds made available pursuant to the authorities of this subsection shall be subject to prior consultation with the appropriate congressional committees and the regular notification procedures of the Committees on Appropriations.

(o) LOCAL WORKS.—

(1) FUNDING.—Of the funds appropriated by this Act under the headings ''Development Assistance'' and ''Economic Support Fund'', not less than $50,000,000 shall be made available for Local Works pursuant to section 7080 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2015 (division J of Public Law 113–235), which may remain available until September 30, 2025.

(2) ELIGIBLE ENTITIES.—For the purposes of section 7080 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2015 (division J of Public Law 113–235), ''eligible entities'' shall be defined as small local, international, and United States-based nongovernmental organizations, educational institutions, and other small entities that have received less than a total of $5,000,000 from USAID over the previous 5 fiscal years: Provided, That departments or centers of such educational institutions may be considered individually in determining such eligibility.

(p) DEFINITIONS.—

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—Unless otherwise defined in this Act, for purposes of this Act the term ''appropriate congressional committees'' means the Committees on Appropriations and Foreign Relations of the

Senate and the Committees on Appropriations and Foreign Affairs of the House of Representatives.

(2) FUNDS APPROPRIATED BY THIS ACT AND PRIOR ACTS.—Unless otherwise defined in this Act, for purposes of this Act the term ''funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs'' means funds that remain available for obligation, and have not expired.

(3) INTERNATIONAL FINANCIAL INSTITUTIONS.—In this Act ''international financial institutions'' means the International Bank for Reconstruction and Development, the International Development Association, the International Finance Corporation, the Inter-American Development Bank, the International Monetary Fund, the International Fund for Agricultural Development, the Asian Development Bank, the Asian Development Fund, the Inter-American Investment Corporation, the North American Development Bank, the European Bank for Reconstruction and Development, the African Development Bank, the African Development Fund, and the Multilateral Investment Guarantee Agency.

(4) USAID.—In this Act, the term ''USAID'' means the United States Agency for International Development.

(5) SPEND PLAN.—In this Act, the term ''spend plan'' means a plan for the uses of funds appropriated for a particular entity, country, program, purpose, or account and which shall include, at a minimum, a description of—

(A) realistic and sustainable goals, criteria for measuring progress, and a timeline for achieving such goals;

(B) amounts and sources of funds by account;

(C) how such funds will complement other ongoing or planned programs; and

(D) implementing partners, to the maximum extent practicable.

(6) SUCCESSOR OPERATING UNIT.—Any reference to a particular USAID operating unit or office in this or prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be deemed to include any successor operating unit or office performing the same or similar functions.

(7) THIS ACT.—Except as expressly provided otherwise, any reference to ''this Act'' contained in titles I through VIII shall be treated as referring only to the provisions of such titles.

LAW ENFORCEMENT AND SECURITY

SEC. 7035. (a) ASSISTANCE.—

(1) COMMUNITY-BASED POLICE ASSISTANCE.—Funds made available under titles III and IV of this Act to carry out the provisions of chapter 1 of part I and chapters 4 and 6 of part II of the Foreign Assistance Act of 1961, may be used, notwithstanding section 660 of that Act, to enhance the effectiveness and accountability of civilian police authority through training and technical assistance in human rights, the rule of law, anti-corruption, strategic planning, and through assistance to foster civilian police roles that support democratic governance, including assistance for programs to prevent conflict, respond to disasters, address gender-based violence, and foster improved police relations with the communities they serve.

(2) COUNTERTERRORISM PARTNERSHIPS FUND.—Funds appropriated by this Act under the heading ''Nonproliferation, Anti-terrorism, Demining and Related Programs'' shall be made available for the Counterterrorism Partnerships Fund for programs in areas liberated from, under the influence of, or adversely affected by, the Islamic State of Iraq and Syria or other terrorist organizations: Provided, That such areas shall include the Kurdistan Region of Iraq: Provided further, That prior to the obligation of funds made available pursuant to this paragraph, the Secretary of State shall take all practicable steps to ensure that mechanisms are in place for monitoring, oversight, and control of such funds: Provided further, That funds made available pursuant to this paragraph shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

(3) COMBAT CASUALTY CARE.—

(A) Consistent with the objectives of the Foreign Assistance Act of 1961 and the Arms Export Control Act, funds appropriated by this Act under the headings ''Peacekeeping Operations'' and ''Foreign Military Financing Program'' shall be made available for combat casualty training and equipment.

(B) The Secretary of State shall offer combat casualty care training and equipment as a component of any package of lethal assistance funded by this Act with funds appropriated under the headings ''Peacekeeping Operations'' and ''Foreign Military Financing Program'': Provided, That the requirement of this subparagraph shall apply to a country in conflict, unless the Secretary determines that such country has in place, to the maximum extent practicable, functioning combat casualty care treatment and equipment that meets or exceeds the standards recommended by the Committee on Tactical Combat Casualty Care: Provided further, That any such training and equipment for combat casualty care shall be made available through an open and competitive process.

(4) TRAINING RELATED TO INTERNATIONAL HUMANITARIAN LAW.—The Secretary of State shall offer training related to the requirements of international humanitarian law as a component of any package of lethal assistance funded by this Act with funds appropriated under the headings ''Peacekeeping Operations'' and ''Foreign Military Financing Program'': Provided, That the requirement of this paragraph shall not apply to a country that is a member of the North Atlantic Treaty Organization (NATO), is a major non-NATO ally designated by section 517(b) of the Foreign Assistance Act of 1961, or is complying with international humanitarian law: Provided further, That any such training shall be made available through an open and competitive process.

(5) SECURITY FORCE PROFESSIONALIZATION.—Funds appropriated by this Act under the headings ''International Narcotics Control and Law Enforcement'' and ''Peacekeeping Operations'' shall be made available to increase the capacity of foreign military and law enforcement personnel to operate in accordance with appropriate standards relating to human rights and the protection of civilians, following consultation with the Committees on Appropriations: Provided, That funds made available pursuant to this paragraph shall be made available through an open and competitive process.

(6) GLOBAL SECURITY CONTINGENCY FUND.—Notwithstanding any other provision of this Act, up to $7,500,000 from funds appropriated by this Act under the headings ''Peacekeeping Operations'' and ''Foreign Military Financing Program'' may be transferred to, and merged with, funds previously made available under the heading ''Global Security Contingency Fund'', subject to the regular notification procedures of the Committees on Appropriations.

(7) INTERNATIONAL PRISON CONDITIONS.—Of the funds appropriated by this Act under the headings ''Development Assistance'', ''Economic Support Fund'', and ''International Narcotics Control and Law Enforcement'', not less than $7,500,000 shall be made available for assistance to eliminate inhumane conditions in foreign prisons and other detention facilities, notwithstanding section 660 of the Foreign Assistance Act of 1961: Provided, That the Secretary of State and the USAID Administrator shall consult with the Committees on Appropriations on the proposed uses of such funds prior to obligation and not later than 60 days after enactment of this Act: Provided further, That such funds shall be in addition to funds otherwise made available by this Act for such purpose.

(b) AUTHORITIES.—

(1) RECONSTITUTING CIVILIAN POLICE AUTHORITY.—In providing assistance with funds appropriated by this Act under section 660(b)(6) of the Foreign Assistance Act of 1961, support for a nation emerging from instability may be deemed to mean support for regional, district, municipal, or other sub-national entity emerging from instability, as well as a nation emerging from instability.

(2) DISARMAMENT, DEMOBILIZATION, AND REINTEGRATION.—Section 7034(d) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2015 (division J of Public Law 113–235) shall continue in effect during fiscal year 2021.

(3) EXTENSION OF WAR RESERVES STOCKPILE AUTHORITY.—

(A) Section 12001(d) of the Department of Defense Appropriations Act, 2005 (Public Law 108–287; 118 Stat. 1011) is amended by striking ''of this section'' and all that follows through the period at the end and inserting ''of this section after September 30, 2023.''.

(B) Section 514(b)(2)(A) of the Foreign Assistance Act of 1961 (22 U.S.C. 2321h(b)(2)(A)) is amended by striking ''and 2021'' and inserting ''2021, 2022, and 2023''.

(4) COMMERCIAL LEASING OF DEFENSE ARTICLES.—Notwithstanding any other provision of law, and subject to the regular notification procedures of the Committees on Appropriations, the authority of section 23(a) of the Arms Export Control Act (22 U.S.C. 2763) may be used to provide financing to Israel, Egypt, the North Atlantic Treaty Organization (NATO), and major non-NATO allies for the procurement by leasing (including leasing with an option to purchase) of defense articles from United States commercial suppliers, not including Major Defense Equipment (other than helicopters and other types of aircraft having possible civilian application), if the President determines that there are compelling foreign policy or national security reasons for those defense articles being provided by commercial lease rather than by government-to-government sale under such Act.

(5) SPECIAL DEFENSE ACQUISITION FUND.—Not to exceed $900,000,000 may be obligated pursuant to section 51(c)(2) of the Arms Export Control Act (22 U.S.C. 2795(c)(2)) for the purposes of the Special Defense Acquisition Fund (the Fund), to remain available for obligation until September 30, 2023: Provided, That the provision of defense articles and defense services to foreign countries or international organizations from the Fund shall be subject to the concurrence of the Secretary of State.

(6) PUBLIC DISCLOSURE.—For the purposes of funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs that are made available for assistance for units of foreign security forces, the term ''to the maximum extent practicable'' in section 620M(d)(7) of the Foreign Assistance Act of 1961 (22 U.S.C. 2378d) means that the identity of such units shall be made publicly available unless the Secretary of State, on a case-by-case basis, determines and reports to the appropriate congressional committees that non-disclosure is in the national security interest of the United States: Provided, That any such determination shall include a detailed justification, and may be submitted in classified form.

(7) DUTY TO INFORM.—If assistance to a foreign security force is provided in a manner in which the recipient unit or units cannot be identified prior to the transfer of assistance, the Secretary of State shall provide a list of units prohibited from receiving such assistance pursuant to section 620M of the Foreign Assistance Act of 1961 to the recipient government.

(c) LIMITATIONS.—

(1) CHILD SOLDIERS.—Funds appropriated by this Act should not be used to support any military training or operations that include child soldiers.

(2) LANDMINES AND CLUSTER MUNITIONS.—

(A) LANDMINES.—Notwithstanding any other provision of law, demining equipment available

to the United States Agency for International Development and the Department of State and used in support of the clearance of landmines and unexploded ordnance for humanitarian purposes may be disposed of on a grant basis in foreign countries, subject to such terms and conditions as the Secretary of State may prescribe.

(B) CLUSTER MUNITIONS.—No military assistance shall be furnished for cluster munitions, no defense export license for cluster munitions may be issued, and no cluster munitions or cluster munitions technology shall be sold or transferred, unless—

(i) the submunitions of the cluster munitions, after arming, do not result in more than 1 percent unexploded ordnance across the range of intended operational environments, and the agreement applicable to the assistance, transfer, or sale of such cluster munitions or cluster munitions technology specifies that the cluster munitions will only be used against clearly defined military targets and will not be used where civilians are known to be present or in areas normally inhabited by civilians; or

(ii) such assistance, license, sale, or transfer is for the purpose of demilitarizing or permanently disposing of such cluster munitions.

(3) CONGRESSIONAL BUDGET JUSTIFICATIONS.—Of the funds realized pursuant to section 21(e)(1)(A) of the Arms Export Control Act and made available for obligation for expenses incurred by the Department of Defense, Defense Security Cooperation Agency (DSCA) during fiscal year 2021 pursuant to section 43(b) of the Arms Export Control Act (22 U.S.C. 2792(b)), $25,000,000 shall be withheld from obligation until the DSCA, jointly with the Department of State, submits to the Committees on Appropriations the congressional budget justification for funds requested under the heading ''Foreign Military Financing Program'' for fiscal years 2021 and 2022, including the accompanying classified appendices.

(4) CROWD CONTROL ITEMS.—Funds appropriated by this Act should not be used for tear gas, small arms, light weapons, ammunition, or other items for crowd control purposes for foreign security forces that use excessive force to repress peaceful expression, association, or assembly in countries that the Secretary of State determines are undemocratic or are undergoing democratic transitions.

(d) REPORTS.—

(1) SECURITY ASSISTANCE REPORT.—Not later than 120 days after enactment of this Act, the Secretary of State shall submit to the Committees on Appropriations a report on funds obligated and expended during fiscal year 2020, by country and purpose of assistance, under the headings ''Peacekeeping Operations'', ''International Military Education and Training'', and ''Foreign Military Financing Program''.

(2) ANNUAL FOREIGN MILITARY TRAINING REPORT.—For the purposes of implementing section 656 of the Foreign Assistance Act of 1961, the term ''military training provided to foreign military personnel by the Department of Defense and the Department of State'' shall be deemed to include all military training provided by foreign governments with funds appropriated to the Department of Defense or the Department of State, except for training provided by the government of a country designated by section 517(b) of such Act (22 U.S.C. 2321k(b)) as a major non-North Atlantic Treaty Organization ally.

ARAB LEAGUE BOYCOTT OF ISRAEL

SEC. 7036. It is the sense of the Congress that—

(1) the Arab League boycott of Israel, and the secondary boycott of American firms that have commercial ties with Israel, is an impediment to peace in the region and to United States investment and trade in the Middle East and North Africa;

(2) the Arab League boycott, which was regrettably reinstated in 1997, should be immediately and publicly terminated, and the Central Office for the Boycott of Israel immediately disbanded;

(3) all Arab League states should normalize relations with their neighbor Israel;

(4) the President and the Secretary of State should continue to vigorously oppose the Arab League boycott of Israel and find concrete steps to demonstrate that opposition by, for example, taking into consideration the participation of any recipient country in the boycott when determining to sell weapons to said country; and

(5) the President should report to Congress annually on specific steps being taken by the United States to encourage Arab League states to normalize their relations with Israel to bring about the termination of the Arab League boycott of Israel, including those to encourage allies and trading partners of the United States to enact laws prohibiting businesses from complying with the boycott and penalizing businesses that do comply.

PALESTINIAN STATEHOOD

SEC. 7037. (a) LIMITATION ON ASSISTANCE.—None of the funds appropriated under titles III through VI of this Act may be provided to support a Palestinian state unless the Secretary of State determines and certifies to the appropriate congressional committees that—

(1) the governing entity of a new Palestinian state—

(A) has demonstrated a firm commitment to peaceful co-existence with the State of Israel; and

(B) is taking appropriate measures to counter terrorism and terrorist financing in the West Bank and Gaza, including the dismantling of terrorist infrastructures, and is cooperating with appropriate Israeli and other appropriate security organizations; and

(2) the Palestinian Authority (or the governing entity of a new Palestinian state) is working with other countries in the region to vigorously pursue efforts to establish a just, lasting, and comprehensive peace in the Middle East that will enable Israel and an independent Palestinian state to exist within the context of full and normal relationships, which should include—

(A) termination of all claims or states of belligerency;

(B) respect for and acknowledgment of the sovereignty, territorial integrity, and political independence of every state in the area through measures including the establishment of demilitarized zones;

(C) their right to live in peace within secure and recognized boundaries free from threats or acts of force;

(D) freedom of navigation through international waterways in the area; and

(E) a framework for achieving a just settlement of the refugee problem.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the governing entity should enact a constitution assuring the rule of law, an independent judiciary, and respect for human rights for its citizens, and should enact other laws and regulations assuring transparent and accountable governance.

(c) WAIVER.—The President may waive subsection (a) if the President determines that it is important to the national security interest of the United States to do so.

(d) EXEMPTION.—The restriction in subsection (a) shall not apply to assistance intended to help reform the Palestinian Authority and affiliated institutions, or the governing entity, in order to help meet the requirements of subsection (a), consistent with the provisions of section 7040 of this Act (''Limitation on Assistance for the Palestinian Authority'').

PROHIBITION ON ASSISTANCE TO THE PALESTINIAN BROADCASTING CORPORATION

SEC. 7038. None of the funds appropriated or otherwise made available by this Act may be used to provide equipment, technical support, consulting services, or any other form of assistance to the Palestinian Broadcasting Corporation.

ASSISTANCE FOR THE WEST BANK AND GAZA

SEC. 7039. (a) OVERSIGHT.—For fiscal year 2021, 30 days prior to the initial obligation of funds for the bilateral West Bank and Gaza Program, the Secretary of State shall certify to the Committees on Appropriations that procedures have been established to assure the Comptroller General of the United States will have access to appropriate United States financial information in order to review the uses of United States assistance for the Program funded under the heading ''Economic Support Fund'' for the West Bank and Gaza.

(b) VETTING.—Prior to the obligation of funds appropriated by this Act under the heading ''Economic Support Fund'' for assistance for the West Bank and Gaza, the Secretary of State shall take all appropriate steps to ensure that such assistance is not provided to or through any individual, private or government entity, or educational institution that the Secretary knows or has reason to believe advocates, plans, sponsors, engages in, or has engaged in, terrorist activity nor, with respect to private entities or educational institutions, those that have as a principal officer of the entity's governing board or governing board of trustees any individual that has been determined to be involved in, or advocating terrorist activity or determined to be a member of a designated foreign terrorist organization: Provided, That the Secretary of State shall, as appropriate, establish procedures specifying the steps to be taken in carrying out this subsection and shall terminate assistance to any individual, entity, or educational institution which the Secretary has determined to be involved in or advocating terrorist activity.

(c) PROHIBITION.—

(1) RECOGNITION OF ACTS OF TERRORISM.—None of the funds appropriated under titles III through VI of this Act for assistance under the West Bank and Gaza Program may be made available for—

(A) the purpose of recognizing or otherwise honoring individuals who commit, or have committed acts of terrorism; and

(B) any educational institution located in the West Bank or Gaza that is named after an individual who the Secretary of State determines has committed an act of terrorism.

(2) SECURITY ASSISTANCE AND REPORTING REQUIREMENT.—Notwithstanding any other provision of law, none of the funds made available by this or prior appropriations Acts, including funds made available by transfer, may be made available for obligation for security assistance for the West Bank and Gaza until the Secretary of State reports to the Committees on Appropriations on the benchmarks that have been established for security assistance for the West Bank and Gaza and reports on the extent of Palestinian compliance with such benchmarks.

(d) OVERSIGHT BY THE UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT.—

(1) The Administrator of the United States Agency for International Development shall ensure that Federal or non-Federal audits of all contractors and grantees, and significant subcontractors and sub-grantees, under the West Bank and Gaza Program, are conducted at least on an annual basis to ensure, among other things, compliance with this section.

(2) Of the funds appropriated by this Act, up to $1,000,000 may be used by the Office of Inspector General of the United States Agency for International Development for audits, investigations, and other activities in furtherance of the requirements of this subsection: Provided, That such funds are in addition to funds otherwise available for such purposes.

(e) COMPTROLLER GENERAL OF THE UNITED STATES AUDIT.—Subsequent to the certification specified in subsection (a), the Comptroller General of the United States shall conduct an audit

and an investigation of the treatment, handling, and uses of all funds for the bilateral West Bank and Gaza Program, including all funds provided as cash transfer assistance, in fiscal year 2021 under the heading ''Economic Support Fund'', and such audit shall address—

(1) the extent to which such Program complies with the requirements of subsections (b) and (c); and

(2) an examination of all programs, projects, and activities carried out under such Program, including both obligations and expenditures.

(f) NOTIFICATION PROCEDURES.—Funds made available in this Act for West Bank and Gaza shall be subject to the regular notification procedures of the Committees on Appropriations.

LIMITATION ON ASSISTANCE FOR THE PALESTINIAN AUTHORITY

SEC. 7040. (a) PROHIBITION OF FUNDS.—None of the funds appropriated by this Act to carry out the provisions of chapter 4 of part II of the Foreign Assistance Act of 1961 may be obligated or expended with respect to providing funds to the Palestinian Authority.

(b) WAIVER.—The prohibition included in subsection (a) shall not apply if the President certifies in writing to the Speaker of the House of Representatives, the President pro tempore of the Senate, and the Committees on Appropriations that waiving such prohibition is important to the national security interest of the United States.

(c) PERIOD OF APPLICATION OF WAIVER.—Any waiver pursuant to subsection (b) shall be effective for no more than a period of 6 months at a time and shall not apply beyond 12 months after the enactment of this Act.

(d) REPORT.—Whenever the waiver authority pursuant to subsection (b) is exercised, the President shall submit a report to the Committees on Appropriations detailing the justification for the waiver, the purposes for which the funds will be spent, and the accounting procedures in place to ensure that the funds are properly disbursed: Provided, That the report shall also detail the steps the Palestinian Authority has taken to arrest terrorists, confiscate weapons and dismantle the terrorist infrastructure.

(e) CERTIFICATION.—If the President exercises the waiver authority under subsection (b), the Secretary of State must certify and report to the Committees on Appropriations prior to the obligation of funds that the Palestinian Authority has established a single treasury account for all Palestinian Authority financing and all financing mechanisms flow through this account, no parallel financing mechanisms exist outside of the Palestinian Authority treasury account, and there is a single comprehensive civil service roster and payroll, and the Palestinian Authority is acting to counter incitement of violence against Israelis and is supporting activities aimed at promoting peace, coexistence, and security cooperation with Israel.

(f) PROHIBITION TO HAMAS AND THE PALESTINE LIBERATION ORGANIZATION.—

(1) None of the funds appropriated in titles III through VI of this Act may be obligated for salaries of personnel of the Palestinian Authority located in Gaza or may be obligated or expended for assistance to Hamas or any entity effectively controlled by Hamas, any power-sharing government of which Hamas is a member, or that results from an agreement with Hamas and over which Hamas exercises undue influence.

(2) Notwithstanding the limitation of paragraph (1), assistance may be provided to a power-sharing government only if the President certifies and reports to the Committees on Appropriations that such government, including all of its ministers or such equivalent, has publicly accepted and is complying with the principles contained in section 620K(b)(1) (A) and (B) of the Foreign Assistance Act of 1961, as amended.

(3) The President may exercise the authority in section 620K(e) of the Foreign Assistance Act of 1961, as added by the Palestinian Anti-Terrorism Act of 2006 (Public Law 109–446) with respect to this subsection.

(4) Whenever the certification pursuant to paragraph (2) is exercised, the Secretary of State shall submit a report to the Committees on Appropriations within 120 days of the certification and every quarter thereafter on whether such government, including all of its ministers or such equivalent are continuing to comply with the principles contained in section 620K(b)(1) (A) and (B) of the Foreign Assistance Act of 1961, as amended: Provided, That the report shall also detail the amount, purposes and delivery mechanisms for any assistance provided pursuant to the abovementioned certification and a full accounting of any direct support of such government.

(5) None of the funds appropriated under titles III through VI of this Act may be obligated for assistance for the Palestine Liberation Organization.

MIDDLE EAST AND NORTH AFRICA

SEC. 7041. (a) EGYPT.—

(1) CERTIFICATION AND REPORT.—Funds appropriated by this Act that are available for assistance for Egypt may be made available notwithstanding any other provision of law restricting assistance for Egypt, except for this subsection and section 620M of the Foreign Assistance Act of 1961, and may only be made available for assistance for the Government of Egypt if the Secretary of State certifies and reports to the Committees on Appropriations that such government is—

(A) sustaining the strategic relationship with the United States; and

(B) meeting its obligations under the 1979 Egypt-Israel Peace Treaty.

(2) ECONOMIC SUPPORT FUND.—Of the funds appropriated by this Act under the heading ''Economic Support Fund'', up to $125,000,000 may be made available for assistance for Egypt, of which up to $40,000,000 should be made available for higher education programs, including $15,000,000 for scholarships for Egyptian students with high financial need to attend not-for-profit institutions of higher education in Egypt that are currently accredited by a regional accrediting agency recognized by the United States Department of Education, or meets standards equivalent to those required for United States institutional accreditation by a regional accrediting agency recognized by such Department: Provided, That such funds shall be made available for democracy programs, and for development programs in the Sinai: Provided further, That such funds may not be made available for cash transfer assistance or budget support unless the Secretary of State certifies and reports to the appropriate congressional committees that the Government of Egypt is taking consistent and effective steps to stabilize the economy and implement market-based economic reforms.

(3) FOREIGN MILITARY FINANCING PROGRAM.—

(A) CERTIFICATION.—Of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'', up to $1,300,000,000, to remain available until September 30, 2022, may be made available for assistance for Egypt: Provided, That such funds may be transferred to an interest bearing account in the Federal Reserve Bank of New York, following consultation with the Committees on Appropriations: Provided further, That 20 percent of such funds shall be withheld from obligation until the Secretary of State certifies and reports to the Committees on Appropriations that the Government of Egypt is taking, on a sustained and effective basis, the steps enumerated under this section in the report accompanying this Act: Provided further, That the certification requirement of this paragraph shall not apply to funds appropriated by this Act under such heading for counterterrorism, border security, and nonproliferation programs for Egypt.

(B) WAIVER.—

(i) The Secretary of State may waive the certification requirement in subparagraph (A) with respect to 95 percent of the amount withheld from obligation pursuant to such subparagraph if the Secretary determines and reports to the Committees on Appropriations that to do so is important to the national security interest of the United States, and includes in such report a detailed justification for the use of such waiver and the reasons why any of the certification requirements of subparagraph (A) cannot be met: Provided, That the report required by this paragraph shall be submitted in unclassified form, but may be accompanied by a classified annex.

(ii) The remaining 5 percent may only be made available for obligation if the Secretary of State determines and reports to the Committees on Appropriations that the Government of Egypt has completed action to provide fair and commensurate compensation to American citizen April Corley for injuries suffered by Egyptian armed forces on September 13, 2015: Provided, That none of the funds withheld pursuant to subparagraph (A) shall be transferred to the interest bearing account referenced in subparagraph (A) until the determination in the preceding sentence has been provided to the Committees on Appropriations.

(b) IRAN.—

(1) FUNDING.—Funds appropriated by this Act under the headings ''Diplomatic Programs'', ''Economic Support Fund'', and ''Nonproliferation, Anti-terrorism, Demining and Related Programs'' shall be made available for the programs and activities described under this section in the report accompanying this Act.

(2) REPORTS.—

(A) SEMI-ANNUAL REPORT.—The Secretary of State shall submit to the Committees on Appropriations the semi-annual report required by section 135(d)(4) of the Atomic Energy Act of 1954 (42 U.S.C. 2160e(d)(4)), as added by section 2 of the Iran Nuclear Agreement Review Act of 2015 (Public Law 114–17).

(B) SANCTIONS REPORT.—Not later than 180 days after the date of enactment of this Act, the Secretary of State, in consultation with the Secretary of the Treasury, shall submit to the appropriate congressional committees a report on—

(i) the status of United States bilateral sanctions on Iran;

(ii) the reimposition and renewed enforcement of secondary sanctions; and

(iii) the impact such sanctions have had on Iran's destabilizing activities throughout the Middle East.

(c) IRAQ.—

(1) PURPOSES.—Funds appropriated under titles III and IV of this Act shall be made available for assistance for Iraq for bilateral economic assistance and international security assistance, including in the Kurdistan Region of Iraq and for programs to protect and assist religious and ethnic minority populations in Iraq as described under this section in the report accompanying this Act.

(2) BASING RIGHTS AGREEMENT.—None of the funds appropriated or otherwise made available by this Act may be used by the Government of the United States to enter into a permanent basing rights agreement between the United States and Iraq.

(d) JORDAN.—Of the funds appropriated by this Act under titles III and IV, not less than $1,525,000,000 shall be made available for assistance for Jordan, of which not less than $800,000,000 of the funds appropriated under the heading ''Economic Support Fund'' shall be made available for budget support for the Government of Jordan and not less than $425,000,000 shall be made available under the heading ''Foreign Military Financing Program''.

(e) LEBANON.—

(1) ASSISTANCE.—Funds appropriated under titles III and IV of this Act shall be made available for assistance for Lebanon: Provided, That such funds made available under the heading

''Economic Support Fund'' may be made available notwithstanding section 1224 of the Foreign Relations Authorization Act, Fiscal Year 2003 (Public Law 107–228; 22 U.S.C. 2346 note).

(2) SECURITY ASSISTANCE.—

(A) Funds appropriated by this Act under the headings ''International Narcotics Control and Law Enforcement'' and ''Foreign Military Financing Program'' that are made available for assistance for Lebanon may be made available for programs and equipment for the Lebanese Internal Security Forces (ISF) and the Lebanese Armed Forces (LAF) to address security and stability requirements in areas affected by conflict in Syria, following consultation with the appropriate congressional committees.

(B) Funds appropriated by this Act under the heading ''Foreign Military Financing Program'' that are made available for assistance for Lebanon may only be made available for programs to—

(i) professionalize the LAF to mitigate internal and external threats from non-state actors, including Hizballah;

(ii) strengthen border security and combat terrorism, including training and equipping the LAF to secure the borders of Lebanon and address security and stability requirements in areas affected by conflict in Syria, interdicting arms shipments, and preventing the use of Lebanon as a safe haven for terrorist groups; and

(iii) implement United Nations Security Council Resolution 1701:

Provided, That prior to obligating funds made available by this subparagraph for assistance for the LAF, the Secretary of State shall submit to the Committees on Appropriations a spend plan, including actions to be taken to ensure equipment provided to the LAF is used only for the intended purposes, except such plan may not be considered as meeting the notification requirements under section 7015 of this Act or under section 634A of the Foreign Assistance Act of 1961, and shall be submitted not later than June 1, 2021: Provided further, That any notification submitted pursuant to such section shall include any funds specifically intended for lethal military equipment.

(3) LIMITATION.—None of the funds appropriated by this Act may be made available for the ISF or the LAF if the ISF or the LAF is controlled by a foreign terrorist organization, as designated pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189).

(f) LIBYA.—Prior to the initial obligation of funds made available by this Act for assistance for Libya, the Secretary of State shall certify and report to the Committees on Appropriations that all practicable steps have been taken to ensure that mechanisms are in place for monitoring, oversight, and control of such funds.

(g) MOROCCO.—

(1) AVAILABILITY AND CONSULTATION REQUIREMENT.—Funds appropriated under title III of this Act shall be made available for assistance for the Western Sahara: Provided, That not later than 90 days after enactment of this Act and prior to the obligation of such funds, the Secretary of State, in consultation with the Administrator of the United States Agency for International Development, shall consult with the Committees on Appropriations on the proposed uses of such funds.

(2) FOREIGN MILITARY FINANCING PROGRAM.—Funds appropriated by this Act under the heading ''Foreign Military Financing Program'' that are available for assistance for Morocco may only be used for the purposes requested in the Congressional Budget Justification, Foreign Operations, Fiscal Year 2017.

(h) SAUDI ARABIA.—None of the funds appropriated by this Act under the heading ''International Military Education and Training'' may be made available for assistance for the Government of Saudi Arabia.

(i) SYRIA.—

(1) NON-LETHAL ASSISTANCE.—Funds appropriated or otherwise made available by this Act may be made available notwithstanding any other provision of law for non-lethal stabilization assistance for Syria, including for emergency medical and rescue response and chemical weapons use investigations.

(2) LIMITATIONS.—Funds made available pursuant to paragraph (1) of this subsection—

(A) may not be made available for a project or activity that supports or otherwise legitimizes the Government of Iran, foreign terrorist organizations (as designated pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189)), or a proxy of Iran in Syria;

(B) may not be made available for activities that further the strategic objectives of the Government of the Russian Federation that may threaten or undermine United States national security interests; and

(C) should not be used in areas of Syria controlled by a government led by Bashar al-Assad or associated forces.

(3) MONITORING AND OVERSIGHT.—Prior to the obligation of any funds appropriated by this Act and made available for assistance for Syria, the Secretary of State shall take all practicable steps to ensure that mechanisms are in place for monitoring, oversight, and control of such assistance inside Syria.

(4) CONSULTATION AND NOTIFICATION.—Funds made available pursuant to this subsection may only be made available following consultation with the appropriate congressional committees, and shall be subject to the regular notification procedures of the Committees on Appropriations.

(j) TUNISIA.—Of the funds appropriated under titles III and IV of this Act, not less than $191,400,000 shall be made available for assistance for Tunisia.

(k) WEST BANK AND GAZA.—

(1) REPORT ON ASSISTANCE.—Prior to the initial obligation of funds made available by this Act under the heading ''Economic Support Fund'' for assistance for the West Bank and Gaza, the Secretary of State shall report to the Committees on Appropriations that the purpose of such assistance is to—

(A) advance Middle East peace;

(B) improve security in the region;

(C) continue support for transparent and accountable government institutions;

(D) promote a private sector economy; or

(E) address urgent humanitarian needs.

(2) LIMITATIONS.—

(A)(i) None of the funds appropriated under the heading ''Economic Support Fund'' in this Act may be made available for assistance for the Palestinian Authority, if after the date of enactment of this Act—

(I) the Palestinians obtain the same standing as member states or full membership as a state in the United Nations or any specialized agency thereof outside an agreement negotiated between Israel and the Palestinians; or

(II) the Palestinians initiate an International Criminal Court (ICC) judicially authorized investigation, or actively support such an investigation, that subjects Israeli nationals to an investigation for alleged crimes against Palestinians.

(ii) The Secretary of State may waive the restriction in clause (i) of this subparagraph resulting from the application of subclause (I) of such clause if the Secretary certifies to the Committees on Appropriations that to do so is in the national security interest of the United States, and submits a report to such Committees detailing how the waiver and the continuation of assistance would assist in furthering Middle East peace.

(B)(i) The President may waive the provisions of section 1003 of the Foreign Relations Authorization Act, Fiscal Years 1988 and 1989 (Public Law 100–204) if the President determines and certifies in writing to the Speaker of the House of Representatives, the President pro tempore of the Senate, and the appropriate congressional committees that the Palestinians have not, after the date of enactment of this Act—

(I) obtained in the United Nations or any specialized agency thereof the same standing as member states or full membership as a state outside an agreement negotiated between Israel and the Palestinians; and

(II) initiated or actively supported an ICC investigation against Israeli nationals for alleged crimes against Palestinians.

(ii) Not less than 90 days after the President is unable to make the certification pursuant to clause (i) of this subparagraph, the President may waive section 1003 of Public Law 100–204 if the President determines and certifies in writing to the Speaker of the House of Representatives, the President pro tempore of the Senate, and the Committees on Appropriations that the Palestinians have entered into direct and meaningful negotiations with Israel: Provided, That any waiver of the provisions of section 1003 of Public Law 100–204 under clause (i) of this subparagraph or under previous provisions of law must expire before the waiver under the preceding sentence may be exercised.

(iii) Any waiver pursuant to this subparagraph shall be effective for no more than a period of 6 months at a time and shall not apply beyond 12 months after the enactment of this Act.

(3) APPLICATION OF TAYLOR FORCE ACT.—Funds appropriated by this Act under the heading ''Economic Support Fund'' and made available for assistance for the West Bank and Gaza shall not be made available in contravention of section 1004(a) of the Taylor Force Act (title X of division S of Public Law 115–141).

(4) PRIVATE SECTOR PARTNERSHIP PROGRAMS.—Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for private sector partnership programs for the West Bank and Gaza if such funds are authorized: Provided, That funds made available pursuant to this paragraph shall be subject to prior consultation with the appropriate congressional committees, and the regular notification procedures of the Committees on Appropriations.

(5) SECURITY REPORT.—The reporting requirements in section 1404 of the Supplemental Appropriations Act, 2008 (Public Law 110–252) shall apply to funds made available by this Act, including a description of modifications, if any, to the security strategy of the Palestinian Authority.

(6) INCITEMENT REPORT.—Not later than 90 days after enactment of this Act, the Secretary of State shall submit a report to the appropriate congressional committees detailing steps taken by the Palestinian Authority to counter incitement of violence against Israelis and to promote peace and coexistence with Israel.

(l) YEMEN.—Funds appropriated under title III of this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be made available for global health, humanitarian, and stabilization assistance for Yemen.

AFRICA

SEC. 7042. (a) AFRICAN GREAT LAKES REGION ASSISTANCE RESTRICTION.—Funds appropriated by this Act under the heading ''International Military Education and Training'' for the central government of a country in the African Great Lakes region may be made available only for Expanded International Military Education and Training and professional military education until the Secretary of State determines and reports to the Committees on Appropriations that such government is not facilitating or otherwise participating in destabilizing activities in a neighboring country, including aiding and abetting armed groups.

(b) CAMEROON.—Funds appropriated under title IV of this Act that are made available for assistance for the armed forces of Cameroon, including the Rapid Intervention Battalion, may only be made available to counter regional terrorism, including Boko Haram and other Islamic

State affiliates, participate in international peacekeeping operations, and for military education and maritime security programs.

(c) CENTRAL AFRICAN REPUBLIC.—Of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $3,000,000 shall be made available for a contribution to the Special Criminal Court in Central African Republic.

(d) LAKE CHAD BASIN COUNTRIES.—Funds appropriated under titles III and IV of this Act shall be made available, following consultation with the Committees on Appropriations, for assistance for Cameroon, Chad, Niger, and Nigeria for—

(1) democracy, development, and health programs;

(2) assistance for individuals targeted by foreign terrorist and other extremist organizations, including Boko Haram, consistent with the provisions of section 7059 of this Act;

(3) assistance for individuals displaced by violent conflict; and

(4) counterterrorism programs.

(e) MALAWI.—Of the funds appropriated by this Act under the heading ''Development Assistance'', not less than $60,000,000 shall be made available for assistance for Malawi, of which up to $10,000,000 shall be made available for higher education programs.

(f) SOUTH SUDAN.—

(1) ASSISTANCE.—Of the funds appropriated under title III of this Act that are made available for assistance for South Sudan, not less than $15,000,000 shall be made available for democracy programs and not less than $8,000,000 shall be made available for conflict mitigation and reconciliation programs.

(2) LIMITATION ON ASSISTANCE FOR THE CENTRAL GOVERNMENT.—Funds appropriated by this Act that are made available for assistance for the central Government of South Sudan may only be made available, following consultation with the Committees on Appropriations, for—

(A) humanitarian assistance;

(B) health programs, including to prevent, detect, and respond to the Ebola virus disease;

(C) assistance to support South Sudan peace negotiations or to advance or implement a peace agreement; and

(D) assistance to support implementation of outstanding issues of the Comprehensive Peace Agreement and mutual arrangements related to such agreement:

Provided, That prior to the initial obligation of funds made available pursuant to subparagraphs (C) and (D), the Secretary of State shall consult with the Committees on Appropriations on the intended uses of such funds and steps taken by such government to advance or implement a peace agreement.

(g) SUDAN.—

(1) ASSISTANCE.—Funds appropriated by this Act under title III should be made available to support the civilian-led transition in Sudan, including for assistance for health, democracy, economic growth, agriculture, and education.

(2) LIMITATION ON LOANS.—None of the funds appropriated by this Act may be made available for the cost, as defined in section 502 of the Congressional Budget Act of 1974, of modifying loans and loan guarantees held by the Government of Sudan, including the cost of selling, reducing, or canceling amounts owed to the United States, and modifying concessional loans, guarantees, and credit agreements.

(3) CONSULTATION.—Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs that are made available for any new program or activity in Sudan shall be subject to prior consultation with the appropriate congressional committees.

(h) ZIMBABWE.—

(1) INSTRUCTION.—The Secretary of the Treasury shall instruct the United States executive director of each international financial institution to vote against any extension by the respective institution of any loan or grant to the Government of Zimbabwe, except to meet basic human needs or to promote democracy, unless the Secretary of State certifies and reports to the Committees on Appropriations that the rule of law has been restored, including respect for ownership and title to property, and freedoms of expression, association, and assembly.

(2) LIMITATION.—None of the funds appropriated by this Act shall be made available for assistance for the central Government of Zimbabwe, except for health and education, unless the Secretary of State certifies and reports as required in paragraph (1).

EAST ASIA AND THE PACIFIC

SEC. 7043. (a) BURMA.—

(1) BILATERAL ECONOMIC ASSISTANCE.—

(A) Funds appropriated under title III of this Act for assistance for Burma—

(i) may be made available notwithstanding any other provision of law, except for this subsection, and following consultation with the Committees on Appropriations;

(ii) may be made available for ethnic groups and civil society in Burma to help sustain ceasefire agreements and further prospects for reconciliation and peace, which may include support to representatives of ethnic armed groups for this purpose; and

(iii) shall be made available for programs to strengthen independent media and civil society organizations, to promote ethnic and religious tolerance, and to combat gender-based violence, including in Kachin, Karen, Rakhine, and Shan states and for the purposes enumerated under this section in the report accompanying this Act.

(B) Funds appropriated under title III of this Act for assistance for Burma shall be made available for community-based organizations operating in Thailand to provide food, medical, and other humanitarian assistance to internally displaced persons in eastern Burma, in addition to assistance for Burmese refugees from funds appropriated by this Act under the heading ''Migration and Refugee Assistance'': Provided, That such funds may be available for programs to support the return of Kachin, Karen, Rohingya, Shan, and other refugees and internally displaced persons to their locations of origin or preference in Burma only if such returns are voluntary and consistent with international law.

(C) Funds appropriated under title III of this Act for assistance for Burma that are made available for assistance for the Government of Burma to support the implementation of Nationwide Ceasefire Agreement conferences, committees, and other procedures may only be made available if the Secretary of State reports to the Committees on Appropriations that such conferences, committees, and procedures are directed toward a sustainable peace and the Government of Burma is implementing its commitments under such Agreement.

(2) INTERNATIONAL SECURITY ASSISTANCE.—None of the funds appropriated by this Act under the headings ''International Military Education and Training'' and ''Foreign Military Financing Program'' may be made available for assistance for Burma: Provided, That the Department of State may continue consultations with the armed forces of Burma only on human rights and disaster response in a manner consistent with the prior fiscal year, and following consultation with the appropriate congressional committees.

(3) LIMITATIONS.—None of the funds appropriated under title III of this Act for assistance for Burma may be made available to any organization or entity controlled by the armed forces of Burma, or to any individual or organization that has committed a gross violation of human rights or advocates violence against ethnic or religious groups or individuals in Burma, as determined by the Secretary of State for programs administered by the Department of State and USAID or the President of the National Endowment for Democracy (NED) for programs administered by NED.

(4) CONSULTATION.—Any new program or activity in Burma initiated in fiscal year 2021 shall be subject to prior consultation with the appropriate congressional committees.

(b) CAMBODIA.—

(1) ASSISTANCE.—Funds appropriated under title III of this Act, shall be made available for assistance for Cambodia.

(2) DETERMINATION AND EXCEPTIONS.—

(A) DETERMINATION.—None of the funds appropriated by this Act that are made available for assistance for the Government of Cambodia may be obligated or expended unless the Secretary of State determines and reports to the Committees on Appropriations that such Government is taking effective steps to—

(i) strengthen regional security and stability, particularly regarding territorial disputes in the South China Sea and the enforcement of international sanctions with respect to North Korea;

(ii) cease violence and harassment against civil society in Cambodia, including the political opposition, and dismiss any politically motivated criminal charges against those who criticize the government; and

(iii) respect the rights, freedoms, and responsibilities enshrined in the Constitution of the Kingdom of Cambodia as enacted in 1993.

(B) EXCEPTIONS.—The determination required by subparagraph (A) shall not apply to funds appropriated by this Act and made available for democracy, health, education, and environment programs, programs to strengthen the sovereignty of Cambodia, and programs to educate and inform the people of Cambodia of the influence efforts of the People's Republic of China in Cambodia.

(3) USES OF FUNDS.—Funds appropriated under title III of this Act for assistance for Cambodia may be made available for—

(A) research and education programs associated with the Khmer Rouge in Cambodia; and

(B) programs in the Khmer language to monitor, map, and publicize the efforts by the People's Republic of China to expand its influence in Cambodia.

(c) INDO-PACIFIC STRATEGY AND THE COUNTERING CHINESE INFLUENCE FUND.—

(1) ASSISTANCE.—Funds appropriated under titles III and IV of this Act shall be made available to support the implementation of the Indo-Pacific Strategy and the Asia Reassurance Initiative Act of 2018 (Public Law 115–409).

(2) COUNTERING CHINESE INFLUENCE FUND.—Funds appropriated by this Act under the headings ''Development Assistance'', ''Economic Support Fund'', ''International Narcotics Control and Law Enforcement'', and ''Foreign Military Financing Program'', may be made available for a Countering Chinese Influence Fund to counter the influence of the People's Republic of China globally, which shall be subject to prior consultation with the Committees on Appropriations.

(3) RESTRICTION ON USES OF FUNDS.—None of the funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs may be made available for any project or activity that directly supports or promotes—

(A) the Belt and Road Initiative or any dual-use infrastructure projects of the People's Republic of China; and

(B) the use of technology, including biotechnology, digital, telecommunications, and cyber, developed by the People's Republic of China unless the Secretary of State, in consultation with the USAID Administrator, determines that such use does not adversely impact the national security of the United States.

(d) NORTH KOREA.—

(1) REPORT.—The Secretary of State shall submit the report required by section 209 of the North Korea Sanctions and Policy Enhancement Act of 2016 (Public Law 114–122; 22 U.S.C. 9229) to the Committees on Appropriations.

(2) BROADCASTS.—Funds appropriated by this Act under the heading ''International Broadcasting Operations'' shall be made available to maintain broadcasting hours into North Korea at levels not less than the prior fiscal year.

(3) HUMAN RIGHTS PROMOTION AND LIMITATION ON USE OF FUNDS.—

(A) Funds appropriated by this Act under the headings ''Economic Support Fund'' and ''Democracy Fund'' shall be made available for the promotion of human rights in North Korea: Provided, That the authority of section 7032(b)(1) of this Act shall apply to such funds.

(B) None of the funds made available by this Act under the heading ''Economic Support Fund'' may be made available for assistance for the Government of North Korea.

(e) PEOPLE'S REPUBLIC OF CHINA.—

(1) LIMITATION ON USE OF FUNDS.—None of the funds appropriated under the heading ''Diplomatic Programs'' in this Act may be obligated or expended for processing licenses for the export of satellites of United States origin (including commercial satellites and satellite components) to the People's Republic of China (PRC) unless, at least 15 days in advance, the Committees on Appropriations are notified of such proposed action.

(2) PEOPLE'S LIBERATION ARMY.—None of the funds appropriated or otherwise made available pursuant to this Act may be used to finance any grant, contract, or cooperative agreement with the People's Liberation Army (PLA), or any entity that the Secretary of State has reason to believe is owned or controlled by, or an affiliate of, the PLA.

(3) HONG KONG.—

(A) ASSISTANCE.—Funds appropriated by this Act under the heading ''Democracy Fund'' for the Human Rights and Democracy Fund of the Bureau of Democracy, Human Rights, and Labor, Department of State, shall be made available for democracy programs for Hong Kong, including legal and other support for democracy activists.

(B) RESTRICTION.—None of the funds appropriated by this Act may be made available to enterprises, organizations, or other entities in Hong Kong that receive funding from, or are supported by, the Government of the PRC.

(C) REPORT.—Funds appropriated under title I of this Act shall be made available to prepare and submit to Congress the report required by section 301 of the United States-Hong Kong Policy Act of 1992 (22 U.S.C. 5731) pursuant to section 7043(f)(4)(B) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2020 (division G of Public Law 116–94), which shall also include a description of—

(i) actions taken by the Government of the PRC and the Hong Kong authorities to implement the decision approved by the National People's Congress on May 28, 2020 for the Hong Kong Special Administration Region; and

(ii) actions taken by the Government of the PRC and the Hong Kong authorities to modify Hong Kong's existing judicial systems and enforcement mechanisms in order to erode democratic rights and civil liberties protected under Hong Kong Basic Law.

(D) VISA RESTRICTION.—Section 7031(c) of this Act shall be construed to apply to government officials and their immediate family members about whom the Secretary of State has credible information have been involved in implementing the decision approved by the National People's Congress on May 28, 2020 for the Hong Kong Special Administration Region that undermines the autonomy and fundamental freedoms of the people of Hong Kong: Provided, That not later than 60 days after enactment of this Act, the Secretary shall submit a report to the appropriate congressional committees describing the implementation of this subparagraph.

(f) PHILIPPINES.—

(1) None of the funds appropriated by this Act under the heading ''International Narcotics Control and Law Enforcement'' may be made available for counternarcotics assistance for the Philippines, except for drug demand reduction, maritime law enforcement, or transnational interdiction.

(2)(A) None of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'' may be made available for assistance for the Government of Philippines unless the Secretary of State determines and reports to the Committees on Appropriations that such Government is taking effective steps to promote human rights and strengthen accountability mechanisms.

(B) The Secretary of State may waive the restriction on assistance required by subparagraph (A) if the Secretary determines and reports to the Committees on Appropriations that providing such assistance is important to the national security interest of the United States, including a description of the national security interest served.

(g) TIBET.—

(1) FINANCING OF PROJECTS IN TIBET.—The Secretary of the Treasury should instruct the United States executive director of each international financial institution to use the voice and vote of the United States to support financing of projects in Tibet if such projects do not provide incentives for the migration and settlement of non-Tibetans into Tibet or facilitate the transfer of ownership of Tibetan land and natural resources to non-Tibetans, are based on a thorough needs-assessment, foster self-sufficiency of the Tibetan people and respect Tibetan culture and traditions, and are subject to effective monitoring.

(2) PROGRAMS FOR TIBETAN COMMUNITIES.—

(A) Notwithstanding any other provision of law, of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $8,000,000 shall be made available to nongovernmental organizations to support activities which preserve cultural traditions and promote sustainable development, education, and environmental conservation in Tibetan communities in the Tibet Autonomous Region and in other Tibetan communities in China.

(B) Of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $6,000,000 shall be made available for programs to promote and preserve Tibetan culture and language in the refugee and diaspora Tibetan communities, development, and the resilience of Tibetan communities and the Central Tibetan Administration in India and Nepal, and to assist in the education and development of the next generation of Tibetan leaders from such communities: Provided, That such funds are in addition to amounts made available in subparagraph (A) for programs inside Tibet.

(C) Of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $3,000,000 shall be made available for programs to strengthen the capacity of the Central Tibetan Administration: Provided, That such funds shall be administered by the United States Agency for International Development.

(h) VIETNAM.—Funds appropriated under titles III and IV of this Act and made available for assistance for Vietnam, should be made available for—

(1) health and disability programs in areas sprayed with Agent Orange and contaminated with dioxin, to assist individuals with severe upper or lower body mobility impairment or cognitive or developmental disabilities; and

(2) activities related to the remediation of dioxin contaminated sites in Vietnam and may be made available for assistance for the Government of Vietnam, including the military, for such purposes, notwithstanding any other provision of law.

SOUTH AND CENTRAL ASIA

SEC. 7044. (a) AFGHANISTAN.—

(1) FUNDING AND LIMITATIONS.—Funds appropriated by this Act under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'' that are made available for assistance for Afghanistan—

(A) shall be made available to implement the South Asia Strategy, the Revised Strategy for United States Engagement in Afghanistan, and the United States Agency for International Development Country Development Cooperation Strategy for Afghanistan, or any updated subsequent strategy;

(B) shall be made available to continue support for institutions of higher education in Kabul, Afghanistan that are accessible to both women and men in a coeducational environment, including for the costs for operations and security for such institutions;

(C) shall be made available for programs that protect and strengthen the rights of Afghan women and girls and promote the political and economic empowerment of women including their meaningful inclusion in political processes: Provided, That such assistance to promote the economic empowerment of women shall be made available as grants to Afghan organizations, to the maximum extent practicable;

(D) shall be made available to support long-term development assistance programs in areas previously under the control of the Taliban: Provided, That such funds may be made available notwithstanding any other provision of law and following consultation with the Committees on Appropriation; and

(E) may not be made available for any program, project, or activity pursuant to section 7044(a)(1)(C) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2019 (division F of Public Law 116–6).

(2) AFGHAN WOMEN.—

(A) IN GENERAL.—The Secretary of State shall promote the meaningful participation of Afghan women in ongoing peace and reconciliation processes in Afghanistan in a manner consistent with the Women, Peace, and Security Act of 2017 (Public Law 115–68), including advocacy for the inclusion of Afghan women leaders in ongoing and future dialogue and negotiations and efforts to ensure that any long-term peace agreement reached between the Afghan Government and the Taliban protects the rights of women and girls and ensures their freedom of movement, rights to education and work, and access to healthcare and legal representation.

(B) ASSISTANCE.—Funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Economic Support Fund'' shall be made available for an endowment pursuant to paragraph (3)(A)(iv) of this subsection for an institution of higher education in Kabul, Afghanistan that is accessible to both women and men in a coeducational environment: Provided, That such endowment shall be established in partnership with a United States-based American higher education institution that will serve on its board of trustees: Provided further, That prior to the obligation of funds for such an endowment, the Administrator of the United States Agency for International Development shall submit a report to the Committees on Appropriations describing the governance structure, including a proposed board of trustees, and financial safeguards, including regular audit and reporting requirements, in any endowment agreement: Provided further, That the USAID Administrator shall provide a report on the expenditure of funds generated from such an endowment to the Committees on Appropriations on an annual basis.

(3) AUTHORITIES.—

(A) Funds appropriated by this Act under titles III through VI that are made available for assistance for Afghanistan may be made available—

(i) notwithstanding section 7012 of this Act or any similar provision of law and section 660 of the Foreign Assistance Act of 1961;

(ii) for reconciliation programs and disarmament, demobilization, and reintegration activities for former combatants who have renounced violence against the Government of Afghanistan, including in accordance with section 7046(a)(2)(B)(ii) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2012 (division I of Public Law 112–74);

(iii) for an endowment to empower women and girls; and

(iv) for an endowment for higher education.

(B) Section 7046(a)(2)(A) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2012 (division I of Public Law 112–74) shall apply to funds appropriated by this Act for assistance for Afghanistan.

(C) Of the funds appropriated by this Act under the heading ''Diplomatic Programs'', up to $3,000,000 may be transferred to any other appropriation of any department or agency of the United States Government, upon the concurrence of the head of such department or agency, to support operations in, and assistance for, Afghanistan and to carry out the provisions of the Foreign Assistance Act of 1961: Provided, That any such transfer shall be subject to the regular notification procedures of the Committees on Appropriations.

(4) STRATEGY.—Not later than 45 days after the date of enactment of this Act, the Secretary of State, in consultation with the Administrator of the United States Agency for International Development, shall submit to the appropriate congressional committees a comprehensive, multi-year strategy for diplomatic and development engagement with Afghanistan that reflects the agreement between the United States Government and the Taliban, as well as on-going intra-Afghan negotiations: Provided, That such strategy shall include information regarding, but not limited to, the inclusion of women in intra-Afghan negotiations, political concessions between the Afghan government and the Taliban, and expected Department of State and United States military presence in Afghanistan.

(5) BASING RIGHTS AGREEMENT.—None of the funds made available by this Act may be used by the United States Government to enter into a permanent basing rights agreement between the United States and Afghanistan.

(b) BANGLADESH.—Funds appropriated under titles III and IV of this Act shall be made available for—

(1) programs to address the needs of communities impacted by refugees from Burma;

(2) programs to protect freedom of expression and due process of law; and

(3) democracy programs, of which not less than $2,000,000 shall be made available for such programs for the Rohingya community in Bangladesh.

(c) NEPAL.—Funds appropriated under titles III and IV of this Act shall be made available for assistance for Nepal, including for development and democracy programs.

(d) PAKISTAN.—The terms and conditions of section 7044(c) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2019 (division F of Public Law 116–6) shall continue in effect during fiscal year 2021.

(e) SRI LANKA.—

(1) ASSISTANCE.—Funds appropriated under title III of this Act shall be made available for assistance for Sri Lanka for democracy and economic development programs, particularly in areas recovering from ethnic and religious conflict: Provided, That such funds shall be made available for programs to assist in the identification and resolution of cases of missing persons.

(2) DETERMINATION.—Funds appropriated by this Act for assistance for the central Government of Sri Lanka, except for funds made available for humanitarian assistance, victims of trauma, and technical assistance to promote fiscal transparency and sovereignty, may be made available only if the Secretary of State determines and reports to the Committees on Appropriations that such Government is taking effective and consistent steps to—

(A) respect and uphold the rights and freedoms of the people of Sri Lanka regardless of ethnicity and religious belief, including by investigating violations of human rights and holding perpetrators of such violations accountable;

(B) assert its sovereignty against interference by the People's Republic of China; and

(C) promote reconciliation between ethnic and religious groups arising from past conflict in Sri Lanka, including by addressing land confiscation and ownership issues, resolving cases of missing persons, and reducing the presence of the armed forces in former conflict zones.

(3) INTERNATIONAL SECURITY ASSISTANCE.—Funds appropriated under title IV of this Act that are available for assistance for Sri Lanka shall be subject to the following conditions—

(A) not to exceed $500,000 may be made available under the heading ''Foreign Military Financing Program'' only for programs to support humanitarian and disaster response preparedness and maritime security, including professionalization and training for the navy and coast guard; and

(B) funds under the heading ''Peacekeeping Operations'' may only be made available subject to the regular notification procedures of the Committees on Appropriations.

(f) REGIONAL PROGRAMS.—Funds appropriated by this Act shall be made available for assistance for Afghanistan, Pakistan, and other countries in South and Central Asia to significantly increase the recruitment, training, and retention of women in the judiciary, police, and other security forces, and to train judicial and security personnel in such countries to prevent and address gender-based violence, human trafficking, and other practices that disproportionately harm women and girls.

LATIN AMERICA AND THE CARIBBEAN

SEC. 7045. (a) CENTRAL AMERICA.—

(1) ASSISTANCE.—

(A) FISCAL YEAR 2021.—Of the funds appropriated by this Act under titles III and IV, not less than $519,885,000 shall be made available for assistance for Central America, including through the Central America Regional Security Initiative, of which not less than $420,790,000 shall be for assistance for El Salvador, Guatemala, and Honduras: Provided, That such assistance shall be prioritized for programs and activities that addresses the key factors that contribute to the migration of unaccompanied, undocumented minors to the United States and such funds shall be made available for global health, humanitarian, development, democracy, border security, and law enforcement programs for such countries, including for programs to reduce violence against women and girls and to combat corruption, and for support of commissions against corruption and impunity, as appropriate: Provided further, That not less than $45,000,000 shall be for support of offices of Attorneys General and of other entities and activities to combat corruption and impunity in such countries.

(B) FISCAL YEAR 2020.—Section 7045(a)(1)(A) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2020 (division G of Public Law 116–94) is amended by striking ''$519,885,000 should'' and inserting in lieu thereof ''$519,885,000 shall''.

(2) NORTHERN TRIANGLE.—

(A) LIMITATION ON ASSISTANCE TO CERTAIN CENTRAL GOVERNMENTS.—Of the funds made available pursuant to paragraph (1) under the heading ''Economic Support Fund'' and under title IV of this Act that are made available for assistance for each of the central governments of El Salvador, Guatemala, and Honduras, 50 percent may only be obligated after the Secretary of State certifies and reports to the appropriate congressional committees that such government is—

(i) combating corruption and impunity, including prosecuting corrupt government officials;

(ii) implementing reforms, policies, and programs to increase transparency and strengthen public institutions;

(iii) protecting the rights of civil society, opposition political parties, and the independence of the media;

(iv) providing effective and accountable law enforcement and security for its citizens, and upholding due process of law;

(v) implementing policies to reduce poverty and promote equitable economic growth and opportunity;

(vi) supporting the independence of the judiciary and of electoral institutions;

(vii) improving border security;

(viii) combating human smuggling and trafficking and countering the activities of criminal gangs, drug traffickers, and transnational criminal organizations; and

(ix) informing its citizens of the dangers of the journey to the southwest border of the United States.

(B) REPROGRAMMING.—If the Secretary is unable to make the certification required by subparagraph (A) for one or more of the governments, such assistance for such central government shall be reprogrammed for assistance for other countries in Latin America and the Caribbean, notwithstanding the minimum funding requirements of this subsection and of section 7019 of this Act: Provided, That any such reprogramming shall be subject to the regular notification procedures of the Committees on Appropriations.

(C) EXCEPTIONS.—The limitation of subparagraph (A) shall not apply to funds appropriated by this Act that are made available for—

(i) the International Commission Against Impunity in El Salvador, and support of offices of Attorneys General and of other entities and activities related to combating corruption and impunity;

(ii) programs to combat gender-based violence;

(iii) humanitarian assistance; and

(iv) food security programs.

(D) FOREIGN MILITARY FINANCING PROGRAM.—None of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'' may be made available for assistance for El Salvador, Guatemala, or Honduras.

(3) COSTA RICA.—The Secretary of State shall report to the Committees on Appropriations in writing on American citizens detained in Costa Rica: Provided, That such report shall include the number of American citizens known to be detained and whether such individuals are serving sentences or in pre-trial detention, provided regular access to United States Consular officers, being treated humanely, and afforded access to legal representation: Provided further, That such report shall be updated every 45 days until September 30, 2022: Provided further, That such report shall be submitted in unclassified form, but may include a classified annex.

(b) COLOMBIA.—

(1) ASSISTANCE.—Of the funds appropriated by this Act under titles III and IV, not less than $457,253,000 shall be made available for assistance for Colombia: Provided, That such funds shall be made available for the programs and activities described under this section in the report accompanying this Act.

(2) WITHHOLDING OF FUNDS.—

(A) COUNTERNARCOTICS.—Of the funds appropriated by this Act under the heading ''International Narcotics Control and Law Enforcement'' and made available for assistance for Colombia, 20 percent may be obligated only after the Secretary of State determines and reports to the Committees on Appropriations that the Government of Colombia is continuing to implement a national whole-of-government counternarcotics strategy intended to reduce by 50 percent cocaine production and coca cultivation levels in Colombia by 2023 and such program is not in violation of the 2016 peace accord between the Government of Colombia and the Revolutionary Armed Forces of Colombia.

(B) HUMAN RIGHTS.—Of the funds appropriated by this Act under the heading ''Foreign Military Financing Program'' and made available for assistance for Colombia, 20 percent may be obligated only after the Secretary of State determines and reports to the Committees on Appropriations that—

(i) the Special Jurisdiction for Peace and other judicial authorities are taking effective steps to hold accountable perpetrators of gross violations of human rights in a manner consistent with international law, including for command responsibility, and sentence them to deprivation of liberty;

(ii) the Government of Colombia is taking effective steps to prevent attacks against human rights defenders and other civil society activists, trade unionists, and journalists, and judicial authorities are prosecuting those responsible for such attacks;

(iii) the Government of Colombia is taking effective steps to protect Afro-Colombian and indigenous communities and is respecting their rights and territory;

(iv) senior military officers responsible for ordering, committing, and covering up cases of false positives are being held accountable, including removal from active duty if found guilty through criminal or disciplinary proceedings; and

(v) the Government of Colombia has investigated and is taking steps to hold accountable Government officials credibly alleged to have directed, authorized, or conducted illegal surveillance of political opponents, government officials, journalists, and human rights defenders, including the use of assets provided by the United States for combating counterterrorism and counternarcotics for such purposes.

(3) EXCEPTIONS.—The limitations of paragraph (2) shall not apply to funds made available for aviation instruction and maintenance, and maritime and riverine security programs.

(4) AUTHORITY.—Aircraft supported by funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs and made available for assistance for Colombia may be used to transport personnel and supplies involved in drug eradication and interdiction, including security for such activities, and to provide transport in support of alternative development programs and investigations by civilian judicial authorities.

(c) HAITI.—

(1) CERTIFICATION.—The certification requirement contained in section 7045(c)(1) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2020 (division G of Public Law 116–94) shall continue in effect during fiscal year 2021 and shall apply to funds appropriated by this Act under the headings ''Development Assistance'' and ''Economic Support Fund'' that are made available for assistance for Haiti.

(2) HAITIAN COAST GUARD.—The Government of Haiti shall be eligible to purchase defense articles and services under the Arms Export Control Act (22 U.S.C. 2751 et seq.) for the Coast Guard.

(3) LIMITATION.—None of the funds made available by this Act may be used to provide assistance to the armed forces of Haiti.

(d) THE CARIBBEAN.—Of the funds appropriated by this Act under titles III and IV, not less than $74,800,000 shall be made available for the Caribbean Basin Security Initiative.

(e) VENEZUELA.—

(1) Of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $30,000,000 shall be made available for democracy programs for Venezuela.

(2) Funds appropriated under title III of this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be made available for assistance for communities in countries supporting or otherwise impacted by refugees from Venezuela, including Colombia, Peru, Ecuador, Curacao, and Trinidad and Tobago: Provided, That such amounts are in addition to funds otherwise made available for assistance for such countries, subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

EUROPE AND EURASIA

SEC. 7046. (a) GEORGIA.—

(1) ASSISTANCE.—Of the funds appropriated by this Act under titles III and IV, not less than $132,025,000 shall be made available for assistance for Georgia.

(2) WITHHOLDING OF FUNDS.—Of the funds appropriated by this Act under the heading ''Assistance to Europe, Eurasia and Central Asia'' and made available for assistance for the central Government of Georgia, 15 percent may not be obligated until the Secretary of State determines and reports to the Committees on Appropriations that such government is taking effective steps to—

(A) strengthen democratic institutions as described under this section in the report accompanying this Act;

(B) combat corruption within the government, including in the application of anti-corruption laws and regulations; and

(C) ensure the rule of law in the private sector is consistent with internationally recognized standards, including protecting the rights of foreign businesses to operate free from harassment and to fully realize all due commercial and financial benefits resulting from investments made in Georgia.

(3) EXEMPTIONS.—The withholding in paragraph (2) of this subsection shall not apply to programs that support democracy, the rule of law, civil society and the media, or programs to reduce gender-based violence and to protect vulnerable populations.

(4) WAIVER.—The Secretary may waive the application of paragraph (2) if the Secretary determines and reports to the Committees on Appropriations that to do so is important to the national interest of the United States, including a description of the national interest served.

(b) UKRAINE.—Of the funds appropriated by this Act under titles III and IV, not less than $453,000,000 shall be made available for assistance for Ukraine.

(c) TERRITORIAL INTEGRITY.—None of the funds appropriated by this Act may be made available for assistance for a government of an Independent State of the former Soviet Union if such government directs any action in violation of the territorial integrity or national sovereignty of any other Independent State of the former Soviet Union, such as those violations included in the Helsinki Final Act: Provided, That except as otherwise provided in section 7047(a) of this Act, funds may be made available without regard to the restriction in this subsection if the President determines that to do so is in the national security interest of the United States: Provided further, That prior to executing the authority contained in the previous proviso, the Secretary of State shall consult with the Committees on Appropriations on how such assistance supports the national security interest of the United States.

(d) SECTION 907 OF THE FREEDOM SUPPORT ACT.—Section 907 of the FREEDOM Support Act (22 U.S.C. 5812 note) shall not apply to—

(1) activities to support democracy or assistance under title V of the FREEDOM Support Act (22 U.S.C. 5851 et seq.) and section 1424 of the Defense Against Weapons of Mass Destruction Act of 1996 (50 U.S.C. 2333) or non-proliferation assistance;

(2) any assistance provided by the Trade and Development Agency under section 661 of the Foreign Assistance Act of 1961;

(3) any activity carried out by a member of the United States and Foreign Commercial Service while acting within his or her official capacity;

(4) any insurance, reinsurance, guarantee, or other assistance provided by the United States International Development Finance Corporation as authorized by the BUILD Act of 2018 (division F of Public Law 115–254);

(5) any financing provided under the Export-Import Bank Act of 1945 (Public Law 79–173); or

(6) humanitarian assistance.

(e) TURKEY.—

(1) None of the funds made available by this Act may be used to facilitate or support the sale of defense articles or defense services to the Turkish Presidential Protection Directorate (TPPD) under Chapter 2 of the Arms Export Control Act (22 U.S.C. 2761 et seq.) unless the Secretary of State determines and reports to the appropriate congressional committees that members of the TPPD who are named in the July 17, 2017, indictment by the Superior Court of the District of Columbia, and against whom there are pending charges, have returned to the United States to stand trial in connection with the offenses contained in such indictment or have otherwise been brought to justice: Provided, That the limitation in this paragraph shall not apply to the use of funds made available by this Act for border security purposes, for North Atlantic Treaty Organization or coalition operations, or to enhance the protection of United States officials and facilities in Turkey.

(2) None of the funds appropriated or otherwise made available by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs, may be made available to transfer or deliver, or to facilitate the transfer or delivery of, F–35 aircraft to Turkey, including any defense articles or services related to such aircraft, until the Secretary of State certifies to the appropriate congressional committees that the Government of Turkey no longer possesses the Russian S–400 missile defense system or any other equipment, materials, or personnel associated with such system and has provided credible assurances that the Government of Turkey will not in the future accept delivery of such system.

COUNTERING RUSSIAN INFLUENCE AND AGGRESSION

SEC. 7047. (a) LIMITATION.—Notwithstanding section 7068(a) of this Act, none of the funds appropriated by this Act may be made available for assistance for the central Government of the Russian Federation.

(b) ANNEXATION OF CRIMEA.—

(1) PROHIBITION.—None of the funds appropriated by this Act may be made available for assistance for the central government of a country that the Secretary of State determines and reports to the Committees on Appropriations has taken affirmative steps intended to support or be supportive of the Russian Federation annexation of Crimea or other territory in Ukraine: Provided, That except as otherwise provided in subsection (a), the Secretary may waive the restriction on assistance required by this paragraph if the Secretary determines and reports to such Committees that to do so is in the national interest of the United States, and includes a justification for such interest.

(2) LIMITATION.—None of the funds appropriated by this Act may be made available for—

(A) the implementation of any action or policy that recognizes the sovereignty of the Russian Federation over Crimea or other territory in Ukraine;

(B) the facilitation, financing, or guarantee of United States Government investments in Crimea or other territory in Ukraine under the control of Russian-backed separatists, if such activity includes the participation of Russian Government officials, or other Russian owned or controlled financial entities; or

(C) assistance for Crimea or other territory in Ukraine under the control of Russian-backed separatists, if such assistance includes the participation of Russian Government officials, or other Russian owned or controlled financial entities.

(3) INTERNATIONAL FINANCIAL INSTITUTIONS.—The Secretary of the Treasury shall instruct the

United States executive directors of each international financial institution to use the voice and vote of the United States to oppose any assistance by such institution (including any loan, credit, or guarantee) for any program that violates the sovereignty or territorial integrity of Ukraine.

(4) DURATION.—The requirements and limitations of this subsection shall cease to be in effect if the Secretary of State determines and reports to the Committees on Appropriations that the Government of Ukraine has reestablished sovereignty over Crimea and other territory in Ukraine under the control of Russian-backed separatists.

(c) OCCUPATION OF THE GEORGIAN TERRITORIES OF ABKHAZIA AND TSKHINVALI REGION/SOUTH OSSETIA.—

(1) PROHIBITION.—None of the funds appropriated by this Act may be made available for assistance for the central government of a country that the Secretary of State determines and reports to the Committees on Appropriations has recognized the independence of, or has established diplomatic relations with, the Russian Federation occupied Georgian territories of Abkhazia and Tskhinvali Region/South Ossetia: Provided, That the Secretary shall publish on the Department of State website a list of any such central governments in a timely manner: Provided further, That except as otherwise provided in subsection (a), the Secretary may waive the restriction on assistance required by this paragraph if the Secretary determines and reports to the Committees on Appropriations that to do so is in the national interest of the United States, and includes a justification for such interest.

(2) LIMITATION.—None of the funds appropriated by this Act may be made available to support the Russian Federation occupation of the Georgian territories of Abkhazia and Tskhinvali Region/South Ossetia.

(3) INTERNATIONAL FINANCIAL INSTITUTIONS.—The Secretary of the Treasury shall instruct the United States executive directors of each international financial institution to use the voice and vote of the United States to oppose any assistance by such institution (including any loan, credit, or guarantee) for any program that violates the sovereignty and territorial integrity of Georgia.

(d) COUNTERING RUSSIAN INFLUENCE FUND.—

(1) ASSISTANCE.—Of the funds appropriated by this Act under the headings ''Assistance for Europe, Eurasia and Central Asia'', ''International Narcotics Control and Law Enforcement'', ''International Military Education and Training'', and ''Foreign Military Financing Program'', not less than $290,000,000 shall be made available to carry out the purposes of the Countering Russian Influence Fund, as authorized by section 254 of the Countering Russian Influence in Europe and Eurasia Act of 2017 (Public Law 115–44; 22 U.S.C. 9543) and notwithstanding the country limitation in subsection (b) of such section, and programs to enhance the capacity of law enforcement and security forces in countries in Europe, Eurasia, and Central Asia and strengthen security cooperation between such countries and the United States and the North Atlantic Treaty Organization, as appropriate.

(2) ECONOMICS AND TRADE.—Funds appropriated by this Act and made available for assistance for the Eastern Partnership countries shall be made available to advance the implementation of Association Agreements and trade agreements with the European Union, and to reduce their vulnerability to external economic and political pressure from the Russian Federation.

(e) DEMOCRACY PROGRAMS.—Funds appropriated by this Act shall be made available to support democracy programs in the Russian Federation and other countries in Europe, Eurasia, and Central Asia, including to promote Internet freedom: Provided, That of the funds appropriated under the heading ''Assistance for Europe, Eurasia and Central Asia'', not less than $20,000,000 shall be made available to strengthen democracy and civil society in Central Europe, including for transparency, independent media, rule of law, minority rights, and programs to combat anti-Semitism.

UNITED NATIONS

SEC. 7048. (a) TRANSPARENCY AND ACCOUNTABILITY.—Not later than 180 days after enactment of this Act, the Secretary of State shall report to the Committees on Appropriations whether each organization, department, or agency receiving a contribution from funds appropriated by this Act under the headings ''Contributions to International Organizations'' and ''International Organizations and Programs'' is—

(1) posting on a publicly available website, consistent with privacy regulations and due process, regular financial and programmatic audits of such organization, department, or agency, and providing the United States Government with necessary access to such financial and performance audits;

(2) effectively implementing and enforcing policies and procedures which meet or exceed best practices in the United States for the protection of whistleblowers from retaliation, including—

(A) protection against retaliation for internal and lawful public disclosures;

(B) legal burdens of proof;

(C) statutes of limitation for reporting retaliation;

(D) access to binding independent adjudicative bodies, including shared cost and selection of external arbitration; and

(E) results that eliminate the effects of proven retaliation, including provision for the restoration of prior employment; and

(3) effectively implementing and enforcing policies and procedures on the appropriate use of travel funds, including restrictions on first-class and business-class travel.

(b) RESTRICTIONS ON UNITED NATIONS DELEGATIONS AND ORGANIZATIONS.—

(1) RESTRICTIONS ON UNITED STATES DELEGATIONS.—None of the funds made available by this Act may be used to pay expenses for any United States delegation to any specialized agency, body, or commission of the United Nations if such agency, body, or commission is chaired or presided over by a country, the government of which the Secretary of State has determined, for purposes of section 1754(c) of the Export Reform Control Act of 2018 (50 U.S.C. 4813(c)), supports international terrorism.

(2) RESTRICTIONS ON CONTRIBUTIONS.—None of the funds made available by this Act may be used by the Secretary of State as a contribution to any organization, agency, commission, or program within the United Nations system if such organization, agency, commission, or program is chaired or presided over by a country the government of which the Secretary of State has determined, for purposes of section 620A of the Foreign Assistance Act of 1961, section 40 of the Arms Export Control Act, section 1754(c) of the Export Reform Control Act of 2018 (50 U.S.C. 4813(c)), or any other provision of law, is a government that has repeatedly provided support for acts of international terrorism.

(3) WAIVER.—The Secretary of State may waive the restriction in this subsection if the Secretary determines and reports to the Committees on Appropriations that to do so is important to the national interest of the United States, including a description of the national interest served.

(c) UNITED NATIONS HUMAN RIGHTS COUNCIL.—Funds appropriated by this Act shall be made available in support of the United Nations Human Rights Council unless the Secretary of State determines and reports to the Committees on Appropriations that participation in the Council does not serve the national interest of the United States and that such Council is neither taking significant steps to remove Israel as a permanent agenda item nor taking actions to ensure integrity in the election of members to such Council: Provided, That such report shall include a description of how the national interest is better served by the United States not being a member of the Council: Provided further, That the Secretary of State shall report to the Committees on Appropriations not later than September 30, 2021, on the resolutions considered in the United Nations Human Rights Council during the previous 12 months, and on steps taken to remove Israel as a permanent agenda item and ensure integrity in the election of members to such Council.

(d) UNITED NATIONS RELIEF AND WORKS AGENCY.—Funds appropriated by this Act under title III shall be made available to the United Nations Relief and Works Agency (UNRWA), unless the Secretary of State determines and reports to the Committees on Appropriations, in writing, that UNRWA—

(1) is inappropriately utilizing Operations Support Officers in the West Bank, Gaza, and other fields of operation to inspect UNRWA installations;

(2) is not acting promptly to address any staff or beneficiary violation of its own policies (including the policies on neutrality and impartiality of employees) and the legal requirements under section 301(c) of the Foreign Assistance Act of 1961;

(3) is not implementing procedures to maintain the neutrality of its facilities, including implementing a no-weapons policy, and conducting regular inspections of its installations, to ensure they are only used for humanitarian or other appropriate purposes;

(4) is not taking necessary and appropriate measures to ensure it is operating in compliance with the conditions of section 301(c) of the Foreign Assistance Act of 1961 and continuing regular reporting to the Department of State on actions it has taken to ensure conformance with such conditions;

(5) is not taking steps to ensure the content of all educational materials currently taught in UNRWA-administered schools and summer camps is consistent with the values of human rights, dignity, and tolerance and does not induce incitement;

(6) is engaging in operations with financial institutions or related entities in violation of relevant United States law, and is not taking steps to improve the financial transparency of the organization; and

(7) is not in compliance with the United Nations Board of Auditors' biennial audit requirements and is not implementing in a timely fashion the Board's recommendations.

(e) PROHIBITION OF PAYMENTS TO UNITED NATIONS MEMBERS.—None of the funds appropriated or made available pursuant to titles III through VI of this Act for carrying out the Foreign Assistance Act of 1961, may be used to pay in whole or in part any assessments, arrearages, or dues of any member of the United Nations or, from funds appropriated by this Act to carry out chapter 1 of part I of the Foreign Assistance Act of 1961, the costs for participation of another country's delegation at international conferences held under the auspices of multilateral or international organizations.

(f) REPORT.—Not later than 45 days after enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations detailing the amount of funds available for obligation or expenditure in fiscal year 2021 for contributions to any organization, department, agency, or program within the United Nations system or any international program that are withheld from obligation or expenditure due to any provision of law: Provided, That the Secretary shall update such report each time additional funds are withheld by operation of any provision of law: Provided further, That the reprogramming of any withheld funds identified

in such report, including updates thereof, shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

(g) SEXUAL EXPLOITATION AND ABUSE IN PEACEKEEPING OPERATIONS.—The Secretary of State should withhold assistance to any unit of the security forces of a foreign country if the Secretary has credible information that such unit has engaged in sexual exploitation or abuse, including while serving in a United Nations peacekeeping operation, until the Secretary determines that the government of such country is taking effective steps to hold the responsible members of such unit accountable and to prevent future incidents: Provided, That the Secretary shall promptly notify the government of each country subject to any withholding of assistance pursuant to this paragraph, and shall notify the appropriate congressional committees of such withholding not later than 10 days after a determination to withhold such assistance is made: Provided further, That the Secretary shall, to the maximum extent practicable, assist such government in bringing the responsible members of such unit to justice.

(h) ADDITIONAL AVAILABILITY.—Subject to the regular notification procedures of the Committees on Appropriations, funds appropriated by this Act which are returned or not made available due to the third proviso under the heading ''Contributions for International Peacekeeping Activities'' in title I of this Act or section 307(a) of the Foreign Assistance Act of 1961 (22 U.S.C. 2227(a)), shall remain available for obligation until September 30, 2022: Provided, That the requirement to withhold funds for programs in Burma under section 307(a) of the Foreign Assistance Act of 1961 shall not apply to funds appropriated by this Act.

WAR CRIMES TRIBUNALS

SEC. 7049. (a) If the President determines that doing so will contribute to a just resolution of charges regarding genocide or other violations of international humanitarian law, the President may direct a drawdown pursuant to section 552(c) of the Foreign Assistance Act of 1961 of up to $30,000,000 of commodities and services for the United Nations War Crimes Tribunal established with regard to the former Yugoslavia by the United Nations Security Council or such other tribunals or commissions as the Council may establish or authorize to deal with such violations, without regard to the ceiling limitation contained in paragraph (2) thereof: Provided, That the determination required under this section shall be in lieu of any determinations otherwise required under section 552(c): Provided further, That funds made available pursuant to this section shall be made available subject to the regular notification procedures of the Committees on Appropriations.

(b) None of the funds appropriated by this Act may be made available for a United States contribution to the International Criminal Court: Provided, That funds may be made available for technical assistance, training, assistance for victims, protection of witnesses, and law enforcement support related to international investigations, apprehensions, prosecutions, and adjudications of genocide, crimes against humanity, and war crimes: Provided further, That the previous proviso shall not apply to investigations, apprehensions, or prosecutions of American service members and other United States citizens or nationals, or nationals of the North Atlantic Treaty Organization (NATO) or major non-NATO allies initially designated pursuant to section 517(b) of the Foreign Assistance Act of 1961.

GLOBAL INTERNET FREEDOM

SEC. 7050. (a) FUNDING.—Of the funds available for obligation during fiscal year 2021 under the headings ''International Broadcasting Operations'', ''Economic Support Fund'', ''Democracy Fund'', and ''Assistance for Europe, Eurasia and Central Asia'', not less than $68,000,000 shall be made available for programs to promote Internet freedom globally: Provided, That such programs shall be prioritized for countries whose governments restrict freedom of expression on the Internet, and that are important to the national interest of the United States: Provided further, That funds made available pursuant to this section shall be matched, to the maximum extent practicable, by sources other than the United States Government, including from the private sector.

(b) REQUIREMENTS.—

(1) DEPARTMENT OF STATE AND UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT.—Funds appropriated by this Act under the headings ''Economic Support Fund'', ''Democracy Fund'', and ''Assistance for Europe, Eurasia and Central Asia'' that are made available pursuant to subsection (a) shall be—

(A) coordinated with other democracy programs funded by this Act under such headings, and shall be incorporated into country assistance and democracy promotion strategies, as appropriate;

(B) for programs and activities described under this section in the report accompanying this Act; and

(C) made available only after the Assistant Secretary for Democracy, Human Rights, and Labor, Department of State, concurs that such funds are allocated consistent with—

(i) programs and activities described in the report accompanying this Act pursuant to subparagraph (B);

(ii) best practices regarding security for, and oversight of, Internet freedom programs; and

(iii) sufficient resources and support for the development and maintenance of anti-censorship technology and tools.

(2) UNITED STATES AGENCY FOR GLOBAL MEDIA.—Funds appropriated by this Act under the heading ''International Broadcasting Operations'' that are made available pursuant to subsection (a) shall be—

(A) made available only for tools and techniques to securely develop and distribute United States Agency for Global Media (USAGM) digital content, facilitate audience access to such content on websites that are censored, coordinate the distribution of USAGM digital content to targeted regional audiences, and to promote and distribute such tools and techniques, including digital security techniques;

(B) coordinated with programs funded by this Act under the heading ''International Broadcasting Operations'', and shall be incorporated into country broadcasting strategies, as appropriate;

(C) coordinated by the Chief Executive Officer (CEO) of USAGM to provide Internet circumvention tools and techniques for audiences in countries that are strategic priorities for the USAGM and in a manner consistent with the USAGM Internet freedom strategy; and

(D) made available for the research and development of new tools or techniques authorized in subparagraph (A) only after the USAGM CEO, in consultation with the Secretary of State and other relevant United States Government departments and agencies, evaluates the risks and benefits of such new tools or techniques, and establishes safeguards to minimize the use of such new tools or techniques for illicit purposes.

(c) COORDINATION AND SPEND PLANS.—After consultation among the relevant agency heads to coordinate and de-conflict planned activities, but not later than 90 days after enactment of this Act, the Secretary of State and the USAGM CEO shall submit to the Committees on Appropriations spend plans for funds made available by this Act for programs to promote Internet freedom globally, which shall include a description of safeguards established by relevant agencies to ensure that such programs are not used for illicit purposes: Provided, That the Department of State spend plan shall include funding for all such programs for all relevant Department of State and the United States Agency for International Development offices and bureaus.

(d) SECURITY AUDITS.—Funds made available pursuant to this section to promote Internet freedom globally may only be made available to support technologies that undergo comprehensive security audits conducted by the Bureau of Democracy, Human Rights, and Labor, Department of State to ensure that such technology is secure and has not been compromised in a manner detrimental to the interest of the United States or to individuals and organizations benefiting from programs supported by such funds: Provided, That the security auditing procedures used by such Bureau shall be reviewed and updated periodically to reflect current industry security standards.

TORTURE AND OTHER CRUEL, INHUMAN, OR DEGRADING TREATMENT OR PUNISHMENT

SEC. 7051. (a) LIMITATION.—None of the funds made available by this Act may be used to support or justify the use of torture and other cruel, inhuman, or degrading treatment or punishment by any official or contract employee of the United States Government.

(b) ASSISTANCE.—Funds appropriated under titles III and IV of this Act shall be made available, notwithstanding section 660 of the Foreign Assistance Act of 1961 and following consultation with the Committees on Appropriations, for assistance to eliminate torture and other cruel, inhuman, or degrading treatment or punishment by foreign police, military or other security forces in countries receiving assistance from funds appropriated by this Act.

AIRCRAFT TRANSFER, COORDINATION, AND USE

SEC. 7052. (a) TRANSFER AUTHORITY.—Notwithstanding any other provision of law or regulation, aircraft procured with funds appropriated by this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the headings ''Diplomatic Programs'', ''International Narcotics Control and Law Enforcement'', ''Andean Counterdrug Initiative'', and ''Andean Counterdrug Programs'' may be used for any other program and in any region.

(b) PROPERTY DISPOSAL.—The authority provided in subsection (a) shall apply only after the Secretary of State determines and reports to the Committees on Appropriations that the equipment is no longer required to meet programmatic purposes in the designated country or region: Provided, That any such transfer shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

(c) AIRCRAFT COORDINATION.—

(1) AUTHORITY.—The uses of aircraft purchased or leased by the Department of State and the United States Agency for International Development with funds made available in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be coordinated under the authority of the appropriate Chief of Mission: Provided, That notwithstanding section 7063(b) of this Act, such aircraft may be used to transport, on a reimbursable or non-reimbursable basis, Federal and non-Federal personnel supporting Department of State and USAID programs and activities: Provided further, That official travel for other agencies for other purposes may be supported on a reimbursable basis, or without reimbursement when traveling on a space available basis: Provided further, That funds received by the Department of State in connection with the use of aircraft owned, leased, or chartered by the Department of State may be credited to the Working Capital Fund of the Department and shall be available for expenses related to the purchase, lease, maintenance, chartering, or operation of such aircraft.

(2) SCOPE.—The requirement and authorities of this subsection shall only apply to aircraft, the primary purpose of which is the transportation of personnel.

(d) AIRCRAFT OPERATIONS AND MAINTENANCE.—To the maximum extent practicable, the

costs of operations and maintenance, including fuel, of aircraft funded by this Act shall be borne by the recipient country.

PARKING FINES AND REAL PROPERTY TAXES OWED BY FOREIGN GOVERNMENTS

SEC. 7053. The terms and conditions of section 7055 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2010 (division F of Public Law 111–117) shall apply to this Act: Provided, That the date ''September 30, 2009'' in subsection (f)(2)(B) of such section shall be deemed to be ''September 30, 2020''.

INTERNATIONAL MONETARY FUND

SEC. 7054. (a) EXTENSIONS.—The terms and conditions of sections 7086(b) (1) and (2) and 7090(a) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2010 (division F of Public Law 111–117) shall apply to this Act.

(b) REPAYMENT.—The Secretary of the Treasury shall instruct the United States Executive Director of the International Monetary Fund (IMF) to seek to ensure that any loan will be repaid to the IMF before other private or multilateral creditors.

EXTRADITION

SEC. 7055. (a) LIMITATION.—None of the funds appropriated in this Act may be used to provide assistance (other than funds provided under the headings ''Development Assistance'', ''International Disaster Assistance'', ''Complex Crises Fund'', ''International Narcotics Control and Law Enforcement'', ''Migration and Refugee Assistance'', ''United States Emergency Refugee and Migration Assistance Fund'', and ''Nonproliferation, Anti-terrorism, Demining and Related Assistance'') for the central government of a country which has notified the Department of State of its refusal to extradite to the United States any individual indicted for a criminal offense for which the maximum penalty is life imprisonment without the possibility of parole or for killing a law enforcement officer, as specified in a United States extradition request.

(b) CLARIFICATION.—Subsection (a) shall only apply to the central government of a country with which the United States maintains diplomatic relations and with which the United States has an extradition treaty and the government of that country is in violation of the terms and conditions of the treaty.

(c) WAIVER.—The Secretary of State may waive the restriction in subsection (a) on a case-by-case basis if the Secretary certifies to the Committees on Appropriations that such waiver is important to the national interest of the United States.

IMPACT ON JOBS IN THE UNITED STATES

SEC. 7056. None of the funds appropriated or otherwise made available under titles III through VI of this Act may be obligated or expended to provide—

(1) any financial incentive to a business enterprise currently located in the United States for the purpose of inducing such an enterprise to relocate outside the United States if such incentive or inducement is likely to reduce the number of employees of such business enterprise in the United States because United States production is being replaced by such enterprise outside the United States;

(2) assistance for any program, project, or activity that contributes to the violation of internationally recognized workers' rights, as defined in section 507(4) of the Trade Act of 1974, of workers in the recipient country, including any designated zone or area in that country: Provided, That the application of section 507(4)(D) and (E) of such Act (19 U.S.C. 2467(4)(D) and (E)) should be commensurate with the level of development of the recipient country and sector, and shall not preclude assistance for the informal sector in such country, micro and small-scale enterprise, and smallholder agriculture; or

(3) any assistance to an entity outside the United States if such assistance is for the purpose of directly relocating or transferring jobs from the United States to other countries and adversely impacts the labor force in the United States.

DISABILITY PROGRAMS

SEC. 7057. (a) ASSISTANCE.—Funds appropriated by this Act under the heading ''Development Assistance'' shall be made available for programs and activities administered by the United States Agency for International Development to address the needs and protect and promote the rights of people with disabilities in developing countries, including initiatives that focus on independent living, economic self-sufficiency, advocacy, education, employment, transportation, sports, political and electoral participation, and integration of individuals with disabilities, including for the cost of translation.

(b) MANAGEMENT, OVERSIGHT, AND TECHNICAL SUPPORT.—Of the funds made available pursuant to this section, 5 percent may be used by USAID for management, oversight, and technical support.

ENTERPRISE FUNDS

SEC. 7058. (a) NOTIFICATION.—None of the funds made available under titles III through VI of this Act may be made available for Enterprise Funds unless the appropriate congressional committees are notified at least 15 days in advance.

(b) DISTRIBUTION OF ASSETS PLAN.—Prior to the distribution of any assets resulting from any liquidation, dissolution, or winding up of an Enterprise Fund, in whole or in part, the President shall submit to the appropriate congressional committees a plan for the distribution of the assets of the Enterprise Fund.

(c) TRANSITION OR OPERATING PLAN.—Prior to a transition to and operation of any private equity fund or other parallel investment fund under an existing Enterprise Fund, the President shall submit such transition or operating plan to the appropriate congressional committees.

GENDER EQUALITY

SEC. 7059. (a) WOMEN'S EMPOWERMENT.—

(1) GENDER EQUALITY.—Funds appropriated by this Act shall be made available to promote gender equality in United States Government diplomatic and development efforts by raising the status, increasing the participation, and protecting the rights of women and girls worldwide.

(2) WOMEN'S ECONOMIC EMPOWERMENT.—Funds appropriated by this Act are available to implement the Women's Entrepreneurship and Economic Empowerment Act of 2018 (Public Law 115–428): Provided, That the Secretary of State and the Administrator of the United States Agency for International Development, as appropriate, shall consult with the Committees on Appropriations on the implementation of such Act.

(3) WOMEN'S GLOBAL DEVELOPMENT AND PROSPERITY FUND.—Of the funds appropriated under title III of this Act, up to $100,000,000 may be made available for the Women's Global Development and Prosperity Fund.

(b) WOMEN'S LEADERSHIP.—Of the funds appropriated by title III of this Act, not less than $50,000,000 shall be made available for programs specifically designed to increase leadership opportunities for women in countries where women and girls suffer discrimination due to law, policy, or practice, by strengthening protections for women's political status, expanding women's participation in political parties and elections, and increasing women's opportunities for leadership positions in the public and private sectors at the local, provincial, and national levels.

(c) GENDER-BASED VIOLENCE.—

(1) Of the funds appropriated under titles III and IV of this Act, not less than $165,000,000 shall be made available to implement a multi-year strategy to prevent and respond to gender-based violence in countries where it is common in conflict and non-conflict settings.

(2) Funds appropriated under titles III and IV of this Act that are available to train foreign police, judicial, and military personnel, including for international peacekeeping operations, shall address, where appropriate, prevention and response to gender-based violence and trafficking in persons, and shall promote the integration of women into the police and other security forces.

(d) WOMEN, PEACE, AND SECURITY.—Of the funds appropriated by this Act under the headings ''Development Assistance'', ''Economic Support Fund'', ''Assistance for Europe, Eurasia and Central Asia'', and ''International Narcotics Control and Law Enforcement'' not less than $130,000,000 shall be made available to support a multi-year strategy to expand, and improve coordination of, United States Government efforts to empower women as equal partners in conflict prevention, peace building, transitional processes, and reconstruction efforts in countries affected by conflict or in political transition, and to ensure the equitable provision of relief and recovery assistance to women and girls.

(e) WOMEN AND GIRLS AT RISK FROM EXTREMISM AND CONFLICT.—Of the funds appropriated by this Act under the heading ''Economic Support Fund'', not less than $15,000,000 shall be made available to support women and girls who are at risk from extremism and conflict, and for the activities described in section 7059(e)(1) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2018 (division K of Public Law 115–141): Provided, That such funds are in addition to amounts otherwise made available by this Act for such purposes, and shall be made available following consultation with, and the regular notification procedures of, the Committees on Appropriations.

SECTOR ALLOCATIONS

SEC. 7060. (a) BASIC EDUCATION AND HIGHER EDUCATION.—

(1) BASIC EDUCATION.—

(A) Of the funds appropriated under title III of this Act, not less than $975,000,000 shall be made available for assistance for basic education, and such funds may be made available notwithstanding any other provision of law that restricts assistance to foreign countries: Provided, That such funds shall also be used for secondary education activities: Provided further, That of the funds made available by this paragraph not less than $150,000,000 shall be available for the education of girls in areas of conflict: Provided further, That the Administrator of the United States Agency for International Development, following consultation with the Committees on Appropriations, may reprogram such funds between countries: Provided further, That funds made available under the headings ''Development Assistance'' and ''Economic Support Fund'' for the support of nonstate schools in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be subject to the regular notification procedures of the Committees on Appropriations.

(B) Of the funds appropriated under title III of this Act for assistance for basic education programs, not less than $125,000,000 shall be made available for contributions to multilateral partnerships that support education.

(C) Funds appropriated under title III of this Act and made available for assistance for basic education as provided for in this paragraph shall be referred to as the ''Nita M. Lowey Basic Education Fund''.

(2) HIGHER EDUCATION.—Of the funds appropriated by title III of this Act, not less than $235,000,000 shall be made available for assistance for higher education: Provided, That such funds may be made available notwithstanding

any other provision of law that restricts assistance to foreign countries, and shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That of such amount, not less than $35,000,000 shall be made available for new and ongoing partnerships between higher education institutions in the United States and developing countries focused on building the capacity of higher education institutions and systems in developing countries: Provided further, That not later than 45 days after enactment of this Act, the USAID Administrator shall consult with the Committees on Appropriations on the proposed uses of funds for such partnerships.

(b) DEVELOPMENT PROGRAMS.—Of the funds appropriated by this Act under the heading ''Development Assistance'', not less than $17,000,000 shall be made available for cooperative development programs of USAID and not less than $30,000,000 shall be made available for the American Schools and Hospitals Abroad program.

(c) ENVIRONMENT PROGRAMS.—

(1)(A) Funds appropriated by this Act to carry out the provisions of sections 103 through 106, and chapter 4 of part II, of the Foreign Assistance Act of 1961 may be used, notwithstanding any other provision of law, except for the provisions of this subsection, to support environment programs.

(B) Funds made available pursuant to this subsection shall be subject to the regular notification procedures of the Committees on Appropriations.

(C) Of the funds made available under the heading ''Economic Support Fund'' in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs, not less than $500,000,000 shall be made available for a contribution, grant, or any other available funding mechanism to a dedicated international fund to assist developing nations to reduce greenhouse gas emissions and pursue adaptation and mitigation strategies: Provided, That any such use of funds shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations.

(2)(A) Of the funds appropriated under title III of this Act, not less than $315,000,000 shall be made available for biodiversity conservation programs.

(B) Not less than $100,664,000 of the funds appropriated under titles III and IV of this Act shall be made available to combat the transnational threat of wildlife poaching and trafficking.

(C) None of the funds appropriated under title IV of this Act may be made available for training or other assistance for any military unit or personnel that the Secretary of State determines has been credibly alleged to have participated in wildlife poaching or trafficking, unless the Secretary reports to the appropriate congressional committees that to do so is in the national security interest of the United States.

(D) Funds appropriated by this Act for biodiversity programs shall not be used to support the expansion of industrial scale logging or any other industrial scale extractive activity into areas that were primary/intact tropical forests as of December 30, 2013, and the Secretary of the Treasury shall instruct the United States executive directors of each international financial institutions (IFI) to use the voice and vote of the United States to oppose any financing of any such activity.

(3) The Secretary of the Treasury shall instruct the United States executive director of each IFI that it is the policy of the United States to use the voice and vote of the United States, in relation to any loan, grant, strategy, or policy of such institution, regarding the construction of any large dam in a manner consistent with the criteria set forth in Senate Report 114–79, while also considering whether the project involves important foreign policy objectives.

(4) Of the funds appropriated under title III of this Act, not less than $135,000,000 shall be made available for sustainable landscapes programs.

(5) Of the funds appropriated under title III of this Act, not less than $177,000,000 shall be made available for adaptation programs.

(6) Of the funds appropriated under title III of this Act, not less than $179,000,000 shall be made available for renewable energy programs.

(d) FOOD SECURITY AND AGRICULTURAL DEVELOPMENT.—Of the funds appropriated by title III of this Act, not less than $1,005,600,000 shall be made available for food security and agricultural development programs to carry out the purposes of the Global Food Security Act of 2016 (Public Law 114–195): Provided, That funds may be made available for a contribution as authorized by section 3202 of the Food, Conservation, and Energy Act of 2008 (Public Law 110–246), as amended by section 3310 of the Agriculture Improvement Act of 2018 (Public Law 115–334).

(e) MICRO, SMALL, AND MEDIUM-SIZED ENTERPRISES.—Of the funds appropriated by this Act, not less than $265,000,000 shall be made available to support the development of, and access to financing for, micro, small, and medium-sized enterprises that benefit the poor, especially women.

(f) PROGRAMS TO COMBAT TRAFFICKING IN PERSONS.—Of the funds appropriated by this Act under the headings ''Development Assistance'', ''Economic Support Fund'', ''Assistance for Europe, Eurasia and Central Asia'', and ''International Narcotics Control and Law Enforcement'', not less than $67,000,000 shall be made available for activities to combat trafficking in persons internationally, of which not less than $45,000,000 shall be from funds made available under the heading ''International Narcotics Control and Law Enforcement'': Provided, That funds appropriated by this Act that are made available for programs to end modern slavery shall be in addition to funds made available by this subsection to combat trafficking in persons.

(g) RECONCILIATION PROGRAMS.—Of the funds appropriated by this Act under the heading ''Development Assistance'', not less than $30,000,000 shall be made available to support people-to-people reconciliation programs which bring together individuals of different ethnic, religious, and political backgrounds from areas of civil strife and war, including cross-border programs between Israelis and Palestinians: Provided, That the USAID Administrator shall consult with the Committees on Appropriations, prior to the initial obligation of funds, on the uses of such funds, and such funds shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That to the maximum extent practicable, such funds shall be matched by sources other than the United States Government: Provided further, That such funds shall be administered by the Office of Conflict Management and Mitigation, USAID.

(h) WATER AND SANITATION.—Of the funds appropriated by this Act, not less than $450,000,000 shall be made available for water supply and sanitation projects pursuant to section 136 of the Foreign Assistance Act of 1961, of which not less than $225,000,000 shall be for programs in sub-Saharan Africa, and of which not less than $15,000,000 shall be made available to support initiatives by local communities in developing countries to build and maintain safe latrines.

BUDGET DOCUMENTS

SEC. 7061. (a) OPERATING PLANS.—Not later than 45 days after enactment of this Act, each department, agency, or organization funded in titles I, II, and VI of this Act, and the Department of the Treasury and Independent Agencies funded in title III of this Act, including the Inter-American Foundation and the United States African Development Foundation, shall submit to the Committees on Appropriations an operating plan for funds appropriated to such department, agency, or organization in such titles of this Act, or funds otherwise available for obligation in fiscal year 2021, that provides details of the uses of such funds at the program, project, and activity level: Provided, That such plans shall include, as applicable, a comparison between the congressional budget justification funding levels, the most recent congressional directives or approved funding levels, and the funding levels proposed by the department or agency; and a clear, concise, and informative description/justification: Provided further, That operating plans that include changes in levels of funding for programs, projects, and activities specified in the congressional budget justification, in this Act, or amounts specifically designated in the respective tables included in the report accompanying this Act, as applicable, shall be subject to the notification and reprogramming requirements of section 7015 of this Act.

(b) SPEND PLANS.—

(1) Not later than 90 days after enactment of this Act, the Secretary of State or Administrator of the United States Agency for International Development, as appropriate, shall submit to the Committees on Appropriations a spend plan for funds made available by this Act, for—

(A) assistance for Afghanistan, Iraq, Lebanon, Pakistan, Colombia, and countries in Central America;

(B) assistance made available pursuant to section 7047(d) of this Act to counter Russian influence and aggression, except that such plan shall be on a country-by-country basis;

(C) assistance made available pursuant to section 7059 of this Act;

(D) the Indo-Pacific Strategy and the Countering Chinese Influence Fund;

(E) democracy programs, Power Africa, Prosper Africa, and sectors enumerated in subsections (a), (c), (d), (e), (f), (g) and (h) of section 7060 of this Act;

(F) funds provided under the heading ''International Narcotics Control and Law Enforcement'' for International Organized Crime and for Cybercrime and Intellectual Property Rights: Provided, That the spend plans shall include bilateral and global programs funded under such heading along with a brief description of the activities planned for each country; and

(G) the regional security initiatives described under this heading in Senate Report 116–126.

(2) Not later than 90 days after enactment of this Act, the Secretary of the Treasury shall submit to the Committees on Appropriations a detailed spend plan for funds made available by this Act under the heading ''Department of the Treasury, International Affairs Technical Assistance'' in title III.

(c) CLARIFICATION.—The spend plans referenced in subsection (b) shall not be considered as meeting the notification requirements in this Act or under section 634A of the Foreign Assistance Act of 1961.

(d) CONGRESSIONAL BUDGET JUSTIFICATION.—

(1) SUBMISSION.—The congressional budget justification for Department of State operations and foreign operations shall be provided to the Committees on Appropriations concurrent with the date of submission of the President's budget for fiscal year 2022: Provided, That the appendices for such justification shall be provided to the Committees on Appropriations not later than 10 calendar days thereafter.

(2) MULTI-YEAR AVAILABILITY OF CERTAIN FUNDS.—The Secretary of State and the USAID Administrator shall include in the congressional budget justification a detailed justification for multi-year availability for any funds requested under the headings ''Diplomatic Programs'' and ''Operating Expenses''.

REORGANIZATION

SEC. 7062. (a) OVERSIGHT.—

(1) PRIOR CONSULTATION AND NOTIFICATION.—Funds appropriated by this Act, prior Acts making appropriations for the Department of State,

foreign operations, and related programs, or any other Act may not be used to implement a reorganization, redesign, or other plan described in paragraph (2) by the Department of State, the United States Agency for International Development, or any other Federal department, agency, or organization funded by this Act without prior consultation by the head of such department, agency, or organization with the appropriate congressional committees: Provided, That such funds shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That any such notification submitted to such Committees shall include a detailed justification for any proposed action, including the information specified under section 7073 of the joint explanatory statement accompanying the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2019 (division F of Public Law 116–6): Provided further, That congressional notifications submitted in prior fiscal years pursuant to similar provisions of law in prior Acts making appropriations for the Department of State, foreign operations, and related programs may be deemed to meet the notification requirements of this section.

(2) DESCRIPTION OF ACTIVITIES.—Pursuant to paragraph (1), a reorganization, redesign, or other plan shall include any action to—

(A) expand, eliminate, consolidate, or downsize covered departments, agencies, or organizations, including bureaus and offices within or between such departments, agencies, or organizations, including the transfer to other agencies of the authorities and responsibilities of such bureaus and offices;

(B) expand, eliminate, consolidate, or downsize the United States official presence overseas, including at bilateral, regional, and multilateral diplomatic facilities and other platforms; or

(C) reduce the size of the permanent Civil Service, Foreign Service, eligible family member, and locally employed staff workforce of the Department of State and USAID from the levels specified in sections 7063(d)(1) and 7064(i)(1) of this Act.

(b) ADDITIONAL REQUIREMENTS AND LIMITATIONS.—

(1) USAID REORGANIZATION.—Not later than 30 days after enactment of this Act, and quarterly thereafter until September 30, 2022, the USAID Administrator shall submit a report to the appropriate congressional committees on the status of USAID's reorganization in the manner described in House Report 116–78.

(2) BUREAU OF POPULATION, REFUGEES, AND MIGRATION, DEPARTMENT OF STATE.—None of the funds appropriated by this Act, prior Acts making appropriations for the Department of State, foreign operations, and related programs, or any other Act may be used to downsize, downgrade, consolidate, close, move, or relocate the Bureau of Population, Refugees, and Migration, Department of State, or any activities of such Bureau, to another Federal agency.

(3) ADMINISTRATION OF FUNDS.—Funds made available by this Act—

(A) under the heading ''Migration and Refugee Assistance'' shall be administered by the Assistant Secretary for Population, Refugees, and Migration, Department of State, and this responsibility shall not be delegated; and

(B) that are made available for the Office of Global Women's Issues shall be administered by the United States Ambassador-at-Large for Global Women's Issues, Department of State, and this responsibility shall not be delegated.

DEPARTMENT OF STATE MANAGEMENT

SEC. 7063. (a) FINANCIAL SYSTEMS IMPROVEMENT.—Funds appropriated by this Act for the operations of the Department of State under the headings ''Diplomatic Programs'' and ''Capital Investment Fund'' shall be made available to implement the recommendations contained in the Foreign Assistance Data Review Findings Report (FADR) and the Office of Inspector General (OIG) report entitled ''Department Financial Systems Are Insufficient to Track and Report on Foreign Assistance Funds'': Provided, That such funds may not be obligated for enhancements to, or expansions of, the Budget System Modernization Financial System, Central Resource Management System, Joint Financial Management System, or Foreign Assistance Coordination and Tracking System until such updated plan is submitted to the Committees on Appropriations: Provided further, That such funds may not be obligated for new, or expansion of existing, ad hoc electronic systems to track commitments, obligations, or expenditures of funds unless the Secretary of State, following consultation with the Chief Information Officer of the Department of State, has reviewed and certified that such new system or expansion is consistent with the FADR and OIG recommendations: Provided further, That not later than 45 days after enactment of this Act, the Secretary of State shall submit to the Committees on Appropriations an update to the plan required under section 7006 of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2017 (division J of Public Law 115–31) for implementing the FADR and OIG recommendations.

(b) WORKING CAPITAL FUND.—Funds appropriated by this Act or otherwise made available to the Department of State for payments to the Working Capital Fund may only be used for the service centers included in the Congressional Budget Justification, Department of State, Foreign Operations, and Related Programs, Fiscal Year 2021: Provided, That the amounts for such service centers shall be the amounts included in such budget justification, except as provided in section 7015(b) of this Act: Provided further, That Federal agency components shall be charged only for their direct usage of each Working Capital Fund service: Provided further, That prior to increasing the percentage charged to Department of State bureaus and offices for procurement-related activities, the Secretary of State shall include the proposed increase in the Department of State budget justification or, at least 60 days prior to the increase, provide the Committees on Appropriations a justification for such increase, including a detailed assessment of the cost and benefit of the services provided by the procurement fee: Provided further, That Federal agency components may only pay for Working Capital Fund services that are consistent with the purpose and authorities of such components: Provided further, That the Working Capital Fund shall be paid in advance or reimbursed at rates which will return the full cost of each service.

(c) CERTIFICATION.—

(1) COMPLIANCE.—Not later than 45 days after the initial obligation of funds appropriated under titles III and IV of this Act that are made available to a Department of State bureau or office with responsibility for the management and oversight of such funds, the Secretary of State shall certify and report to the Committees on Appropriations, on an individual bureau or office basis, that such bureau or office is in compliance with Department and Federal financial and grants management policies, procedures, and regulations, as applicable.

(2) CONSIDERATIONS.—When making a certification required by paragraph (1), the Secretary of State shall consider the capacity of a bureau or office to—

(A) account for the obligated funds at the country and program level, as appropriate;

(B) identify risks and develop mitigation and monitoring plans;

(C) establish performance measures and indicators;

(D) review activities and performance; and

(E) assess final results and reconcile finances.

(3) PLAN.—If the Secretary of State is unable to make a certification required by paragraph (1), the Secretary shall submit a plan and timeline detailing the steps to be taken to bring such bureau or office into compliance.

(d) PERSONNEL LEVELS.—

(1) Funds made available by this Act are made available to support the permanent Foreign Service and Civil Service staff levels of the Department of State at not less than the hiring targets established in the fiscal year 2020 operating plan.

(2) Not later than 60 days after enactment of this Act, and every 60 days thereafter until September 30, 2022, the Secretary of State shall report to the appropriate congressional committees on the on-board personnel levels, hiring, and attrition of the Civil Service, Foreign Service, eligible family member, and locally employed staff workforce of the Department of State, on an operating unit-by-operating unit basis: Provided, That such report shall also include a hiring plan, including timelines, for maintaining the agency-wide, on-board Foreign Service and Civil Service at not less than the levels specified in paragraph (1).

(e) INFORMATION TECHNOLOGY PLATFORM.—

(1) None of the funds appropriated in title I of this Act under the heading ''Administration of Foreign Affairs'' may be made available for a new major information technology (IT) investment without the concurrence of the Chief Information Officer, Department of State.

(2) None of the funds appropriated in title I of this Act under the heading ''Administration of Foreign Affairs'' may be used by an agency to submit a project proposal to the Technology Modernization Board for funding from the Technology Modernization Fund unless, not later than 15 days in advance of submitting the project proposal to the Board, the head of the agency—

(A) notifies the Committees on Appropriations of the proposed submission of the project proposal; and

(B) submits to the Committees on Appropriations a copy of the project proposal.

(3) None of the funds appropriated in title I of this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Administration of Foreign Affairs'' may be used by an agency to carry out a project that is approved by the Board unless the head of the agency—

(A) submits to the Committees on Appropriations a copy of the approved project proposal, including the terms of reimbursement of funding received for the project; and

(B) agrees to submit to the Committees on Appropriations a copy of each report relating to the project that the head of the agency submits to the Board.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT MANAGEMENT

SEC. 7064. (a) AUTHORITY.—Up to $100,000,000 of the funds made available in title III of this Act pursuant to or to carry out the provisions of part I of the Foreign Assistance Act of 1961, including funds appropriated under the heading ''Assistance for Europe, Eurasia and Central Asia'', may be used by the United States Agency for International Development to hire and employ individuals in the United States and overseas on a limited appointment basis pursuant to the authority of sections 308 and 309 of the Foreign Service Act of 1980 (22 U.S.C. 3948 and 3949).

(b) RESTRICTION.—The authority to hire individuals contained in subsection (a) shall expire on September 30, 2022.

(c) PROGRAM ACCOUNT CHARGED.—The account charged for the cost of an individual hired and employed under the authority of this section shall be the account to which the responsibilities of such individual primarily relate: Provided, That funds made available to carry out this section may be transferred to, and merged with, funds appropriated by this Act in title II under the heading ''Operating Expenses''.

(d) FOREIGN SERVICE LIMITED EXTENSIONS.—Individuals hired and employed by USAID, with funds made available in this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs, pursuant to the authority of section 309 of the Foreign Service Act of 1980 (22 U.S.C. 3949), may be extended for a period of up to 4 years notwithstanding the limitation set forth in such section.

(e) DISASTER SURGE CAPACITY.—Funds appropriated under title III of this Act to carry out part I of the Foreign Assistance Act of 1961, including funds appropriated under the heading ''Assistance for Europe, Eurasia and Central Asia'', may be used, in addition to funds otherwise available for such purposes, for the cost (including the support costs) of individuals detailed to or employed by USAID whose primary responsibility is to carry out programs in response to natural disasters, or man-made disasters subject to the regular notification procedures of the Committees on Appropriations.

(f) PERSONAL SERVICES CONTRACTORS.—Funds appropriated by this Act to carry out chapter 1 of part I, chapter 4 of part II, and section 667 of the Foreign Assistance Act of 1961, and title II of the Food for Peace Act (Public Law 83–480; 7 U.S.C. 1721 et seq.), may be used by USAID to employ up to 40 personal services contractors in the United States, notwithstanding any other provision of law, for the purpose of providing direct, interim support for new or expanded overseas programs and activities managed by the agency until permanent direct hire personnel are hired and trained: Provided, That not more than 15 of such contractors shall be assigned to any bureau or office: Provided further, That such funds appropriated to carry out title II of the Food for Peace Act (Public Law 83–480; 7 U.S.C. 1721 et seq.), may be made available only for personal services contractors assigned to the Bureau for Humanitarian Assistance.

(g) SMALL BUSINESS.—In entering into multiple award indefinite-quantity contracts with funds appropriated by this Act, USAID may provide an exception to the fair opportunity process for placing task orders under such contracts when the order is placed with any category of small or small disadvantaged business.

(h) SENIOR FOREIGN SERVICE LIMITED APPOINTMENTS.—Individuals hired pursuant to the authority provided by section 7059(o) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2010 (division F of Public Law 111–117) may be assigned to or support programs in Afghanistan or Pakistan with funds made available in this Act and prior Acts making appropriations for the Department of State, foreign operations, and related programs.

(i) PERSONNEL LEVELS.—

(1) Funds made available by this Act under the heading ''Operating Expenses'' are made available to support not less than 1,850 permanent Foreign Service Officers and 1,600 permanent Civil Service staff.

(2) Not later than 60 days after enactment of this Act, and every 60 days thereafter until September 30, 2022, the USAID Administrator shall report to the appropriate congressional committees on the on-board personnel levels, hiring, and attrition of the Civil Service, Foreign Service, and foreign service national workforce of USAID, on an operating unit-by-operating unit basis: Provided, That such report shall also include a hiring plan, including timelines, for maintaining the agency-wide, on-board Foreign Service Officers and Civil Service staff at not less than the levels specified in paragraph (1).

STABILIZATION AND DEVELOPMENT IN REGIONS IMPACTED BY EXTREMISM AND CONFLICT

SEC. 7065. (a) PREVENTION AND STABILIZATION FUND.—

(1) FUNDS AND TRANSFER AUTHORITY.—Of the funds appropriated by this Act under the headings ''Economic Support Fund'', ''International Narcotics Control and Law Enforcement'', ''Nonproliferation, Anti-terrorism, Demining and Related Programs'', ''Peacekeeping Operations'', and ''Foreign Military Financing Program'', up to $100,000,000 may be made available for the Prevention and Stabilization Fund for the purposes enumerated in section 509(a) of the Global Fragility Act of 2019 (title V of division J of Public Law 116–94): Provided, That unless specifically designated in this Act or in the report accompanying this Act for assistance for countries, such funds are in addition to amounts otherwise made available for such purposes: Provided further, That such funds appropriated under such headings may be transferred to, and merged with, funds appropriated under such headings: Provided further, That such transfer authority is in addition to any other transfer authority provided by this Act or any other Act, and is subject to the regular notification procedures of the Committees on Appropriations.

(2) TRANSITIONAL JUSTICE.—Of the funds appropriated by this Act under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'' that are made available for the Prevention and Stabilization Fund, not less than $10,000,000 may be made available for programs to promote accountability for genocide, crimes against humanity, and war crimes, including in Iraq and Syria, which shall be in addition to any other funds made available by this Act for such purposes: Provided, That such programs shall include components to develop local investigative and judicial skills, and to collect and preserve evidence and maintain the chain of custody of evidence, including for use in prosecutions, and may include the establishment of, and assistance for, transitional justice mechanisms: Provided further, That such funds shall be administered by the Special Coordinator for the Office of Global Criminal Justice, Department of State: Provided further, That funds made available by this paragraph shall be made available on an open and competitive basis.

(b) GLOBAL CONCESSIONAL FINANCING FACILITY.—Of the funds appropriated by this Act under the heading ''Economic Support Fund'', $25,000,000 may be made available for the Global Concessional Financing Facility of the World Bank to provide financing to support refugees and host communities: Provided, That such funds shall be in addition to funds allocated for bilateral assistance in the report required by section 653(a) of the Foreign Assistance Act of 1961, and may only be made available subject to prior consultation with the Committees on Appropriations.

PROHIBITION ON FUNDING FOR ABORTIONS AND INVOLUNTARY STERILIZATION

SEC. 7066. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be used to pay for the performance of abortions as a method of family planning or to motivate or coerce any person to practice abortions. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be used to pay for the performance of involuntary sterilization as a method of family planning or to coerce or provide any financial incentive to any person to undergo sterilizations. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be used to pay for any biomedical research which relates in whole or in part, to methods of, or the performance of, abortions or involuntary sterilization as a means of family planning. None of the funds made available to carry out part I of the Foreign Assistance Act of 1961, as amended, may be obligated or expended for any country or organization if the President certifies that the use of these funds by any such country or organization would violate any of the above provisions related to abortions and involuntary sterilizations.

UNITED NATIONS POPULATION FUND

SEC. 7067. (a) CONTRIBUTION.—Of the funds made available under the heading ''International Organizations and Programs'' in this Act for fiscal year 2021, $55,500,000 shall be made available for the United Nations Population Fund (UNFPA).

(b) AVAILABILITY OF FUNDS.—Funds appropriated by this Act for UNFPA, that are not made available for UNFPA because of the operation of any provision of law, shall be transferred to the ''Global Health Programs'' account and shall be made available for family planning, maternal, and reproductive health activities, subject to the regular notification procedures of the Committees on Appropriations.

(c) PROHIBITION ON USE OF FUNDS IN CHINA.—None of the funds made available by this Act may be used by UNFPA for a country program in the People's Republic of China.

(d) CONDITIONS ON AVAILABILITY OF FUNDS.—Funds made available by this Act for UNFPA may not be made available unless—

(1) UNFPA maintains funds made available by this Act in an account separate from other accounts of UNFPA and does not commingle such funds with other sums; and

(2) UNFPA does not fund abortions.

(e) REPORT TO CONGRESS AND DOLLAR-FOR-DOLLAR WITHHOLDING OF FUNDS.—

(1) Not later than 4 months after the date of enactment of this Act, the Secretary of State shall submit a report to the Committees on Appropriations indicating the amount of funds that UNFPA is budgeting for the year in which the report is submitted for a country program in the People's Republic of China.

(2) If a report under paragraph (1) indicates that UNFPA plans to spend funds for a country program in the People's Republic of China in the year covered by the report, then the amount of such funds UNFPA plans to spend in the People's Republic of China shall be deducted from the funds made available to UNFPA after March 1 for obligation for the remainder of the fiscal year in which the report is submitted.

GLOBAL HEALTH ACTIVITIES

SEC. 7068. (a)(1) IN GENERAL.—Funds appropriated under the heading ''Global Health Programs'' in this Act that are made available for bilateral assistance for global health programs including activities relating to research on, and the prevention, treatment and control of, HIV/AIDS may be made available notwithstanding any other provision of law except for provisions under this section and the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 (117 Stat. 711; 22 U.S.C. 7601 et seq.), as amended: Provided, That of the funds appropriated under title III of this Act, not less than $750,000,000 shall be made available for family planning/reproductive health, including in areas where population growth threatens biodiversity or endangered species: Provided further, That none of the funds made available by this Act or prior Acts making appropriations for the Department of State, foreign operations, and related programs shall be made available to implement the Presidential Memorandum on Mexico City Policy dated January 23, 2017: Provided further, That none of the funds made available by this Act may be used in contravention of the conditions of section 7066 of this Act and section 104(f)(1) of the Foreign Assistance Act of 1961.

(2) PROHIBITION.—None of the funds made available in this Act nor any unobligated balances from prior appropriations Acts may be made available to any organization or program which, as determined by the President, directly supports or participates in the management of a program of coercive abortion or involuntary sterilization: Provided, That any determination made pursuant to this paragraph must be made not later than 6 months after the date of enactment of this Act, and must be accompanied by the evidence and criteria utilized to make the

determination: Provided further, That none of the funds made available under this Act may be used to pay for the performance of abortion as a method of family planning or to motivate or coerce any person to practice abortions: Provided further, That nothing in this paragraph shall be construed to alter any existing statutory prohibitions against abortion under section 104 of the Foreign Assistance Act of 1961: Provided further, That none of the funds made available under this Act may be used to lobby for or against abortion.

(3) LIMITATIONS.—In order to reduce reliance on abortion in developing nations, funds shall be available only to voluntary family planning projects which offer, either directly or through referral to, or information about access to, a broad range of family planning methods and services, and that any such voluntary family planning project shall meet the following requirements—

(A) service providers or referral agents in the project shall not implement or be subject to quotas, or other numerical targets, of total number of births, number of family planning acceptors, or acceptors of a particular method of family planning (this provision shall not be construed to include the use of quantitative estimates or indicators for budgeting and planning purposes);

(B) the project shall not include payment of incentives, bribes, gratuities, or financial reward to:

(i) an individual in exchange for becoming a family planning acceptor; or

(ii) program personnel for achieving a numerical target or quota of total number of births, number of family planning acceptors, or acceptors of a particular method of family planning;

(C) the project shall not deny any right or benefit, including the right of access to participate in any program of general welfare or the right of access to health care, as a consequence of any individual's decision not to accept family planning services;

(D) the project shall provide family planning acceptors comprehensible information on the health benefits and risks of the method chosen, including those conditions that might render the use of the method inadvisable and those adverse side effects known to be consequent to the use of the method; and

(E) the project shall ensure that experimental contraceptive drugs and devices and medical procedures are provided only in the context of a scientific study in which participants are advised of potential risks and benefits; and

(F) not less than 60 days after the date on which the USAID Administrator determines that there has been a violation of the requirements contained in subparagraphs (A), (B), (C), or (E) of this paragraph, or a pattern or practice of violations of the requirements contained in subparagraph (D) of such paragraph, the Administrator shall submit to the Committees on Appropriations a report containing a description of such violation and the corrective action taken by the Agency.

(4) NATURAL FAMILY PLANNING.—In awarding grants for natural family planning under section 104 of the Foreign Assistance Act of 1961, no applicant shall be discriminated against because of such applicant's religious or conscientious commitment to offer only natural family planning; and, additionally, all such applicants shall comply with the requirements of paragraph (3).

(5) DEFINITION.—For purposes of this or any other Act authorizing or appropriating funds for the Department of State, foreign operations, and related programs, the term ''motivate'', as it relates to family planning assistance, shall not be construed to prohibit the provision, consistent with local law, of information or counseling about all pregnancy options.

(6) INFORMATION.—Information provided about the use of condoms as part of projects or activities that are funded from amounts appropriated by this Act shall be medically accurate and shall include the public health benefits and failure rates of such use.

(7) HIV/AIDS WORKING CAPITAL FUND.—Funds available in the HIV/AIDS Working Capital Fund established pursuant to section 525(b)(1) of the Foreign Operations, Export Financing, and Related Programs Appropriations Act, 2005 (Public Law 108–447) may be made available for pharmaceuticals and other products for other global health, emerging infectious disease, and child survival activities to the same extent as HIV/AIDS pharmaceuticals and other products, subject to the terms and conditions in such section: Provided, That the authority in section 525(b)(5) of the Foreign Operations, Export Financing, and Related Programs Appropriation Act, 2005 (Public Law 108–447) shall be exercised by the Assistant Administrator for Global Health, USAID, with respect to funds deposited for such non-HIV/AIDS pharmaceuticals and other products, and shall be subject to the regular notification procedures of the Committees on Appropriations: Provided further, That the Secretary of State shall include in the congressional budget justification an accounting of budgetary resources, disbursements, balances, and reimbursements related to such fund.

(b) INFECTIOUS DISEASE OUTBREAKS.—

(1) EXTRAORDINARY MEASURES.—If the Secretary of State determines and reports to the Committees on Appropriations that an international infectious disease outbreak is sustained, severe, and is spreading internationally, or that it is in the national interest to respond to a Public Health Emergency of International Concern, funds appropriated by this Act under the headings ''Global Health Programs'', ''Development Assistance'', ''International Disaster Assistance'', ''Complex Crises Fund'', ''Economic Support Fund'', ''Democracy Fund'', ''Assistance for Europe, Eurasia and Central Asia'', ''Migration and Refugee Assistance'', and ''Millennium Challenge Corporation'' may be made available to combat such infectious disease or public health emergency, and may be transferred to, and merged with, funds appropriated under such headings for the purposes of this paragraph.

(2) EMERGENCY RESERVE FUND.—Up to $50,000,000 of the funds made available under the heading ''Global Health Programs'' may be made available for the Emergency Reserve Fund established pursuant to section 7058(c)(1) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2017 (division J of Public Law 115–31): Provided, That such funds shall be made available under the same terms and conditions of such section, as amended.

(3) CONSULTATION AND NOTIFICATION.—Funds made available by this subsection shall be subject to prior consultation with the appropriate congressional committees and the regular notification procedures of the Committees on Appropriations.

ASSISTANCE FOR FOREIGN NONGOVERNMENTAL ORGANIZATIONS

SEC. 7069. The Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) is amended by inserting after section 104C the following:

''SEC. 104D ELIGIBILITY FOR ASSISTANCE.

''Notwithstanding any other provision of law, regulation, or policy, in determining eligibility for assistance under sections 104, 104A, 104B, and 104C, a foreign nongovernmental organization—

''(1) shall not be ineligible for such assistance solely on the basis of health or medical services, including counseling and referral services, provided by such organization with non-United States Government funds if such services—

''(A) are permitted in the country in which they are being provided; and

''(B) would not violate United States law if provided in the United States; and

''(2) shall not be subject to requirements relating to the use of non-United States Government funds for advocacy and lobbying activities other than those that apply to United States nongovernmental organizations receiving assistance under this part.''.

TITLE VIII

CORONAVIRUS PANDEMIC PREPAREDNESS AND RESPONSE EMERGENCY FUNDING

DEPARTMENT OF STATE

ADMINISTRATION OF FOREIGN AFFAIRS

DIPLOMATIC PROGRAMS

For an additional amount for ''Diplomatic Programs'', $955,000,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus, including for evacuation expenses, emergency preparedness, maintaining consular operations, and other operations and maintenance requirements related to the consequences of coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $4,400,000, to remain available until September 30, 2022, for oversight of funds administered by the Department of State and made available to prevent, prepare for, and respond to coronavirus by this title and by prior acts: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

FUNDS APPROPRIATED TO THE PRESIDENT

OPERATING EXPENSES

For an additional amount for ''Operating Expenses'', $105,000,000, to remain available until September 30, 2022, to prevent, prepare for, and respond to coronavirus and for other operations and maintenance requirements related to the consequences of coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional ammount for ''Office of Inspector General'', $3,000,000, to remain available until September 30, 2022, for oversight of funds administered by the United States Agency for International Development and made available to prevent, prepare for, and respond to coronavirus by this title and by prior acts: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985

BILATERAL ECONOMIC ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

GLOBAL HEALTH PROGRAMS

For an additional amount for ''Global Health Programs'', $2,500,000,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus: Provided, That such funds shall be administered by the Administrator of the United States Agency for International Development: Provided further, That of the funds appropriated under this heading in this title, not less than $150,000,000 shall be transferred to, and merged with, funds made available for the Emergency Reserve Fund established pursuant to section 7058(c)(1) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2017 (division J of Public Law 115–31): Provided further, That funds made available pursuant to the preceding proviso shall be made available under the terms and

conditions of such section, as amended: Provided further, That funds appropriated under this heading in this title shall be made available for a contribution to a multilateral vaccine development partnership to support epidemic preparedness: Provided further, That of the funds appropriated under this heading in this title, not less than $750,000,000 shall be made available for a United States contribution to The GAVI Alliance and not less than $800,000,000 shall be made available as a United States contribution to the Global Fund to Fight AIDS, Tuberculosis and Malaria (Global Fund): Provided further, That funds made available to the Global Fund pursuant to the previous proviso shall be made available notwithstanding section 202(d)(4)(A)(i) of the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 (22 U.S.C. 7622(d)(4)(A)(i)): Provided further, That funds appropriated under this heading for fiscal years 2020 and 2021 which are designated as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 and made available as a United States contribution to the Global Fund shall not be considered a contribution for the purpose of applying such section 202(d)(4)(A)(i): Provided further, That funds made available under this heading in this title shall be allocated and allotted not later than 60 days after the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEVELOPMENT ASSISTANCE

For an additional amount for ''Development Assistance'', $900,000,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic, and stabilization requirements, of which not less than $150,000,000 shall be made available to maintain access to basic education and to not-for-profit institutions of higher education for costs related to the consequences of coronavirus: Provided, That such institutions of higher education shall meet standards equivalent to those required for United States institutional accreditation by a regional accreditation agency recognized by the United States Department of Education: Provided further, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INTERNATIONAL DISASTER ASSISTANCE

For an additional amount for ''International Disaster Assistance'', $1,125,000,000, to remain available until expended, for necessary expenses to prevent, prepare for, and respond to coronavirus: Provided, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ECONOMIC SUPPORT FUND

For an additional amount for ''Economic Support Fund'', $1,500,000,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic and stabilization requirements: Provided, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ASSISTANCE FOR EUROPE, EURASIA AND CENTRAL ASIA

For an additional amount for ''Assistance for Europe, Eurasia and Central Asia'', $500,000,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic and stabilization requirements: Provided, funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENT OF STATE

MIGRATION AND REFUGEE ASSISTANCE

For an additional amount for ''Migration and Refugee Assistance'', $1,125,000,000, to remain available until expended, for necessary expenses to prevent, prepare for, and respond to coronavirus: Provided, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INDEPENDENT AGENCIES

INTER-AMERICAN FOUNDATION

For an additional amount for ''Inter-American Foundation'', $10,000,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic and stabilization requirements: Provided, that funds made avaiable under this heading in this title shall be allocated and allotted within 60 days of the enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

UNITED STATES AFRICAN DEVELOPMENT FOUNDATION

For an additional amount for ''United States African Development Foundation'', $10,000,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic and stabilization requirements: Provided, that funds made available under this heading in this title shall be allocated and allotted within 60 days of the enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MULTILATERAL ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

INTERNATIONAL ORGANIZATIONS AND PROGRAMS

For an additional amount for ''International Organizations and Programs'', $1,281,150,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus and to support the United Nations Global Humanitarian Response Plan COVID–19: Provided, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS — THIS TITLE

(INCLUDING TRANSFER OF FUNDS)

TRANSFERS AND LIMITATIONS

SEC. 8001. The authorities and limitations of section 402 of the Coronavirus Preparedness and Response Supplemental Appropriations Act (division A of Public Law 116–123) shall apply to funds appropriated by this title as follows:

(1) Subsections (a), (d), (e), and (f) shall apply to funds under the heading ''Diplomatic Programs''; and

(2) Subsections (c), (d), (e), and (f) shall apply to funds under the heading ''Global Health Programs'', ''Development Assistance'', ''International Disaster Assistance'', ''Economic Support Fund'', and ''Migration and Refugee Assistance''.

REIMBURSEMENT AUTHORITY

SEC. 8002. Funds appropriated by this title under the headings ''Diplomatic Programs'', ''Operating Expenses'', ''Global Health Programs'', ''Development Assistance'', ''International Disaster Assistance'', ''Economic Support Fund'', ''Assistance for Europe, Eurasia and Central Asia'', ''Migration and Refugee Assistance'', ''Inter-American Foundation'', and ''United States African Development Foundation'' may be used to reimburse such accounts administered by the Department of State and the United States Agency for International Development for obligations incurred to prevent, prepare for, and respond to coronavirus prior to the date of enactment of this Act.

REPORTING REQUIREMENTS

SEC. 8003. The reporting requirements of section 406(b) of the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (division A of Public Law 116–123) shall apply to funds appropriated by this title.

CONTRIBUTION AUTHORITY

SEC. 8004. Section 404 of the Coronavirus Preparedness and Response Supplemental Appropriations Act (division A of Public Law 116–123) shall apply to funds appropriated by this title under the same headings as specified by such section.

REPATRIATION LOANS PROGRAM ACCOUNT

SEC. 8005. Section 21005 of the Emergency Appropriations for Coronavirus Health Response and Agency Operations (division B of Public Law 116–136) is amended by inserting at the end before the period ''and is further amended by striking '$5,563,619' in the second proviso under the heading 'Repatriation Loans Program Account' and inserting in lieu thereof '$15,563,619' ''.

CONSULAR SERVICES

SEC. 8006. Section 21009 of the Emergency Appropriations for Coronavirus Health Response and Agency Operations (division B of Public Law 116–136) is amended by striking ''fiscal year 2020'' and inserting in lieu thereof ''fiscal years 2020 and 2021'': Provided, That the amount provided by this section is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEFINITION

SEC. 8007. In this title, the term ''coronavirus'' means SARS–CoV–2 or another coronavirus with pandemic potential.

TITLE IX

MIDDLE EAST PARTNERSHIP FOR PEACE

SEC. 9001. SHORT TITLE.

This title may be cited as the ''Middle East Partnership for Peace Act of 2020''.

SEC. 9002. FINDINGS.

Congress finds the following:

(1) Economic development in conflict settings has been shown to support stabilization by empowering entrepreneurs, growing the middle class, and mitigating unemployment.

(2) In 2018, unemployment in the Palestinian territories was 32.4 percent. Gross Domestic Product (GDP) growth in the Palestinian territories declined from 2017 to 2019, and it is projected to further decline in 2020.

(3) According to the World Bank Ad Hoc Liaison Committee's April 2019 Economic Monitoring Report, ''to achieve sustainable economic growth, in the Palestinian territories, growth and job creation going forward will need to be private sector driven''.

(4) According to the 2018 Joint Strategic Plan of the Department of State and the United States Agency for International Development, ''assistance can help prevent new recruitment to terrorist organizations, reduce levels of violence, promote legitimate governance structures that strengthen inclusion, and reduce policies that marginalize communities''.

(5) Although economic development is an important tool for stabilizing conflict-prone settings and establishing connections between communities, economic development by itself will not lead to lasting peace. People-to-people peace-building programs further advance reconciliation efforts by promoting greater understanding, mutual trust, and cooperation between communities.

(6) While the United States and its international partners continue to support diplomatic and political negotiations between the representatives of the parties to the Israeli-Palestinian conflict, such efforts require broad popular support among the people on the ground to succeed.

(7) Achieving sustainable, high-level agreements for lasting peace in the Middle East must come through, and with the support of, the people who live there, and the United States and its international partners can help the people of the region build popular support for sustainable agreements for lasting peace.

SEC. 9003. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) building a viable Palestinian economy is central to the effort to preserve the possibility of a negotiated settlement leading to a sustainable two-state solution with the democratic, Jewish state of Israel and a demilitarized, democratic Palestinian state living side-by-side in peace, security, and mutual recognition;

(2) United States and international support for grassroots, people-to-people efforts aimed at fostering tolerance, and building support for a such solution, can help counter extremist propaganda and the growing issue of incitement;

(3) strengthening engagement between Palestinians, Israelis, and through people-to-people peace-building programs can increase the bonds of friendship and understanding;

(4) investing in the development of the Palestinian economy and in joint economic ventures can advance multiple sectors to the benefit of local, regional, and global parties; and

(5) Congress encourages cooperation between Palestinian, American, and Israeli business sectors in order to benefit the Palestinian, American, and Israeli peoples and economies.

SEC. 9004. PEOPLE-TO-PEOPLE PARTNERSHIP FOR PEACE FUND.

Chapter 4 of part II of the Foreign Assistance Act of 1961 (22 U.S.C. 2346 et seq.) is amended by adding at the end the following:

''SEC. 535 PEOPLE-TO-PEOPLE PARTNERSHIP FOR PEACE FUND.

''(a) ESTABLISHMENT.—Beginning on the date that is one year after the date of enactment of this section, the Administrator of the United States Agency for International Development is authorized to establish a program to provide funding for projects to help build the foundation for peaceful co-existence between Israelis and Palestinians and for a sustainable two-state solution. The program established under this subsection shall be known as the 'People-to-People Partnership for Peace Fund' (referred to in this section as the 'Fund').

''(b) ELIGIBILITY FOR SUPPORT.—In providing funding for projects through the Fund, the Administrator may provide support for qualified organizations, prioritizing those organizations that seek to build better cooperation between Israelis and Palestinians, including Palestinian organizations, Israeli organizations, and international organizations that bring Israelis and Palestinians together.

''(c) ADDITIONAL ELIGIBILITY FOR SUPPORT.—In providing funding for projects through the Fund, The Administrator may additionally provide support to qualified organizations that further shared community building, peaceful co-existence, dialogue, and reconciliation between Arab and Jewish citizens of Israel.

''(d) CONTRIBUTIONS.—The Administrator—

''(1) is encouraged to work with foreign governments and international organizations to leverage the impact of United States resources and achieve the objectives of this section; and

''(2) is authorized to make and accept contributions for the purposes of the Fund, consistent with subsections (b) and (d) of section 635.

''(e) ADVISORY BOARD.—

''(1) ESTABLISHMENT.—The Administrator shall establish an advisory board to make recommendations to the Administrator regarding the types of projects that should be funded through the Fund.

''(2) MEMBERSHIP.—

''(A) IN GENERAL.—Subject to subparagraph (B), the advisory board shall be composed of 13 members, none of whom may be Members of Congress, who shall be appointed for renewable periods of 3 years, as follows:

''(i) One member appointed by the Administrator, in consultation with the Secretary of State.

''(ii) One member appointed by the chair, and one member appointed by the ranking member, of the Committee on Foreign Relations of the Senate.

''(iii) One member appointed by the chair, and one member appointed by the ranking member, of the Committee on Foreign Affairs of the House of Representatives.

''(iv) One member appointed by the chair, and one member appointed by the ranking member, of the Committee on Appropriations of the Senate.

''(v) One member appointed by the chair, and one member appointed by the ranking member, of the Committee on Appropriations of the House of Representatives.

''(vi) One member appointed by the majority leader, and one member appointed by the minority leader, of the Senate.

''(vii) One member appointed by the Speaker, and one member appointed by the minority leader, of the House of Representatives.

''(B) INTERNATIONAL PARTICIPATION.—The Administrator may appoint up to 2 additional members to the advisory board who are representatives of foreign governments or international organizations for renewable periods of 3 years.

''(C) QUALIFICATIONS.—Members of the advisory board shall have demonstrated regional expertise and experience and expertise in conflict mitigation and people-to-people programs.

''(D) ADDITIONAL RECOMMENDATIONS.—The Administrator should consider the input and recommendations from missions of the United States Agency for International Development in the region and mission directors when considering types of projects.''.

SEC. 9005. JOINT INVESTMENT FOR PEACE INITIATIVE.

(a) ESTABLISHMENT.—Beginning on the date that is 180 days after the date of the enactment of this Act, the Chief Executive Officer of the United States International Development Finance Corporation (referred to in this section as the ''Chief Executive Officer'' and the ''Corporation'', respectively) is authorized to establish a program to provide investments in entities that carry out projects that contribute to the development of the Palestinian private sector economy. The program established under this subsection shall be known as the ''Joint Investment for Peace Initiative'' (referred to in this section as the ''Initiative'').

(b) PARTICIPATION REQUIREMENT.—In providing investments through the Initiative, the Chief Executive Officer shall ensure participation by small and medium-sized enterprises owned by Palestinians.

(c) PRIORITY.—In providing investments through the Initiative, the Chief Executive Officer shall prioritize projects that increase economic cooperation between Israelis and Palestinians.

(d) USE OF EXISTING AUTHORITIES.—In carrying out the Initiative, the Chief Executive Officer shall utilize the authorities under section 1421 of the Better Utilization of Investments Leading to Development Act of 2018 (22 U.S.C. 9621) to—

(1) select a manager of the Initiative with the consensus of the majority of the Board of Directors of the Corporation;

(2) oversee and direct the operation of the Initiative consistent with such Act and other provisions of law;

(3) provide the Initiative with loans, guaranties, equity, and insurance, as appropriate, to enable the Initiative to attract private investment; and

(4) carry out the purposes of the Initiative consistent with the provisions of this section and other applicable provisions of law.

(e) EXPENDITURES.—Funds made available to carry out the Initiative shall be expended at the minimum rate necessary to make timely payments for projects and activities carried out under the Initiative.

(f) PRIVATE CHARACTER OF INITIATIVE.—Any entity that receives an investment under the Initiative shall not by virtue of receipt of such investment be considered to be an agency or establishment of the United States Government for purposes of title 5, United States Code.

(g) OVERSIGHT.—Operations of the Corporation under the Initiative shall be subject to—

(1) audits, investigations, and inspections conducted by the Office of the Inspector General of the United States International Development Finance Corporation; and

(2) assessment by the Comptroller General of the United States.

(h) ANNUAL REPORT.—

(1) IN GENERAL.—Not later than December 31, 2021, and each December 31 thereafter, the Chief Executive Officer shall submit to the appropriate congressional committees a report that describes the following:

(A) The extent to which the Initiative has contributed to promoting and supporting Palestinian economic development.

(B) The extent to which the Initiative has contributed to greater integration of the Palestinian economy into the international rules-based business system.

(C) The extent to which projects that increase economic cooperation between Israelis and Palestinians have been prioritized.

(D) Information on the following:

(i) Investments received and provided through the Initiative.

(ii) The mechanisms established for transparency and accountability of investments provided through the Initiative.

(E) A description of the Initiative's operations, activities, budget, receipts, and expenditures for the preceding 12-month period, including an audited report of the Initiative's finances which shall further include statements of financial position, operations, equity positions and cash flows, in accordance with generally accepted government auditing standards prescribed by the Comptroller General of the United States.

(F) Lessons learned from improvements to the efficacy of people-to-people relationships.

(G) A description of potential strategies for achieving sustainability for civic institutions

that the Initiative develops or supports, including novel financing mechanisms.

(H) A description of the process for vetting and oversight of entities eligible for support from the Initiative to ensure compliance with the requirements of section 9006(b).

(2) FORM.—The reports required under this subsection shall be submitted in unclassified form, without the designation ''For Official Use Only'' or any related or successor designation, but may be accompanied by a classified annex.

(i) EXCEPTIONS TO CERTAIN LIMITATIONS.—In providing investments through the Initiative described in subsection (c)—

(1) the Corporation may provide support for projects in countries with upper-middle-income economies or high-income economies (as those terms are defined by the International Bank for Reconstruction and Development and the International Development Association); and

(2) the restriction under section 1412(c)(2) of the Better Utilization of Investments Leading to Development Act of 2018 (22 U.S.C. 9612(c)(2)) shall not apply with respect to support for projects in countries described in paragraph (1).

(j) TERMINATION.—

(1) IN GENERAL.—The authority to carry out the Initiative shall terminate on the date that is 10 years after the date on which the Chief Executive Officer makes the first investment under the Initiative.

(2) EXCEPTION.—The Chief Executive Officer is authorized to continue to manage investments made under the Initiative on and after the date specified in paragraph (1).

SEC. 9006. LIMITATIONS, VETTING, COORDINATION, AND OVERSIGHT.

(a) LIMITATIONS.—None of the funds made available to carry out this title, or any amendment made by this title, may be used to provide—

(1) financial assistance to the national government of any foreign country;

(2) assistance for—

(A) any individual or group the Secretary of State determines to be involved in, or advocating, terrorist activity; or

(B) any individual who is a member of a foreign terrorist organization (as designated pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189)); or

(3) assistance for the Palestinian Authority or the Palestine Liberation Organization.

(b) APPLICABLE REGULATIONS.—Assistance made available under this title, and any amendment made by this title, shall adhere to the mission directives and vetting practices for assistance for the West Bank and Gaza, as set forth by the United States Agency for International Development.

(c) COORDINATION.—

(1) The Chief Executive Officer of the United States International Development Finance Corporation, acting through the Chief Development Officer of such Corporation, shall coordinate with the Administrator of the United States Agency for International Development to ensure that all expenditures from the Joint Investment for Peace Initiative comply with this section.

(2) To the extent practicable, the Administrator of the United States Agency for International Development and the Chief Executive Officer of the United States International Development Finance Corporation should coordinate and share information in advance of providing resources through the People-to-People Partnership for Peace Fund and the Joint Investment for Peace Initiative.

(d) REPORT.—

(1) IN GENERAL.—Not later than 90 days after the end of the first fiscal year in which both the People-to-People Partnership for Peace Fund and the Joint Investment for Peace Initiative are in effect, and annually thereafter, the Administrator of the United States Agency for International Development and the Chief Executive Officer of the United States International Development Finance Corporation shall jointly submit to the appropriate congressional committees a report in writing that describes—

(A)(i) lessons learned and best practices developed from funding for projects under the People-to-People Partnership for Peace Fund during the prior fiscal year; and

(ii) the extent to which such projects have contributed to the purposes of the People-to-People Partnership for Peace Fund;

(B)(i) lessons learned and best practices developed from investments provided under the Joint Investment for Peace Initiative during the prior fiscal year; and

(ii) the extent to which such investments have contributed to the purposes of the Joint Investment for Peace Initiative; and

(C) how the United States International Development Finance Corporation and the United States Agency for International Development coordinate and share information with respect to the People-to-People Partnership for Peace Fund and the Joint Investment for Peace Initiative.

(2) CONSULTATION.—The Administrator of the United States Agency for International Development shall consult with the advisory board established by subsection (e) of section 535 of the Foreign Assistance Act of 1961 (as added by section 9004) to inform the reports required by paragraph (1).

SEC. 9007. APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.

In this title, the term ''appropriate congressional committees'' has the meaning given that term in section 1402 of the Better Utilization of Investments Leading to Development Act of 2018 (22 U.S.C. 9601).

SEC. 9008. AUTHORIZATION OF APPROPRIATIONS.

(a) IN GENERAL.—There is authorized to be appropriated to carry out this title, and the amendments made by this title, $50,000,000 for each of the first 5 fiscal years beginning after the date of the enactment of this Act.

(b) AVAILABILITY OF AMOUNTS TO CARRY OUT SECTION 535 OF THE FOREIGN ASSISTANCE ACT OF 1961.—Of the amounts authorized to be appropriated by subsection (a) for each of the fiscal years described in such subsection, the following amounts shall be made available to carry out section 535 of the Foreign Assistance Act of 1961 (as added by section 9004):

(1) 60 percent of such amounts for the first fiscal year.

(2) 50 percent of such amounts for the second fiscal year.

(3) 40 percent of such amounts for each of the third and fourth such fiscal years.

(4) 30 percent of such amounts for the fifth such fiscal year.

(c) ADMINISTRATIVE EXPENSES.—Not more than 3 percent of amounts authorized to be appropriated by subsection (a) for a fiscal year may be made available for administrative expenses to carry out section 535 of the Foreign Assistance Act of 1961 (as added by section 9004).

(d) AVAILABILITY.—Amounts authorized to be appropriated by subsection (a) for a fiscal year are authorized to remain available for such fiscal year and the subsequent 4 fiscal years.

This Act may be cited as the ''Department of State, Foreign Operations, and Related Programs Appropriations Act, 2021''.

DIVISION B—AGRICULTURE, RURAL DEVELOPMENT, FOOD AND DRUG ADMINISTRATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2021

That the following sums are appropriated, out of any money in the Treasury not otherwise appropriated, for Agriculture, Rural Development, Food and Drug Administration, and Related Agencies programs for fiscal year ending September 30, 2021, and for other purposes, namely:

TITLE I

AGRICULTURAL PROGRAMS

PROCESSING, RESEARCH, AND MARKETING

OFFICE OF THE SECRETARY

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Office of the Secretary, $47,638,000, of which not to exceed $5,118,000 shall be available for the immediate Office of the Secretary; not to exceed $1,329,000 shall be available for the Office of Homeland Security; not to exceed $6,508,000 shall be available for the Office of Partnerships and Public Engagement, of which $1,500,000 shall be for 7 U.S.C. 2279(c)(5); not to exceed $23,392,000 shall be available for the Office of the Assistant Secretary for Administration, of which $22,509,000 shall be available for Departmental Administration to provide for necessary expenses for management support services to offices of the Department and for general administration, security, repairs and alterations, and other miscellaneous supplies and expenses not otherwise provided for and necessary for the practical and efficient work of the Department: Provided, That funds made available by this Act to an agency in the Administration mission area for salaries and expenses are available to fund up to one administrative support staff for the Office; not to exceed $3,921,000 shall be available for the Office of Assistant Secretary for Congressional Relations and Intergovernmental Affairs to carry out the programs funded by this Act, including programs involving intergovernmental affairs and liaison within the executive branch; and not to exceed $7,370,000 shall be available for the Office of Communications: Provided further, That the Secretary of Agriculture is authorized to transfer funds appropriated for any office of the Office of the Secretary to any other office of the Office of the Secretary: Provided further, That no appropriation for any office shall be increased or decreased by more than 5 percent: Provided further, That not to exceed $22,000 of the amount made available under this paragraph for the immediate Office of the Secretary shall be available for official reception and representation expenses, not otherwise provided for, as determined by the Secretary: Provided further, That the amount made available under this heading for Departmental Administration shall be reimbursed from applicable appropriations in this Act for travel expenses incident to the holding of hearings as required by 5 U.S.C. 551–558: Provided further, That funds made available under this heading for the Office of the Assistant Secretary for Congressional Relations and Intergovernmental Affairs may be transferred to agencies of the Department of Agriculture funded by this Act to maintain personnel at the agency level: Provided further, That no funds made available under this heading for the Office of Assistant Secretary for Congressional Relations may be obligated after 30 days from the date of enactment of this Act, unless the Secretary has notified the Committees on Appropriations of both Houses of Congress on the allocation of these funds by USDA agency: Provided further, That during any 30 day notification period referenced in section 716 of this Act, the Secretary of Agriculture shall take no action to begin implementation of the action that is subject to section 716 of this Act or make any public announcement of such action in any form.

EXECUTIVE OPERATIONS

OFFICE OF THE CHIEF ECONOMIST

For necessary expenses of the Office of the Chief Economist, $21,251,000, of which $5,000,000 shall be for grants or cooperative agreements for policy research under 7 U.S.C. 3155.

OFFICE OF HEARINGS AND APPEALS

For necessary expenses of the Office of Hearings and Appeals, $15,448,000.

OFFICE OF BUDGET AND PROGRAM ANALYSIS

For necessary expenses of the Office of Budget and Program Analysis, $9,666,000.

OFFICE OF THE CHIEF INFORMATION OFFICER

For necessary expenses of the Office of the Chief Information Officer, $73,354,000, of which not less than $56,000,000 is for cybersecurity requirements of the department.

OFFICE OF THE CHIEF FINANCIAL OFFICER

For necessary expenses of the Office of the Chief Financial Officer, $6,137,000.

OFFICE OF THE ASSISTANT SECRETARY FOR CIVIL RIGHTS

For necessary expenses of the Office of the Assistant Secretary for Civil Rights, $910,000: Provided, That funds made available by this Act to an agency in the Civil Rights mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

OFFICE OF CIVIL RIGHTS

For necessary expenses of the Office of Civil Rights, $22,875,000.

OFFICE OF SAFETY, SECURITY, AND PROTECTION

For necessary expenses of the Office of Safety, Security, and Protection, $23,218,000.

AGRICULTURE BUILDINGS AND FACILITIES

(INCLUDING TRANSFERS OF FUNDS)

For payment of space rental and related costs pursuant to Public Law 92–313, including authorities pursuant to the 1984 delegation of authority from the Administrator of General Services to the Department of Agriculture under 40 U.S.C. 121, for programs and activities of the Department which are included in this Act, and for alterations and other actions needed for the Department and its agencies to consolidate unneeded space into configurations suitable for release to the Administrator of General Services, and for the operation, maintenance, improvement, and repair of Agriculture buildings and facilities, and for related costs, $108,186,000, to remain available until expended.

HAZARDOUS MATERIALS MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Department of Agriculture, to comply with the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.) and the Solid Waste Disposal Act (42 U.S.C. 6901 et seq.), $7,518,000, to remain available until expended: Provided, That appropriations and funds available herein to the Department for Hazardous Materials Management may be transferred to any agency of the Department for its use in meeting all requirements pursuant to the above Acts on Federal and non-Federal lands.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General, including employment pursuant to the Inspector General Act of 1978 (Public Law 95–452; 5 U.S.C. App.), $99,791,000, including such sums as may be necessary for contracting and other arrangements with public agencies and private persons pursuant to section 6(a)(9) of the Inspector General Act of 1978 (Public Law 95–452; 5 U.S.C. App.), and including not to exceed $125,000 for certain confidential operational expenses, including the payment of informants, to be expended under the direction of the Inspector General pursuant to the Inspector General Act of 1978 (Public Law 95–452; 5 U.S.C. App.) and section 1337 of the Agriculture and Food Act of 1981 (Public Law 97–98).

OFFICE OF THE GENERAL COUNSEL

For necessary expenses of the Office of the General Counsel, $45,579,000.

OFFICE OF ETHICS

For necessary expenses of the Office of Ethics, $4,198,000.

OFFICE OF THE UNDER SECRETARY FOR RESEARCH, EDUCATION, AND ECONOMICS

For necessary expenses of the Office of the Under Secretary for Research, Education, and Economics, $6,109,000: Provided, That funds made available by this Act to an agency in the Research, Education, and Economics mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

ECONOMIC RESEARCH SERVICE

For necessary expenses of the Economic Research Service, $86,703,000.

NATIONAL AGRICULTURAL STATISTICS SERVICE

For necessary expenses of the National Agricultural Statistics Service, $183,434,000, of which up to $46,300,000 shall be available until expended for the Census of Agriculture: Provided, That amounts made available for the Census of Agriculture may be used to conduct Current Industrial Report surveys subject to 7 U.S.C. 2204g(d) and (f).

AGRICULTURAL RESEARCH SERVICE

SALARIES AND EXPENSES

For necessary expenses of the Agricultural Research Service and for acquisition of lands by donation, exchange, or purchase at a nominal cost not to exceed $100, and for land exchanges where the lands exchanged shall be of equal value or shall be equalized by a payment of money to the grantor which shall not exceed 25 percent of the total value of the land or interests transferred out of Federal ownership, $1,453,712,000: Provided, That appropriations hereunder shall be available for the operation and maintenance of aircraft and the purchase of not to exceed one for replacement only: Provided further, That appropriations hereunder shall be available pursuant to 7 U.S.C. 2250 for the construction, alteration, and repair of buildings and improvements, but unless otherwise provided, the cost of constructing any one building shall not exceed $500,000, except for headhouses or greenhouses which shall each be limited to $1,800,000, except for 10 buildings to be constructed or improved at a cost not to exceed $1,100,000 each, and except for two buildings to be constructed at a cost not to exceed $3,000,000 each, and the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building or $500,000, whichever is greater: Provided further, That appropriations hereunder shall be available for entering into lease agreements at any Agricultural Research Service location for the construction of a research facility by a non-Federal entity for use by the Agricultural Research Service and a condition of the lease shall be that any facility shall be owned, operated, and maintained by the non-Federal entity and shall be removed upon the expiration or termination of the lease agreement: Provided further, That the limitations on alterations contained in this Act shall not apply to modernization or replacement of existing facilities at Beltsville, Maryland: Provided further, That appropriations hereunder shall be available for granting easements at the Beltsville Agricultural Research Center: Provided further, That the foregoing limitations shall not apply to replacement of buildings needed to carry out the Act of April 24, 1948 (21 U.S.C. 113a): Provided further, That appropriations hereunder shall be available for granting easements at any Agricultural Research Service location for the construction of a research facility by a non-Federal entity for use by, and acceptable to, the Agricultural Research Service and a condition of the easements shall be that upon completion the facility shall be accepted by the Secretary, subject to the availability of funds herein, if the Secretary finds that acceptance of the facility is in the interest of the United States: Provided further, That funds may be received from any State, other political subdivision, organization, or individual for the purpose of establishing or operating any research facility or research project of the Agricultural Research Service, as authorized by law.

BUILDINGS AND FACILITIES

For the acquisition of land, construction, repair, improvement, extension, alteration, and purchase of fixed equipment or facilities as necessary to carry out the agricultural research programs of the Department of Agriculture, where not otherwise provided, $11,200,000 to remain available until expended, to be allocated for ARS facilities co-located with university partners.

NATIONAL INSTITUTE OF FOOD AND AGRICULTURE

RESEARCH AND EDUCATION ACTIVITIES

For payments to agricultural experiment stations, for cooperative forestry and other research, for facilities, and for other expenses, $997,729,000, which shall be for the purposes, and in the amounts, specified in the table titled ''National Institute of Food and Agriculture, Research and Education Activities'' in the report accompanying this Act: Provided, That funds for research grants for 1994 institutions, education grants for 1890 institutions, Hispanic serving institutions education grants, capacity building for non-land-grant colleges of agriculture, the agriculture and food research initiative, veterinary medicine loan repayment, multicultural scholars, graduate fellowship and institution challenge grants, and grants management systems shall remain available until expended: Provided further, That each institution eligible to receive funds under the Evans-Allen program receives no less than $1,000,000: Provided further, That funds for education grants for Alaska Native and Native Hawaiian-serving institutions be made available to individual eligible institutions or consortia of eligible institutions with funds awarded equally to each of the States of Alaska and Hawaii: Provided further, That funds for education grants for 1890 institutions shall be made available to institutions eligible to receive funds under 7 U.S.C. 3221 and 3222: Provided further, That not more than 5 percent of the amounts made available by this or any other Act to carry out the Agriculture and Food Research Initiative under 7 U.S.C. 3157 may be retained by the Secretary of Agriculture to pay administrative costs incurred by the Secretary in carrying out that authority.

NATIVE AMERICAN INSTITUTIONS ENDOWMENT FUND

For the Native American Institutions Endowment Fund authorized by Public Law 103–382 (7 U.S.C. 301 note), $11,857,000, to remain available until expended.

EXTENSION ACTIVITIES

For payments to States, the District of Columbia, Puerto Rico, Guam, the Virgin Islands, Micronesia, the Northern Marianas, and American Samoa, $538,557,000, which shall be for the purposes, and in the amounts, specified in the table titled ''National Institute of Food and Agriculture, Extension Activities'' in the report accompanying this Act: Provided, That funds for facility improvements at 1890 institutions shall remain available until expended: Provided further, That institutions eligible to receive funds under 7 U.S.C. 3221 for cooperative extension receive no less than $1,000,000: Provided further, That funds for cooperative extension under sections 3(b) and (c) of the Smith-Lever Act (7 U.S.C. 343(b) and (c)) and section 208(c) of Public Law 93–471 shall be available for retirement and employees' compensation costs for extension agents.

INTEGRATED ACTIVITIES

For the integrated research, education, and extension grants programs, including necessary administrative expenses, $39,000,000, which shall be for the purposes, and in the amounts, specified in the table titled ''National Institute of Food and Agriculture, Integrated Activities'' in the report accompanying this Act: Provided, That funds for the Food and Agriculture Defense Initiative shall remain available until September 30, 2022: Provided further, That notwithstanding any other provision of law, indirect

costs shall not be charged against any Extension Implementation Program Area grant awarded under the Crop Protection/Pest Management Program (7 U.S.C. 7626).

OFFICE OF THE UNDER SECRETARY FOR MARKETING AND REGULATORY PROGRAMS

For necessary expenses of the Office of the Under Secretary for Marketing and Regulatory Programs, $809,000: Provided, That funds made available by this Act to an agency in the Marketing and Regulatory Programs mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

ANIMAL AND PLANT HEALTH INSPECTION SERVICE

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Animal and Plant Health Inspection Service, including up to $30,000 for representation allowances and for expenses pursuant to the Foreign Service Act of 1980 (22 U.S.C. 4085), $1,069,817,000, of which $480,000, to remain available until expended, shall be available for the control of outbreaks of insects, plant diseases, animal diseases and for control of pest animals and birds (''contingency fund'') to the extent necessary to meet emergency conditions; of which $15,338,000, to remain available until expended, shall be used for the cotton pests program, including for cost share purposes or for debt retirement for active eradication zones; of which $38,167,000, to remain available until expended, shall be for Animal Health Technical Services; of which $2,000,000 shall be for activities under the authority of the Horse Protection Act of 1970, as amended (15 U.S.C. 1831); of which $63,331,000, to remain available until expended, shall be used to support avian health; of which $4,251,000, to remain available until expended, shall be for information technology infrastructure; of which $198,912,000, to remain available until expended, shall be for specialty crop pests; of which, $13,979,000, to remain available until expended, shall be for field crop and rangeland ecosystem pests; of which $18,651,000, to remain available until expended, shall be for zoonotic disease management; of which $41,363,000, to remain available until expended, shall be for emergency preparedness and response; of which $60,600,000, to remain available until expended, shall be for tree and wood pests; of which $5,739,000, to remain available until expended, shall be for the National Veterinary Stockpile; of which up to $1,500,000, to remain available until expended, shall be for the scrapie program for indemnities; of which $2,500,000, to remain available until expended, shall be for the wildlife damage management program for aviation safety: Provided, That of amounts available under this heading for wildlife services methods development, $1,000,000 shall remain available until expended: Provided further, That of amounts available under this heading for the screwworm program, $4,990,000 shall remain available until expended; of which $20,838,000, to remain available until expended, shall be used to carry out the science program and transition activities for the National Bio and Agrodefense Facility located in Manhattan, Kansas: Provided further, That no funds shall be used to formulate or administer a brucellosis eradication program for the current fiscal year that does not require minimum matching by the States of at least 40 percent: Provided further, That this appropriation shall be available for the purchase, replacement, operation, and maintenance of aircraft: Provided further, That in addition, in emergencies which threaten any segment of the agricultural production industry of the United States, the Secretary may transfer from other appropriations or funds available to the agencies or corporations of the Department such sums as may be deemed necessary, to be available only in such emergencies for the arrest and eradication of contagious or infectious disease or pests of animals, poultry, or plants, and for expenses in accordance with sections 10411 and 10417 of the Animal Health Protection Act (7 U.S.C. 8310 and 8316) and sections 431 and 442 of the Plant Protection Act (7 U.S.C. 7751 and 7772), and any unexpended balances of funds transferred for such emergency purposes in the preceding fiscal year shall be merged with such transferred amounts: Provided further, That appropriations hereunder shall be available pursuant to law (7 U.S.C. 2250) for the repair and alteration of leased buildings and improvements, but unless otherwise provided the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building.

In fiscal year 2021, the agency is authorized to collect fees to cover the total costs of providing technical assistance, goods, or services requested by States, other political subdivisions, domestic and international organizations, foreign governments, or individuals, provided that such fees are structured such that any entity's liability for such fees is reasonably based on the technical assistance, goods, or services provided to the entity by the agency, and such fees shall be reimbursed to this account, to remain available until expended, without further appropriation, for providing such assistance, goods, or services.

BUILDINGS AND FACILITIES

For plans, construction, repair, preventive maintenance, environmental support, improvement, extension, alteration, and purchase of fixed equipment or facilities, as authorized by 7 U.S.C. 2250, and acquisition of land as authorized by 7 U.S.C. 2268a, $3,175,000, to remain available until expended.

AGRICULTURAL MARKETING SERVICE

MARKETING SERVICES

For necessary expenses of the Agricultural Marketing Service, $188,891,000, of which $6,000,000 shall be available for the purposes of section 12306 of Public Law 113–79: Provided, That this appropriation shall be available pursuant to law (7 U.S.C. 2250) for the alteration and repair of buildings and improvements, but the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building.

Fees may be collected for the cost of standardization activities, as established by regulation pursuant to law (31 U.S.C. 9701).

LIMITATION ON ADMINISTRATIVE EXPENSES

Not to exceed $61,227,000 (from fees collected) shall be obligated during the current fiscal year for administrative expenses: Provided, That if crop size is understated and/or other uncontrollable events occur, the agency may exceed this limitation by up to 10 percent with notification to the Committees on Appropriations of both Houses of Congress.

FUNDS FOR STRENGTHENING MARKETS, INCOME, AND SUPPLY (SECTION 32)

(INCLUDING TRANSFERS OF FUNDS)

Funds available under section 32 of the Act of August 24, 1935 (7 U.S.C. 612c), shall be used only for commodity program expenses as authorized therein, and other related operating expenses, except for: (1) transfers to the Department of Commerce as authorized by the Fish and Wildlife Act of 1956 (16 U.S.C. 742a et seq.); (2) transfers otherwise provided in this Act; and (3) not more than $20,705,000 for formulation and administration of marketing agreements and orders pursuant to the Agricultural Marketing Agreement Act of 1937 and the Agricultural Act of 1961 (Public Law 87–128).

PAYMENTS TO STATES AND POSSESSIONS

For payments to departments of agriculture, bureaus and departments of markets, and similar agencies for marketing activities under section 204(b) of the Agricultural Marketing Act of 1946 (7 U.S.C. 1623(b)), $1,235,000.

LIMITATION ON INSPECTION AND WEIGHING SERVICES EXPENSES

Not to exceed $55,000,000 (from fees collected) shall be obligated during the current fiscal year for inspection and weighing services: Provided, That if grain export activities require additional supervision and oversight, or other uncontrollable factors occur, this limitation may be exceeded by up to 10 percent with notification to the Committees on Appropriations of both Houses of Congress.

OFFICE OF THE UNDER SECRETARY FOR FOOD SAFETY

For necessary expenses of the Office of the Under Secretary for Food Safety, $809,000: Provided, That funds made available by this Act to an agency in the Food Safety mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

FOOD SAFETY AND INSPECTION SERVICE

For necessary expenses to carry out services authorized by the Federal Meat Inspection Act, the Poultry Products Inspection Act, and the Egg Products Inspection Act, including not to exceed $10,000 for representation allowances and for expenses pursuant to section 8 of the Act approved August 3, 1956 (7 U.S.C. 1766), $1,088,552,000; and in addition, $1,000,000 may be credited to this account from fees collected for the cost of laboratory accreditation as authorized by section 1327 of the Food, Agriculture, Conservation and Trade Act of 1990 (7 U.S.C. 138f): Provided, That funds provided for the Public Health Data Communication Infrastructure system shall remain available until expended: Provided further, That of the amounts available provided under this heading, $7,300,000, to remain available until expended, shall be for the relocation of the Mid-Western Laboratory: Provided further, That no fewer than 148 full-time equivalent positions shall be employed during fiscal year 2021 for purposes dedicated solely to inspections and enforcement related to the Humane Methods of Slaughter Act (7 U.S.C. 1901 et seq.): Provided further, That the Food Safety and Inspection Service shall continue implementation of section 11016 of Public Law 110–246 as further clarified by the amendments made in section 12106 of Public Law 113–79: Provided further, That this appropriation shall be available pursuant to law (7 U.S.C. 2250) for the alteration and repair of buildings and improvements, but the cost of altering any one building during the fiscal year shall not exceed 10 percent of the current replacement value of the building.

TITLE II

FARM PRODUCTION AND CONSERVATION PROGRAMS

OFFICE OF THE UNDER SECRETARY FOR FARM PRODUCTION AND CONSERVATION

For necessary expenses of the Office of the Under Secretary for Farm Production and Conservation, $916,000: Provided, That funds made available by this Act to an agency in the Farm Production and Conservation mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

FARM PRODUCTION AND CONSERVATION BUSINESS CENTER

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Farm Production and Conservation Business Center, $232,194,000: Provided, That $60,228,000 of amounts appropriated for the current fiscal year pursuant to section 1241(a) of the Farm Security and Rural Investment Act of 1985 (16 U.S.C. 3841(a)) shall be transferred to and merged with this account.

FARM SERVICE AGENCY

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Farm Service Agency, $1,152,323,000, of which not less than $20,000,000 shall be for the hiring of new employees to fill vacancies and anticipated vacancies at Farm Service Agency county offices and farm loan officers and shall be available until September 30, 2022: Provided, That not more than 50 percent of the funding made available under this heading for information technology related to farm program delivery may be obligated until the Secretary submits to the Committees on Appropriations of both Houses of Congress, and receives written or electronic notification of receipt from such Committees of, a plan for expenditure that (1) identifies for each project/investment over $25,000 (a) the functional and performance capabilities to be delivered and the mission benefits to be realized, (b) the estimated lifecycle cost for the entirety of the project/investment, including estimates for development as well as maintenance and operations, and (c) key milestones to be met; (2) demonstrates that each project/investment is, (a) consistent with the Farm Service Agency Information Technology Roadmap, (b) being managed in accordance with applicable lifecycle management policies and guidance, and (c) subject to the applicable Department's capital planning and investment control requirements; and (3) has been reviewed by the Government Accountability Office and approved by the Committees on Appropriations of both Houses of Congress: Provided further, That the agency shall submit a report by the end of the fourth quarter of fiscal year 2021 to the Committees on Appropriations and the Government Accountability Office, that identifies for each project/investment that is operational (a) current performance against key indicators of customer satisfaction, (b) current performance of service level agreements or other technical metrics, (c) current performance against a pre-established cost baseline, (d) a detailed breakdown of current and planned spending on operational enhancements or upgrades, and (e) an assessment of whether the investment continues to meet business needs as intended as well as alternatives to the investment: Provided further, That the Secretary is authorized to use the services, facilities, and authorities (but not the funds) of the Commodity Credit Corporation to make program payments for all programs administered by the Agency: Provided further, That other funds made available to the Agency for authorized activities may be advanced to and merged with this account: Provided further, That funds made available to county committees shall remain available until expended: Provided further, That none of the funds available to the Farm Service Agency shall be used to close Farm Service Agency county offices: Provided further, That none of the funds available to the Farm Service Agency shall be used to permanently relocate county based employees that would result in an office with two or fewer employees without prior notification and approval of the Committees on Appropriations of both Houses of Congress.

STATE MEDIATION GRANTS

For grants pursuant to section 502(b) of the Agricultural Credit Act of 1987, as amended (7 U.S.C. 5101–5106), $6,914,000.

GRASSROOTS SOURCE WATER PROTECTION PROGRAM

For necessary expenses to carry out wellhead or groundwater protection activities under section 1240O of the Food Security Act of 1985 (16 U.S.C. 3839bb–2), $6,500,000, to remain available until expended.

DAIRY INDEMNITY PROGRAM

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses involved in making indemnity payments to dairy farmers and manufacturers of dairy products under a dairy indemnity program, such sums as may be necessary, to remain available until expended: Provided, That such program is carried out by the Secretary in the same manner as the dairy indemnity program described in the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2001 (Public Law 106–387, 114 Stat. 1549A–12).

AGRICULTURAL CREDIT INSURANCE FUND PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For gross obligations for the principal amount of direct and guaranteed farm ownership (7 U.S.C. 1922 et seq.) and operating (7 U.S.C. 1941 et seq.) loans, emergency loans (7 U.S.C. 1961 et seq.), Indian tribe land acquisition loans (25 U.S.C. 5136), boll weevil loans (7 U.S.C. 1989), guaranteed conservation loans (7 U.S.C. 1924 et seq.), relending program (7 U.S.C. 1936c), and Indian highly fractionated land loans (25 U.S.C. 5136) to be available from funds in the Agricultural Credit Insurance Fund, as follows: $2,750,000,000 for guaranteed farm ownership loans and $2,119,000,000 for farm ownership direct loans; $2,118,482,000 for unsubsidized guaranteed operating loans and $1,633,333,000 for direct operating loans; emergency loans, $37,668,000; Indian tribe land acquisition loans, $20,000,000; guaranteed conservation loans, $150,000,000; relending program, $33,693,000; Indian highly fractionated land loans, $10,000,000; and for boll weevil eradication program loans, $60,000,000: Provided, That the Secretary shall deem the pink bollworm to be a boll weevil for the purpose of boll weevil eradication program loans.

For the cost of direct and guaranteed loans and grants, including the cost of modifying loans as defined in section 502 of the Congressional Budget Act of 1974, as follows: $38,710,000 for direct farm operating loans, $23,727,000 for unsubsidized guaranteed farm operating loans, $207,000 for emergency loans, $5,000,000 for the relending program, and $1,484,000 for Indian highly fractionated land loans, to remain available until expended.

In addition, for administrative expenses necessary to carry out the direct and guaranteed loan programs, $307,344,000: Provided, That of this amount, $294,114,000 shall be transferred to and merged with the appropriation for ''Farm Service Agency, Salaries and Expenses''.

Funds appropriated by this Act to the Agricultural Credit Insurance Program Account for farm ownership, operating and conservation direct loans and guaranteed loans may be transferred among these programs: Provided, That the Committees on Appropriations of both Houses of Congress are notified at least 15 days in advance of any transfer.

RISK MANAGEMENT AGENCY

SALARIES AND EXPENSES

For necessary expenses of the Risk Management Agency, $59,374,000: Provided, That $2,000,000 shall be available for compliance and integrity activities required under section 516(b)(2)(C) of the Federal Crop Insurance Act of 1938 (7 U.S.C. 1516(b)(2)(C)) in addition to other amounts provided: Provided further, That not to exceed $1,000 shall be available for official reception and representation expenses, as authorized by 7 U.S.C. 1506(i).

NATURAL RESOURCES CONSERVATION SERVICE

CONSERVATION OPERATIONS

For necessary expenses for carrying out the provisions of the Act of April 27, 1935 (16 U.S.C. 590a–f), including preparation of conservation plans and establishment of measures to conserve soil and water (including farm irrigation and land drainage and such special measures for soil and water management as may be necessary to prevent floods and the siltation of reservoirs and to control agricultural related pollutants); operation of conservation plant materials centers; classification and mapping of soil; dissemination of information; acquisition of lands, water, and interests therein for use in the plant materials program by donation, exchange, or purchase at a nominal cost not to exceed $100 pursuant to the Act of August 3, 1956 (7 U.S.C. 2268a); purchase and erection or alteration or improvement of permanent and temporary buildings; and operation and maintenance of aircraft, $833,785,000, to remain available until September 30, 2022: Provided, That appropriations hereunder shall be available pursuant to 7 U.S.C. 2250 for construction and improvement of buildings and public improvements at plant materials centers, except that the cost of alterations and improvements to other buildings and other public improvements shall not exceed $250,000: Provided further, That when buildings or other structures are erected on non-Federal land, that the right to use such land is obtained as provided in 7 U.S.C. 2250a.

WATERSHED AND FLOOD PREVENTION OPERATIONS

For necessary expenses to carry out preventive measures, including but not limited to surveys and investigations, engineering operations, works of improvement, and changes in use of land, in accordance with the Watershed Protection and Flood Prevention Act (16 U.S.C. 1001–1005 and 1007–1009) and in accordance with the provisions of laws relating to the activities of the Department, $155,000,000, to remain available until expended: Provided, That for funds provided by this Act or any other prior Act, the limitation regarding the size of the watershed or subwatershed exceeding two hundred and fifty thousand acres in which such activities can be undertaken shall only apply for activities undertaken for the primary purpose of flood prevention (including structural and land treatment measures): Provided further, That of the amounts made available under this heading, $52,500,000 shall be allocated to projects and activities that can commence promptly following enactment; that address regional priorities for flood prevention, agricultural water management, inefficient irrigation systems, fish and wildlife habitat, or watershed protection; or that address authorized ongoing projects under the authorities of section 13 of the Flood Control Act of December 22, 1944 (Public Law 78–534) with a primary purpose of watershed protection by preventing floodwater damage and stabilizing stream channels, tributaries, and banks to reduce erosion and sediment transport.

WATERSHED REHABILITATION PROGRAM

Under the authorities of section 14 of the Watershed Protection and Flood Prevention Act, $12,000,000 is provided.

CORPORATIONS

The following corporations and agencies are hereby authorized to make expenditures, within the limits of funds and borrowing authority available to each such corporation or agency and in accord with law, and to make contracts and commitments without regard to fiscal year limitations as provided by section 104 of the Government Corporation Control Act as may be necessary in carrying out the programs set forth in the budget for the current fiscal year for such corporation or agency, except as hereinafter provided.

FEDERAL CROP INSURANCE CORPORATION FUND

For payments as authorized by section 516 of the Federal Crop Insurance Act (7 U.S.C. 1516), such sums as may be necessary, to remain available until expended.

COMMODITY CREDIT CORPORATION FUND

REIMBURSEMENT FOR NET REALIZED LOSSES

(INCLUDING TRANSFERS OF FUNDS)

For the current fiscal year, such sums as may be necessary to reimburse the Commodity Credit Corporation for net realized losses sustained, but not previously reimbursed, pursuant to section 2 of the Act of August 17, 1961 (15 U.S.C. 713a–11): Provided, That of the funds available

to the Commodity Credit Corporation under section 11 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714i) for the conduct of its business with the Foreign Agricultural Service, up to $5,000,000 may be transferred to and used by the Foreign Agricultural Service for information resource management activities of the Foreign Agricultural Service that are not related to Commodity Credit Corporation business.

HAZARDOUS WASTE MANAGEMENT

(LIMITATION ON EXPENSES)

For the current fiscal year, the Commodity Credit Corporation shall not expend more than $15,000,000 for site investigation and cleanup expenses, and operations and maintenance expenses to comply with the requirement of section 107(g) of the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9607(g)), and section 6001 of the Solid Waste Disposal Act (42 U.S.C. 6961).

TITLE III

RURAL DEVELOPMENT PROGRAMS

OFFICE OF THE UNDER SECRETARY FOR RURAL DEVELOPMENT

For necessary expenses of the Office of the Under Secretary for Rural Development, $812,000: Provided, That funds made available by this Act to an agency in the Rural Development mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

RURAL DEVELOPMENT

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for carrying out the administration and implementation of Rural Development programs, including activities with institutions concerning the development and operation of agricultural cooperatives; and for cooperative agreements; $311,942,000: Provided, That notwithstanding any other provision of law, funds appropriated under this heading may be used for advertising and promotional activities that support Rural Development programs: Provided further, That in addition to any other funds appropriated for purposes authorized by section 502(i) of the Housing Act of 1949 (42 U.S.C. 1472(i)), any amounts collected under such section will immediately be credited to this account and will remain available until expended for such purposes: Provided further, That of the amount provided under this heading, $1,000,000, shall be for the administration of the multi-family voucher program account: Provided further, That of the amount provided under this heading, $30,000,000, to remain available until expended, shall be for the relocation from the Goodfellow facility in St. Louis, Missouri.

RURAL HOUSING SERVICE

RURAL HOUSING INSURANCE FUND PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For gross obligations for the principal amount of direct and guaranteed loans as authorized by title V of the Housing Act of 1949, to be available from funds in the rural housing insurance fund, as follows: $1,000,000,000 shall be for direct loans and $24,000,000,000 shall be for unsubsidized guaranteed loans; $28,000,000 for section 504 housing repair loans; $40,000,000 for section 515 rental housing; $230,000,000 for section 538 guaranteed multi-family housing loans; $10,000,000 for credit sales of single family housing acquired property; $5,000,000 for section 523 self-help housing land development loans; and $5,000,000 for section 524 site development loans.

For the cost of direct and guaranteed loans, including the cost of modifying loans, as defined in section 502 of the Congressional Budget Act of 1974, as follows: section 502 loans, $33,300,000 shall be for direct loans; section 504 housing repair loans, $2,215,000; section 523 self-help housing land development loans, $269,000; section 524 site development loans, $355,000; and repair, rehabilitation, and new construction of section 515 rental housing, $6,688,000: Provided, That to support the loan program level for section 538 guaranteed loans made available under this heading the Secretary may charge or adjust any fees to cover the projected cost of such loan guarantees pursuant to the provisions of the Credit Reform Act of 1990 (2 U.S.C. 661 et seq.), and the interest on such loans may not be subsidized: Provided further, That applicants in communities that have a current rural area waiver under section 541 of the Housing Act of 1949 (42 U.S.C. 1490q) shall be treated as living in a rural area for purposes of section 502 guaranteed loans provided under this heading: Provided further, That of the amounts available under this paragraph for section 502 direct loans, no less than $5,000,000 shall be available for direct loans for individuals whose homes will be built pursuant to a program funded with a mutual and self-help housing grant authorized by section 523 of the Housing Act of 1949 until June 1, 2021: Provided further, That the Secretary shall implement provisions to provide incentives to nonprofit organizations and public housing authorities to facilitate the acquisition of Rural Housing Service (RHS) multifamily housing properties by such nonprofit organizations and public housing authorities that commit to keep such properties in the RHS multifamily housing program for a period of time as determined by the Secretary, with such incentives to include, but not be limited to, the following: allow such nonprofit entities and public housing authorities to earn a Return on Investment on their own resources to include proceeds from low income housing tax credit syndication, own contributions, grants, and developer loans at favorable rates and terms, invested in a deal; and allow reimbursement of organizational costs associated with owner's oversight of asset referred to as ''Asset Management Fee'' of up to $7,500 per property.

In addition, for the cost of direct loans, grants, and contracts, as authorized by sections 514 and 516 of the Housing Act of 1949 (42 U.S.C. 1484, 1486), $15,093,000, to remain available until expended, for direct farm labor housing loans and domestic farm labor housing grants and contracts: Provided, That any balances available for the Farm Labor Program Account shall be transferred to and merged with this account.

In addition, for the cost of direct loans and grants, including the cost of modifying loans, as defined in section 502 of the Congressional Budget Act of 1974, $30,000,000, to remain available until expended, which shall be for a demonstration program for the preservation and revitalization of the multi-family rental housing properties assisted under sections 514, 515, and 516 of the Housing Act of 1949 to restructure existing USDA multi-family housing loans, as the Secretary deems appropriate, expressly for the purpose of ensuring the projects have sufficient resources to preserve the projects for the purpose of providing safe and affordable housing for low-income residents and farm laborers including reducing or eliminating interest, deferring loan payments, subordinating, reducing or reamortizing loan debt, and providing other financial assistance including advances, payments and incentives (including the ability of owners to obtain reasonable returns on investment) required by the Secretary: Provided, That as part of the preservation and revitalization agreement, the Secretary shall obtain a restrictive use agreement consistent with the terms of the restructuring: Provided further, That all balances, including obligated balances, available for all demonstration programs for the preservation and revitalization of section 514, 515, and 516 multi-family rental housing properties in the ''Multi-Family Housing Revitalization Program Account'' shall be transferred to and merged with this account and shall be for the preservation and revitalization of section 514, 515, and 516 multi-family rental housing properties, including the restructuring of existing USDA multi-family housing loans: Provided further, That following the transfer of balances described in the preceding proviso, any adjustments to obligations for the demonstration programs for the preservation and revitalization of section 514, 515, and 516 multi-family housing rental housing properties incurred in the ''Multi-Family Housing Revitalization Program Account'' shall be made in this account.

In addition, for administrative expenses necessary to carry out the direct and guaranteed loan programs, $412,254,000 shall be transferred to and merged with the appropriation for ''Rural Development, Salaries and Expenses''.

RENTAL ASSISTANCE PROGRAM

(INCLUDING TRANSFERS OF FUNDS)

For rental assistance agreements entered into or renewed pursuant to the authority under section 521(a)(2) of the Housing Act of 1949 or agreements entered into in lieu of debt forgiveness or payments for eligible households as authorized by section 502(c)(5)(D) of the Housing Act of 1949, $1,450,000,000, of which $40,000,000 shall be available until September 30, 2022; and in addition such sums as may be necessary, as authorized by section 521(c) of the Act, to liquidate debt incurred prior to fiscal year 1992 to carry out the rental assistance program under section 521(a)(2) of the Act: Provided, That of the amounts made available under this heading, $1,410,000,000 shall be available for renewal of rental assistance agreements: Provided further, That rental assistance agreements entered into or renewed during the current fiscal year shall be funded for a one-year period: Provided further, That upon request by an owner of a project financed by an existing loan under section 514 or 515 of the Act, the Secretary may renew the rental assistance agreement for a period of 20 years or until the term of such loan has expired, subject to annual appropriations: Provided further, That any unexpended balances remaining at the end of such one-year agreements may be transferred and used for purposes of any debt reduction, maintenance, repair, or rehabilitation of any existing projects; preservation; and rental assistance activities authorized under title V of the Act: Provided further, That rental assistance provided under agreements entered into prior to fiscal year 2021 for a farm labor multi-family housing project financed under section 514 or 516 of the Act may not be recaptured for use in another project until such assistance has remained unused for a period of 12 consecutive months, if such project has a waiting list of tenants seeking such assistance or the project has rental assistance eligible tenants who are not receiving such assistance: Provided further, That such recaptured rental assistance shall, to the extent practicable, be applied to another farm labor multi-family housing project financed under section 514 or 516 of the Act: Provided further, That except as provided in the fifth proviso under this heading and notwithstanding any other provision of the Act, the Secretary may recapture rental assistance provided under agreements entered into prior to fiscal year 2021 for a project that the Secretary determines no longer needs rental assistance and use such recaptured funds for current needs: Provided further, That of the amounts made available under this heading, $40,000,000 shall be available for rural housing vouchers to any low-income household, including a household that does not receive rental assistance, residing in a property financed with a section 515 loan that has been prepaid or otherwise paid off after September 30, 2005: Provided further, That the amount of such vouchers shall be equal to the difference between comparable market rent for the section 515 unit and the tenant paid rent for such unit: Provided further, That such vouchers shall be subject to the availability of annual appropriations: Provided further, That the Secretary shall, to the maximum extent practicable,

administer such vouchers with current regulations and administrative guidance applicable to section 8 housing vouchers administered by the Secretary of the Department of Housing and Urban Development: Provided further, That any balances available for the rural housing voucher program in the ''Multi-Family Housing Revitalization Program Account'' shall be transferred to and merged with this account and shall be available for the rural housing voucher program: Provided further, That if the Secretary determines that the amount made available for vouchers or rental assistance in this Act is not needed for vouchers or rental assistance, the Secretary may use such funds for any of the programs described under this heading.

MUTUAL AND SELF-HELP HOUSING GRANTS

For grants and contracts pursuant to section 523(b)(1)(A) of the Housing Act of 1949 (42 U.S.C. 1490c), $31,000,000, to remain available until expended.

RURAL HOUSING ASSISTANCE GRANTS

For grants for very low-income housing repair and rural housing preservation made by the Rural Housing Service, as authorized by 42 U.S.C. 1474 and 1490m, $45,000,000, to remain available until expended.

RURAL COMMUNITY FACILITIES PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For gross obligations for the principal amount of direct and guaranteed loans as authorized by section 306 and described in section 381E(d)(1) of the Consolidated Farm and Rural Development Act, $2,800,000,000 for direct loans and $500,000,000 for guaranteed loans.

For the cost of grants for rural community facilities programs as authorized by section 306 and described in section 381E(d)(1) of the Consolidated Farm and Rural Development Act, $49,000,000, to remain available until expended: Provided, That $6,000,000 of the amount appropriated under this heading shall be available for a Rural Community Development Initiative: Provided further, That such funds shall be used solely to develop the capacity and ability of private, nonprofit community-based housing and community development organizations, low-income rural communities, and Federally Recognized Native American Tribes to undertake projects to improve housing, community facilities, community and economic development projects in rural areas: Provided further, That such funds shall be made available to qualified private, nonprofit and public intermediary organizations proposing to carry out a program of financial and technical assistance: Provided further, That such intermediary organizations shall provide matching funds from other sources, including Federal funds for related activities, in an amount not less than funds provided: Provided further, That $6,000,000 of the amount appropriated under this heading shall be to provide grants for facilities in rural communities with extreme unemployment and severe economic depression (Public Law 106–387), with up to 5 percent for administration and capacity building in the State rural development offices: Provided further, That $5,000,000 of the amount appropriated under this heading shall be available for community facilities grants to tribal colleges, as authorized by section 306(a)(19) of such Act: Provided further, That sections 381E–H and 381N of the Consolidated Farm and Rural Development Act are not applicable to the funds made available under this heading: Provided further, That the unexpended amounts provided under the first paragraph of this heading in Public Law 114–113 and made available for gross obligations of direct loans under section 1942.30 of title 7, Code of Federal Regulations, shall remain available through fiscal year 2026.

RURAL BUSINESS—COOPERATIVE SERVICE

RURAL BUSINESS PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For the cost of loan guarantees and grants, for the rural business development programs authorized by section 310B and described in subsections (a), (c), (f) and (g) of section 310B of the Consolidated Farm and Rural Development Act, $62,200,000, to remain available until expended: Provided, That of the amount appropriated under this heading, not to exceed $500,000 shall be made available for one grant to a qualified national organization to provide technical assistance for rural transportation in order to promote economic development and $9,000,000 shall be for grants to the Delta Regional Authority (7 U.S.C. 2009aa et seq.), the Northern Border Regional Commission (40 U.S.C. 15101 et seq.), and the Appalachian Regional Commission (40 U.S.C. 14101 et seq.) for any Rural Community Advancement Program purpose as described in section 381E(d) of the Consolidated Farm and Rural Development Act, of which not more than 5 percent may be used for administrative expenses: Provided further, That $4,000,000 of the amount appropriated under this heading shall be for business grants to benefit Federally Recognized Native American Tribes, including $250,000 for a grant to a qualified national organization to provide technical assistance for rural transportation in order to promote economic development: Provided further, That sections 381E–H and 381N of the Consolidated Farm and Rural Development Act are not applicable to funds made available under this heading.

INTERMEDIARY RELENDING PROGRAM FUND ACCOUNT

(INCLUDING TRANSFER OF FUNDS)

For the principal amount of direct loans, as authorized by the Intermediary Relending Program Fund Account (7 U.S.C. 1936b), $18,889,000.

For the cost of direct loans, $2,939,000, as authorized by the Intermediary Relending Program Fund Account (7 U.S.C. 1936b), of which $557,000 shall be available through June 30, 2021, for Federally Recognized Native American Tribes; and of which $1,072,000 shall be available through June 30, 2021, for Mississippi Delta Region counties (as determined in accordance with Public Law 100–460): Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974.

In addition, for administrative expenses to carry out the direct loan programs, $4,468,000 shall be transferred to and merged with the appropriation for ''Rural Development, Salaries and Expenses''.

RURAL ECONOMIC DEVELOPMENT LOANS PROGRAM ACCOUNT

For the principal amount of direct loans, as authorized under section 313B(a) of the Rural Electrification Act, for the purpose of promoting rural economic development and job creation projects, $50,000,000.

The cost of grants authorized under section 313B(a) of the Rural Electrification Act, for the purpose of promoting rural economic development and job creation projects shall not exceed $10,000,000.

RURAL COOPERATIVE DEVELOPMENT GRANTS

For rural cooperative development grants authorized under section 310B(e) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1932), $26,600,000, of which $2,800,000 shall be for cooperative agreements for the appropriate technology transfer for rural areas program: Provided, That not to exceed $3,000,000 shall be for grants for cooperative development centers, individual cooperatives, or groups of cooperatives that serve socially disadvantaged groups and a majority of the boards of directors or governing boards of which are comprised of individuals who are members of socially disadvantaged groups; and of which $15,000,000, to remain available until expended, shall be for value-added agricultural product market development grants, as authorized by section 210A of the Agricultural Marketing Act of 1946, of which $3,000,000, to remain available until expended, shall be for Agriculture Innovation Centers authorized pursuant to section 6402 of Public Law 107–171.

RURAL MICROENTREPRENEUR ASSISTANCE PROGRAM

For the cost of loans and grants, $6,000,000 under the same terms and conditions as authorized by section 379E of the Consolidated Farm and Rural Development Act (7 U.S.C. 2008s): Provided, That such costs of loans, including the cost of modifying such loans, shall be defined in section 502 of the Congressional Budget Act of 1974.

RURAL ENERGY FOR AMERICA PROGRAM

For the cost of a program of loan guarantees, under the same terms and conditions as authorized by section 9007 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8107), $476,000: Provided, That the cost of loan guarantees, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974.

RURAL UTILITIES SERVICE

RURAL WATER AND WASTE DISPOSAL PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For gross obligations for the principal amount of direct and guaranteed loans as authorized by section 306 and described in section 381E(d)(2) of the Consolidated Farm and Rural Development Act, as follows: $1,400,000,000 for direct loans; and $50,000,000 for guaranteed loans.

For the cost of loan guarantees and grants for rural water, waste water, waste disposal, and solid waste management programs authorized by sections 306, 306A, 306C, 306D, 306E, and 310B and described in sections 306C(a)(2), 306D, 306E, and 381E(d)(2) of the Consolidated Farm and Rural Development Act, $610,980,000, to remain available until expended, of which not to exceed $1,000,000 shall be available for the rural utilities program described in section 306(a)(2)(B) of such Act, and of which not to exceed $5,000,000 shall be available for the rural utilities program described in section 306E of such Act: Provided, That not to exceed $15,000,000 of the amount appropriated under this heading shall be for grants authorized by section 306A(i)(2) of the Consolidated Farm and Rural Development Act in addition to funding authorized by section 306A(i)(1) of such Act: Provided further, That $68,000,000 of the amount appropriated under this heading shall be for loans and grants including water and waste disposal systems grants authorized by section 306C(a)(2)(B) and section 306D of the Consolidated Farm and Rural Development Act, and Federally Recognized Native American Tribes authorized by 306C(a)(1) of such Act: Provided further, That funding provided for section 306D of the Consolidated Farm and Rural Development Act may be provided to a consortium formed pursuant to section 325 of Public Law 105–83: Provided further, That not more than 2 percent of the funding provided for section 306D of the Consolidated Farm and Rural Development Act may be used by the State of Alaska for training and technical assistance programs and not more than 2 percent of the funding provided for section 306D of the Consolidated Farm and Rural Development Act may be used by a consortium formed pursuant to section 325 of Public Law 105–83 for training and technical assistance programs: Provided further, That not to exceed $35,000,000 of the amount appropriated under this heading shall be for technical assistance grants for rural water and waste systems pursuant to section 306(a)(14) of such Act, unless the Secretary makes a determination of extreme need, of

which $8,000,000 shall be made available for a grant to a qualified nonprofit multi-State regional technical assistance organization, with experience in working with small communities on water and waste water problems, the principal purpose of such grant shall be to assist rural communities with populations of 3,300 or less, in improving the planning, financing, development, operation, and management of water and waste water systems, and of which not less than $800,000 shall be for a qualified national Native American organization to provide technical assistance for rural water systems for tribal communities: Provided further, That not to exceed $19,570,000 of the amount appropriated under this heading shall be for contracting with qualified national organizations for a circuit rider program to provide technical assistance for rural water systems: Provided further, That not to exceed $4,000,000 of the amounts made available under this heading shall be for solid waste management grants: Provided further, That sections 381E–H and 381N of the Consolidated Farm and Rural Development Act are not applicable to the funds made available under this heading.

RURAL ELECTRIFICATION AND TELECOMMUNICATIONS LOANS PROGRAM ACCOUNT

(INCLUDING TRANSFER OF FUNDS)

The principal amount of direct and guaranteed loans as authorized by sections 305, 306, and 317 of the Rural Electrification Act of 1936 (7 U.S.C. 935, 936, and 940g) shall be made as follows: loans made pursuant to sections 305, 306, and 317, notwithstanding 317(c), of that Act, rural electric, $5,500,000,000; guaranteed underwriting loans pursuant to section 313A of that Act, $750,000,000; 5 percent rural telecommunications loans, cost of money rural telecommunications loans, and for loans made pursuant to section 306 of that Act, rural telecommunications loans, $690,000,000: Provided, That up to $2,000,000,000 shall be used for the construction, acquisition, design and engineering or improvement of fossil-fueled electric generating plants (whether new or existing) that utilize carbon subsurface utilization and storage systems.

For the cost of direct loans as authorized by section 305 of the Rural Electrification Act of 1936 (7 U.S.C. 935), including the cost of modifying loans, as defined in section 502 of the Congressional Budget Act of 1974, cost of money rural telecommunications loans, $2,277,000.

In addition, for administrative expenses necessary to carry out the direct and guaranteed loan programs, $33,270,000, which shall be transferred to and merged with the appropriation for ''Rural Development, Salaries and Expenses''.

DISTANCE LEARNING, TELEMEDICINE, AND BROADBAND PROGRAM

For the principal amount of broadband telecommunication loans, $11,179,000.

For grants for telemedicine and distance learning services in rural areas, as authorized by 7 U.S.C. 950aaa et seq., $50,000,000, to remain available until expended: Provided, That $3,000,000 shall be made available for grants authorized by 379G of the Consolidated Farm and Rural Development Act: Provided further, That funding provided under this heading for grants under 379G of the Consolidated Farm and Rural Development Act may only be provided to entities that meet all of the eligibility criteria for a consortium as established by this section.

For the cost of broadband loans, as authorized by section 601 of the Rural Electrification Act, $1,884,000, to remain available until expended: Provided, That the cost of direct loans shall be as defined in section 502 of the Congressional Budget Act of 1974.

In addition, $35,000,000, to remain available until expended, for a grant program to finance broadband transmission in rural areas eligible for Distance Learning and Telemedicine Program benefits authorized by 7 U.S.C. 950aaa et seq.

TITLE IV

DOMESTIC FOOD PROGRAMS

OFFICE OF THE UNDER SECRETARY FOR FOOD, NUTRITION, AND CONSUMER SERVICES

For necessary expenses of the Office of the Under Secretary for Food, Nutrition, and Consumer Services, $809,000: Provided, That funds made available by this Act to an agency in the Food, Nutrition and Consumer Services mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

FOOD AND NUTRITION SERVICE

CHILD NUTRITION PROGRAMS

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses to carry out the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.), except section 21, and the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.), except sections 17 and 21; $25,131,440,000 to remain available through September 30, 2022, of which such sums as are made available under section 14222(b)(1) of the Food, Conservation, and Energy Act of 2008 (Public Law 110–246), as amended by this Act, shall be merged with and available for the same time period and purposes as provided herein: Provided, That of the total amount available, $18,004,000 shall be available to carry out section 19 of the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.): Provided further, That of the total amount available, $15,299,000 shall be available to carry out studies and evaluations and shall remain available until expended: Provided further, That of the total amount available, $35,000,000 shall be available to provide competitive grants to State agencies for subgrants to local educational agencies and schools to purchase the equipment, with a value of greater than $1,000, needed to serve healthier meals, improve food safety, and to help support the establishment, maintenance, or expansion of the school breakfast program: Provided further, That of the total amount available, $50,000,000 shall remain available until expended to carry out section 749(g) of the Agriculture Appropriations Act of 2010 (Public Law 111–80): Provided further, That section 26(d) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1769g(d)) is amended in the first sentence by striking ''2010 through 2021'' and inserting ''2010 through 2022'': Provided further, That section 9(h)(3) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1758(h)(3)) is amended by striking ''For fiscal year 2020'' and inserting ''For fiscal year 2021'': Provided further, That section 9(h)(4) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1758(h)(4)) is amended by striking ''For fiscal year 2020'' and inserting ''For fiscal year 2021''.

SPECIAL SUPPLEMENTAL NUTRITION PROGRAM FOR WOMEN, INFANTS, AND CHILDREN (WIC)

For necessary expenses to carry out the special supplemental nutrition program as authorized by section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786), $5,750,000,000, to remain available through September 30, 2022: Provided, That notwithstanding section 17(h)(10) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(h)(10)), not less than $90,000,000 shall be used for breastfeeding peer counselors and other related activities, and $14,000,000 shall be used for infrastructure: Provided further, That none of the funds provided in this account shall be available for the purchase of infant formula except in accordance with the cost containment and competitive bidding requirements specified in section 17 of such Act: Provided further, That none of the funds provided shall be available for activities that are not fully reimbursed by other Federal Government departments or agencies unless authorized by section 17 of such Act: Provided further, That upon termination of a federally mandated vendor moratorium and subject to terms and conditions established by the Secretary, the Secretary may waive the requirement at 7 CFR 246.12(g)(6) at the request of a State agency.

SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

For necessary expenses to carry out the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.), $68,277,362,000, of which $3,000,000,000, to remain available through September 30, 2023, shall be placed in reserve for use only in such amounts and at such times as may become necessary to carry out program operations: Provided, That funds provided herein shall be expended in accordance with section 16 of the Food and Nutrition Act of 2008: Provided further, That of the funds made available under this heading, $998,000 may be used to provide nutrition education services to State agencies and Federally Recognized Tribes participating in the Food Distribution Program on Indian Reservations: Provided further, That this appropriation shall be subject to any work registration or workfare requirements as may be required by law: Provided further, That funds made available for Employment and Training under this heading shall remain available through September 30, 2022: Provided further, That funds made available under this heading for section 28(d)(1), section 4(b), and section 27(a) of the Food and Nutrition Act of 2008 shall remain available through September 30, 2022: Provided further, That with respect to funds made available under this heading for section 28(d)(1), the Secretary shall use 2 percent for administration, training and technical assistance, and pilot projects under section 28: Provided further, That none of the funds made available under this heading may be obligated or expended in contravention of section 213A of the Immigration and Nationality Act (8 U.S.C. 1183A): Provided further, That funds made available under this heading may be used to enter into contracts and employ staff to conduct studies, evaluations, or to conduct activities related to program integrity provided that such activities are authorized by the Food and Nutrition Act of 2008.

COMMODITY ASSISTANCE PROGRAM

For necessary expenses to carry out disaster assistance and the Commodity Supplemental Food Program as authorized by section 4(a) of the Agriculture and Consumer Protection Act of 1973 (7 U.S.C. 612c note); the Emergency Food Assistance Act of 1983; special assistance for the nuclear affected islands, as authorized by section 103(f)(2) of the Compact of Free Association Amendments Act of 2003 (Public Law 108–188); and the Farmers' Market Nutrition Program, as authorized by section 17(m) of the Child Nutrition Act of 1966, $390,700,000, to remain available through September 30, 2022: Provided, That none of these funds shall be available to reimburse the Commodity Credit Corporation for commodities donated to the program: Provided further, That notwithstanding any other provision of law, effective with funds made available in fiscal year 2021 to support the Seniors Farmers' Market Nutrition Program, as authorized by section 4402 of the Farm Security and Rural Investment Act of 2002, such funds shall remain available through September 30, 2022: Provided further, That of the funds made available under section 27(a) of the Food and Nutrition Act of 2008 (7 U.S.C. 2036(a)), the Secretary may use up to 20 percent for costs associated with the distribution of commodities.

NUTRITION PROGRAMS ADMINISTRATION

For necessary administrative expenses of the Food and Nutrition Service for carrying out any domestic nutrition assistance program, $156,368,000: Provided, That of the funds provided herein, $2,000,000 shall be used for the purposes of section 4404 of Public Law 107–171, as amended by section 4401 of Public Law 110–246.

TITLE V

FOREIGN ASSISTANCE AND RELATED PROGRAMS

OFFICE OF THE UNDER SECRETARY FOR TRADE AND FOREIGN AGRICULTURAL AFFAIRS

For necessary expenses of the Office of the Under Secretary for Trade and Foreign Agricultural Affairs, $887,000: Provided, That funds made available by this Act to any agency in the Trade and Foreign Agricultural Affairs mission area for salaries and expenses are available to fund up to one administrative support staff for the Office.

OFFICE OF CODEX ALIMENTARIUS

For necessary expenses of the Office of Codex Alimentarius, $4,805,000, including not to exceed $40,000 for official reception and representation expenses.

FOREIGN AGRICULTURAL SERVICE

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Foreign Agricultural Service, including not to exceed $250,000 for representation allowances and for expenses pursuant to section 8 of the Act approved August 3, 1956 (7 U.S.C. 1766), $222,243,000, of which no more than 6 percent shall remain available until September 30, 2022, for overseas operations to include the payment of locally employed staff: Provided, That the Service may utilize advances of funds, or reimburse this appropriation for expenditures made on behalf of Federal agencies, public and private organizations and institutions under agreements executed pursuant to the agricultural food production assistance programs (7 U.S.C. 1737) and the foreign assistance programs of the United States Agency for International Development: Provided further, That funds made available for middle-income country training programs, funds made available for the Borlaug International Agricultural Science and Technology Fellowship program, and up to $2,000,000 of the Foreign Agricultural Service appropriation solely for the purpose of offsetting fluctuations in international currency exchange rates, subject to documentation by the Foreign Agricultural Service, shall remain available until expended.

FOOD FOR PEACE TITLE I DIRECT CREDIT AND FOOD FOR PROGRESS PROGRAM ACCOUNT

(INCLUDING TRANSFER OF FUNDS)

For administrative expenses to carry out the credit program of title I, Food for Peace Act (Public Law 83–480) and the Food for Progress Act of 1985, $112,000, shall be transferred to and merged with the appropriation for ''Farm Production and Conservation Business Center, Salaries and Expenses''.

FOOD FOR PEACE TITLE II GRANTS

For expenses during the current fiscal year, not otherwise recoverable, and unrecovered prior years' costs, including interest thereon, under the Food for Peace Act (Public Law 83–480), for commodities supplied in connection with dispositions abroad under title II of said Act, $1,775,000,000, to remain available until expended.

MCGOVERN-DOLE INTERNATIONAL FOOD FOR EDUCATION AND CHILD NUTRITION PROGRAM GRANTS

For necessary expenses to carry out the provisions of section 3107 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 1736o–1), $235,000,000, to remain available until expended: Provided, That the Commodity Credit Corporation is authorized to provide the services, facilities, and authorities for the purpose of implementing such section, subject to reimbursement from amounts provided herein: Provided further, That of the amount made available under this heading, $23,500,000 shall remain available until expended to purchase agricultural commodities as described in subsection 3107(a)(2) of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 1736o–1(a)(2)).

COMMODITY CREDIT CORPORATION EXPORT (LOANS) CREDIT GUARANTEE PROGRAM ACCOUNT

(INCLUDING TRANSFERS OF FUNDS)

For administrative expenses to carry out the Commodity Credit Corporation's Export Guarantee Program, GSM 102 and GSM 103, $6,381,000, to cover common overhead expenses as permitted by section 11 of the Commodity Credit Corporation Charter Act and in conformity with the Federal Credit Reform Act of 1990, of which $6,063,000 shall be transferred to and merged with the appropriation for ''Foreign Agricultural Service, Salaries and Expenses'', and of which $318,000 shall be transferred to and merged with the appropriation for ''Farm Production and Conservation Business Center, Salaries and Expenses''.

TITLE VI

RELATED AGENCIES AND FOOD AND DRUG ADMINISTRATION

DEPARTMENT OF HEALTH AND HUMAN SERVICES

FOOD AND DRUG ADMINISTRATION

SALARIES AND EXPENSES

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Food and Drug Administration, including hire and purchase of passenger motor vehicles; for payment of space rental and related costs pursuant to Public Law 92–313 for programs and activities of the Food and Drug Administration which are included in this Act; for rental of special purpose space in the District of Columbia or elsewhere; in addition to amounts appropriated to the FDA Innovation Account, for carrying out the activities described in section 1002(b)(4) of the 21st Century Cures Act (Public Law 114–255); for miscellaneous and emergency expenses of enforcement activities, authorized and approved by the Secretary and to be accounted for solely on the Secretary's certificate, not to exceed $25,000; and notwithstanding section 521 of Public Law 107–188; $5,891,241,000: Provided, That of the amount provided under this heading, $1,119,188,000 shall be derived from prescription drug user fees authorized by 21 U.S.C. 379h, and shall be credited to this account and remain available until expended; $238,595,000 shall be derived from medical device user fees authorized by 21 U.S.C. 379j, and shall be credited to this account and remain available until expended; $526,039,000 shall be derived from human generic drug user fees authorized by 21 U.S.C. 379j–42, and shall be credited to this account and remain available until expended; $42,998,000 shall be derived from biosimilar biological product user fees authorized by 21 U.S.C. 379j–52, and shall be credited to this account and remain available until expended; $31,306,000 shall be derived from animal drug user fees authorized by 21 U.S.C. 379j–12, and shall be credited to this account and remain available until expended; $20,609,000 shall be derived from generic new animal drug user fees authorized by 21 U.S.C. 379j–21, and shall be credited to this account and remain available until expended; $712,000,000 shall be derived from tobacco product user fees authorized by 21 U.S.C. 387s, and shall be credited to this account and remain available until expended: Provided further, That in addition to and notwithstanding any other provision under this heading, amounts collected for prescription drug user fees, medical device user fees, human generic drug user fees, biosimilar biological product user fees, animal drug user fees, and generic new animal drug user fees that exceed the respective fiscal year 2021 limitations are appropriated and shall be credited to this account and remain available until expended: Provided further, That fees derived from prescription drug, medical device, human generic drug, biosimilar biological product, animal drug, and generic new animal drug assessments for fiscal year 2021, including any such fees collected prior to fiscal year 2021 but credited for fiscal year 2021, shall be subject to the fiscal year 2021 limitations: Provided further, That the Secretary may accept payment during fiscal year 2021 of user fees specified under this heading and authorized for fiscal year 2022, prior to the due date for such fees, and that amounts of such fees assessed for fiscal year 2022 for which the Secretary accepts payment in fiscal year 2021 shall not be included in amounts under this heading: Provided further, That none of these funds shall be used to develop, establish, or operate any program of user fees authorized by 31 U.S.C. 9701: Provided further, That of the total amount appropriated: (1) $1,098,459,000 shall be for the Center for Food Safety and Applied Nutrition and related field activities in the Office of Regulatory Affairs; (2) $2,031,084,000 shall be for the Center for Drug Evaluation and Research and related field activities in the Office of Regulatory Affairs; (3) $427,243,000 shall be for the Center for Biologics Evaluation and Research and for related field activities in the Office of Regulatory Affairs; (4) $240,257,000 shall be for the Center for Veterinary Medicine and for related field activities in the Office of Regulatory Affairs; (5) $611,327,000 shall be for the Center for Devices and Radiological Health and for related field activities in the Office of Regulatory Affairs; (6) $66,712,000 shall be for the National Center for Toxicological Research; (7) $662,612,000 shall be for the Center for Tobacco Products and for related field activities in the Office of Regulatory Affairs; (8) $190,217,000 shall be for Rent and Related activities, of which $53,608,000 is for White Oak Consolidation, other than the amounts paid to the General Services Administration for rent; (9) $236,121,000 shall be for payments to the General Services Administration for rent; and (10) $327,209,000 shall be for other activities, including the Office of the Commissioner of Food and Drugs, the Office of Foods and Veterinary Medicine, the Office of Medical and Tobacco Products, the Office of Global and Regulatory Policy, the Office of Operations, the Office of the Chief Scientist, and central services for these offices: Provided further, That not to exceed $25,000 of this amount shall be for official reception and representation expenses, not otherwise provided for, as determined by the Commissioner: Provided further, That any transfer of funds pursuant to section 770(n) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 379dd(n)) shall only be from amounts made available under this heading for other activities: Provided further, That of the amounts that are made available under this heading for ''other activities'', and that are not derived from user fees, $1,500,000 shall be transferred to and merged with the appropriation for ''Department of Health and Human Services—Office of Inspector General'' for oversight of the programs and operations of the Food and Drug Administration and shall be in addition to funds otherwise made available for oversight of the Food and Drug Administration: Provided further, That funds may be transferred from one specified activity to another with the prior approval of the Committees on Appropriations of both Houses of Congress.

In addition, mammography user fees authorized by 42 U.S.C. 263b, export certification user fees authorized by 21 U.S.C. 381, priority review user fees authorized by 21 U.S.C. 360n and 360ff, food and feed recall fees, food reinspection fees, and voluntary qualified importer program fees authorized by 21 U.S.C. 379j–31, outsourcing facility fees authorized by 21 U.S.C. 379j–62, prescription drug wholesale distributor licensing and inspection fees authorized by 21 U.S.C. 353(e)(3), third-party logistics provider licensing and inspection fees authorized by 21 U.S.C. 360eee–3(c)(1), third-party auditor fees authorized by 21 U.S.C. 384d(c)(8), medical countermeasure priority review voucher user fees authorized by 21 U.S.C. 360bbb–4a, and fees relating to over-the-counter monograph drugs authorized by 21 U.S.C. 379j–72 shall be credited to this account, to remain available until expended.

BUILDINGS AND FACILITIES

For plans, construction, repair, improvement, extension, alteration, demolition, and purchase of fixed equipment or facilities of or used by the Food and Drug Administration, where not otherwise provided, $11,788,000, to remain available until expended.

FDA INNOVATION ACCOUNT, CURES ACT

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses to carry out the purposes described under section 1002(b)(4) of the 21st Century Cures Act, in addition to amounts available for such purposes under the heading ''Salaries and Expenses'', $70,000,000, to remain available until expended: Provided, That amounts appropriated in this paragraph are appropriated pursuant to section 1002(b)(3) of the 21st Century Cures Act, are to be derived from amounts transferred under section 1002(b)(2)(A) of such Act, and may be transferred by the Commissioner of Food and Drugs to the appropriation for ''Department of Health and Human Services Food and Drug Administration Salaries and Expenses'' solely for the purposes provided in such Act: Provided further, That upon a determination by the Commissioner that funds transferred pursuant to the previous proviso are not necessary for the purposes provided, such amounts may be transferred back to the account: Provided further, That such transfer authority is in addition to any other transfer authority provided by law.

INDEPENDENT AGENCIES

COMMODITY FUTURES TRADING COMMISSION

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses to carry out the provisions of the Commodity Exchange Act (7 U.S.C. 1 et seq.), including the purchase and hire of passenger motor vehicles, and the rental of space (to include multiple year leases), in the District of Columbia and elsewhere, $304,000,000, including not to exceed $3,000 for official reception and representation expenses, and not to exceed $25,000 for the expenses for consultations and meetings hosted by the Commission with foreign governmental and other regulatory officials, of which not less than $20,000,000 shall remain available until September 30, 2022, and of which not less than $3,568,000 shall be for expenses of the Office of the Inspector General: Provided, That notwithstanding the limitations in 31 U.S.C. 1553, amounts provided under this heading are available for the liquidation of obligations equal to current year payments on leases entered into prior to the date of enactment of this Act: Provided further, That for the purpose of recording and liquidating any lease obligations that should have been recorded and liquidated against accounts closed pursuant to 31 U.S.C. 1552, and consistent with the preceding proviso, such amounts shall be transferred to and recorded in a no-year account in the Treasury, which has been established for the sole purpose of recording adjustments for and liquidating such unpaid obligations.

FARM CREDIT ADMINISTRATION

LIMITATION ON ADMINISTRATIVE EXPENSES

Not to exceed $80,400,000 (from assessments collected from farm credit institutions, including the Federal Agricultural Mortgage Corporation) shall be obligated during the current fiscal year for administrative expenses as authorized under 12 U.S.C. 2249: Provided, That this limitation shall not apply to expenses associated with receiverships: Provided further, That the agency may exceed this limitation by up to 10 percent with notification to the Committees on Appropriations of both Houses of Congress: Provided further, That the purposes of section 3.7(b)(2)(A)(i) of the Farm Credit Act of 1971 (12 U.S.C. 2128(b)(2)(A)(i)), the Farm Credit Administration may exempt, an amount in its sole discretion, from the application of the limitation provided in that clause of export loans described in the clause guaranteed or insured in a manner other than described in subclause (II) of the clause.

TITLE VII

GENERAL PROVISIONS

(INCLUDING RESCISSIONS AND TRANSFERS OF FUNDS)

SEC. 701. The Secretary may use any appropriations made available to the Department of Agriculture in this Act to purchase new passenger motor vehicles, in addition to specific appropriations for this purpose, so long as the total number of vehicles purchased in fiscal year 2021 does not exceed the number of vehicles owned or leased in fiscal year 2018: Provided, That, prior to purchasing additional motor vehicles, the Secretary must determine that such vehicles are necessary for transportation safety, to reduce operational costs, and for the protection of life, property, and public safety: Provided further, That the Secretary may not increase the Department of Agriculture's fleet above the 2018 level unless the Secretary notifies in writing, and receives approval from, the Committees on Appropriations of both Houses of Congress within 30 days of the notification.

SEC. 702. Notwithstanding any other provision of this Act, the Secretary of Agriculture may transfer unobligated balances of discretionary funds appropriated by this Act or any other available unobligated discretionary balances that are remaining available of the Department of Agriculture to the Working Capital Fund for the acquisition of plant and capital equipment necessary for the delivery of financial, administrative, and information technology services of primary benefit to the agencies of the Department of Agriculture, such transferred funds to remain available until expended: Provided, That none of the funds made available by this Act or any other Act shall be transferred to the Working Capital Fund without the prior approval of the agency administrator: Provided further, That none of the funds transferred to the Working Capital Fund pursuant to this section shall be available for obligation without written notification to and the prior approval of the Committees on Appropriations of both Houses of Congress: Provided further, That none of the funds appropriated by this Act or made available to the Department's Working Capital Fund shall be available for obligation or expenditure to make any changes to the Department's National Finance Center without written notification to and prior approval of the Committees on Appropriations of both Houses of Congress as required by section 716 of this Act: Provided further, That none of the funds appropriated by this Act or made available to the Department's Working Capital Fund shall be available for obligation or expenditure to initiate, plan, develop, implement, or make any changes to remove or relocate any systems, missions, personnel, or functions of the offices of the Chief Financial Officer and the Chief Information Officer, co-located with or from the National Finance Center prior to written notification to and prior approval of the Committees on Appropriations of both Houses of Congress and in accordance with the requirements of section 716 of this Act: Provided further, That the National Finance Center Information Technology Services Division personnel and data center management responsibilities, and control of any functions, missions, and systems for current and future human resources management and integrated personnel and payroll systems (PPS) and functions provided by the Chief Financial Officer and the Chief Information Office shall remain in the National Finance Center and under the management responsibility and administrative control of the National Finance Center: Provided further, That the Secretary of Agriculture and the offices of the Chief Financial Officer shall actively market to existing and new Departments and other government agencies National Finance Center shared services including, but not limited to, payroll, financial management, and human capital shared services and allow the National Finance Center to perform technology upgrades: Provided further, That of annual income amounts in the Working Capital Fund of the Department of Agriculture attributable to the amounts in excess of the true costs of the shared services provided by the National Finance Center and budgeted for the National Finance Center, the Secretary shall reserve not more than 4 percent for the replacement or acquisition of capital equipment, including equipment for the improvement, delivery, and implementation of financial, administrative, and information technology services, and other systems of the National Finance Center or to pay any unforeseen, extraordinary cost of the National Finance Center: Provided further, That none of the amounts reserved shall be available for obligation unless the Secretary submits written notification of the obligation to the Committees on Appropriations of both Houses of Congress: Provided further, That the limitations on the obligation of funds pending notification to Congressional Committees shall not apply to any obligation that, as determined by the Secretary, is necessary to respond to a declared state of emergency that significantly impacts the operations of the National Finance Center; or to evacuate employees of the National Finance Center to a safe haven to continue operations of the National Finance Center.

SEC. 703. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 704. No funds appropriated by this Act may be used to pay negotiated indirect cost rates on cooperative agreements or similar arrangements between the United States Department of Agriculture and nonprofit institutions in excess of 10 percent of the total direct cost of the agreement when the purpose of such cooperative arrangements is to carry out programs of mutual interest between the two parties. This does not preclude appropriate payment of indirect costs on grants and contracts with such institutions when such indirect costs are computed on a similar basis for all agencies for which appropriations are provided in this Act.

SEC. 705. Appropriations to the Department of Agriculture for the cost of direct and guaranteed loans made available in the current fiscal year shall remain available until expended to disburse obligations made in the current fiscal year for the following accounts: the Rural Development Loan Fund program account, the Rural Electrification and Telecommunication Loans program account, and the Rural Housing Insurance Fund program account.

SEC. 706. None of the funds made available to the Department of Agriculture by this Act may be used to acquire new information technology systems or significant upgrades, as determined by the Office of the Chief Information Officer, without the approval of the Chief Information Officer and the concurrence of the Executive Information Technology Investment Review Board: Provided, That notwithstanding any other provision of law, none of the funds appropriated or otherwise made available by this Act may be transferred to the Office of the Chief Information Officer without written notification to and the prior approval of the Committees on Appropriations of both Houses of Congress: Provided further, That, notwithstanding section 11319 of title 40, United States Code, none of the funds available to the Department of Agriculture for information technology shall be obligated for projects, contracts, or other agreements over $25,000 prior to receipt of written approval by the Chief Information Officer: Provided further, That the Chief Information Officer may authorize an agency to obligate funds without written approval from the Chief Information Officer for projects, contracts, or other agreements up to $250,000 based upon the performance of an agency measured against the performance plan requirements described in the

explanatory statement accompanying Public Law 113–235.

SEC. 707. Funds made available under section 524(b) of the Federal Crop Insurance Act (7 U.S.C. 1524(b)) in the current fiscal year shall remain available until expended to disburse obligations made in the current fiscal year.

SEC. 708. Notwithstanding any other provision of law, any former Rural Utilities Service borrower that has repaid or prepaid an insured, direct or guaranteed loan under the Rural Electrification Act of 1936, or any not-for-profit utility that is eligible to receive an insured or direct loan under such Act, shall be eligible for assistance under section 313B(a) of such Act in the same manner as a borrower under such Act.

SEC. 709. (a) Except as otherwise specifically provided by law, not more than $20,000,000 in unobligated balances from appropriations made available for salaries and expenses in this Act for the Farm Service Agency shall remain available through September 30, 2022, for information technology expenses.

(b) Except as otherwise specifically provided by law, not more than $20,000,000 in unobligated balances from appropriations made available for salaries and expenses in this Act for the Rural Development mission area shall remain available through September 30, 2022, for information technology expenses.

SEC. 710. None of the funds appropriated or otherwise made available by this Act may be used for first-class travel by the employees of agencies funded by this Act in contravention of sections 301–10.122 through 301–10.124 of title 41, Code of Federal Regulations.

SEC. 711. In the case of each program established or amended by the Agricultural Act of 2014 (Public Law 113–79) or by a successor to that Act, other than by title I or subtitle A of title III of such Act, or programs for which indefinite amounts were provided in that Act, that is authorized or required to be carried out using funds of the Commodity Credit Corporation—

(1) such funds shall be available for salaries and related administrative expenses, including technical assistance, associated with the implementation of the program, without regard to the limitation on the total amount of allotments and fund transfers contained in section 11 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714i); and

(2) the use of such funds for such purpose shall not be considered to be a fund transfer or allotment for purposes of applying the limitation on the total amount of allotments and fund transfers contained in such section.

SEC. 712. Of the funds made available by this Act, not more than $2,900,000 shall be used to cover necessary expenses of activities related to all advisory committees, panels, commissions, and task forces of the Department of Agriculture, except for panels used to comply with negotiated rule makings and panels used to evaluate competitively awarded grants.

SEC. 713. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

SEC. 714. Notwithstanding subsection (b) of section 14222 of Public Law 110–246 (7 U.S.C. 612c–6; in this section referred to as ''section 14222''), none of the funds appropriated or otherwise made available by this or any other Act shall be used to pay the salaries and expenses of personnel to carry out a program under section 32 of the Act of August 24, 1935 (7 U.S.C. 612c; in this section referred to as ''section 32'') in excess of $1,359,864,000 (exclusive of carryover appropriations from prior fiscal years), as follows: Child Nutrition Programs Entitlement Commodities—$485,000,000; State Option Contracts—$5,000,000; Removal of Defective Commodities—$2,500,000; Administration of Section 32 Commodity Purchases—$36,746,000: Provided, That of the total funds made available in the matter preceding this proviso that remain unobligated on October 1, 2021, such unobligated balances shall carryover into fiscal year 2022 and shall remain available until expended for any of the purposes of section 32, except that any such carryover funds used in accordance with clause (3) of section 32 may not exceed $350,000,000 and may not be obligated until the Secretary of Agriculture provides written notification of the expenditures to the Committees on Appropriations of both Houses of Congress at least two weeks in advance: Provided further, That, with the exception of any available carryover funds authorized in any prior appropriations Act to be used for the purposes of clause (3) of section 32, none of the funds appropriated or otherwise made available by this or any other Act shall be used to pay the salaries or expenses of any employee of the Department of Agriculture to carry out clause (3) of section 32.

SEC. 715. None of the funds appropriated by this or any other Act shall be used to pay the salaries and expenses of personnel who prepare or submit appropriations language as part of the President's budget submission to the Congress for programs under the jurisdiction of the Appropriations Subcommittees on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies that assumes revenues or reflects a reduction from the previous year due to user fees proposals that have not been enacted into law prior to the submission of the budget unless such budget submission identifies which additional spending reductions should occur in the event the user fees proposals are not enacted prior to the date of the convening of a committee of conference for the fiscal year 2022 appropriations Act.

SEC. 716. (a) None of the funds provided by this Act, or provided by previous appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in the current fiscal year, or provided from any accounts in the Treasury derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure through a reprogramming, transfer of funds, or reimbursements as authorized by the Economy Act, or in the case of the Department of Agriculture, through use of the authority provided by section 702(b) of the Department of Agriculture Organic Act of 1944 (7 U.S.C. 2257) or section 8 of Public Law 89–106 (7 U.S.C. 2263), that—

(1) creates new programs;

(2) eliminates a program, project, or activity;

(3) increases funds or personnel by any means for any project or activity for which funds have been denied or restricted;

(4) relocates an office or employees;

(5) reorganizes offices, programs, or activities; or

(6) contracts out or privatizes any functions or activities presently performed by Federal employees;

unless the Secretary of Agriculture, the Chairman of the Commodity Futures Trading Commission, or the Secretary of Health and Human Services (as the case may be) notifies in writing and receives approval from the Committees on Appropriations of both Houses of Congress at least 30 days in advance of the reprogramming of such funds or the use of such authority.

(b) None of the funds provided by this Act, or provided by previous Appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in the current fiscal year, or provided from any accounts in the Treasury derived by the collection of fees available to the agencies funded by this Act, shall be available for obligation or expenditure for activities, programs, or projects through a reprogramming or use of the authorities referred to in subsection (a) involving funds in excess of $500,000 or 10 percent, whichever is less, that—

(1) augments existing programs, projects, or activities;

(2) reduces by 10 percent funding for any existing program, project, or activity, or numbers of personnel by 10 percent as approved by Congress; or

(3) results from any general savings from a reduction in personnel which would result in a change in existing programs, activities, or projects as approved by Congress;

unless the Secretary of Agriculture, the Chairman of the Commodity Futures Trading Commission, or the Secretary of Health and Human Services (as the case may be) notifies in writing and receives approval from the Committees on Appropriations of both Houses of Congress at least 30 days in advance of the reprogramming or transfer of such funds or the use of such authority.

(c) The Secretary of Agriculture, the Chairman of the Commodity Futures Trading Commission, or the Secretary of Health and Human Services shall notify in writing and receive approval from the Committees on Appropriations of both Houses of Congress before implementing any program or activity not carried out during the previous fiscal year unless the program or activity is funded by this Act or specifically funded by any other Act.

(d) None of the funds provided by this Act, or provided by previous Appropriations Acts to the agencies funded by this Act that remain available for obligation or expenditure in the current fiscal year, or provided from any accounts in the Treasury derived by the collection of fees available to the agencies funded by this Act, shall be available for—

(1) modifying major capital investments funding levels, including information technology systems, that involves increasing or decreasing funds in the current fiscal year for the individual investment in excess of $500,000 or 10 percent of the total cost, whichever is less;

(2) realigning or reorganizing new, current, or vacant positions or agency activities or functions to establish a center, office, branch, or similar entity with five or more personnel; or

(3) carrying out activities or functions that were not described in the budget request;

unless the agencies funded by this Act notify, in writing, the Committees on Appropriations of both Houses of Congress at least 30 days in advance of using the funds for these purposes.

(e) As described in this section, no funds may be used for any activities unless the Secretary of Agriculture, the Chairman of the Commodity Futures Trading Commission, or the Secretary of Health and Human Services receives from the Committees on Appropriations of both Houses of Congress written or electronic mail confirmation of receipt of the notification as required in this section.

SEC. 717. Notwithstanding section 310B(g)(5) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1932(g)(5)), the Secretary may assess a one-time fee for any guaranteed business and industry loan in an amount that does not exceed 3 percent of the guaranteed principal portion of the loan.

SEC. 718. None of the funds appropriated or otherwise made available to the Department of Agriculture, the Food and Drug Administration, the Commodity Futures Trading Commission, or the Farm Credit Administration shall be used to transmit or otherwise make available reports, questions, or responses to questions that are a result of information requested for the appropriations hearing process to any non-Department of Agriculture, non-Department of Health and Human Services, non-Commodity Futures Trading Commission, or non-Farm Credit Administration employee.

SEC. 719. Unless otherwise authorized by existing law, none of the funds provided in this Act, may be used by an executive branch agency to produce any prepackaged news story intended for broadcast or distribution in the United States unless the story includes a clear notification within the text or audio of the prepackaged

news story that the prepackaged news story was prepared or funded by that executive branch agency.

SEC. 720. No employee of the Department of Agriculture may be detailed or assigned from an agency or office funded by this Act or any other Act to any other agency or office of the Department for more than 60 days in a fiscal year unless the individual's employing agency or office is fully reimbursed by the receiving agency or office for the salary and expenses of the employee for the period of assignment.

SEC. 721. For the purposes of determining eligibility or level of program assistance for Rural Development programs the Secretary shall not include incarcerated prison populations.

SEC. 722. Not later than 30 days after the date of enactment of this Act, the Secretary of Agriculture, the Commissioner of the Food and Drug Administration, the Chairman of the Commodity Futures Trading Commission, and the Chairman of the Farm Credit Administration shall submit to the Committees on Appropriations of both Houses of Congress a detailed spending plan by program, project, and activity for all the funds made available under this Act including appropriated user fees, as defined in the report accompanying this Act.

SEC. 723. Of the unobligated balances from amounts made available for the supplemental nutrition program as authorized by section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786), $1,000,000,000 are hereby rescinded: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to a Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 724. None of the funds made available by this Act may be used to implement section 3.7(f) of the Farm Credit Act of 1971 in a manner inconsistent with section 343(a)(13) of the Consolidated Farm and Rural Development Act.

SEC. 725. For loans and loan guarantees that do not require budget authority and the program level has been established in this Act, the Secretary of Agriculture may increase the program level for such loans and loan guarantees by not more than 25 percent: Provided, That prior to the Secretary implementing such an increase, the Secretary notifies, in writing, the Committees on Appropriations of both Houses of Congress at least 15 days in advance.

SEC. 726. None of the credit card refunds or rebates transferred to the Working Capital Fund pursuant to section 729 of the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2002 (7 U.S.C. 2235a; Public Law 107–76) shall be available for obligation without written notification to, and the prior approval of, the Committees on Appropriations of both Houses of Congress: Provided, That the refunds or rebates so transferred shall be available for obligation only for the acquisition of plant and capital equipment necessary for the delivery of financial, administrative, and information technology services, including cloud adoption and migration, of primary benefit to the agencies of the Department of Agriculture.

SEC. 727. None of the funds made available by this Act may be used to implement, administer, or enforce the ''variety'' requirements of the final rule entitled ''Enhancing Retailer Standards in the Supplemental Nutrition Assistance Program (SNAP)'' published by the Department of Agriculture in the Federal Register on December 15, 2016 (81 Fed. Reg. 90675) until the Secretary of Agriculture amends the definition of the term ''variety'' as de fined in section 278.1(b)(1)(ii)(C) of title 7, Code of Federal Regulations, and ''variety'' as applied in the definition of the term ''staple food'' as defined in section 271.2 of title 7, Code of Federal Regulations, to increase the number of items that qualify as acceptable varieties in each staple food category so that the total number of such items in each staple food category exceeds the number of such items in each staple food category included in the final rule as published on December 15, 2016: Provided, That until the Secretary promulgates such regulatory amendments, the Secretary shall apply the requirements regarding acceptable varieties and breadth of stock to Supplemental Nutrition Assistance Program retailers that were in effect on the day before the date of the enactment of the Agricultural Act of 2014 (Public Law 113–79).

SEC. 728. In carrying out subsection (h) of section 502 of the Housing Act of 1949 (42 U.S.C. 1472), the Secretary of Agriculture shall have the same authority with respect to loans guaranteed under such section and eligible lenders for such loans as the Secretary has under subsections (h) and (j) of section 538 of such Act (42 U.S.C. 1490p–2) with respect to loans guaranteed under such section 538 and eligible lenders for such loans.

SEC. 729. None of the funds made available by this Act may be used to propose, promulgate, or implement any rule, or take any other action with respect to, allowing or requiring information intended for a prescribing health care professional, in the case of a drug or biological product subject to section 503(b)(1) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 353(b)(1)), to be distributed to such professional electronically (in lieu of in paper form) unless and until a Federal law is enacted to allow or require such distribution.

SEC. 730. Hereafter, and notwithstanding any other provision of law, ARS facilities as described in the ''Memorandum of Understanding Between the U.S. Department of Agriculture Animal and Plant Health Inspection Service (APHIS) and the U.S. Department of Agriculture Agricultural Research Service (ARS) Concerning Laboratory Animal Welfare'' (16–6100–0103–MU Revision 16–1) shall be inspected by APHIS for compliance with the Animal Welfare Act and its regulations and standards.

SEC. 731. Funds made available under title II of the Food for Peace Act (7 U.S.C. 1721 et seq.) may only be used to provide assistance to recipient nations if adequate monitoring and controls, as determined by the Administrator, are in place to ensure that emergency food aid is received by the intended beneficiaries in areas affected by food shortages and not diverted for unauthorized or inappropriate purposes.

SEC. 732. There is hereby appropriated $12,000,000, to remain available until expended, to carry out section 6407 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8107a): Provided, That the Secretary may allow eligible entities, or comparable entities that provide energy efficiency services using their own billing mechanism to offer loans to customers in any part of their service territory and to offer loans to replace a manufactured housing unit with another manufactured housing unit, if replacement would be more cost effective in saving energy.

SEC. 733. None of the funds (including fees) made available by this Act or any other Act for any fiscal year (including Acts other than appropriations Acts) may be used to finalize, implement, administer, enforce, carry out, or otherwise give effect to the final rule entitled ''Supplemental Nutrition Assistance Program: Requirements for Able-Bodied Adults Without Dependents'' published in the Federal Register on December 5, 2019 (84 Fed. Reg. 66782).

SEC. 734. None of the funds (including fees) made available by this Act or any other Act for any fiscal year (including Acts other than appropriations Acts) may be used to finalize, implement, administer, enforce, carry out, or otherwise give effect to the proposed rule entitled ''Supplemental Nutrition Assistance Program: Standardization of State Heating and Cooling Standard Utility Allowances'' published in the Federal Register on October 3, 2019 (84 Fed. Reg. 52809).

SEC. 735. None of the funds made available by this Act may be used to carry out any activities or incur any expense related to the issuance of licenses under section 3 of the Animal Welfare Act (7 U.S.C. 2133), or the renewal of such licenses, to class B dealers who sell dogs and cats for use in research, experiments, teaching, or testing.

SEC. 736. (a)(1) No Federal funds made available for this fiscal year for the rural water, waste water, waste disposal, and solid waste management programs authorized by sections 306, 306A, 306C, 306D, 306E, and 310B of the Consolidated Farm and Rural Development Act (7 U.S.C. 1926 et seq.) shall be used for a project for the construction, alteration, maintenance, or repair of a public water or wastewater system unless all of the iron and steel products used in the project are produced in the United States.

(2) In this section, the term ''iron and steel products'' means the following products made primarily of iron or steel: lined or unlined pipes and fittings, manhole covers and other municipal castings, hydrants, tanks, flanges, pipe clamps and restraints, valves, structural steel, reinforced precast concrete, and construction materials.

(b) Subsection (a) shall not apply in any case or category of cases in which the Secretary of Agriculture (in this section referred to as the ''Secretary'') or the designee of the Secretary finds that—

(1) applying subsection (a) would be inconsistent with the public interest;

(2) iron and steel products are not produced in the United States in sufficient and reasonably available quantities or of a satisfactory quality; or

(3) inclusion of iron and steel products produced in the United States will increase the cost of the overall project by more than 25 percent.

(c) If the Secretary or the designee receives a request for a waiver under this section, the Secretary or the designee shall make available to the public on an informal basis a copy of the request and information available to the Secretary or the designee concerning the request, and shall allow for informal public input on the request for at least 15 days prior to making a finding based on the request. The Secretary or the designee shall make the request and accompanying information available by electronic means, including on the official public Internet Web site of the Department.

(d) This section shall be applied in a manner consistent with United States obligations under international agreements.

(e) The Secretary may retain up to 0.25 percent of the funds appropriated in this Act for ''Rural Utilities Service—Rural Water and Waste Disposal Program Account'' for carrying out the provisions described in subsection (a)(1) for management and oversight of the requirements of this section.

(f) Subsection (a) shall not apply with respect to a project for which the engineering plans and specifications include use of iron and steel products otherwise prohibited by such subsection if the plans and specifications have received required approvals from State agencies prior to the date of enactment of this Act.

(g) For purposes of this section, the terms ''United States'' and ''State'' shall include each of the several States, the District of Columbia, and each federally recognized Indian tribe.

SEC. 737. None of the funds appropriated by this Act may be used in any way, directly or indirectly, to influence congressional action on any legislation or appropriation matters pending before Congress, other than to communicate to Members of Congress as described in 18 U.S.C. 1913.

SEC. 738. None of the funds made available by this Act may be used to procure raw or processed poultry products imported into the United States from the People's Republic of China for use in the school lunch program under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.), the Child and Adult Care Food Program under section 17 of such Act (42

U.S.C. 1766), the Summer Food Service Program for Children under section 13 of such Act (42 U.S.C. 1761), or the school breakfast program under the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.).

SEC. 739. None of the funds made available by this Act may be used to pay the salaries or expenses of personnel—

(1) to inspect horses under section 3 of the Federal Meat Inspection Act (21 U.S.C. 603);

(2) to inspect horses under section 903 of the Federal Agriculture Improvement and Reform Act of 1996 (7 U.S.C. 1901 note; Public Law 104–127); or

(3) to implement or enforce section 352.19 of title 9, Code of Federal Regulations (or a successor regulation).

SEC. 740. Of the total amounts made available by this Act for direct loans and grants in section 732 and in the following headings: ''Rural Housing Service—Rural Housing Insurance Fund Program Account''; ''Rural Housing Service—Mutual and Self-Help Housing Grants''; ''Rural Housing Service—Rural Housing Assistance Grants''; ''Rural Housing Service—Rural Community Facilities Program Account''; ''Rural Business–Cooperative Service—Rural Business Program Account''; ''Rural Business–Cooperative Service—Rural Economic Development Loans Program Account''; ''Rural Business–Cooperative Service—Rural Cooperative Development Grants''; ''Rural Utilities Service—Rural Water and Waste Disposal Program Account''; ''Rural Utilities Service—Rural Electrification and Telecommunications Loans Program Account''; and ''Rural Utilities Service—Distance Learning, Telemedicine, and Broadband Program'', to the maximum extent feasible, at least 10 percent of the funds shall be allocated for assistance in persistent poverty counties under this section, including, notwithstanding any other provision regarding population limits, any county seat of such a persistent poverty county that has a population that does not exceed the authorized population limit by more than 10 percent: Provided, That for purposes of this section, the term ''persistent poverty counties'' means any county that has had 20 percent or more of its population living in poverty over the past 30 years, as measured by the 1990 and 2000 decennial censuses, and 2007–2011 American Community Survey 5-year average, or any territory or possession of the United States: Provided further, That with respect to specific activities for which program levels have been made available by this Act that are not supported by budget authority, the requirements of this section shall be applied to such program level.

SEC. 741. There is hereby appropriated $2,000,000, to remain available until September 30, 2022, for the National Institute of Food and Agriculture to issue a competitive grant to support the establishment of an Agriculture Business Innovation Center at a historically black college or university to serve as a technical assistance hub to enhance agriculture-based business development opportunities.

SEC. 742. In addition to any other funds made available in this Act or any other Act, there is appropriated $12,000,000 to carry out section 18(g)(8) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1769(g)), to remain available until expended.

SEC. 743. There is hereby appropriated $5,000,000, to remain available until September 30, 2022, for the cost of loans and grants that is consistent with section 4206 of the Agricultural Act of 2014, for necessary expenses of the Secretary to support projects that provide access to healthy food in underserved areas, to create and preserve quality jobs, and to revitalize low-income communities.

SEC. 744. For an additional amount for ''Animal and Plant Health Inspection Service—Salaries and Expenses'', $8,500,000, to remain available until September 30, 2022, for one-time control and management and associated activities directly related to the multiple-agency response to citrus greening.

SEC. 745. None of the funds made available by this Act may be used to notify a sponsor or otherwise acknowledge receipt of a submission for an exemption for investigational use of a drug or biological product under section 505(i) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355(i)) or section 351(a)(3) of the Public Health Service Act (42 U.S.C. 262(a)(3)) in research in which a human embryo is intentionally created or modified to include a heritable genetic modification. Any such submission shall be deemed to have not been received by the Secretary, and the exemption may not go into effect.

SEC. 746. None of the funds made available by this or any other Act may be used to enforce the final rule promulgated by the Food and Drug Administration entitled ''Standards for the Growing, Harvesting, Packing, and Holding of Produce for Human Consumption,'' and published on November 27, 2015, with respect to the regulation of entities that grow, harvest, pack, or hold wine grapes, hops, pulse crops, or almonds.

SEC. 747. For school year 2021–2022, only a school food authority that had a negative balance in the nonprofit school food service account as of December 31, 2020, shall be required to establish a price for paid lunches in accordance with section 12(p) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1760(p)).

SEC. 748. There is hereby appropriated $5,000,000, to remain available until September 30, 2022, for a pilot program for the National Institute of Food and Agriculture to provide grants to nonprofit organizations for programs and services to establish and enhance farming and ranching opportunities for military veterans.

SEC. 749. For school years 2020–2021 and 2021–2022, none of the funds made available by this Act may be used to implement or enforce the matter following the first comma in the second sentence of footnote (c) of section 220.8(c) of title 7, Code of Federal Regulations, with respect to the substitution of vegetables for fruits under the school breakfast program established under section 4 of the Child Nutrition Act of 1966 (42 U.S.C. 1773).

SEC. 750. Notwithstanding any other provision of law, the Secretary of Agriculture shall—

(1) not later than 60 days after the date of the enactment of this Act, submit to the Committee on Appropriations of the House of Representatives the documents cited in Press Release No. 0176.18 of the Department of Agriculture as the basis for the September 6, 2018 decision to cancel the Forest Service application for the Rainy River Watershed Withdrawal, including—

(A) the environmental assessment entitled ''Northern Minnesota Federal Minerals Withdrawal'' and dated September 2018;

(B) each mineral resources report cited in such Release;

(C) each biological and economic impact assessment cited in such Release; and

(D) each document developed with respect to such Release relating to the potential impacts of proposed mineral activities in the Rainy River Watershed on—

(i) water resources;

(ii) wilderness areas; and

(iii) cultural resources; and

(2) for the period beginning not later than 60 days after the date of the enactment of this Act and ending on the date that is 10 years thereafter, make publicly available on the website of the Department of Agriculture all documents (without redaction) described in paragraph (1).

SEC. 751. (a) The Secretary of Agriculture, acting through the Administrator of the Food Safety and Inspection Service, shall—

(1) revoke any line speed waivers issued to a processor subject to the Federal Meat Inspection Act (21 U.S.C. 601 et seq.) or the Poultry Products Inspection Act (21 U.S.C. 451 et seq.) during the period beginning on or after the first day of the COVID–19 emergency period and ending on the date of the enactment of this Act; and

(2) subject to subsection (b), not issue any such waivers on or after such date of enactment, for the duration of the COVID–19 emergency period.

(b) Notwithstanding subsection (a), the Secretary may issue a line speed waiver to a processor referred to in such subsection, if such processor—

(1) agrees to an inspection for such purpose conducted by the Assistant Secretary of Labor for Occupational Safety and Health; and

(2) the Assistant Secretary certifies to the Secretary of Agriculture that any increases in line speed at such processor's facilities would not have an adverse impact on worker safety.

(c) For purposes of this section, the term ''COVID–19 emergency period'' has the meaning given the term ''emergency period'' in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)).

SEC. 752. In addition to any funds made available in this Act or any other Act, there is hereby appropriated $14,000,000, to remain available until September 30, 2022, for grants from the National Institute of Food and Agriculture to the 1890 Institutions to support the Centers of Excellence.

SEC. 753. There is hereby appropriated $2,000,000, to remain available until expended, for the Secretary of Agriculture to carry out a pilot program that assists rural hospitals to improve long-term operations and financial health by providing technical assistance through analysis of current hospital management practices.

SEC. 754. There is hereby appropriated $3,000,000, to remain available until expended, for grants under section 12502 of Public Law 115–334.

SEC. 755. There is hereby appropriated $2,000,000 to carry out section 1621 of Public Law 110–246.

SEC. 756. The Secretary of Agriculture shall—

(1) within 30 days of enactment of this Act, publish a notice in the Federal Register of the Department's intent to lift the stay issued on July 31, 2013 (78 Fed. Reg. 46255) and a proposed date upon which the final rule published on December 31, 2012 (77 Fed. Reg. 76815) (''the final rule'') shall be become effective;

(2) take public comments on the notice for not more than 60 days; and

(3) not later than 30 days after the end of the comment period, publish in the Federal Register the date upon which the stay is lifted and the final rule shall become effective.

SEC. 757. There is hereby appropriated $3,000,000, to remain available until September 30, 2022, to carry out section 4003(b) of Public Law 115–334 relating to demonstration projects for Tribal Organizations.

SEC. 758. There is hereby appropriated $1,000,000 to carry out section 3307 of Public Law 115–334.

SEC. 759. The Secretary of Agriculture may waive the matching funds requirement under Section 412(g) of the Agricultural Research, Extension, and Education Reform Act of 1998 (7 U.S.C. 7632(g)).

SEC. 760. There is hereby appropriated $15,000,000, to remain available until September 30, 2022, to carry out section 23 of the Child Nutrition Act of 1966 (42 U.S.C. 1793), of which $2,000,000 shall be for grants under such section to the Commonwealth of Puerto Rico, the Commonwealth of the Northern Mariana Islands, the United States Virgin Islands, Guam, and American Samoa.

SEC. 761. Any funds made available by this or any other Act that the Secretary withholds pursuant to section 1668(g)(2) of the Food, Agriculture, Conservation, and Trade Act of 1990 (7 U.S.C. 5921(g)(2)), as amended, shall be available for grants for biotechnology risk assessment research: Provided, That the Secretary may transfer such funds to appropriations of the Department of Agriculture.

SEC. 762. There is hereby appropriated $7,000,000 to carry out section 222 of Subtitle A of the Department of Agriculture Reorganization Act of 1994 (7 U.S.C. 6923) as amended by section 12302 of Public Law 115–334.

SEC. 763. There is hereby appropriated $500,000 to carry out section 224 of Subtitle A of the Department of Agriculture Reorganization Act of 1994 (7 U.S.C. 6924) as amended by section 12504 of Public Law 115–334.

SEC. 764. There is hereby appropriated $1,000,000, to remain available until September 30, 2022, to carry out section 4208 of Public Law 115–334.

SEC. 765. There is hereby appropriated $400,000 to carry out section 1672(g)(4)(B) of the Food, Agriculture, Conservation, and Trade Act of 1990 (7 U.S.C. 5925(g)(4(B)) as amended by section 7209 of Public Law 115–334.

SEC. 766. There is hereby appropriated $5,000,000 to carry out section 12301 of Public Law 115–334.

SEC. 767. There is hereby appropriated $5,000,000 to carry out section 1450 of the National Agricultural Research, Extension, and Teaching Policy Act of 1977 (7 U.S.C. 3222e) as amended by section 7120 of Public Law 115–334.

SEC. 768. There is hereby appropriated $1,000,000 to carry out section 1671 of the Food, Agriculture, Conservation, and Trade Act of 1990 (7 U.S.C. 5924) as amended by section 7208 of Public Law 115–334.

SEC. 769. In response to an eligible community where the drinking water supplies are inadequate due to a natural disaster, as determined by the Secretary, including drought or severe weather, the Secretary may provide potable water through the Emergency Community Water Assistance Grant Program for an additional period of time not to exceed 120 days beyond the established period provided under the Program in order to protect public health.

SEC. 770. There is hereby appropriated $5,000,000 to remain available until September 30, 2022, to carry out section 4206 of Public Law 115–334.

SEC. 771. There is hereby appropriated $1,000,000, to remain available until expended, to carry out section 12513 of Public Law 115–334.

SEC. 772. (a) There is hereby appropriated $915,000,000, to remain available until expended, for an additional amount for ''Rural Utilities Service—Distance Learning, Telemedicine, and Broadband Program'' for the same purpose and under the same terms and conditions as funds appropriated by section 779 of Public Law 115–141 (as amended by section 776).

(b) Section 313(b) of the Rural Electrification Act of 1936, as amended (7 U.S.C. 940c(b)), shall be applied for fiscal year 2021 and each fiscal year thereafter until the specified funding has been expended as if the following were inserted after the final period in subsection (b)(2): ''In addition, the Secretary shall use, for the same purpose and under the same terms and conditions as funds appropriated by section 779 of Public Law 115–141, $425,000,000 of funds available in this subaccount in fiscal year 2019 and thereafter until expended; $255,000,000 of funds available in this subaccount in fiscal year 2020 and thereafter until expended; and $75,000,000 of funds available in this subaccount in fiscal year 2021 and thereafter until expended: Provided, That any use of such funds shall be treated as a reprogramming of funds under section 716 of this Act.''.

(c) Section 787(b) of division B of Public Law 116–94 shall no longer apply.

SEC. 773. Hereafter, and notwithstanding any other provision of law, no funds available to the Department of Agriculture may be used to move any staff office or any agency from the mission area in which it was located on August 1, 2018, to any other mission area or office within the Department in the absence of the enactment of specific legislation affirming such move.

SEC. 774. There is hereby appropriated $10,000,000, to remain available until expended, for the Secretary of Agriculture to carry out a pilot program to provide financial assistance for rural communities to further develop renewable energy.

SEC. 775. Section 9(i)(2) of the Food and Nutrition Act of 2008 (7 U.S.C. 2018(i)(2)) is amended by striking ''December 31, 2020'' and inserting ''December 31, 2021''.

SEC. 776. Section 779 of Public Law 115–141 is amended by striking ''efforts made'' in the fourth proviso and inserting ''service provided''.

SEC. 777. The Secretary, acting through the Chief of the Natural Resources Conservation Service, may use funds appropriated under this Act for the Watershed and Flood Prevention Operations Program and the Watershed Rehabilitation Program carried out pursuant to the Watershed Protection and Flood Prevention Act (16 U.S.C. 1001 et seq.), and for the Emergency Watershed Protection Program carried out pursuant to section 403 of the Agricultural Credit Act of 1978 (16 U.S.C. 2203) to provide technical services for such programs pursuant to section 1252(a)(1) of the Food Security Act of 1985 (16 U.S.C. 3851(a)(1)), notwithstanding subsection (c) of such section.

SEC. 778. (a) The Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs (Commissioner), shall explore and, if it determines to be feasible, implement a number of options for regulating the export of shrimp to the United States from other countries, such as sampling of products prior to export to the United States, increasing foreign inspections of export facilities, increased seafood importer inspections, foreign surveillance inspections at overseas manufacturing sites, enhanced import screening, higher rates of examination and sampling, use of third-party audits, and formal seafood arrangements with foreign competent authorities.

(b) The Commissioner shall especially consider the following: (1) that appropriate controls are applied to shrimp feed and production ponds, processing plants, and facilities throughout the chain of distribution to determine compliance with seafood safety requirements; (2) dedicate its inspectional effort to determine compliance with seafood arrangements, once established, from any dedicated funds; (3) provide an annual report to the Committee before the end of fiscal years 2021, 2022, and 2023 with the reporting requirement goal being to provide the Committee information related to FDA's oversight of the safety of shrimp products imported into the United States.

SEC. 779. Section 7605(b) of the Agriculture Improvement Act of 2018 (7 U.S.C. 5940 note; Public Law 115–334) shall be applied by substituting ''September 30, 2021'' for ''the date that is 1 year after the date on which the Secretary establishes a plan under section 297C of the Agricultural Marketing Act of 1946''.

SEC. 780. None of the funds made available by this or any other act may be used to restrict the offering of low-fat (1% fat) flavored milk in the National School Lunch Program or School Breakfast Program, as long as such milk is not inconsistent with the most recent Dietary Guidelines for Americans published under section 301 of the National Nutrition Monitoring and Related Research Act of 1990.

SEC. 781. The Commissioner of the Food and Drug Administration shall develop a plan within 180 days of enactment that would allow the Agency to identify, detain and refuse all FDA regulated products originating from foreign establishments that did not allow FDA investigators immediate physical access to the registered establishment and its records to determine a registered establishment's ongoing compliance with FDA laws and regulations. Any foreign establishment that meets these criteria may be placed on import alert. This import alert would be specific for this foreign establishment, focusing on detaining all products from this establishment.

SEC. 782. In administering the pilot program established by section 779 of division A of the Consolidated Appropriations Act, 2018 (Public Law 115–141), the Secretary of Agriculture may, for purposes of determining entities eligible to receive assistance, consider those communities which are ''Areas Rural in Character'': Provided, That not more than 10 percent of the funds made available by section 772 may be used for this purpose.

SEC. 783. Not later than 1 year after the date of enactment of this Act, the National Academy of Sciences, Engineering, and Medicine shall complete a review and provide a report to the Secretary of Agriculture, the Secretary of Health and Human Services, and the Congress, on the most recent edition of the dietary guidelines for Americans that includes the following:

(1) A comparative analysis of the scientific methodologies, review protocols, and evaluation processes used to develop the most recently issued guidelines as compared to recommendations included in the National Academy of Sciences, Engineering, and Medicine September 2017 report entitled ''Redesigning the Process for Establishing the Dietary Guidelines for Americans''.

(2) A comparative analysis of the scientific studies used to develop such guidelines to determine the dietary needs of Americans with diet-related metabolic diseases as compared to the most current and rigorous scientific studies on diet and diet-related metabolic diseases available.

(3) An analysis of how full implementation of the recommendations described in paragraph (1) would have affected the most recently issued guidelines.

SEC. 784. (a) Section 569D of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360bbb–8d) is amended—

(1) in the section heading, by striking ''CONTROLLED SUBSTANCES'' and inserting ''DRUGS AND CONTROLLED SUBSTANCES'';

(2) by striking ''controlled substance'' each place such term appears and inserting ''drug or controlled substance'';

(3) in subsection (b), by striking ''controlled substances'' and inserting ''drugs or controlled substances''; and

(4) in subsection (c), by striking ''or an official senior to such Director'' and inserting the following: ''or the Director of the Center for Biologics Evaluation and Research (or an official senior to either such Director)''.

(b) Section 801(a) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 381(a)) is amended by striking ''is a controlled substance subject to an order under section 569D'' and inserting ''is a drug or controlled substance subject to an order under section 569D''.

This Act may be cited as the ''Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2021''.

DIVISION C—DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2021

That the following sums are appropriated, out of any money in the Treasury not otherwise appropriated, for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2021, and for other purposes, namely:

TITLE I

DEPARTMENT OF THE INTERIOR

BUREAU OF LAND MANAGEMENT

MANAGEMENT OF LANDS AND RESOURCES

(INCLUDING RESCISSION OF FUNDS)

For necessary expenses for protection, use, improvement, development, disposal, cadastral surveying, classification, acquisition of easements and other interests in lands, and performance of other functions, including maintenance of facilities, as authorized by law, in the management of lands and their resources under the jurisdiction of the Bureau of Land Management, including the general administration of the Bureau, and assessment of mineral potential of

public lands pursuant to section 1010(a) of Public Law 96–487 (16 U.S.C. 3150(a)), $1,206,425,000, to remain available until September 30, 2022; of which $100,550,000 for annual and deferred maintenance and $102,620,000 for the wild horse and burro program, as authorized by Public Law 92–195 (16 U.S.C. 1331 et seq.), shall remain available until expended: Provided, That amounts in the fee account of the BLM Permit Processing Improvement Fund may be used for bureau-related expenses directly associated with the processing of oil and gas applications for permits to drill and related use of authorizations.

In addition, $39,696,000 is for Mining Law Administration program operations, including the cost of administering the mining claim fee program, to remain available until expended, to be reduced by amounts collected by the Bureau and credited to this appropriation from mining claim maintenance fees and location fees that are hereby authorized for fiscal year 2021, so as to result in a final appropriation estimated at not more than $1,206,425,000, and $2,000,000, to remain available until expended, from communication site rental fees established by the Bureau for the cost of administering communication site activities.

Of the unobligated balances from amounts made available under this heading in fiscal year 2018 or before, $17,000,000 is permanently rescinded: Provided, That no amounts may be rescinded from amounts originally allocated for deferred maintenance and capital improvement activities: Provided further, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

LAND ACQUISITION

(INCLUDING RESCISSION OF FUNDS)

Of the unobligated balances from amounts made available for Land Acquisition and derived from the Land and Water Conservation Fund, $2,000,000 is hereby permanently rescinded from projects with cost savings or failed or partially failed projects: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

OREGON AND CALIFORNIA GRANT LANDS

For expenses necessary for management, protection, and development of resources and for construction, operation, and maintenance of access roads, reforestation, and other improvements on the revested Oregon and California Railroad grant lands, on other Federal lands in the Oregon and California land-grant counties of Oregon, and on adjacent rights-of-way; and acquisition of lands or interests therein, including existing connecting roads on or adjacent to such grant lands; $115,607,000, to remain available until expended: Provided, That 25 percent of the aggregate of all receipts during the current fiscal year from the revested Oregon and California Railroad grant lands is hereby made a charge against the Oregon and California land-grant fund and shall be transferred to the General Fund in the Treasury in accordance with the second paragraph of subsection (b) of title II of the Act of August 28, 1937 (43 U.S.C. 2605).

RANGE IMPROVEMENTS

For rehabilitation, protection, and acquisition of lands and interests therein, and improvement of Federal rangelands pursuant to section 401 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1751), notwithstanding any other Act, sums equal to 50 percent of all moneys received during the prior fiscal year under sections 3 and 15 of the Taylor Grazing Act (43 U.S.C. 315b, 315m) and the amount designated for range improvements from grazing fees and mineral leasing receipts from Bankhead-Jones lands transferred to the Department of the Interior pursuant to law, but not less than $10,000,000, to remain available until expended: Provided, That not to exceed $600,000 shall be available for administrative expenses.

SERVICE CHARGES, DEPOSITS, AND FORFEITURES

(INCLUDING RESCISSION OF FUNDS)

For administrative expenses and other costs related to processing application documents and other authorizations for use and disposal of public lands and resources, for costs of providing copies of official public land documents, for monitoring construction, operation, and termination of facilities in conjunction with use authorizations, and for rehabilitation of damaged property, such amounts as may be collected under Public Law 94–579 (43 U.S.C. 1701 et seq.), and under section 28 of the Mineral Leasing Act (30 U.S.C. 185), to remain available until expended: Provided, That notwithstanding any provision to the contrary of section 305(a) of Public Law 94–579 (43 U.S.C. 1735(a)), any moneys that have been or will be received pursuant to that section, whether as a result of forfeiture, compromise, or settlement, if not appropriate for refund pursuant to section 305(c) of that Act (43 U.S.C. 1735(c)), shall be available and may be expended under the authority of this Act by the Secretary to improve, protect, or rehabilitate any public lands administered through the Bureau of Land Management which have been damaged by the action of a resource developer, purchaser, permittee, or any unauthorized person, without regard to whether all moneys collected from each such action are used on the exact lands damaged which led to the action: Provided further, That any such moneys that are in excess of amounts needed to repair damage to the exact land for which funds were collected may be used to repair other damaged public lands.

Of the unobligated balances from amounts collected in fiscal year 2015 or any prior fiscal year, $20,000,000 is permanently rescinded.

MISCELLANEOUS TRUST FUNDS

In addition to amounts authorized to be expended under existing laws, there is hereby appropriated such amounts as may be contributed under section 307 of Public Law 94–579 (43 U.S.C. 1737), and such amounts as may be advanced for administrative costs, surveys, appraisals, and costs of making conveyances of omitted lands under section 211(b) of that Act (43 U.S.C. 1721(b)), to remain available until expended.

ADMINISTRATIVE PROVISIONS

The Bureau of Land Management may carry out the operations funded under this Act by direct expenditure, contracts, grants, cooperative agreements and reimbursable agreements with public and private entities, including with States. Appropriations for the Bureau shall be available for purchase, erection, and dismantlement of temporary structures, and alteration and maintenance of necessary buildings and appurtenant facilities to which the United States has title; up to $100,000 for payments, at the discretion of the Secretary, for information or evidence concerning violations of laws administered by the Bureau; miscellaneous and emergency expenses of enforcement activities authorized or approved by the Secretary and to be accounted for solely on the Secretary's certificate, not to exceed $10,000: Provided, That notwithstanding Public Law 90–620 (44 U.S.C. 501), the Bureau may, under cooperative cost-sharing and partnership arrangements authorized by law, procure printing services from cooperators in connection with jointly produced publications for which the cooperators share the cost of printing either in cash or in services, and the Bureau determines the cooperator is capable of meeting accepted quality standards: Provided further, That projects to be funded pursuant to a written commitment by a State government to provide an identified amount of money in support of the project may be carried out by the Bureau on a reimbursable basis.

UNITED STATES FISH AND WILDLIFE SERVICE

RESOURCE MANAGEMENT

(INCLUDING TRANSFER AND RESCISSION OF FUNDS)

For necessary expenses of the United States Fish and Wildlife Service, as authorized by law, and for scientific and economic studies, general administration, and for the performance of other authorized functions related to such resources, $1,387,278,000, to remain available until September 30, 2022: Provided, That not to exceed $21,037,000 shall be used for implementing subsections (a), (b), (c), and (e) of section 4 of the Endangered Species Act of 1973 (16 U.S.C. 1533) (except for processing petitions, developing and issuing proposed and final regulations, and taking any other steps to implement actions described in subsection (c)(2)(A), (c)(2)(B)(i), or (c)(2)(B)(ii)): Provided further, That the United States Fish and Wildlife Service may accept transfers of funds from U.S. Customs and Border Protection for mitigation activities, including land acquisition, related to the construction of border barriers on Federal lands.

Of the funding provided under this heading for central office operations in the Further Consolidated Appropriations Act, 2020, $1,000,000 is permanently rescinded: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

CONSTRUCTION

For construction, improvement, acquisition, or removal of buildings and other facilities required in the conservation, management, investigation, protection, and utilization of fish and wildlife resources, and the acquisition of lands and interests therein; $18,338,000, to remain available until expended.

COOPERATIVE ENDANGERED SPECIES CONSERVATION FUND

(INCLUDING RESCISSION OF FUNDS)

For expenses necessary to carry out section 6 of the Endangered Species Act of 1973 (16 U.S.C. 1535), $23,702,000, to remain available until expended, of which $23,702,000 is to be derived from the Cooperative Endangered Species Conservation Fund.

Of the unobligated balances made available from the Cooperative Endangered Species Conservation Fund, $11,000,000 is permanently rescinded from projects or from other grant programs with an unobligated carry over balance: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL WILDLIFE REFUGE FUND

For expenses necessary to implement the Act of October 17, 1978 (16 U.S.C. 715s), $13,228,000.

NORTH AMERICAN WETLANDS CONSERVATION FUND

For expenses necessary to carry out the provisions of the North American Wetlands Conservation Act (16 U.S.C. 4401 et seq.), $46,500,000, to remain available until expended.

NEOTROPICAL MIGRATORY BIRD CONSERVATION

For expenses necessary to carry out the Neotropical Migratory Bird Conservation Act (16 U.S.C. 6101 et seq.), $4,910,000, to remain available until expended.

MULTINATIONAL SPECIES CONSERVATION FUND

For expenses necessary to carry out the African Elephant Conservation Act (16 U.S.C. 4201 et seq.), the Asian Elephant Conservation Act of 1997 (16 U.S.C. 4261 et seq.), the Rhinoceros and

Tiger Conservation Act of 1994 (16 U.S.C. 5301 et seq.), the Great Ape Conservation Act of 2000 (16 U.S.C. 6301 et seq.), and the Marine Turtle Conservation Act of 2004 (16 U.S.C. 6601 et seq.), $19,000,000, to remain available until expended.

STATE AND TRIBAL WILDLIFE GRANTS

For wildlife conservation grants to States and to the District of Columbia, Puerto Rico, Guam, the United States Virgin Islands, the Northern Mariana Islands, American Samoa, and Indian tribes under the provisions of the Fish and Wildlife Act of 1956 and the Fish and Wildlife Coordination Act, for the development and implementation of programs for the benefit of wildlife and their habitat, including species that are not hunted or fished, $78,321,000, to remain available until expended: Provided, That of the amount provided herein, $6,209,000 is for a competitive grant program for Indian tribes not subject to the remaining provisions of this appropriation: Provided further, That $7,362,000 is for a competitive grant program to implement approved plans for States, territories, and other jurisdictions and at the discretion of affected States, the regional Associations of fish and wildlife agencies, not subject to the remaining provisions of this appropriation: Provided further, That the Secretary shall, after deducting $13,571,000 and administrative expenses, apportion the amount provided herein in the following manner: (1) to the District of Columbia and to the Commonwealth of Puerto Rico, each a sum equal to not more than one-half of 1 percent thereof; and (2) to Guam, American Samoa, the United States Virgin Islands, and the Commonwealth of the Northern Mariana Islands, each a sum equal to not more than one-fourth of 1 percent thereof: Provided further, That the Secretary shall apportion the remaining amount in the following manner: (1) one-third of which is based on the ratio to which the land area of such State bears to the total land area of all such States; and (2) two-thirds of which is based on the ratio to which the population of such State bears to the total population of all such States: Provided further, That the amounts apportioned under this paragraph shall be adjusted equitably so that no State shall be apportioned a sum which is less than 1 percent of the amount available for apportionment under this paragraph for any fiscal year or more than 5 percent of such amount: Provided further, That the Federal share of planning grants shall not exceed 75 percent of the total costs of such projects and the Federal share of implementation grants shall not exceed 65 percent of the total costs of such projects: Provided further, That the non-Federal share of such projects may not be derived from Federal grant programs: Provided further, That any amount apportioned in 2021 to any State, territory, or other jurisdiction that remains unobligated as of September 30, 2022, shall be reapportioned, together with funds appropriated in 2023, in the manner provided herein.

ADMINISTRATIVE PROVISIONS

The United States Fish and Wildlife Service may carry out the operations of Service programs by direct expenditure, contracts, grants, cooperative agreements and reimbursable agreements with public and private entities. Appropriations and funds available to the United States Fish and Wildlife Service shall be available for repair of damage to public roads within and adjacent to reservation areas caused by operations of the Service; options for the purchase of land at not to exceed $1 for each option; facilities incident to such public recreational uses on conservation areas as are consistent with their primary purpose; and the maintenance and improvement of aquaria, buildings, and other facilities under the jurisdiction of the Service and to which the United States has title, and which are used pursuant to law in connection with management, and investigation of fish and wildlife resources: Provided, That notwithstanding 44 U.S.C. 501, the Service may, under cooperative cost sharing and partnership arrangements authorized by law, procure printing services from cooperators in connection with jointly produced publications for which the cooperators share at least one-half the cost of printing either in cash or services and the Service determines the cooperator is capable of meeting accepted quality standards: Provided further, That the Service may accept donated aircraft as replacements for existing aircraft: Provided further, That notwithstanding 31 U.S.C. 3302, all fees collected for non-toxic shot review and approval shall be deposited under the heading ''United States Fish and Wildlife Service—Resource Management'' and shall be available to the Secretary, without further appropriation, to be used for expenses of processing of such non-toxic shot type or coating applications and revising regulations as necessary, and shall remain available until expended.

NATIONAL PARK SERVICE

OPERATION OF THE NATIONAL PARK SYSTEM

For expenses necessary for the management, operation, and maintenance of areas and facilities administered by the National Park Service and for the general administration of the National Park Service, $2,776,642,000, of which $10,282,000 for planning and interagency coordination in support of Everglades restoration and $135,950,000 for maintenance, repair, or rehabilitation projects for constructed assets and $188,184,000 for cyclic maintenance projects for constructed assets and cultural resources and $5,000,000 for uses authorized by section 101122 of title 54, United States Code shall remain available until September 30, 2022: Provided, That funds appropriated under this heading in this Act are available for the purposes of section 5 of Public Law 95–348: Provided further, That notwithstanding section 9(a) of the United States Semiquincentennial Commission Act of 2016 (Public Law 114–196; 130 Stat. 691), $3,300,000 of the funds made available under this heading shall be provided to the United States Semiquincentennial Commission for the purposes specified by that Act: Provided further, That notwithstanding section 9 of the 400 Years of African-American History Commission Act (36 U.S.C. note prec. 101; Public Law 115–102), $3,300,000 of the funds provided under this heading shall be made available for the purposes specified by that Act: Provided further, That, if the Secretary of the Interior has not provided to the Committees on Appropriations of the House of Representatives and the Senate the information requested in the letter detailed in the report accompanying this Act within 10 days of enactment of this Act, the funds made available under this heading for the United States Park Police shall be reduced by $50,000 per day for each day that the Secretary fails to comply with the request for information under that section, with any funds reduced under this proviso to be permanently rescinded.

NATIONAL RECREATION AND PRESERVATION

For expenses necessary to carry out recreation programs, natural programs, cultural programs, heritage partnership programs, environmental compliance and review, international park affairs, and grant administration, not otherwise provided for, $74,292,000. Provided, That notwithstanding any other provision of law, the requirement for a local entity to provide a match for federal funding provided from the Heritage Partnership Program is waived for fiscal year 2021.

HISTORIC PRESERVATION FUND

For expenses necessary in carrying out the National Historic Preservation Act (division A of subtitle III of title 54, United States Code), $136,425,000, to be derived from the Historic Preservation Fund and to remain available until September 30, 2022, of which $25,000,000 shall be for Save America's Treasures grants for preservation of national significant sites, structures and artifacts as authorized by section 7303 of the Omnibus Public Land Management Act of 2009 (54 U.S.C. 3089): Provided, That an individual Save America's Treasures grant shall be matched by non-Federal funds: Provided further, That individual projects shall only be eligible for one grant: Provided further, That all projects to be funded shall be approved by the Secretary of the Interior in consultation with the House and Senate Committees on Appropriations: Provided further, That of the funds provided for the Historic Preservation Fund, $1,000,000 is for competitive grants for the survey and nomination of properties to the National Register of Historic Places and as National Historic Landmarks associated with communities currently under-represented, as determined by the Secretary, $22,250,000 is for competitive grants to preserve the sites and stories of the Civil Rights movement, $10,000,000 is for grants to Historically Black Colleges and Universities, and $7,500,000 is for competitive grants for the restoration of historic properties of national, State and local significance listed on or eligible for inclusion on the National Register of Historic Places, to be made without imposing the usage or direct grant restrictions of section 101(e)(3) (54 U.S.C. 302904) of the National Historical Preservation Act: Provided further, That such competitive grants shall be made without imposing the matching requirements in section 302902(b)(3) of title 54, United States Code, to States and Indian tribes as defined in chapter 3003 of such title, Native Hawaiian organizations, local governments, including Certified Local Governments, and non-profit organizations.

CONSTRUCTION

For construction, improvements, repair, or replacement of physical facilities, and compliance and planning for programs and areas administered by the National Park Service, $223,907,000, to remain available until expended: Provided, That notwithstanding any other provision of law, for any project initially funded in fiscal year 2021 with a future phase indicated in the National Park Service 5-Year Line Item Construction Plan, a single procurement may be issued which includes the full scope of the project: Provided further, That the solicitation and contract shall contain the clause availability of funds found at 48 CFR 52.232–18: Provided further, That National Park Service Donations, Park Concessions Franchise Fees, and Recreation Fees may be made available for the cost of adjustments and changes within the original scope of effort for projects funded by the National Park Service Construction appropriation: Provided further, That the Secretary of the Interior shall consult with the Committees on Appropriations, in accordance with current reprogramming thresholds, prior to making any charges authorized by this section.

LAND ACQUISITION AND STATE ASSISTANCE

(INCLUDING RESCISSION OF FUNDS)

Of the unobligated balances from amounts made available for Land Acquisition and derived from the Land and Water Conservation Fund, $2,000,000 is hereby permanently rescinded from projects with cost savings or failed or partially failed projects: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

CENTENNIAL CHALLENGE

For expenses necessary to carry out the provisions of section 101701 of title 54, United States Code, relating to challenge cost share agreements, $15,000,000, to remain available until expended, for Centennial Challenge projects and programs: Provided, That not less than 50 percent of the total cost of each project or program shall be derived from non-Federal sources in the

form of donated cash, assets, or a pledge of donation guaranteed by an irrevocable letter of credit.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

In addition to other uses set forth in section 101917(c)(2) of title 54, United States Code, franchise fees credited to a sub-account shall be available for expenditure by the Secretary, without further appropriation, for use at any unit within the National Park System to extinguish or reduce liability for Possessory Interest or leasehold surrender interest. Such funds may only be used for this purpose to the extent that the benefitting unit anticipated franchise fee receipts over the term of the contract at that unit exceed the amount of funds used to extinguish or reduce liability. Franchise fees at the benefitting unit shall be credited to the sub-account of the originating unit over a period not to exceed the term of a single contract at the benefitting unit, in the amount of funds so expended to extinguish or reduce liability.

For the costs of administration of the Land and Water Conservation Fund grants authorized by section 105(a)(2)(B) of the Gulf of Mexico Energy Security Act of 2006 (Public Law 109–432), the National Park Service may retain up to 3 percent of the amounts which are authorized to be disbursed under such section, such retained amounts to remain available until expended.

National Park Service funds may be transferred to the Federal Highway Administration (FHWA), Department of Transportation, for purposes authorized under 23 U.S.C. 203. Transfers may include a reasonable amount for FHWA administrative support costs.

UNITED STATES GEOLOGICAL SURVEY

SURVEYS, INVESTIGATIONS, AND RESEARCH

For expenses necessary for the United States Geological Survey to perform surveys, investigations, and research covering topography, geology, hydrology, biology, and the mineral and water resources of the United States, its territories and possessions, and other areas as authorized by 43 U.S.C. 31, 1332, and 1340; classify lands as to their mineral and water resources; give engineering supervision to power permittees and Federal Energy Regulatory Commission licensees; administer the minerals exploration program (30 U.S.C. 641); conduct inquiries into the economic conditions affecting mining and materials processing industries (30 U.S.C. 3, 21a, and 1603; 50 U.S.C. 98g(1)) and related purposes as authorized by law; and to publish and disseminate data relative to the foregoing activities; $1,292,987,000, to remain available until September 30, 2022; of which $84,337,000 shall remain available until expended for satellite operations; and of which $70,264,000 shall be available until expended for deferred maintenance and capital improvement projects that exceed $100,000 in cost: Provided, That none of the funds provided for the ecosystem research activity shall be used to conduct new surveys on private property, unless specifically authorized in writing by the property owner: Provided further, That no part of this appropriation shall be used to pay more than one-half the cost of topographic mapping or water resources data collection and investigations carried on in cooperation with States and municipalities.

ADMINISTRATIVE PROVISIONS

From within the amount appropriated for activities of the United States Geological Survey such sums as are necessary shall be available for contracting for the furnishing of topographic maps and for the making of geophysical or other specialized surveys when it is administratively determined that such procedures are in the public interest; construction and maintenance of necessary buildings and appurtenant facilities; acquisition of lands for gauging stations, observation wells, and seismic equipment; expenses of the United States National Committee for Geological Sciences; and payment of compensation and expenses of persons employed by the Survey duly appointed to represent the United States in the negotiation and administration of interstate compacts: Provided, That activities funded by appropriations herein made may be accomplished through the use of contracts, grants, or cooperative agreements as defined in section 6302 of title 31, United States Code: Provided further, That the United States Geological Survey may enter into contracts or cooperative agreements directly with individuals or indirectly with institutions or nonprofit organizations, without regard to 41 U.S.C. 6101, for the temporary or intermittent services of students or recent graduates, who shall be considered employees for the purpose of chapters 57 and 81 of title 5, United States Code, relating to compensation for travel and work injuries, and chapter 171 of title 28, United States Code, relating to tort claims, but shall not be considered to be Federal employees for any other purposes.

BUREAU OF OCEAN ENERGY MANAGEMENT

OCEAN ENERGY MANAGEMENT

(INCLUDING RESCISSION OF FUNDS)

For expenses necessary for granting and administering leases, easements, rights-of-way and agreements for use for oil and gas, other minerals, energy, and marine-related purposes on the Outer Continental Shelf and approving operations related thereto, as authorized by law; for environmental studies, as authorized by law; for implementing other laws and to the extent provided by Presidential or Secretarial delegation; and for matching grants or cooperative agreements, $186,815,000, of which $123,760,000 is to remain available until September 30, 2022, and of which $63,055,000 is to remain available until expended: Provided, That this total appropriation shall be reduced by amounts collected by the Secretary and credited to this appropriation from additions to receipts resulting from increases to lease rental rates in effect on August 5, 1993, and from cost recovery fees from activities conducted by the Bureau of Ocean Energy Management pursuant to the Outer Continental Shelf Lands Act, including studies, assessments, analysis, and miscellaneous administrative activities: Provided further, That the sum herein appropriated shall be reduced as such collections are received during the fiscal year, so as to result in a final fiscal year 2021 appropriation estimated at not more than $123,760,000: Provided further, That not to exceed $3,000 shall be available for reasonable expenses related to promoting volunteer beach and marine cleanup activities. Provided further, That of the unobligated balances from amounts made available under this heading $2,000,000 is permanently rescinded: Provided further, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

BUREAU OF SAFETY AND ENVIRONMENTAL ENFORCEMENT

OFFSHORE SAFETY AND ENVIRONMENTAL ENFORCEMENT

(INCLUDING RESCISSION OF FUNDS)

For expenses necessary for the regulation of operations related to leases, easements, rights-of-way and agreements for use for oil and gas, other minerals, energy, and marine-related purposes on the Outer Continental Shelf, as authorized by law; for enforcing and implementing laws and regulations as authorized by law and to the extent provided by Presidential or Secretarial delegation; and for matching grants or cooperative agreements, $154,786,000, of which $124,139,000 is to remain available until September 30, 2022, and of which $30,647,000 is to remain available until expended: Provided, That this total appropriation shall be reduced by amounts collected by the Secretary and credited to this appropriation from additions to receipts resulting from increases to lease rental rates in effect on August 5, 1993, and from cost recovery fees from activities conducted by the Bureau of Safety and Environmental Enforcement pursuant to the Outer Continental Shelf Lands Act, including studies, assessments, analysis, and miscellaneous administrative activities: Provided further, That the sum herein appropriated shall be reduced as such collections are received during the fiscal year, so as to result in a final fiscal year 2021 appropriation estimated at not more than $124,139,000: Provided further, That of the unobligated balances from amounts made available under this heading in fiscal year 2016 or any prior fiscal year $10,000,000 is permanently rescinded: Provided further, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount, $43,000,000, to remain available until expended, to be reduced by amounts collected by the Secretary and credited to this appropriation, which shall be derived from non-refundable inspection fees collected in fiscal year 2021, as provided in this Act: Provided, That to the extent that amounts realized from such inspection fees exceed $43,000,000, the amounts realized in excess of $43,000,000 shall be credited to this appropriation and remain available until expended: Provided further, That for fiscal year 2021, not less than 50 percent of the inspection fees expended by the Bureau of Safety and Environmental Enforcement will be used to fund personnel and mission-related costs to expand capacity and expedite the orderly development, subject to environmental safeguards, of the Outer Continental Shelf pursuant to the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.), including the review of applications for permits to drill.

OIL SPILL RESEARCH

For necessary expenses to carry out title I, section 1016, title IV, sections 4202 and 4303, title VII, and title VIII, section 8201 of the Oil Pollution Act of 1990, $14,899,000, which shall be derived from the Oil Spill Liability Trust Fund, to remain available until expended.

OFFICE OF SURFACE MINING RECLAMATION AND ENFORCEMENT

REGULATION AND TECHNOLOGY

For necessary expenses to carry out the provisions of the Surface Mining Control and Reclamation Act of 1977, Public Law 95–87, $97,589,000, to remain available until September 30, 2022: Provided, That appropriations for the Office of Surface Mining Reclamation and Enforcement may provide for the travel and per diem expenses of State and tribal personnel attending Office of Surface Mining Reclamation and Enforcement sponsored training.

In addition, for costs to review, administer, and enforce permits issued by the Office pursuant to section 507 of Public Law 95–87 (30 U.S.C. 1257), $40,000, to remain available until expended: Provided, That fees assessed and collected by the Office pursuant to such section 507 shall be credited to this account as discretionary offsetting collections, to remain available until expended: Provided further, That the sum herein appropriated from the general fund shall be reduced as collections are received during the fiscal year, so as to result in a fiscal year 2021 appropriation estimated at not more than $97,589,000.

ABANDONED MINE RECLAMATION FUND

(INCLUDING RESCISSION OF FUNDS)

For necessary expenses to carry out title IV of the Surface Mining Control and Reclamation Act of 1977, Public Law 95–87, $22,811,000, to be derived from receipts of the Abandoned Mine Reclamation Fund and to remain available until expended: Provided, That pursuant to Public Law 97–365, the Department of the Interior is

authorized to use up to 20 percent from the recovery of the delinquent debt owed to the United States Government to pay for contracts to collect these debts: Provided further, That funds made available under title IV of Public Law 95–87 may be used for any required non-Federal share of the cost of projects funded by the Federal Government for the purpose of environmental restoration related to treatment or abatement of acid mine drainage from abandoned mines: Provided further, That such projects must be consistent with the purposes and priorities of the Surface Mining Control and Reclamation Act: Provided further, That amounts provided under this heading may be used for the travel and per diem expenses of State and tribal personnel attending Office of Surface Mining Reclamation and Enforcement sponsored training.

In addition, $115,000,000, to remain available until expended, for grants to States and federally recognized Indian Tribes for reclamation of abandoned mine lands and other related activities in accordance with the terms and conditions in the report accompanying this Act: Provided, That such additional amount shall be used for economic and community development in conjunction with the priorities in section 403(a) of the Surface Mining Control and Reclamation Act of 1977 (30 U.S.C. 1233(a)): Provided further, That of such additional amount, $75,000,000 shall be distributed in equal amounts to the 3 Appalachian States with the greatest amount of unfunded needs to meet the priorities described in paragraphs (1) and (2) of such section, $30,000,000 shall be distributed in equal amounts to the 3 Appalachian States with the subsequent greatest amount of unfunded needs to meet such priorities, and $10,000,000 shall be for grants to federally recognized Indian Tribes without regard to their status as certified or uncertified under the Surface Mining Control and Reclamation Act of 1977 (30 U.S.C. 1233(a)), for reclamation of abandoned mine lands and other related activities in accordance with the terms and conditions in the report accompanying this Act and shall be used for economic and community development in conjunction with the priorities in section 403(a) of the Surface Mining Control and Reclamation Act of 1977: Provided further, That such additional amount shall be allocated to States and Indian Tribes within 60 days after the date of enactment of this Act.

Of the unobligated balances from amounts made available under this heading in fiscal year 2016 or before, $13,000,000 is permanently rescinded: Provided, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

INDIAN AFFAIRS

BUREAU OF INDIAN AFFAIRS

OPERATION OF INDIAN PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For expenses necessary for the operation of Indian programs, as authorized by law, including the Snyder Act of November 2, 1921 (25 U.S.C. 13), and the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 5301 et seq.), $1,641,086,000, to remain available until September 30, 2022, except as otherwise provided herein; of which not to exceed $8,500 may be for official reception and representation expenses; of which not to exceed $78,000,000 shall be for welfare assistance payments: Provided, That in cases of designated Federal disasters, the Secretary may exceed such cap for welfare payments from the amounts provided herein, to provide for disaster relief to Indian communities affected by the disaster: Provided further, That federally recognized Indian tribes and tribal organizations of federally recognized Indian tribes may use their tribal priority allocations for unmet welfare assistance costs: Provided further, That not to exceed $60,306,000 shall remain available until expended for housing improvement, road maintenance, attorney fees, litigation support, land records improvement, and the Navajo-Hopi Settlement Program: Provided further, That any forestry funds allocated to a federally recognized tribe which remain unobligated as of September 30, 2022, may be transferred during fiscal year 2023 to an Indian forest land assistance account established for the benefit of the holder of the funds within the holder's trust fund account: Provided further, That any such unobligated balances not so transferred shall expire on September 30, 2023: Provided further, That in order to enhance the safety of Bureau field employees, the Bureau may use funds to purchase uniforms or other identifying articles of clothing for personnel: Provided further, That the Bureau of Indian Affairs may accept transfers of funds from U.S. Customs and Border Protection to supplement any other funding available for reconstruction or repair of roads owned by the Bureau of Indian Affairs as identified on the National Tribal Transportation Facility Inventory, 23 U.S.C. 202(b)(1). Provided further, That $1,000,000 made available for Assistant Secretary Support shall not be available for obligation until the Assistant Secretary-Indian Affairs provides the reports requested by the Committees on Appropriations of the House of Representatives and the Senate related to the Tiwahe Initiative.

CONTRACT SUPPORT COSTS

For payments to tribes and tribal organizations for contract support costs associated with Indian Self-Determination and Education Assistance Act agreements with the Bureau of Indian Affairs and the Bureau of Indian Education for fiscal year 2021, such sums as may be necessary, which shall be available for obligation through September 30, 2022: Provided, That notwithstanding any other provision of law, no amounts made available under this heading shall be available for transfer to another budget account.

PAYMENT FOR TRIBAL LEASES

For payments to tribes and tribal organizations for leases pursuant to section 105(l) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5324(l)) for fiscal year 2021, such sums as may be necessary, which shall be available for obligation through September 30, 2022: Provided, That notwithstanding any other provision of law, no amount made available under this heading shall be available for transfer to another budget account.

CONSTRUCTION

(INCLUDING TRANSFER OF FUNDS)

For construction, repair, improvement, and maintenance of irrigation and power systems, buildings, utilities, and other facilities, including architectural and engineering services by contract; acquisition of lands, and interests in lands; and preparation of lands for farming, and for construction of the Navajo Indian Irrigation Project pursuant to Public Law 87–483; $128,818,000, to remain available until expended: Provided, That such amounts as may be available for the construction of the Navajo Indian Irrigation Project may be transferred to the Bureau of Reclamation: Provided further, That any funds provided for the Safety of Dams program pursuant to the Act of November 2, 1921 (25 U.S.C. 13), shall be made available on a non-reimbursable basis: Provided further, That this appropriation may be reimbursed from the Office of the Special Trustee for American Indians appropriation for the appropriate share of construction costs for space expansion needed in agency offices to meet trust reform implementation: Provided further, That of the funds made available under this heading, $10,000,000 shall be derived from the Indian Irrigation Fund established by section 3211 of the WIIN Act (Public Law 114–322; 130 Stat. 1749).

INDIAN LAND AND WATER CLAIM SETTLEMENTS AND MISCELLANEOUS PAYMENTS TO INDIANS

For payments and necessary administrative expenses for implementation of Indian land and water claim settlements pursuant to Public Laws 99–264 and 114–322, and for implementation of other land and water rights settlements, $45,644,000, to remain available until expended.

INDIAN GUARANTEED LOAN PROGRAM ACCOUNT

For the cost of guaranteed loans and insured loans, $11,797,000, of which $1,608,000 is for administrative expenses, as authorized by the Indian Financing Act of 1974: Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed or insured, not to exceed $183,476,740.

BUREAU OF INDIAN EDUCATION

OPERATION OF INDIAN EDUCATION PROGRAMS

For expenses necessary for the operation of Indian education programs, as authorized by law, including the Snyder Act of November 2, 1921 (25 U.S.C. 13), the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 5301 et seq.), the Education Amendments of 1978 (25 U.S.C. 2001–2019), and the Tribally Controlled Schools Act of 1988 (25 U.S.C. 2501 et seq.), $981,697,000, to remain available until September 30, 2022, except as otherwise provided herein: Provided, That Federally recognized Indian tribes and tribal organizations of Federally recognized Indian tribes may use their tribal priority allocations for unmet welfare assistance costs: Provided further, That not to exceed $730,902,000 for school operations costs of Bureau-funded schools and other education programs shall become available on July 1, 2021, and shall remain available until September 30, 2022: Provided further, That notwithstanding any other provision of law, including but not limited to the Indian Self–Determination Act of 1975 (25 U.S.C. 5301 et seq.) and section 1128 of the Education Amendments of 1978 (25 U.S.C. 2008), not to exceed $83,567,000 within and only from such amounts made available for school operations shall be available for administrative cost grants associated with grants approved prior to July 1, 2021: Provided further, That in order to enhance the safety of Bureau field employees, the Bureau may use funds to purchase uniforms or other identifying articles of clothing for personnel.

EDUCATION CONSTRUCTION

For construction, repair, improvement, and maintenance of buildings, utilities, and other facilities necessary for the operation of Indian education programs, including architectural and engineering services by contract; acquisition of lands, and interests in lands; $249,277,000 to remain available until expended: Provided, That in order to ensure timely completion of construction projects, the Secretary may assume control of a project and all funds related to the project, if, not later than 18 months after the date of the enactment of this Act, any Public Law 100–297 (25 U.S.C. 2501, et seq.) grantee receiving funds appropriated in this Act or in any prior Act, has not completed the planning and design phase of the project and commenced construction.

ADMINISTRATIVE PROVISIONS

The Bureau of Indian Affairs and the Bureau of Indian Education may carry out the operation of Indian programs by direct expenditure, contracts, cooperative agreements, compacts, and grants, either directly or in cooperation with States and other organizations.

Notwithstanding Public Law 87–279 (25 U.S.C. 15), the Bureau of Indian Affairs may contract for services in support of the management, operation, and maintenance of the Power Division of the San Carlos Irrigation Project.

Notwithstanding any other provision of law, no funds available to the Bureau of Indian Affairs or the Bureau of Indian Education for central office oversight and Executive Direction and Administrative Services (except executive direction and administrative services funding for Tribal Priority Allocations, regional offices, and facilities operations and maintenance) shall be available for contracts, grants, compacts, or cooperative agreements with the Bureau of Indian Affairs or the Bureau of Indian Education under the provisions of the Indian Self-Determination Act or the Tribal Self-Governance Act of 1994 (Public Law 103–413).

In the event any tribe returns appropriations made available by this Act to the Bureau of Indian Affairs or the Bureau of Indian Education, this action shall not diminish the Federal Government's trust responsibility to that tribe, or the government-to-government relationship between the United States and that tribe, or that tribe's ability to access future appropriations.

Notwithstanding any other provision of law, no funds available to the Bureau of Indian Education, other than the amounts provided herein for assistance to public schools under 25 U.S.C. 452 et seq., shall be available to support the operation of any elementary or secondary school in the State of Alaska.

No funds available to the Bureau of Indian Education shall be used to support expanded grades for any school or dormitory beyond the grade structure in place or approved by the Secretary of the Interior at each school in the Bureau of Indian Education school system as of October 1, 1995, except that the Secretary of the Interior may waive this prohibition to support expansion of up to one additional grade when the Secretary determines such waiver is needed to support accomplishment of the mission of the Bureau of Indian Education, or more than one grade to expand the elementary grade structure for Bureau-funded schools with a K–2 grade structure on October 1, 1996. Appropriations made available in this or any prior Act for schools funded by the Bureau shall be available, in accordance with the Bureau's funding formula, only to the schools in the Bureau school system as of September 1, 1996, and to any school or school program that was reinstated in fiscal year 2012. Funds made available under this Act may not be used to establish a charter school at a Bureau-funded school (as that term is defined in section 1141 of the Education Amendments of 1978 (25 U.S.C. 2021)), except that a charter school that is in existence on the date of the enactment of this Act and that has operated at a Bureau-funded school before September 1, 1999, may continue to operate during that period, but only if the charter school pays to the Bureau a pro rata share of funds to reimburse the Bureau for the use of the real and personal property (including buses and vans), the funds of the charter school are kept separate and apart from Bureau funds, and the Bureau does not assume any obligation for charter school programs of the State in which the school is located if the charter school loses such funding. Employees of Bureau-funded schools sharing a campus with a charter school and performing functions related to the charter school's operation and employees of a charter school shall not be treated as Federal employees for purposes of chapter 171 of title 28, United States Code.

Notwithstanding any other provision of law, including section 113 of title I of appendix C of Public Law 106–113, if in fiscal year 2003 or 2004 a grantee received indirect and administrative costs pursuant to a distribution formula based on section 5(f) of Public Law 101–301, the Secretary shall continue to distribute indirect and administrative cost funds to such grantee using the section 5(f) distribution formula.

Funds available under this Act may not be used to establish satellite locations of schools in the Bureau school system as of September 1, 1996, except that the Secretary may waive this prohibition in order for an Indian tribe to provide language and cultural immersion educational programs for non-public schools located within the jurisdictional area of the tribal government which exclusively serve tribal members, do not include grades beyond those currently served at the existing Bureau-funded school, provide an educational environment with educator presence and academic facilities comparable to the Bureau-funded school, comply with all applicable Tribal, Federal, or State health and safety standards, and the Americans with Disabilities Act, and demonstrate the benefits of establishing operations at a satellite location in lieu of incurring extraordinary costs, such as for transportation or other impacts to students such as those caused by busing students extended distances: Provided, That no funds available under this Act may be used to fund operations, maintenance, rehabilitation, construction or other facilities-related costs for such assets that are not owned by the Bureau: Provided further, That the term ''satellite school'' means a school location physically separated from the existing Bureau school by more than 50 miles but that forms part of the existing school in all other respects.

Funds made available for Tribal Priority Allocations within Operation of Indian Programs and Operation of Indian Education Programs may be used to execute requested adjustments in tribal priority allocations initiated by an Indian Tribe.

OFFICE OF THE SPECIAL TRUSTEE FOR AMERICAN INDIANS

FEDERAL TRUST PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For the operation of trust programs for Indians by direct expenditure, contracts, cooperative agreements, compacts, and grants, $108,399,000, to remain available until expended, of which not to exceed $17,911,000 from this or any other Act, may be available for historical accounting: Provided, That funds for trust management improvements and litigation support may, as needed, be transferred to or merged with the Bureau of Indian Affairs, ''Operation of Indian Programs'' and Bureau of Indian Education, ''Operation of Indian Education Programs'' accounts; the Office of the Solicitor, ''Salaries and Expenses'' account; and the Office of the Secretary, ''Departmental Operations'' account: Provided further, That funds made available through contracts or grants obligated during fiscal year 2021, as authorized by the Indian Self-Determination Act of 1975 (25 U.S.C. 5301 et seq.), shall remain available until expended by the contractor or grantee: Provided further, That notwithstanding any other provision of law, the Secretary shall not be required to provide a quarterly statement of performance for any Indian trust account that has not had activity for at least 15 months and has a balance of $15 or less: Provided further, That the Secretary shall issue an annual account statement and maintain a record of any such accounts and shall permit the balance in each such account to be withdrawn upon the express written request of the account holder: Provided further, That not to exceed $50,000 is available for the Secretary to make payments to correct administrative errors of either disbursements from or deposits to Individual Indian Money or Tribal accounts after September 30, 2002: Provided further, That erroneous payments that are recovered shall be credited to and remain available in this account for this purpose: Provided further, That the Secretary shall not be required to reconcile Special Deposit Accounts with a balance of less than $500 unless the Office of the Special Trustee receives proof of ownership from a Special Deposit Accounts claimant: Provided further, That notwithstanding section 102 of the American Indian Trust Fund Management Reform Act of 1994 (Public Law 103–412) or any other provision of law, the Secretary may aggregate the trust accounts of individuals whose whereabouts are unknown for a continuous period of at least five years and shall not be required to generate periodic statements of performance for the individual accounts: Provided further, That with respect to the eighth proviso, the Secretary shall continue to maintain sufficient records to determine the balance of the individual accounts, including any accrued interest and income, and such funds shall remain available to the individual account holders.

DEPARTMENTAL OFFICES

OFFICE OF THE SECRETARY

DEPARTMENTAL OPERATIONS

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for management of the Department of the Interior and for grants and cooperative agreements, as authorized by law, $119,748,000, to remain available until September 30, 2022; of which not to exceed $15,000 may be for official reception and representation expenses; and of which up to $1,000,000 shall be available for workers compensation payments and unemployment compensation payments associated with the orderly closure of the United States Bureau of Mines; and of which $11,061,000 for Indian land, mineral, and resource valuation activities shall remain available until expended: Provided, That funds for Indian land, mineral, and resource valuation activities may, as needed, be transferred to and merged with the Bureau of Indian Affairs ''Operation of Indian Programs'' and Bureau of Indian Education ''Operation of Indian Education Programs'' accounts and the Office of the Special Trustee for American Indians ''Federal Trust Programs'' account: Provided further, That funds made available through contracts or grants obligated during fiscal year 2021, as authorized by the Indian Self-Determination Act of 1975 (25 U.S.C. 5301 et seq.), shall remain available until expended by the contractor or grantee: Provided further, That, if the Secretary of the Interior has not responded to a request for access to records or interviews with agency employees as required by Title IV of this Act within the time period and in the manner established by the Comptroller General of the United States, the funds made available under this paragraph shall be reduced by $50,000 per day for each day that the Secretary fails to comply with the request, with any funds reduced under this proviso to be permanently rescinded.

In addition, to ensure the continuing work of the Public Lands Corps as authorized by chapter 37 of title 16, United States Code, $5,000,000, for grants to qualified youth or conservation corps (as defined in 16 U.S.C. 1722(11)) for use in sustaining the administrative and operational functionality of such corps: Provided, That the cost share requirements contained in 16 U.S.C. 1704(c) and 1729(a)(1) shall not apply to the amount made available herein: Provided further, That the amount made available under this paragraph shall not be subject to any reduction required by the third proviso in the preceding paragraph

ADMINISTRATIVE PROVISIONS

For fiscal year 2021, up to $400,000 of the payments authorized by chapter 69 of title 31, United States Code, may be retained for administrative expenses of the Payments in Lieu of Taxes Program: Provided, That the amounts provided under this Act specifically for the Payments in Lieu of Taxes program are the only amounts available for payments authorized under chapter 69 of title 31, United States Code: Provided further, That in the event the sums appropriated for any fiscal year for payments pursuant to this chapter are insufficient to make the full payments authorized by that chapter to all units of local government, then the payment to each local government shall be made proportionally: Provided further, That the Secretary may make adjustments to payment to individual units of local government to correct for prior overpayments or underpayments: Provided further, That no payment shall be made

pursuant to that chapter to otherwise eligible units of local government if the computed amount of the payment is less than $100.

INSULAR AFFAIRS

ASSISTANCE TO TERRITORIES

For expenses necessary for assistance to territories under the jurisdiction of the Department of the Interior and other jurisdictions identified in section 104(e) of Public Law 108–188, $111,297,000, of which: (1) $101,640,000 shall remain available until expended for territorial assistance, including general technical assistance, maintenance assistance, disaster assistance, coral reef initiative and natural resources activities, and brown tree snake control and research; grants to the judiciary in American Samoa for compensation and expenses, as authorized by law (48 U.S.C. 1661(c)); grants to the Government of American Samoa, in addition to current local revenues, for construction and support of governmental functions; grants to the Government of the Virgin Islands, as authorized by law; grants to the Government of Guam, as authorized by law; and grants to the Government of the Northern Mariana Islands, as authorized by law (Public Law 94–241; 90 Stat. 272); and (2) $9,657,000 shall be available until September 30, 2022, for salaries and expenses of the Office of Insular Affairs: Provided, That all financial transactions of the territorial and local governments herein provided for, including such transactions of all agencies or instrumentalities established or used by such governments, may be audited by the Government Accountability Office, at its discretion, in accordance with chapter 35 of title 31, United States Code: Provided further, That Northern Mariana Islands Covenant grant funding shall be provided according to those terms of the Agreement of the Special Representatives on Future United States Financial Assistance for the Northern Mariana Islands approved by Public Law 104–134: Provided further, That the funds for the program of operations and maintenance improvement are appropriated to institutionalize routine operations and maintenance improvement of capital infrastructure with territorial participation and cost sharing to be determined by the Secretary based on the grantee's commitment to timely maintenance of its capital assets: Provided further, That any appropriation for disaster assistance under this heading in this Act or previous appropriations Acts may be used as non–Federal matching funds for the purpose of hazard mitigation grants provided pursuant to section 404 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170c).

COMPACT OF FREE ASSOCIATION

For grants and necessary expenses, $8,463,000, to remain available until expended, as provided for in sections 221(a)(2) and 233 of the Compact of Free Association for the Republic of Palau; and section 221(a)(2) of the Compacts of Free Association for the Government of the Republic of the Marshall Islands and the Federated States of Micronesia, as authorized by Public Law 99–658 and Public Law 108–188: Provided, That of the funds appropriated under this heading, $5,000,000 is for deposit into the Compact Trust Fund of the Republic of the Marshall Islands as compensation authorized by Public Law 108–188 for adverse financial and economic impacts.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

At the request of the Governor of Guam, the Secretary may transfer discretionary funds or mandatory funds provided under section 104(e) of Public Law 108–188 and Public Law 104–134, that are allocated for Guam, to the Secretary of Agriculture for the subsidy cost of direct or guaranteed loans, plus not to exceed three percent of the amount of the subsidy transferred for the cost of loan administration, for the purposes authorized by the Rural Electrification Act of 1936 and section 306(a)(1) of the Consolidated Farm and Rural Development Act for construction and repair projects in Guam, and such funds shall remain available until expended: Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That such loans or loan guarantees may be made without regard to the population of the area, credit elsewhere requirements, and restrictions on the types of eligible entities under the Rural Electrification Act of 1936 and section 306(a)(1) of the Consolidated Farm and Rural Development Act: Provided further, That any funds transferred to the Secretary of Agriculture shall be in addition to funds otherwise made available to make or guarantee loans under such authorities.

OFFICE OF THE SOLICITOR

SALARIES AND EXPENSES

For necessary expenses of the Office of the Solicitor, $86,813,000.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For necessary expenses of the Office of Inspector General, $61,842,000, to remain available until September 30, 2022.

DEPARTMENT-WIDE PROGRAMS

WILDLAND FIRE MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for fire preparedness, fire suppression operations, fire science and research, emergency rehabilitation, fuels management activities, and rural fire assistance by the Department of the Interior, $991,479,000, to remain available until expended, of which not to exceed $18,427,000 shall be for the renovation or construction of fire facilities: Provided, That such funds are also available for repayment of advances to other appropriation accounts from which funds were previously transferred for such purposes: Provided further, That of the funds provided $227,895,000 is for fuels management activities: Provided further, That of the funds provided $20,470,000 is for burned area rehabilitation: Provided further, That persons hired pursuant to 43 U.S.C. 1469 may be furnished subsistence and lodging without cost from funds available from this appropriation: Provided further, That notwithstanding 42 U.S.C. 1856d, sums received by a bureau or office of the Department of the Interior for fire protection rendered pursuant to 42 U.S.C. 1856 et seq., protection of United States property, may be credited to the appropriation from which funds were expended to provide that protection, and are available without fiscal year limitation: Provided further, That using the amounts designated under this title of this Act, the Secretary of the Interior may enter into procurement contracts, grants, or cooperative agreements, for fuels management activities, and for training and monitoring associated with such fuels management activities on Federal land, or on adjacent non-Federal land for activities that benefit resources on Federal land: Provided further, That the costs of implementing any cooperative agreement between the Federal Government and any non-Federal entity may be shared, as mutually agreed on by the affected parties: Provided further, That notwithstanding requirements of the Competition in Contracting Act, the Secretary, for purposes of fuels management activities, may obtain maximum practicable competition among: (1) local private, nonprofit, or cooperative entities; (2) Youth Conservation Corps crews, Public Lands Corps (Public Law 109–154), or related partnerships with State, local, or nonprofit youth groups; (3) small or micro-businesses; or (4) other entities that will hire or train locally a significant percentage, defined as 50 percent or more, of the project workforce to complete such contracts: Provided further, That in implementing this section, the Secretary shall develop written guidance to field units to ensure accountability and consistent application of the authorities provided herein: Provided further, That funds appropriated under this heading may be used to reimburse the United States Fish and Wildlife Service and the National Marine Fisheries Service for the costs of carrying out their responsibilities under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) to consult and conference, as required by section 7 of such Act, in connection with wildland fire management activities: Provided further, That the Secretary of the Interior may use wildland fire appropriations to enter into leases of real property with local governments, at or below fair market value, to construct capitalized improvements for fire facilities on such leased properties, including but not limited to fire guard stations, retardant stations, and other initial attack and fire support facilities, and to make advance payments for any such lease or for construction activity associated with the lease: Provided further, That the Secretary of the Interior and the Secretary of Agriculture may authorize the transfer of funds appropriated for wildland fire management, in an aggregate amount not to exceed $50,000,000 between the Departments when such transfers would facilitate and expedite wildland fire management programs and projects: Provided further, That funds provided for wildfire suppression shall be available for support of Federal emergency response actions: Provided further, That funds appropriated under this heading shall be available for assistance to or through the Department of State in connection with forest and rangeland research, technical information, and assistance in foreign countries, and, with the concurrence of the Secretary of State, shall be available to support forestry, wildland fire management, and related natural resource activities outside the United States and its territories and possessions, including technical assistance, education and training, and cooperation with United States and international organizations: Provided further, That of the funds provided under this heading $383,657,000 is provided to meet the terms of section 251(b)(2)(F)(ii)(I) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended.

WILDFIRE SUPPRESSION OPERATIONS RESERVE FUND

(INCLUDING TRANSFERS OF FUNDS)

In addition to the amounts provided under the heading ''Department of the Interior—Department-Wide Programs—Wildland Fire Management'' for wildfire suppression operations, $310,000,000, to remain available until transferred, is additional new budget authority as specified for purposes of section 251(b)(2)(F) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That such amounts may be transferred to and merged with amounts made available under the headings ''Department of Agriculture—Forest Service—Wildland Fire Management'' and ''Department of the Interior—Department-Wide Programs—Wildland Fire Management'' for wildfire suppression operations in the fiscal year in which such amounts are transferred: Provided further, That amounts may be transferred to the ''Wildland Fire Management'' accounts in the Department of Agriculture or the Department of the Interior only upon the notification of the House and Senate Committees on Appropriations that all wildfire suppression operations funds appropriated under that heading in this and prior appropriations Acts to the agency to which the funds will be transferred will be obligated within 30 days: Provided further, That the transfer authority provided under this heading is in addition to any other transfer authority provided by law.

CENTRAL HAZARDOUS MATERIALS FUND

For necessary expenses of the Department of the Interior and any of its component offices and bureaus for the response action, including

associated activities, performed pursuant to the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.), $10,010,000, to remain available until expended.

NATURAL RESOURCE DAMAGE ASSESSMENT AND RESTORATION

NATURAL RESOURCE DAMAGE ASSESSMENT FUND

To conduct natural resource damage assessment, restoration activities, and onshore oil spill preparedness by the Department of the Interior necessary to carry out the provisions of the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.), the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.), the Oil Pollution Act of 1990 (33 U.S.C. 2701 et seq.), and 54 U.S.C. 100721 et seq., $7,767,000, to remain available until expended.

WORKING CAPITAL FUND

For the operation and maintenance of a departmental financial and business management system, information technology improvements of general benefit to the Department, cybersecurity, and the consolidation of facilities and operations throughout the Department, $64,798,000, to remain available until expended: Provided, That none of the funds appropriated in this Act or any other Act may be used to establish reserves in the Working Capital Fund account other than for accrued annual leave and depreciation of equipment without prior approval of the Committees on Appropriations of the House of Representatives and the Senate: Provided further, That the Secretary may assess reasonable charges to State, local and tribal government employees for training services provided by the National Indian Program Training Center, other than training related to Public Law 93–638: Provided further, That the Secretary may lease or otherwise provide space and related facilities, equipment or professional services of the National Indian Program Training Center to State, local and tribal government employees or persons or organizations engaged in cultural, educational, or recreational activities (as defined in section 3306(a) of title 40, United States Code) at the prevailing rate for similar space, facilities, equipment, or services in the vicinity of the National Indian Program Training Center: Provided further, That all funds received pursuant to the two preceding provisos shall be credited to this account, shall be available until expended, and shall be used by the Secretary for necessary expenses of the National Indian Program Training Center: Provided further, That the Secretary may enter into grants and cooperative agreements to support the Office of Natural Resource Revenue's collection and disbursement of royalties, fees, and other mineral revenue proceeds, as authorized by law.

ADMINISTRATIVE PROVISION

There is hereby authorized for acquisition from available resources within the Working Capital Fund, aircraft which may be obtained by donation, purchase or through available excess surplus property: Provided, That existing aircraft being replaced may be sold, with proceeds derived or trade-in value used to offset the purchase price for the replacement aircraft.

OFFICE OF NATURAL RESOURCES REVENUE

For necessary expenses for management of the collection and disbursement of royalties, fees, and other mineral revenue proceeds, and for grants and cooperative agreements, as authorized by law, $148,474,000, to remain available until September 30, 2022; of which $50,651,000 shall remain available until expended for the purpose of mineral revenue management activities: Provided, That notwithstanding any other provision of law, $15,000 shall be available for refunds of overpayments in connection with certain Indian leases in which the Secretary concurred with the claimed refund due, to pay amounts owed to Indian allottees or tribes, or to correct prior unrecoverable erroneous payments.

GENERAL PROVISIONS, DEPARTMENT OF THE INTERIOR

(INCLUDING TRANSFERS OF FUNDS)

EMERGENCY TRANSFER AUTHORITY—INTRA-BUREAU

SEC. 101. Appropriations made in this title shall be available for expenditure or transfer (within each bureau or office), with the approval of the Secretary, for the emergency reconstruction, replacement, or repair of aircraft, buildings, utilities, or other facilities or equipment damaged or destroyed by fire, flood, storm, or other unavoidable causes: Provided, That no funds shall be made available under this authority until funds specifically made available to the Department of the Interior for emergencies shall have been exhausted: Provided further, That all funds used pursuant to this section must be replenished by a supplemental appropriation, which must be requested as promptly as possible.

EMERGENCY TRANSFER AUTHORITY—DEPARTMENT-WIDE

SEC. 102. The Secretary may authorize the expenditure or transfer of any no year appropriation in this title, in addition to the amounts included in the budget programs of the several agencies, for the suppression or emergency prevention of wildland fires on or threatening lands under the jurisdiction of the Department of the Interior; for the emergency rehabilitation of burned-over lands under its jurisdiction; for emergency actions related to potential or actual earthquakes, floods, volcanoes, storms, or other unavoidable causes; for contingency planning subsequent to actual oil spills; for response and natural resource damage assessment activities related to actual oil spills or releases of hazardous substances into the environment; for the prevention, suppression, and control of actual or potential grasshopper and Mormon cricket outbreaks on lands under the jurisdiction of the Secretary, pursuant to the authority in section 417(b) of Public Law 106–224 (7 U.S.C. 7717(b)); for emergency reclamation projects under section 410 of Public Law 95–87; and shall transfer, from any no year funds available to the Office of Surface Mining Reclamation and Enforcement, such funds as may be necessary to permit assumption of regulatory authority in the event a primacy State is not carrying out the regulatory provisions of the Surface Mining Act: Provided, That appropriations made in this title for wildland fire operations shall be available for the payment of obligations incurred during the preceding fiscal year, and for reimbursement to other Federal agencies for destruction of vehicles, aircraft, or other equipment in connection with their use for wildland fire operations, with such reimbursement to be credited to appropriations currently available at the time of receipt thereof: Provided further, That for wildland fire operations, no funds shall be made available under this authority until the Secretary determines that funds appropriated for ''wildland fire suppression'' shall be exhausted within 30 days: Provided further, That all funds used pursuant to this section must be replenished by a supplemental appropriation, which must be requested as promptly as possible: Provided further, That such replenishment funds shall be used to reimburse, on a pro rata basis, accounts from which emergency funds were transferred.

AUTHORIZED USE OF FUNDS

SEC. 103. Appropriations made to the Department of the Interior in this title shall be available for services as authorized by section 3109 of title 5, United States Code, when authorized by the Secretary, in total amount not to exceed $500,000; purchase and replacement of motor vehicles, including specially equipped law enforcement vehicles; hire, maintenance, and operation of aircraft; hire of passenger motor vehicles; purchase of reprints; payment for telephone service in private residences in the field, when authorized under regulations approved by the Secretary; and the payment of dues, when authorized by the Secretary, for library membership in societies or associations which issue publications to members only or at a price to members lower than to subscribers who are not members.

AUTHORIZED USE OF FUNDS, INDIAN TRUST MANAGEMENT

SEC. 104. Appropriations made in this Act under the headings Bureau of Indian Affairs and Bureau of Indian Education, and Office of the Special Trustee for American Indians and any unobligated balances from prior appropriations Acts made under the same headings shall be available for expenditure or transfer for Indian trust management and reform activities. Total funding for historical accounting activities shall not exceed amounts specifically designated in this Act for such purpose. The Secretary shall notify the House and Senate Committees on Appropriations within 60 days of the expenditure or transfer of any funds under this section, including the amount expended or transferred and how the funds will be used.

REDISTRIBUTION OF FUNDS, BUREAU OF INDIAN AFFAIRS

SEC. 105. Notwithstanding any other provision of law, the Secretary of the Interior is authorized to redistribute any Tribal Priority Allocation funds, including tribal base funds, to alleviate tribal funding inequities by transferring funds to address identified, unmet needs, dual enrollment, overlapping service areas or inaccurate distribution methodologies. No tribe shall receive a reduction in Tribal Priority Allocation funds of more than 10 percent in fiscal year 2021. Under circumstances of dual enrollment, overlapping service areas or inaccurate distribution methodologies, the 10 percent limitation does not apply.

ELLIS, GOVERNORS, AND LIBERTY ISLANDS

SEC. 106. Notwithstanding any other provision of law, the Secretary of the Interior is authorized to acquire lands, waters, or interests therein including the use of all or part of any pier, dock, or landing within the State of New York and the State of New Jersey, for the purpose of operating and maintaining facilities in the support of transportation and accommodation of visitors to Ellis, Governors, and Liberty Islands, and of other program and administrative activities, by donation or with appropriated funds, including franchise fees (and other monetary consideration), or by exchange; and the Secretary is authorized to negotiate and enter into leases, subleases, concession contracts or other agreements for the use of such facilities on such terms and conditions as the Secretary may determine reasonable.

OUTER CONTINENTAL SHELF INSPECTION FEES

SEC. 107. (a) In fiscal year 2021, the Secretary shall collect a nonrefundable inspection fee, which shall be deposited in the ''Offshore Safety and Environmental Enforcement'' account, from the designated operator for facilities subject to inspection under 43 U.S.C. 1348(c).

(b) Annual fees shall be collected for facilities that are above the waterline, excluding drilling rigs, and are in place at the start of the fiscal year. Fees for fiscal year 2021 shall be—

(1) $10,500 for facilities with no wells, but with processing equipment or gathering lines;

(2) $17,000 for facilities with 1 to 10 wells, with any combination of active or inactive wells; and

(3) $31,500 for facilities with more than 10 wells, with any combination of active or inactive wells.

(c) Fees for drilling rigs shall be assessed for all inspections completed in fiscal year 2021. Fees for fiscal year 2021 shall be—

(1) $30,500 per inspection for rigs operating in water depths of 500 feet or more; and

(2) $16,700 per inspection for rigs operating in water depths of less than 500 feet.

(d) Fees for inspection of well operations conducted via non-rig units as outlined in title 30

CFR 250 subparts D, E, F, and Q shall be assessed for all inspections completed in fiscal year 2021. Fees for fiscal year 2021 shall be—

(1) $13,260 per inspection for non-rig units operating in water depths of 2,500 feet or more;

(2) $11,530 per inspection for non-rig units operating in water depths between 500 and 2,499 feet; and

(3) $4,470 per inspection for non-rig units operating in water depths of less than 500 feet.

(e) The Secretary shall bill designated operators under subsection (b) quarterly, with payment required within 30 days of billing. The Secretary shall bill designated operators under subsection (c) within 30 days of the end of the month in which the inspection occurred, with payment required within 30 days of billing. The Secretary shall bill designated operators under subsection (d) with payment required by the end of the following quarter.

CONTRACTS AND AGREEMENTS FOR WILD HORSE AND BURRO HOLDING FACILITIES

SEC. 108. Notwithstanding any other provision of this Act, the Secretary of the Interior may enter into multiyear cooperative agreements with nonprofit organizations and other appropriate entities, and may enter into multiyear contracts in accordance with the provisions of section 3903 of title 41, United States Code (except that the 5-year term restriction in subsection (a) shall not apply), for the long-term care and maintenance of excess wild free roaming horses and burros by such organizations or entities on private land. Such cooperative agreements and contracts may not exceed 10 years, subject to renewal at the discretion of the Secretary.

MASS MARKING OF SALMONIDS

SEC. 109. The United States Fish and Wildlife Service shall, in carrying out its responsibilities to protect threatened and endangered species of salmon, implement a system of mass marking of salmonid stocks, intended for harvest, that are released from federally operated or federally financed hatcheries including but not limited to fish releases of coho, chinook, and steelhead species. Marked fish must have a visible mark that can be readily identified by commercial and recreational fishers.

CONTRACTS AND AGREEMENTS WITH INDIAN AFFAIRS

SEC. 110. Notwithstanding any other provision of law, during fiscal year 2021, in carrying out work involving cooperation with State, local, and tribal governments or any political subdivision thereof, Indian Affairs may record obligations against accounts receivable from any such entities, except that total obligations at the end of the fiscal year shall not exceed total budgetary resources available at the end of the fiscal year.

DEPARTMENT OF THE INTERIOR EXPERIENCED SERVICES PROGRAM

SEC. 111. (a) Notwithstanding any other provision of law relating to Federal grants and cooperative agreements, the Secretary of the Interior is authorized to make grants to, or enter into cooperative agreements with, private nonprofit organizations designated by the Secretary of Labor under title V of the Older Americans Act of 1965 to utilize the talents of older Americans in programs authorized by other provisions of law administered by the Secretary and consistent with such provisions of law.

(b) Prior to awarding any grant or agreement under subsection (a), the Secretary shall ensure that the agreement would not—

(1) result in the displacement of individuals currently employed by the Department, including partial displacement through reduction of non-overtime hours, wages, or employment benefits;

(2) result in the use of an individual under the Department of the Interior Experienced Services Program for a job or function in a case in which a Federal employee is in a layoff status from the same or substantially equivalent job within the Department; or

(3) affect existing contracts for services.

OBLIGATION OF FUNDS

SEC. 112. Amounts appropriated by this Act to the Department of the Interior shall be available for obligation and expenditure not later than 60 days after the date of enactment of this Act.

EXTENSION OF AUTHORITIES

SEC. 113. (a) Section 708(a) of Division II of Public Law 104–333, as amended by Public Law 110–229 section 461, is further amended by striking ''$15,000,000'' and inserting ''$17,000,000''.

(b) Section 109(a) of Title I of Public Law 106–278 is amended by striking ''$10,000,000'' and inserting ''$12,000,000''.

SEPARATION OF ACCOUNTS

SEC. 114. The Secretary of the Interior, in order to implement an orderly transition to separate accounts of the Bureau of Indian Affairs and the Bureau of Indian Education, may transfer funds among and between the successor offices and bureaus affected by the reorganization only in conformance with the reprogramming guidelines described in this Act.

PAYMENTS IN LIEU OF TAXES (PILT)

SEC. 115. Section 6906 of title 31, United States Code, shall be applied by substituting ''fiscal year 2021'' for ''fiscal year 2019''.

DISCLOSURE OF DEPARTURE OR ALTERNATE PROCEDURE APPROVAL

SEC. 116. (a) Subject to subsection (b), for fiscal year 2021 and each fiscal year thereafter, in any case in which the Bureau of Safety and Environmental Enforcement or the Bureau of Ocean Energy Management prescribes or approves any departure or use of alternate procedure or equipment, in regards to a plan or permit, under 30 C.F.R. § 585.103, 30 C.F.R. § 550.141; 30 C.F.R. §550.142; 30 C.F.R. § 250.141, or 30 C.F.R. § 250.142, the head of such bureau shall post a description of such departure or alternate procedure or equipment use approval on such bureau's publicly available website not more than 15 business days after such issuance.

(b) The head of each bureau may exclude confidential business information.

FUNDING RESTRICTION

SEC. 117. None of the funds made available to the Department of the Interior by this or any other Act may be used to conduct a lease sale pursuant to section 20001(c)(1) of Public Law 115–97 which does not contain a national minimum acceptable bid amount sufficient to produce Federal receipts to the Treasury, net of any state share, of no less than 50 percent of the amount required by section 2001(b) of H. Con. Res. 71, the concurrent resolution on the budget for fiscal year 2018, as agreed to on October 26, 2017.

MEDICAL SERVICES FUND

SEC. 118. Beginning in fiscal year 2022 and each fiscal year thereafter, amounts deposited in the National Park Medical Services Fund established pursuant to section 2404(b) of Public Law 116–9 shall be classified as discretionary offsetting receipts.

RESTRICTION ON USE OF FUNDS

SEC. 119. (a) None of the funds made available in this Act may be used by the Secretary of the Interior or the Bureau of Ocean Energy Management to conduct or authorize oil and gas preleasing, leasing, or related activities, including but not limited to the issuance of permits for geological and geophysical exploration, in any planning area where the 2017-2022 Outer Continental Shelf Oil and Gas Leasing Proposed Final Program (November 2016) did not schedule leases.

(b) The restrictions under subsection (a) apply to the formal steps identified by the Department of the Interior and the enabling steps prior to leasing, including the issuance of permits for geological and geophysical exploration.

INTERAGENCY MOTOR POOL

SEC. 120. Notwithstanding any other provision of law or Federal regulation, Federally-recognized Indian tribes or authorized tribal organizations that receive Tribally-Controlled School Grants pursuant to Public Law 100–297 may obtain interagency motor vehicles and related services for performance of any activities carried out under such grants to the same extent as if they were contracting under the Indian Self-Determination and Education Assistance Act.

LONG BRIDGE PROJECT

SEC. 121. On request of the Commonwealth of Virginia or the District of Columbia, as applicable, the Secretary of the Interior (acting through the Director of the National Park Service) (referred to in this section as the ''Secretary'') may convey to the State of Virginia and/or the District of Columbia, subject to any terms and conditions the Secretary deems necessary, any Federal land or interests therein under the jurisdiction of the Secretary that are identified by the Commonwealth of Virginia and/or the District of Columbia as necessary for the Long Bridge Project, which consists of improvements to Long Bridge and related railroad infrastructure between RO Interlocking in Arlington, Virginia and L'Enfant Interlocking near 10th Street SW in the District. The Long Bridge Project will expand commuter and regional passenger rail service and provide bicycle and pedestrian access crossings over the Potomac River. Such conveyance is for the sole purposes of railroad and recreational use. If such conveyance is no longer being used for such purposes, then the lands or interests therein shall revert to the National Park Service after they have been restored and remediated to the satisfaction of the Secretary. The Secretary may also permit the temporary use of any additional land that is identified as necessary for the construction of these projects, subject to any terms and conditions deemed necessary. Notwithstanding any other provision of law, the National Park Service may recover and retain all costs of providing or procuring necessary services associated with the aforementioned conveyances or special use permits and said amounts shall be available to the Service until expended, without further appropriation.

SPECIAL TRUSTEE FUNCTIONS

SEC. 122. None of the funds provided in this Act or any other Act shall be used to develop or implement a Secretarial Order to create a Bureau to perform the functions or activities of the Office of Special Trustee of American Indians.

TITLE II

ENVIRONMENTAL PROTECTION AGENCY

SCIENCE AND TECHNOLOGY

For science and technology, including research and development activities, which shall include research and development activities under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980; necessary expenses for personnel and related costs and travel expenses; procurement of laboratory equipment and supplies; hire, maintenance, and operation of aircraft; and other operating expenses in support of research and development, $745,345,000, to remain available until September 30, 2022: Provided, That of the funds included under this heading, $7,000,000 shall be for Research: National Priorities as specified in the report accompanying this Act: Provided further, That of the funds included under this heading, not less than $400,000 shall be for administrative expenses to review registration applications to participate in the Renewable Fuels Pathway II program.

ENVIRONMENTAL PROGRAMS AND MANAGEMENT

For environmental programs and management, including necessary expenses, not otherwise provided for, for personnel and related costs and travel expenses; hire of passenger motor vehicles; hire, maintenance, and operation of aircraft; purchase of reprints; library

memberships in societies or associations which issue publications to members only or at a price to members lower than to subscribers who are not members; administrative costs of the brownfields program under the Small Business Liability Relief and Brownfields Revitalization Act of 2002; implementation of a coal combustion residual permit program under section 2301 of the Water and Waste Act of 2016; and not to exceed $19,000 for official reception and representation expenses, $2,846,676,000, to remain available until September 30, 2022: Provided, That of the funds included under this heading, $18,000,000 shall be for Environmental Protection: National Priorities as specified in the report accompanying this Act: Provided further, That of the funds included under this heading, $554,910,000 shall be for Geographic Programs specified in the report accompanying this Act: Provided further, That of the funds included under this heading, not more than $43,784,000 shall be for the Executive Operations and Management program project: Provided further, That of the funds included under this heading, the Chemical Risk Review and Reduction program project shall be allocated not less than the amount of appropriations for that program project for fiscal year 2014.

HAZARDOUS WASTE ELECTRONIC MANIFEST SYSTEM FUND

For necessary expenses to carry out section 3024 of the Solid Waste Disposal Act (42 U.S.C. 6939g), including the development, operation, maintenance, and upgrading of the hazardous waste electronic manifest system established by such section, $8,000,000, to remain available until expended: Provided, That the sum herein appropriated from the general fund shall be reduced as offsetting collections under such section 3024 are received during fiscal year 2021, which shall remain available until expended and be used for necessary expenses in this appropriation, so as to result in a final fiscal year 2021 appropriation from the general fund estimated at not more than $0: Provided further, That to the extent such offsetting collections received in fiscal year 2021 exceed $8,000,000, those excess amounts shall remain available until expended and be used for necessary expenses in this appropriation.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $45,100,000, to remain available until September 30, 2022.

BUILDINGS AND FACILITIES

For construction, repair, improvement, extension, alteration, and purchase of fixed equipment or facilities of, or for use by, the Environmental Protection Agency, $39,676,000, to remain available until expended.

HAZARDOUS SUBSTANCE SUPERFUND

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses to carry out the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA), including sections 111(c)(3), (c)(5), (c)(6), and (e)(4) (42 U.S.C. 9611), and hire, maintenance, and operation of aircraft, $1,221,814,000, to remain available until expended, consisting of such sums as are available in the Trust Fund on September 30, 2020, as authorized by section 517(a) of the Superfund Amendments and Reauthorization Act of 1986 (SARA) and up to $1,221,814,000 as a payment from general revenues to the Hazardous Substance Superfund for purposes as authorized by section 517(b) of SARA: Provided, That funds appropriated under this heading may be allocated to other Federal agencies in accordance with section 111(a) of CERCLA: Provided further, That of the funds appropriated under this heading, $11,586,000 shall be paid to the ''Office of Inspector General'' appropriation to remain available until September 30, 2022, and $30,755,000 shall be paid to the ''Science and Technology'' appropriation to remain available until September 30, 2022.

LEAKING UNDERGROUND STORAGE TANK TRUST FUND PROGRAM

For necessary expenses to carry out leaking underground storage tank cleanup activities authorized by subtitle I of the Solid Waste Disposal Act, $92,543,000, to remain available until expended, of which $67,174,000 shall be for carrying out leaking underground storage tank cleanup activities authorized by section 9003(h) of the Solid Waste Disposal Act; $25,369,000 shall be for carrying out the other provisions of the Solid Waste Disposal Act specified in section 9508(c) of the Internal Revenue Code: Provided, That the Administrator is authorized to use appropriations made available under this heading to implement section 9013 of the Solid Waste Disposal Act to provide financial assistance to federally recognized Indian tribes for the development and implementation of programs to manage underground storage tanks.

INLAND OIL SPILL PROGRAMS

For expenses necessary to carry out the Environmental Protection Agency's responsibilities under the Oil Pollution Act of 1990, including hire, maintenance, and operation of aircraft, $20,958,000, to be derived from the Oil Spill Liability trust fund, to remain available until expended.

STATE AND TRIBAL ASSISTANCE GRANTS

For environmental programs and infrastructure assistance, including capitalization grants for State revolving funds and performance partnership grants, $4,362,556,000, to remain available until expended, of which—

(1) $1,638,826,000 shall be for making capitalization grants for the Clean Water State Revolving Funds under title VI of the Federal Water Pollution Control Act; and of which $1,126,088,000 shall be for making capitalization grants for the Drinking Water State Revolving Funds under section 1452 of the Safe Drinking Water Act: Provided, That for fiscal year 2021, to the extent there are sufficient eligible project applications and projects are consistent with State Intended Use Plans, not less than 10 percent of the funds made available under this title to each State for Clean Water State Revolving Fund capitalization grants shall be used by the State for projects to address green infrastructure, water or energy efficiency improvements, or other environmentally innovative activities: Provided further, That for fiscal year 2021, funds made available under this title to each State for Drinking Water State Revolving Fund capitalization grants may, at the discretion of each State, be used for projects to address green infrastructure, water or energy efficiency improvements, or other environmentally innovative activities: Provided further, That notwithstanding section 603(d)(7) of the Federal Water Pollution Control Act, the limitation on the amounts in a State water pollution control revolving fund that may be used by a State to administer the fund shall not apply to amounts included as principal in loans made by such fund in fiscal year 2021 and prior years where such amounts represent costs of administering the fund to the extent that such amounts are or were deemed reasonable by the Administrator, accounted for separately from other assets in the fund, and used for eligible purposes of the fund, including administration: Provided further, That for fiscal year 2021, notwithstanding the provisions of subsections (g)(1), (h), and (l) of section 201 of the Federal Water Pollution Control Act, grants made under title II of such Act for American Samoa, Guam, the commonwealth of the Northern Marianas, the United States Virgin Islands, and the District of Columbia may also be made for the purpose of providing assistance: (1) solely for facility plans, design activities, or plans, specifications, and estimates for any proposed project for the construction of treatment works; and (2) for the construction, repair, or replacement of privately owned treatment works serving one or more principal residences or small commercial establishments: Provided further, That for fiscal year 2021, notwithstanding the provisions of such subsections (g)(1), (h), and (l) of section 201 and section 518(c) of the Federal Water Pollution Control Act, funds reserved by the Administrator for grants under section 518(c) of the Federal Water Pollution Control Act may also be used to provide assistance: (1) solely for facility plans, design activities, or plans, specifications, and estimates for any proposed project for the construction of treatment works; and (2) for the construction, repair, or replacement of privately owned treatment works serving one or more principal residences or small commercial establishments: Provided further, That for fiscal year 2021, notwithstanding any provision of the Federal Water Pollution Control Act and regulations issued pursuant thereof, up to a total of $2,000,000 of the funds reserved by the Administrator for grants under section 518(c) of such Act may also be used for grants for training, technical assistance, and educational programs relating to the operation and management of the treatment works specified in section 518(c) of such Act: Provided further, That for fiscal year 2021, funds reserved under section 518(c) of such Act shall be available for grants only to Indian tribes, as defined in section 518(h) of such Act and former Indian reservations in Oklahoma (as determined by the Secretary of the Interior) and Native Villages as defined in Public Law 92–203: Provided further, That for fiscal year 2021, notwithstanding the limitation on amounts in section 518(c) of the Federal Water Pollution Control Act, up to a total of 2 percent of the funds appropriated, or $30,000,000, whichever is greater, and notwithstanding the limitation on amounts in section 1452(i) of the Safe Drinking Water Act, up to a total of 2 percent of the funds appropriated, or $20,000,000, whichever is greater, for State Revolving Funds under such Acts may be reserved by the Administrator for grants under section 518(c) and section 1452(i) of such Acts: Provided further, That for fiscal year 2021, notwithstanding the amounts specified in section 205(c) of the Federal Water Pollution Control Act, up to 1.5 percent of the aggregate funds appropriated for the Clean Water State Revolving Fund program under the Act less any sums reserved under section 518(c) of the Act, may be reserved by the Administrator for grants made under title II of the Federal Water Pollution Control Act for American Samoa, Guam, the Commonwealth of the Northern Marianas, and United States Virgin Islands: Provided further, That for fiscal year 2021, notwithstanding the limitations on amounts specified in section 1452(j) of the Safe Drinking Water Act, up to 1.5 percent of the funds appropriated for the Drinking Water State Revolving Fund programs under the Safe Drinking Water Act may be reserved by the Administrator for grants made under section 1452(j) of the Safe Drinking Water Act: Provided further, That 10 percent of the funds made available under this title to each State for Clean Water State Revolving Fund capitalization grants and 14 percent of the funds made available under this title to each State for Drinking Water State Revolving Fund capitalization grants shall be used by the State to provide additional subsidy to eligible recipients in the form of forgiveness of principal, negative interest loans, or grants (or any combination of these), and shall be so used by the State only where such funds are provided as initial financing for an eligible recipient or to buy, refinance, or restructure the debt obligations of eligible recipients only where such debt was incurred on or after the date of enactment of this Act, or where such debt was incurred prior to the date of enactment of this Act if the State, with concurrence from the Administrator, determines that such funds could be used to help address a

threat to public health from heightened exposure to lead in drinking water or if a Federal or State emergency declaration has been issued due to a threat to public health from heightened exposure to lead in a municipal drinking water supply before the date of enactment of this Act: Provided further, That in a State in which such an emergency declaration has been issued, the State may use more than 14 percent of the funds made available under this title to the State for Drinking Water State Revolving Fund capitalization grants to provide additional subsidy to eligible recipients;

(2) $25,000,000 shall be for architectural, engineering, planning, design, construction and related activities in connection with the construction of high priority water and wastewater facilities in the area of the United States-Mexico Border, after consultation with the appropriate border commission: Provided, That no funds provided by this appropriations Act to address the water, wastewater and other critical infrastructure needs of the colonias in the United States along the United States-Mexico border shall be made available to a county or municipal government unless that government has established an enforceable local ordinance, or other zoning rule, which prevents in that jurisdiction the development or construction of any additional colonia areas, or the development within an existing colonia the construction of any new home, business, or other structure which lacks water, wastewater, or other necessary infrastructure: Provided further, That the Administrator may reserve up to 5 percent of funds appropriated herein for management and oversight purposes;

(3) $29,186,000 shall be for grants to the State of Alaska to address drinking water and wastewater infrastructure needs of rural and Alaska Native Villages: Provided, That of these funds: (A) the State of Alaska shall provide a match of 25 percent; (B) no more than 5 percent of the funds may be used for administrative and overhead expenses; and (C) the State of Alaska shall make awards consistent with the Statewide priority list established in conjunction with the Agency and the U.S. Department of Agriculture for all water, sewer, waste disposal, and similar projects carried out by the State of Alaska that are funded under section 221 of the Federal Water Pollution Control Act (33 U.S.C. 1301) or the Consolidated Farm and Rural Development Act (7 U.S.C. 1921 et seq.) which shall allocate not less than 25 percent of the funds provided for projects in regional hub communities;

(4) $90,000,000 shall be to carry out section 104(k) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA), including grants, interagency agreements, and associated program support costs: Provided, That at least 10 percent shall be allocated for assistance in persistent poverty counties: Provided further, That for purposes of this section, the term ''persistent poverty counties'' means any county that has had 20 percent or more of its population living in poverty over the past 30 years, as measured by the 1990 and 2000 decennial censuses and the most recent Small Area Income and Poverty Estimates, or any territory or possession of the United States: Provided further, That, to the extent there are sufficient qualified applications, not less than an additional 20 percent of the amount appropriated shall be for projects located in Qualified Opportunity Zones: Provided further, That the Administrator may reserve up to 2 percent of funds appropriated herein for management and oversight purposes;

(5) $90,000,000 shall be for grants under title VII, subtitle G of the Energy Policy Act of 2005: Provided, That the Administrator may reserve up to 2.5 percent of funds appropriated herein for management and oversight purposes;

(6) $56,306,000 shall be for targeted airshed grants in accordance with the terms and conditions in the report accompanying this Act: Provided, That the Administrator may reserve up to 2.5 percent of funds appropriated herein for management and oversight purposes;

(7) $4,000,000 shall be to carry out the water quality program authorized in section 5004(d) of the Water Infrastructure Improvements for the Nation Act (Public Law 114–322);

(8) $26,000,000 shall be for grants under subsections (a) through (j) of section 1459A of the Safe Drinking Water Act (42 U.S.C. 300j–19a);

(9) $26,000,000 shall be for grants under section 1464(d) of the Safe Drinking Water Act (42 U.S.C. 300j–24(d)): Provided, That the Administrator may reserve up to 3 percent of funds appropriated herein for management and oversight purposes;

(10) $20,000,000 shall be for grants under section 1459B of the Safe Drinking Water Act (42 U.S.C. 300j–19b): Provided, That the Administrator may reserve up to 3 percent of funds appropriated herein for management and oversight purposes;

(11) $4,000,000 shall be for grants under section 1459A(l) of the Safe Drinking Water Act (42 U.S.C. 300j–19a(l));

(12) $13,000,000 shall be for grants under section 104(b)(8) of the Federal Water Pollution Control Act (33 U.S.C. 1254(b)(8));

(13) $56,700,000 shall be for grants under section 221 of the Federal Water Pollution Control Act (33 U.S.C. 1301): Provided, That the Administrator may reserve up to 3 percent of funds appropriated herein for management and oversight purposes;

(14) $3,000,000 shall be for grants under section 4304(b) of the America's Water Infrastructure Act of 2018 (Public Law 115–270); and

(15) $1,154,450,000 shall be for grants, including associated program support costs, to States, federally recognized tribes, interstate agencies, tribal consortia, and air pollution control agencies for multi-media or single media pollution prevention, control and abatement and related activities, including activities pursuant to the provisions set forth under this heading in Public Law 104–134, and for making grants under section 103 of the Clean Air Act for particulate matter monitoring and data collection activities subject to terms and conditions specified by the Administrator, of which: $46,200,000 shall be for carrying out section 128 of CERCLA; $9,340,000 shall be for Environmental Information Exchange Network grants, including associated program support costs; $1,500,000 shall be for grants to States under section 2007(f)(2) of the Solid Waste Disposal Act, which shall be in addition to funds appropriated under the heading ''Leaking Underground Storage Tank Trust Fund Program'' to carry out the provisions of the Solid Waste Disposal Act specified in section 9508(c) of the Internal Revenue Code other than section 9003(h) of the Solid Waste Disposal Act; $18,000,000 of the funds available for grants under section 106 of the Federal Water Pollution Control Act shall be for State participation in national- and State-level statistical surveys of water resources and enhancements to State monitoring programs.

WATER INFRASTRUCTURE FINANCE AND INNOVATION PROGRAM ACCOUNT

For the cost of direct loans and for the cost of guaranteed loans, as authorized by the Water Infrastructure Finance and Innovation Act of 2014, an amount equal to the amount rescinded pursuant to the final paragraph under the heading ''Administrative Provisions—Environmental Protection Agency'', to remain available until expended: Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That these funds are available to subsidize gross obligations for the principal amount of direct loans, including capitalized interest, and total loan principal, including capitalized interest, any part of which is to be guaranteed, not to exceed $12,484,980,000: Provided further, That none of the direct loans or loan guarantee authority made available under this heading shall be available for any project unless the Administrator and the Director of the Office of Management and Budget have certified in advance in writing that the direct loan or loan guarantee, as applicable, and the project comply with the project eligibility criteria entitled ''Water Infrastructure Finance and Innovation Act Program (WIFIA) Criteria Pursuant to the Further Consolidated Appropriations Act, 2020'', published on June 30, 2020 (85 FR 39189): Provided further, That in this fiscal year and hereafter, for the purposes of carrying out section 503(d) of the Federal Credit Reform Act of 1990, the Director of the Congressional Budget Office may request, and the Administrator shall promptly provide, documentation and information relating to a project identified in a Letter of Interest submitted to the Administrator pursuant to a Notice of Funding Availability for applications for credit assistance under the Water Infrastructure Finance and Innovation Act Program for any fiscal year, including with respect to a project that was initiated or completed before the date of enactment of this Act. In addition, fees authorized to be collected pursuant to sections 5029 and 5030 of the Water Infrastructure Finance and Innovation Act of 2014 shall be deposited in this account, to remain available until expended.

In addition, fees authorized to be collected pursuant to sections 5029 and 5030 of the Water Infrastructure Finance and Innovation Act of 2014 shall be deposited in this account, to remain available until expended.

In addition, for administrative expenses to carry out the direct and guaranteed loan programs, notwithstanding section 5033 of the Water Infrastructure Finance and Innovation Act of 2014, $1,023,000, to remain available until September 30, 2022.

ADMINISTRATIVE PROVISIONS—ENVIRONMENTAL PROTECTION AGENCY

(INCLUDING TRANSFERS AND RESCISSION OF FUNDS)

For fiscal year 2021, notwithstanding 31 U.S.C. 6303(1) and 6305(1), the Administrator of the Environmental Protection Agency, in carrying out the Agency's function to implement directly Federal environmental programs required or authorized by law in the absence of an acceptable tribal program, may award cooperative agreements to federally recognized Indian tribes or Intertribal consortia, if authorized by their member tribes, to assist the Administrator in implementing Federal environmental programs for Indian tribes required or authorized by law, except that no such cooperative agreements may be awarded from funds designated for State financial assistance agreements.

The Administrator of the Environmental Protection Agency is authorized to collect and obligate pesticide registration service fees in accordance with section 33 of the Federal Insecticide, Fungicide, and Rodenticide Act, as amended by Public Law 116–8, the Pesticide Registration Improvement Extension Act of 2018.

Notwithstanding section 33(d)(2) of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) (7 U.S.C. 136w–8(d)(2)), the Administrator of the Environmental Protection Agency may assess fees under section 33 of FIFRA (7 U.S.C. 136w–8) for fiscal year 2021.

The Administrator is authorized to transfer up to $335,000,000 of the funds appropriated for the Great Lakes Restoration Initiative under the heading ''Environmental Programs and Management'' to the head of any Federal department or agency, with the concurrence of such head, to carry out activities that would support the Great Lakes Restoration Initiative and Great Lakes Water Quality Agreement programs, projects, or activities; to enter into an interagency agreement with the head of such Federal department or agency to carry out these activities; and to make grants to governmental entities, nonprofit organizations, institutions,

and individuals for planning, research, monitoring, outreach, and implementation in furtherance of the Great Lakes Restoration Initiative and the Great Lakes Water Quality Agreement.

The Science and Technology, Environmental Programs and Management, Office of Inspector General, Hazardous Substance Superfund, and Leaking Underground Storage Tank Trust Fund Program Accounts, are available for the construction, alteration, repair, rehabilitation, and renovation of facilities, provided that the cost does not exceed $150,000 per project.

For fiscal year 2021, and notwithstanding section 518(f) of the Federal Water Pollution Control Act (33 U.S.C. 1377(f)), the Administrator is authorized to use the amounts appropriated for any fiscal year under section 319 of the Act to make grants to Indian tribes pursuant to sections 319(h) and 518(e) of that Act.

The Administrator is authorized to use the amounts appropriated under the heading ''Environmental Programs and Management'' for fiscal year 2021 to provide grants to implement the Southeastern New England Watershed Restoration Program.

Notwithstanding the limitations on amounts in section 320(i)(2)(B) of the Federal Water Pollution Control Act, not less than $1,500,000 of the funds made available under this title for the National Estuary Program shall be for making competitive awards described in section 320(g)(4).

For fiscal year 2021, the Office of Chemical Safety and Pollution Prevention and the Office of Water may, using funds appropriated under the headings ''Environmental Programs and Management'' and ''Science and Technology'', contract directly with individuals or indirectly with institutions or nonprofit organizations, without regard to 41 U.S.C. 5, for the temporary or intermittent personal services of students or recent graduates, who shall be considered employees for the purposes of chapters 57 and 81 of title 5, United States Code, relating to compensation for travel and work injuries, and chapter 171 of title 28, United States Code, relating to tort claims, but shall not be considered to be Federal employees for any other purpose: Provided, That amounts used for this purpose by the Office of Chemical Safety and Pollution Prevention and the Office of Water collectively may not exceed $2,000,000.

No funds made available under this Title in this Act or any other Act may be used to relocate, close, or consolidate any office, laboratory, or facility.

The Administrator of the Environmental Protection Agency shall continue to regulate under subsection (d) of section 112 of the Clean Air Act (42 U.S.C. 7412) electric utility steam generating units (as defined in subsection (a) of such section 112), and such regulation is deemed to be appropriate and necessary for purposes of subsection (n)(1)(A) of such section 112.

Any amounts made available to the Administrator by the ''State and Tribal Assistance Grants'' account and reserved for management and oversight purposes pursuant to the final provisos of the second, fourth, fifth, sixth, ninth, tenth, and thirteenth paragraphs under such heading shall remain available until September 30, 2022, and may be transferred to the ''Environmental Programs and Management'' account, to be made available for management and oversight purposes for the corresponding programs under such account.

Of the funds made available under this title for the Executive Management and Operations program project, $2,000,000 shall not be available for obligation until after the Administrator transmits a report as described by Title IV of this Act for the agency's violation of section 710 of division E of Public Law 115–31, as discussed in the Comptroller General's April 16, 2018, legal opinion, B-329603.

Of the funds under this title for the Executive Management and Operations program project, if the Administrator has not responded to a request for access to records or interviews with agency employees as required by Title IV of this Act within the time period established by the Comptroller General of the United States, then the amounts available for that program project shall be reduced by $50,000 per day for each day that the Administrator fails to comply with the request, with any funds reduced under this proviso to be permanently rescinded.

Within 90 days of enactment of this Act, the Administrator shall take final action on any registration application to participate in the Renewable Fuels Pathway II program that has been pending for more than one year.

The appropriation provided by 42 U.S.C. 9622(b)(3) is available for the hire, maintenance, and operation of aircraft.

All unobligated balances from amounts appropriated in fiscal years preceding fiscal year 2020 under the heading ''Environmental Protection Agency—Water Infrastructure Finance and Innovation Program Account'' for the cost of direct and guaranteed loans are hereby permanently rescinded.

TITLE III

RELATED AGENCIES

DEPARTMENT OF AGRICULTURE

OFFICE OF THE UNDER SECRETARY FOR NATURAL RESOURCES AND ENVIRONMENT

For necessary expenses of the Office of the Under Secretary for Natural Resources and Environment, $875,000: Provided, That funds made available by this Act to any agency in the Natural Resources and Environment mission area for salaries and expenses are available to fund up to one administrative support staff for the office.

FOREST SERVICE

FOREST AND RANGELAND RESEARCH

For necessary expenses of forest and rangeland research as authorized by law, $311,830,000, to remain available through September 30, 2024: Provided, That of the funds provided, $80,954,000 is for the forest inventory and analysis program: Provided further, That all authorities for the use of funds, including the use of contracts, grants, and cooperative agreements, available to execute the Forest and Rangeland Research appropriation, are also available in the utilization of these funds for Fire Science Research.

STATE AND PRIVATE FORESTRY

For necessary expenses of cooperating with and providing technical and financial assistance to States, territories, possessions, and others, and for forest health management, and conducting an international program as authorized, $300,296,000, to remain available through September 30, 2024, as authorized by law.

NATIONAL FOREST SYSTEM

For necessary expenses of the Forest Service, not otherwise provided for, for management, protection, improvement, and utilization of the National Forest System, and for hazardous fuels management on or adjacent to such lands, $2,057,353,000, to remain available through September 30, 2024: Provided, That of the funds provided, $40,000,000 shall be deposited in the Collaborative Forest Landscape Restoration Fund for ecological restoration treatments as authorized by 16 U.S.C. 7303(f): Provided further, That of the funds provided, $383,051,000 shall be for forest products: Provided further, That of the funds provided, $510,000,000 shall be for hazardous fuels management activities, of which not to exceed $15,000,000 may be used to make grants, using any authorities available to the Forest Service under the ''State and Private Forestry'' appropriation, for the purpose of creating incentives for increased use of biomass from National Forest System lands: Provided further, That $20,000,000 may be used by the Secretary of Agriculture to enter into procurement contracts or cooperative agreements or to issue grants for hazardous fuels management activities, and for training or monitoring associated with such hazardous fuels management activities on Federal land, or on non-Federal land if the Secretary determines such activities benefit resources on Federal land: Provided further, That funds made available to implement the Community Forestry Restoration Act, Public Law 106–393, title VI, shall be available for use on non-Federal lands in accordance with authorities made available to the Forest Service under the ''State and Private Forestry'' appropriations: Provided further, That notwithstanding section 33 of the Bankhead Jones Farm Tenant Act (7 U.S.C. 1012), the Secretary of Agriculture, in calculating a fee for grazing on a National Grassland, may provide a credit of up to 50 percent of the calculated fee to a Grazing Association or direct permittee for a conservation practice approved by the Secretary in advance of the fiscal year in which the cost of the conservation practice is incurred. And, that the amount credited shall remain available to the Grazing Association or the direct permittee, as appropriate, in the fiscal year in which the credit is made and each fiscal year thereafter for use on the project for conservation practices approved by the Secretary.

CAPITAL IMPROVEMENT AND MAINTENANCE

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Forest Service, not otherwise provided for, $466,173,000, to remain available through September 30, 2024, for construction, capital improvement, maintenance and acquisition of buildings and other facilities and infrastructure; and for construction, reconstruction, decommissioning of roads that are no longer needed, including unauthorized roads that are not part of the transportation system, and maintenance of forest roads and trails by the Forest Service as authorized by 16 U.S.C. 532–538 and 23 U.S.C. 101 and 205: Provided, That funds becoming available in fiscal year 2021 under the Act of March 4, 1913 (16 U.S.C. 501) shall be transferred to the General Fund of the Treasury and shall not be available for transfer or obligation for any other purpose unless the funds are appropriated.

ACQUISITION OF LANDS FOR NATIONAL FORESTS SPECIAL ACTS

For acquisition of lands within the exterior boundaries of the Cache, Uinta, and Wasatch National Forests, Utah; the Toiyabe National Forest, Nevada; and the Angeles, San Bernardino, Sequoia, and Cleveland National Forests, California; and the Ozark-St. Francis and Ouachita National Forests, Arkansas; as authorized by law, $700,000, to be derived from forest receipts.

ACQUISITION OF LANDS TO COMPLETE LAND EXCHANGES

For acquisition of lands, such sums, to be derived from funds deposited by State, county, or municipal governments, public school districts, or other public school authorities, and for authorized expenditures from funds deposited by non-Federal parties pursuant to Land Sale and Exchange Acts, pursuant to the Act of December 4, 1967 (16 U.S.C. 484a), to remain available through September 30, 2024, (16 U.S.C. 516–617a, 555a; Public Law 96–586; Public Law 76–589, 76–591; and Public Law 78–310).

RANGE BETTERMENT FUND

For necessary expenses of range rehabilitation, protection, and improvement, 50 percent of all moneys received during the prior fiscal year, as fees for grazing domestic livestock on lands in National Forests in the 16 Western States, pursuant to section 401(b)(1) of Public Law 94–579, to remain available through September 30, 2024, of which not to exceed 6 percent shall be available for administrative expenses associated with on-the-ground range rehabilitation, protection, and improvements.

GIFTS, DONATIONS AND BEQUESTS FOR FOREST AND RANGELAND RESEARCH

For expenses authorized by 16 U.S.C. 1643(b), $45,000, to remain available through September 30, 2024, to be derived from the fund established pursuant to the above Act.

MANAGEMENT OF NATIONAL FOREST LANDS FOR SUBSISTENCE USES

For necessary expenses of the Forest Service to manage Federal lands in Alaska for subsistence uses under title VIII of the Alaska National Interest Lands Conservation Act (16 U.S.C. 3111 et seq.), $2,537,000, to remain available through September 30, 2024.

WILDLAND FIRE MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for forest fire presuppression activities on National Forest System lands, for emergency wildland fire suppression on or adjacent to such lands or other lands under fire protection agreement, and for emergency rehabilitation of burned-over National Forest System lands and water, $2,385,608,000, to remain available until expended: Provided, That such funds including unobligated balances under this heading, are available for repayment of advances from other appropriations accounts previously transferred for such purposes: Provided further, That any unobligated funds appropriated in a previous fiscal year for hazardous fuels management may be transferred to the ''National Forest System'' account: Provided further, That such funds shall be available to reimburse State and other cooperating entities for services provided in response to wildfire and other emergencies or disasters to the extent such reimbursements by the Forest Service for non-fire emergencies are fully repaid by the responsible emergency management agency: Provided further, That funds provided shall be available for support to Federal emergency response: Provided further, That the costs of implementing any cooperative agreement between the Federal Government and any non-Federal entity may be shared, as mutually agreed on by the affected parties: Provided further, That of the funds provided under this heading, $1,011,000,000 shall be available for wildfire suppression operations, and is provided to the meet the terms of section 251(b)(2)(F)(ii)(I) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended.

WILDFIRE SUPPRESSION OPERATIONS RESERVE FUND

(INCLUDING TRANSFERS OF FUNDS)

In addition to the amounts provided under the heading ''Department of Agriculture—Forest Service—Wildland Fire Management'' for wildfire suppression operations, $2,040,000,000, to remain available until transferred, is additional new budget authority as specified for purposes of section 251(b)(2)(F) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That such amounts may be transferred to and merged with amounts made available under the headings ''Department of the Interior—Department-Wide Programs—Wildland Fire Management'' and ''Department of Agriculture—Forest Service—Wildland Fire Management'' for wildfire suppression operations in the fiscal year in which such amounts are transferred: Provided further, That amounts may be transferred to the ''Wildland Fire Management'' accounts in the Department of the Interior or the Department of Agriculture only upon the notification of the House and Senate Committees on Appropriations that all wildfire suppression operations funds appropriated under that heading in this and prior appropriations Acts to the agency to which the funds will be transferred will be obligated within 30 days: Provided further, That the transfer authority provided under this heading is in addition to any other transfer authority provided by law.

COMMUNICATIONS SITE ADMINISTRATION

(INCLUDING TRANSFER OF FUNDS)

Amounts collected in this fiscal year pursuant to section 8705(f)(2) of the Agriculture Improvement Act of 2018 (Public Law 115–334), as amended by this Act, shall be deposited in the special account established by section 8705(f)(1) of such Act, shall be available to cover the costs described in subsection (c)(3) of such section of such Act, and shall remain available until expended: Provided, That such amounts shall be transferred to the ''National Forest System'' account.

ADMINISTRATIVE PROVISIONS—FOREST SERVICE

(INCLUDING TRANSFERS OF FUNDS)

Appropriations to the Forest Service for the current fiscal year shall be available for: (1) purchase of passenger motor vehicles; acquisition of passenger motor vehicles from excess sources, and hire of such vehicles; purchase, lease, operation, maintenance, and acquisition of aircraft to maintain the operable fleet for use in Forest Service wildland fire programs and other Forest Service programs; notwithstanding other provisions of law, existing aircraft being replaced may be sold, with proceeds derived or trade-in value used to offset the purchase price for the replacement aircraft; (2) services pursuant to 7 U.S.C. 2225, and not to exceed $100,000 for employment under 5 U.S.C. 3109; (3) purchase, erection, and alteration of buildings and other public improvements (7 U.S.C. 2250); (4) acquisition of land, waters, and interests therein pursuant to 7 U.S.C. 428a; (5) for expenses pursuant to the Volunteers in the National Forest Act of 1972 (16 U.S.C. 558a, 558d, and 558a note); (6) the cost of uniforms as authorized by 5 U.S.C. 5901–5902; and (7) for debt collection contracts in accordance with 31 U.S.C. 3718(c).

Any appropriations or funds available to the Forest Service may be transferred to the Wildland Fire Management appropriation for forest firefighting, emergency rehabilitation of burned-over or damaged lands or waters under its jurisdiction, and fire preparedness due to severe burning conditions upon the Secretary's notification of the House and Senate Committees on Appropriations that all fire suppression funds appropriated under the heading ''Wildland Fire Management'' will be obligated within 30 days: Provided, That all funds used pursuant to this paragraph must be replenished by a supplemental appropriation which must be requested as promptly as possible.

Not more than $50,000,000 of funds appropriated to the Forest Service shall be available for expenditure or transfer to the Department of the Interior for wildland fire management, hazardous fuels management, and State fire assistance when such transfers would facilitate and expedite wildland fire management programs and projects.

Notwithstanding any other provision of this Act, the Forest Service may transfer unobligated balances of discretionary funds appropriated to the Forest Service by this Act to or within the National Forest System Account, or reprogram funds to be used for the purposes of hazardous fuels management and urgent rehabilitation of burned-over National Forest System lands and water, such transferred funds shall remain available through September 30, 2024: Provided, That none of the funds transferred pursuant to this section shall be available for obligation without written notification to and the prior approval of the Committees on Appropriations of both Houses of Congress: Provided further, That this section does not apply to funds derived from the Land and Water Conservation Fund.

Funds appropriated to the Forest Service shall be available for assistance to or through the Agency for International Development in connection with forest and rangeland research, technical information, and assistance in foreign countries, and shall be available to support forestry and related natural resource activities outside the United States and its territories and possessions, including technical assistance, education and training, and cooperation with U.S., private, and international organizations. The Forest Service, acting for the International Program, may sign direct funding agreements with foreign governments and institutions as well as other domestic agencies (including the U.S. Agency for International Development, the Department of State, and the Millennium Challenge Corporation), U.S. private sector firms, institutions and organizations to provide technical assistance and training programs overseas on forestry and rangeland management.

Funds appropriated to the Forest Service shall be available for expenditure or transfer to the Department of the Interior, Bureau of Land Management, for removal, preparation, and adoption of excess wild horses and burros from National Forest System lands, and for the performance of cadastral surveys to designate the boundaries of such lands.

None of the funds made available to the Forest Service in this Act or any other Act with respect to any fiscal year shall be subject to transfer under the provisions of section 702(b) of the Department of Agriculture Organic Act of 1944 (7 U.S.C. 2257), section 442 of Public Law 106–224 (7 U.S.C. 7772), or section 10417(b) of Public Law 107–171 (7 U.S.C. 8316(b)).

Not more than $82,000,000 of funds available to the Forest Service shall be transferred to the Working Capital Fund of the Department of Agriculture and not more than $14,500,000 of funds available to the Forest Service shall be transferred to the Department of Agriculture for Department Reimbursable Programs, commonly referred to as Greenbook charges. Nothing in this paragraph shall prohibit or limit the use of reimbursable agreements requested by the Forest Service in order to obtain information technology services, including telecommunications and system modifications or enhancements, from the Working Capital Fund of the Department of Agriculture.

Of the funds available to the Forest Service, up to $5,000,000 shall be available for priority projects within the scope of the approved budget, which shall be carried out by the Youth Conservation Corps and shall be carried out under the authority of the Public Lands Corps Act of 1993 (16 U.S.C. 1721 et seq.).

Of the funds available to the Forest Service, $4,000 is available to the Chief of the Forest Service for official reception and representation expenses.

Pursuant to sections 405(b) and 410(b) of Public Law 101–593, of the funds available to the Forest Service, up to $3,000,000 may be advanced in a lump sum to the National Forest Foundation to aid conservation partnership projects in support of the Forest Service mission, without regard to when the Foundation incurs expenses, for projects on or benefitting National Forest System lands or related to Forest Service programs: Provided, That of the Federal funds made available to the Foundation, no more than $300,000 shall be available for administrative expenses: Provided further, That the Foundation shall obtain, by the end of the period of Federal financial assistance, private contributions to match funds made available by the Forest Service on at least a one-for-one basis: Provided further, That the Foundation may transfer Federal funds to a Federal or a non-Federal recipient for a project at the same rate that the recipient has obtained the non-Federal matching funds.

Pursuant to section 2(b)(2) of Public Law 98–244, up to $3,000,000 of the funds available to the Forest Service may be advanced to the National Fish and Wildlife Foundation in a lump sum to aid cost-share conservation projects, without regard to when expenses are incurred, on or benefitting National Forest System lands or related to Forest Service programs: Provided, That such funds shall be matched on at least a one-for-one basis by the Foundation or its sub-recipients: Provided further, That the Foundation may

transfer Federal funds to a Federal or non-Federal recipient for a project at the same rate that the recipient has obtained the non-Federal matching funds.

Funds appropriated to the Forest Service shall be available for interactions with and providing technical assistance to rural communities and natural resource-based businesses for sustainable rural development purposes.

Funds appropriated to the Forest Service shall be available for payments to counties within the Columbia River Gorge National Scenic Area, pursuant to section 14(c)(1) and (2), and section 16(a)(2) of Public Law 99–663.

Any funds appropriated to the Forest Service may be used to meet the non-Federal share requirement in section 502(c) of the Older Americans Act of 1965 (42 U.S.C. 3056(c)(2)).

The Forest Service shall not assess funds for the purpose of performing fire, administrative, and other facilities maintenance and decommissioning.

Notwithstanding any other provision of law, of any appropriations or funds available to the Forest Service, not to exceed $500,000 may be used to reimburse the Office of the General Counsel (OGC), Department of Agriculture, for travel and related expenses incurred as a result of OGC assistance or participation requested by the Forest Service at meetings, training sessions, management reviews, land purchase negotiations and similar matters unrelated to civil litigation. Future budget justifications for both the Forest Service and the Department of Agriculture should clearly display the sums previously transferred and the sums requested for transfer.

An eligible individual who is employed in any project funded under title V of the Older Americans Act of 1965 (42 U.S.C. 3056 et seq.) and administered by the Forest Service shall be considered to be a Federal employee for purposes of chapter 171 of title 28, United States Code.

Notwithstanding any other provision of this Act, through the Office of Budget and Program Analysis, the Forest Service shall report no later than 30 business days following the close of each fiscal quarter all current and prior year unobligated balances, by fiscal year, budget line item and account, to the House and Senate Committees on Appropriations.

DEPARTMENT OF HEALTH AND HUMAN SERVICES

INDIAN HEALTH SERVICE

INDIAN HEALTH SERVICES

For expenses necessary to carry out the Act of August 5, 1954 (68 Stat. 674), the Indian Self-Determination and Education Assistance Act, the Indian Health Care Improvement Act, and titles II and III of the Public Health Service Act with respect to the Indian Health Service, $4,540,197,000 to remain available until September 30, 2022, except as otherwise provided herein, together with payments received during the fiscal year pursuant to sections 231(b) and 233 of the Public Health Service Act (42 U.S.C. 238(b) and 238b), for services furnished by the Indian Health Service: Provided, That funds made available to tribes and tribal organizations through contracts, grant agreements, or any other agreements or compacts authorized by the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450), shall be deemed to be obligated at the time of the grant or contract award and thereafter shall remain available to the tribe or tribal organization without fiscal year limitation: Provided further, That $2,000,000 shall be available for grants or contracts with public or private institutions to provide alcohol or drug treatment services to Indians, including alcohol detoxification services: Provided further, That $1,011,933,000 for Purchased/Referred Care, including $53,000,000 for the Indian Catastrophic Health Emergency Fund, shall remain available until expended: Provided further, That of the funds provided, up to $44,000,000 shall remain available until expended for implementation of the loan repayment program under section 108 of the Indian Health Care Improvement Act: Provided further, That of the funds provided, $58,000,000 shall be for costs related to or resulting from accreditation emergencies, including supplementing activities funded under the heading ''Indian Health Facilities,'' of which up to $4,000,000 may be used to supplement amounts otherwise available for Purchased/Referred Care: Provided further, That the amounts collected by the Federal Government as authorized by sections 104 and 108 of the Indian Health Care Improvement Act (25 U.S.C. 1613a and 1616a) during the preceding fiscal year for breach of contracts shall be deposited in the Fund authorized by section 108A of that Act (25 U.S.C. 1616a–1) and shall remain available until expended and, notwithstanding section 108A(c) of that Act (25 U.S.C. 1616a–1(c)), funds shall be available to make new awards under the loan repayment and scholarship programs under sections 104 and 108 of that Act (25 U.S.C. 1613a and 1616a): Provided further, That the amounts made available within this account for the Substance Abuse and Suicide Prevention Program, for Opioid Prevention, Treatment and Recovery Services, for the Domestic Violence Prevention Program, for the Zero Suicide Initiative, for the housing subsidy authority for civilian employees, for Aftercare Pilot Programs at Youth Regional Treatment Centers, for transformation and modernization costs of the Indian Health Service Electronic Health Record system, for national quality and oversight activities, to improve collections from public and private insurance at Indian Health Service and tribally operated facilities, for an initiative to treat or reduce the transmission of HIV and HCV, for a maternal health initiative, for the Telebehaviorial Health Center of Excellence, for Alzheimer's grants, and for accreditation emergencies shall be allocated at the discretion of the Director of the Indian Health Service and shall remain available until expended: Provided further, That funds provided in this Act may be used for annual contracts and grants that fall within 2 fiscal years, provided the total obligation is recorded in the year the funds are appropriated: Provided further, That the amounts collected by the Secretary of Health and Human Services under the authority of title IV of the Indian Health Care Improvement Act (25 U.S.C. 1613) shall remain available until expended for the purpose of achieving compliance with the applicable conditions and requirements of titles XVIII and XIX of the Social Security Act, except for those related to the planning, design, or construction of new facilities: Provided further, That funding contained herein for scholarship programs under the Indian Health Care Improvement Act (25 U.S.C. 1613) shall remain available until expended: Provided further, That amounts received by tribes and tribal organizations under title IV of the Indian Health Care Improvement Act shall be reported and accounted for and available to the receiving tribes and tribal organizations until expended: Provided further, That the Bureau of Indian Affairs may collect from the Indian Health Service, and from tribes and tribal organizations operating health facilities pursuant to Public Law 93–638, such individually identifiable health information relating to disabled children as may be necessary for the purpose of carrying out its functions under the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.): Provided further, That of the funds provided, $73,451,000 is for the Indian Health Care Improvement Fund and may be used, as needed, to carry out activities typically funded under the Indian Health Facilities account: Provided further, That none of the funds appropriated by this Act to the Indian Health Service for the Electronic Health Record system shall be available for obligation or expenditure for the selection or implementation of a new Information Technology infrastructure system, unless the Committees on Appropriations of the House of Representatives and the Senate are consulted 90 days in advance of such obligation.

CONTRACT SUPPORT COSTS

For payments to tribes and tribal organizations for contract support costs associated with Indian Self-Determination and Education Assistance Act agreements with the Indian Health Service for fiscal year 2021, such sums as may be necessary: Provided, That notwithstanding any other provision of law, no amounts made available under this heading shall be available for transfer to another budget account. Provided further, That amounts obligated but not expended by a tribe or tribal organization for contract support costs for such agreements for the current fiscal year shall be applied to contract support costs due for such agreements for subsequent fiscal years.

PAYMENT FOR TRIBAL LEASES

For payments to tribes and tribal organizations for leases pursuant to section 105(l) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5324(l)) for fiscal year 2021, such sums as may be necessary, which shall be available for obligation through September 30, 2022: Provided, That notwithstanding any other provision of law, no amount made available under this heading shall be available for transfer to another budget account.

INDIAN HEALTH FACILITIES

For construction, repair, maintenance, improvement, and equipment of health and related auxiliary facilities, including quarters for personnel; preparation of plans, specifications, and drawings; acquisition of sites, purchase and erection of modular buildings, and purchases of trailers; and for provision of domestic and community sanitation facilities for Indians, as authorized by section 7 of the Act of August 5, 1954 (42 U.S.C. 2004a), the Indian Self-Determination Act, and the Indian Health Care Improvement Act, and for expenses necessary to carry out such Acts and titles II and III of the Public Health Service Act with respect to environmental health and facilities support activities of the Indian Health Service, $934,994,000 to remain available until expended: Provided, That notwithstanding any other provision of law, funds appropriated for the planning, design, construction, renovation or expansion of health facilities for the benefit of an Indian tribe or tribes may be used to purchase land on which such facilities will be located: Provided further, That not to exceed $500,000 may be used by the Indian Health Service to purchase TRANSAM equipment from the Department of Defense for distribution to the Indian Health Service and tribal facilities: Provided further, That none of the funds appropriated to the Indian Health Service may be used for sanitation facilities construction for new homes funded with grants by the housing programs of the United States Department of Housing and Urban Development.

ADMINISTRATIVE PROVISIONS—INDIAN HEALTH SERVICE

Appropriations provided in this Act to the Indian Health Service shall be available for services as authorized by 5 U.S.C. 3109 at rates not to exceed the per diem rate equivalent to the maximum rate payable for senior-level positions under 5 U.S.C. 5376; hire of passenger motor vehicles and aircraft; purchase of medical equipment; purchase of reprints; purchase, renovation and erection of modular buildings and renovation of existing facilities; payments for telephone service in private residences in the field, when authorized under regulations approved by the Secretary of Health and Human Services; uniforms or allowances therefor as authorized by 5 U.S.C. 5901–5902; and for expenses of attendance at meetings that relate to the functions or activities of the Indian Health Service: Provided, That in accordance with the provisions of the Indian Health Care Improvement Act, non-Indian patients may be extended health care at all tribally administered or Indian Health Service facilities, subject to charges,

and the proceeds along with funds recovered under the Federal Medical Care Recovery Act (42 U.S.C. 2651–2653) shall be credited to the account of the facility providing the service and shall be available without fiscal year limitation: Provided further, That notwithstanding any other law or regulation, funds transferred from the Department of Housing and Urban Development to the Indian Health Service shall be administered under Public Law 86–121, the Indian Sanitation Facilities Act and Public Law 93–638: Provided further, That funds appropriated to the Indian Health Service in this Act, except those used for administrative and program direction purposes, shall not be subject to limitations directed at curtailing Federal travel and transportation: Provided further, That none of the funds made available to the Indian Health Service in this Act shall be used for any assessments or charges by the Department of Health and Human Services unless identified in the budget justification and provided in this Act, or approved by the House and Senate Committees on Appropriations through the reprogramming process: Provided further, That notwithstanding any other provision of law, funds previously or herein made available to a tribe or tribal organization through a contract, grant, or agreement authorized by title I or title V of the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450 et seq.), may be deobligated and reobligated to a self-determination contract under title I, or a self-governance agreement under title V of such Act and thereafter shall remain available to the tribe or tribal organization without fiscal year limitation: Provided further, That none of the funds made available to the Indian Health Service in this Act shall be used to implement the final rule published in the Federal Register on September 16, 1987, by the Department of Health and Human Services, relating to the eligibility for the health care services of the Indian Health Service until the Indian Health Service has submitted a budget request reflecting the increased costs associated with the proposed final rule, and such request has been included in an appropriations Act and enacted into law: Provided further, That with respect to functions transferred by the Indian Health Service to tribes or tribal organizations, the Indian Health Service is authorized to provide goods and services to those entities on a reimbursable basis, including payments in advance with subsequent adjustment, and the reimbursements received therefrom, along with the funds received from those entities pursuant to the Indian Self-Determination Act, may be credited to the same or subsequent appropriation account from which the funds were originally derived, with such amounts to remain available until expended: Provided further, That reimbursements for training, technical assistance, or services provided by the Indian Health Service will contain total costs, including direct, administrative, and overhead costs associated with the provision of goods, services, or technical assistance: Provided further, That the Indian Health Service may provide to civilian medical personnel serving in hospitals operated by the Indian Health Service housing allowances equivalent to those that would be provided to members of the Commissioned Corps of the United States Public Health Service serving in similar positions at such hospitals: Provided further, That the appropriation structure for the Indian Health Service may not be altered without advance notification to the House and Senate Committees on Appropriations.

NATIONAL INSTITUTES OF HEALTH

NATIONAL INSTITUTE OF ENVIRONMENTAL HEALTH SCIENCES

For necessary expenses for the National Institute of Environmental Health Sciences in carrying out activities set forth in section 311(a) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9660(a)) and section 126(g) of the Superfund Amendments and Reauthorization Act of 1986, $83,000,000.

AGENCY FOR TOXIC SUBSTANCES AND DISEASE REGISTRY

TOXIC SUBSTANCES AND ENVIRONMENTAL PUBLIC HEALTH

For necessary expenses for the Agency for Toxic Substances and Disease Registry (ATSDR) in carrying out activities set forth in sections 104(i) and 111(c)(4) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA) and section 3019 of the Solid Waste Disposal Act, $79,000,000: Provided, That notwithstanding any other provision of law, in lieu of performing a health assessment under section 104(i)(6) of CERCLA, the Administrator of ATSDR may conduct other appropriate health studies, evaluations, or activities, including, without limitation, biomedical testing, clinical evaluations, medical monitoring, and referral to accredited healthcare providers: Provided further, That in performing any such health assessment or health study, evaluation, or activity, the Administrator of ATSDR shall not be bound by the deadlines in section 104(i)(6)(A) of CERCLA: Provided further, That none of the funds appropriated under this heading shall be available for ATSDR to issue in excess of 40 toxicological profiles pursuant to section 104(i) of CERCLA during fiscal year 2021, and existing profiles may be updated as necessary.

OTHER RELATED AGENCIES

EXECUTIVE OFFICE OF THE PRESIDENT

COUNCIL ON ENVIRONMENTAL QUALITY AND OFFICE OF ENVIRONMENTAL QUALITY

For necessary expenses to continue functions assigned to the Council on Environmental Quality and Office of Environmental Quality pursuant to the National Environmental Policy Act of 1969, the Environmental Quality Improvement Act of 1970, and Reorganization Plan No. 1 of 1977, and not to exceed $750 for official reception and representation expenses, $2,994,000: Provided, That notwithstanding section 202 of the National Environmental Policy Act of 1970, the Council shall consist of one member, appointed by the President, by and with the advice and consent of the Senate, serving as chairman and exercising all powers, functions, and duties of the Council.

CHEMICAL SAFETY AND HAZARD INVESTIGATION BOARD

SALARIES AND EXPENSES

For necessary expenses in carrying out activities pursuant to section 112(r)(6) of the Clean Air Act, including hire of passenger vehicles, uniforms or allowances therefor, as authorized by 5 U.S.C. 5901–5902, and for services authorized by 5 U.S.C. 3109 but at rates for individuals not to exceed the per diem equivalent to the maximum rate payable for senior level positions under 5 U.S.C. 5376, $12,000,000: Provided, That the Chemical Safety and Hazard Investigation Board (Board) shall have not more than three career Senior Executive Service positions: Provided further, That notwithstanding any other provision of law, the individual appointed to the position of Inspector General of the Environmental Protection Agency (EPA) shall, by virtue of such appointment, also hold the position of Inspector General of the Board: Provided further, That notwithstanding any other provision of law, the Inspector General of the Board shall utilize personnel of the Office of Inspector General of EPA in performing the duties of the Inspector General of the Board, and shall not appoint any individuals to positions within the Board.

OFFICE OF NAVAJO AND HOPI INDIAN RELOCATION

SALARIES AND EXPENSES

(INCLUDING RESCISSION OF FUNDS)

For necessary expenses of the Office of Navajo and Hopi Indian Relocation as authorized by Public Law 93–531, $4,000,000, to remain available until expended: Provided, That funds provided in this or any other appropriations Act are to be used to relocate eligible individuals and groups including evictees from District 6, Hopi-partitioned lands residents, those in significantly substandard housing, and all others certified as eligible and not included in the preceding categories: Provided further, That none of the funds contained in this or any other Act may be used by the Office of Navajo and Hopi Indian Relocation to evict any single Navajo or Navajo family who, as of November 30, 1985, was physically domiciled on the lands partitioned to the Hopi Tribe unless a new or replacement home is provided for such household: Provided further, That no relocatee will be provided with more than one new or replacement home: Provided further, That the Office shall relocate any certified eligible relocatees who have selected and received an approved homesite on the Navajo reservation or selected a replacement residence off the Navajo reservation or on the land acquired pursuant to section 11 of Public Law 93–531 (88 Stat. 1716): Provided further, Of the unobligated balances from amounts made available for the Office of Navajo and Hopi Indian Relocation, $15,000,000 is permanently rescinded: Provided further, That no amounts may be rescinded from amounts that were designated by the Congress as an emergency requirement pursuant to the Concurrent Resolution on the Budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

INSTITUTE OF AMERICAN INDIAN AND ALASKA NATIVE CULTURE AND ARTS DEVELOPMENT

PAYMENT TO THE INSTITUTE

For payment to the Institute of American Indian and Alaska Native Culture and Arts Development, as authorized by part A of title XV of Public Law 99–498 (20 U.S.C. 4411 et seq.), $10,772,000, which shall become available on July 1, 2021, and shall remain available until September 30, 2022.

SMITHSONIAN INSTITUTION

SALARIES AND EXPENSES

For necessary expenses of the Smithsonian Institution, as authorized by law, including research in the fields of art, science, and history; development, preservation, and documentation of the National Collections; presentation of public exhibits and performances; collection, preparation, dissemination, and exchange of information and publications; conduct of education, training, and museum assistance programs; maintenance, alteration, operation, lease agreements of no more than 30 years, and protection of buildings, facilities, and approaches; not to exceed $100,000 for services as authorized by 5 U.S.C. 3109; and purchase, rental, repair, and cleaning of uniforms for employees, $822,313,000, to remain available until September 30, 2022, except as otherwise provided herein; of which not to exceed $6,957,000 for the instrumentation program, collections acquisition, exhibition reinstallation, and the repatriation of skeletal remains program shall remain available until expended; and including such funds as may be necessary to support American overseas research centers: Provided, That funds appropriated herein are available for advance payments to independent contractors performing research services or participating in official Smithsonian presentations: Provided further, That the Smithsonian Institution may expend Federal appropriations designated in this Act for lease or rent payments, as rent payable to the Smithsonian Institution, and such rent payments may be deposited into the general trust funds of the Institution to be available as trust funds for expenses associated with the purchase of a portion of the building at 600 Maryland Avenue, S.W., Washington, D.C. to the extent that Federally supported activities will be housed there: Provided further, That the use of such amounts in the general trust funds of the Institution for such

purpose shall not be construed as Federal debt service for, a Federal guarantee of, a transfer of risk to, or an obligation of the Federal Government: Provided further, That no appropriated funds may be used directly to service debt which is incurred to finance the costs of acquiring a portion of the building at 600 Maryland Avenue, S.W., Washington, D.C., or of planning, designing, and constructing improvements to such building: Provided further, That any agreement entered into by the Smithsonian Institution for the sale of its ownership interest, or any portion thereof, in such building so acquired may not take effect until the expiration of a 30 day period which begins on the date on which the Secretary submits to the Committees on Appropriations of the House of Representatives and Senate, the Committees on House Administration and Transportation and Infrastructure of the House of Representatives, and the Committee on Rules and Administration of the Senate a report, as outlined in the explanatory statement described in section 4 of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94; 133 Stat. 2536) on the intended sale.

FACILITIES CAPITAL

For necessary expenses of repair, revitalization, and alteration of facilities owned or occupied by the Smithsonian Institution, by contract or otherwise, as authorized by section 2 of the Act of August 22, 1949 (63 Stat. 623), and for construction, including necessary personnel, $237,700,000, to remain available until expended, of which not to exceed $10,000 shall be for services as authorized by 5 U.S.C. 3109.

NATIONAL GALLERY OF ART

SALARIES AND EXPENSES

For the upkeep and operations of the National Gallery of Art, the protection and care of the works of art therein, and administrative expenses incident thereto, as authorized by the Act of March 24, 1937 (50 Stat. 51), as amended by the public resolution of April 13, 1939 (Public Resolution 9, Seventy-sixth Congress), including services as authorized by 5 U.S.C. 3109; payment in advance when authorized by the treasurer of the Gallery for membership in library, museum, and art associations or societies whose publications or services are available to members only, or to members at a price lower than to the general public; purchase, repair, and cleaning of uniforms for guards, and uniforms, or allowances therefor, for other employees as authorized by law (5 U.S.C. 5901–5902); purchase or rental of devices and services for protecting buildings and contents thereof, and maintenance, alteration, improvement, and repair of buildings, approaches, and grounds; and purchase of services for restoration and repair of works of art for the National Gallery of Art by contracts made, without advertising, with individuals, firms, or organizations at such rates or prices and under such terms and conditions as the Gallery may deem proper, $153,242,000, to remain available until September 30, 2022, of which not to exceed $3,700,000 for the special exhibition program shall remain available until expended.

REPAIR, RESTORATION AND RENOVATION OF BUILDINGS

For necessary expenses of repair, restoration and renovation of buildings, grounds and facilities owned or occupied by the National Gallery of Art, by contract or otherwise, for operating lease agreements of no more than 10 years, with no extensions or renewals beyond the 10 years, that address space needs created by the ongoing renovations in the Master Facilities Plan, as authorized, $26,203,000, to remain available until expended: Provided, That of this amount, $1,510,000 shall be available for design of an offsite art storage facility in partnership with the Smithsonian Institution: Provided further, That contracts awarded for environmental systems, protection systems, and exterior repair or renovation of buildings of the National Gallery of Art may be negotiated with selected contractors and awarded on the basis of contractor qualifications as well as price.

JOHN F. KENNEDY CENTER FOR THE PERFORMING ARTS

OPERATIONS AND MAINTENANCE

For necessary expenses for the operation, maintenance and security of the John F. Kennedy Center for the Performing Arts, $26,400,000.

CAPITAL REPAIR AND RESTORATION

For necessary expenses for capital repair and restoration of the existing features of the building and site of the John F. Kennedy Center for the Performing Arts, $14,000,000, to remain available until expended.

WOODROW WILSON INTERNATIONAL CENTER FOR SCHOLARS

SALARIES AND EXPENSES

For expenses necessary in carrying out the provisions of the Woodrow Wilson Memorial Act of 1968 (82 Stat. 1356) including hire of passenger vehicles and services as authorized by 5 U.S.C. 3109, $14,800,000, to remain available until September 30, 2022.

NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES

NATIONAL ENDOWMENT FOR THE ARTS

GRANTS AND ADMINISTRATION

For necessary expenses to carry out the National Foundation on the Arts and the Humanities Act of 1965, $170,000,000 shall be available to the National Endowment for the Arts for the support of projects and productions in the arts, including arts education and public outreach activities, through assistance to organizations and individuals pursuant to section 5 of the Act, for program support, and for administering the functions of the Act, to remain available until expended.

NATIONAL ENDOWMENT FOR THE HUMANITIES

GRANTS AND ADMINISTRATION

For necessary expenses to carry out the National Foundation on the Arts and the Humanities Act of 1965, $170,000,000 to remain available until expended, of which $154,000,000 shall be available for support of activities in the humanities, pursuant to section 7(c) of the Act and for administering the functions of the Act; and $16,000,000 shall be available to carry out the matching grants program pursuant to section 10(a)(2) of the Act, including $14,000,000 for the purposes of section 7(h): Provided, That appropriations for carrying out section 10(a)(2) shall be available for obligation only in such amounts as may be equal to the total amounts of gifts, bequests, devises of money, and other property accepted by the chairman or by grantees of the National Endowment for the Humanities under the provisions of sections 11(a)(2)(B) and 11(a)(3)(B) during the current and preceding fiscal years for which equal amounts have not previously been appropriated.

ADMINISTRATIVE PROVISIONS

None of the funds appropriated to the National Foundation on the Arts and the Humanities may be used to process any grant or contract documents which do not include the text of 18 U.S.C. 1913: Provided, That none of the funds appropriated to the National Foundation on the Arts and the Humanities may be used for official reception and representation expenses: Provided further, That funds from nonappropriated sources may be used as necessary for official reception and representation expenses: Provided further, That the Chairperson of the National Endowment for the Arts may approve grants of up to $10,000, if in the aggregate the amount of such grants does not exceed 5 percent of the sums appropriated for grantmaking purposes per year: Provided further, That such small grant actions are taken pursuant to the terms of an expressed and direct delegation of authority from the National Council on the Arts to the Chairperson.

COMMISSION OF FINE ARTS

SALARIES AND EXPENSES

For expenses of the Commission of Fine Arts under chapter 91 of title 40, United States Code, $3,240,000: Provided, That the Commission is authorized to charge fees to cover the full costs of its publications, and such fees shall be credited to this account as an offsetting collection, to remain available until expended without further appropriation: Provided further, That the Commission is authorized to accept gifts, including objects, papers, artwork, drawings and artifacts, that pertain to the history and design of the Nation's Capital or the history and activities of the Commission of Fine Arts, for the purpose of artistic display, study, or education: Provided further, That one-tenth of one percent of the funds provided under this heading may be used for official reception and representation expenses.

NATIONAL CAPITAL ARTS AND CULTURAL AFFAIRS

For necessary expenses as authorized by Public Law 99–190 (20 U.S.C. 956a), $5,000,000.

ADVISORY COUNCIL ON HISTORIC PRESERVATION

SALARIES AND EXPENSES

For necessary expenses of the Advisory Council on Historic Preservation (Public Law 89–665), $7,400,000.

NATIONAL CAPITAL PLANNING COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the National Capital Planning Commission under chapter 87 of title 40, United States Code, including services as authorized by 5 U.S.C. 3109, $8,124,000: Provided, That one-quarter of 1 percent of the funds provided under this heading may be used for official reception and representational expenses associated with hosting international visitors engaged in the planning and physical development of world capitals.

UNITED STATES HOLOCAUST MEMORIAL MUSEUM

HOLOCAUST MEMORIAL MUSEUM

For expenses of the Holocaust Memorial Museum, as authorized by Public Law 106–292 (36 U.S.C. 2301–2310), $62,388,000, of which $715,000 shall remain available until September 30, 2023, for the Museum's equipment replacement program; and of which $3,000,000 for the Museum's repair and rehabilitation program and $1,264,000 for the Museum's outreach initiatives program shall remain available until expended.

PRESIDIO TRUST

The Presidio Trust is authorized to issue obligations to the Secretary of the Treasury pursuant to section 104(d)(3) of the Omnibus Parks and Public Lands Management Act of 1996 (Public Law 104–333), in an amount not to exceed $20,000,000.

DWIGHT D. EISENHOWER MEMORIAL COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the Dwight D. Eisenhower Memorial Commission, $220,000, to remain available until expended.

WORLD WAR I CENTENNIAL COMMISSION

SALARIES AND EXPENSES

Notwithstanding section 9 of the World War I Centennial Commission Act, as authorized by the World War I Centennial Commission Act (Public Law 112–272) and the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113–291), for necessary expenses of the World War I Centennial Commission, $6,000,000, to remain available until September 30, 2022: Provided, That in addition to the authority provided by section 6(g) of such Act, the World War I Commission may accept money, in-kind personnel services, contractual support, or any appropriate support from any executive branch agency for activities of the Commission.

TITLE IV

GENERAL PROVISIONS

(INCLUDING TRANSFERS OF FUNDS)

RESTRICTION ON USE OF FUNDS

SEC. 401. No part of any appropriation contained in this Act shall be available for any activity or the publication or distribution of literature that in any way tends to promote public support or opposition to any legislative proposal on which Congressional action is not complete other than to communicate to Members of Congress as described in 18 U.S.C. 1913.

OBLIGATION OF APPROPRIATIONS

SEC. 402. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

DISCLOSURE OF ADMINISTRATIVE EXPENSES

SEC. 403. The amount and basis of estimated overhead charges, deductions, reserves or holdbacks, including working capital fund and cost pool charges, from programs, projects, activities and subactivities to support government-wide, departmental, agency, or bureau administrative functions or headquarters, regional, or central operations shall be presented in annual budget justifications and subject to approval by the Committees on Appropriations of the House of Representatives and the Senate. Changes to such estimates shall be presented to the Committees on Appropriations for approval.

MINING APPLICATIONS

SEC. 404. (a) LIMITATION OF FUNDS.—None of the funds appropriated or otherwise made available pursuant to this Act shall be obligated or expended to accept or process applications for a patent for any mining or mill site claim located under the general mining laws.

(b) EXCEPTIONS.—Subsection (a) shall not apply if the Secretary of the Interior determines that, for the claim concerned (1) a patent application was filed with the Secretary on or before September 30, 1994; and (2) all requirements established under sections 2325 and 2326 of the Revised Statutes (30 U.S.C. 29 and 30) for vein or lode claims, sections 2329, 2330, 2331, and 2333 of the Revised Statutes (30 U.S.C. 35, 36, and 37) for placer claims, and section 2337 of the Revised Statutes (30 U.S.C. 42) for mill site claims, as the case may be, were fully complied with by the applicant by that date.

(c) REPORT.—On September 30, 2022, the Secretary of the Interior shall file with the House and Senate Committees on Appropriations and the Committee on Natural Resources of the House and the Committee on Energy and Natural Resources of the Senate a report on actions taken by the Department under the plan submitted pursuant to section 314(c) of the Department of the Interior and Related Agencies Appropriations Act, 1997 (Public Law 104–208).

(d) MINERAL EXAMINATIONS.—In order to process patent applications in a timely and responsible manner, upon the request of a patent applicant, the Secretary of the Interior shall allow the applicant to fund a qualified third-party contractor to be selected by the Director of the Bureau of Land Management to conduct a mineral examination of the mining claims or mill sites contained in a patent application as set forth in subsection (b). The Bureau of Land Management shall have the sole responsibility to choose and pay the third-party contractor in accordance with the standard procedures employed by the Bureau of Land Management in the retention of third-party contractors.

CONTRACT SUPPORT COSTS, PRIOR YEAR LIMITATION

SEC. 405. Sections 405 and 406 of division F of the Consolidated and Further Continuing Appropriations Act, 2015 (Public Law 113–235) shall continue in effect in fiscal year 2021.

CONTRACT SUPPORT COSTS, FISCAL YEAR 2021 LIMITATION

SEC. 406. Amounts provided by this Act for fiscal year 2021 under the headings ''Department of Health and Human Services, Indian Health Service, Contract Support Costs'' and ''Department of the Interior, Bureau of Indian Affairs and Bureau of Indian Education, Contract Support Costs'' are the only amounts available for contract support costs arising out of self-determination or self-governance contracts, grants, compacts, or annual funding agreements for fiscal year 2021 with the Bureau of Indian Affairs, Bureau of Indian Education, and the Indian Health Service: Provided, That such amounts provided by this Act are not available for payment of claims for contract support costs for prior years, or for repayments of payments for settlements or judgments awarding contract support costs for prior years.

FOREST MANAGEMENT PLANS

SEC. 407. The Secretary of Agriculture shall not be considered to be in violation of subparagraph 6(f)(5)(A) of the Forest and Rangeland Renewable Resources Planning Act of 1974 (16 U.S.C. 1604(f)(5)(A)) solely because more than 15 years have passed without revision of the plan for a unit of the National Forest System. Nothing in this section exempts the Secretary from any other requirement of the Forest and Rangeland Renewable Resources Planning Act (16 U.S.C. 1600 et seq.) or any other law: Provided, That if the Secretary is not acting expeditiously and in good faith, within the funding available, to revise a plan for a unit of the National Forest System, this section shall be void with respect to such plan and a court of proper jurisdiction may order completion of the plan on an accelerated basis.

PROHIBITION WITHIN NATIONAL MONUMENTS

SEC. 408. No funds provided in this Act may be expended to conduct preleasing, leasing and related activities under either the Mineral Leasing Act (30 U.S.C. 181 et seq.) or the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) within the boundaries of a National Monument established pursuant to the Act of June 8, 1906 (16 U.S.C. 431 et seq.) as such boundary existed on January 20, 2001, except where such activities are allowed under the Presidential proclamation establishing such monument.

LIMITATION ON TAKINGS

SEC. 409. Unless otherwise provided herein, no funds appropriated in this Act for the acquisition of lands or interests in lands may be expended for the filing of declarations of taking or complaints in condemnation without the approval of the House and Senate Committees on Appropriations: Provided, That this provision shall not apply to funds appropriated to implement the Everglades National Park Protection and Expansion Act of 1989, or to funds appropriated for Federal assistance to the State of Florida to acquire lands for Everglades restoration purposes.

PROHIBITION ON NO-BID CONTRACTS

SEC. 410. None of the funds appropriated or otherwise made available by this Act to executive branch agencies may be used to enter into any Federal contract unless such contract is entered into in accordance with the requirements of Chapter 33 of title 41, United States Code, or Chapter 137 of title 10, United States Code, and the Federal Acquisition Regulation, unless—

(1) Federal law specifically authorizes a contract to be entered into without regard for these requirements, including formula grants for States, or federally recognized Indian tribes;

(2) such contract is authorized by the Indian Self-Determination and Education Assistance Act (Public Law 93–638, 25 U.S.C. 450 et seq.) or by any other Federal laws that specifically authorize a contract within an Indian tribe as defined in section 4(e) of that Act (25 U.S.C. 450b(e)); or

(3) such contract was awarded prior to the date of enactment of this Act.

POSTING OF REPORTS

SEC. 411. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public website of that agency any report required to be submitted by the Congress in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises national security; or

(2) the report contains proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

NATIONAL ENDOWMENT FOR THE ARTS GRANT GUIDELINES

SEC. 412. Of the funds provided to the National Endowment for the Arts—

(1) The Chairperson shall only award a grant to an individual if such grant is awarded to such individual for a literature fellowship, National Heritage Fellowship, or American Jazz Masters Fellowship.

(2) The Chairperson shall establish procedures to ensure that no funding provided through a grant, except a grant made to a State or local arts agency, or regional group, may be used to make a grant to any other organization or individual to conduct activity independent of the direct grant recipient. Nothing in this subsection shall prohibit payments made in exchange for goods and services.

(3) No grant shall be used for seasonal support to a group, unless the application is specific to the contents of the season, including identified programs or projects.

NATIONAL ENDOWMENT FOR THE ARTS PROGRAM PRIORITIES

SEC. 413. (a) In providing services or awarding financial assistance under the National Foundation on the Arts and the Humanities Act of 1965 from funds appropriated under this Act, the Chairperson of the National Endowment for the Arts shall ensure that priority is given to providing services or awarding financial assistance for projects, productions, workshops, or programs that serve underserved populations.

(b) In this section:

(1) The term ''underserved population'' means a population of individuals, including urban minorities, who have historically been outside the purview of arts and humanities programs due to factors such as a high incidence of income below the poverty line or to geographic isolation.

(2) The term ''poverty line'' means the poverty line (as defined by the Office of Management and Budget, and revised annually in accordance with section 673(2) of the Community Services Block Grant Act (42 U.S.C. 9902(2))) applicable to a family of the size involved.

(c) In providing services and awarding financial assistance under the National Foundation on the Arts and Humanities Act of 1965 with funds appropriated by this Act, the Chairperson of the National Endowment for the Arts shall ensure that priority is given to providing services or awarding financial assistance for projects, productions, workshops, or programs that will encourage public knowledge, education, understanding, and appreciation of the arts.

(d) With funds appropriated by this Act to carry out section 5 of the National Foundation on the Arts and Humanities Act of 1965—

(1) the Chairperson shall establish a grant category for projects, productions, workshops, or programs that are of national impact or availability or are able to tour several States;

(2) the Chairperson shall not make grants exceeding 15 percent, in the aggregate, of such funds to any single State, excluding grants made under the authority of paragraph (1);

(3) the Chairperson shall report to the Congress annually and by State, on grants awarded by the Chairperson in each grant category under section 5 of such Act; and

(4) the Chairperson shall encourage the use of grants to improve and support community-based music performance and education.

NATIONAL ENDOWMENT FOR THE ARTS WAIVERS

SEC. 414. Notwithstanding any other provision of law, funds made available under the heading ''National Foundation on the Arts and the Humanities—National Endowment for the Arts—Grants and Administration'' of this Act and under such heading for fiscal years 2019 and 2020 for grants for the purposes described in section 5(c) of the National Foundation on the Arts and Humanities Act of 1965 (20 U.S.C. 954(c)) may also be used by the recipients of such grants for purposes of the general operations of such recipients and the matching requirements under subsections (e), (g)(4)(A), and (p)(3) of section 5 of the National Foundation on the Arts and Humanities Act of 1965 (20 U.S.C. 954) may be waived with respect to such grants.

NATIONAL ENDOWMENT FOR THE HUMANITIES WAIVERS

SEC. 415. Notwithstanding any other provision of law, funds made available under the heading ''National Foundation on the Arts and the Humanities—National Endowment for the Humanities—Grants and Administration'' of this Act and under such heading for fiscal years 2019 and 2020 for grants for the purposes described in section 7(c) and 7(h)(1) of the National Foundation on the Arts and Humanities Act of 1965 may also be used by the recipients of such grants for purposes of the general operations of such recipients and the matching requirements under subsection (h)(2)(A) of section 7of the National Foundation on the Arts and Humanities Act of 1965 may be waived with respect to such grants.

STATUS OF BALANCES OF APPROPRIATIONS

SEC. 416. The Department of the Interior, the Environmental Protection Agency, the Forest Service, and the Indian Health Service shall provide the Committees on Appropriations of the House of Representatives and Senate quarterly reports on the status of balances of appropriations including all uncommitted, committed, and unobligated funds in each program and activity within 60 days of enactment of this Act.

EXTENSION OF GRAZING PERMITS

SEC. 417. The terms and conditions of section 325 of Public Law 108–108 (117 Stat. 1307), regarding grazing permits issued by the Forest Service on any lands not subject to administration under section 402 of the Federal Lands Policy and Management Act (43 U.S.C. 1752), shall remain in effect for fiscal year 2021.

FUNDING PROHIBITION

SEC. 418. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

HUMANE TRANSFER AND TREATMENT OF ANIMALS

SEC. 419. (a) Notwithstanding any other provision of law, the Secretary of the Interior, with respect to land administered by the Bureau of Land Management, or the Secretary of Agriculture, with respect to land administered by the Forest Service (referred to in this section as the ''Secretary concerned''), may transfer excess wild horses and burros that have been removed from land administered by the Secretary concerned to other Federal, State, and local government agencies for use as work animals.

(b) The Secretary concerned may make a transfer under subsection (a) immediately on the request of a Federal, State, or local government agency.

(c) An excess wild horse or burro transferred under subsection (a) shall lose status as a wild free-roaming horse or burro (as defined in section 2 of Public Law 92–195 (commonly known as the ''Wild Free-Roaming Horses and Burros Act'') (16 U.S.C. 1332)).

(d) A Federal, State, or local government agency receiving an excess wild horse or burro pursuant to subsection (a) shall not—

(1) destroy the horse or burro in a manner that results in the destruction of the horse or burro into a commercial product;

(2) sell or otherwise transfer the horse or burro in a manner that results in the destruction of the horse or burro for processing into a commercial product; or

(3) euthanize the horse or burro, except on the recommendation of a licensed veterinarian in a case of severe injury, illness, or advanced age.

(e) Amounts appropriated by this Act shall not be available for—

(1) the destruction of any healthy, unadopted, and wild horse or burro under the jurisdiction of the Secretary concerned (including a contractor); or

(2) the sale of a wild horse or burro that results in the destruction of the wild horse or burro for processing into a commercial product.

FOREST SERVICE FACILITY REALIGNMENT AND ENHANCEMENT AUTHORIZATION EXTENSION

SEC. 420. Section 503(f) of Public Law 109–54 (16 U.S.C. 580d note) shall be applied by substituting ''September 30, 2021'' for ''September 30, 2020''.

USE OF AMERICAN IRON AND STEEL

SEC. 421. (a)(1) None of the funds made available by a State water pollution control revolving fund as authorized by section 1452 of the Safe Drinking Water Act (42 U.S.C. 300j–12) shall be used for a project for the construction, alteration, maintenance, or repair of a public water system or treatment works unless all of the iron and steel products used in the project are produced in the United States.

(2) In this section, the term ''iron and steel'' products means the following products made primarily of iron or steel: lined or unlined pipes and fittings, manhole covers and other municipal castings, hydrants, tanks, flanges, pipe clamps and restraints, valves, structural steel, reinforced precast concrete, and construction materials.

(b) Subsection (a) shall not apply in any case or category of cases in which the Administrator of the Environmental Protection Agency (in this section referred to as the ''Administrator'') finds that—

(1) applying subsection (a) would be inconsistent with the public interest;

(2) iron and steel products are not produced in the United States in sufficient and reasonably available quantities and of a satisfactory quality; or

(3) inclusion of iron and steel products produced in the United States will increase the cost of the overall project by more than 25 percent.

(c) If the Administrator receives a request for a waiver under this section, the Administrator shall make available to the public on an informal basis a copy of the request and information available to the Administrator concerning the request, and shall allow for informal public input on the request for at least 15 days prior to making a finding based on the request. The Administrator shall make the request and accompanying information available by electronic means, including on the official public Internet Web site of the Environmental Protection Agency.

(d) This section shall be applied in a manner consistent with United States obligations under international agreements.

(e) The Administrator may retain up to 0.25 percent of the funds appropriated in this Act for the Clean and Drinking Water State Revolving Funds for carrying out the provisions described in subsection (a)(1) for management and oversight of the requirements of this section.

LOCAL COOPERATOR TRAINING AGREEMENTS AND TRANSFERS OF EXCESS EQUIPMENT AND SUPPLIES FOR WILDFIRES

SEC. 422. The Secretary of the Interior is authorized to enter into grants and cooperative agreements with volunteer fire departments, rural fire departments, rangeland fire protection associations, and similar organizations to provide for wildland fire training and equipment, including supplies and communication devices. Notwithstanding 121(c) of title 40, United States Code, or section 521 of title 40, United States Code, the Secretary is further authorized to transfer title to excess Department of the Interior firefighting equipment no longer needed to carry out the functions of the Department's wildland fire management program to such organizations.

RECREATION FEES

SEC. 423. Section 810 of the Federal Lands Recreation Enhancement Act (16 U.S.C. 6809) shall be applied by substituting ''October 1, 2022'' for ''September 30, 2019''.

REPROGRAMMING GUIDELINES

SEC. 424. None of the funds made available in this Act, in this and prior fiscal years, may be reprogrammed without the advance approval of the House and Senate Committees on Appropriations in accordance with the reprogramming procedures contained in the explanatory statement described in section 4 of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94; 133 Stat. 2536).

PROJECT INFORMATION

SEC. 425. (a) Not later than April 1, 2021, and each April 1 thereafter, the Secretary of the Interior and the Secretary of Agriculture shall submit to the Committees on Appropriations of the House of Representatives and the Senate prioritized and detailed lists of Federal land acquisition projects, and Forest Legacy projects, that have been identified by each land management Agency.

(b) The Federal land acquisition project lists required by each Agency in subsection (a) shall include individual projects for the National Park Service, the U.S. Fish and Wildlife Service, the Bureau of Land Management, and the U.S. Forest Service, and shall total for each agency no less than 150 percent of the amount enacted for that agency for the previous fiscal year.

LOCAL CONTRACTORS

SEC. 426. Section 412 of Division E of Public Law 112–74 shall be applied by substituting ''fiscal year 2021'' for ''fiscal year 2019''.

SHASTA-TRINITY MARINA FEE AUTHORITY AUTHORIZATION EXTENSION

SEC. 427. Section 422 of division F of Public Law 110–161 (121 Stat 1844), as amended, shall be applied by substituting ''fiscal year 2021'' for ''fiscal year 2019''.

INTERPRETIVE ASSOCIATION AUTHORIZATION EXTENSION

SEC. 428. Section 426 of division G of Public Law 113–76 (16 U.S.C. 565a–1 note) shall be applied by substituting ''September 30, 2021'' for ''September 30, 2019''.

PUERTO RICO SCHOOLING AUTHORIZATION EXTENSION

SEC. 429. The authority provided by the 19th unnumbered paragraph under heading ''Administrative Provisions, Forest Service'' in title III of Public Law 109–54, as amended, shall be applied by substituting ''fiscal year 2021'' for ''fiscal year 2019''.

FOREST BOTANICAL PRODUCTS FEE COLLECTION AUTHORIZATION EXTENSION

SEC. 430. Section 339 of the Department of the Interior and Related Agencies Appropriations Act, 2000 (as enacted into law by Public Law 106–113; 16 U.S.C. 528 note), as amended by section 335(6) of Public Law 108–108 and section 432 of Public Law 113–76, shall be applied by substituting ''fiscal year 2021'' for ''fiscal year 2019''.

CHESAPEAKE BAY INITIATIVE

SEC. 431. Section 502(c) of the Chesapeake Bay Initiative Act of 1998 (Public Law 105–312; 54 U.S.C. 320101 note) shall be applied by substituting ''fiscal year 2021'' for ''fiscal year 2019''.

CHACO CANYON

SEC. 432. None of the funds made available by this Act may be used to nominate or accept a nomination or informal expression of interest for oil and gas leasing under the Mineral Leasing Act, 30 U.S.C. sec. 181 et seq, or to offer for oil and gas leasing, any federal lands or minerals within the withdrawal area identified on the map of the Chaco Culture National Historical Park prepared by the Bureau of Land Management and dated April 2, 2019.

TRIBAL LEASES

SEC. 433. (a) Notwithstanding any other provision of law, in the case of any lease under section 105(l) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5324(l)), the initial lease term shall – (1) be consistent with the calendar year or fiscal year basis of the funding agreement or annual funding agreement between the Secretary and Indian tribe or tribal organization under that Act; and (2) commence no earlier that the date of receipt of the lease proposal.

(b) REFERENCES.—None of the funds made available under this Act may be used to compensate an Indian tribe or tribal organization for any lease under section 105(l) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5324(l)) that is on a calendar year or fiscal year basis and that is received during the 120 day period ending on the last day of the calendar year or fiscal year.

(c) REFERENCES.—None of the funds made available under this Act may be used to compensate an Indian tribe or tribal organization for any portion of a lease under section 105(l) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5324(l)) that exceeds the square footage necessary for the operation of the Federal programs under the lease.

TONGASS NATIONAL FOREST

SEC. 434. None of the funds made available by this Act may be used to plan, design, study, or construct, for the purpose of harvesting timber by private entities or individuals, a forest development road in the Tongass National Forest.

RAINY RIVER WATERSHED

SEC. 435. None of the funds appropriated or otherwise made available by this Act may be used to review or approve a mine plan proposed within the Rainy River Watershed of the Superior National Forest.

PERMIT PROHIBITION

SEC. 436. None of the funds made available by this Act may be used to issue a permit for the import of a sport-hunted trophy of an elephant or lion taken in Tanzania, Zimbabwe, or Zambia. The limitation described in this section shall not apply in the case of the administration of a tax or tariff.

FUNDING PROHIBITION

SEC. 437. None of the funds made available by this Act may be used to finalize the proposed rule entitled ''Oil and Natural Gas Sector: Emission Standards for New, Reconstructed, and Modified Sources Review'' published by the Environmental Protection Agency in the Federal Register on September 24, 2019 (84 Fed. Reg. 50244).

REPORTING REQUIREMENT

SEC. 438. Not later than 30 days after the date on which the Comptroller General of the United States notifies the head of a Federal agency that receives funds under this Act of a violation by the Federal agency of section 1341(a), 1342, or 1517(a) of title 31, United States Code, the head of the Federal agency shall submit to the President, Congress, and the Comptroller General of the United States a report that includes—

(1) a description of all relevant facts and a statement of actions taken with respect to the issues identified by the Comptroller General of the United States in the notification; and

(2)(A) the opinion of the head of the Federal agency as to whether a violation of section 1341(a), 1342, or 1517(a) of title 31, United States Code, as applicable, has occurred; and

(B)(i) if it is the opinion of the head of the Federal agency under subparagraph (A) that a violation has occurred, an explanation as to why the violation was not discovered and reported by the head of the Federal agency prior to the date of the notification by the Comptroller General of the United States; or

(ii) if it is the opinion of the head of the Federal agency under subparagraph (A) that a violation has not occurred, an explanation for the basis for the determination by the head of the Federal agency.

INFORMATIONAL REQUESTS

SEC. 439. (a) Notice Required.— The head of a federal agency that receives funds under this Act shall respond timely and completely to requests of the Comptroller General of the United States for access to records or interviews with agency employees. Should the head of a federal agency fail to provide access to records or interviews within 30 days of the request or by such date as is otherwise specified by the Comptroller General, and in such manner as is acceptable to the Comptroller General, the Comptroller General shall provide the appropriate congressional committees and the head of the federal agency with notice of the undue delay.

(b) Agency Responses Required.— Not later than 30 days after the head of the federal agency receives a notice under subsection (a), the head of the federal agency shall respond in writing to the Comptroller General and the appropriate congressional committees with an explanation for the delay and a proposed timetable for providing the requested records or interviews. Not later than 30 days after this response is submitted, and every 30 days thereafter until the Comptroller General informs the appropriate congressional committees that the head of the federal agency has provided access to the requested records or interviews in a manner acceptable to the Comptroller General, the head of the federal agency shall update the agency's response in writing.

(c) Relationship To Existing Authority.— Nothing in this section shall be construed to limit, amend, supersede, or restrict in any manner any existing authority of the Comptroller General.

FUNDING PROHIBITION ON WATER QUALITY CERTIFICATIONS

SEC. 440. None of the funds made available by this Act may be used to finalize, implement, or enforce the proposed rule entitled ''Updating Regulations on Water Quality Certification'', published by the Administrator of the Environmental Protection Agency on August 22, 2019 (84 Fed. Reg. 44080).

FUNDING PROHIBITION FOR CONFEDERATE FLAGS

SEC. 441. None of the funds made available to the National Park Service by this Act may be used for the purchase or display of a Confederate flag with the exception of specific circumstances where the flags provide historical context as described in the National Park Service memorandum entitled ''Immediate Action Required, No Reply Needed: Confederate Flags'' and dated June 24, 2015.

REMOVAL OF CONFEDERATE COMMEMORATIVE WORKS

SEC. 442. Notwithstanding any other provision of law or policy to the contrary, within 180 days of enactment of this Act, the National Park Service shall remove from display all physical Confederate commemorative works, such as statues, monuments, sculptures, memorials, and plaques, as defined by NPS, Management Policies 2006, §9.6.1.

INVENTORY OF ASSETS WITH CONFEDERATE NAMES

SEC. 443. Within 90 days of enactment of this Act, the Secretary of the Interior shall submit to the Committee on Appropriations an inventory of all assets under the jurisdiction of the Department of Interior with Confederate names.

FOREST SERVICE USE OF FUNDS

SEC. 444. Notwithstanding section 200306(a)(2)(B)(iii) of title 54, United States Code, amounts made available under the heading ''Department of Agriculture—Forest Service—Land Acquisition'' in this and any prior Act may be used for the acquisition of acreage in any location for the National Forest System.

RESOURCE STUDY OF SPRINGFIELD RACE RIOT

SEC. 445. (a) DEFINITIONS.—In this section:

(1) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(2) STUDY AREA.—The term ''Study Area'' means the archeological site near Madison Street and the 10th Street Rail Corridor, and other sites in Springfield, Illinois associated with the 1908 Springfield Race Riot.

(b) SPECIAL RESOURCE STUDY.—

(1) STUDY.—The Secretary shall conduct a special resource study of the study area.

(2) CONTENTS.—In conducting the study under paragraph (1), the Secretary shall—

(A) evaluate the national significance of the study area;

(B) determine the suitability and feasibility of designating the study area as a unit of the National Park System;

(C) consider other alternatives for preservation, protection, and interpretation of the study area by the Federal Government, State or local government entities, or private and non-profit organizations;

(D) consult with interested Federal agencies, State or local governmental entities, private and nonprofit organizations, or any other interested individuals; and

(E) identify cost estimates for any Federal acquisition, development, interpretation, operation, and maintenance associated with the alternatives.

(3) APPLICABLE LAW.—The study required under paragraph (1) shall be conducted in accordance with section 100507 of title 54, United States Code.

(4) REPORT.—Not later than 3 years after the date on which funds are first made available for the study under paragraph (1), the Secretary shall submit to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate a report that describes—

(A) the results of the study; and

(B) any conclusions and recommendations of the Secretary.

LAND AND WATER CONSERVATION FUND ALLOCATIONS

SEC. 446. Contingent upon the enactment of the Great American Outdoors Act (H.R. 1957 of the 116th Congress)—

(a) the Secretary of the Interior shall transfer amounts becoming available for expenditure from the Land and Water Conservation Fund in fiscal year 2021 pursuant to section 200303(a) of title 54, United States Code, as amended by such Act, to the agencies and accounts specified, in the amounts specified, and for the activities specified, in the table titled ''Allocation of Funds from the Land and Water Conservation Fund—Fiscal Year 2021'' in the report accompanying this Act;

(b) to the extent that the amount becoming available for expenditure in fiscal year 2021 pursuant to such subsection exceeds the total amount specified in the table referenced in this section, such excess amounts shall be transferred to and allocated among the agencies, accounts, and activities in the same proportion as the amounts specified in the table;

(c) all amounts required to be transferred pursuant to this section shall be so transferred not later than 30 days after the date of enactment of this Act, or 30 days after the date of enactment of the Great American Outdoors Act, whichever is later, and such amounts shall be allocated for the activities specified in the report referenced in subsection (a) not later than 15 days after such transfer; and

(d) notwithstanding any other provision of law, the funds allocated in the table referenced in this section shall hereafter be exempt from apportionment under chapter 15 of title 31, United States Code.

FUNDING PROHIBITION

SEC. 447. None of the funds made available by this Act or any other Act may be used to finalize, implement, administer, or enforce—

(1) the proposed rule entitled ''Strengthening Transparency in Regulatory Science'' published by the Environmental Protection Agency in the Federal Register on April 30, 2018 (83 Fed. Reg. 18768); or

(2) the supplemental notice of proposed rulemaking entitled ''Strengthening Transparency in Regulatory Science'' published by the Environmental Protection Agency in the Federal Register on March 18, 2020 (85 Fed. Reg. 15396).

TITLE V

ADDITIONAL INFRASTRUCTURE INVESTMENTS

DEPARTMENT OF THE INTERIOR

BUREAU OF INDIAN EDUCATION

EDUCATION CONSTRUCTION

For an additional amount for ''Education Construction'', $500,000,000, to remain available until expended, of which $350,000,000 is for construction, repair, and improvement of buildings, utilities, and other facilities necessary for the operation of Indian education programs, including architectural and engineering services by contract, and acquisition of lands and interests in lands; up to $100,000,000 is for Facilities Improvement and Repair; and up to $50,000,000 is for school employee housing: Provided, That funds shall be distributed with priority to construction needs identified on the 2016 school construction priority list then to facilities identified in the Indian Affairs – Facilities Management System: Provided further, That no funds shall be obligated until the Bureau has provided a detailed spend plan, including identifying each specific project by Tribe, the estimated project cost, and the expected timeframe for completion of each project, to the Committees on Appropriations of the House of Representatives and the Senate at least 30 days prior to obligating any funds: Provided further, That the Bureau of Indian Education shall provide a quarterly report to such committees until each project is completed: Provided further, That in order to ensure timely completion of construction projects, the Secretary of the Interior may assume control of a project and all funds related to the project, if, not later than 18 months after the date of the enactment of this Act, any Public Law 100–297 (25 U.S.C. 2501, et seq.) grantee receiving funds appropriated in this Act or in any prior Act, has not completed the planning and design phase of the project and commenced construction: Provided further, That no more than two percent of the funds made available herein may be used for salaries and expenses by the Bureau of Indian Education to administer the funds and provide technical assistance to Tribes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ENVIRONMENTAL PROTECTION AGENCY

OFFICE OF THE INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $40,000,000, to remain available until September 30, 2024: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HAZARDOUS SUBSTANCE SUPERFUND

For an additional amount for ''Hazardous Substance Superfund'', $1,000,000,000, to remain available until expended, which shall be for Superfund cleanup activities: Provided, That $800,000,000 shall be for the Superfund Remedial program: Provided further, That not less than $150,000,000 shall be for emergency response and removal activities: Provided further, That the Administrator of the Environmental Protection Agency may retain up to 3 percent of the funds appropriated herein for management and oversight purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

STATE AND TRIBAL ASSISTANCE GRANTS

(INCLUDING TRANSFERS OF FUNDS)

For an additional amount for ''State and Tribal Assistance Grants'', $11,960,000,000, of which—

(1) $6,355,000,000, to be available until expended, shall be for capitalization grants for the Clean Water State Revolving Funds under title VI of the Federal Water Pollution Control Act, and $3,855,000,000, to be available until expended, shall be for capitalization grants under section 1452 of the Safe Drinking Water Act: Provided That the Administrator may reserve up to 1 percent of the funds appropriated herein for administrative, management, and oversight purposes: Provided further, That funds appropriated herein shall not be subject to the matching or cost share requirements of sections 602(b)(2), 602(b)(3) or 202 of the Federal Water Pollution Control Act nor the matching requirements of section 1452(e) of the Safe Drinking Water Act: Provided further, That the Administrator shall reallocate funds appropriated herein for the Clean and Drinking Water State Revolving Funds (Revolving Funds) where projects are not under contract or construction within 18 months of the date of enactment of this Act: Provided further, That notwithstanding the priority rankings they would otherwise receive under each program, priority for funds appropriated herein shall be given to projects on a State priority list that are ready to proceed to construction within 18 months of the date of enactment of this Act: Provided further, That notwithstanding the requirements of section 603(d) of the Federal Water Pollution Control Act or section 1452(f) of the Safe Drinking Water Act, for the funds appropriated herein, each State shall use not less than 40 percent of the amount of its capitalization grants to provide additional subsidization to eligible recipients in the form of forgiveness of principal, negative interest loans or grants or any combination of these: Provided further, That to the extent there are sufficient eligible project applications and projects are consistent with State Intended Use Plans, not less than 25 percent of the funds appropriated herein for the Revolving Funds shall be for projects to address green infrastructure, water or energy efficiency improvements or other environmentally innovative activities: Provided further, That notwithstanding the limitations on amounts in section 518(c) of the Federal Water Pollution Control Act and in section 1452(i) of the Safe Drinking Water Act, 2 percent of the funds appropriated herein for Revolving Funds may be reserved by the Administrator for grants to Indian Tribes under section 518(c) and section 1452(i) of such Acts: Provided further, That up to 10 percent of the funds appropriated herein for tribal set-asides under the Revolving Funds may be transferred to the Indian Health Service to support management and oversight of tribal projects;

(2) $350,000,000, to be available until September 30, 2023, shall be to carry out Brownfields projects authorized by section 104(k) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980: Provided, That the Administrator may reserve up to 3.5 percent of the funds appropriated herein for administrative, management, and oversight purposes: Provided further, That none of the funds appropriated herein shall be subject to cost share requirements under section 104(k)(9)(B)(iii) of such Act: Provided further, That not less than 50 percent of funds appropriated herein shall be for projects located in Qualified Opportunity Zones;

(3) $450,000,000, to be available until September 30, 2023, shall be for grants pursuant to title VII, subtitle G of the Energy Policy Act of 2005: Provided, That none of the funds appropriated for grants herein shall be subject to the State Grant and Loan Program Matching Incentive provisions of section 793(c)(3) of such Act: Provided further That the Administrator may reserve up to 3.5 percent of the funds appropriated herein for administrative, management, and oversight purposes;

(4) $50,000,000, to be available until September 30, 2023, shall be for grants under section 1464(d) under the Safe Drinking Water Act (42 U.S.C. 300j–24(d));

(5) $500,000,000, to be available until expended, shall be for grants and activities under section 1459B of the Safe Drinking Water Act (42 U.S.C. 300j–19b): Provided, That notwithstanding section 1459B(b)(4), the non-Federal share of the total cost of a project funded by a grant from funds appropriated herein shall be not more than 5 percent: Provided further, That for grants to projects providing assistance to low-income households described in section 1459B(b)(5) of the Safe Drinking Water Act (42 U.S.C. 300j–19b(b)(5)) from funds appropriated herein the Administrator shall eliminate the non-Federal cost share for such projects: Provided further That the Administrator may reserve up to 1.5 percent of funds appropriated herein for administrative, management, and oversight purposes;

(6) $400,000,000, to be available until expended, shall be for grants under section 221 of the Federal Water Pollution Control Act (33 U.S.C. 1301): Provided, That the Federal share for the cost of activities carried out using grant funds appropriated herein shall not be less than 95 percent: Provided further, That to the extent there are sufficient eligible project applications, not less than 30 percent of the amount of a grant made to a State to carry out projects to intercept, transport, control, treat, or reuse municipal combined sewer overflows, sanitary sewer overflows, or stormwater shall be through the use of green infrastructure, water and energy efficiency improvements, and other environmentally innovative activities: Provided further, That from the amount appropriated herein, the Administrator may reserve up to 1.25 percent of funds appropriated herein for administrative, management, and oversight purposes, including establishing the allocation formula for states described in section 221(g)(2) of the Federal Water Pollution Control Act (33 U.S.C. 1301(g)(2)):

Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISION, ENVIRONMENTAL PROTECTION AGENCY

(INCLUDING TRANSFERS OF FUNDS)

Funds made available to the Environmental Protection Agency in this title under the heading ''State and Tribal Assistance Grants'' and reserved by the Administrator for administrative, management, and oversight purposes shall remain available until September 30, 2023, and may be transferred to the ''Environmental Programs and Management'' account as needed.

DEPARTMENT OF HEALTH AND HUMAN SERVICES

INDIAN HEALTH SERVICE

INDIAN HEALTH FACILITIES

For an additional amount for ''Indian Health Facilities'', $1,500,000,000, to remain available until expended, of which $1,250,000,000 is for the construction and related costs of inpatient and outpatient health and related auxiliary facilities on the Health Facilities Construction Priority System list and small ambulatory facilities, to modify existing health facilities to provide isolation/quarantine space, to prepare plans, specifications, and drawings, acquisition of sites, and for the purchase and erection of modular buildings; up to $50,000,000 may be used for staff quarters; up to $50,000,000 is for equipment; and no more than $200,000,000 is available to reduce the Backlog of Essential Maintenance, Alteration and Repair: Provided, That none of the funds provided under this heading shall be obligated until the Indian Health Service has provided a detailed spend plan, including identifying each specific project by Tribe, the estimated project cost, and the expected project completion, to the Committees on Appropriations of the House of Representatives and the Senate at least 30 days prior to distributing any funds: Provided further, That the Indian Health Service shall provide a quarterly project report to such committees: Provided further, That notwithstanding any other provision of law, funds appropriated for the planning, design, construction, renovation or expansion of health facilities for the benefit of an Indian Tribe or Tribes may be used to purchase land on which such facilities will be located: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

This Act may be cited as the ''Department of the Interior, Environment, and Related Agencies Appropriations Act, 2021''.

DIVISION D—MILITARY CONSTRUCTION, VETERANS AFFAIRS, AND RELATED AGENCIES APPROPRIATIONS ACT, 2021

That the following sums are appropriated, out of any money in the Treasury not otherwise appropriated, for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2021, and for other purposes, namely:

TITLE I

DEPARTMENT OF DEFENSE

MILITARY CONSTRUCTION, ARMY

For acquisition, construction, installation, and equipment of temporary or permanent public works, military installations, facilities, and real property for the Army as currently authorized by law, including personnel in the Army Corps of Engineers and other personal services necessary for the purposes of this appropriation, and for construction and operation of facilities in support of the functions of the Commander in Chief, $608,336,000, shall be used for the projects, and in the amounts specified under the heading for ''Military Construction, Army'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of this amount, not to exceed $126,436,000 shall be available for study, planning, design, architect and engineer services, and host nation support, as authorized by law, unless the Secretary of the Army determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, NAVY AND MARINE CORPS

For acquisition, construction, installation, and equipment of temporary or permanent public works, naval installations, facilities, and real property for the Navy and Marine Corps as currently authorized by law, including personnel in the Naval Facilities Engineering Command and other personal services necessary for the purposes of this appropriation, $1,611,914,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Navy and Marine Corps'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of this amount, not to exceed $160,710,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of the Navy determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, AIR FORCE

For acquisition, construction, installation, and equipment of temporary or permanent public works, military installations, facilities, and real property for the Air Force as currently authorized by law, $569,792,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Air Force'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of this amount, not to exceed $166,192,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of the Air Force determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, DEFENSE-WIDE

For acquisition, construction, installation, and equipment of temporary or permanent public works, installations, facilities, and real property for activities and agencies of the Department of Defense (other than the military departments), as currently authorized by law, $2,234,517,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Defense-Wide'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of the amount, not to exceed $179,976,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of Defense determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, ARMY NATIONAL GUARD

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Army National Guard, and contributions therefor, as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $349,437,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Army National Guard'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of the amount, not to exceed $44,593,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Director of the Army National Guard determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, AIR NATIONAL GUARD

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Air National Guard, and contributions therefor, as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $64,214,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Air National Guard'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of the amount, not to exceed $3,414,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Director of the Air National Guard determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, ARMY RESERVE

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Army Reserve as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $88,337,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Army Reserve'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of the amount, not to exceed $1,218,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Chief of the Army Reserve determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, NAVY RESERVE

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the reserve components of the Navy and Marine Corps as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $70,995,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Navy Reserve'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of the amount, not to exceed $3,485,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of the Navy determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, AIR FORCE RESERVE

For construction, acquisition, expansion, rehabilitation, and conversion of facilities for the training and administration of the Air Force Reserve as authorized by chapter 1803 of title 10, United States Code, and Military Construction Authorization Acts, $23,117,000, shall be used for the projects, and in the amounts specified under the heading ''Military Construction, Air Force Reserve'' in the report accompanying this Act, to remain available until September 30, 2025: Provided, That, of the amount, not to exceed $3,270,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Chief of the Air Force Reserve determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

NORTH ATLANTIC TREATY ORGANIZATION SECURITY INVESTMENT PROGRAM

For the United States share of the cost of the North Atlantic Treaty Organization Security Investment Program for the acquisition and construction of military facilities and installations (including international military headquarters) and for related expenses for the collective defense of the North Atlantic Treaty Area as authorized by section 2806 of title 10, United States Code, and Military Construction Authorization

Acts, $173,030,000, to remain available until expended.

DEPARTMENT OF DEFENSE BASE CLOSURE ACCOUNT

For deposit into the Department of Defense Base Closure Account, established by section 2906(a) of the Defense Base Closure and Realignment Act of 1990 (10 U.S.C. 2687 note), $580,447,000, to remain available until expended.

FAMILY HOUSING CONSTRUCTION, ARMY

For expenses of family housing for the Army for construction, including acquisition, replacement, addition, expansion, extension, and alteration, as authorized by law, $119,400,000, to remain available until September 30, 2025.

FAMILY HOUSING OPERATION AND MAINTENANCE, ARMY

For expenses of family housing for the Army for operation and maintenance, including debt payment, leasing, minor construction, principal and interest charges, and insurance premiums, as authorized by law, $367,142,000.

FAMILY HOUSING CONSTRUCTION, NAVY AND MARINE CORPS

For expenses of family housing for the Navy and Marine Corps for construction, including acquisition, replacement, addition, expansion, extension, and alteration, as authorized by law, $42,897,000, to remain available until September 30, 2025.

FAMILY HOUSING OPERATION AND MAINTENANCE, NAVY AND MARINE CORPS

For expenses of family housing for the Navy and Marine Corps for operation and maintenance, including debt payment, leasing, minor construction, principal and interest charges, and insurance premiums, as authorized by law, $346,493,000.

FAMILY HOUSING CONSTRUCTION, AIR FORCE

For expenses of family housing for the Air Force for construction, including acquisition, replacement, addition, expansion, extension, and alteration, as authorized by law, $97,214,000, to remain available until September 30, 2025.

FAMILY HOUSING OPERATION AND MAINTENANCE, AIR FORCE

For expenses of family housing for the Air Force for operation and maintenance, including debt payment, leasing, minor construction, principal and interest charges, and insurance premiums, as authorized by law, $317,021,000.

FAMILY HOUSING OPERATION AND MAINTENANCE, DEFENSE-WIDE

For expenses of family housing for the activities and agencies of the Department of Defense (other than the military departments) for operation and maintenance, leasing, and minor construction, as authorized by law, $54,728,000.

DEPARTMENT OF DEFENSE

FAMILY HOUSING IMPROVEMENT FUND

For the Department of Defense Family Housing Improvement Fund, $5,897,000, to remain available until expended, for family housing initiatives undertaken pursuant to section 2883 of title 10, United States Code, providing alternative means of acquiring and improving military family housing and supporting facilities.

DEPARTMENT OF DEFENSE

MILITARY UNACCOMPANIED HOUSING IMPROVEMENT FUND

For the Department of Defense Military Unaccompanied Housing Improvement Fund, $600,000, to remain available until expended, for unaccompanied housing initiatives undertaken pursuant to section 2883 of title 10, United States Code, providing alternative means of acquiring and improving military unaccompanied housing and supporting facilities.

ADMINISTRATIVE PROVISIONS

SEC. 101. None of the funds made available in this title shall be expended for payments under a cost-plus-a-fixed-fee contract for construction, where cost estimates exceed $25,000, to be performed within the United States, except Alaska, without the specific approval in writing of the Secretary of Defense setting forth the reasons therefor.

SEC. 102. Funds made available in this title for construction shall be available for hire of passenger motor vehicles.

SEC. 103. Funds made available in this title for construction may be used for advances to the Federal Highway Administration, Department of Transportation, for the construction of access roads as authorized by section 210 of title 23, United States Code, when projects authorized therein are certified as important to the national defense by the Secretary of Defense.

SEC. 104. None of the funds made available in this title may be used to begin construction of new bases in the United States for which specific appropriations have not been made.

SEC. 105. None of the funds made available in this title shall be used for purchase of land or land easements in excess of 100 percent of the value as determined by the Army Corps of Engineers or the Naval Facilities Engineering Command, except: (1) where there is a determination of value by a Federal court; (2) purchases negotiated by the Attorney General or the designee of the Attorney General; (3) where the estimated value is less than $25,000; or (4) as otherwise determined by the Secretary of Defense to be in the public interest.

SEC. 106. None of the funds made available in this title shall be used to: (1) acquire land; (2) provide for site preparation; or (3) install utilities for any family housing, except housing for which funds have been made available in annual Acts making appropriations for military construction.

SEC. 107. None of the funds made available in this title for minor construction may be used to transfer or relocate any activity from one base or installation to another, without prior notification to the Committees on Appropriations of both Houses of Congress.

SEC. 108. None of the funds made available in this title may be used for the procurement of steel for any construction project or activity for which American steel producers, fabricators, and manufacturers have been denied the opportunity to compete for such steel procurement.

SEC. 109. None of the funds available to the Department of Defense for military construction or family housing during the current fiscal year may be used to pay real property taxes in any foreign nation.

SEC. 110. None of the funds made available in this title may be used to initiate a new installation overseas without prior notification to the Committees on Appropriations of both Houses of Congress.

SEC. 111. None of the funds made available in this title may be obligated for architect and engineer contracts estimated by the Government to exceed $500,000 for projects to be accomplished in Japan, in any North Atlantic Treaty Organization member country, or in countries bordering the Arabian Gulf, unless such contracts are awarded to United States firms or United States firms in joint venture with host nation firms.

SEC. 112. None of the funds made available in this title for military construction in the United States territories and possessions in the Pacific and on Kwajalein Atoll, or in countries bordering the Arabian Gulf, may be used to award any contract estimated by the Government to exceed $1,000,000 to a foreign contractor: Provided, That this section shall not be applicable to contract awards for which the lowest responsive and responsible bid of a United States contractor exceeds the lowest responsive and responsible bid of a foreign contractor by greater than 20 percent: Provided further, That this section shall not apply to contract awards for military construction on Kwajalein Atoll for which the lowest responsive and responsible bid is submitted by a Marshallese contractor.

SEC. 113. The Secretary of Defense shall inform the appropriate committees of both Houses of Congress, including the Committees on Appropriations, of plans and scope of any proposed military exercise involving United States personnel 30 days prior to its occurring, if amounts expended for construction, either temporary or permanent, are anticipated to exceed $100,000.

SEC. 114. Funds appropriated to the Department of Defense for construction in prior years shall be available for construction authorized for each such military department by the authorizations enacted into law during the current session of Congress.

SEC. 115. For military construction or family housing projects that are being completed with funds otherwise expired or lapsed for obligation, expired or lapsed funds may be used to pay the cost of associated supervision, inspection, overhead, engineering and design on those projects and on subsequent claims, if any.

SEC. 116. Notwithstanding any other provision of law, any funds made available to a military department or defense agency for the construction of military projects may be obligated for a military construction project or contract, or for any portion of such a project or contract, at any time before the end of the fourth fiscal year after the fiscal year for which funds for such project were made available, if the funds obligated for such project: (1) are obligated from funds available for military construction projects; and (2) do not exceed the amount appropriated for such project, plus any amount by which the cost of such project is increased pursuant to law.

(INCLUDING TRANSFER OF FUNDS)

SEC. 117. Subject to 30 days prior notification, or 14 days for a notification provided in an electronic medium pursuant to sections 480 and 2883 of title 10, United States Code, to the Committees on Appropriations of both Houses of Congress, such additional amounts as may be determined by the Secretary of Defense may be transferred to: (1) the Department of Defense Family Housing Improvement Fund from amounts appropriated for construction in ''Family Housing'' accounts, to be merged with and to be available for the same purposes and for the same period of time as amounts appropriated directly to the Fund; or (2) the Department of Defense Military Unaccompanied Housing Improvement Fund from amounts appropriated for construction of military unaccompanied housing in ''Military Construction'' accounts, to be merged with and to be available for the same purposes and for the same period of time as amounts appropriated directly to the Fund: Provided, That appropriations made available to the Funds shall be available to cover the costs, as defined in section 502(5) of the Congressional Budget Act of 1974, of direct loans or loan guarantees issued by the Department of Defense pursuant to the provisions of subchapter IV of chapter 169 of title 10, United States Code, pertaining to alternative means of acquiring and improving military family housing, military unaccompanied housing, and supporting facilities.

(INCLUDING TRANSFER OF FUNDS)

SEC. 118. In addition to any other transfer authority available to the Department of Defense, amounts may be transferred from the Department of Defense Base Closure Account to the fund established by section 1013(d) of the Demonstration Cities and Metropolitan Development Act of 1966 (42 U.S.C. 3374) to pay for expenses associated with the Homeowners Assistance Program incurred under 42 U.S.C. 3374(a)(1)(A). Any amounts transferred shall be merged with and be available for the same purposes and for the same time period as the fund to which transferred.

SEC. 119. Notwithstanding any other provision of law, funds made available in this title for operation and maintenance of family housing shall be the exclusive source of funds for repair

and maintenance of all family housing units, including general or flag officer quarters: Provided, That not more than $15,000 per unit may be spent annually for the maintenance and repair of any general or flag officer quarters without 30 days prior notification, or 14 days for a notification provided in an electronic medium pursuant to sections 480 and 2883 of title 10, United States Code, to the Committees on Appropriations of both Houses of Congress, except that an after-the-fact notification shall be submitted if the limitation is exceeded solely due to costs associated with environmental remediation that could not be reasonably anticipated at the time of the budget submission: Provided further, That the Under Secretary of Defense (Comptroller) is to report annually to the Committees on Appropriations of both Houses of Congress all operation and maintenance expenditures for each individual general or flag officer quarters for the prior fiscal year.

SEC. 120. Amounts contained in the Ford Island Improvement Account established by subsection (h) of section 2814 of title 10, United States Code, are appropriated and shall be available until expended for the purposes specified in subsection (i)(1) of such section or until transferred pursuant to subsection (i)(3) of such section.

(INCLUDING TRANSFER OF FUNDS)

SEC. 121. During the 5-year period after appropriations available in this Act to the Department of Defense for military construction and family housing operation and maintenance and construction have expired for obligation, upon a determination that such appropriations will not be necessary for the liquidation of obligations or for making authorized adjustments to such appropriations for obligations incurred during the period of availability of such appropriations, unobligated balances of such appropriations may be transferred into the appropriation ''Foreign Currency Fluctuations, Construction, Defense'', to be merged with and to be available for the same time period and for the same purposes as the appropriation to which transferred.

SEC. 122. None of the funds made available in this title may be obligated or expended for planning and design and construction of projects at Arlington National Cemetery.

SEC. 123. For an additional amount for the accounts and in the amounts specified, to remain available until September 30, 2025:

''Military Construction, Army'', $342,600,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Army'' in the report accompanying this Act;

''Military Construction, Navy and Marine Corps'', $765,937,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Navy and Marine Corps'' in the report accompanying this Act;

''Military Construction, Air Force'', $428,000,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Air Force'' in the report accompanying this Act;

''Military Construction, Army National Guard'', $34,835,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Army National Guard'' in the report accompanying this Act;

''Military Construction, Air National Guard'', $54,700,000 shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Air National Guard'' in the report accompanying this Act; and

''Military Construction, Army Reserve'', $48,900,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Army Reserve'' in the report accompanying this Act:

Provided, That such funds may only be obligated to carry out construction projects identified in the respective military department's unfunded priority list for fiscal year 2021 submitted to Congress: Provided further, That such projects are subject to authorization prior to obligation and expenditure of funds to carry out construction: Provided further, That not later than 30 days after enactment of this Act, the Secretary of the military department concerned, or his or her designee, shall submit to the Committees on Appropriations of both Houses of Congress an expenditure plan for funds provided under this section and receive approval from the Committees on Appropriations of both Houses of Congress prior to obligation.

SEC. 124. For the purposes of this Act, the term ''congressional defense committees'' means the Committees on Armed Services of the House of Representatives and the Senate, the Subcommittee on Military Construction and Veterans Affairs of the Committee on Appropriations of the Senate, and the Subcommittee on Military Construction and Veterans Affairs of the Committee on Appropriations of the House of Representatives.

SEC. 125. All amounts appropriated to the ''Department of Defense—Military Construction, Army'', ''Department of Defense—Military Construction, Navy and Marine Corps'', ''Department of Defense—Military Construction, Air Force'', and ''Department of Defense—Military Construction, Defense-Wide'' accounts pursuant to the authorization of appropriations in a National Defense Authorization Act specified for fiscal year 2021 in the funding table in section 4601 of that Act shall be immediately available and allotted to contract for the full scope of authorized projects.

SEC. 126. For an additional amount for the accounts and in the amounts specified, to remain available until September 30, 2023:

''Military Construction, Army'', $224,900,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Army'' in the report accompanying this Act;

''Military Construction, Navy and Marine Corps'', $144,900,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Navy and Marine Corps'' in the report accompanying this Act;

''Military Construction, Air Force'', $166,500,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Air Force'', in the report accompanying this Act:

''Military Construction, Army Reserve'', $10,200,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Army Reserve'', in the report accompanying this Act:

''Military Construction, Navy Reserve'', $3,500,000, shall be used for the projects, and in the amounts, specified under the heading ''Military Construction, Navy Reserve'', in the report accompanying this Act:

''Family Housing Construction, Army'', $4,500,000, shall be used for the projects, and in the amounts, specified under the heading ''Family Housing Construction, Army'' , in the report accompanying this Act:

Provided, That such funds may only be obligated to carry out construction projects identified in the respective military department's cost to complete projects list of previously appropriated projects submitted to Congress: Provided further, That such projects are subject to authorization prior to obligation and expenditure of funds to carry out construction: Provided further, That not later than 30 days after enactment of this Act, the Secretary of the military department concerned, or his or her designee, shall submit to the Committees on Appropriations of both Houses of Congress an expenditure plan for funds provided under this section and receive approval from the Committees on Appropriations of both Houses of Congress prior to obligation.

SEC. 127. For an additional amount for the accounts and in the amounts specified, to remain available until September 30, 2023:

''Family Housing Operation and Maintenance, Army'', $25,000,000;

''Family Housing Operation and Maintenance, Navy and Marine Corps'', $50,000,000; and

''Family Housing Operation and Maintenance, Air Force'', $60,000,000.

SEC. 128. Notwithstanding any other provision of law, funds made available under each heading in this title shall only be used for the purposes specifically described under that heading.

SEC. 129. Notwithstanding any other provision of law, none of the funds appropriated in this or any other Act for a military construction project, as defined by section 2801 of title 10, United States Code, for any of fiscal years 2016 through 2020 or for fiscal year 2021 may be obligated, expended, or used to design, construct, or carry out—

(1) a project to construct a wall, barrier, fence, or road along the Southern border of the United States;

(2) a road to provide access to a wall, barrier, or fence constructed along the Southern border of the United States; or

(3) any military construction project for which funds were appropriated for any of fiscal years 2016 through 2020, but that were rescinded or postponed by reason of the declaration of a national emergency on February 15, 2019.

SEC. 130. None of the funds appropriated in this Act for a military construction project, as defined by section 2801 of title 10, United States Code, for fiscal year 2021 may be obligated, expended, or used to construct a project located on a military installation bearing the name of a confederate officer, except in the case that a process to replace such names has been initiated.

TITLE II

DEPARTMENT OF VETERANS AFFAIRS

VETERANS BENEFITS ADMINISTRATION

COMPENSATION AND PENSIONS

(INCLUDING TRANSFER OF FUNDS)

For the payment of compensation benefits to or on behalf of veterans and a pilot program for disability examinations as authorized by section 107 and chapters 11, 13, 18, 51, 53, 55, and 61 of title 38, United States Code; pension benefits to or on behalf of veterans as authorized by chapters 15, 51, 53, 55, and 61 of title 38, United States Code; and burial benefits, the Reinstated Entitlement Program for Survivors, emergency and other officers' retirement pay, adjusted-service credits and certificates, payment of premiums due on commercial life insurance policies guaranteed under the provisions of title IV of the Servicemembers Civil Relief Act (50 U.S.C. App. 541 et seq.) and for other benefits as authorized by sections 107, 1312, 1977, and 2106, and chapters 23, 51, 53, 55, and 61 of title 38, United States Code, $2,813,922,000, to remain available until expended, which shall be in addition to funds previously appropriated under this heading that become available on October 1, 2020; and in addition, $130,227,650,000, to remain available until expended, which shall become available on October 1, 2021: Provided, That not to exceed $20,115,000 of the amount made available for fiscal year 2022 under this heading shall be reimbursed to ''General Operating Expenses, Veterans Benefits Administration'', and ''Information Technology Systems'' for necessary expenses in implementing the provisions of chapters 51, 53, and 55 of title 38, United States Code, the funding source for which is specifically provided as the ''Compensation and Pensions'' appropriation: Provided further, That such sums as may be earned on an actual qualifying patient basis, shall be reimbursed to ''Medical Care Collections Fund'' to augment the funding of individual medical facilities for nursing home care provided to pensioners as authorized.

READJUSTMENT BENEFITS

For the payment of readjustment and rehabilitation benefits to or on behalf of veterans as authorized by chapters 21, 30, 31, 33, 34, 35, 36, 39, 41, 51, 53, 55, and 61 of title 38, United States Code, $14,946,618,000, to remain available until expended and to become available on October 1, 2021: Provided, That expenses for rehabilitation program services and assistance which the Secretary is authorized to provide under subsection (a) of section 3104 of title 38, United States Code, other than under paragraphs (1), (2), (5), and (11) of that subsection, shall be charged to this account.

VETERANS INSURANCE AND INDEMNITIES

For military and naval insurance, national service life insurance, servicemen's indemnities, service-disabled veterans insurance, and veterans mortgage life insurance as authorized by chapters 19 and 21 of title 38, United States Code, $2,148,000, to remain available until expended, which shall be in addition to funds previously appropriated under this heading that become available on October 1, 2020; and in addition, $136,950,000, to remain available until expended, which shall become available on October 1, 2021.

VETERANS HOUSING BENEFIT PROGRAM FUND

For the cost of direct and guaranteed loans, such sums as may be necessary to carry out the program, as authorized by subchapters I through III of chapter 37 of title 38, United States Code: Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That, during fiscal year 2021, within the resources available, not to exceed $500,000 in gross obligations for direct loans are authorized for specially adapted housing loans.

In addition, for administrative expenses to carry out the direct and guaranteed loan programs, $204,400,000.

VOCATIONAL REHABILITATION LOANS PROGRAM ACCOUNT

For the cost of direct loans, $33,826, as authorized by chapter 31 of title 38, United States Code: Provided, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: Provided further, That funds made available under this heading are available to subsidize gross obligations for the principal amount of direct loans not to exceed $2,469,522.

In addition, for administrative expenses necessary to carry out the direct loan program, $424,272, which may be paid to the appropriation for ''General Operating Expenses, Veterans Benefits Administration''.

NATIVE AMERICAN VETERAN HOUSING LOAN PROGRAM ACCOUNT

For administrative expenses to carry out the direct loan program authorized by subchapter V of chapter 37 of title 38, United States Code, $1,186,000.

GENERAL OPERATING EXPENSES, VETERANS BENEFITS ADMINISTRATION

For necessary operating expenses of the Veterans Benefits Administration, not otherwise provided for, including hire of passenger motor vehicles, reimbursement of the General Services Administration for security guard services, and reimbursement of the Department of Defense for the cost of overseas employee mail, $3,187,000,000: Provided, That expenses for services and assistance authorized under paragraphs (1), (2), (5), and (11) of section 3104(a) of title 38, United States Code, that the Secretary of Veterans Affairs determines are necessary to enable entitled veterans: (1) to the maximum extent feasible, to become employable and to obtain and maintain suitable employment; or (2) to achieve maximum independence in daily living, shall be charged to this account: Provided further, That, of the funds made available under this heading, not to exceed 10 percent shall remain available until September 30, 2022.

VETERANS HEALTH ADMINISTRATION

MEDICAL SERVICES

For necessary expenses for furnishing, as authorized by law, inpatient and outpatient care and treatment to beneficiaries of the Department of Veterans Affairs and veterans described in section 1705(a) of title 38, United States Code, including care and treatment in facilities not under the jurisdiction of the Department, and including medical supplies and equipment, bioengineering services, food services, and salaries and expenses of healthcare employees hired under title 38, United States Code, assistance and support services for caregivers as authorized by section 1720G of title 38, United States Code, loan repayments authorized by section 604 of the Caregivers and Veterans Omnibus Health Services Act of 2010 (Public Law 111–163; 124 Stat. 1174; 38 U.S.C. 7681 note), monthly assistance allowances authorized by section 322(d) of title 38, United States Code, grants authorized by section 521A of title 38, United States Code, administrative expenses necessary to carry out sections 322(d) and 521A of title 38, United States Code, and hospital care and medical services authorized by section 1787 of title 38, United States Code; $497,468,000, which shall be in addition to funds that become available on October 1, 2020: Provided, That, of the amount provided in Public Law 116–94 that becomes available on October 1, 2020 under this heading and was made available until September 30, 2021, $5,594,318,000 is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985; and, in addition, $58,897,219,000, plus reimbursements, shall become available on October 1, 2021, and shall remain available until September 30, 2022: Provided further, That, of the amount made available on October 1, 2021, under this heading, $1,500,000,000 shall remain available until September 30, 2023: Provided further, That, notwithstanding any other provision of law, the Secretary of Veterans Affairs shall establish a priority for the provision of medical treatment for veterans who have service-connected disabilities, lower income, or have special needs: Provided further, That, notwithstanding any other provision of law, the Secretary of Veterans Affairs shall give priority funding for the provision of basic medical benefits to veterans in enrollment priority groups 1 through 6: Provided further, That, notwithstanding any other provision of law, the Secretary of Veterans Affairs may authorize the dispensing of prescription drugs from Veterans Health Administration facilities to enrolled veterans with privately written prescriptions based on requirements established by the Secretary: Provided further, That, the implementation of the program described in the previous proviso shall incur no additional cost to the Department of Veterans Affairs: Provided further, That, the Secretary of Veterans Affairs shall ensure that sufficient amounts appropriated under this heading for medical supplies and equipment are available for the acquisition of prosthetics designed specifically for female veterans.

MEDICAL COMMUNITY CARE

For necessary expenses for furnishing health care to individuals pursuant to chapter 17 of title 38, United States Code, at non-Department facilities, $1,380,800,000, which shall be in addition to funds that become available on October 1, 2020: Provided, That, of the amount provided in Public Law 116–94 that becomes available on October 1, 2020 under this heading and was made available until September 30, 2021, $3,847,180,000 is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985; and, in addition, $20,148,244,000, plus reimbursements, shall become available on October 1, 2021, and shall remain available until September 30, 2022: Provided further, That, of the amount made available on October 1, 2021, under this heading, $2,000,000,000 shall remain available until September 30, 2023.

MEDICAL SUPPORT AND COMPLIANCE

For necessary expenses in the administration of the medical, hospital, nursing home, domiciliary, construction, supply, and research activities, as authorized by law; administrative expenses in support of capital policy activities; and administrative and legal expenses of the Department for collecting and recovering amounts owed the Department as authorized under chapter 17 of title 38, United States Code, and the Federal Medical Care Recovery Act (42 U.S.C. 2651 et seq.), $279,880,000, which shall be in addition to funds that become available on October 1, 2020: Provided, That, of the amount provided in Public Law 116–94 that becomes available on October 1, 2020 under this heading and was made available until September 30, 2021, $886,235,000 is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985; and, in addition, $8,403,117,000, plus reimbursements, shall become available on October 1, 2021, and shall remain available until September 30, 2022: Provided further, That, of the amount made available on October 1, 2021, under this heading, $150,000,000 shall remain available until September 30, 2023.

MEDICAL FACILITIES

For necessary expenses for the maintenance and operation of hospitals, nursing homes, domiciliary facilities, and other necessary facilities of the Veterans Health Administration; for administrative expenses in support of planning, design, project management, real property acquisition and disposition, construction, and renovation of any facility under the jurisdiction or for the use of the Department; for oversight, engineering, and architectural activities not charged to project costs; for repairing, altering, improving, or providing facilities in the several hospitals and homes under the jurisdiction of the Department, not otherwise provided for, either by contract or by the hire of temporary employees and purchase of materials; for leases of facilities; and for laundry services; $170,120,000, which shall be in addition to funds that become available on October 1, 2020: Provided, That, of the amount provided in Public Law 116–94 that becomes available on October 1, 2020 under this heading and was made available until September 30, 2021, $441,385,000 is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985; and in addition, $6,734,680,000, plus reimbursements, shall become available on October 1, 2021, and shall remain available until September 30, 2022: Provided further, That, of the amount made available on October 1, 2021, under this heading, $250,000,000 shall remain available until September 30, 2023.

MEDICAL AND PROSTHETIC RESEARCH

For necessary expenses in carrying out programs of medical and prosthetic research and development as authorized by chapter 73 of title 38, United States Code, $840,000,000, plus reimbursements, shall remain available until September 30, 2022: Provided, That the Secretary of Veterans Affairs shall ensure that sufficient amounts appropriated under this heading are available for prosthetic research specifically for female veterans, and for toxic exposure research.

NATIONAL CEMETERY ADMINISTRATION

For necessary expenses of the National Cemetery Administration for operations and maintenance, not otherwise provided for, including uniforms or allowances therefor; cemeterial expenses as authorized by law; purchase of one

passenger motor vehicle for use in cemeterial operations; hire of passenger motor vehicles; and repair, alteration or improvement of facilities under the jurisdiction of the National Cemetery Administration, $349,000,000, of which not to exceed 10 percent shall remain available until September 30, 2022.

DEPARTMENTAL ADMINISTRATION

GENERAL ADMINISTRATION

(INCLUDING TRANSFER OF FUNDS)

For necessary operating expenses of the Department of Veterans Affairs, not otherwise provided for, including administrative expenses in support of Department-wide capital planning, management and policy activities, uniforms, or allowances therefor; not to exceed $25,000 for official reception and representation expenses; hire of passenger motor vehicles; and reimbursement of the General Services Administration for security guard services, $355,911,000, of which not to exceed 10 percent shall remain available until September 30, 2022: Provided, That funds provided under this heading may be transferred to ''General Operating Expenses, Veterans Benefits Administration''.

BOARD OF VETERANS APPEALS

For necessary operating expenses of the Board of Veterans Appeals, $198,000,000, of which not to exceed 10 percent shall remain available until September 30, 2022.

INFORMATION TECHNOLOGY SYSTEMS

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for information technology systems and telecommunications support, including developmental information systems and operational information systems; for pay and associated costs; and for the capital asset acquisition of information technology systems, including management and related contractual costs of said acquisitions, including contractual costs associated with operations authorized by section 3109 of title 5, United States Code, $4,912,000,000, plus reimbursements, of which $540,385,000 is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That $1,211,238,000 shall be for pay and associated costs, of which not to exceed 3 percent shall remain available until September 30, 2022: Provided further, That $3,205,216,000 shall be for operations and maintenance, of which not to exceed 5 percent shall remain available until September 30, 2022: Provided further, That $495,546,000 shall be for information technology systems development, and shall remain available until September 30, 2022: Provided further, That amounts made available for salaries and expenses, operations and maintenance, and information technology systems development may be transferred among the three subaccounts after the Secretary of Veterans Affairs requests from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued: Provided further, That amounts made available for the ''Information Technology Systems'' account for development may be transferred among projects or to newly defined projects: Provided further, That no project may be increased or decreased by more than $1,000,000 of cost prior to submitting a request to the Committees on Appropriations of both Houses of Congress to make the transfer and an approval is issued, or absent a response, a period of 30 days has elapsed: Provided further, That the funds made available under this heading for information technology systems development shall be for the projects, and in the amounts, specified under this heading in the report accompanying this Act.

VETERANS ELECTRONIC HEALTH RECORD

For activities related to implementation, preparation, development, interface, management, rollout, and maintenance of a Veterans Electronic Health Record system, including contractual costs associated with operations authorized by section 3109 of title 5, United States Code, and salaries and expenses of employees hired under titles 5 and 38, United States Code, $2,627,000,000, to remain available until September 30, 2023, of which $1,184,485,000 is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided, That the Secretary of Veterans Affairs shall submit to the Committees on Appropriations of both Houses of Congress quarterly reports detailing obligations, expenditures, and deployment implementation by facility: Provided further, That the funds provided in this account shall only be available to the Office of the Deputy Secretary, to be administered by that Office: Provided further, That none of the funds made available under this heading may be obligated in a manner inconsistent with deployment schedules provided to the Committees on Appropriations unless the Secretary of Veterans Affairs provides notification to the Committees on Appropriations of such change and an approval is issued.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General, to include information technology, in carrying out the provisions of the Inspector General Act of 1978 (5 U.S.C. App.), $228,000,000, of which not to exceed 10 percent shall remain available until September 30, 2022.

CONSTRUCTION, MAJOR PROJECTS

For constructing, altering, extending, and improving any of the facilities, including parking projects, under the jurisdiction or for the use of the Department of Veterans Affairs, or for any of the purposes set forth in sections 316, 2404, 2406 and chapter 81 of title 38, United States Code, not otherwise provided for, including planning, architectural and engineering services, construction management services, maintenance or guarantee period services costs associated with equipment guarantees provided under the project, services of claims analysts, offsite utility and storm drainage system construction costs, and site acquisition, where the estimated cost of a project is more than the amount set forth in section 8104(a)(3)(A) of title 38, United States Code, or where funds for a project were made available in a previous major project appropriation, $1,373,000,000, of which $980,638,000 shall remain available until September 30, 2025, and of which $392,362,000 shall remain available until expended, of which $237,198,000 shall be available for seismic improvement projects and seismic program management activities, including for projects that would otherwise be funded by the Construction, Minor Projects, Medical Facilities or National Cemetery Administration accounts: Provided, That except for advance planning activities, including needs assessments which may or may not lead to capital investments, and other capital asset management related activities, including portfolio development and management activities, and investment strategy studies funded through the advance planning fund and the planning and design activities funded through the design fund, including needs assessments which may or may not lead to capital investments, and funds provided for the purchase, security, and maintenance of land for the National Cemetery Administration through the land acquisition line item, none of the funds made available under this heading shall be used for any project that has not been notified to Congress through the budgetary process or that has not been approved by the Congress through statute, joint resolution, or in the explanatory statement accompanying such Act and presented to the President at the time of enrollment: Provided further, That such sums as may be necessary shall be available to reimburse the ''General Administration'' account for payment of salaries and expenses of all Office of Construction and Facilities Management employees to support the full range of capital infrastructure services provided, including minor construction and leasing services: Provided further, That funds made available under this heading for fiscal year 2021, for each approved project shall be obligated: (1) by the awarding of a construction documents contract by September 30, 2021; and (2) by the awarding of a construction contract by September 30, 2022: Provided further, That the Secretary of Veterans Affairs shall promptly submit to the Committees on Appropriations of both Houses of Congress a written report on any approved major construction project for which obligations are not incurred within the time limitations established above: Provided further, That notwithstanding the requirements of section 8104(a) of title 38, United States Code, amounts made available under this heading for seismic improvement projects and seismic program management activities shall be available for the completion of both new and existing seismic projects of the Department.

CONSTRUCTION, MINOR PROJECTS

For constructing, altering, extending, and improving any of the facilities, including parking projects, under the jurisdiction or for the use of the Department of Veterans Affairs, including planning and assessments of needs which may lead to capital investments, architectural and engineering services, maintenance or guarantee period services costs associated with equipment guarantees provided under the project, services of claims analysts, offsite utility and storm drainage system construction costs, and site acquisition, or for any of the purposes set forth in sections 316, 2404, 2406 and chapter 81 of title 38, United States Code, not otherwise provided for, where the estimated cost of a project is equal to or less than the amount set forth in section 8104(a)(3)(A) of title 38, United States Code, $400,000,000, to remain available until September 30, 2025, along with unobligated balances of previous ''Construction, Minor Projects'' appropriations which are hereby made available for any project where the estimated cost is equal to or less than the amount set forth in such section: Provided, That funds made available under this heading shall be for: (1) repairs to any of the nonmedical facilities under the jurisdiction or for the use of the Department which are necessary because of loss or damage caused by any natural disaster or catastrophe; and (2) temporary measures necessary to prevent or to minimize further loss by such causes.

GRANTS FOR CONSTRUCTION OF

STATE EXTENDED CARE FACILITIES

For grants to assist States to acquire or construct State nursing home and domiciliary facilities and to remodel, modify, or alter existing hospital, nursing home, and domiciliary facilities in State homes, for furnishing care to veterans as authorized by sections 8131 through 8137 of title 38, United States Code, $90,000,000, to remain available until expended.

GRANTS FOR CONSTRUCTION OF VETERANS

CEMETERIES

For grants to assist States and tribal organizations in establishing, expanding, or improving veterans cemeteries as authorized by section 2408 of title 38, United States Code, $45,000,000, to remain available until expended.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

SEC. 201. Any appropriation for fiscal year 2021 for ''Compensation and Pensions'', ''Readjustment Benefits'', and ''Veterans Insurance and Indemnities'' may be transferred as necessary to any other of the mentioned appropriations: Provided, That, before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and such Committees issue an approval, or absent a response, a period of 30 days has elapsed.

(INCLUDING TRANSFER OF FUNDS)

SEC. 202. Amounts made available for the Department of Veterans Affairs for fiscal year 2021, in this or any other Act, under the ''Medical Services'', ''Medical Community Care'', ''Medical Support and Compliance'', and ''Medical Facilities'' accounts may be transferred among the accounts: Provided, That any transfers among the ''Medical Services'', ''Medical Community Care'', and ''Medical Support and Compliance'' accounts of 1 percent or less of the total amount appropriated to the account in this or any other Act may take place subject to notification from the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress of the amount and purpose of the transfer: Provided further, That any transfers among the ''Medical Services'', ''Medical Community Care'', and ''Medical Support and Compliance'' accounts in excess of 1 percent, or exceeding the cumulative 1 percent for the fiscal year, may take place only after the Secretary requests from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued: Provided further, That any transfers to or from the ''Medical Facilities'' account may take place only after the Secretary requests from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued.

SEC. 203. Appropriations available in this title for salaries and expenses shall be available for services authorized by section 3109 of title 5, United States Code; hire of passenger motor vehicles; lease of a facility or land or both; and uniforms or allowances therefore, as authorized by sections 5901 through 5902 of title 5, United States Code.

SEC. 204. No appropriations in this title (except the appropriations for ''Construction, Major Projects'', and ''Construction, Minor Projects'') shall be available for the purchase of any site for or toward the construction of any new hospital or home.

SEC. 205. No appropriations in this title shall be available for hospitalization or examination of any persons (except beneficiaries entitled to such hospitalization or examination under the laws providing such benefits to veterans, and persons receiving such treatment under sections 7901 through 7904 of title 5, United States Code, or the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.)), unless reimbursement of the cost of such hospitalization or examination is made to the ''Medical Services'' account at such rates as may be fixed by the Secretary of Veterans Affairs.

SEC. 206. Appropriations available in this title for ''Compensation and Pensions'', ''Readjustment Benefits'', and ''Veterans Insurance and Indemnities'' shall be available for payment of prior year accrued obligations required to be recorded by law against the corresponding prior year accounts within the last quarter of fiscal year 2020.

SEC. 207. Appropriations available in this title shall be available to pay prior year obligations of corresponding prior year appropriations accounts resulting from sections 3328(a), 3334, and 3712(a) of title 31, United States Code, except that if such obligations are from trust fund accounts they shall be payable only from ''Compensation and Pensions''.

(INCLUDING TRANSFER OF FUNDS)

SEC. 208. Notwithstanding any other provision of law, during fiscal year 2021, the Secretary of Veterans Affairs shall, from the National Service Life Insurance Fund under section 1920 of title 38, United States Code, the Veterans' Special Life Insurance Fund under section 1923 of title 38, United States Code, and the United States Government Life Insurance Fund under section 1955 of title 38, United States Code, reimburse the ''General Operating Expenses, Veterans Benefits Administration'' and ''Information Technology Systems'' accounts for the cost of administration of the insurance programs financed through those accounts: Provided, That reimbursement shall be made only from the surplus earnings accumulated in such an insurance program during fiscal year 2021 that are available for dividends in that program after claims have been paid and actuarially determined reserves have been set aside: Provided further, That if the cost of administration of such an insurance program exceeds the amount of surplus earnings accumulated in that program, reimbursement shall be made only to the extent of such surplus earnings: Provided further, That the Secretary shall determine the cost of administration for fiscal year 2021 which is properly allocable to the provision of each such insurance program and to the provision of any total disability income insurance included in that insurance program.

SEC. 209. Amounts deducted from enhanced-use lease proceeds to reimburse an account for expenses incurred by that account during a prior fiscal year for providing enhanced-use lease services, may be obligated during the fiscal year in which the proceeds are received.

(INCLUDING TRANSFER OF FUNDS)

SEC. 210. Funds available in this title or funds for salaries and other administrative expenses shall also be available to reimburse the Office of Resolution Management, the Office of Employment Discrimination Complaint Adjudication, and the Office of Diversity and Inclusion for all services provided at rates which will recover actual costs but not to exceed $60,096,000 for the Office of Resolution Management, $6,100,000 for the Office of Employment Discrimination Complaint Adjudication, and $5,294,000 for the Office of Diversity and Inclusion: Provided, That payments may be made in advance for services to be furnished based on estimated costs: Provided further, That amounts received shall be credited to the ''General Administration'' and ''Information Technology Systems'' accounts for use by the office that provided the service.

SEC. 211. No funds of the Department of Veterans Affairs shall be available for hospital care, nursing home care, or medical services provided to any person under chapter 17 of title 38, United States Code, for a non-service-connected disability described in section 1729(a)(2) of such title, unless that person has disclosed to the Secretary of Veterans Affairs, in such form as the Secretary may require, current, accurate third-party reimbursement information for purposes of section 1729 of such title: Provided, That the Secretary may recover, in the same manner as any other debt due the United States, the reasonable charges for such care or services from any person who does not make such disclosure as required: Provided further, That any amounts so recovered for care or services provided in a prior fiscal year may be obligated by the Secretary during the fiscal year in which amounts are received.

(INCLUDING TRANSFER OF FUNDS)

SEC. 212. Notwithstanding any other provision of law, proceeds or revenues derived from enhanced-use leasing activities (including disposal) may be deposited into the ''Construction, Major Projects'' and ''Construction, Minor Projects'' accounts and be used for construction (including site acquisition and disposition), alterations, and improvements of any medical facility under the jurisdiction or for the use of the Department of Veterans Affairs. Such sums as realized are in addition to the amount provided for in ''Construction, Major Projects'' and ''Construction, Minor Projects''.

SEC. 213. Amounts made available under ''Medical Services'' are available—

(1) for furnishing recreational facilities, supplies, and equipment; and

(2) for funeral expenses, burial expenses, and other expenses incidental to funerals and burials for beneficiaries receiving care in the Department.

(INCLUDING TRANSFER OF FUNDS)

SEC. 214. Such sums as may be deposited to the Medical Care Collections Fund pursuant to section 1729A of title 38, United States Code, may be transferred to the ''Medical Services'' and ''Medical Community Care'' accounts to remain available until expended for the purposes of these accounts.

SEC. 215. The Secretary of Veterans Affairs may enter into agreements with Federally Qualified Health Centers in the State of Alaska and Indian tribes and tribal organizations which are party to the Alaska Native Health Compact with the Indian Health Service, to provide healthcare, including behavioral health and dental care, to veterans in rural Alaska. The Secretary shall require participating veterans and facilities to comply with all appropriate rules and regulations, as established by the Secretary. The term ''rural Alaska'' shall mean those lands which are not within the boundaries of the municipality of Anchorage or the Fairbanks North Star Borough.

(INCLUDING TRANSFER OF FUNDS)

SEC. 216. Such sums as may be deposited to the Department of Veterans Affairs Capital Asset Fund pursuant to section 8118 of title 38, United States Code, may be transferred to the ''Construction, Major Projects'' and ''Construction, Minor Projects'' accounts, to remain available until expended for the purposes of these accounts.

SEC. 217. Not later than 30 days after the end of each fiscal quarter, the Secretary of Veterans Affairs shall submit to the Committees on Appropriations of both Houses of Congress a report on the financial status of the Department of Veterans Affairs for the preceding quarter: Provided, That, at a minimum, the report shall include the direction contained in the paragraph entitled ''Quarterly reporting'', under the heading ''General Administration'' in the joint explanatory statement accompanying Public Law 114–223.

(INCLUDING TRANSFER OF FUNDS)

SEC. 218. Amounts made available under the ''Medical Services'', ''Medical Community Care'', ''Medical Support and Compliance'', ''Medical Facilities'', ''General Operating Expenses, Veterans Benefits Administration'', ''Board of Veterans Appeals'', ''General Administration'', and ''National Cemetery Administration'' accounts for fiscal year 2021 may be transferred to or from the ''Information Technology Systems'' account: Provided, That such transfers may not result in a more than 10 percent aggregate increase in the total amount made available by this Act for the ''Information Technology Systems'' account: Provided further, That, before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and an approval is issued.

(INCLUDING TRANSFER OF FUNDS)

SEC. 219. Of the amounts appropriated to the Department of Veterans Affairs for fiscal year 2021 for ''Medical Services'', ''Medical Community Care'', ''Medical Support and Compliance'', ''Medical Facilities'', ''Construction, Minor Projects'', and ''Information Technology Systems'', up to $322,932,000, plus reimbursements, may be transferred to the Joint Department of Defense—Department of Veterans Affairs Medical Facility Demonstration Fund, established by section 1704 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571) and may be used for operation of the facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500): Provided, That additional funds may be transferred from accounts designated in this section to the Joint Department of Defense—Department of Veterans Affairs Medical Facility Demonstration

Fund upon written notification by the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress: Provided further, That section 219 of title II of division F of Public Law 116–94 is repealed.

(INCLUDING TRANSFER OF FUNDS)

SEC. 220. Of the amounts appropriated to the Department of Veterans Affairs which become available on October 1, 2021, for ''Medical Services'', ''Medical Community Care'', ''Medical Support and Compliance'', and ''Medical Facilities'', up to $327,126,000, plus reimbursements, may be transferred to the Joint Department of Defense—Department of Veterans Affairs Medical Facility Demonstration Fund, established by section 1704 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571) and may be used for operation of the facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500): Provided, That additional funds may be transferred from accounts designated in this section to the Joint Department of Defense—Department of Veterans Affairs Medical Facility Demonstration Fund upon written notification by the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress.

(INCLUDING TRANSFER OF FUNDS)

SEC. 221. Such sums as may be deposited to the Medical Care Collections Fund pursuant to section 1729A of title 38, United States Code, for healthcare provided at facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500) shall also be available: (1) for transfer to the Joint Department of Defense—Department of Veterans Affairs Medical Facility Demonstration Fund, established by section 1704 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571); and (2) for operations of the facilities designated as combined Federal medical facilities as described by section 706 of the Duncan Hunter National Defense Authorization Act for Fiscal Year 2009 (Public Law 110–417; 122 Stat. 4500): Provided, That, notwithstanding section 1704(b)(3) of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 2573), amounts transferred to the Joint Department of Defense—Department of Veterans Affairs Medical Facility Demonstration Fund shall remain available until expended.

(INCLUDING TRANSFER OF FUNDS)

SEC. 222. Of the amounts available in this title for ''Medical Services'', ''Medical Community Care'', ''Medical Support and Compliance'', and ''Medical Facilities'', a minimum of $15,000,000 shall be transferred to the DOD–VA Health Care Sharing Incentive Fund, as authorized by section 8111(d) of title 38, United States Code, to remain available until expended, for any purpose authorized by section 8111 of title 38, United States Code.

SEC. 223. The Secretary of Veterans Affairs shall notify the Committees on Appropriations of both Houses of Congress of all bid savings in a major construction project that total at least $5,000,000, or 5 percent of the programmed amount of the project, whichever is less: Provided, That such notification shall occur within 14 days of a contract identifying the programmed amount: Provided further, That the Secretary shall notify the Committees on Appropriations of both Houses of Congress 14 days prior to the obligation of such bid savings and shall describe the anticipated use of such savings.

SEC. 224. None of the funds made available for ''Construction, Major Projects'' may be used for a project in excess of the scope specified for that project in the original justification data provided to the Congress as part of the request for appropriations unless the Secretary of Veterans Affairs receives approval from the Committees on Appropriations of both Houses of Congress.

SEC. 225. Not later than 30 days after the end of each fiscal quarter, the Secretary of Veterans Affairs shall submit to the Committees on Appropriations of both Houses of Congress a quarterly report containing performance measures and data from each Veterans Benefits Administration Regional Office: Provided, That, at a minimum, the report shall include the direction contained in the section entitled ''Disability claims backlog'', under the heading ''General Operating Expenses, Veterans Benefits Administration'' in the joint explanatory statement accompanying Public Law 114–223: Provided further, That the report shall also include information on the number of appeals pending at the Veterans Benefits Administration as well as the Board of Veterans Appeals on a quarterly basis.

SEC. 226. The Secretary of Veterans Affairs shall provide written notification to the Committees on Appropriations of both Houses of Congress 15 days prior to organizational changes which result in the transfer of 25 or more full-time equivalents from one organizational unit of the Department of Veterans Affairs to another.

SEC. 227. The Secretary of Veterans Affairs shall provide on a quarterly basis to the Committees on Appropriations of both Houses of Congress notification of any single national outreach and awareness marketing campaign in which obligations exceed $1,000,000.

(INCLUDING TRANSFER OF FUNDS)

SEC. 228. The Secretary of Veterans Affairs, upon determination that such action is necessary to address needs of the Veterans Health Administration, may transfer to the ''Medical Services'' account any discretionary appropriations made available for fiscal year 2021 in this title (except appropriations made to the ''General Operating Expenses, Veterans Benefits Administration'' account) or any discretionary unobligated balances within the Department of Veterans Affairs, including those appropriated for fiscal year 2021, that were provided in advance by appropriations Acts: Provided, That transfers shall be made only with the approval of the Office of Management and Budget: Provided further, That the transfer authority provided in this section is in addition to any other transfer authority provided by law: Provided further, That no amounts may be transferred from amounts that were designated by Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That such authority to transfer may not be used unless for higher priority items, based on emergent healthcare requirements, than those for which originally appropriated and in no case where the item for which funds are requested has been denied by Congress: Provided further, That, upon determination that all or part of the funds transferred from an appropriation are not necessary, such amounts may be transferred back to that appropriation and shall be available for the same purposes as originally appropriated: Provided further, That before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and receive approval of that request.

(INCLUDING TRANSFER OF FUNDS)

SEC. 229. Amounts made available for the Department of Veterans Affairs for fiscal year 2021, under the ''Board of Veterans Appeals'' and the ''General Operating Expenses, Veterans Benefits Administration'' accounts may be transferred between such accounts: Provided, That before a transfer may take place, the Secretary of Veterans Affairs shall request from the Committees on Appropriations of both Houses of Congress the authority to make the transfer and receive approval of that request.

SEC. 230. The Secretary of Veterans Affairs may not reprogram funds among major construction projects or programs if such instance of reprogramming will exceed $7,000,000, unless such reprogramming is approved by the Committees on Appropriations of both Houses of Congress.

SEC. 231. (a) The Secretary of Veterans Affairs shall ensure that the toll-free suicide hotline under section 1720F(h) of title 38, United States Code—

(1) provides to individuals who contact the hotline immediate assistance from a trained professional; and

(2) adheres to all requirements of the American Association of Suicidology.

(b)(1) None of the funds made available by this Act may be used to enforce or otherwise carry out any Executive action that prohibits the Secretary of Veterans Affairs from appointing an individual to occupy a vacant civil service position, or establishing a new civil service position, at the Department of Veterans Affairs with respect to such a position relating to the hotline specified in subsection (a).

(2) In this subsection—

(A) the term ''civil service'' has the meaning given such term in section 2101(1) of title 5, United States Code; and

(B) the term ''Executive action'' includes—

(i) any Executive order, presidential memorandum, or other action by the President; and

(ii) any agency policy, order, or other directive.

(c)(1) The Secretary of Veterans Affairs shall conduct a study on the effectiveness of the hotline specified in subsection (a) during the five-year period beginning on January 1, 2016, based on an analysis of national suicide data and data collected from such hotline.

(2) At a minimum, the study required by paragraph (1) shall—

(A) determine the number of veterans who contact the hotline specified in subsection (a) and who receive follow up services from the hotline or mental health services from the Department of Veterans Affairs thereafter;

(B) determine the number of veterans who contact the hotline who are not referred to, or do not continue receiving, mental health care who commit suicide; and

(C) determine the number of veterans described in subparagraph (A) who commit or attempt suicide.

SEC. 232. None of the funds in this or any other Act may be used to close Department of Veterans Affairs (VA) hospitals, domiciliaries, or clinics, conduct an environmental assessment, or to diminish healthcare services at existing Veterans Health Administration medical facilities located in Veterans Integrated Service Network 23 as part of a planned realignment of VA services until the Secretary provides to the Committees on Appropriations of both Houses of Congress a report including the following elements—

(1) a national realignment strategy that includes a detailed description of realignment plans within each Veterans Integrated Services Network (VISN), including an updated Long Range Capital Plan to implement realignment requirements;

(2) an explanation of the process by which those plans were developed and coordinated within each VISN;

(3) a cost versus benefit analysis of each planned realignment, including the cost of replacing Veterans Health Administration services with contract care or other outsourced services;

(4) an analysis of how any such planned realignment of services will impact access to care for veterans living in rural or highly rural areas, including travel distances and transportation costs to access a VA medical facility and availability of local specialty and primary care;

(5) an inventory of VA buildings with historic designation and the methodology used to determine the buildings' condition and utilization;

(6) a description of how any realignment will be consistent with requirements under the National Historic Preservation Act; and

(7) consideration given for reuse of historic buildings within newly identified realignment requirements: Provided, That, this provision shall not apply to capital projects in VISN 23, or any other VISN, which have been authorized or approved by Congress.

SEC. 233. Effective during the period beginning on October 1, 2018 and ending on January 1, 2024, none of the funds made available to the Secretary of Veterans Affairs by this or any other Act may be obligated or expended in contravention of the ''Veterans Health Administration Clinical Preventive Services Guidance Statement on the Veterans Health Administration's Screening for Breast Cancer Guidance'' published on May 10, 2017, as issued by the Veterans Health Administration National Center for Health Promotion and Disease Prevention.

SEC. 234. (a) Chapter 17 of title 38, United States Code, is amended by inserting after section 1720I the following new section:

''§ 1720J. Provision of assisted reproductive technology or adoption reimbursements for certain disabled veterans

''(a) PROVISION OF SERVICES.—Subject to the availability of appropriations, the Secretary may provide—

''(1) fertility counseling and treatment using assisted reproductive technology to a covered veteran or the spouse of a covered veteran; or

''(2) adoption reimbursement to a covered veteran.

''(b) LIMITATIONS.—Amounts made available for the purposes specified in subsection (a) are subject to the requirements for funds contained in section 508 of division H of the Consolidated Appropriations Act, 2017 (Public Law 115–31).

''(c) DEFINITIONS.—In this section:

''(1) The term 'adoption reimbursement' means reimbursement for the adoption-related expenses for an adoption that is finalized after the date of the enactment of this section under the same terms as apply under the adoption reimbursement program of the Department of Defense, as authorized in Department of Defense Instruction 1341.09, including the reimbursement limits and requirements set forth in such instruction, as in effect on the date of the enactment of this section.

''(2) The term 'assisted reproductive technology' means benefits relating to reproductive assistance provided to a member of the Armed Forces who incurs a serious injury or illness on active duty pursuant to section 1074(c)(4)(A) of title 10, as described in the memorandum on the subject of 'Policy for Assisted Reproductive Services for the Benefit of Seriously or Severely Ill/Injured (Category II or III) Active Duty Service Members' issued by the Assistant Secretary of Defense for Health Affairs on April 3, 2012, and the guidance issued to implement such policy, as in effect on the date of the enactment of this section, including any limitations on the amount of such benefits available to such a member, except that—

''(A) the periods regarding embryo cryopreservation and storage set forth in part III(G) and in part IV(H) of the first part IV of such memorandum shall not apply; and

''(B) such term includes embryo cryopreservation and storage without limitation on the duration of such cryopreservation and storage.

''(3) The term 'covered veteran' means a veteran who has a service-connected disability that results in the inability of the veteran to procreate without the use of fertility treatment.''.

(b) The table of sections at the beginning of such chapter is amended by inserting after the item relating to section 1720I the following new item:

''1720J. Provision of assisted reproductive technology or adoption reimbursements for certain disabled veterans.''.

SEC. 235. None of the funds appropriated or otherwise made available by this Act or any other Act for the Department of Veterans Affairs may be used in a manner that is inconsistent with: (1) section 842 of the Transportation, Treasury, Housing and Urban Development, the Judiciary, the District of Columbia, and Independent Agencies Appropriations Act, 2006 (Public Law 109–115; 119 Stat. 2506); or (2) section 8110(a)(5) of title 38, United States Code.

SEC. 236. Section 842 of Public Law 109–115 shall not apply to conversion of an activity or function of the Veterans Health Administration, Veterans Benefits Administration, or National Cemetery Administration to contractor performance by a business concern that is at least 51 percent owned by one or more Indian tribes as defined in section 5304(e) of title 25, United States Code, or one or more Native Hawaiian Organizations as defined in section 637(a)(15) of title 15, United States Code.

SEC. 237. (a) Except as provided in subsection (b), the Secretary of Veterans Affairs, in consultation with the Secretary of Defense and the Secretary of Labor, shall discontinue using Social Security account numbers to identify individuals in all information systems of the Department of Veterans Affairs as follows:

(1) For all veterans submitting to the Secretary of Veterans Affairs new claims for benefits under laws administered by the Secretary, not later than 5 years after the date of the enactment of this Act.

(2) For all individuals not described in paragraph (1), not later than 8 years after the date of the enactment of this Act.

(b) The Secretary of Veterans Affairs may use a Social Security account number to identify an individual in an information system of the Department of Veterans Affairs if and only if the use of such number is required to obtain information the Secretary requires from an information system that is not under the jurisdiction of the Secretary.

SEC. 238. For funds provided to the Department of Veterans Affairs for each of fiscal year 2021 and 2022 for ''Medical Services'', section 239 of Division A of Public Law 114–223 shall apply.

SEC. 239. None of the funds appropriated in this or prior appropriations Acts or otherwise made available to the Department of Veterans Affairs may be used to transfer any amounts from the Filipino Veterans Equity Compensation Fund to any other account within the Department of Veterans Affairs.

SEC. 240. Of the funds provided to the Department of Veterans Affairs for each of fiscal year 2021 and fiscal year 2022 for ''Medical Services'', funds may be used in each year to carry out and expand the child care program authorized by section 205 of Public Law 111–163, notwithstanding subsection (e) of such section.

SEC. 241. None of the funds appropriated or otherwise made available in this title may be used by the Secretary of Veterans Affairs to enter into an agreement related to resolving a dispute or claim with an individual that would restrict in any way the individual from speaking to members of Congress or their staff on any topic not otherwise prohibited from disclosure by Federal law or required by Executive Order to be kept secret in the interest of national defense or the conduct of foreign affairs.

SEC. 242. For funds provided to the Department of Veterans Affairs for each of fiscal year 2021 and 2022, section 258 of Division A of Public Law 114–223 shall apply.

SEC. 243. (a) None of the funds appropriated or otherwise made available by this Act may be used to deny an Inspector General funded under this Act timely access to any records, documents, or other materials available to the department or agency of the United States Government over which such Inspector General has responsibilities under the Inspector General Act of 1978 (5 U.S.C. App.), or to prevent or impede the access of such Inspector General to such records, documents, or other materials, under any provision of law, except a provision of law that expressly refers to such Inspector General and expressly limits the right of access of such Inspector General.

(b) A department or agency covered by this section shall provide its Inspector General access to all records, documents, and other materials in a timely manner.

(c) Each Inspector General covered by this section shall ensure compliance with statutory limitations on disclosure relevant to the information provided by the department or agency over which that Inspector General has responsibilities under the Inspector General Act of 1978 (5 U.S.C. App.).

(d) Each Inspector General covered by this section shall report to the Committee on Appropriations of the Senate and the Committee on Appropriations of the House of Representatives within 5 calendar days of any failure by any department or agency covered by this section to comply with this section.

SEC. 244. None of the funds made available in this Act may be used in a manner that would increase wait times for veterans who seek care at medical facilities of the Department of Veterans Affairs.

SEC. 245. None of the funds appropriated or otherwise made available by this Act to the Veterans Health Administration may be used in fiscal year 2021 to convert any program which received specific purpose funds in fiscal year 2020 to a general purpose funded program unless the Secretary of Veterans Affairs submits written notification of any such proposal to the Committees on Appropriations of both Houses of Congress at least thirty days prior to any such action and an approval is issued by the Committees.

SEC. 246. (a) Except as provided by subsection (b), none of the funds made available by this Act may be used by the Secretary of Veterans Affairs to purchase, breed, transport, house, feed, maintain, dispose of, or experiment on, dogs as part of the conduct of any study including an assignment of pain category D or E, as defined by the Pain and Distress Categories of the Department of Agriculture (or such successor categories developed pursuant to section 13 of the Animal Welfare Act (7 U.S.C. 2143)).

(b) Subsection (a) shall not apply to training programs or studies of service dogs described in section 1714 of title 38, United States Code, or section 17.148 of title 38, Code of Federal Regulations.

SEC. 247. None of the funds made available by this Act may be used by the Secretary of Veterans Affairs to close the community based outpatient clinic located in Bainbridge, New York, until the Secretary of Veterans Affairs submits to the Committees on Appropriations of the House of Representatives and the Senate a market area assessment.

SEC. 248. (a) Not later than 180 days after the date of the enactment of this Act, and not less frequently than once every five-year period thereafter, the Secretary of Veterans Affairs shall update the handbook of the Department of Veterans Affairs titled ''Planning and Activating Community Based Outpatient Clinics'', or a successor handbook, to reflect current policies, best practices, and clarify the roles and responsibilities of the personnel of the Department involved in the leasing projects of the Department.

(b) The Secretary shall ensure that the handbook specified in subsection (a) defines ''community based outpatient clinic'' in the same manner as such term is defined in the Veterans Health Administration Site Tracking database (commonly known as ''VAST'') as of the date of the enactment of this Act.

(c) The Secretary shall ensure that the Veterans Health Administration incorporates the best practices contained in the handbook specified in subsection (a) in conducting oversight of the medical centers of the Department of Veterans Affairs and the Veterans Integrated Service Network.

(d) Not later than 180 days after the date of the enactment of this Act, the Secretary shall provide guidance and training to employees of the Veterans Health Administration for the use of the handbook specified in subsection (a). The Secretary shall update such guidance and training together with each update of such handbook.

SEC. 249. Amounts made available for the ''Veterans Health Administration, Medical Community Care'' account in this or any other Act for fiscal years 2021 and 2022 may be used for expenses that would have otherwise been payable from the Veterans Choice Fund established by section 802 of the Veterans Access, Choice, and Accountability Act, as amended (38 U.S.C. 1701 note).

SEC. 250. Obligations and expenditures applicable to the ''Medical Services'' account in fiscal years 2017 through 2019 for aid to state homes (as authorized by section 1741 of title 38, United States Code) shall remain in the ''Medical Community Care'' account for such fiscal years.

SEC. 251. Of the total amounts made available on October 1, 2020, under the headings ''Department of Veterans Affairs—Veterans Health Administration—Medical Services'', ''Department of Veterans Affairs—Veterans Health Administration—Medical Community Care'', ''Department of Veterans Affairs—Veterans Health Administration—Medical Support and Compliance'', and ''Department of Veterans Affairs—Veterans Health Administration—Medical Facilities'', $660,691,000 shall be made available for gender-specific care for women.

TITLE III

RELATED AGENCIES

AMERICAN BATTLE MONUMENTS COMMISSION

SALARIES AND EXPENSES

For necessary expenses, not otherwise provided for, of the American Battle Monuments Commission, including the acquisition of land or interest in land in foreign countries; purchases and repair of uniforms for caretakers of national cemeteries and monuments outside of the United States and its territories and possessions; rent of office and garage space in foreign countries; purchase (one-for-one replacement basis only) and hire of passenger motor vehicles; not to exceed $15,000 for official reception and representation expenses; and insurance of official motor vehicles in foreign countries, when required by law of such countries, $84,100,000, to remain available until expended.

FOREIGN CURRENCY FLUCTUATIONS ACCOUNT

For necessary expenses, not otherwise provided for, of the American Battle Monuments Commission, such sums as may be necessary, to remain available until expended, for purposes authorized by section 2109 of title 36, United States Code.

UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

SALARIES AND EXPENSES

For necessary expenses for the operation of the United States Court of Appeals for Veterans Claims as authorized by sections 7251 through 7298 of title 38, United States Code, $37,100,000: Provided, That $3,286,509 shall be available for the purpose of providing financial assistance as described and in accordance with the process and reporting procedures set forth under this heading in Public Law 102–229.

DEPARTMENT OF DEFENSE—CIVIL

CEMETERIAL EXPENSES, ARMY

SALARIES AND EXPENSES

For necessary expenses for maintenance, operation, and improvement of Arlington National Cemetery and Soldiers' and Airmen's Home National Cemetery, including the purchase or lease of passenger motor vehicles for replacement on a one-for-one basis only, and not to exceed $2,000 for official reception and representation expenses, $81,815,000, of which not to exceed $15,000,000 shall remain available until September 30, 2023. In addition, such sums as may be necessary for parking maintenance, repairs and replacement, to be derived from the ''Lease of Department of Defense Real Property for Defense Agencies'' account.

ARMED FORCES RETIREMENT HOME

TRUST FUND

For expenses necessary for the Armed Forces Retirement Home to operate and maintain the Armed Forces Retirement Home—Washington, District of Columbia, and the Armed Forces Retirement Home—Gulfport, Mississippi, to be paid from funds available in the Armed Forces Retirement Home Trust Fund, $73,100,000, to remain available until September 30, 2022; of which $8,800,000 shall remain available until expended for construction and renovation of the physical plants at the Armed Forces Retirement Home—Washington, District of Columbia, and the Armed Forces Retirement Home—Gulfport, Mississippi: Provided, That of the amounts made available under this heading from funds available in the Armed Forces Retirement Home Trust Fund, $22,000,000 shall be paid from the general fund of the Treasury to the Trust Fund.

ADMINISTRATIVE PROVISION

SEC. 301. Amounts deposited into the special account established under 10 U.S.C. 7727 are appropriated and shall be available until expended to support activities at the Army National Military Cemeteries.

TITLE IV

OVERSEAS CONTINGENCY OPERATIONS

DEPARTMENT OF DEFENSE

MILITARY CONSTRUCTION, ARMY

For an additional amount for ''Military Construction, Army'', $16,111,000, to remain available until September 30, 2025, for projects outside of the United States: Provided, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MILITARY CONSTRUCTION, NAVY AND MARINE CORPS

For an additional amount for ''Military Construction, Navy and Marine Corps'', $70,020,000, to remain available until September 30, 2025, for projects outside of the United States: Provided, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MILITARY CONSTRUCTION, AIR FORCE

For an additional amount for ''Military Construction, Air Force'' $263,869,000, to remain available until September 30, 2025, for projects outside of the United States: Provided, That such amount is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISION

SEC. 401. None of the funds appropriated for military construction projects outside the United States under this title may be obligated or expended for planning and design of any project associated with the European Deterrence Initiative until the Secretary of Defense develops and submits to the congressional defense committees, in a classified and unclassified format, a list of all of the military construction projects associated with the European Deterrence Initiative which the Secretary anticipates will be carried out during each of the fiscal years 2022 through 2026.

TITLE V

GENERAL PROVISIONS

SEC. 501. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 502. None of the funds made available in this Act may be used for any program, project, or activity, when it is made known to the Federal entity or official to which the funds are made available that the program, project, or activity is not in compliance with any Federal law relating to risk assessment, the protection of private property rights, or unfunded mandates.

SEC. 503. All departments and agencies funded under this Act are encouraged, within the limits of the existing statutory authorities and funding, to expand their use of ''E–Commerce'' technologies and procedures in the conduct of their business practices and public service activities.

SEC. 504. Unless stated otherwise, all reports and notifications required by this Act shall be submitted to the Subcommittee on Military Construction and Veterans Affairs, and Related Agencies of the Committee on Appropriations of the House of Representatives and the Subcommittee on Military Construction and Veterans Affairs, and Related Agencies of the Committee on Appropriations of the Senate.

SEC. 505. None of the funds made available in this Act may be transferred to any department, agency, or instrumentality of the United States Government except pursuant to a transfer made by, or transfer authority provided in, this or any other appropriations Act.

SEC. 506. None of the funds made available in this Act may be used for a project or program named for an individual serving as a Member, Delegate, or Resident Commissioner of the United States House of Representatives.

SEC. 507. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public Web site of that agency any report required to be submitted by the Congress in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises national security; or

(2) the report contains confidential or proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

SEC. 508. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

SEC. 509. None of the funds made available in this Act may be used by an agency of the executive branch to pay for first-class travel by an employee of the agency in contravention of sections 301–10.122 through 301–10.124 of title 41, Code of Federal Regulations.

SEC. 510. None of the funds made available in this Act may be used to execute a contract for goods or services, including construction services, where the contractor has not complied with Executive Order No. 12989.

SEC. 511. None of the funds made available by this Act may be used by the Department of Defense or the Department of Veterans Affairs to lease or purchase new light duty vehicles for any executive fleet, or for an agency's fleet inventory, except in accordance with Presidential Memorandum—Federal Fleet Performance, dated May 24, 2011.

SEC. 512. None of the funds made available by this Act may be used in contravention of section 101(e)(8) of title 10, United States Code.

SEC. 513. Notwithstanding any other provision of law, none of the funds appropriated in this or any other Act for a military construction

project, as defined by section 2801 of title 10, United States Code, for any of fiscal years 2016 through 2020 or for fiscal year 2021 may be obligated, expended, or used to design, construct, or carry out—

(1) a project to construct a wall, barrier, fence, or road along the Southern border of the United States;

(2) a road to provide access to a wall, barrier, or fence constructed along the Southern border of the United States; or

(3) any military construction project for which funds were appropriated for any of fiscal years 2016 through 2020, but that were rescinded or postponed by reason of the declaration of a national emergency on February 15, 2019.

This Act may be cited as the ''Military Construction, Veterans Affairs, and Related Agencies Appropriations Act, 2021''.

The SPEAKER pro tempore. The bill, as amended, is debatable for 1 hour equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations.

The gentlewoman from New York (Mrs. LOWEY) and the gentlewoman from Texas (Ms. GRANGER) each will control 30 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Mrs. LOWEY. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Mrs. LOWEY. Mr. Speaker, I yield myself such time as I may consume.

This minibus combines four bills: State and Foreign Operations; Agriculture, Rural Development, FDA; Interior, Environment; and Military Construction and Veterans Affairs.

The package is the product of months of thoughtful deliberation and input from Members on both sides of the aisle. I am proud of the work we have completed under the incredibly difficult circumstances of the COVID–19 pandemic.

This appropriations package addresses urgent national priorities. I would like to highlight a few of our key successes that our cardinals have secured: strong funding and protections to help put nutritious food on people's tables during this time of economic crisis and rising food insecurity; increased investments in broadband to connect more Americans to work, school, healthcare, and family; robust funding to protect the environment and build resilience to climate change; and $12.5 billion in emergency funding to address sharply rising veterans' healthcare costs.

I am proud that the package also includes strong emergency appropriations to confront coronavirus and support economic recovery, with investments in critical infrastructure and coronavirus preparedness, response, and relief domestically and globally.

Turning to the State and Foreign Operations division, it is bittersweet to bring my last State and Foreign Operations bill to the floor before I retire. As subcommittee chairwoman or ranking member for two of my three decades here, I am honored to have been entrusted with this responsibility on this bill that has been a key component of United States foreign policy since World War II.

The work of the subcommittee has been marked historically by bipartisanship, and I thank former Chair and Ranking Member HAL ROGERS and former Chair and Ranking Member KAY GRANGER for their partnership to advance this vital legislation each year.

Pivotal moments, from September 11th to the devastation the coronavirus pandemic continues to cause, underscore the significant value of foreign aid. It promotes freedom and democracy and supports global development and security, all of which increase stability and mitigate threats to Americans here at home.

Indeed, our own children and grandchildren are more secure as a result of the United States' foreign assistance that has made the world better, safer, and healthier for generations, efforts that are continued in the fiscal year 2021 State and Foreign Operations bill we consider today.

With a total of $65.87 billion, it rejects the President's go-it-alone approach to foreign policy. The bill includes $47.85 billion in base funding, $8 billion in Overseas Contingency Operations funds for base requirements that otherwise would not be funded by the President's budget request, and $10.018 billion in urgently needed coronavirus emergency funding to mitigate COVID–19's impact on our health and economy.

To ensure this pandemic does not derail decades of development gains, this bill provides $3.8 billion in base funding for development assistance. This includes $975 million to increase access to basic education, of which not less than $150 million shall be spent on girls' education in areas of conflict.

It effectively addresses food insecurity, poor water and sanitation services, trafficking in persons, and other long-term development objectives.

The bill's holistic approach to global health seeks to bolster low- and middle-income countries' management of health threats and communicable diseases.

It would sustain progress against HIV/AIDS, tuberculosis, and malaria with $5.93 billion for global HIV/AIDS activities, including $1.56 billion for the Global Fund, for which it clarifies the United States' commitment to our 33 percent share.

It also reverses the President's global gag rule, stops counterproductive restrictions on family planning and health funding, and includes $805.5 million for family planning services, of which $55.5 million is for the United Nations Population Fund.

The bill provides restoration of funds for the World Health Organization to ensure American influence in an organization critical to the development and distribution of vaccines.

□ 1415

To address policies of the administration that harm our neighbors and drive migration, the bill amends prior-year appropriations acts to significantly limit the President's ability to redirect assistance outside of the region.

It also maintains robust funding for counternarcotics and law enforcement efforts in Colombia, Mexico, Central America, and the Caribbean; includes $68 million to address international organized crime; and maintains funding to combat cybercrime.

The bill provides $9 billion for security assistance to key allies and partners with support for programs in Eastern Europe, Jordan, and Tunisia. It keeps the commitments of the United States at Camp David to promote peace in the Middle East by providing $3.3 billion in aid for Israel's security as well as assistance for Egypt.

It restores humanitarian and development assistance to Palestinians with resources to organizations working in the West Bank and Gaza, and it advances a bipartisan priority, with $50 million to fund a new partnership for peace that would strengthen economic development and engagement between Palestinians and Israelis. It includes $7.83 billion in refugee and disaster assistance, including to Latin America, the Middle East, Asia, and Africa.

Additionally, the bill prioritizes the security of diplomatic and development staff and facilities with $6.071 billion for embassy security, which is $692.2 million above the President's request.

To effectively engage allies and reclaim our leadership role, this bill reaffirms our support for international partners and multilateral organizations, which extends the impact of our assistance, and facilitates delivery of urgent aid to mitigate human suffering.

Lastly, to combat the destabilizing and persistent threats posed by climate change, the bill provides funds in this and prior acts to support multilateral efforts to reduce greenhouse gas emissions. It also strengthens conservation and environment programs and continues funding for adaptation and renewable energy programs at prior-year levels.

This bill reflects our common belief in the absolute necessity of effective diplomacy, global engagement, and robust development assistance to protect our own national security even as we address moral imperatives beyond our own borders.

Mr. Speaker, I thank my subcommittee staff who have worked in difficult circumstances to prepare the bill, including Majority Clerk Steve Marchese; staff Craig Higgins, Erin Kolodjeski, Dean Koulouris, Jason Wheelock, Marin Stein, Jean Kwon, Clelia Alvarado; Minority Clerk Susan Adams; Jamie McCormick; Austin Gage of Ranking Member ROGERS' congressional staff; and finally, Wendy Coursen, Kelly Healton, Dana Acton,

and Elizabeth Stanley in my congressional office.

Mr. Speaker, I express my gratitude to more past staff members and fellows than we have time to name today who have supported my work on the subcommittee. They are:

Matthew Traub, Beth Tritter, Howard Wolfson, Clare Coleman, Jean Doyle, Jenny Luray, Scott Fleming, Mark Isaac, Heather Howard, Jim Townsend, Chris Bigelow, Lucy Heenan, Ann Vaughn, Talia Dubovi, Liz Leibowitz, Sonali Korde, Joe Weinstein, Brigid Otieno, Mark Carrato, Mark Lopes, Barbara Feinstein, Dennis Vega, Cortney Dunn, Megan Oates, Jennifer Munoz, Karen Larson, Ashley Quarcoo, Ralph Falzone, Mark Murray, Nisha Biswal, Michele Sumilas, and Michael Marek.

Mr. Speaker, in conclusion, I urge support for the bill, and I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in opposition to H.R. 7608, the first package of fiscal year 2021 appropriations bills to be considered by the House. I wish the circumstances were different and I could support this very important piece of legislation that funds many key programs.

This bill supports the veterans who have honorably served our country, the diplomats who promote American businesses and our values around the world, the farmers and ranchers who put food on our tables, and the custodians of our parks and public lands who protect our national treasures.

Unfortunately, I am not able to support this bill before us because it has some fatal flaws.

First, there are many policy provisions similar to the partisan legislation the majority has pushed through the House the last few months.

Second, the spending levels exceed the amounts the Congress and the President agreed to just last year.

While I acknowledge the hard work Chairwoman LOWEY and her staff have done under very difficult circumstances, these bills do not reflect the way our committee typically does its business.

Instead of building consensus with Members on our side of the aisle, these bills contain policy and funding proposals that appear to have been dictated from the top down. For example, the bill jeopardizes our security by prohibiting funds from being used to address the crisis on our southern border and by restricting the President's ability to respond to a national emergency.

Provisions are included that would permanently prevent any administration from implementing reforms to programs that help lift many Americans out of poverty.

The bill reverses course on nearly all of the language that was negotiated last year in the State, Foreign Operations bill to protect life. It does away with current policies that stop foreign organizations from receiving funds if they provide abortions.

I am also disappointed to see that longstanding provisions aimed at enhancing transparency at the United Nations were removed. These conditions have made an impact on these agencies, and they should be continued.

There are also new directives added that would jeopardize America's energy independence, and instead of rolling back burdensome environmental regulations to help America's businesses, this bill prevents many commonsense policies from being put in place and takes out key provisions from prior years.

The bill also contains billions of dollars in emergency spending. $15 billion is included for infrastructure.

Even though the Appropriations Committee has held more than 100 hearings and briefings this year, these proposals were never formally considered, and there were no discussions with Members on our side of the aisle. This is disappointing.

Another $10 billion is included to address coronavirus, even though a $3 trillion bill passed the House in May and the Senate is planning to consider that bill in the next few weeks.

In addition, $12.5 billion of veterans funding is unnecessarily designated as emergency, even though it was known that this spending would be needed when the budget agreement was enacted last year.

We must work together on appropriations bills that avoid controversial legislative language and meet agreed-upon spending levels. This is the only way to get bills through the House and the Senate and signed into law.

Mr. Speaker, for these reasons, I urge my colleagues to vote against this package, and I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 5 minutes to the gentleman from Georgia (Mr. BISHOP), the chairman of the Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies.

Mr. BISHOP of Georgia. Mr. Speaker, I thank the gentlewoman for yielding me the time, and I rise in support of H.R. 7608.

As chairman of the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Subcommittee, I am pleased to highlight the national priorities that are funded in the division that is covered in this bill.

First, Mr. Speaker, I would like to thank our distinguished ranking member, Mr. FORTENBERRY. I hope he is not getting too embarrassed by my endless thanks and praise, but it is really genuine.

Drafting legislation can be complicated, but we have been able to maintain an open line of communication, and I am proud of our bipartisan relationship. We have produced a good work product that makes important investments that will improve the life of every American.

Our fiscal year 2021 allocation is almost $24 billion, 2 percent above the fiscal year 2020 and more than $4.1 billion above the budget request.

The bill provides $3.2 billion for rural development initiatives to fund critical infrastructure, such as water and wastewater systems, and rural housing needs.

The bill also funds the ReConnect Program at $990 million, which is an increase of $435 million, or 78 percent. I am extremely proud of the investments that we make to close the digital divide. The coronavirus pandemic has made everyone aware of just how important it is for students and workers to be connected to the internet, and our bill reflects that.

The bill, once again, includes the 10–20–30 antipoverty formula for Rural Development programs that is designed to target much-needed Federal resources to rural communities in need. Persistent-poverty communities for too long have suffered from neglect, and this provision will assist in reversing that and help these communities to thrive.

The bill provides $1.83 billion for farm production programs. I am particularly proud of the $33 million in loan authority that will help resolve ownership and succession of farmland issues, also known as the ''heirs' property'' issue, which predominantly affects Black farmers and has led to the loss of millions and millions of acres of privately held farmland for over a century.

Since the beginning of the pandemic, hunger has become a new reality for millions of Americans, and our bill fully funds the SNAP, child nutrition, and WIC programs to meet the expected participation in fiscal year 2021.

We also provided a big boost, $45 million, 18 percent, to the Commodity Supplemental Food Program, which serves the elderly poor.

Our bill also blocks two unconscionable SNAP rules. The Able-Bodied Adults Without Dependents final rule and the Standard Utility Allowance proposed rule are both designed to restrict program eligibility.

The bill provides $3.3 billion for agricultural research to ensure that America retains its role as the leader of global agricultural science. That number includes an increase of $29.5 million for programs that support the 1890 land-grant institutions.

We rejected the administration's proposed elimination of the Food for Peace and the McGovern-Dole programs. Respectively, we provide $1.775 billion and $235 million for these programs, which is an increase totaling $65 million, to ensure that American agriculture remains an essential tool of diplomacy.

The Food and Drug Administration is funded at $3.2 billion in discretionary funding, the increased funding dedicated to new initiatives that would advance influenza vaccine technologies and enhance the safety of medical products and the Nation's food supply, especially in light of COVID–19.

The bill also gives the FDA the authority to require mandatory recalls of

unsafe prescription and over-the-counter drugs. This is the same authority that the FDA already has to recall unsafe foods, infant formula, vaccines, and medical devices, a need that has become increasingly apparent in the past few weeks.

The bill also funds the Commodity Futures Trading Commission at $304 million, which is the same as the administration's request.

Mr. Speaker, I am extremely proud of this division of the minibus, and I am supportive of the whole package. I urge my colleagues to support it.

Mr. Speaker, I want to thank my personal staff, Michael Reed and Maya Solomon; and the subcommittee staff, Martha Foley, Diem-Linh Jones, Perry Yates, Joe Layman, Randy Staples, Justin Masucci, and our intern Xavier Roberts for their hard work on the bill.

Mr. Speaker, I also thank Tom O'Brien of the minority staff of the subcommittee as well as the minority staff of the full committee, and a special thanks to our majority clerk, Shalanda Young, for her steady hand in leading the majority full committee staff.

□ 1430

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. I yield the gentleman from Georgia an additional 30 seconds.

Mr. BISHOP of Georgia. Mr. Speaker, I thank Ranking Member GRANGER for her hard work and her commitment and her public service.

Finally, I want to say a special thank you to Chairwoman LOWEY. This is likely to be her last Agriculture, Rural Development, Food and Drug Administration, and Related Agencies appropriations bill, and it has been a tremendous pleasure and honor working with her. We will miss her. But Americans and people all over the world are better for her many years of service to this Congress.

Ms. GRANGER. Mr. Speaker, I yield 6 minutes to the gentleman from Kentucky (Mr. ROGERS), the former chairman of the full committee, and ranking member of the State, Foreign Operations, and Related Programs Subcommittee.

Mr. ROGERS of Kentucky. Mr. Speaker, I thank the gentlewoman, my ranking member, for yielding this time; and I rise in opposition to H.R. 7608, the first appropriations measure to be considered by the House for fiscal year 2021.

The measure before us today, Mr. Speaker, includes four of the 12 annual spending bills. Specifically, it would provide funding for the Departments of State, Agriculture, Interior, as well as Veterans Affairs, and their related agencies and programs.

As ranking member of the State, Foreign Operations, and Related Programs Subcommittee, I want to again offer my sincere thanks to Chairwoman NITA LOWEY for her collaboration. Her decision to lead this subcommittee, as well as being chairman of the big committee, the full committee, is a testament to her dedication to improving lives around the globe.

She has been a tremendous partner in that venture for many years, and we will deeply miss her leadership of our committee and of this subcommittee. But I assure you, Madam Chair, we will continue this work in your memory because you have invested so much of your life in this subcommittee.

Division A, the State and Foreign Operations appropriations bill for fiscal year 2021, includes $55.85 billion in non-emergency discretionary funding, and $10 billion in emergency funding for global coronavirus response, for a total of $65.87 billion.

Within that total, the bill includes funding for many key priorities that are critical to our national security. Chief among them is $3.3 billion in Foreign Military Financing for Israel and continued funding at the current level for our close partners in the region, including Jordan, Egypt, Morocco, and Tunisia.

I am also pleased that the bill maintains funding at the current level, as has been said, for embassy security. The attacks on our embassy in Baghdad this year were a stark reminder of how we must do everything we can to support the safety of our foreign service officers working abroad.

I appreciate the Chair continuing funding to combat the flow of drugs into this country and to tackle transnational crime overseas. Overdose deaths from synthetic opioids like fentanyl have spiked with COVID–19's growth, so we have got an epidemic now of increased overdose deaths within the pandemonium that is going on as well. These international efforts go hand-in-hand with the work we do here at home in the relentless fight against drug abuse and addiction.

Elsewhere in the bill, Divisions B, C, and D of this package include some notable areas of bipartisanship worth highlighting. I was pleased to see robust funding for clean and reliable water systems and rural broadband service, which are vitally important in my Kentucky district.

The bill also continues funding for the Abandoned Mine Land Pilot Program, a crucial economic and community development tool for regions like mine that were devastated by the war on coal.

The bill also provides critical resources to take care of our veterans, another welcome inclusion, given their great service to our Nation.

While I admire the chair's leadership in guiding this legislation through committee under the most challenging circumstances, I simply cannot support the measure in its current form.

Our committee has a proud tradition of bipartisanship and working together to fund and enhance shared priorities. However, this bill's unchecked emergency spending and partisan policy riders give me great concern, and ensure it has no hope of becoming law in its current form.

Sweeping measures that threaten the sanctity of life, like those that overturn the President's expanded Mexico City policy and weaken the longstanding protections against coercive abortion and forced sterilization, known as Kemp-Kasten, are the most concerning and controversial.

Also problematic are ill-advised investments, including the international climate funds like the Green Climate Fund, which jeopardizes American jobs.

Despite some areas of agreement, the unrestrained spending and partisan riders require my opposition to the package. I therefore urge my colleagues to oppose the bill.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Maryland (Mr. HOYER), the majority leader.

Mr. HOYER. Mr. Speaker, I thank the gentlewoman for yielding. I congratulate her for her work over the years. She and I spent over 2 decades serving together on that committee, the Appropriations Committee, and the same amount of time serving on the Labor, Health and Human Services, Education, and Related Agencies Subcommittee of that Appropriations Committee; and I enjoyed her insight and her wisdom and her hard work, and I thank her for what she has done for the committee and what she has done for the country.

I also want to thank the Staff Director of the committee, Shalanda Young, who clearly is one of the most outstanding members of the Congressional staff on either side of the Capitol. She has been tireless in working with Mrs. LOWEY to bring bills to the floor and, particularly with respect to our response to COVID–19, has performed extraordinary services.

Frankly, but for the Appropriations Committee and its staff on both sides of the aisle, we would not have been able to do that; so I thank all those involved.

Mr. Speaker, I am somewhat infamous, I suppose, on my side of the aisle with some other committee chairs and staff, for wanting to make sure that we do our work on appropriation bills.

Frankly, there are so many important bills that this House and Senate pass and the President signs. Unfortunately, that hasn't been the case lately, but usually is the case. But these bills must pass.

If the American people are going to continue to enjoy the services of their government, in so many critical ways to their lives, then the Appropriations Committee must do its job. We have been blessed that we have as chair and ranking member two Members who care about that process in Mrs. LOWEY and Ms. GRANGER.

I also had the opportunity of serving some period of time with Ms. GRANGER on the Appropriations Committee. She is a woman and Representative that I have great respect for and appreciate

her attitude and collegial effort to work together.

I regret that these will not be bipartisan bills. Frankly, I think it is not so much because of the appropriations bill as it is because of the context in which we find ourselves in Washington, and in our country today.

The House is getting its work done for the people, and passing these appropriations bills well in advance of the end of the fiscal year, as we did last year.

Unfortunately, Mr. Speaker, the Senate is on track to fail to mark up a single bill in committee, which may be the first time ever that that has been the case.

Sadly, it is consistent with their not passing any other bills either, so 275 of our bills sit untended in the United States Senate. Why?

Because, as former appropriator and former Senate Budget Committee Chair Senator Judd Gregg said: ''I don't see any reason why they should go to markup if the goal of that markup is to simply create political fodder for the election, rather than move the bills forward.''

That bleak assessment speaks directly to the harmful effects of Senate Republicans' policy choices, because in this body, and in the Democratic Caucus, we believe appropriations bills are a statement of our values and an opportunity to communicate them to the American people.

We have a saying, all of us, put your money where your mouth is. And if you don't do that, then your mouth is articulating things that you may not really believe in, but you think it is useful for people to hear.

This package contains important and positive investments in our people, our economy, and in our national security that reflect House Democrats' commitment to governing for the people and, very frankly, I think, for the most part, Republican values, which is why I am so disappointed that this will not be a bipartisan effort.

It reflects our priorities for moving America forward and helping our people get ahead.

This bill will help ensure that children and families receive the assistance they need through SNAP and WIC to protect against hunger, an extraordinary challenge in today's COVID–19-afflicted America.

It strengthens our conservation efforts and ensures a cleaner environment. And we passed an extraordinary historical bill yesterday in a bipartisan fashion to accomplish that objective as well.

In particular, I am pleased it includes funding for the Chesapeake Bay program, so vital to my State and to our region.

We are taking steps as well to protect the Arctic National Wildlife Refuge, and this package will require that the National Park Service will move any commemorative displays honoring the Confederacy, so that no American will be either humiliated or denigrated as they visit our national parks.

The bill also ensures we provide resources to support our veterans, so critical, and across the board, felt to be a moral responsibility. We are standing with our servicemembers by prohibiting, frankly, the President from stealing funds from our military in order to build this wall that he said the Mexicans were going to pay for. Nobody believed it then; nobody believes it now. And he is taking money from our troops, from our military security, to build that wall.

□ 1445

I am proud that this bill continues America's strong and robust support for our ally Israel.

In all, this is a funding package of which our country and this House can be proud. It reflects our values and our principles, and it is focused on governing responsibly and spending taxpayer resources wisely.

Sadly, it will, in all likelihood, join the more than 275 other bipartisan House bills languishing in the Republican-controlled Senate. We have a lot of new judges; we just don't have legislation for the people.

I urge the Senate to do its part to avoid even the risk of another shutdown. Just a few 18 months ago, 19 months ago, we came into this Congress with much of the Government of the United States shut down because the previous Congress had not funded the government. I urge the Senate to do its part. Let's get the job done together for the people.

Mr. Speaker, I thank the chair, I thank the ranking member, I thank the staff on both sides of the aisle, and I thank Shalanda Young.

Ms. GRANGER. Mr. Speaker, I yield 3 minutes to the gentleman from Texas (Mr. CARTER), who is the ranking member of the Military Construction, Veterans Affairs, and Related Agencies Subcommittee.

Mr. CARTER of Texas. Mr. Speaker, I thank the gentlewoman for yielding me time.

Mr. Speaker, I rise today to speak about division D of H.R. 7608, the Military Construction and Veterans Affairs appropriations bill for fiscal year 2021.

Throughout my time in Congress, I have focused on three things: soldiers, their families, and veterans. It is an honor to serve as the ranking member of the appropriations subcommittee that has their interests in the forefront of our minds.

Overall, I strongly support the funding provided for military construction projects. I am pleased the bill includes funding for the services' unfunded priorities: privatized military housing, resilient and energy-efficient installations, and cleanup of contaminated sites.

On a bipartisan basis, the bill increases funding for women veterans, mental health and homeless programs, and supports construction of new VA facilities.

Veterans have earned special attention for their service and sacrifice. In many ways, this bill helps to fulfill our promises to them.

However, unfortunately and regretfully, I must express my opposition to H.R. 7608. Less than a year ago, we agreed to the 2019 Bipartisan Budget Act. I believe it is irresponsible to designate some funding as emergency just to avoid the caps set by that act. This is especially true since we all acknowledged the growing costs of veterans' healthcare programs when we agreed to the budget deal.

I recognize the budget realities we face, but we should not unravel that agreement through this year's appropriations process. I am also concerned that this bill includes provisions that limit the President's ability to address the national emergency on our southern border.

Regardless of one's position, the fact remains that cartels and criminal gangs take advantage of our political disagreements and continue to flood our Nation with dangerous and illegal drugs and exploit and traffic men, women, and children seeking a better life. This is unacceptable.

While I oppose the final passage of the bill, I believe that the committee can continue to work together to fund programs important to soldiers, their families, and veterans in a responsible manner.

In closing, I would like to thank my subcommittee chairwoman, Ms. WASSERMAN SCHULTZ, for her dedication to our subcommittee and its responsibilities. Also, I want to thank Chairwoman LOWEY for her service and leadership in this Congress, and I want to thank Ranking Member GRANGER for her support and commitment to enacting responsible spending bills.

Mrs. LOWEY. Mr. Speaker, I yield 5 minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM), who is the distinguished chair of the Subcommittee on Interior, Environment, and Related Agencies.

Ms. MCCOLLUM. Mr. Speaker, I rise to support the fiscal year 2021 Interior, Environment, and Related Agencies appropriations bill. Thank you to my partner in this, Ranking Member JOYCE, for his collaboration and partnership throughout this process. I am grateful for the leadership of Chairwoman LOWEY and Ranking Member GRANGER.

Last year, House Democrats secured significant new investments in environmental protection and land conservation. This bill builds on those successes to advance priorities of American families, ensuring that we have clean air and clean water to protect our children's health. We protect our most special places and endangered species and take meaningful actions to address climate change.

The subcommittee recommends a total of $36.8 billion in discretionary funding, an increase of $771 million over last year's enacted level.

The bill also includes $2.4 billion in fire cap adjusted funds for suppression operations.

The bill includes an additional $15 billion in emergency-designated infrastructure investments. These investments will increase access to quality healthcare and education and help clean up contaminated lands, polluted water, and unhealthy air.

With yesterday's passage of the Great American Outdoors Act in fiscal year 2021, the Land and Water Conservation Fund will be fully funded at $900 million, the first time this has happened in over 40 years.

I thank all of our constituents for making this passage a reality.

Back to this bill. We reject the dangerous policies and funding cuts proposed by the Trump administration. Instead, we move forward by investing our resources in ways that keep our communities safe and healthy. We invest in protection and preservation of our landscapes and our biodiversity.

I am particularly proud that this bill includes protections for our Nation's most visited wilderness, the Boundary Waters. It will put a halt to the use of funds in the next fiscal year to review or approve mine plans in the watershed of this treasured wilderness.

But let me be clear: The operations of the current taconite mines of Minnesota's iron ore range are not impacted. There are no iron mines with plans under review. But there is a foreign-owned mining conglomerate with a plan under review for a toxic copper-sulfide ore mine on the doorstep of the Boundary Waters. The Trump administration cannot be trusted to conduct this environmental review.

Multiple Cabinet members pledged in congressional hearings to complete a mineral withdrawal study within this very watershed. Instead, they abandoned the congressionally directed environmental review after 20 months, 4 months from completion, and they refuse to release results.

This bill seeks to protect the Boundary Waters from an administration that has shown a lack of transparency, respect for science, or the ability to follow our Nation's environmental laws.

Our subcommittee continues its nonpartisan approach to issues facing our Native American brothers and sisters. We provide $3.5 billion for the Bureau of Indian Affairs, Bureau of Indian Education, and the Office of the Special Trustee for American Indians, and $6.5 billion to the Indian Health Service. This is another step in the right direction toward upholding the Federal Government's trust and treaty obligations, but the work continues.

The bill contains provisions related to ending the use of Confederate symbols on our public lands. Confederate flags and memorials have long been symbols of oppression and discrimination, and I am committed to doing everything we can to help this country confront and heal its legacy of racism. This is not about erasing our history, but it is about whether we are willing to do the hard work that is needed to confront the truth of our history and to work to right past wrongs.

This is a good bill that works to tell the history of our country, even though sometimes it is painful to do so. It is a good bill that strives to use our natural resources wisely to protect our air, our water, and our land and to clean up those places that have been polluted in the past. This bill embraces conservation and the judicial use of our public lands, and yes, at times, it seeks to showcase the beauty of our natural resources that have been given to us by our creator.

This is a good bill, and I encourage Members of this House to support it.

I want to thank staff on both sides of the aisle for their hard work, including Rita, Jocelyn, Kusai, Janet, Peter, Donna, Tyler, Kristen, Darren, and Rebecca Taylor on my personal staff.

Mr. Speaker, I urge all Members to support this bill.

Ms. GRANGER. Mr. Speaker, I yield 6 minutes to the gentleman from Nebraska (Mr. FORTENBERRY), who is the ranking member of the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Subcommittee.

Mr. FORTENBERRY. Mr. Speaker, I want to thank Ranking Member GRANGER for yielding. But first, let me acknowledge the service of our chair, Mrs. LOWEY. I am so grateful for her graciousness, friendship, and especially the extraordinary example the gentlewoman sets in working with Ranking Member GRANGER, for the shepherding of our great committee. I thank the gentlewoman so much for her service.

I also want to thank my good friend, Chairman BISHOP, for the close working relationship that we have developed. Chairman BISHOP has worked very hard to accommodate the many requests from our side of the aisle. I really value the constructive manner in which he was able to express his perspective, and we were able to work together toward constructive outcomes.

The good news, Mr. Speaker, is that this bill largely reflects the cooperative spirit of the agricultural community in America as well as this committee.

Now, Mr. Speaker, if I could divert for a moment, I want to tell a little story. My daughter Christine is 17. She got up at about 4:30 this morning. Blurry-eyed, she made her way over to a local parking lot, got on a bus, and went about 30 miles into a cornfield where she and many other young people begin to pick the tassels off the corn, fighting off rash and insects.

They work most of the day until it is too hot to work anymore. She will come home tired and exhausted, and tomorrow, she and others will get up and do it again and again.

This is a rite of passage in Nebraska. It is called detasseling. What it does is it creates this beautiful, lifelong lesson for young people, connecting effort to reward and the satisfaction of a job well done.

So it is with the farmer, Mr. Speaker. Agriculture, in so many ways, both provides and unifies, and that is why I am proud to be ranking member of the subcommittee.

Whatever policy differences we may have, particularly over budgets or transitional work requirements, it is clear that this bill affects the life of every American in many, many important ways.

I would like to highlight three of those: food security, rural broadband, and our Nation's drug supply.

First, this bill makes sure that vulnerable Americans have proper nutrition. Members on both sides of the aisle have shown strong support for nutrition programs, including the women's, infants', and children's nutrition program called WIC and the Commodity Supplemental Food Program for the needy elderly. There are many other nutrition programs that receive strong support, as well.

Our committee and the entire Congress have worked well together to meet our current needs and to build upon these base programs to support those who have suffered the indignity of food insecurity, which is heightened right now during the midst of this pandemic.

Second, our health not only depends upon good food, but it depends upon the integrity of our drug supply.

During the pandemic, America learned what we here already knew: We are importing drugs and drug ingredients from countries that do not necessarily share our commitment to transparency, quality, or the protection of labor.

Approximately 80 percent of our active pharmaceutical ingredients are sourced from outside of the United States. The bill directs the FDA to block entry of products from those drug manufacturing plants overseas that prevent immediate inspection just like we have in America. Frankly, Mr. Speaker, I would be more comfortable if I saw the ''Made in America'' label on each prescription bottle.

Third, telehealth, tele-education, and telework are here to stay and are revolutionizing the way we think about and structure community. But here is our problem: Too many parts of the country don't have access to high-speed internet, about 35 percent of rural areas and, as has been noted, some urban areas as well.

A mother from Columbus, Nebraska—a community that is rural in character of about 25,000 people—recently told us that she had to drive to the local public school parking lot in order to access their broadband and their WiFi to help her child do homework. I think we can do better than this, Mr. Speaker.

This bill does provide over $1 billion of funding for the expansion of rural broadband and new metrics to measure

its success. Because it is not just about service providers or wires laid; it is about functionality and the mission of what I call creating an ecosystem of livability.

The ideas behind what is traditionally called rural development really do need to change. The farm of the future concept will be driven by data-driven solutions, precision agriculture, and resilient ag practices that increase productivity, generate value-added products, enhance sustainability in ag communities, and put an important emphasis on local foods in addition to the expansion of the opportunities for telehealth, telework, and tele-education.

□ 1500

I want to also note something that Chairman BISHOP has done. He has placed an important emphasis on expanding resources to historically Black colleges and universities, an area where we can all look for enhanced opportunity.

Let me note the current challenges at the source of a disagreement in the bill.

One of the objections relates to the budget used by the majority to fund these 12 bills in violation of the Bipartisan Budget Act of 2019.

Another objection is less about numbers and more about our commitment to one another. The problem is that the bill permanently disallows any future changes on work requirements in the SNAP program. From my perspective, when times are good and the economy is strong, the program should be allowed to adjust accordingly as persons seek meaningful work.

Mr. Speaker, I look forward to continuing our work together to improve this bill and, once we do so, to potentially pass it into law.

Mrs. LOWEY. Mr. Speaker, I yield 5½ minutes to the distinguished gentlewoman from Florida (Ms. WASSERMAN SCHULTZ), chairwoman of the Subcommittee on Military Construction, Veterans Affairs, and Related Agencies.

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I thank the gentlewoman from New York, Chairwoman LOWEY, for yielding and for all of her hard work and leadership during this process and for her distinguished years of service. I am sad this is the last time that we will do this together, but I am so appreciative of her leadership and mentorship of me personally. I will truly, truly miss her.

Mr. Speaker, the Military Construction, Veterans Affairs, and Related Agencies division of the bill highlights our continued commitment to our servicemembers and their families and to our veterans.

Constructing the barracks, bases, and facilities that our military needs is crucial to our country's military readiness. Properly funding the Department of Veterans Affairs is how we deliver on the promise of medical care and other benefits that our veterans have earned through service to our Nation.

The related agencies, including the American Battle Monuments Commission and Arlington National Cemetery, demonstrate to the world how we honor the sacrifices of those who served. That is why I am proud this bill includes $115.5 billion in discretionary funding, which is a $5.1 billion increase above the enacted fiscal year 2020 funding level and $2.3 billion above the President's budget request.

For Military Construction, we provided $10.1 billion, rejecting the President's proposed cut of $3.6 billion below the current level for critical infrastructure needs on military installations. This includes $439.5 million for the Energy Resilience and Conservation Investment Program, which is $297 million above the request, and $1.49 billion for family housing construction, which is $135 million above the request, as well. We added these resources in order to fund critical oversight to address unacceptable conditions in military family housing, like mold, vermin, and lead.

Mr. Speaker, $200 million is provided to clean up PFOS and PFOA contamination at previously closed installations.

The bill also includes a new provision to prohibit military construction projects on installations named for Confederate officers until a process is initiated to rename those bases. No servicemember should live or train on a base named for a person who betrayed America's pursuit of a more perfect Union.

For the VA, this bill provides a total of $240.2 billion, including mandatory spending; $104.8 billion is discretionary funding. This amount represents an increase of $12.3 billion above the fiscal year 2020 enacted level.

The $90 billion within this total for VA medical care fully funds the budget request.

I am proud that this bill will improve the quality of veterans' healthcare through significant investments in women's veterans' health, the ''whole health'' model, mental health and suicide prevention, homelessness assistance, rural health, and opioid abuse prevention.

We also finally achieved consensus with the Senate that the cost of VA healthcare cannot remain within the budget caps. So $12.5 billion within the overall total of $104.8 billion for VA programs is designated as emergency funding to adequately fund VA healthcare for its more than 7.2 million patients.

The bill boosts funding for VA research by 5 percent over the fiscal year 2020 enacted level to support the important work studying rare cancers and prosthetics for women veterans, just to name a few.

It also provides funding for infrastructure improvements to ensure the VA has modern, safe facilities to treat our veterans, as well as supports continued implementation of the Electronic Health Record Modernization implementation and efforts to reduce the disability claims backlog.

Mr. Speaker, I am proud of what this bill does, but I am equally proud of what it does not do.

It does not fund the border wall, nor does it allow the President to bypass congressional intent and divert vital military construction funding from previously approved national security projects in support of an ineffective, unnecessary barrier. We cannot allow Presidential bigotry and xenophobia to be prioritized over American lives, our servicemembers, or our national security.

Mr. Speaker, I thank my ranking member, subcommittee partner, Judge Carter, and Ranking Member GRANGER. We worked very well together. And while we may not always agree on these issues, we are agreeable, and I am proud to have them as partners and friends and truly appreciate their insights.

I also thank the staff of both the subcommittee and in our personal offices, whose expertise and commitment to our servicemembers and our veterans is evident every day.

Mr. Speaker, this is a good bill, it is a strong bill, and, most importantly, it does right by our servicemembers, their families, and our veterans.

I also would briefly discuss a few of our accomplishments in the other divisions of this minibus.

The Agriculture division supports our Nation's farmers, strongly invests in lifesaving nutrition programs, like WIC and SNAP, and blocks Trump's cruel SNAP regulations.

The bill also includes funding and language to strengthen the regulation of e-cigarettes to break the epidemic of nicotine addiction that is gripping our Nation's youth.

The Interior division protects our invaluable public lands, invests in climate resilience, and helps us restore our crumbling infrastructure, like the sewage failures in Fort Lauderdale. And I am particularly pleased that the bill includes language I requested that would block offshore drilling in any new area, including Florida's coastlines.

Finally, the State and Foreign Operations division empowers women by increasing funding for international family planning and health programs. The bill expands aid for those struggling within Venezuela and for the refugees fleeing the economic collapse and oppression of the Maduro regime, and it ensures our ally, Israel, can defend herself, which is critical to our national security.

Mr. Speaker, I personally thank our incredible staff: Lisa Molyneux, our clerk; Jennifer Hollrah; Sarah Young; Nicole Cohen; Keihysha Cenord; Lauren Wolman, on my personal staff; Michael Harris on my personal staff; and, of course, Shalanda Young, our intrepid clerk of our full committee, and the entire front office staff as well.

Mr. Speaker, I urge my colleagues to support this spending package, and I thank everyone for their hard work.

Ms. GRANGER. Mr. Speaker, I yield 5 minutes to the gentleman from Ohio (Mr. JOYCE), the ranking member of Subcommittee on Interior, Environment, and Related Agencies.

Mr. JOYCE of Ohio. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, I rise today in opposition to H.R. 7608.

Before I get into the details of division C, the Interior and Environment section of the bill, I take a moment to thank Chairwoman LOWEY and Ranking Member GRANGER for their steadfast leadership on the Committee on Appropriations.

I extend my thanks to my friend and colleague, BETTY MCCOLLUM, the chair of the Subcommittee on Interior, Environment, Related Agencies. Chair MCCOLLUM has been an excellent leader, and I am glad to have the opportunity to serve alongside her as the ranking member on the subcommittee.

Mr. Speaker, the fiscal year 2021 Interior, Environment bill includes many bipartisan initiatives to conserve and protect our natural resources and to increase the Federal commitment to honor our treaties and trust responsibilities with American Indians and Alaska Natives.

The bill increases investments in wildfire suppression, hazardous fuels activities, provides additional support for the National Park Service, EPA's rural water technical assistance grants, and fully funds the Payments in Lieu of Taxes program.

The bill also provides significant funding—more than one-quarter of the bill—to help Tribal communities across Indian Country with healthcare, education, and law enforcement needs. This support is essential given, on a per capita basis, COVID–19 has hit Indian Country harder than any other area in our Nation.

As a co-chair of the Bipartisan Task Force to End Sexual Violence, I was pleased to see critical funding included to implement the Violence Against Woman Act in Indian Country and to support Operation Lady Justice, an initiative established by the President to address missing and murdered indigenous people, human trafficking, and other violent crimes.

Chair MCCOLLUM and her staff have worked hard to accommodate these requests for Members on both sides of the aisle in the bill. They will be appreciated by our constituents, regardless of party.

In particular, I am grateful for the continued, robust investment in the Great Lakes Restoration Initiative, which is essential to reducing harmful algal blooms, eradicating Asian carp, and addressing coastline erosion.

However, despite these investments and bipartisan priorities, there are concerns in this bill that will need to be addressed before we reach bipartisan agreement.

First and foremost, the bill adds several new controversial policy riders, administrative provisions, and report language directives. These partisan provisions prevent the administration from reducing regulatory burdens and limit responsible natural resource development.

Limiting our domestic supply of much-needed natural resources does not decrease our demand for them, it only makes us more dependent on foreign nations to obtain them, which is not only a national security concern, but is also an economic security concern. We cannot protect American jobs if we cannot supply them with the energy and raw materials.

This bill also eliminates several longstanding commonsense provisions that have enjoyed bipartisan support for many years. Adding these provisions back will be essential to reaching a bipartisan agreement.

A final area of concern is the funding level proposed in this bill. This bill benefits from off-budget emergency funding provided in other bills, and instead of using the savings from the passage of the Great American Outdoors Act towards paying down our ever-growing national debt, the bill reallocates those funds.

The bill also includes a new title, with $15 billion in so-called emergency spending for additional infrastructure.

To be clear, there are critical infrastructure programs in this bill that need these funds and more, but that alone does not give the Federal Government license to continue to borrow and spend without any overarching plan for fiscal responsibility.

Mr. Speaker, it is for a combination of these funding and policy reasons that I cannot support this bill at this time and in its current form, but I am committed to working with my colleagues on both sides of the aisle as we move through the fiscal year 2021 process to craft a bill that can receive bipartisan support.

Mr. Speaker, until then, I strongly urge my colleagues to vote ''no'' on this package.

Mrs. LOWEY. Mr. Speaker, I continue to reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Illinois (Mr. RODNEY DAVIS).

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I thank the ranking member, Ms. GRANGER, and Chair LOWEY. Also, I give thanks to Chair MCCOLLUM and also Ranking Member JOYCE on the Appropriations Subcommittee for Interior for allowing the provision that I am going to speak about to be included in today's legislation.

It is very important because this inclusion was language from a bill that I introduced, the Springfield Race Riot National Historic Monument Act, and that is in the fiscal year 2021 Interior Appropriations bill.

Mr. Speaker, my bill would designate the 1908 Springfield Race Riots, which ultimately played an integral role in the formation of the NAACP, it would designate the site of those race riots.

For over the last few years, because of a Federal project, we have been uncovering artifacts from those race riots. We want to tell a story about those race riots and why America and Springfield, Illinois, should never have anything like that happen again. This language would authorize the Park Service to conduct a special resource study to determine its eligibility into the park system.

Thank you, again, to all who have made this a possibility. Building off conversations that we had on the floor yesterday, I am grateful for this opportunity to further engage in the important discussions that we are having surrounding race in this country.

Mr. Speaker, I look forward to supporting a final package that includes this language to give this site and the events that occurred there proper recognition.

Mrs. LOWEY. Mr. Speaker, I continue to reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 1½ minutes to the gentleman from South Dakota (Mr. JOHNSON).

Mr. JOHNSON of South Dakota. Mr. Speaker, in times like this, it is easy to understand why we have a social safety net.

Today, 6 million more Americans are on food stamps than were in February. Now, SNAP encourages work and education. Those are the critical ingredients in upward mobility. And by design, those requirements are flexible enough to account for difficult economic times.

Despite that flexibility, the majority is using this appropriations process to prohibit future administrations from more effectively encouraging work and education.

Now, yes, we are in difficult economic times, but as our economy recovers, work and education will be even more important. By setting aside that emphasis, we are not improving our country. We are not reducing dependence. We are not improving economic opportunity.

Mr. Speaker, I ask my colleagues to reconsider.

Ms. GRANGER. Mr. Speaker, I yield back the balance of my time.

Mrs. LOWEY. Mr. Speaker, this package of appropriations bills will help make our Nations stronger at home and respected again in the world.

Together, we can bolster food security, combat climate change, protect our environment, aid the world's most vulnerable people, and meet our commitments to our veterans.

Mr. Speaker, I urge adoption of this important legislation, and I yield back the balance of my time.

Ms. KAPTUR. I applaud Chairwoman LOWEY in her resolve to accomplish Congress' top Constitutional priority assuring the operation of the government of the United States and in record speed this year, despite a global pandemic. Today's bold Appropriation minibus, which includes State and Foreign Operations, Agriculture and Rural Development, Interior

and Environment, and Military Construction and Veterans Affairs, reflects historic investments to meet the needs of the American people and strengthen our national resolve during an unprecedented period in American history.

Here are a handful of provisions that make this bill strong.

The bill prioritizes U.S. national security interests, including at liberty's edge in Central and Eastern Europe. It takes valuable steps to combat Russian aggression, it demonstrates our unwavering support for liberty in Ukraine, funds diplomatic exchanges between the U.S. and Poland, and protects Radio Free Europe's longstanding editorial independence.

Then with acute food insecurity exposed in the pandemic, this bill advances sustainable agriculture in this era of climate change. It provides much needed support to hungry Americans, while giving rebirth to an idea cultivated by the Greatest Generation, Victory Gardens so every American family can reconnect with the power of earth to sustain life.

As a lifelong resident of Toledo, Ohio, the distress from which our beloved Lake Erie and all our Great Lakes have struggled as a result of harmful algal blooms and invasive species like Grass Carp is a daily concern. For the last decade, we've lived with putrid green algae floating atop Lake Erie's Western Basin and tributaries, causing environmental, economic, and public health crises in the process. That's why I've fought to increase federal funding for projects like the Great Lakes Restoration Initiative, which will receive $335 million in this bill and other fresh water sources.

This bill says thank you to America's veterans, from general healthcare and mental health services, to suicide prevention and homeless assistance. This legislation makes historic investments to improve the delivery of care, with extra focus on women veterans. It also, underscores the importance of the VA's workforce and makes recruitment and retention a top priority.

These examples are but a few of the worthy causes included in this effort that make America even greater.

Mr. Speaker, this legislative package demonstrates the good a unified Congress can achieve when we work together, even during a pandemic where much of our work has been carried out remotely. I would like to thank Chairwoman LOWEY for her remarkable leadership throughout this process, as well as each of the subcommittee chairs for their dutiful work getting this legislation across the finish line. I urge strong bipartisan support.

Mr. SMITH of New Jersey, Mr. Speaker, I rise to speak on provisions of H.R. 7608.

Someday, future generations of Americans will look back on us and wonder how and why a society that prided itself on its commitment to human rights, precluded virtually all protection to the weakest and most vulnerable—unborn children.

I believe they will demand to know why dismembering a child with razor-sharp knives, pulverizing an infant with powerful suction devices, or chemically poisoning a baby with any number of toxic ''medications'', failed to elicit empathy for victim-babies.

The bill before us today, Mr. Speaker, reverses several modest but important pro-life polices including the *Protecting Life in Global Health Assistance Policy*—which is a reiteration and expansion of President Ronald Reagan's Mexico City Policy.

Announced by Reagan at the United Nations Conference on Population Control in Mexico City in 1984—hence its name—the policy was and is designed to ensure that U.S. taxpayer money is not funneled to foreign nongovernmental organizations (NGOs) that perform or promote abortion as a method of family planning.

I would note parenthetically, that over the years, I've sponsored many amendments on this floor to protect the Mexico City Policy, beginning in 1985.

The policy restored by President Trump, now called the Protecting Life in Global Health Assistance Policy, established pro-child safeguards—benign, humane conditions—on about $8.8 billion in annual global health assistance.

For years—under Presidents Clinton and Obama—foreign non-governmental organizations (NGOs) had been empowered by U.S. taxpayer grant money—to weaken, undermine, or reverse prolife laws in other nations and to destroy the precious lives of unborn children.

Many countries throughout the world have been besieged by aggressive and well-funded campaigns to overturn their pro-life laws and policies.

The Protecting Life in Global Health Assistance Policy mitigates U.S. taxpayer complicity in global abortion.

U.S. foreign policy—and the foreign entities we fund with billions of dollars in grant money—should consistently affirm, care for, and tangibly assist women and children—including unborn baby girls and boys.

Mr. Speaker, I am the prime author of several humanitarian and human rights laws including the historic *Trafficking Victims Protection Act*, the *$30 billion five year reauthorization of the President's Emergency Plan for Aids Relief (PEPFAR)*, *End Neglected Tropical Diseases*, the *Autism CARES Act*, the *Frank Wolf International Religious Freedom Act*, *the Stem Cell Therapeutic and Research Act*, and *much more*.

I am the prime author of the *Microenterprise Results and Accountability Act* and a second *microenterprise law* to help the poor, especially women, escape poverty through microenterprise grants, credit assistance, business development training—and self-sufficiency.

I believe we must increase access to maternal and prenatal care and ensure access to safe blood and better nutrition for all women-especially those living in poverty.

We must also expand essential obstetrical services, including skilled birth attendants, while improving transportation to emergency care facilities to significantly reduce maternal mortality and morbidity—including from *obstetric fistula*.

I wrote a bill—the *Foreign Relations Act of 2006–7*—that passed the House. I included a life-saving provision to establish 12 fistula centers mostly in Africa.

When the Senate failed to act on my comprehensive bill, I asked USAID's Kent Hill to initiate a fistula repair program by administrative action. He did. *Approximately fifty-four thousand women have had a life-changing fistula surgical repair.*

Mr. Speaker, prioritizing programs that ensure adequate nutrition and supplementation for moms and children during the all-important first 1,000 days of life—from conception to the second birthday—are among the most transformative, life-enhancing commitments that can be made.

I've *chaired several hearings on the stunning impact of the first 1000 days* and included the initiative in my bill that passed the House—the *Global Food Security Act.*

Expanding all these initiatives make women and children healthier, stronger, and more resilient to disease and disability while reducing death and injury.

No one is expendable or a throwaway.

Mr. Speaker, birth is merely an event—albeit an important one—in the life of a child.

Victim-babies and their mothers absolutely deserve respect, protection, and an abundance of compassion.

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise in support of H.R. 7608, and I commend and thank the chairman and chairwomen who worked very hard to produce funding bills that reflect our ''For the People'' vision for America.

This mini-bus composed of the State and Foreign Operations, the Agriculture, Interior and the Military Construction and Veterans Affairs appropriations bills provides critical resources for a wide range of our important domestic and international priorities.

While there is much to be thankful for in this mini-bus, I would like to highlight a few of the many critical protections I requested for vulnerable animals which these subcommittee chairs graciously included in their bills.

This bill defunds dog testing at the Veterans Administration and prohibits notorious Class B dealers from selling illegally acquired pets into research. It also provides emergency shelter options for domestic violence survivors with companion animals.

It prevents horses from being slaughtered in America for human consumption and cracks down on the painful practice of horse soring.

It pushes FDA to reduce primate testing and to retiree these animals to sanctuary.

Finally, the mini-bus combats wildlife poaching and trafficking around the world and provides recovery funding for endangered species like the California Condor.

Madam Speaker, Mahatma Gandhi once said the greatness of a nation can be judged by the way its animals are treated. I thank Chairman BISHOP and Chairwomen LOWEY, MCCOLLUM and WASSERMAN SCHULTZ for demonstrating what that greatness looks like.

I urge my colleagues to support animal welfare and our many ''For the People'' priorities and vote YES on H.R. 7608.

Mr. SCOTT of Virginia. Madam Speaker, I rise today in opposition to the amendment to H.R. 7608 proposed by my colleagues, Mr. PERRY and Mr. JOYCE from Pennsylvania. The amendment would prohibit the Environmental Protection Agency (EPA) from fulfilling the role outlined in an agreement that the Agency entered into—along with six states and the District of Columbia—to restore the Chesapeake Bay. Like the rest of the Bay's 64,000 square mile watershed, in my district in Hampton Roads, Virginia, healthy tributaries and a healthy Chesapeake are vital to the environment, the economy, recreation, wildlife and our way of life.

Despite the vital importance of the Bay, how to best address its deterioration was a concern for almost half a century. Prior to the states' agreement with the EPA, their individual efforts were largely unsuccessful. In 2010, however, the Environmental Protection Agency established Total Maximum Daily Load, limits on nutrient and sediment pollution

to improve the Bay's water quality. Though the work continues, this new level of coordination and federal-state cooperation has been very successful. Beyond the Chesapeake region, this level of coordination provides a unique precedent for other restoration efforts across the country. Unfortunately, this amendment would prohibit the EPA from fulfilling their crucial role, one that the watershed states have agreed is necessary. History makes it clear that the collaboration and partnership of state, local, Federal, and non-governmental partners will be required to restore this national treasure. I urge my colleagues to vote no on this amendment.

I also rise in support of the amendment that my colleague Ms. Speier has introduced. I share the gentlewoman's concern about forcing non-federal entities that have faithfully worked with the EPA to secure funding for the very successful Water Infrastructure Finance and Innovation Act (WIFIA) Program to reapply. In my district in Hampton Roads, the SWIFT project—or the Sustainable Water Initiative for Tomorrow—is currently very close to closing a loan to move forward with their work to replenish the Potomac aquifer. Changing the application process for non-federal applicants that are already so far along in the process is wasteful and would unnecessarily delay projects that support access to safe and affordable water for our communities.

In the case of the innovative SWIFT project, the WIFIA program supports my community's access to clean drinking water not only now, but also in the future as it recharges an aquifer on which most of eastern Virginia depends for their drinking water. In addition to limiting the amount of treated water that would otherwise be discharged into the James, Elizabeth, or York Rivers, this project would also yield enormous benefits to the entire region by slowing land subsidence, which is compounded in the Hampton Roads region by sea-level rise. Importantly for agricultural producers, the project also promises to slow the intrusion of saltwater into groundwater in the region.

I urge my colleagues to join me in supporting the WIFIA program and the many benefits that it provides.

□ 1515

The SPEAKER pro tempore. All time for debate has expired.

Each further amendment printed in House Report 116–459 not earlier considered as part of amendments en bloc pursuant to section 3 of House Resolution 1060, shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, may be withdrawn by the proponent at any time before the question is put thereon, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

It shall be in order at any time for the chair of the Committee on Appropriations or her designee to offer amendments en bloc consisting of further amendments printed in House Report 116–459, not earlier disposed of. Amendments en bloc shall be considered as read, shall be debatable for 30 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MR. ALLEN

The SPEAKER pro tempore. It is now in order to consider amendment No. 1 printed in House Report 116–459.

Mr. ALLEN. Mr. Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of division A (before the short title), insert the following:

SEC. _____. Each amount made available by this Act (other than an amount required to be made available by a provision of law) is hereby reduced by 5 percent.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentleman from Georgia (Mr. ALLEN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Georgia.

Mr. ALLEN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, once again this Congress is being asked to vote on an enormous spending package after being produced in just the last few weeks.

How can the American people possibly have time to learn where their tax dollars are going?

Today, we are considering amendments to a four-bill, 689-page package that totals $219.6 billion in discretionary spending, plus another $37.5 billion in emergency spending.

The bills in this package spend billions on top of what the current budget agreement allows, and they also contain partisan poison pills, like overturning the administration's Mexico City Policy, allowing foreign organizations to receive Federal funds, even if they perform abortions.

Let me underscore, under the Democrat majority, we can't even stick to the budget that was agreed to.

As a former business owner—and if you talk to any business owner, they will tell you the same thing—you have to operate within a budget.

Every day, families across this country are sitting down at the kitchen table making tough choices to live within their means.

I am appalled by the lack of fiscal responsibility being shown by this body today as we seem to hold ourselves to a different standard than American workers and families.

Unfortunately, that is just business as usual in the 116th Congress.

The level of appropriations for State Department and Foreign Operations, which is what this amendment is specifically targeting, is $8.5 billion higher than Fiscal Year 2020, an increase of nearly 15 percent.

The bill continues funding normal activities through Overseas Contingency Operations, rather than through the normal funding accounts, which is a mechanism that was originally set up to avoid spending constraints.

My amendment today is simple. It would reduce State and Foreign Operations spending by 5 percent for Fiscal Year 2021. If you do the math, my amendment would cut about $3.3 billion.

Even with my modest 5 percent cut, this division would still increase spending for Fiscal Year 2021 compared to Fiscal Year 2020.

I believe my Democratic colleagues should support my amendment, since they will still be spending a lot of your hard-earned money, just a bit less than they initially intended.

I want to be clear, though. I do not want to cut funding going towards our cherished and critical ally, Israel.

I also want to know that our diplomatic efforts abroad are necessary. In fact, my son is currently living overseas and working on behalf of our Nation's interests. But it is important that we look at the balance sheet and make cuts wherever possible.

We can no longer neglect our national debt crisis, and my colleagues must take a serious look at Washington spending and start to take back control.

For the sake of our children and grandchildren, we must act immediately to rein in Federal spending so we don't leave our next generation with an insurmountable debt.

Mr. Speaker, I am the proud grandfather of 13 grandchildren, with one on the way, and I believe it is my duty to do everything in my power to avoid placing a $26 trillion and rising burden of debt on their backs.

My amendment is just a small first step toward bringing fiscal responsibility back to Washington. I urge all my colleagues in this body to support my amendment today.

Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I claim time in opposition to the gentleman's amendment.

The SPEAKER pro tempore. The gentlewoman from New York is recognized for 5 minutes.

Mrs. LOWEY. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, our committee has worked hard on a bipartisan basis to craft a bill that provides the necessary tools to the Secretary of State and the USAID administrator to advance United States foreign policy.

Mr. Speaker, I have long opposed amendments that indiscriminately apply across-the-board cuts to the carefully considered funding in this bill, which addressed many of the requests brought to the committee from both Democrats and Republicans in the House.

Such amendments make no provision for protecting high-priority programs and activities. For example, this amendment would cut $165 million

from security assistance for Israel. It would cut $457 million from global health programs, including $296 million less for HIV/AIDS activity. This amendment would cut $391 million from lifesaving humanitarian assistance and $305 million from funds made available to protect our diplomats and development personnel and the facilities in which they work and live overseas.

In addition to assistance for our ally Israel, cuts would also impact funding for other key allies, such as Jordan, Egypt, Ukraine, Colombia, and countries in Eastern Europe that are battling Russian aggression and disinformation.

I strongly urge a ''no'' vote on the gentleman's amendment, and I reserve the balance of my time.

Mr. ALLEN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I understand we are in unprecedented times. But of the $10 billion in spending that Democrats say go towards international coronavirus relief, only $2.5 billion is designated to health programs, and a significant amount of those funds are diverted away from coronavirus.

And let me just say that I understand the need to work with our allies on a vaccine and global health response to the coronavirus, but I believe that our priorities should be focused on combatting the virus here in the United States.

Mr. Speaker, I cannot overstate the importance of restoring fiscal sanity here in the United States Congress. It is in the best interests of the future of our country that we take desperately needed steps to rein in our national debt.

We are passing along to future generations an enormous debt burden. Does anybody understand that? I mean, can you imagine our children's children's children's children dealing with this?

I would ask all my colleagues today to think about your kids, your grandkids, and your great-grandkids before casting your vote.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the gentleman from Kentucky (Mr. ROGERS), the distinguished ranking member on the State, Foreign Operations, and Related Programs Subcommittee.

Mr. ROGERS of Kentucky. Mr. Speaker, I rise in opposition to the gentleman's amendment. This bill funds a number of important programs that are part of our national security. While I believe there is room for a small reduction, taking cuts across the board is not an appropriate way to carry that out.

The amendment would cut everything across the bill, indiscriminately, and that includes the $3.3 billion, as has been mentioned, in foreign military financing for Israel. Reducing funding for Israel's security by $165 million, in addition to reductions to embassy security and other key investments, is ill-advised. There is a better way.

I urge Members to oppose the amendment.

Mrs. LOWEY. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, our national security is strongest when development, diplomacy, and defense are equally prioritized. This amendment undermines U.S. leadership and diminishes our engagement in the world.

Yes, I do think of my eight grandchildren when I urge my colleagues to oppose this amendment.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the previous question is ordered on the amendment offered by the gentleman from Georgia (Mr. ALLEN).

The question is on the amendment.

The question was taken; and the Speaker pro tempore announced that the noes appear to have it.

Mr. ALLEN. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

AMENDMENTS EN BLOC NO. 1 OFFERED BY MRS. LOWEY OF NEW YORK

Mrs. LOWEY. Mr. Speaker, pursuant to House Resolution 1060, I offer amendments en bloc.

The SPEAKER pro tempore. The Clerk will designate the amendments en bloc.

Amendments en bloc No. 1 consisting of amendment Nos. 2, 11, 12, 14, 16, 19, 20, 26, 30, 32, 34, 35, 37, 38, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 59, 60, 63, 69, 71, 73, 75, 79, 80, 81, 82, 99, 100, 104, 106, 107, 108, 109, 111, 113, 114, 115, 116, 117, 118, 119, 121, 122, 123, 125, 126, 127, 128, 129, 130, 131, and 132 printed in House Report 116–459, offered by Mrs. LOWEY of New York:

AMENDMENT NO. 2 OFFERED BY MR. BARR OF KENTUCKY

Page 64, line 9, after the first dollar amount, insert ''(increased by $25,000,000) (decreased by $25,000,000)''.

AMENDMENT NO. 11 OFFERED BY MS. JACKSON LEE OF TEXAS

Page 264, line 14, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 12 OFFERED BY MS. JACKSON LEE OF TEXAS

Page 30, line 25, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 14 OFFERED BY MR. LEVIN OF MICHIGAN

At the end of division A (before the short title), insert the following:

SEC. _____. None of the funds made available by this Act may be used to support the forced relocation of refugees to Bhasan Char.

AMENDMENT NO. 16 OFFERED BY MR. LYNCH OF MASSACHUSETTS

Page 4, line 17, after the first dollar amount, insert ''(reduced by $1,500,000)''.

Page 5, line 11, after the dollar amount, insert ''(reduced by $1,500,000)''.

Page 49, line 5, after the dollar amount, insert ''(increased by $1,500,000)''.

AMENDMENT NO. 19 OFFERED BY MR. MCCAUL OF TEXAS

Page 8, line 5, after the dollar amount, insert ''(reduced by $25,000,000)''.

Page 49, line 5, after the dollar amount, insert ''(increased by $25,000,000)''.

AMENDMENT NO. 20 OFFERED BY MRS. MURPHY OF FLORIDA

Page 227, line 17, after the dollar amount, insert ''(increased by $3,000,000)''.

AMENDMENT NO. 26 OFFERED BY MR. PERRY OF PENNSYLVANIA

Page 30, line 25, after the dollar amount, insert ''(reduced by $100,000) (increased by $100,000)''.

AMENDMENT NO. 30 OFFERED BY MR. ROSE OF NEW YORK

Page 5, line 17, after the dollar amount, insert ''(reduced by $500,000)''.

Page 6, line 1, after the dollar amount, insert ''(increased by $500,000)''.

AMENDMENT NO. 32 OFFERED BY MR. SCHWEIKERT OF ARIZONA

Page 302, line 3, after the dollar amount, insert ''(reduced by $1,000,000)(increased by $1,000,000)''.

AMENDMENT NO. 34 OFFERED BY MS. TITUS OF NEVADA

Page 4, line 17, after the first dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 35 OFFERED BY MRS. WAGNER OF MISSOURI

Page 4, line 17, after the first dollar amount, insert the following: ''(reduced by $5,000,000)''.

Page 5, line 17, after the dollar amount, insert the following: ''(reduced by $5,000,000)''.

Page 47, line 15, after the dollar amount, insert the following: ''(increased by $5,000,000)''.

Page 267, line 4, after the dollar amount, insert the following: ''(increased by $5,000,000)''.

Page 267, line 6, after the dollar amount, insert the following: ''(increased by $5,000,000)''.

AMENDMENT NO. 37 OFFERED BY MS. ADAMS OF NORTH CAROLINA

Page 329, line 11, after the dollar amount, insert ''(reduced by $3,000,000)''.

Page 427, line 9, after the dollar amount, insert ''(increased by $3,000,000)''.

AMENDMENT NO. 38 OFFERED BY MR COHEN OF TENNESSEE

Page 331 line 13, after the dollar amount, insert ''(reduced by $150,000) (increased by $750,000)''.

AMENDMENT NO. 40 OFFERED BY MR. COURTNEY OF CONNECTICUT

Page 335, line 21, after the first dollar amount, insert ''(increased by $750,000) (decreased by $750,000)''.

AMENDMENT NO. 41 OFFERED BY MR. RODNEY DAVIS OF ILLINOIS

Page 335, line 21, after the dollar amount, insert ''(increased by $10,000,000) (reduced by $10,000,000)''.

AMENDMENT NO. 42 OFFERED BY MS. GONZÁLEZ-COLÓN OF PUERTO RICO

Page 379, line 10, after the 1st dollar amount, insert ''(increased by $528,585,000)''.

AMENDMENT NO. 43 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 329, line 16, after the first dollar amount, insert ''(increased by $5,700,000,000) (reduced by $5,700,000,000)''.

AMENDMENT NO. 44 OFFERED BY MR. GRAVES OF LOUISIANA

Page 335, line 14, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 45 OFFERED BY MS. JACKSON LEE OF TEXAS

At the end of division B, before the short title, insert the following:

SEC. ____. None of the funds made available by this Act under the heading ''DOMESTIC FOOD PROGRAMS—Food and Nutrition Service—Supplemental Nutrition Assistance Program'' may be used in contravention of section 107(b) of division A of the Victims of Trafficking and Violence Protection Act of 2000 (114 Stat. 1475; 22 U.S.C. 7105(b)).

AMENDMENT NO. 46 OFFERED BY MS. JACKSON LEE OF TEXAS

Page 329, line 11, after the dollar amount, insert ''(reduced by $3,000,000)''.

Page 335, line 21, after the dollar amount, insert ''(increased by $2,000,000)''.

AMENDMENT NO. 47 OFFERED BY MR. LAMALFA OF CALIFORNIA

Page 329, line 11, after the dollar amount, insert ''(reduced by $5,000,000)''.

Page 330, line 20, after the dollar amount, insert ''(reduced by $20,000,000)''.

Page 375, line 12, after the dollar amount, insert ''(increased by $25,000,000)''.

AMENDMENT NO. 48 OFFERED BY MR. LAMALFA OF CALIFORNIA

Page 429, line 2, after the dollar amount, insert ''(reduced by $50,000,000) (increased by $50,000,000)''.

AMENDMENT NO. 49 OFFERED BY MR. SEAN PATRICK MALONEY OF NEW YORK

Page 335, line 21, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 50 OFFERED BY MR. NEGUSE OF COLORADO

Page 331, line 13, after the dollar amount, insert ''(increased by $1,000,000)''.

Page 332, line 3, after the dollar amount, insert ''(reduced by $1,000,000)''.

AMENDMENT NO. 51 OFFERED BY MR. PANETTA OF CALIFORNIA

Page 332, line 11, after the dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 52 OFFERED BY MR. PANETTA OF CALIFORNIA

Page 326, line 16, after the first dollar amount, insert ''(increased by $500,000,000) (reduced by $500,000,000)''.

AMENDMENT NO. 53 OFFERED BY MS. PLASKETT OF VIRGIN ISLANDS

Page 326, line 16, after the first dollar amount, insert ''(reduced by $2,000,000)''.

Page 326, line 22, after the dollar amount, insert ''(reduced by $2,000,000)''.

Page 326, line 24, after the dollar amount, insert ''(reduced by $2,000,000)''.

Page 329, line 11, after the dollar amount, insert ''(reduced by $3,000,000)''.

Page 428, line 20, after the dollar amount, insert ''(increased by $5,000,000)''.

AMENDMENT NO. 54 OFFERED BY MR. SCALISE OF LOUISIANA

Page 332, line 3, after the dollar amount, insert ''(reduced by $6,000,000)''.

Page 386, line 12, after the dollar amount, insert ''(increased by $6,000,000)''.

Page 388, line 9, after the dollar amount, insert ''(increased by $6,000,000)''.

AMENDMENT NO. 55 OFFERED BY MS. SHERRILL OF NEW JERSEY

Page 386, line 12, after the first dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 56 OFFERED BY MR. SOTO OF FLORIDA

Page 326, line 16, after the first dollar amount, insert ''(reduced by $1,000,000)''.

Page 326, line 22, after the dollar amount, insert ''(reduced by $1,000,000)''.

Page 326, line 24, after the dollar amount, insert ''(reduced by $1,000,000)''.

Page 335, line 21, after the dollar amount, insert ''(increased by $1,000,000)''.

AMENDMENT NO. 57 OFFERED BY MR. SOTO OF FLORIDA

Page 389, line 5, after the dollar amount, insert ''(reduced by $2,276,000) (increased by $2,276,000)''.

AMENDMENT NO. 59 OFFERED BY MR. WELCH OF VERMONT

Page 332, line 3, after the dollar amount, insert ''(reduced by $5,000,000)''.

Page 428, line 23, after the dollar amount, insert ''(increased by $5,000,000)''.

AMENDMENT NO. 60 OFFERED BY MR. WELCH OF VERMONT

Page 386, line 12, after the dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''

AMENDMENT NO. 63 OFFERED BY MS. BARRAGÁN OF CALIFORNIA

Page 478, line 14, after the first dollar amount, insert ''(reduced by $ 1,000,000)''.

Page 511, line 14, after the first dollar amount, insert ''(increased by $1,000,000)''.

Page 519, line 20, after the first dollar amount, insert ''(increased by $1,000,000)''.

AMENDMENT NO. 69 OFFERED BY MR. COHEN OF TENNESSEE

Page 437, line 1, after the first dollar amount, insert ''(reduced by $11,000,000) (increased by $11,000,000)''.

AMENDMENT NO. 71 OFFERED BY MR. COURTNEY OF CONNECTICUT

Page 449, line 10, after the first dollar amount, insert ''(reduced by $300,000) (increased by $300,000)''.

AMENDMENT NO. 73 OFFERED BY MRS. DINGELL OF MICHIGAN

At the end of division C (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to withdraw—

(1) the preliminary regulatory determination to regulate perfluorooctanesulfonic acid (PFOS) and perfluorooctanoic acid (PFOA) under section 1412(b) of the Safe Drinking Water Act (42 U.S.C. 300g–1(b)) that is described in the document entitled ''Announcement of Preliminary Regulatory Determinations for Contaminants on the Fourth Drinking Water Contaminant Candidate List'' published by the Environmental Protection Agency in the Federal Register on March 10, 2020 (85 Fed. Reg. 14098); or

(2) the proposed rule of the Environmental Protection Agency entitled ''Designating PFOA and PFOS as CERCLA Hazardous Substances'' (RIN: 2050-AH09).

AMENDMENT NO. 75 OFFERED BY MS. ESCOBAR OF TEXAS

Page 517, line 3, after the dollar amount, insert ''(increased by $1,000,000) (reduced by $1,000,000)''.

AMENDMENT NO. 79 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 436, line 23, after the dollar amount, insert ''(reduced by $1,000,000)''.

Page 568, line 19, after the first dollar amount, insert ''(increased by $1,000,000)''.

Page 568, line 23, after the dollar amount, insert ''(increased by $1,000,000)''.

AMENDMENT NO. 80 OFFERED BY MR. HUDSON OF NORTH CAROLINA

Page 478, line 14, after the dollar amount, insert ''(reduced by $2,000,000)''.

Page 506, line 21, after the dollar amount, insert ''(increased by $2,000,000)''.

AMENDMENT NO. 81 OFFERED BY MR. HUDSON OF NORTH CAROLINA

Page 507, line 19, after the dollar amount, insert ''(reduced by $2,487,000) (increased by $2,487,000)''.

AMENDMENT NO. 82 OFFERED BY MR. HUDSON OF NORTH CAROLINA

Page 533, line 6, after the dollar amount, insert ''(reduced by $466,173,000) (increased by $466,173,000)''.

AMENDMENT NO. 99 OFFERED BY MR. SCHWEIKERT OF ARIZONA

Page 478, line 14, after the dollar amount, insert ''(reduced by $500,000)''.

Page 507, line 19, after the dollar amount, insert ''(increased by $500,000)''.

AMENDMENT NO. 100 OFFERED BY MS. SHERRILL OF NEW JERSEY

Page 456, line 6, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 478, line 14, after the dollar amount, insert ''(reduced by $2,000,000)''.

AMENDMENT NO. 104 OFFERED BY MS. SPEIER OF CALIFORNIA

Page 524, line 12, after the dollar amount, insert ''(reduced by $1) (increased by $1)''.

AMENDMENT NO. 106 OFFERED BY MR. BARR OF KENTUCKY

Page 638, line 10, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 639, line 25, after the dollar amount, insert ''(reduced by $5,000,000)''.

AMENDMENT NO. 207 OFFERED BY MR. BERMAN OF MICHIGAN

Page 638, line 10, after the dollar amount, insert '' '(reduced by $300,000,000)(increased by $300,000,000)''.

AMENDMENT NO. 108 OFFERED BY MR. CARBAJAL OF CALIFORNIA

Page 638, line 10, after the dollar amount, insert ''(reduced by $5,000,000)(increased by $5,000,000)''.

AMENDMENT NO. 109 OFFERED BY MR. CARBAJAL OF CALIFORNIA

Page 644, line 20, after the dollar amount, insert ''(reduced by $3,500,000)''.

Page 644, line 25, after the dollar amount, insert ''(reduced by $3,500,000)''.

Page 638, line 10, after the dollar amount, insert ''(increased by $3,000,000)''.

AMENDMENT NO. 111 OFFERED BY MS. CRAIG OF MINNESOTA

Page 638, line 10, after the dollar amount, insert ''(increased by $1,500,000)''.

Page 643, line 25, after the dollar amount, insert ''(reduced by $1,500,000)''.

AMENDMENT NO. 113 OFFERED BY MR. GOLDEN OF MAINE

Page 650, line 16, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 114 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 643, line 25, after the first dollar amount, insert ''(reduced by $1,300,000)''.

Page 647, line 8, after the first dollar amount, insert ''(increased by $1,300,000)''.

AMENDMENT NO. 115 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 639, line 25, after the dollar amount, insert ''(increased by $1,000,000)''.

Page 643, line 25, after the dollar amount, insert ''(reduced by $1,000,000)''.

AMENDMENT NO. 116 OFFERED BY MR. GRAVES OF LOUISIANA

Page 642, line 3, after the dollar amount, insert ''(increased by $274,900,000)(decreased by $274,900,000)''.

AMENDMENT NO. 117 OFFERED BY MRS. HARTZLER OF MISSOURI

Page 638, line 10, after the dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 118 OFFERED BY MR. HILL OF ARKANSAS

Page 643, line 25, after the dollar amount, insert ''(increased by $1,000,000)''.

Page 644, line 20, after the dollar amount, insert ''(reduced by $1,000,000)''.

Page 644, line 25, after the dollar amount, insert ''(reduced by $1,000,000)''.

AMENDMENT NO. 119 OFFERED BY MR. KIM OF NEW JERSEY

Page 637, line 2, after the dollar amount, insert ''(reduced by $1,000,000)''.

Page 638, line 10, after the dollar amount, insert ''(increased by $1,000,000)''.

AMENDMENT NO. 121 OFFERED BY MR. LAMALFA OF CALIFORNIA

Page 643, line 25, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 122 OFFERED BY MR. LIPINSKI OF ILLINOIS

Page 643, line 25, after the dollar amount, insert ''(reduced by $3,000,000)''.

Page 651, line 10, after the dollar amount, insert ''(increased by $3,000,000)''.

AMENDMENT NO. 123 OFFERED BY MR. LYNCH OF MASSACHUSETTS

Page 638, line 10, after the dollar amount, insert ''(increased by $1,500,000)''.

Page 643, line 25, after the dollar amount, insert ''(reduced by $1,500,000)''.

AMENDMENT NO. 125 OFFERED BY MRS. MURPHY OF FLORIDA

Page 638, line 10, after the dollar amount, insert ''(increased by $1,500,000)''.

Page 643, line 25, after the dollar amount, insert ''(reduced by $1,500,000)''.

AMENDMENT NO. 126 OFFERED BY MS. NORTON OF DISTRICT OF COLUMBIA

Page 637, line 2, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 127 OFFERED BY MR. PAPPAS OF NEW HAMPSHIRE

Page 656, line 8, after the dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 128 OFFERED BY MS. PORTER OF CALIFORNIA

Page 638, line 10, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 644, line 20, after the dollar amount, insert ''(decreased by $2,000,000)''.

Page 644, line 25, after the dollar amount, insert ''(decreased by $2,000,000)''.

AMENDMENT NO. 129 OFFERED BY MR. RUIZ OF CALIFORNIA

Page 638, line 10, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 130 OFFERED BY MS. SHERRILL OF NEW JERSEY

Page 638, line 10, after the dollar amount, insert ''(increased by $1,000,000)''.

Page 643, line 25, after the dollar amount, insert ''(reduced by $1,000,000)''.

AMENDMENT NO. 131 OFFERED BY MS. WATERS OF CALIFORNIA

Page 640, line 23, after the dollar amount, insert ''(increased by $2,000,000)''.

Page 644, line 20, after the dollar amount, insert ''(reduced by $2,000,000)''.

Page 644, line 25, after the dollar amount, insert ''(reduced by $2,000,000)''.

AMENDMENT NO. 132 OFFERED BY MR. WELCH OF VERMONT

Page 642, line, 21, after the dollar amount, insert the following: ''(reduced by $1,000,000) (increased by $1,000,000)''.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentlewoman from New York (Mrs. LOWEY) and the gentlewoman from Texas (Ms. GRANGER) will each control 15 minutes.

The Chair recognizes the gentlewoman from New York.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentlewoman from Minnesota (Ms. Craig).

Ms. CRAIG. Mr. Speaker, we owe our veterans our utmost respect and a debt that can never be repaid.

Earlier this year, I testified for increased mental health services, especially in rural communities, and increased access to care on behalf of the veterans in Minnesota's Second Congressional District.

I am proud that my legislation is included in the bill that we will pass tomorrow, and it includes the following:

My amendment for a $1.5 million increase in the Veterans Health Administration medical services' account to expand the Rural Health Resources Center's program and increase funding for the Office of Rural Health so that they can continue their research to navigate barriers and expand access to care.

I ask all of my colleagues to join me in stepping up to support our veterans.

□ 1530

Ms. GRANGER. Mr. Speaker, I yield 1 minute to the gentleman from Utah (Mr. STEWART).

Mr. STEWART. Mr. Speaker, I rise today in opposition to amendment No. 69, sponsored by Representative COHEN from Tennessee, which is included in this en bloc.

While I appreciate the gentleman's concerns for our Nation's wild horse and burros, and I don't doubt that at all, the amendment is misguided and will actually end up hurting these animals more than it helps.

I have been working on this issue for more than 6 years. There is nothing more important to the rural part of my district than is this, yet none of the sponsors of this amendment came to me to talk about this amendment. If they had come, I could have saved them some time.

The amendment seeks to push the PZP contraceptive. The only problem with that is it doesn't work. Instead, we should allow research scientists and the BLM to do their jobs in determining the best way to manage these herds.

Tying their hands by earmarking 50 percent of the increase on PZP birth control doesn't allow them to follow the best science to maintain healthy herds and healthy ranges. If you care about these animals and if you don't want to see them starve to death, then, please, work with us, and let's defeat this amendment.

Mr. Speaker, I am going to conclude, if I have a few more seconds. We have a diverse and bipartisan group that has been working on this, as I have, for many years.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentlewoman from Michigan (Mrs. DINGELL), the co-chair of the DPCC.

Mrs. DINGELL. Mr. Speaker, I rise in support of the bipartisan en bloc amendment and three of my important amendments included in this package to address PFAS contamination.

PFAS is a national health and environmental crisis. It is growing in scope every day, contaminating our air, water, and soil. Michigan has been hit hard. But yesterday, we led in setting the standard in the absence of Federal action.

My main amendment will ensure that the administration cannot withdraw their decision issued in January to proceed with the national drinking water standard for PFO and PFOS. It will also prevent the administration from reversing its efforts to designate these notorious chemicals as hazardous substances under the Superfund program, which will kick-start the cleanup process at the most contaminated sites nationwide.

This amendment doesn't go far enough, but it is a beginning to make sure we don't go backward in our efforts. I push all of my colleagues to join these efforts as cosponsors and thank Chair MCCOLLUM for her enduring leadership in this year's Interior appropriations bill.

Ms. GRANGER. Mr. Speaker, I yield 1½ minutes to the gentleman from Washington (Mr. NEWHOUSE).

Mr. NEWHOUSE. Mr. Speaker, I rise today to urge my colleagues to support this bloc of bipartisan amendments, which contains two amendments I have offered with my friends across the aisle.

Mr. SOTO and I introduced an amendment which will support important fertilizer research and development through the fertilizer management initiative, as this body authorized in the 2018 Farm Bill.

I also would like to speak on an amendment I offered with Mr. PANETTA, which will empower agriculture employees to provide personal protective equipment for our essential agriculture workers. This pandemic has affected every aspect of our lives, but what has not changed is the critical role that our farmers, our ranchers, and our agricultural employees play in putting food on our tables and securing our Nation's food supply.

It is my hope that this amendment will lead to a larger conversation about how we ensure the safety of those working hard to feed our country and strengthen our agricultural industry.

Mr. Speaker, I urge my colleagues to support these amendments, and I look forward to continuing our bipartisan work.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentlewoman from Nevada (Ms. TITUS).

Ms. TITUS. Mr. Speaker, for more than 80 years, Hagia Sophia has served as a museum visited by people from all

around the globe. As a UNESCO World Heritage Site, it is an architectural masterpiece, with a complex history as a place of worship for both Christians and Muslims.

Changing its status is an affront to religious pluralism, and it jeopardizes its standing. This amendment encourages the State Department to denounce Turkey for taking this despicable action and to engage for the purpose of returning its status to a museum.

Mr. Speaker, I urge support of this amendment.

Ms. GRANGER. Mr. Speaker, I yield 1½ minutes to the gentleman from Michigan (Mr. BERGMAN).

Mr. BERGMAN. Mr. Speaker, on behalf of all veterans living rurally and remotely, I rise in support of my amendment included in this en bloc package.

The amendment focuses additional efforts within the Veterans Health Administration Office of Rural Health on solutions that will bring more connectivity to veterans living in rural and remote areas.

My district features not just rural but remote communities where many veterans are unable to access high-speed broadband. The coronavirus has only further highlighted this digital divide.

The VA and Congress proactively responded to the pandemic with increased telehealth resources for veterans. This is a crucial and critical step, but what good is it for the veterans who don't have access to broadband in the first place?

We need to keep our Nation's promises to all veterans, including those living in rural and remote communities.

Mr. Speaker, I strongly urge my colleagues to support this amendment.

Mrs. LOWEY. Mr. Speaker, I am pleased to yield 45 seconds to the gentleman from California (Mr. RUIZ).

Mr. RUIZ. Mr. Speaker, I rise today in support of my amendment to H.R. 7608, which provides an additional $1 million for the VA to conduct educational outreach to veterans about the Airborne Hazards and Open Burn Pit Registry.

My amendment will help veterans exposed to burn pits by strengthening the burn pit registry and making patients aware of early warning signs of life-threatening illnesses as well as the existence of the registry.

My amendment will also fund additional research on the health effects of burn pits, using the data from the registry.

Mr. Speaker, I urge my colleagues to help our veterans exposed to burn pits by supporting my amendment.

Ms. GRANGER. Mr. Speaker, I yield 3 minutes to the gentleman from Alaska (Mr. YOUNG), the dean of the House.

Mr. YOUNG. Mr. Speaker, Madam Chair, and Madam Ranking Member, this could be a good bill, but there are some provisions that shouldn't be in it that were put in it.

One is ANWR, which we passed in this House 13 times with help from both sides, open an Arctic wildlife range. There is a provision here to prohibit that.

There is also a provision not to repeal the roadless area in the Tongass National Forest.

There is a provision about not allowing the State of Alaska to control the fishing and hunting rights of the State of Alaska on Federal lands, as it is now.

You know, I resent it. To allow other Members of Congress to come into your district or my district and tell us how we should represent them, this is not the way to do business. This is the House of the people, as representatives of the people, duly-elected from each constituent.

Everyone that I know of in my State opposes these riders and these amendments. But for some reason, there is a group that say, ''Oh, we know better than the people,'' the Congressmen. We know what is best for us, and it is not their district.

The Tongass, for instance, is an area of 16 million acres of land. Prohibiting harvesting timber or access because of the roadless definition of the Obama administration is wrong. We have harvested less than 400 acres of that whole total 16 million acres of land. We are not asking to harvest that, but we want access for communities. And there are other parts of our State, lands within that forestland, but this provision, this rider, would preclude that. That is not representation from a Congress of the people.

I have watched this body now in 48 years dissolve into what I call an adversarial position on both sides by label. That is not representation. These riders shouldn't be in here. These amendments should not be accepted if you believe in the House of Congress for the people of America. If you don't believe that, maybe we ought to set up a different system. These should not be in this bill.

The bill, overall, is not a bad bill. I think it is pretty good. In fact, there are some good things in there for Alaska. But you had to let these little mice come into the barn and eat the grain and leave residue behind.

I am making a suggestion. When you write these bills, be very careful what you allow to be put in the bills that don't apply to the bill and, in fact, are personal interests not only from those Congressmen that submitted them but wrong for the State of Alaska.

The SPEAKER pro tempore. Members are reminded to address their remarks to the Chair.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentleman from Tennessee (Mr. COHEN).

Mr. COHEN. Mr. Speaker, the two amendments that I have in the en bloc concern horses.

One concerns wild horses and a more humane way to deal with the wild horse population. Right now, the Bureau of Land Management uses helicopters, rounds them up, and puts them in pens for the rest of their lives. This would be a more humane practice and cost only 10 percent of their budget, and it would certainly be something the Rolling Stones would be for, ''Wild Horses.''

The other is one that would give money for an audit on the soring practices of Tennessee walkers, an inhumane practice that has gone on for a long time. We need to be considerate of our four-legged friends, and this would support the walking horses.

Mr. Speaker, I am thankful to see these included in the en bloc, and I am pleased to see this progress.

Ms. GRANGER. Mr. Speaker, I yield 1 minute to the gentleman from Kentucky (Mr. BARR).

Mr. BARR. Mr. Speaker, I rise today in support of my amendment to this appropriations package that highlights the need to use all the tools in America's tool kit to counter the Chinese Communist Party and the totalitarian government in Beijing.

My amendment shows bipartisan support for the United States International Development Finance Corporation and its important work to counter China's Belt and Road Initiative.

As a member of the House's China Task Force and former chair of the House Financial Service's Subcommittee on Monetary Policy and Trade with jurisdiction over the Treasury Department's national security portfolio, I am keenly aware of the threat that China poses through its Belt and Road Initiative and direct foreign investment internationally.

While we will never match China dollar for dollar in government subsidies, agencies like DFC can leverage the unlimited potential of the private sector to counter China's model of debt-trap diplomacy and colonialism.

I am proud to support DFC in promoting private investment in developing countries, its role in advancing U.S. global development goals and economic interests, and offering an alternative to China's malign investment overseas.

Mr. Speaker, I urge my colleagues to adopt this amendment.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentlewoman from New Jersey (Ms. SHERRILL).

Ms. SHERRILL. Mr. Speaker, I rise today in support of my amendment to increase funding for the Airborne Hazard and Burn Pit Center of Excellence.

Burn pits have been called the Agent Orange of our generation. Too many of our veterans have been exposed to harmful chemicals from burn pits, which we know lead to increased risk of lung and respiratory diseases. We have seen this firsthand in my district due to the illnesses related to working on the burn pits on the pile in an area of the 9/11 terrorist attacks. We must do more.

The center located in New Jersey is doing critical research into the long-term health effects from burn pits, research our veterans and healthcare providers need.

Mr. Speaker, I urge my colleagues to support this package.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentleman from Florida (Mr. SOTO).

Mr. SOTO. Mr. Speaker, this appropriations package continues to make important investments to restore and protect the environment of our beautiful State of Florida.

We have language in there encouraging the National Park Service to consider the Kissimmee River at the headwaters of the Everglades for the Wild and Scenic Rivers Program, one of the highlights of our district.

Everglades restoration: over $15 million, including $10 million for CERP.

We help address harmful algal blooms that hurt our coast, including recognizing the threat and encouraging EPA for more support and research.

We address the threats to the Great Florida Reef by recognizing the coral disease outbreak and recommending additional resources with State and local partners.

We help out with sinkholes throughout Florida by having the USGS identify and map them out so we can protect Floridians.

We are also recognizing natural disasters like the earthquake in Puerto Rico by continuing to develop new programs.

□ 1545

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentleman from California (Mr. PANETTA).

Mr. PANETTA. Mr. Speaker, I thank the gentlewoman for yielding.

I rise today to offer an amendment to protect our Nation's farmworkers.

This pandemic has shown that our farmworkers are absolutely essential. They show up to work every day to keep our communities fed and our Nation's food secure. But due to living and working conditions, many are uniquely susceptible to this disease.

That is why we must dedicate immediate and robust funds to the USDA to establish an emergency program that covers the cost of PPE and other safety measures to protect our farmworkers.

And that is just the beginning. We need to provide our farmworkers with proper pay, job security, methods for childcare, family leave, and support for their families.

Our farmworkers deserve and require action from the Federal Government to protect our food supply and our food security.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from North Carolina (Mr. HUDSON).

Mr. HUDSON. Mr. Speaker, I thank the gentlewoman for yielding and for her tremendous leadership. I also thank Chairwoman MCCOLLUM and Ranking Member JOYCE for working with me on this very important amendment.

In my congressional district in North Carolina resides the Uwharrie National Forest, which many of my constituents call home. This national treasure is a pillar of our community and brings folks from all across the Nation and the world to North Carolina every year. But for those who live in the Uwharrie National Forest, it looks a lot different.

My constituents in the Green Gap community have had to contend with dangerous roads in the Uwharrie National Forest for years while the Forest Service has neglected their maintenance. As someone who has seen firsthand how dangerous these roads are, I can attest to the critical need to pave these roads.

One of my constituents had a heart attack, and the ambulance couldn't get down the road because of ruts and the washouts. Thankfully, the desperate but resourceful paramedics got out of the ambulance and sprinted down the road with a stretcher.

Another one of my constituent's house burned to the ground because the road was so impassable, the fire truck couldn't get to the house to put out the blaze.

Put yourself in the shoes of my constituents. Imagine living with this fear every day.

Working with me, the State of North Carolina has stepped up with financial assistance and agreed to maintain these roads. I am asking this Congress to also step up to ensure my constituents are not forgotten and they have access to critical lifesaving services they deserve.

Mr. Speaker, I urge my colleagues to support my amendment.

Mrs. LOWEY. Mr. Speaker, I yield 45 seconds to the gentleman from New Jersey (Mr. GOTTHEIMER).

Mr. GOTTHEIMER. Mr. Speaker, I thank the gentlewoman for yielding.

I rise in support of this package, which contains four amendments I introduced.

My first amendment supports the family-owned dairy farms, backbones of the rural economy in northwestern New Jersey, which are facing major challenges from the pandemic.

Dairy farmers have suffered more than $5.7 billion in losses from the crisis, and my amendment calls for support for the dairy farmers.

My second amendment provides more resources for the inspector general of the VA to investigate and ensure proper compliance of the State-run veterans homes, like the disaster-stricken State-run New Jersey veterans home in Paramus, where 81 residents and one staff member tragically died from the coronavirus outbreak. My amendment will make much stronger Federal oversight of these facilities possible, which we need to protect our veterans.

My third boosts investment for medical care at non-VA facilities to continue our fight for greater access to healthcare for veterans in north Jersey.

And my fourth would increase investment for the United States Holocaust Memorial Museum's outreach services.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. Mr. Speaker, I yield the gentleman from New Jersey an additional 15 seconds.

Mr. GOTTHEIMER. Mr. Speaker, my fourth amendment would increase investment for the United States Holocaust Memorial Museum's outreach services so more Americans can learn about the history of the Holocaust, anti-Semitism, and other forms of hatred, bigotry, and intolerance.

Mr. Speaker, I urge support for this bipartisan en bloc set of amendments.

Ms. GRANGER. Mr. Speaker, I yield back the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield back the balance of my time.

Ms. KAPTUR. Mr. Speaker, I rise in support of further research, production, and use of PZP–22, native PZP, GonaCon, and other reversible fertility control to help reduce our country's untenable wild horse populations. Urgent action is needed to protect the wild horses and prevent further population increase.

I support and thank my colleague Representative STEVE COHEN and those who joined him in the Appropriations amendment which calls for $11,000,000 for the Bureau of Land Management's (BLM) Wild Horse and Burro Program budget. This funding would be used to implement a humane fertility treatment such as PZP, which is a reversible fertility control. This specific funding is a necessary and immediate measure that addresses the bipartisan call for humanely managing the wild horse population.

In my district, the University of Toledo has led the way on research and production of PZP–22 for wild horse fertility control. BLM recently confirmed that PZP remains a necessary tool to control the wild herds. Unfortunately, BLM is not utilizing PZP or fertility controls to its fullest potential and is leaving research capabilities unutilized. BLM has a duty to continue the research, production, and use of proven contraception such as PZP–22, while also pursuing other efforts toward their goal of a vaccine that can be administered quickly and cost effectively. The Cohen Amendment draws critical attention to these measures.

I look forward to continuing to work with my colleagues in the House and the Bureau of Land Management to find a humane and effective solution to reversible fertility control. Until then, we must persist with proven reversible fertility vaccines to quell the unsustainable wild horse population.

I urge adoption of the Cohen Amendment.

Mr. MCCAUL. Mr. Speaker, the Chinese Communist Party's aggression and malign conduct grows more severe each day. The CCP's malfeasance allowed the COVID–19 outbreak to become a global pandemic, causing untold economic destruction. They conduct militarized territorial aggression against most countries that border China. The CCP is pioneering a new form of colonialism, degrading the sovereignty of developing nations through debt and corruption, extracting resources and military outposts. They have orchestrated the largest transfer of wealth in human history

through state-directed economic espionage against the United States and other advanced economies. And the CCP is responsible for the gravest human rights atrocities occurring in the 21st century. The evidence is manifest that the malign influence of the CCP is the greatest United States foreign policy challenge of this generation. It affects every one of our states and districts, a fact that was underscored this week by the closure of China's Houston consulate in response to multiple instances of economic espionage. We must sustain U.S. resources to counter this threat, so I am grateful that my amendment has been included in a bipartisan en bloc package for H.R. 7608, the Fiscal Year 2021 State, Foreign Operations, Agriculture, Rural Development, Interior, Environment, Military Construction, and Veterans Affairs Appropriations Act. My amendment will partially restore the prior fiscal year's funding levels for the Countering Chinese Influence Fund, helping to ensure that appropriate resources are available to address this generational challenge. I'm glad that the House will address our leading foreign policy priority on a bipartisan basis, and thank my colleagues for supporting this measure to sustain U.S. resources to counter the malign influence of the CCP.

Mr. COURTNEY. Mr. Speaker, I rise in support of my amendment, numbered 40 to Division B of H.R. 7608, to provide $750,000 for the National Institute of Food and Agriculture's Agricultural and Food Research Initiative to research innovative practices to increase carbon storage in agricultural land. My amendment identifies Enhanced Rock Weathering as a priority research area, with a focus especially on how this practice enhances carbon sequestration or may affect air quality and soil health. Additionally, my amendment requires that research also identify any impacts this practice would have on workers and consumers.

As discussed by a new major research study from the University of Sheffield, published in Nature, adding rock dust to farmland could remove up to two billion tons of carbon dioxide from the air each year and help significantly reduce our global CO2 footprint. The technique of adding crushed volcanic rock dust to farmland—known as ''enhanced rock weathering''—has shown great potential to increase the soil's extraction of carbon dioxide from the environment.

However, there are significant gaps in this research, including the side effects of this method on public health for both farmworkers and neighboring communities, and USDA is not currently engaged in studying this particular practice. Clearly more research is needed on this technology, and USDA is well-positioned to fund this work.

I urge the adoption of this commonsense amendment to this en-bloc package.

Mr. COURTNEY. Mr. Speaker, I rise in support of my amendment numbered 71 to Division C of H.R. 7608 to increase base funding to $300,000 within the National Park Service budget for Fiscal Year (FY) 2021 for the New England National Scenic Trail (NET).

The NET was designated by the Omnibus Public Land Management Act of 2009 making it the newest of the nation's 11 national scenic trails. The NET is a 220-mile hiking trail winding through 40 communities in Connecticut and Massachusetts. Nearly 2 million people live within 10 miles of the trail, and since the designation, excitement about the trail and activities to improve the trail have continued to increase. The NET is managed through a partnership between the National Park Service and two of New England's most established nonprofit trail and conservation organizations—the Appalachian Mountain Club (AMC), established in 1876, and the Connecticut Forest & Park Association (CFPA), established in 1895.

Since designation, the NET has been flat-funded at an average level of $127,000 in Operation of the National Park System funding, despite a conservative recommendation in its original 2005 NPS Trail Feasibility Study of an annual operating budget of $271,000. An increase in base funding is needed to implement the federal portion of the Trail Management Blueprint for the NET and to support the work of two trail partner organizations, the AMC and the CFPA.

Based on more than a decade of experience with NET trail operations and needs, a total annual appropriation of $300,000 in FY 2021 is recommended to fully fund this trail and to support the work of volunteers, regional partners, and youth trail crews as they execute improvements to trail infrastructure, trail protection and planning, and trail information and promotion.

I urge adoption of this en-bloc package, and I want to thank Mr. HIMES, Ms. DELAURO, Mr. LARSON, Ms. HAYES, Mr. NEAL, and Mr. MCGOVERN for their kind support for this measure.

Mr. SEAN PATRICK MALONEY of New York. Mr. Speaker, I rise in support of my amendment to H.R. 7608, Division B—Agriculture, Rural Development Appropriations Act of 2021. My amendment, included in the bipartisan en bloc, will increase funding for the Crop Protection and Pest Management program by $1 million. In 2017, the Allium leafminer—an invasive pest that threatens onion crops—was discovered in Orange County's black dirt region. Orange County produces half of New York State's onion crop, generates $25 million in annual sales, and employs hundreds of residents. So, my office got to work with Dr. Brian Nault of Cornell. By leveraging a grant from the Crop Protection and Pest Management program, Dr. Nault has been working to find effective and sustainable solutions for managing the Allium leafminer. But he needs more help. My amendment will add $1 million into the program helping to save Orange County's onion crop. I urge my colleagues to support this legislation.

Mr. ROSE of New York. Mr. Speaker, I would like to thank Chairwoman Lowey for the opportunity to bring this critical amendment to the floor. Her leadership of the Committee is matched only by her commitment to combat the nefarious rise of anti-Semitism around the world, and unfortunately here at home.

I encourage my colleagues to support my amendment to the FY2021 State, Foreign Operations, and Related Programs appropriations bill, to increase the Diplomatic Policy and Support account by $500,000 in order to double the amount allocated for the Office of the Special Envoy to Monitor and Combat Anti-Semitism (SEAS), Elan Carr.

Over the last year, we've seen an increase in anti-Semitic rhetoric and violence directed against Jewish communities in the United States as well as around the world. In my home city of New York, hate crimes spiked by 72 percent over the same period last year. We've also seen distressing cases of violence, like the terror attacks in Monsey during the celebration of Hanukkah and the assault against a synagogue in Halle, Germany. We've even seen anti-Semites target Jewish Members of Congress like me for daring to stand up to them. It is clear that need to be investing, now more than ever, to monitoring and combatting anti-Semitism wherever it rears its head.

The Office of the Special Envoy, and especially Special Envoy Carr, have done incredible work addressing this rise in global anti-Semitism. Yet the office currently has only three dedicated full-time staffers, including the Special Envoy himself, and a number of detailees. The critical work of the Special Envoy and his Assistant Envoys requires the staff and the commensurate budget with which to confront this challenge. By doubling the amount allocated for the office, the Special Envoy will be able to hire more staff, to include specialists and operations support, as well as increase their activities identifying anti-Semitism and sharing best practices with Jewish communities around the world.

This amendment will provide a much-needed investment at a critical time for Jews around the world. I urge its inclusion in the House Appropriations package, and thank my colleagues for their support.

Ms. JACKSON LEE. Mr. Speaker, I rise to speak in strong support of Jackson Lee Amendments to H.R. 7608, the State, Foreign Operations, Agriculture, Rural Development, Interior, Environment, Military Construction, and Veterans Affairs Appropriations Act.''

I thank Chairman MCGOVERN and Ranking Member COLE for making these Jackson Lee amendments in order for House consideration of H.R. 7608.

These Jackson Lee Amendments are straightforward and make the bill even better. I believe they would command the support of a majority of the House and urge my colleagues to vote in favor of them.

The amendments are to the following divisions:

Division A—Department of State, Foreign Operations;

Division B—Agriculture, Rural Development, Food and Drug Administration; and

Division C—Department of the Interior, Environment.

DIVISION A—DEPARTMENT OF STATE, FOREIGN OPERATIONS

Jackson Lee Amendment No. 11 will designate $1,000,000 to combat the trafficking of endangered species.

My amendment makes a good bill better by providing a $1 million focus to combat the transportation of the remains of endangered species, to confront the transport of the remains of killed endangered species.

The brutal killing of Cecil the lion after being lured off a protected preserve was an indication that we needed to do more to protect endangered species at risk of being killed.

At that time, I introduced and sought the support of my colleagues as original cosponsors of my legislation, Cecil the Lion Endangered and Threatened Species Act of 2015.

This bill sought to strengthen partner countries' capacity in countering wildlife trafficking and designating major wildlife countries for protection.

The amendment offered is in the same spirit: to prohibit the taking and transportation of any endangered and threatened species as a trophy to the United States.

Currently, the Endangered Species Act does not protect most wildlife animals killed. At this point, we can choose to make wise decisions that will sustain the global population, or we can ignore the warning signs.

I believe this amendment is one that Members can support because it would bring greater awareness and protection to these beautiful and vital populations that are too often taken for granted, by allowing this amendment to address the senseless trafficking in trophy killings of all endangered and threatened species.

Jackson Lee Amendment No. 12 provides funds to be allocate funds provided for Global Health Programs to the fight against the practice of Female Genital Mutilation.

I have been a dedicated champion against this practice for a long while, even working with former Congressman Joe Crowley of New York to introduce legislation targeted at supporting the elimination of this ludicrous practice of mutilating young women.

Female genital mutilation/cutting (FGM/C) comprises all procedures that involve partial or total removal of the external female genitalia, or other injury to the female genital organs for non-medical reasons.

This practice is rooted in gender inequality and is often linked to other elements of gender-based violence and discrimination, such as child marriage and recognized internationally as a violation of the human rights of women and girls.

Unfortunately, this means an estimated 200 million girls and women alive today have been victims of FGM/C, with girls 14 and younger representing 44 million of those who have been cut.

For example, consider that:

Around the world, at least five girls are mutilated/ cut every hour.

More than 3 million girls are estimated to be at risk of FGM/C, annually.

The impacts of FGM/C on the physical health of women and girls can include bleeding, infection, obstetric fistula, complications during childbirth and death.

Other significant barriers to combatting the practice of FGM/C include the high concentration in specific regions associated with several cultural traditions, that is not tied to any one religion.

According to UNICEF, FGM/C is reported to occur in all parts of the world, but is most prevalent in parts of Africa, the Middle East, and Asia.

Due to the commonality of this practice many migrants to the U.S. bring the practice of FGM/C with them, increasing the importance of combatting FGM/C abroad.

The United Nations adopted a set of 17 Sustainable Development Goals for 2030 that includes a target to eliminate FGM/C and recognizing the abandonment of this harmful practice can be achieved because of a comprehensive movement that involves all public and private stakeholders in society.

With these provisions in place and my amendment increasing the funding for foreign assistance we can ensure Female Genital Mutilation/Cutting (FGM/C), an internationally recognized violation of the human rights of girls and women comes to an end.

Centers for Disease Control (CDC) published a report in 2016 estimating that 513,000 women and girls in the United States were at risk or may have been subjected to FGM/C.

The presence of FGM/C in the United States brings a sobering truth to light, that we still have much work to do here at home to stop our young women and girls from suffering at the hands of this archaic and utterly unnecessary practice.

I am reminded of the story of Hadiatu Jalloh, a 7-year-old from Sierra Leone, who with her mother fled to Houston to seek a life saving operation to rectify complications from the practice of FGM/C from which she suffered for more than a year.

Due to complications from the FGM procedure, little Hadiatu could not stop bleeding, she then underwent two additional nonmedical procedures to repair the damage she suffered.

However, the bleeding continued and after the second procedure to stop the bleeding, Hadiatu could not properly urinate and suffered terrible pain.

In her desperate quest for help, Hadiatu's mother Umu took her daughter across the border to Sierra Leone, but still could not find a doctor to treat Hadiatu.

Dr. Hardwick-Smith a world-renowned board certified OBGYN—along with a team led by Houston pediatric urologist Dr. Eric Jones—solved Hadiatu's problem by removing scar tissue during the successful surgery.

Stories such like this remind me of the importance of this work, and how can we cannot afford to ignore any instance of FGM/C.

And that is why earlier we celebrated the International Day of Zero Tolerance for Female Genital Mutilation, a multinational effort to bring this practice to an end.

That is why my amendment reprograms funding that will be used by the U.S. Agency for International Development (USAID) for elimination of FGM/C.

The Jackson Lee Amendment increases funding to expedite the complete and total elimination of FGM/C.

I urge support for the Jackson Lee Amendment.

DIVISION B—AGRICULTURE, RURAL DEVELOPMENT, FOOD AND DRUG ADMINISTRATION

Jackson Lee Amendment No. 45 clarifies that nothing in the bill restricts the authority of the Secretary of Agriculture or any federal agency head from providing assistance and benefits to victims of trafficking as permitted by 22 U.S.C. 7105(b) of the Victims of Trafficking and Violence Protection Act of 2000 (114 Stat. 1464, Pub. Law 106–386).

Perpetrators of crime know that they are more likely to evade detection and punishment when their victims refuse to assist or cooperate with law enforcement. That is why they make it a point to instill fear in their victims—for their own safety or that of family and loved ones.

Human trafficking involves the use of force, fraud, or coercion to obtain some type of labor or commercial sex act.

Every year, millions of men, women, and children are trafficked worldwide—including right here in the United States.

It can happen in any community and victims can be any age, race, gender, or nationality.

Traffickers might use violence, manipulation, or false promises of well-paying jobs or romantic relationships to lure victims into trafficking situations.

Language barriers, fear of their traffickers, and/ or fear of law enforcement frequently keep victims from seeking help, making human trafficking a hidden crime.

They look for people who are susceptible for a variety of reasons, including psychological or emotional vulnerability, economic hardship, lack of a social safety net, natural disasters, or political instability.

The trauma caused by the traffickers can be so great that many may not identify themselves as victims or ask for help, even in highly public settings.

Recognizing key indicators of human trafficking and providing support to victims so that traffickers are prosecuted is the first step in ending this crime.

Victims are often alone and without resources to survive outside of a trafficker's control.

Access to food programs is essential to escaping this terrible existence.

I introduced this Jackson Lee amendment to provide food assistance to victims of human trafficking no matter who they are or where they may have come from.

Jackson Lee Amendment No. 46 increases funding by $2,000,000 for the USDA agency that provides grant research funding for ''1890s Land Grant Universities,'' which are 28 Historically Black Colleges and Universities.

The USDA's National Institute of Food and Agriculture (NIFA) works to improve our nation's food production through agricultural research, economic analysis, extension, and higher education.

The NIFA was created at the time of the industrial revolution to ensure that the nation would have enough working farms to provide a reliable supply of domestically produced food.

One of the ways NIFA achieves its mission is by providing research grants to education institutions, which include 1890s institutions created by the Morrill Act of 1890.

Today, land-grant colleges and universities can be found in 18 states, the District of Columbia and the U.S. Virgin Islands. The list includes:

Alabama A&M University, Alcorn State University, Delaware State University, Florida A&M University, Fort Valley State University, Kentucky State University, Langston University, Lincoln University, North Carolina A&T State University, Prairie View A&M University in Texas, South Carolina State University, Southern University System, Tennessee State University, Tuskegee University, University of Arkansas Pine Bluff, University of Maryland Eastern Shore, University of the District of Columbia, University of the Virgin Islands, Virginia State University, West Virginia State University.

HBCUs annually enroll 40 percent of all African American students in 4-year colleges and universities.

HBCUs are prominent among research institutions in fields such as: animal sciences, sustainable agriculture and agriculture economics, toxicology and waste management, conservation and environmental management, business and industrial development, biomedical

science, food and nutrition, plant and social sciences, international development.

Research is essential to meeting the food needs of people not only in the United States but around the world.

In the U.S. the demand for fresh fruits and vegetables as well as concerns for the distance food travels before, it reaches tables in urban areas has led to more research on how to improve urban farming.

Another aspect of research is improving the shelf life of fresh fruits and vegetables to slow the process of spoilage, which has proven to be one of the problems experienced during COVID–19 due to some disruptions caused by food supply chain difficulties.

Extending shelf life of fresh fruits, and vegetables would also reduce food waste and improve diets for people on limited incomes by making fresh items will be as economical as canned or frozen.

HBCU agriculture research institutions are playing a role in bringing urban farming to communities of color.

HCBU's agricultural research programs also assist people living in densely populated areas to learn ways to eliminate food deserts, increase public education regarding farming, develop a greater appreciation for our nation's farmers, and provide new avenues for careers for those graduating with agriculture degrees seeking to enter into cutting edge agricultural research.

The funds provided by the Jackson Lee amendment would support research and education into means for helping urban and suburban communities maximize their green space by turning it into productive farming resources to support access to affordable foods.

The funding can also help to develop new research efforts directed at reducing food insecurity during a Pandemic or other crises that impact the availability or affordability of food.

I ask for your support for these Jackson Lee Amendments.

Mr. LYNCH. Mr. Speaker, I rise in support of en bloc Amendment No. 1 which includes my amendments number 16 to the State and Foreign Operations division and number 123 to the Military Construction and Veterans Affairs division of the bill.

The first of these would provide an additional $1.5 million for counterterrorisrn financing. Our nation is facing unprecedented international challenges including an out-of-control pandemic, a global economic slowdown due to the coronavirus, and stepped up efforts by authoritarian governments to undermine democratic institutions both here and around the world.

Unfortunately, these new trials do not diminish the importance of other critical longstanding challenges we have been tackling, including the threat of extremist groups and their terrorist tactics. Indeed, some groups have been trying to take advantage of the coronavirus pandemic to bolster their agendas and attract more recruits.

As Chairman of the Oversight National Security Subcommittee and Co-Chair of the Task Force on Terrorism and Proliferation Financing, I have seen how money is a lifeline for these groups. Cutting off financing is key to thwarting their efforts, and the best way to do that is by working with our allies. This additional funding will allow us to work even more closely with even more nations to starve these extremists of the capital they need to disseminate their agenda and carry out terror attacks.

My second amendment, number 123, would provide an additional $1.5 million for veterans' suicide prevention through the PREVENTS initiative. We are still seeing a suicide rate among our veterans that is unacceptably and tragically high at one-and-a-half times that of civilians. with women veterans twice as likely to die by suicide as their civilian counterparts.

I chaired a National Security Subcommittee hearing last May examining veteran and active-duty military suicides, as well as efforts by the Department of Defense (DOD) and the Department of Veterans Affairs (VA) to combat this problem. The testimony highlighted the need for comprehensive solutions that span the DOD and the VA, with a focus on high quality healthcare, provider training and education, and access to services and resources.

Both the DOD and VA have made significant efforts to provide more services and outreach to prevent suicides among our servicemembers and veterans, but there is always much more that can be done. This additional funding will support public-private partnerships designed to provide greater access to the vital help that can save the lives of our brave men and women after they leave the military.

I would like to thank Appropriations Committee Chairwoman LOWEY and Ranking member GRANGER for including these amendments in this en bloc.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the previous question is ordered on the amendments en bloc offered by the gentlewoman from New York (Mrs. LOWEY).

The question is on the amendments en bloc.

The en bloc amendments were agreed to.

A motion to reconsider was laid on the table.

AMENDMENTS EN BLOC NO. 2 OFFERED BY MRS. LOWEY OF NEW YORK

Mrs. LOWEY. Mr. Speaker, pursuant to House Resolution 1060, I offer amendments en bloc.

The SPEAKER pro tempore. The Clerk will designate the amendments en bloc.

Amendments en bloc No. 2 consisting of amendment Nos. 3, 4, 5, 6, 7, 8, 9, 10, 13, 17, 18, 21, 22, 23, 24, 27, 28, 29, 31, 33, 39, 58, 61, 64, 65, 70, 72, 78, 83, 84, 85, 87, 91, 92, 93, 94, 97, 98, 105, and 110, printed in House Report 116–459, offered by Mrs. LOWEY of New York:

AMENDMENT NO. 3 OFFERED BY MR. BERA OF CALIFORNIA

At the end of division A (before the short title), add the following:

SEC. __. None of the funds made available by this Act may be used to withdraw the United States from the Mutual Defense Treaty between the United States and Republic of Korea signed on October 1, 1953.

AMENDMENT NO. 4 OFFERED BY MR. CICILLINE OF RHODE ISLAND

Page 4, line 17, after the first dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 5 OFFERED BY MR. COHEN OF TENNESSEE

At the end of division A (before the short title), insert the following:

SEC. ___. (a) None of the funds appropriated or otherwise made available by this Act may be made available to enter into any new contract, grant, or cooperative agreement with any entity listed in subsection (b).

(b) The entities listed in this subsection are the following:

Trump International Hotel & Tower Chicago, Chicago, IL
Trump International Hotel & Golf Links Ireland (formerly The Lodge at Doonbeg), Doonbeg, Ireland
Trump International Hotel Las Vegas, Las Vegas, NV
Trump National Doral Miami, Miami, FL
Trump International Hotel & Tower New York, New York City, NY
Trump SoHo New York, New York City, NY
Trump International Hotel & Tower, Vancouver, Vancouver, Canada
Trump International Hotel Waikiki, Honolulu, HI
Trump International Hotel Washington, DC
Trump Tower, 721 Fifth Avenue, New York City, New York
Trump World Tower, 845 United Nations Plaza, New York City, New York
Trump Park Avenue, 502 Park Avenue, New York City, New York
Trump International Hotel & Tower, NY
Trump Parc East, 100 Central Park South, New York City, New York
Trump Palace, 200 East 69th Street, New York City, New York
Heritage, Trump Place, 240 Riverside Blvd, New York City, New York
Trump Place, 220 Riverside Blvd, New York City, New York
Trump Place, 200 Riverside Blvd, New York City, New York
Trump Grande, Sunny Isles, FL
Trump Hollywood Florida, Hollywood, Florida
Trump Plaza, New Rochelle, NY
Trump Tower at City Center, Westchester, NY
Trump Park Residences, Yorktown, NY
Trump Parc Stamford, Stamford, Connecticut
Trump Plaza Residences, Jersey City, NJ
The Estate at Trump National, Los Angeles, CA
Trump Towers Pune, India, Pune, India
Trump Tower Mumbai, India, Mumbai, India
Trump Towers Makati, Philippines, Makati, Philippines
Trump International Vancouver, Vancouver, Canada
Trump Towers Istanbul, Sisli, Istanbul, Sisli
Trump Tower Punta Del Este, Uruguay, Punta Sel Este, Uruguay
Briar Hall Operations LLC, New York, New York
DT Dubai Golf Manager LLC, New York, New York
DT Dubai Golf Manager Member Corp, New York, New York
DT Dubai II Golf Manager LLC, New York, New York
DT Home Marks International LLC, New York, New York
DT Home Marks International Member Corp, New York, New York
DT India Venture LLC, New York, New York
DT India Venture Managing Member Corp, New York, New York
DT Marks Baku LLC, New York, New York
DT Marks Baku Managing Member Corp, New York, New York
DT Marks Dubai LLC, New York, New York
DT Marks Dubai Member Corp, New York, New York
DT Marks Dubai II LLC, New York, New York
DT Marks Dubai II Member Corp, New York, New York
DT Marks Gurgaon LLC, New York, New York
DT Marks Gurgaon Managing Member Corp, New York, New York
DT Marks Jersey City LLC, New York, New York
DT Marks Jupiter LLC, New York, New York
DT Mark Qatar LLC, New York, New York
DT Marks Qatar Member Corp, New York, New York
DT Marks Products International LLC, New York, New York
DT Marks Product International Member Corp, New York, New York
DT Marks Pune LLC, New York, New York
DT Marks Pune Managing Member Corp, New York, New York
DT MARKS PUNE II LLC, New York, New York
DT Marks Pune II Managing Member Corp, New York, New York
DT Marks Rio LLC, New York, New York
DT Marks Rio Member Corp, New York, New York
DT Marks Vancouver LP, New York, New York
DT Marks Vancouver Managing Member Corp, New York, New York
DT Marks Worli LLC, New York, New York
DT Marks Worli Member Corp, New York, New York
DT Tower Gurgaon LLC, New York, New York
DT Tower Gurgaon Managing Member Corp, New York, New York

Indian Hills Holdings LLC f/k/a Indian Hills Development LLC, New York, New York
Jupiter Golf Club LLC (Trump National Gold Club-Jupiter), New York, New York
Jupiter Golf Club Managing Member Corp, New York, New York
Lamington Family Holdings LLC, New York, New York
Lawrence Towers Apartments, New York, New York
LFB Acquisition LLC, New York, New York
LFB Acquisition Member Corp, New York, New York
MAR-A-LAGO CLUB, L.L.C., Palm Beach, Florida
Mar A Lago Club, L.L.C, New York, New York
Nitto World Co, Limited, Turnberry, Scotland
OPO Hotel Manager LLC, New York, New York
OPO Hotel Manager Member Corp, New York, New York
OWO Developer LLC, New York, New York
TIGL Ireland Enterprises Limited (Trump International Golf Links-Doonbeg), Doonbeg, Ireland
TIGL Ireland Management Limited, Doonbeg, Ireland
Ace Entertainment Holdings Inc (f/k/a Trump Casinos Inc and formerly Trump Taj Mahal, Inc), Atlantic City, NJ
Trump Chicago Commercial Member Corp, New York, New York
Trump Chicago Commercial Manager LLC, New York, New York
Trump Chicago Development LLC, New York, New York
Trump Chicago Hotel Member Corp, New York, New York
Trump Chicago Hotel Manager LLC, New York, New York
Trump Chicago Managing Member LLC, New York, New York
Trump Chicago Member LLC, New York, New York
Trump Chicago Residential Member Corp, New York, New York
Trump Chicago Residential Manager LLC, New York, New York
Trump Chicago Retail LLC, New York, New York
Trump Chicago Retail Manager LLC, New York, New York
Trump Chicago Retail Member Corp, New York, New York
Trump Drinks Israel Holdings LLC, New York, New York
Trump Drinks Israel Holdings Member Corp, New York, New York
Trump Drinks Israel LLC, New York, New York
Trump Drinks Israel Member Corp, New York, New York
Trump Endeavor 12 LLC (Trump National Doral), New York, New York
Trump Endeavor 12 Manager Corp, New York, New York
Trump Golf Acquisitions LLC, New York, New York
Trump Golf Coco Beach LLC, New York, New York
Trump Golf Coco Beach Member Corp, New York, New York
Trump International Development LLC, New York, New York
Trump International Golf Club LC (Trump International Golf Club-Florida), New York, New York
Trump International Golf Club Scotland Limited, Aberdeen, Scotland
Trump International Golf Club, Inc, Palm Beach, Florida
Trump International Hotel and Tower Condominium, New York, New York
Trump International Hotel Hawaii LLC, New York, New York
Trump International Hotels Management LLC, New York, New York
Trump International Management Corp, New York, New York
Trump Korean Projects LLC, New York, New York
Trump Marks Atlanta LLC, New York, New York
Trump Marks Atlanta Member Corp, New York, New York
Trump Marks Baja Corp, New York, New York
Trump Marks Baja LLC, New York, New York
Trump Marks Batumi, LLC, New York, New York
Trump Marks Beverages Corp, New York, New York
Trump Marks Beverages, LLC New York, New York
Trump Marks Canouan Corp, New York, New York
Trump Marks Canouan, LLC New York, New York
Trump Marks Chicago LLC, New York, New York
Trump Marks Chicago Member Corp, New York, New York
Trump Marks Dubai Corp, New York, New York
Trump Marks Dubai LLC, New York, New York
Trump Marks Egypt Corp, New York, New York
Trump Marks Egypt LLC, New York, New York
Trump Marks Fine Foods LLC, New York, New York
Trump Marks Fine Foods Member Corp, New York, New York
Trump Marks Ft. Lauderdale LLC, New York, New York
Trump Marks Ft. Lauderdale Member Corp, New York, New York
Trump Marks GP Corp, New York, New York
Trump Marks Holdings LP (FKA Trump Marks LP), New York, New York
Trump Marks Hollywood Corp, New York, New York
Trump Marks Hollywood LLC, New York, New York
Trump Marks Istanbul II Corp, New York, New York
Trump Marks Istanbul II LLC, New York, New York
Trump Marks Jersey City Corp, New York, New York
Trump Marks Jersey City LLC, New York, New York
Trump Marks Mattress LLC, New York, New York
Trump Marks Mattress Member Corp, New York, New York
Trump Marks Menswear LLC, New York, New York
Trump Marks Menswear Member Corp, New York, New York
Trump Marks Mortgage Corp, New York, New York
Trump Marks Mtg LLC, New York, New York
Trump Marks Mumbai LLC, New York, New York
Trump Marks Mumbai Member Corp, New York, New York
Trump Marks New Rochelle Corp, New York, New York
Trump Marks New Rochelle LLC, New York, New York
Trump Marks Palm Beach Corp, New York, New York
Trump Marks Palm Beach LLC, New York, New York
Trump Marks Panama Corp, New York, New York
Trump Marks Panama LLC, New York, New York
Trump Marks Philadelphia Corp, New York, New York
Trump Marks Philadelphia LLC, New York, New York
Trump Marks Philippines Corp, New York, New York
Trump Marks Philippines LLC, New York, New York
Trump Marks Products LLC, New York, New York
The Trump Organization, Inc, New York, New York
Trump Marks Products Member Corp, New York, New York
Trump Marks Puerto Rico I LLC, New York, New York
Trump Marks Puerto Rico I Member Corp, New York, New York
Trump Marks Puerto Rico II LLC, New York, New York
Trump Marks Puerto Rico II Member Corp, New York, New York
Trump Marks Punta del Este LLC, New York, New York
Trump Marks Punta del Este Manager Corp, New York, New York
The Donald J. Trump Company LLC, New York, New York
The Trump Marks Real Estate Corp, New York, New York
Trump Marks SOHO License Corp, New York, New York
Trump Marks SOHO LLC, New York, New York
Trump Marks Stamford LLC, New York, New York
Trump Marks Stamford Corp, New York, New York
Trump Marks Sunny Isles I LLC, New York, New York
Trump Marks Sunny Isles I Member Corp, New York, New York
Trump Marks Sunny Isles II LLC, New York, New York
Trump Marks Sunny Isles II Member Corp, New York, New York
Trump Marks Tampa Corp, New York, New York
Trump Marks Tampa LLC, New York, New York
Trump Marks Toronto Corp, New York, New York
Trump Marks Toronto LLC, New York, New York
Trump Marks Toronto LP (formally Trump Toronto Management LP), New York, New York
Trump Marks Waikiki Corp, New York, New York
Trump Marks Waikiki LLC, New York, New York
Trump Marks Westchester Corp, New York, New York
Trump Marks Westchester LLC, New York, New York
Trump Marks White Plains LLC, New York, New York
Trump Miami Resort Management LLC, New York, New York
Trump Miami Resort Management Member Corp, New York, New York
Trump National Golf Club Colts Neck LLC, New York, New York
Trump National Golf Club Colts Neck Member Corp, New York, New York
Trump National Golf Club LLC (Trump National Golf Club- Westchester), New York, New York
Trump National Golf Club Member Corp, New York, New York
Trump National Golf Club Washington DC LCC, New York, New York
Trump National Golf Club Washington DC Member Corp, New York, New York
Trump Old Post Office LLC, New York, New York
Trump Old Post Office Member Corp, New York, New York
Trump On the Ocean LLC, New York, New York
Trump Organization LLC, New York, New York
The Trump Organization, New York, New York
Trump Pageants, Inc, New York, New York
Trump Palace Condominium, New York, New York
Trump Palace/Parc LLC, New York, New York
Trump Panama Condominium Management LLC, New York, New York
Trump Panama Condominium Member Corp, New York, New York
Trump Panama Hotel Management LLC, New York, New York
Trump Panama Hotel Management Member Corp, New York, New York
Trump Parc East Condominium, New York, New York
Trump Park Avenue Acquisition LLC, New York, New York
Trump Park Avenue LLC, New York, New York
Trump Payroll Chicago LLC, New York, New York
Trump Payroll Corp, New York, New York
Trump Phoenix Development LLC, New York, New York
Trump Plaza LLC, New York, New York
Trump Plaza Member Inc (F/K/A Trump Plaza Corp), New York, New York
Trump Productions LLC (former Rancho Lien LLC), New York, New York
Trump Production Managing Member Inc, New York, New York
Trump Project Manager Corp, New York, New York
Trump Restaurants LLC, New York, New York
Trump Riverside Management LLC, New York, New York
Trump Ruffin Commercial LLC, New York, New York
Trump Ruffin LLC, Las Vegas, NV
Trump Ruffin Tower I LLC, Las Vegas, NV
Trump Sales & Leasing Chicago LLC, Chicago, IL
Trump Sales & Leasing Chicago Member Corp, Chicago, IL
Trump Scotland Member Inc, Aberdeen, Scotland
Trump Scotsborough Square LLC, Scotsborough Square, VA
Trump SoHo Hotel Condominium New York, New York, New York
Trump SoHo Member LLC, New York, New York
Trump Toronto Development Inc, New York, New York
Trump Toronto Member Corp (formally Trump Toronto Management Member Corp), New York, New York
Trump Tower Commercial LLC, New York, New York
Trump Tower Managing Member Inc, New York, New York
Trump Village Construction Corp, New York, New York
Trump Vineyard Estates LLC, New York, New York
Trump Vineyard Estates Manager Corp, New York, New York
Trump Vineyard Estates Lot 3 Owner LLC (F/K/A Eric Trump Land Holdings LLC), New York, New York
Trump Virginia Acquisitions LLC (fka Virginia Acquisitions LLC), New York, New York
Trump Virginia Acquisitions Manager Corp, New York, New York
Trump Virginia Lot 5 LLC, New York, New York
Trump Virginia Lot 5 Manager Corp, New York, New York
Trump Wine Marks LLC, New York, New York
Trump Wine Marks Member Corp, New York, New York
Trump World Productions LLC, New York, New York
Trump World Productions Manager Corp, New York, New York
Trump World Publications LLC, New York, New York
Trump/New World Property Management LLC, New York, New York
Trump's Castle Management Corp, Atlantic City, NJ
Trump Marks White Plains Corp, New York, New York
Turnberry Scotland Managing Member Corp, Turnberry, Scotland
Turnberry Scotland LLC, Turnberry, Scotland
TW Venture I LLC, Palm Beach, Florida
TW Venture II LLC, Doonbeg, Ireland
TW Venture I Managing Member Corp, Palm Beach, Florida
TW Venture II Managing Member Corp, Doonbeg, Ireland
Ultimate Air Corp, New York, New York
Unit 2502 Enterprises Corp, Chicago, IL
Unit 2502 Enterprises LLC, Chicago, IL
VHPS LLC, Los Angeles, CA
West Palm Operations LLC, WPB, Florida
Wexford Hall Inc., New York, New York
White Course LLC, Miami, FL
White Course Managing Member Corp, Miami FL
Wilshire Hall LLC, New York, New York
Wollman Rink Operations LLC, New York, New York
Yorktown Real Estate LLC (F/K/A/ Yorktown Development Associates LLC), New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Donald J. Trump, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Robert S. Trump, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Elizabeth J. Trump, New York, New York
Fred C. Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
Trust U/W/O Fred C. Trump- F/B/O Elizabeth Trump Grau, New York, New York
Maryanne Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
Trust U/W/O Fred C. Trump- F/B/O the grandchildren of Fred C. Trump, New York, New York
The Donald J. Trump grantor Trust - DJT is the Trustee Successor - Trustee is Donald J. Trump, Jr., New York, New York

The Donald J. Trump Revocable Trust, New York, New York
DT Bali Golf Manager Member Corp, New York, New York
DT Bali Technical Services Manager LLC, New York, New York
DT Endeavor I LLC, New York, New York
DT Lido Golf Manager Member Corp, New York, New York
DT Marks Bali LLC, New York, New York
DT Marks Lido Member Corp, New York, New York
DT Tower II LLC, New York, New York
DT Tower Kolkata Managing Member Corp, New York, New York
DT Venture II LLC, New York, New York
DTTM Operations Managing Member, New York, New York
THC DC Restaurant Hospitality LLC, New York, New York
Mobile Payroll Construction Manager Corp, New York, New York
TC MARKS BUENOS AIRES LLC, New York, New York
Trump Central Park West Corp, New York, New York
401 North Wabash Venture LLC, Chicago, IL
County Properties, LLC, Norfolk, VA
DT Connect II LLC, Palm Beach, Florida
Pine Hill Development LLC, Pine Hill, NJ
The East 61 Street Company, LP, New York, New York
TIHT Holding Company LLC, New York, New York
Trump National Golf Club - Philadelphia, Pine Hill, NJ
Trump Marks Asia LLC, Sterling, VA
1125 South Ocean LLC, Palm Beach, Florida
1290 Avenue of the Americas, A Tenancy-In-Common, New York, New York
THC Vancouver Management Corp, Vancouver, Canada
Trump Management Inc., Manhasset, NY
DT Lido Technical Services Manager LLC, Lido, Indonesia
MacLeod House & Lodge, Aberdeen, Scotland
Trump World Golf Club Dubai, UAE
Le Chateau des Palmiers, St. Martin, French West Indies
D B Pace Acquisition, LLC, New York, NY
T International Realty LLC, New York, NY
THC SALES & MARKETING LLC, New York, NY
TRUMP BOOKS LLC /THE MIDAS TOUCH, New York, NY
TRUMP FERRY POINT LLC, New York, NY
STORAGE 106 LLC, New York, NY
WESTMINSTER HOTEL MANAGEMENT LLC, Livingston, NJ
4T HOLDINGS TWO LLC, New York, NY
The Police Athletic League, Inc, New York, New York
DT Bali Hotel Manager LLC, New York, New York
DT Bali Technical Services Manager Member Corp, New York, New York
DT Endeavor I Member Corp, New York, New York
DT Lido Hotel Manager LLC, New York, New York
DT Marks Bali Member Corp, New York, New York
DT Tower I LLC, New York, New York
DT Tower II Member Corp, New York, New York
DT Venture I LLC, New York, New York
DT Venture II Member Corp, New York, New York
EID Venture II LLC, New York, New York
Lamington Farm Club (TRUMP NATIONAL GOLF CLUB-BEDMINSTER)*, Bedminster, NJ
C DEVELOPMENT VENTURES LLC, New York, New York
Midland Associates, New York, New York
DT Marks Qatar LLC, New York, New York
809 North Canon LLC, Beverly Hills, CA
DJT Aerospace LLC, New York, New York
Excel Venture I LLC, St. Martin, French West Indies
Seven Springs LLC, Mt. Kisco, NY
The Trump Corporation, New York, New York
Trump National Golf Club - Hudson Valley, Hopewell Junction, NY
Trump International Golf Links - Scotland, Aberdeen, Scotland
Trump Model Management LLC, New York, New York
T Promotions LLC, New York, New York
Trump Tower Triplex, New York, New York
TNGC Jupiter Management Corp, Jupiter, FL
THC Miami Restaurant Hospitality LLC, Miami, FL
Trump Las Vegas Sales & Marketing, Inc., Las Vegas, NV
Trump Golf Links at Ferry Point, New York City, New York
Trump International Resort & Golf Club Lido, Lido City, Indonesia
Trump World, Seoul, South Korea
DJT HOLDINGS LLC, New York, NY
THC CENTRAL RESERVATIONS LLC, New York, NY
The Trump-Equitable Fifth Avenue Company, New York, NY
TRUMP CAROUSEL LLC, New York, NY
TRUMP HOME MARKS LLC, New York, NY
SC CLEVELAND MS MANAGEMENT LLC, Cleveland, MS
GOLF RECREATION SCOTLAND LIMITED, Turnberry, Scotland
T EXPRESS LLC, New York, NY
DT Bali Golf Manager LLC, New York, New York
DT Bali Hotel Manager Member Corp, New York, New York
DT Connect Europe Limited, Turnberry, Scotland
DT Lido Golf Manager LLC, New York, New York
DT Lido Hotel Manager Member Corp, New York, New York
DT Marks Lido LLC, New York, New York
DT Tower I Member Corp, New York, New York
DT Tower Kolkata LLC, New York, New York
DT Venture I Member Corp, New York, New York
DTTM Operations LLC, New York, New York
EID Venture II Member Corp, New York, New York
Mobile Payroll Construction LLC, New York, New York
C DEVELOPMENT VENTURES MEMBER CORP, New York, New York
Miss Universe L.P., LLLP (formerly Trump Pageants, L.P.), New York, New York
40 Wall Street LLC, New York, New York
Caribuslness Investments, S.R.L., Dominican Republic
DJT Operations I LLC, New York, New York
Fifty-Seventh Street Associates LLC, New York, New York
Trump Turnberry , Turnberry, Scotland
TIHT Commercial LLC, New York, New York
Trump National Golf Club - Charlotte, Charlotte, NC
Trump Las Vegas Development LLC, Las Vegas, NV
Trump National Golf Club - Washington DC, Potomac Falls, VA
HWA 555 Owners, LLC, San Francisco, CA
N/K/A DTW VENTURE LLC, Palm Beach, Florida
Trump Toronto Hotel Management Corp, New York, New York
THC IMEA Development LLC, New York, New York
Albemarle Estate, Charlottesville, VA
Trump International Golf Club, Dubai, UAE
Seven Springs, Bedford, NY
Trump Towers, Sunny Isles, FL
Golf Productions LLC, New York, NY
THC CHINA DEVELOPMENT LLC, New York, NY
TRUMP 106 CPS LLC, New York, NY
TRUMP CPS LLC, New York, NY
TRUMP ICE LLC, New York, NY
T RETAIL LLC, New York, NY
TRUMP DEVELOPMENT SERVICES LLC, New York, NY

AMENDMENT NO. 6 OFFERED BY MS. ESCOBAR OF TEXAS

Page 30, line 25, after the dollar amount, insert ''(increased by $1,000,000) (reduced by $1,000,000)''.

AMENDMENT NO. 7 OFFERED BY MR. FOSTER OF ILLINOIS

Page 49, line 5, after the dollar amount, insert ''(increased by $10,000,000) (reduced by $10,000,000)''.

AMENDMENT NO. 8 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 80, lines 13 through 17, insert ''(including electronic nicotine delivery systems)'' after tobacco products each place it appears.

AMENDMENT NO. 9 OFFERED BY MR. GRIJALVA OF ARIZONA

Page 19, line 7, after the dollar amount, insert ''(reduced by $4,000,000) (increased by $4,000,000)''.

AMENDMENT NO. 10 OFFERED BY MR. HASTINGS OF FLORIDA

Page 35, line 22, after the dollar amount, insert ''(reduced by $10,000,000) (increased by $10,000,000)''.

AMENDMENT NO. 13 OFFERED BY MS. JAYAPAL OF WASHINGTON

Page 246, line 25, after the dollar amount, insert ''(increased by $2,500,000)''.

AMENDMENT NO. 17 OFFERED BY MR. LYNCH OF MASSACHUSETTS

Page 4, line 17, after the first dollar amount, insert ''(reduced by $5,000,000)''.

Page 5, line 11, after the dollar amount, insert ''(reduced by $5,000,000)''.

Page 49, line 5, after the dollar amount, insert ''(increased by $5,000,000)''.

AMENDMENT NO. 18 OFFERED BY MR. MALINOWSKI OF NEW JERSEY

At the end of division A (before the short title) insert the following:

SEC. _____. None of the funds appropriated or otherwise made available by this Act may be used by the Department of State to carry out the sale, transfer, or authorization for the transfer to the Government of Saudi Arabia or the Government of the United Arab Emirates of any of the following:

(1) Items or services defined in paragraphs (a)(4), (a)(5), and (a)(6) of category IV of the United States Munitions List (part 121.1 of title 22, Code of Federal Regulations).

(2) Items or services relating to the items or services described in paragraph (1) that are defined in paragraph (c), (h), (i), or (j) of such category IV.

AMENDMENT NO. 21 OFFERED BY MS. OCASIO-CORTEZ OF NEW YORK

Page 35, line 22, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 47, line 15, after the dollar amount, insert ''(reduced by $5,000,000)''.

AMENDMENT NO. 22 OFFERED BY MS. OCASIO-CORTEZ OF NEW YORK

At the end of division A (before the short title), insert the following:

SEC. _____. None of the funds appropriated or otherwise made available by this Act may be obligated or expended to transfer lethal military equipment or crowd control equipment to Bolivia.

AMENDMENT NO. 23 OFFERED BY MR. PANETTA OF CALFORNIA

At the end of division A (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to withdraw the United States from the North Atlantic Treaty, done at Washington, DC on April 4, 1949.

AMENDMENT NO. 24 OFFERED BY MR. PANETTA OF CALIFORNIA

At the end of division A (before the short title), insert the following:

PROHIBITION ON WITHDRAWAL FROM WORLD HEALTH ORGANIZATION

SEC. ____. None of the funds made available by this Act may be used to withdraw the United States from the World Health Organization.

AMENDMENT NO. 27 OFFERED BY MR. PHILLIPS OF MINNESOTA

Page 150, line 20, after the dollar amount, insert ''(increased by $5,000,000)''.

AMENDMENT NO. 28 OFFERED BY MS. PORTER OF CALIFORNIA

Page 37, line 11 , after the dollar amount, insert ''(decreased by $2,000,000) (increased by $2,000,000)''.

AMENDMENT NO. 29 OFFERED BY MS. PORTER OF CALIFORNIA

Page 35, line 22, after the dollar amount, insert ''(decreased by $1,000,000) (increased by $1,000,000)''.

AMENDMENT NO. 31 OFFERED BY MR. ROUDA OF CALIFORNIA

Page 40, line 20, after the dollar amount, insert ''(reduced by $2,000,000) (increased by $2,000,000)''.

AMENDMENT NO. 33 OFFERED BY MS. SPEIER OF CALIFORNIA

Page 9, line 3, after the dollar amount, insert ''(reduced by $1,400,000)''.

Page 35, line 22, after the dollar amount, insert ''(increased by $1,400,000)''.

AMENDMENT NO. 39 OFFERED BY MR. COHEN OF TENNESSEE

At the end of division B (before the short title), insert the following:

SEC. ____. (a) None of the funds appropriated or otherwise made available by this Act may be made available to enter into any new contract, grant, or cooperative agreement with any entity listed in subsection (b).

(b) The entities listed in this subsection are the following:

Trump International Hotel & Tower Chicago, Chicago, IL
Trump International Hotel & Golf Links Ireland (formerly The Lodge at Doonbeg), Doonbeg, Ireland
Trump International Hotel Las Vegas, Las Vegas, NV
Trump National Doral Miami, Miami, FL
Trump International Hotel & Tower New York, New York City, NY
Trump SoHo New York, New York City, NY
Trump International Hotel & Tower, Vancouver, Vancouver, Canada
Trump International Hotel Waikiki, Honolulu, HI
Trump International Hotel Washington, DC
Trump Tower, 721 Fifth Avenue, New York City, New York
Trump World Tower, 845 United Nations Plaza, New York City, New York
Trump Park Avenue, 502 Park Avenue, New York City, New York
Trump International Hotel & Tower, NY
Trump Parc East, 100 Central Park South, New York City, New York
Trump Palace, 200 East 69th Street, New York City, New York
Heritage, Trump Place, 240 Riverside Blvd, New York City, New York
Trump Place, 220 Riverside Blvd, New York City, New York
Trump Place, 200 Riverside Blvd, New York City, New York
Trump Grande, Sunny Isles, FL
Trump Hollywood Florida, Hollywood, Florida
Trump Plaza, New Rochelle, NY
Trump Tower at City Center, Westchester, NY
Trump Park Residences, Yorktown, NY
Trump Parc Stamford, Stamford, Connecticut
Trump Plaza Residences, Jersey City, NJ
The Estate at Trump National, Los Angeles, CA
Trump Towers Pune, India, Pune, India
Trump Tower Mumbai, India, Mumbai, India
Trump Towers Makati, Philippines, Makati, Philippines
Trump International Vancouver, Vancouver, Canada
Trump Towers Istanbul, Sisli, Istanbul, Sisli
Trump Tower Punta Del Este, Uruguay, Punta Sel Este, Uruguay
Briar Hall Operations LLC, New York, New York
DT Dubai Golf Manager LLC, New York, New York
DT Dubai Golf Manager Member Corp, New York, New York
DT Dubai II Golf Manager LLC, New York, New York
DT Home Marks International LLC, New York, New York
DT Home Marks International Member Corp, New York, New York
DT India Venture LLC, New York, New York
DT India Venture Managing Member Corp, New York, New York
DT Marks Baku LLC, New York, New York
DT Marks Baku Managing Member Corp, New York, New York
DT Marks Dubai LLC, New York, New York
DT Marks Dubai Member Corp, New York, New York
DT Marks Dubai II LLC, New York, New York
DT Marks Dubai II Member Corp, New York, New York
DT Marks Gurgaon LLC, New York, New York
DT Marks Gurgaon Managing Member Corp, New York, New York
DT Marks Jersey City LLC, New York, New York
DT Marks Jupiter LLC, New York, New York
DT Mark Qatar LLC, New York, New York
DT Marks Qatar Member Corp, New York, New York
DT Marks Products International LLC, New York, New York
DT Marks Product International Member Corp, New York, New York
DT Marks Pune LLC, New York, New York
DT Marks Pune Managing Member Corp, New York, New York
DT MARKS PUNE II LLC, New York, New York
DT Marks Pune II Managing Member Corp, New York, New York
DT Marks Rio LLC, New York, New York
DT Marks Rio Member Corp, New York, New York
DT Marks Vancouver LP, New York, New York
DT Marks Vancouver Managing Member Corp, New York, New York
DT Marks Worli LLC, New York, New York
DT Marks Worli Member Corp, New York, New York
DT Tower Gurgaon LLC, New York, New York
DT Tower Gurgaon Managing Member Corp, New York, New York
Indian Hills Holdings LLC f/k/a Indian Hills Development LLC, New York, New York
Jupiter Golf Club LLC (Trump National Gold Club-Jupiter), New York, New York
Jupiter Golf Club Managing Member Corp, New York, New York
Lamington Family Holdings LLC, New York, New York
Lawrence Towers Apartments, New York, New York
LFB Acquisition LLC, New York, New York
LFB Acquisition Member Corp, New York, New York
MAR-A-LAGO CLUB, L.L.C., Palm Beach, Florida
Mar A Lago Club, L.L.C, New York, New York
Nitto World Co, Limited, Turnberry, Scotland
OPO Hotel Manager LLC, New York, New York
OPO Hotel Manager Member Corp, New York, New York
OWO Developer LLC, New York, New York
TIGL Ireland Enterprises Limited (Trump International Golf Links-Doonbeg), Doonbeg, Ireland
TIGL Ireland Management Limited, Doonbeg, Ireland
Ace Entertainment Holdings Inc (f/k/a Trump Casinos Inc and formerly Trump Taj Mahal, Inc), Atlantic City, NJ
Trump Chicago Commercial Member Corp, New York, New York
Trump Chicago Commercial Manager LLC, New York, New York
Trump Chicago Development LLC, New York, New York
Trump Chicago Hotel Member Corp, New York, New York
Trump Chicago Hotel Manager LLC, New York, New York
Trump Chicago Managing Member LLC, New York, New York
Trump Chicago Member LLC, New York, New York
Trump Chicago Residential Member Corp, New York, New York
Trump Chicago Residential Manager LLC, New York, New York
Trump Chicago Retail LLC, New York, New York
Trump Chicago Retail Manager LLC, New York, New York
Trump Chicago Retail Member Corp, New York, New York
Trump Drinks Israel Holdings LLC, New York, New York
Trump Drinks Israel Holdings Member Corp, New York, New York
Trump Drinks Israel LLC, New York, New York
Trump Drinks Israel Member Corp, New York, New York
Trump Endeavor 12 LLC (Trump National Doral), New York, New York
Trump Endeavor 12 Manager Corp, New York, New York
Trump Golf Acquisitions LLC, New York, New York
Trump Golf Coco Beach LLC, New York, New York
Trump Golf Coco Beach Member Corp, New York, New York
Trump International Development LLC, New York, New York
Trump International Golf Club LC (Trump International Golf Club-Florida), New York, New York
Trump International Golf Club Scotland Limited, Aberdeen, Scotland
Trump International Golf Club, Inc, Palm Beach, Florida
Trump International Hotel and Tower Condominium, New York, New York
Trump International Hotel Hawaii LLC, New York, New York
Trump International Hotels Management LLC, New York, New York
Trump International Management Corp, New York, New York
Trump Korean Projects LLC, New York, New York
Trump Marks Atlanta LLC, New York, New York
Trump Marks Atlanta Member Corp, New York, New York
Trump Marks Baja Corp, New York, New York
Trump Marks Baja LLC, New York, New York
Trump Marks Batumi, LLC, New York, New York
Trump Marks Beverages Corp, New York, New York
Trump Marks Beverages, LLC New York, New York
Trump Marks Canouan Corp, New York, New York
Trump Marks Canouan, LLC New York, New York
Trump Marks Chicago LLC, New York, New York
Trump Marks Chicago Member Corp, New York, New York
Trump Marks Dubai Corp, New York, New York
Trump Marks Dubai LLC, New York, New York
Trump Marks Egypt Corp, New York, New York
Trump Marks Egypt LLC, New York, New York
Trump Marks Fine Foods LLC, New York, New York
Trump Marks Fine Foods Member Corp, New York, New York
Trump Marks Ft. Lauderdale LLC, New York, New York
Trump Marks Ft. Lauderdale Member Corp, New York, New York
Trump Marks GP Corp, New York, New York
Trump Marks Holdings LP (FKA Trump Marks LP), New York, New York
Trump Marks Hollywood Corp, New York, New York
Trump Marks Hollywood LLC, New York, New York
Trump Marks Istanbul II Corp, New York, New York
Trump Marks Istanbul II LLC, New York, New York
Trump Marks Jersey City Corp, New York, New York
Trump Marks Jersey City LLC, New York, New York
Trump Marks Mattress LLC, New York, New York
Trump Marks Mattress Member Corp, New York, New York
Trump Marks Menswear LLC, New York, New York
Trump Marks Menswear Member Corp, New York, New York
Trump Marks Mortgage Corp, New York, New York
Trump Marks Mtg LLC, New York, New York
Trump Marks Mumbai LLC, New York, New York
Trump Marks Mumbai Member Corp, New York, New York
Trump Marks New Rochelle Corp, New York, New York
Trump Marks New Rochelle LLC, New York, New York
Trump Marks Palm Beach Corp, New York, New York
Trump Marks Palm Beach LLC, New York, New York
Trump Marks Panama Corp, New York, New York
Trump Marks Panama LLC, New York, New York
Trump Marks Philadelphia Corp, New York, New York
Trump Marks Philadelphia LLC, New York, New York
Trump Marks Philippines Corp, New York, New York
Trump Marks Philippines LLC, New York, New York
Trump Marks Products LLC, New York, New York
The Trump Organization, Inc, New York, New York
Trump Marks Products Member Corp, New York, New York
Trump Marks Puerto Rico I LLC, New York, New York
Trump Marks Puerto Rico I Member Corp, New York, New York
Trump Marks Puerto Rico II LLC, New York, New York
Trump Marks Puerto Rico II Member Corp, New York, New York
Trump Marks Punta del Este LLC, New York, New York
Trump Marks Punta del Este Manager Corp, New York, New York
The Donald J. Trump Company LLC, New York, New York
The Trump Marks Real Estate Corp, New York, New York
Trump Marks SOHO License Corp, New York, New York
Trump Marks SOHO LLC, New York, New York
Trump Marks Stamford LLC, New York, New York
Trump Marks Stamford Corp, New York, New York
Trump Marks Sunny Isles I LLC, New York, New York
Trump Marks Sunny Isles I Member Corp, New York, New York
Trump Marks Sunny Isles II LLC, New York, New York
Trump Marks Sunny Isles II Member Corp, New York, New York
Trump Marks Tampa Corp, New York, New York
Trump Marks Tampa LLC, New York, New York
Trump Marks Toronto Corp, New York, New York
Trump Marks Toronto LLC, New York, New York
Trump Marks Toronto LP (formally Trump Toronto Management LP), New York, New York
Trump Marks Waikiki Corp, New York, New York
Trump Marks Waikiki LLC, New York, New York
Trump Marks Westchester Corp, New York, New York
Trump Marks Westchester LLC, New York, New York
Trump Marks White Plains LLC, New York, New York
Trump Miami Resort Management LLC, New York, New York
Trump Miami Resort Management Member Corp, New York, New York
Trump National Golf Club Colts Neck LLC, New York, New York
Trump National Golf Club Colts Neck Member Corp, New York, New York
Trump National Golf Club LLC (Trump National Golf Club- Westchester), New York, New York
Trump National Golf Club Member Corp, New York, New York
Trump National Golf Club Washington DC LCC, New York, New York
Trump National Golf Club Washington DC Member Corp, New York, New York
Trump Old Post Office LLC, New York, New York
Trump Old Post Office Member Corp, New York, New York
Trump On the Ocean LLC, New York, New York
Trump Organization LLC, New York, New York
The Trump Organization, New York, New York
Trump Pageants, Inc, New York, New York
Trump Palace Condominium, New York, New York
Trump Palace/Parc LLC, New York, New York
Trump Panama Condominium Management LLC, New York, New York
Trump Panama Condominium Member Corp, New York, New York

Trump Panama Hotel Management LLC, New York, New York
Trump Panama Hotel Management Member Corp, New York, New York
Trump Parc East Condominium, New York, New York
Trump Park Avenue Acquisition LLC, New York, New York
Trump Park Avenue LLC, New York, New York
Trump Payroll Chicago LLC, New York, New York
Trump Payroll Corp, New York, New York
Trump Phoenix Development LLC, New York, New York
Trump Plaza LLC, New York, New York
Trump Plaza Member Inc (F/K/A Trump Plaza Corp), New York, New York
Trump Productions LLC (former Rancho Lien LLC), New York, New York
Trump Production Managing Member Inc, New York, New York
Trump Project Manager Corp, New York, New York
Trump Restaurants LLC, New York, New York
Trump Riverside Management LLC, New York, New York
Trump Ruffin Commercial LLC, New York, New York
Trump Ruffin LLC, Las Vegas, NV
Trump Ruffin Tower I LLC, Las Vegas, NV
Trump Sales & Leasing Chicago LLC, Chicago, IL
Trump Sales & Leasing Chicago Member Corp, Chicago, IL
Trump Scotland Member Inc, Aberdeen, Scotland
Trump Scotsborough Square LLC, Scotsborough Square, VA
Trump SoHo Hotel Condominium New York, New York, New York
Trump SoHo Member LLC, New York, New York
Trump Toronto Development Inc, New York, New York
Trump Toronto Member Corp (formally Trump Toronto Management Member Corp), New York, New York
Trump Tower Commercial LLC, New York, New York
Trump Tower Managing Member Inc, New York, New York
Trump Village Construction Corp, New York, New York
Trump Vineyard Estates LLC, New York, New York
Trump Vineyard Estates Manager Corp, New York, New York
Trump Vineyard Estates Lot 3 Owner LLC (F/K/A Eric Trump Land Holdings LLC), New York, New York
Trump Virginia Acquisitions LLC (fka Virginia Acquisitions LLC), New York, New York
Trump Virginia Acquisitions Manager Corp, New York, New York
Trump Virginia Lot 5 LLC, New York, New York
Trump Virginia Lot 5 Manager Corp, New York, New York
Trump Wine Marks LLC, New York, New York
Trump Wine Marks Member Corp, New York, New York
Trump World Productions LLC, New York, New York
Trump World Productions Manager Corp, New York, New York
Trump World Publications LLC, New York, New York
Trump/New World Property Management LLC, New York, New York
Trump's Castle Management Corp, Atlantic City, NJ
Trump Marks White Plains Corp, New York, New York
Turnberry Scotland Managing Member Corp, Turnberry, Scotland
Turnberry Scotland LLC, Turnberry, Scotland
TW Venture I LLC, Palm Beach, Florida
TW Venture II LLC, Doonbeg, Ireland
TW Venture I Managing Member Corp, Palm Beach, Florida
TW Venture II Managing Member Corp, Doonbeg, Ireland
Ultimate Air Corp, New York, New York
Unit 2502 Enterprises Corp, Chicago, IL
Unit 2502 Enterprises LLC, Chicago, IL
VHPS LLC, Los Angeles, CA
West Palm Operations LLC, WPB, Florida
Wexford Hall Inc., New York, New York
White Course LLC, Miami, FL
White Course Managing Member Corp, Miami FL
Wilshire Hall LLC, New York, New York
Wollman Rink Operations LLC, New York, New York
Yorktown Real Estate LLC (F/K/A/ Yorktown Development Associates LLC), New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Donald J. Trump, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Robert S. Trump, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Elizabeth J. Trump, New York, New York
Fred C. Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
Trust U/W/O Fred C. Trump- F/B/O Elizabeth Trump Grau, New York, New York
Maryanne Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
Trust U/W/O Fred C. Trump- F/B/O the grandchildren of Fred C. Trump, New York, New York
The Donald J. Trump grantor Trust - DJT is the Trustee Successor - Trustee is Donald J. Trump, Jr., New York, New York
The Donald J. Trump Revocable Trust, New York, New York
The Police Athletic League, Inc, New York, New York
DT Bali Golf Manager LLC, New York, New York
DT Bali Golf Manager Member Corp, New York, New York
DT Bali Hotel Manager LLC, New York, New York
DT Bali Hotel Manager Member Corp, New York, New York
DT Bali Technical Services Manager LLC, New York, New York
DT Bali Technical Services Manager Member Corp, New York, New York
DT Connect Europe Limited, Turnberry, Scotland
DT Endeavor I LLC, New York, New York
DT Endeavor I Member Corp, New York, New York
DT Lido Golf Manager LLC, New York, New York
DT Lido Golf Manager Member Corp, New York, New York
DT Lido Hotel Manager LLC, New York, New York
DT Lido Hotel Manager Member Corp, New York, New York
DT Marks Bali LLC, New York, New York
DT Marks Bali Member Corp, New York, New York
DT Marks Lido LLC, New York, New York
DT Marks Lido Member Corp, New York, New York
DT Tower I LLC, New York, New York
DT Tower I Member Corp, New York, New York
DT Tower II LLC, New York, New York
DT Tower II Member Corp, New York, New York
DT Tower Kolkata LLC, New York, New York
DT Tower Kolkata Managing Member Corp, New York, New York
DT Venture I LLC, New York, New York
DT Venture I Member Corp, New York, New York
DT Venture II LLC, New York, New York
DT Venture II Member Corp, New York, New York
DTTM Operations LLC, New York, New York
DTTM Operations Managing Member, New York, New York
EID Venture II LLC, New York, New York
EID Venture II Member Corp, New York, New York
THC DC Restaurant Hospitality LLC, New York, New York
Lamington Farm Club (TRUMP NATIONAL GOLF CLUB-BEDMINSTER)*, Bedminster, NJ
Mobile Payroll Construction LLC, New York, New York
Mobile Payroll Construction Manager Corp, New York, New York
C DEVELOPMENT VENTURES LLC, New York, New York
C DEVELOPMENT VENTURES MEMBER CORP, New York, New York
TC MARKS BUENOS AIRES LLC, New York, New York
Midland Associates, New York, New York
Miss Universe L.P., LLLP (formerly Trump Pageants, L.P.), New York, New York
Trump Central Park West Corp, New York, New York
DT Marks Qatar LLC, New York, New York
40 Wall Street LLC, New York, New York
401 North Wabash Venture LLC, Chicago, IL
809 North Canon LLC, Beverly Hills, CA
CaribusIness Investments, S.R.L., Dominican Republic
County Properties, LLC, Norfolk, VA
DJT Aerospace LLC, New York, New York
DJT Operations I LLC, New York, New York
DT Connect II LLC, Palm Beach, Florida
Excel Venture I LLC, St. Martin, French West Indies
Fifty-Seventh Street Associates LLC, New York, New York
Pine Hill Development LLC, Pine Hill, NJ
Seven Springs LLC, Mt. Kisco, NY
Trump Turnberry , Turnberry, Scotland
The East 61 Street Company, LP, New York, New York
The Trump Corporation, New York, New York
TIHT Commercial LLC, New York, New York
TIHT Holding Company LLC, New York, New York
Trump National Golf Club - Hudson Valley, Hopewell Junction, NY
Trump National Golf Club - Charlotte, Charlotte, NC
Trump National Golf Club - Philadelphia, Pine Hill, NJ
Trump International Golf Links - Scotland, Aberdeen, Scotland
Trump Las Vegas Development LLC, Las Vegas, NV
Trump Marks Asia LLC, Sterling, VA
Trump Model Management LLC, New York, New York
Trump National Golf Club - Washington DC, Potomac Falls, VA
1125 South Ocean LLC, Palm Beach, Florida
T Promotions LLC, New York, New York
HWA 555 Owners, LLC, San Francisco, CA
1290 Avenue of the Americas, A Tenancy-In-Common, New York, New York
Trump Tower Triplex, New York, New York
N/K/A DTW VENTURE LLC, Palm Beach, Florida
THC Vancouver Management Corp, Vancouver, Canada
TNGC Jupiter Management Corp, Jupiter, FL
Trump Toronto Hotel Management Corp, New York, New York
Trump Management Inc., Manhasset, NY
THC Miami Restaurant Hospitality LLC, Miami, FL
THC IMEA Development LLC, New York, New York
DT Lido Technical Services Manager LLC, Lido, Indonesia
Trump Las Vegas Sales & Marketing, Inc., Las Vegas, NV
Albemarle Estate, Charlottesville, VA
MacLeod House & Lodge, Aberdeen, Scotland
Trump Golf Links at Ferry Point, New York City, New York
Trump International Golf Club, Dubai, UAE
Trump World Golf Club Dubai, UAE
Trump International Resort & Golf Club Lido, Lido City, Indonesia
Seven Springs, Bedford, NY
Le Chateau des Palmiers, St. Martin, French West Indies
Trump World, Seoul, South Korea
Trump Towers, Sunny Isles, FL
D B Pace Acquisition, LLC, New York, NY
DJT HOLDINGS LLC, New York, NY
Golf Productions LLC, New York, NY
T International Realty LLC, New York, NY
THC CENTRAL RESERVATIONS LLC, New York, NY
THC CHINA DEVELOPMENT LLC, New York, NY
THC SALES & MARKETING LLC, New York, NY
The Trump-Equitable Fifth Avenue Company, New York, NY
TRUMP 106 CPS LLC, New York, NY
TRUMP BOOKS LLC /THE MIDAS TOUCH, New York, NY
TRUMP CAROUSEL LLC, New York, NY
TRUMP CPS LLC, New York, NY
TRUMP FERRY POINT LLC, New York, NY
TRUMP HOME MARKS LLC, New York, NY
TRUMP ICE LLC, New York, NY
STORAGE 106 LLC, New York, NY
SC CLEVELAND MS MANAGEMENT LLC, Cleveland, MS
T RETAIL LLC, New York, NY
WESTMINSTER HOTEL MANAGEMENT LLC, Livingston, NJ
GOLF RECREATION SCOTLAND LIMITED, Turnberry, Scotland
TRUMP DEVELOPMENT SERVICES LLC, New York, NY
4T HOLDINGS TWO LLC, New York, NY
T EXPRESS LLC, New York, NY

AMENDMENT NO. 58 OFFERED BY MS. WATERS OF CALIFORNIA

At the end of division B (before the short title), insert the following:

SEC. 785. None of the funds made available by this Act may be used implement the Executive Order 13917, issued on April 28, 2020, entitled ''Delegating authority under the Defense Production Act with respect to food supply chain resources during the national emergency caused by the outbreak of COVID–19'' (85 Fed. Reg. 26313).

AMENDMENT NO. 61 OFFERED BY MS. ADAMS OF NORTH CAROLINA

Page 478, line 14, after the first dollar amount, insert ''(reduced by $2,000,000)''.

Page 507, line 19, after the first dollar amount, insert ''(increased by $2,000,000)''.

AMENDMENT NO. 64 OFFERED BY MR. BEYER OF VIRGINIA

Page 478, line 14, after the dollar amount insert ''(decreased by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 65 OFFERED BY MR. BEYER OF VIRGINIA

Page 478, line 14, after the dollar amount insert ''(decreased by $500,000) (increased by $500,000)''.

AMENDMENT NO. 70 OFFERED BY MR. COHEN OF TENNESSEE

At the end of division C (before the short title), insert the following:

SEC. ___. (a) None of the funds appropriated or otherwise made available by this Act may be made available to enter into any

new contract, grant, or cooperative agreement with any entity listed in subsection (b).

(b) The entities listed in this subsection are the following:

Trump International Hotel & Tower Chicago, Chicago, IL
Trump International Hotel & Golf Links Ireland (formerly The Lodge at Doonbeg), Doonbeg, Ireland
Trump International Hotel Las Vegas, Las Vegas, NV
Trump National Doral Miami, Miami, FL
Trump International Hotel & Tower New York, New York City, NY
Trump SoHo New York, New York City, NY
Trump International Hotel & Tower, Vancouver, Vancouver, Canada
Trump International Hotel Waikiki, Honolulu, HI
Trump International Hotel Washington, DC
Trump Tower, 721 Fifth Avenue, New York City, New York
Trump World Tower, 845 United Nations Plaza, New York City, New York
Trump Park Avenue, 502 Park Avenue, New York City, New York
Trump International Hotel & Tower, NY
Trump Parc East, 100 Central Park South, New York City, New York
Trump Palace, 200 East 69th Street, New York City, New York
Heritage, Trump Place, 240 Riverside Blvd, New York City, New York
Trump Place, 220 Riverside Blvd, New York City, New York
Trump Place, 200 Riverside Blvd, New York City, New York
Trump Grande, Sunny Isles, FL
Trump Hollywood Florida, Hollywood, Florida
Trump Plaza, New Rochelle, NY
Trump Tower at City Center, Westchester, NY
Trump Park Residences, Yorktown, NY
Trump Parc Stamford, Stamford, Connecticut
Trump Plaza Residences, Jersey City, NJ
The Estate at Trump National, Los Angeles, CA
Trump Towers Pune, India, Pune, India
Trump Tower Mumbai, India, Mumbai, India
Trump Towers Makati, Philippines, Makati, Philippines
Trump International Vancouver, Vancouver, Canada
Trump Towers Istanbul, Sisli, Istanbul, Sisli
Trump Tower Punta Del Este, Uruguay, Punta Sel Este, Uruguay
Briar Hall Operations LLC, New York, New York
DT Dubai Golf Manager LLC, New York, New York
DT Dubai Golf Manager Member Corp, New York, New York
DT Dubai II Golf Manager LLC, New York, New York
DT Home Marks International LLC, New York, New York
DT Home Marks International Member Corp, New York, New York
DT India Venture LLC, New York, New York
DT India Venture Managing Member Corp, New York, New York
DT Marks Baku LLC, New York, New York
DT Marks Baku Managing Member Corp, New York, New York
DT Marks Dubai LLC, New York, New York
DT Marks Dubai Member Corp, New York, New York
DT Marks Dubai II LLC, New York, New York
DT Marks Dubai II Member Corp, New York, New York
DT Marks Gurgaon LLC, New York, New York
DT Marks Gurgaon Managing Member Corp, New York, New York
DT Marks Jersey City LLC, New York, New York
DT Marks Jupiter LLC, New York, New York
DT Mark Qatar LLC, New York, New York
DT Marks Qatar Member Corp, New York, New York
DT Marks Products International LLC, New York, New York
DT Marks Product International Member Corp, New York, New York
DT Marks Pune LLC, New York, New York
DT Marks Pune Managing Member Corp, New York, New York
DT MARKS PUNE II LLC, New York, New York
DT Marks Pune II Managing Member Corp, New York, New York
DT Marks Rio LLC, New York, New York
DT Marks Rio Member Corp, New York, New York
DT Marks Vancouver LP, New York, New York
DT Marks Vancouver Managing Member Corp, New York, New York
DT Marks Worli LLC, New York, New York
DT Marks Worli Member Corp, New York, New York
DT Tower Gurgaon LLC, New York, New York
DT Tower Gurgaon Managing Member Corp, New York, New York
Indian Hills Holdings LLC f/k/a Indian Hills Development LLC, New York, New York
Jupiter Golf Club LLC (Trump National Gold Club-Jupiter), New York, New York
Jupiter Golf Club Managing Member Corp, New York, New York
Lamington Family Holdings LLC, New York, New York
Lawrence Towers Apartments, New York, New York
LFB Acquisition LLC, New York, New York
LFB Acquisition Member Corp, New York, New York
MAR-A-LAGO CLUB, L.L.C., Palm Beach, Florida
Mar A Lago Club, L.L.C, New York, New York
Nitto World Co, Limited, Turnberry, Scotland
OPO Hotel Manager LLC, New York, New York
OPO Hotel Manager Member Corp, New York, New York
OWO Developer LLC, New York, New York
TIGL Ireland Enterprises Limited (Trump International Golf Links-Doonbeg), Doonbeg, Ireland
TIGL Ireland Management Limited, Doonbeg, Ireland
Ace Entertainment Holdings Inc (f/k/a Trump Casinos Inc and formerly Trump Taj Mahal, Inc), Atlantic City, NJ
Trump Chicago Commercial Member Corp, New York, New York
Trump Chicago Commercial Manager LLC, New York, New York
Trump Chicago Development LLC, New York, New York
Trump Chicago Hotel Member Corp, New York, New York
Trump Chicago Hotel Manager LLC, New York, New York
Trump Chicago Managing Member LLC, New York, New York
Trump Chicago Member LLC, New York, New York
Trump Chicago Residential Member Corp, New York, New York
Trump Chicago Residential Manager LLC, New York, New York
Trump Chicago Retail LLC, New York, New York
Trump Chicago Retail Manager LLC, New York, New York
Trump Chicago Retail Member Corp, New York, New York
Trump Drinks Israel Holdings LLC, New York, New York
Trump Drinks Israel Holdings Member Corp, New York, New York
Trump Drinks Israel LLC, New York, New York
Trump Drinks Israel Member Corp, New York, New York
Trump Endeavor 12 LLC (Trump National Doral), New York, New York
Trump Endeavor 12 Manager Corp, New York, New York
Trump Golf Acquisitions LLC, New York, New York
Trump Golf Coco Beach LLC, New York, New York
Trump Golf Coco Beach Member Corp, New York, New York
Trump International Development LLC, New York, New York
Trump International Golf Club LC (Trump International Golf Club-Florida), New York, New York
Trump International Golf Club Scotland Limited, Aberdeen, Scotland
Trump International Golf Club, Inc, Palm Beach, Florida
Trump International Hotel and Tower Condominium, New York, New York
Trump International Hotel Hawaii LLC, New York, New York
Trump International Hotels Management LLC, New York, New York
Trump International Management Corp, New York, New York
Trump Korean Projects LLC, New York, New York
Trump Marks Atlanta LLC, New York, New York
Trump Marks Atlanta Member Corp, New York, New York
Trump Marks Baja Corp, New York, New York
Trump Marks Baja LLC, New York, New York
Trump Marks Batumi, LLC, New York, New York
Trump Marks Beverages Corp, New York, New York
Trump Marks Beverages, LLC New York, New York
Trump Marks Canouan Corp, New York, New York
Trump Marks Canouan, LLC New York, New York
Trump Marks Chicago LLC, New York, New York
Trump Marks Chicago Member Corp, New York, New York
Trump Marks Dubai Corp, New York, New York
Trump Marks Dubai LLC, New York, New York
Trump Marks Egypt Corp, New York, New York
Trump Marks Egypt LLC, New York, New York
Trump Marks Fine Foods LLC, New York, New York
Trump Marks Fine Foods Member Corp, New York, New York
Trump Marks Ft. Lauderdale LLC, New York, New York
Trump Marks Ft. Lauderdale Member Corp, New York, New York
Trump Marks GP Corp, New York, New York
Trump Marks Holdings LP (FKA Trump Marks LP), New York, New York
Trump Marks Hollywood Corp, New York, New York
Trump Marks Hollywood LLC, New York, New York
Trump Marks Istanbul II Corp, New York, New York
Trump Marks Istanbul II LLC, New York, New York
Trump Marks Jersey City Corp, New York, New York
Trump Marks Jersey City LLC, New York, New York
Trump Marks Mattress LLC, New York, New York
Trump Marks Mattress Member Corp, New York, New York
Trump Marks Menswear LLC, New York, New York
Trump Marks Menswear Member Corp, New York, New York
Trump Marks Mortgage Corp, New York, New York
Trump Marks Mtg LLC, New York, New York
Trump Marks Mumbai LLC, New York, New York
Trump Marks Mumbai Member Corp, New York, New York
Trump Marks New Rochelle Corp, New York, New York
Trump Marks New Rochelle LLC, New York, New York
Trump Marks Palm Beach Corp, New York, New York
Trump Marks Palm Beach LLC, New York, New York
Trump Marks Panama Corp, New York, New York
Trump Marks Panama LLC, New York, New York
Trump Marks Philadelphia Corp, New York, New York
Trump Marks Philadelphia LLC, New York, New York
Trump Marks Philippines Corp, New York, New York
Trump Marks Philippines LLC, New York, New York
Trump Marks Products LLC, New York, New York
The Trump Organization, Inc, New York, New York
Trump Marks Products Member Corp, New York, New York
Trump Marks Puerto Rico I LLC, New York, New York
Trump Marks Puerto Rico I Member Corp, New York, New York
Trump Marks Puerto Rico II LLC, New York, New York
Trump Marks Puerto Rico II Member Corp, New York, New York
Trump Marks Punta del Este LLC, New York, New York
Trump Marks Punta del Este Manager Corp, New York, New York
The Donald J. Trump Company LLC, New York, New York
The Trump Marks Real Estate Corp, New York, New York
Trump Marks SOHO License Corp, New York, New York
Trump Marks SOHO LLC, New York, New York
Trump Marks Stamford LLC, New York, New York
Trump Marks Stamford Corp, New York, New York
Trump Marks Sunny Isles I LLC, New York, New York
Trump Marks Sunny Isles I Member Corp, New York, New York
Trump Marks Sunny Isles II LLC, New York, New York
Trump Marks Sunny Isles II Member Corp, New York, New York
Trump Marks Tampa Corp, New York, New York
Trump Marks Tampa LLC, New York, New York
Trump Marks Toronto Corp, New York, New York
Trump Marks Toronto LLC, New York, New York
Trump Marks Toronto LP (formally Trump Toronto Management LP), New York, New York
Trump Marks Waikiki Corp, New York, New York
Trump Marks Waikiki LLC, New York, New York
Trump Marks Westchester Corp, New York, New York
Trump Marks Westchester LLC, New York, New York
Trump Marks White Plains LLC, New York, New York
Trump Miami Resort Management LLC, New York, New York
Trump Miami Resort Management Member Corp, New York, New York
Trump National Golf Club Colts Neck LLC, New York, New York
Trump National Golf Club Colts Neck Member Corp, New York, New York
Trump National Golf Club LLC (Trump National Golf Club- Westchester), New York, New York
Trump National Golf Club Member Corp, New York, New York
Trump National Golf Club Washington DC LCC, New York, New York
Trump National Golf Club Washington DC Member Corp, New York, New York
Trump Old Post Office LLC, New York, New York
Trump Old Post Office Member Corp, New York, New York
Trump On the Ocean LLC, New York, New York
Trump Organization LLC, New York, New York
The Trump Organization, New York, New York
Trump Pageants, Inc, New York, New York
Trump Palace Condominium, New York, New York
Trump Palace/Parc LLC, New York, New York
Trump Panama Condominium Management LLC, New York, New York
Trump Panama Condominium Member Corp, New York, New York

Trump Panama Hotel Management LLC, New York, New York
Trump Panama Hotel Management Member Corp, New York, New York
Trump Parc East Condominium, New York, New York
Trump Park Avenue Acquisition LLC, New York, New York
Trump Park Avenue LLC, New York, New York
Trump Payroll Chicago LLC, New York, New York
Trump Payroll Corp, New York, New York
Trump Phoenix Development LLC, New York, New York
Trump Plaza LLC, New York, New York
Trump Plaza Member Inc (F/K/A Trump Plaza Corp), New York, New York
Trump Productions LLC (former Rancho Lien LLC), New York, New York
Trump Production Managing Member Inc, New York, New York
Trump Project Manager Corp, New York, New York
Trump Restaurants LLC, New York, New York
Trump Riverside Management LLC, New York, New York
Trump Ruffin Commercial LLC, New York, New York
Trump Ruffin LLC, Las Vegas, NV
Trump Ruffin Tower I LLC, Las Vegas, NV
Trump Sales & Leasing Chicago LLC, Chicago, IL
Trump Sales & Leasing Chicago Member Corp, Chicago, IL
Trump Scotland Member Inc, Aberdeen, Scotland
Trump Scotsborough Square LLC, Scotsborough Square, VA
Trump SoHo Hotel Condominium New York, New York, New York
Trump SoHo Member LLC, New York, New York
Trump Toronto Development Inc, New York, New York
Trump Toronto Member Corp (formally Trump Toronto Management Member Corp), New York, New York
Trump Tower Commercial LLC, New York, New York
Trump Tower Managing Member Inc, New York, New York
Trump Village Construction Corp, New York, New York
Trump Vineyard Estates LLC, New York, New York
Trump Vineyard Estates Manager Corp, New York, New York
Trump Vineyard Estates Lot 3 Owner LLC (F/K/A Eric Trump Land Holdings LLC), New York, New York
Trump Virginia Acquisitions LLC (fka Virginia Acquisitions LLC), New York, New York
Trump Virginia Acquisitions Manager Corp, New York, New York
Trump Virginia Lot 5 LLC, New York, New York
Trump Virginia Lot 5 Manager Corp, New York, New York
Trump Wine Marks LLC, New York, New York
Trump Wine Marks Member Corp, New York, New York
Trump World Productions LLC, New York, New York
Trump World Productions Manager Corp, New York, New York
Trump World Publications LLC, New York, New York
Trump/New World Property Management LLC, New York, New York
Trump's Castle Management Corp, Atlantic City, NJ
Trump Marks White Plains Corp, New York, New York
Turnberry Scotland Managing Member Corp, Turnberry, Scotland
Turnberry Scotland LLC, Turnberry, Scotland
TW Venture I LLC, Palm Beach, Florida
TW Venture II LLC, Doonbeg, Ireland
TW Venture I Managing Member Corp, Palm Beach, Florida
TW Venture II Managing Member Corp, Doonbeg, Ireland
Ultimate Air Corp, New York, New York
Unit 2502 Enterprises Corp, Chicago, IL
Unit 2502 Enterprises LLC, Chicago, IL
VHPS LLC, Los Angeles, CA
West Palm Operations LLC, WPB, Florida
Wexford Hall Inc., New York, New York
White Course LLC, Miami, FL
White Course Managing Member Corp, Miami FL
Wilshire Hall LLC, New York, New York
Wollman Rink Operations LLC, New York, New York
Yorktown Real Estate LLC (F/K/A/ Yorktown Development Associates LLC), New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Donald J. Trump, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Robert S. Trump, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Elizabeth J. Trump, New York, New York
Fred C. Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
Trust U/W/O Fred C. Trump- F/B/O Elizabeth Trump Grau, New York, New York
Maryanne Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
Trust U/W/O Fred C. Trump- F/B/O the grandchildren of Fred C. Trump, New York, New York
The Donald J. Trump grantor Trust - DJT is the Trustee Successor - Trustee is Donald J. Trump, Jr., New York, New York
The Donald J. Trump Revocable Trust, New York, New York
The Police Athletic League, Inc, New York, New York
DT Bali Golf Manager LLC, New York, New York
DT Bali Golf Manager Member Corp, New York, New York
DT Bali Hotel Manager LLC, New York, New York
DT Bali Hotel Manager Member Corp, New York, New York
DT Bali Technical Services Manager LLC, New York, New York
DT Bali Technical Services Manager Member Corp, New York, New York
DT Connect Europe Limited, Turnberry, Scotland
DT Endeavor I LLC, New York, New York
DT Endeavor I Member Corp, New York, New York
DT Lido Golf Manager LLC, New York, New York
DT Lido Golf Manager Member Corp, New York, New York
DT Lido Hotel Manager LLC, New York, New York
DT Lido Hotel Manager Member Corp, New York, New York
DT Marks Bali LLC, New York, New York
DT Marks Bali Member Corp, New York, New York
DT Marks Lido LLC, New York, New York
DT Marks Lido Member Corp, New York, New York
DT Tower I LLC, New York, New York
DT Tower I Member Corp, New York, New York
DT Tower II LLC, New York, New York
DT Tower II Member Corp, New York, New York
DT Tower Kolkata LLC, New York, New York
DT Tower Kolkata Managing Member Corp, New York, New York
DT Venture I LLC, New York, New York
DT Venture I Member Corp, New York, New York
DT Venture II LLC, New York, New York
DT Venture II Member Corp, New York, New York
DTTM Operations LLC, New York, New York
DTTM Operations Managing Member, New York, New York
EID Venture II LLC, New York, New York
EID Venture II Member Corp, New York, New York
THC DC Restaurant Hospitality LLC, New York, New York
Lamington Farm Club (TRUMP NATIONAL GOLF CLUB-BEDMINSTER)*, Bedminster, NJ
Mobile Payroll Construction LLC, New York, New York
Mobile Payroll Construction Manager Corp, New York, New York
C DEVELOPMENT VENTURES LLC, New York, New York
C DEVELOPMENT VENTURES MEMBER CORP, New York, New York
TC MARKS BUENOS AIRES LLC, New York, New York
Midland Associates, New York, New York
Miss Universe L.P., LLLP (formerly Trump Pageants, L.P.), New York, New York
Trump Central Park West Corp, New York, New York
DT Marks Qatar LLC, New York, New York
40 Wall Street LLC, New York, New York
401 North Wabash Venture LLC, Chicago, IL
809 North Canon LLC, Beverly Hills, CA
CaribusIness Investments, S.R.L., Dominican Republic
County Properties, LLC, Norfolk, VA
DJT Aerospace LLC, New York, New York
DJT Operations I LLC, New York, New York
DT Connect II LLC, Palm Beach, Florida
Excel Venture I LLC, St. Martin, French West Indies
Fifty-Seventh Street Associates LLC, New York, New York
Pine Hill Development LLC, Pine Hill, NJ
Seven Springs LLC, Mt. Kisco, NY
Trump Turnberry , Turnberry, Scotland
The East 61 Street Company, LP, New York, New York
The Trump Corporation, New York, New York
TIHT Commercial LLC, New York, New York
TIHT Holding Company LLC, New York, New York
Trump National Golf Club - Hudson Valley, Hopewell Junction, NY
Trump National Golf Club - Charlotte, Charlotte, NC
Trump National Golf Club - Philadelphia, Pine Hill, NJ
Trump International Golf Links - Scotland, Aberdeen, Scotland
Trump Las Vegas Development LLC, Las Vegas, NV
Trump Marks Asia LLC, Sterling, VA
Trump Model Management LLC, New York, New York
Trump National Golf Club - Washington DC, Potomac Falls, VA
1125 South Ocean LLC, Palm Beach, Florida
T Promotions LLC, New York, New York
HWA 555 Owners, LLC, San Francisco, CA
1290 Avenue of the Americas, A Tenancy-In-Common, New York, New York
Trump Tower Triplex, New York, New York
N/K/A DTW VENTURE LLC, Palm Beach, Florida
THC Vancouver Management Corp, Vancouver, Canada
TNGC Jupiter Management Corp, Jupiter, FL
Trump Toronto Hotel Management Corp, New York, New York
Trump Management Inc., Manhasset, NY
THC Miami Restaurant Hospitality LLC, Miami, FL
THC IMEA Development LLC, New York, New York
DT Lido Technical Services Manager LLC, Lido, Indonesia
Trump Las Vegas Sales & Marketing, Inc., Las Vegas, NV
Albemarle Estate, Charlottesville, VA
MacLeod House & Lodge, Aberdeen, Scotland
Trump Golf Links at Ferry Point, New York City, New York
Trump International Golf Club, Dubai, UAE
Trump World Golf Club Dubai, UAE
Trump International Resort & Golf Club Lido, Lido City, Indonesia
Seven Springs, Bedford, NY
Le Chateau des Palmiers, St. Martin, French West Indies
Trump World, Seoul, South Korea
Trump Towers, Sunny Isles, FL
D B Pace Acquisition, LLC, New York, NY
DJT HOLDINGS LLC, New York, NY
Golf Productions LLC, New York, NY
T International Realty LLC, New York, NY
THC CENTRAL RESERVATIONS LLC, New York, NY
THC CHINA DEVELOPMENT LLC, New York, NY
THC SALES & MARKETING LLC, New York, NY
The Trump-Equitable Fifth Avenue Company, New York, NY
TRUMP 106 CPS LLC, New York, NY
TRUMP BOOKS LLC /THE MIDAS TOUCH, New York, NY
TRUMP CAROUSEL LLC, New York, NY
TRUMP CPS LLC, New York, NY
TRUMP FERRY POINT LLC, New York, NY
TRUMP HOME MARKS LLC, New York, NY
TRUMP ICE LLC, New York, NY
STORAGE 106 LLC, New York, NY
SC CLEVELAND MS MANAGEMENT LLC, Cleveland, MS
T RETAIL LLC, New York, NY
WESTMINSTER HOTEL MANAGEMENT LLC, Livingston, NJ
GOLF RECREATION SCOTLAND LIMITED, Turnberry, Scotland
TRUMP DEVELOPMENT SERVICES LLC, New York, NY
4T HOLDINGS TWO LLC, New York, NY
T EXPRESS LLC, New York, NY

AMENDMENT NO. 72 OFFERED BY MRS. DINGELL OF MICHIGAN

At the end of division C (before the short title), insert the following:

SEC. 448. None of the funds made available by this Act may be used to implement, administer, or enforce the final rule entitled ''Update to the Regulations Implementing the Procedural Provisions of the National Environmental Policy Act'' published by the Council on Environmental Quality in the Federal Register on July 16, 2020 (85 Fed. Reg. 1684).

AMENDMENT NO. 78 OFFERED BY MR. GOTTHEIMER OF NEW JERSEY

Page 456, line 6, after the dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 83 OFFERED BY MR. HUFFMAN OF CALIFORNIA

At the end of division C (before the short title), insert the following:

PROHIBITION OF OIL AND GAS LEASING IN THE ARCTIC NATIONAL WILDLIFE REFUGE

SEC. ____. No funds provided in this Act may be used to offer any tracts available for oil and gas leasing in the Arctic National Wildlife Refuge.

AMENDMENT NO. 84 OFFERED BY MS. JACKSON LEE OF TEXAS

Page 507, line 19, after the first dollar amount, insert ''(reduced by $5,000,000) (increased by $5,000,000)''.

AMENDMENT NO. 85 OFFERED BY MS. JAYAPAL OF WASHINGTON

At the end of division C, add the following:

SEC. ____. None of the funds made available by this Act may be used to enforce the final rule entitled ''Hunting and Trapping in National Preserves: Alaska'' published by the National Park Service in the Federal Register on June 9, 2020 (86 Fed. Reg. 35181).

AMENDMENT NO. 87 OFFERED BY MR. LOWENTHAL OF CALIFORNIA

At the end of division C (before the short title), add the following:

SEC. ____. None of the funds made available by this Act may be used by the Secretary of the Interior to authorize oil and gas leasing in the Teshekpuk Lake, Colville River, Utukok River Uplands, Kasegaluk Lagoon, or Peard Bay Special Areas defined by the Record of Decision for the National Petroleum Reserve-Alaska Integrated Activity Plan/Environmental Impact Statement signed on February 21, 7 2013.

AMENDMENT NO. 91 OFFERED BY MR. NEGUSE OF COLORADO

Page 478, line 14, after the dollar amount, insert ''(reduced by $5,000,000)''.

Page 531, line 13, after the dollar amount, insert ''(increased by $5,000,000)''.

Page 531, line 15, after the dollar amount, insert ''(increased by $5,000,000)''.

AMENDMENT NO. 92 OFFERED BY MS. OCASIO-CORTEZ OF NEW YORK

Page 518, line 19, after the dollar amount, insert ''(increased by $2,000,000) (reduced by $2,000,000)''.

AMENDMENT NO. 93 OFFERED BY MR. O'HALLERAN OF ARIZONA

Page 559, strike lines 1 through 8.

Page 478, line 14, after the first dollar amount, insert ''(reduced by $15,000,000)''.

AMENDMENT NO. 94 OFFERED BY MR. PANETTA OF CALIFORNIA

Division C, page 506, after line 9, insert the following:

SEC. ____. None of the funds made available by this Act may be used to nominate or accept a nomination or an expression of interest for oil and gas leasing under the Mineral Leasing Act (30 U.S.C. 181 et seq.), or conduct any oil and gas leasing, permitting, or exploration activities for any Federal lands or minerals within the areas covered by—

(1) the Final Central Coast Resource Management Plan Amendment for Oil and Gas Leasing and Development published by the Bureau of Land Management in October, 2019;

(2) the Resource Management Plan for the Bakersfield Field Office, published by the Bureau of Land Management in December, 2014; or

(3) the Carrizo Plain National Monument Resource Management Plan, published by the Department of the Interior in April, 2010.

AMENDMENT NO. 97 OFFERED BY MS. PORTER OF CALIFORNIA

At the end of division (before the short title), insert the following:

SEC. __. None of the funds made available by this division may be used to reject any application for a grant available under funds appropriated by this division because of the use of the term ''global warming'' or the term ''climate change'' in the application.

AMENDMENT NO. 98 OFFERED BY MS. PORTER OF CALIFORNIA

At the end of division C (before the short title) insert the following:

SEC. ____. None of the funds made available by this Act may be used to implement the authority to respond to requests in the final rule titled ''Freedom of Information Act Regulations Update'' published in the Federal Register by the Environmental Protection Agency on June 26, 2019 (84 Fed. Reg. 30028 et seq.).

AMENDMENT NO. 105 OFFERED BY MS. TLAIB OF MICHIGAN

Page 601, line 21, after the dollar amount, insert ''(increased by $500,000,000)''.

Page 605, line 5, after the dollar amount, insert ''(increased by $500,000,000)''.

AMENDMENT NO. 110 OFFERED BY MR. COHEN OF TENNESSEE

At the end of division D (before the short title), insert the following:

SEC. ____. (a) None of the funds appropriated or otherwise made available by this Act may be made available to enter into any new contract, grant, or cooperative agreement with any entity listed in subsection (b).

(b) The entities listed in this subsection are the following:

Trump International Hotel & Tower Chicago, Chicago, IL
Trump International Hotel & Golf Links Ireland (formerly The Lodge at Doonbeg), Doonbeg, Ireland
Trump International Hotel Las Vegas, Las Vegas, NV
Trump National Doral Miami, Miami, FL
Trump International Hotel & Tower New York, New York City, NY
Trump SoHo New York, New York City, NY
Trump International Hotel & Tower, Vancouver, Vancouver, Canada
Trump International Hotel Waikiki, Honolulu, HI
Trump International Hotel Washington, DC
Trump Tower, 721 Fifth Avenue, New York City, New York
Trump World Tower, 845 United Nations Plaza, New York City, New York
Trump Park Avenue, 502 Park Avenue, New York City, New York
Trump International Hotel & Tower, NY
Trump Parc East, 100 Central Park South, New York City, New York
Trump Palace, 200 East 69th Street, New York City, New York
Heritage, Trump Place, 240 Riverside Blvd, New York City, New York
Trump Place, 220 Riverside Blvd, New York City, New York
Trump Place, 200 Riverside Blvd, New York City, New York
Trump Grande, Sunny Isles, FL
Trump Hollywood Florida, Hollywood, Florida
Trump Plaza, New Rochelle, NY
Trump Tower at City Center, Westchester, NY
Trump Park Residences, Yorktown, NY
Trump Parc Stamford, Stamford, Connecticut
Trump Plaza Residences, Jersey City, NJ
The Estate at Trump National, Los Angeles, CA
Trump Towers Pune, India, Pune, India
Trump Tower Mumbai, India, Mumbai, India
Trump Towers Makati, Philippines, Makati, Philippines
Trump International Vancouver, Vancouver, Canada
Trump Towers Istanbul, Sisli, Istanbul, Sisli
Trump Tower Punta Del Este, Uruguay, Punta Sel Este, Uruguay
Briar Hall Operations LLC, New York, New York
DT Dubai Golf Manager LLC, New York, New York
DT Dubai Golf Manager Member Corp, New York, New York
DT Dubai II Golf Manager LLC, New York, New York
DT Home Marks International LLC, New York, New York
DT Home Marks International Member Corp, New York, New York
DT India Venture LLC, New York, New York
DT India Venture Managing Member Corp, New York, New York
DT Marks Baku LLC, New York, New York
DT Marks Baku Managing Member Corp, New York, New York
DT Marks Dubai LLC, New York, New York
DT Marks Dubai Member Corp, New York, New York
DT Marks Dubai II LLC, New York, New York
DT Marks Dubai II Member Corp, New York, New York
DT Marks Gurgaon LLC, New York, New York
DT Marks Gurgaon Managing Member Corp, New York, New York
DT Marks Jersey City LLC, New York, New York
DT Marks Jupiter LLC, New York, New York
DT Mark Qatar LLC, New York, New York
DT Marks Qatar Member Corp, New York, New York
DT Marks Products International LLC, New York, New York
DT Marks Product International Member Corp, New York, New York
DT Marks Pune LLC, New York, New York
DT Marks Pune Managing Member Corp, New York, New York
DT MARKS PUNE II LLC, New York, New York
DT Marks Pune II Managing Member Corp, New York, New York
DT Marks Rio LLC, New York, New York
DT Marks Rio Member Corp, New York, New York
DT Marks Vancouver LP, New York, New York
DT Marks Vancouver Managing Member Corp, New York, New York
DT Marks Worli LLC, New York, New York
DT Marks Worli Member Corp, New York, New York
DT Tower Gurgaon LLC, New York, New York
DT Tower Gurgaon Managing Member Corp, New York, New York
Indian Hills Holdings LLC f/k/a Indian Hills Development LLC, New York, New York
Jupiter Golf Club LLC (Trump National Gold Club-Jupiter), New York, New York
Jupiter Golf Club Managing Member Corp, New York, New York
Lamington Family Holdings LLC, New York, New York
Lawrence Towers Apartments, New York, New York
LFB Acquisition LLC, New York, New York
LFB Acquisition Member Corp, New York, New York
MAR-A-LAGO CLUB, L.L.C., Palm Beach, Florida
Mar A Lago Club, L.L.C, New York, New York
Nitto World Co, Limited, Turnberry, Scotland
OPO Hotel Manager LLC, New York, New York
OPO Hotel Manager Member Corp, New York, New York
OWO Developer LLC, New York, New York
TIGL Ireland Enterprises Limited (Trump International Golf Links-Doonbeg), Doonbeg, Ireland
TIGL Ireland Management Limited, Doonbeg, Ireland
Ace Entertainment Holdings Inc (f/k/a Trump Casinos Inc and formerly Trump Taj Mahal, Inc), Atlantic City, NJ
Trump Chicago Commercial Member Corp, New York, New York
Trump Chicago Commercial Manager LLC, New York, New York
Trump Chicago Development LLC, New York, New York
Trump Chicago Hotel Member Corp, New York, New York
Trump Chicago Hotel Manager LLC, New York, New York
Trump Chicago Managing Member LLC, New York, New York
Trump Chicago Member LLC, New York, New York
Trump Chicago Residential Member Corp, New York, New York
Trump Chicago Residential Manager LLC, New York, New York
Trump Chicago Retail LLC, New York, New York
Trump Chicago Retail Manager LLC, New York, New York
Trump Chicago Retail Member Corp, New York, New York
Trump Drinks Israel Holdings LLC, New York, New York
Trump Drinks Israel Holdings Member Corp, New York, New York
Trump Drinks Israel LLC, New York, New York
Trump Drinks Israel Member Corp, New York, New York
Trump Endeavor 12 LLC (Trump National Doral), New York, New York
Trump Endeavor 12 Manager Corp, New York, New York
Trump Golf Acquisitions LLC, New York, New York
Trump Golf Coco Beach LLC, New York, New York
Trump Golf Coco Beach Member Corp, New York, New York
Trump International Development LLC, New York, New York
Trump International Golf Club LC (Trump International Golf Club-Florida), New York, New York
Trump International Golf Club Scotland Limited, Aberdeen, Scotland
Trump International Golf Club, Inc, Palm Beach, Florida
Trump International Hotel and Tower Condominium, New York, New York
Trump International Hotel Hawaii LLC, New York, New York
Trump International Hotels Management LLC, New York, New York
Trump International Management Corp, New York, New York
Trump Korean Projects LLC, New York, New York
Trump Marks Atlanta LLC, New York, New York
Trump Marks Atlanta Member Corp, New York, New York
Trump Marks Baja Corp, New York, New York
Trump Marks Baja LLC, New York, New York
Trump Marks Batumi, LLC, New York, New York
Trump Marks Beverages Corp, New York, New York
Trump Marks Beverages, LLC New York, New York
Trump Marks Canouan Corp, New York, New York
Trump Marks Canouan, LLC New York, New York
Trump Marks Chicago LLC, New York, New York
Trump Marks Chicago Member Corp, New York, New York

Trump Marks Dubai Corp, New York, New York
Trump Marks Egypt LLC, New York, New York
Trump Marks Ft. Lauderdale LLC, New York, New York
Trump Marks Holdings LP (FKA Trump Marks LP), New York, New York
Trump Marks Istanbul II Corp, New York, New York
Trump Marks Jersey City LLC, New York, New York
Trump Marks Menswear LLC, New York, New York
Trump Marks Mtg LLC, New York, New York
Trump Marks New Rochelle Corp, New York, New York
Trump Marks Palm Beach LLC, New York, New York
Trump Marks Philadelphia Corp, New York, New York
Trump Marks Philippines LLC, New York, New York
Trump Marks Products Member Corp, New York, New York
Trump Marks Puerto Rico II LLC, New York, New York
Trump Marks Punta del Este Manager Corp, New York, New York
Trump Marks SOHO License Corp, New York, New York
Trump Marks Stamford Corp, New York, New York
Trump Marks Sunny Isles II LLC, New York, New York
Trump Marks Tampa LLC, New York, New York
Trump Marks Toronto LP (formally Trump Toronto Management LP), New York, New York
Trump Marks Westchester Corp, New York, New York
Trump Miami Resort Management LLC, New York, New York
Trump National Golf Club Colts Neck Member Corp, New York, New York
Trump National Golf Club Washington DC LCC, New York, New York
Trump Old Post Office Member Corp, New York, New York
The Trump Organization, New York, New York
Trump Palace/Parc LLC, New York, New York
Trump Panama Hotel Management LLC, New York, New York
Trump Park Avenue Acquisition LLC, New York, New York
Trump Payroll Corp, New York, New York
Trump Plaza Member Inc (F/K/A Trump Plaza Corp), New York, New York
Trump Project Manager Corp, New York, New York
Trump Ruffin Commercial LLC, New York, New York
Trump Sales & Leasing Chicago LLC, Chicago, IL
Trump Scotsborough Square LLC, Scotsborough Square, VA
Trump Toronto Development Inc, New York, New York
Trump Tower Managing Member Inc, New York, New York
Trump Vineyard Estates Manager Corp, New York, New York
Trump Virginia Acquisitions Manager Corp, New York, New York
Trump Wine Marks LLC, New York, New York
Trump World Productions Manager Corp, New York, New York
Trump's Castle Management Corp, Atlantic City, NJ
Turnberry Scotland LLC, Turnberry, Scotland
TW Venture I Managing Member Corp, Palm Beach, Florida
Unit 2502 Enterprises Corp, Chicago, IL
West Palm Operations LLC, WPB, Florida
White Course Managing Member Corp, Miami FL
Yorktown Real Estate LLC (F/K/A/ Yorktown Development Associates LLC), New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Elizabeth J. Trump, New York, New York
Maryanne Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
The Donald J. Trump Revocable Trust, New York, New York
DT Bali Golf Manager Member Corp, New York, New York
DT Bali Technical Services Manager LLC, New York, New York
DT Endeavor I LLC, New York, New York
DT Lido Golf Manager Member Corp, New York, New York
DT Marks Bali LLC, New York, New York
DT Marks Lido Member Corp, New York, New York
DT Tower II LLC, New York, New York
DT Tower Kolkata Managing Member Corp, New York, New York
DT Venture II LLC, New York, New York
DTTM Operations Managing Member, New York, New York
THC DC Restaurant Hospitality LLC, New York, New York
Mobile Payroll Construction Manager Corp, New York, New York
TC MARKS BUENOS AIRES LLC, New York, New York
Trump Central Park West Corp, New York, New York
401 North Wabash Venture LLC, Chicago, IL
County Properties, LLC, Norfolk, VA
DT Connect II LLC, Palm Beach, Florida
Pine Hill Development LLC, Pine Hill, NJ
The East 61 Street Company, LP, New York, New York
TIHT Holding Company LLC, New York, New York
Trump National Golf Club - Philadelphia, Pine Hill, NJ

Trump Marks Dubai LLC, New York, New York
Trump Marks Fine Foods LLC, New York, New York
Trump Marks Ft. Lauderdale Member Corp, New York, New York
Trump Marks Hollywood Corp, New York, New York
Trump Marks Istanbul II LLC, New York, New York
Trump Marks Mattress LLC, New York, New York
Trump Marks Menswear Member Corp, New York, New York
Trump Marks Mumbai LLC, New York, New York
Trump Marks New Rochelle LLC, New York, New York
Trump Marks Panama Corp, New York, New York
Trump Marks Philadelphia LLC, New York, New York
Trump Marks Products LLC, New York, New York
Trump Marks Puerto Rico I LLC, New York, New York
Trump Marks Puerto Rico II Member Corp, New York, New York
The Donald J. Trump Company LLC, New York, New York
Trump Marks SOHO LLC, New York, New York
Trump Marks Sunny Isles I LLC, New York, New York
Trump Marks Sunny Isles II Member Corp, New York, New York
Trump Marks Toronto Corp, New York, New York
Trump Marks Waikiki Corp, New York, New York
Trump Marks Westchester LLC, New York, New York
Trump Miami Resort Management Member Corp, New York, New York
Trump National Golf Club LLC (Trump National Golf Club- Westchester), New York, New York
Trump National Golf Club Washington DC Member Corp, New York, New York
Trump On the Ocean LLC, New York, New York
Trump Pageants, Inc, New York, New York
Trump Panama Condominium Management LLC, New York, New York
Trump Panama Hotel Management Member Corp, New York, New York
Trump Park Avenue LLC, New York, New York
Trump Phoenix Development LLC, New York, New York
Trump Productions LLC (former Rancho Lien LLC), New York, New York
Trump Restaurants LLC, New York, New York
Trump Ruffin LLC, Las Vegas, NV
Trump Sales & Leasing Chicago Member Corp, Chicago, IL
Trump SoHo Hotel Condominium New York, New York, New York
Trump Toronto Member Corp (formally Trump Toronto Management Member Corp), New York, New York
Trump Village Construction Corp, New York, New York
Trump Vineyard Estates Lot 3 Owner LLC (F/K/A Eric Trump Land Holdings LLC), New York, New York
Trump Virginia Lot 5 LLC, New York, New York
Trump Wine Marks Member Corp, New York, New York
Trump World Publications LLC, New York, New York
Trump Marks White Plains Corp, New York, New York
TW Venture I LLC, Palm Beach, Florida
TW Venture II Managing Member Corp, Doonbeg, Ireland
Unit 2502 Enterprises LLC, Chicago, IL
Wexford Hall Inc., New York, New York
Wilshire Hall LLC, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Donald J. Trump, New York, New York
Fred C. Trump GRAT Trust- F/B/O Elizabeth Trump Grau, New York, New York
Trust U/W/O Fred C. Trump- F/B/O the grandchildren of Fred C. Trump, New York, New York
The Police Athletic League, Inc, New York, New York
DT Bali Hotel Manager LLC, New York, New York
DT Bali Technical Services Manager Member Corp, New York, New York
DT Endeavor I Member Corp, New York, New York
DT Lido Hotel Manager LLC, New York, New York
DT Marks Bali Member Corp, New York, New York
DT Tower I LLC, New York, New York
DT Tower II Member Corp, New York, New York
DT Venture I LLC, New York, New York
DT Venture II Member Corp, New York, New York
EID Venture II LLC, New York, New York
Lamington Farm Club (TRUMP NATIONAL GOLF CLUB-BEDMINSTER)*, Bedminster, NJ
C DEVELOPMENT VENTURES LLC, New York, New York
Midland Associates, New York, New York
DT Marks Qatar LLC, New York, New York
809 North Canon LLC, Beverly Hills, CA
DJT Aerospace LLC, New York, New York
Excel Venture I LLC, St. Martin, French West Indies
Seven Springs LLC, Mt. Kisco, NY
The Trump Corporation, New York, New York
Trump National Golf Club - Hudson Valley, Hopewell Junction, NY
Trump International Golf Links - Scotland, Aberdeen, Scotland

Trump Marks Egypt Corp, New York, New York
Trump Marks Fine Foods Member Corp, New York, New York
Trump Marks GP Corp, New York, New York
Trump Marks Hollywood LLC, New York, New York
Trump Marks Jersey City Corp, New York, New York
Trump Marks Mattress Member Corp, New York, New York
Trump Marks Mortgage Corp, New York, New York
Trump Marks Mumbai Member Corp, New York, New York
Trump Marks Palm Beach Corp, New York, New York
Trump Marks Panama LLC, New York, New York
Trump Marks Philippines Corp, New York, New York
The Trump Organization, Inc, New York, New York
Trump Marks Puerto Rico I Member Corp, New York, New York
Trump Marks Punta del Este LLC, New York, New York
The Trump Marks Real Estate Corp, New York, New York
Trump Marks Stamford LLC, New York, New York
Trump Marks Sunny Isles I Member Corp, New York, New York
Trump Marks Tampa Corp, New York, New York
Trump Marks Toronto LLC, New York, New York
Trump Marks Waikiki LLC, New York, New York
Trump Marks White Plains LLC, New York, New York
Trump National Golf Club Colts Neck LLC, New York, New York
Trump National Golf Club Member Corp, New York, New York
Trump Old Post Office LLC, New York, New York
Trump Organization LLC, New York, New York
Trump Palace Condominium, New York, New York
Trump Panama Condominium Member Corp, New York, New York
Trump Parc East Condominium, New York, New York
Trump Payroll Chicago LLC, New York, New York
Trump Plaza LLC, New York, New York
Trump Production Managing Member Inc, New York, New York
Trump Riverside Management LLC, New York, New York
Trump Ruffin Tower I LLC, Las Vegas, NV
Trump Scotland Member Inc, Aberdeen, Scotland
Trump SoHo Member LLC, New York, New York
Trump Tower Commercial LLC, New York, New York
Trump Vineyard Estates LLC, New York, New York
Trump Virginia Acquisitions LLC (fka Virginia Acquisitions LLC), New York, New York
Trump Virginia Lot 5 Manager Corp, New York, New York
Trump World Productions LLC, New York, New York
Trump/New World Property Management LLC, New York, New York
Turnberry Scotland Managing Member Corp, Turnberry, Scotland
TW Venture II LLC, Doonbeg, Ireland
Ultimate Air Corp, New York, New York
VHPS LLC, Los Angeles, CA
White Course LLC, Miami, FL
Wollman Rink Operations LLC, New York, New York
The Fred C. Trump December 16, 1976 Trust- F/B/O Robert S. Trump, New York, New York
Trust U/W/O Fred C. Trump- F/B/O Elizabeth Trump Grau, New York, New York
The Donald J. Trump grantor Trust - DJT is the Trustee Successor - Trustee is Donald J. Trump, Jr., New York, New York
DT Bali Golf Manager LLC, New York, New York
DT Bali Hotel Manager Member Corp, New York, New York
DT Connect Europe Limited, Turnberry, Scotland
DT Lido Golf Manager LLC, New York, New York
DT Lido Hotel Manager Member Corp, New York, New York
DT Marks Lido LLC, New York, New York
DT Tower I Member Corp, New York, New York
DT Tower Kolkata LLC, New York, New York
DT Venture I Member Corp, New York, New York
DTTM Operations LLC, New York, New York
EID Venture II Member Corp, New York, New York
Mobile Payroll Construction LLC, New York, New York
C DEVELOPMENT VENTURES MEMBER CORP, New York, New York
Miss Universe L.P., LLLP (formerly Trump Pageants, L.P.), New York, New York
40 Wall Street LLC, New York, New York
Caribuslness Investments, S.R.L., Dominican Republic
DJT Operations I LLC, New York, New York
Fifty-Seventh Street Associates LLC, New York, New York
Trump Turnberry , Turnberry, Scotland
TIHT Commercial LLC, New York, New York
Trump National Golf Club - Charlotte, Charlotte, NC
Trump Las Vegas Development LLC, Las Vegas, NV

Trump Marks Asia LLC, Sterling, VA
1125 South Ocean LLC, Palm Beach, Florida
1290 Avenue of the Americas, A Tenancy-In-Common, New York, New York
THC Vancouver Management Corp, Vancouver, Canada
Trump Management Inc., Manhasset, NY
DT Lido Technical Services Manager LLC, Lido, Indonesia
MacLeod House & Lodge, Aberdeen, Scotland
Trump World Golf Club Dubai, UAE
Le Chateau des Palmiers, St. Martin, French West Indies
D B Pace Acquisition, LLC, New York, NY
T International Realty LLC, New York, NY
THC SALES & MARKETING LLC, New York, NY
TRUMP BOOKS LLC /THE MIDAS TOUCH, New York, NY
TRUMP FERRY POINT LLC, New York, NY
STORAGE 106 LLC, New York, NY
WESTMINSTER HOTEL MANAGEMENT LLC, Livingston, NJ
4T HOLDINGS TWO LLC, New York, NY
Trump Model Management LLC, New York, New York
T Promotions LLC, New York, New York
Trump Tower Triplex, New York, New York
TNGC Jupiter Management Corp, Jupiter, FL
THC Miami Restaurant Hospitality LLC, Miami, FL
Trump Las Vegas Sales & Marketing, Inc., Las Vegas, NV
Trump Golf Links at Ferry Point, New York City, New York
Trump International Resort & Golf Club Lido, Lido City, Indonesia
Trump World, Seoul, South Korea
DJT HOLDINGS LLC, New York, NY
THC CENTRAL RESERVATIONS LLC, New York, NY
The Trump-Equitable Fifth Avenue Company, New York, NY
TRUMP CAROUSEL LLC, New York, NY
TRUMP HOME MARKS LLC, New York, NY
SC CLEVELAND MS MANAGEMENT LLC, Cleveland, MS
GOLF RECREATION SCOTLAND LIMITED, Turnberry, Scotland
T EXPRESS LLC, New York, NY
Trump National Golf Club - Washington DC, Potomac Falls, VA
HWA 555 Owners, LLC, San Francisco, CA
N/K/A DTW VENTURE LLC, Palm Beach, Florida
Trump Toronto Hotel Management Corp, New York, New York
THC IMEA Development LLC, New York, New York
Albemarle Estate, Charlottesville, VA
Trump International Golf Club, Dubai, UAE
Seven Springs, Bedford, NY
Trump Towers, Sunny Isles, FL
Golf Productions LLC, New York, NY
THC CHINA DEVELOPMENT LLC, New York, NY
TRUMP 106 CPS LLC, New York, NY
TRUMP CPS LLC, New York, NY
TRUMP ICE LLC, New York, NY
T RETAIL LLC, New York, NY
TRUMP DEVELOPMENT SERVICES LLC, New York, NY

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentlewoman from New York (Mrs. LOWEY) and the gentlewoman from Texas (Ms. GRANGER) each will control 15 minutes.

The Chair recognizes the gentlewoman from New York.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentlewoman from Michigan (Mrs. DINGELL), the co-chair of the DPCC.

Mrs. DINGELL. Mr. Speaker, I thank the wonderful chair of the Appropriations Committee for yielding.

I rise in support of en bloc 2, which includes an important amendment to block the Trump administration's latest attack on the National Environmental Policy Act.

For 50 years, NEPA has both protected and fought for the environment and empowered local communities protecting them. In many cases, NEPA provides ordinary Americans the only opportunity to have a voice on major projects, including pipelines or extractive activity like oil and gas drilling that directly impacts their communities.

The administration's new NEPA rule both limits the scope of environmental review and exempts entire categories of projects from review all together.

Mr. Speaker, the administration's attack on NEPA prioritizes special interests and polluters ahead of the American people and our environmental heritage. I urge my colleagues to support this en bloc amendment and to block this assault on one of our Nation's bedrock environmental laws.

Ms. GRANGER. Mr. Speaker, I yield 2½ minutes to the gentleman from Washington (Mr. NEWHOUSE).

Mr. NEWHOUSE. Mr. Speaker, I rise in opposition to this group of partisan, antiresource development amendments offered by several House Democrats. These provisions offered on the Interior appropriations bill will hamstring our Nation's efforts to secure our energy independence.

Many of these amendments seek to prohibit oil and gas development, and, Mr. Speaker, I have just got to say, it is really quite ironic to see my colleagues who just yesterday voted for sweeping legislation mandating $900 million a year from the oil and gas industry for conservation projects to now, just one day later, not even 24 hours later, offer amendments to restrict the very industry that those projects depend upon.

This is hypocrisy, plain and simple. But it is exactly what I shared in a message with my constituents yesterday. Democrats are trying to have their cake and eat it too. From the Green New Deal to Mr. Biden's energy plan to these irresponsible amendments we have here before us, Democrats continue to put forward ideas that are not based in reality and will harm our Nation's energy security.

Another partisan amendment seeks to block the recent finalized rule by the Council on Environmental Quality to modernize severely outdated and burdensome National Environmental Policy Act regulations, something that has not been done for 40 years.

According to the U.S. Chamber of Commerce's Unlock American Investment coalition, we are now seeing infrastructure project delays of up to 20 years across our country. This is unacceptable, and it prevents critical repairs and construction of roads, of bridges, of airports, railways, renewable energy projects, even water infrastructure projects in the West and many more things.

At a time when American jobs and the economy are facing significant challenges, these provisions threaten our Nation's resiliency, our energy independence, and our ability to recover from this pandemic.

Please, Mr. Speaker, vote ''no'' on these amendments.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from New Jersey (Mr. GOTTHEIMER).

Mr. GOTTHEIMER. Mr. Speaker, I thank the gentlewoman for yielding and for her incredible leadership.

I rise in support of this package, which contains two amendments I have introduced.

My first amendment addresses the harmful algal blooms impacting many north Jersey lakes and harming our ecotourism, local businesses, and residents. We need the U.S. Geological Survey to report to Congress on ways to combat toxic HABs like those in Greenwood Lake and Lake Hopatcong.

My second amendment prohibits any funds in the bill being used to promote the sale of vaping and dangerous e-cigarette products, which can harm our children. We must do everything we can to help save lives and protect families by combating the youth vaping epidemic.

Mr. Speaker, I urge support for this set of amendments.

Ms. GRANGER. Mr. Speaker, I yield 1 minute to the gentleman from Pennsylvania (Mr. PERRY).

Mr. PERRY. Mr. Speaker, I thank the ranking member from Texas (Ms. GRANGER) for yielding.

This amendment would increase, by 100,000, the funding to combat the prevalence of female genital mutilation, FGM, around the world.

FGM represents a grave moral evil, irreparably compromising the health and well-being of every woman and girl subjected to it.

The practice of FGM occurs in 30 countries, in particular, Egypt, Indonesia, and Ethiopia, and has been performed on more than 200 million women and girls to date. Every year, 3 million more girls are placed at risk, with most of the victims below the age of 15.

The long-term effects of FGM are wide ranging, including post-traumatic stress disorder, depression, flashbacks, self-harm, and severe difficulties during labor.

In February, an Egyptian doctor was arrested for performing FGM on a 12-year-old girl, resulting in her death, at the instruction of the girl's parents. The doctor conducted the practice without any anesthesia and without having the appropriate surgeon qualifications.

To be clear, this is not an isolated case.

Egypt has banned the practice of FGM since 2008 and criminalized it in 2016. The fact that it still happens to an overwhelming number of young girls in that country, despite the strict legal measures, illustrates the massive scope of this problem and the immense work remaining for each of us.

The U.S. must be unequivocal in condemning this disgusting, horrific practice and lead the world in calling for it to end, and I urge my colleagues to support this amendment.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from Illinois (Mr. FOSTER.)

Mr. FOSTER. Mr. Speaker, I thank the gentlewoman for yielding.

My amendment directs the State Department to use $10 million from the NADR account to fund a major science facility in Jordan called SESAME, or the Synchrotron-light for Experimental Science and Application in the Middle East. SESAME is a cooperative venture by scientists and governments throughout the region, including Israel, Iran, and everyone in between.

Science is a universal language that can cross barriers, and SESAME has the potential to be that bridge in an area where very few exist. The U.S. support would strengthen collaboration and provide encouragement for all of the countries in the region.

I urge my colleagues to join me and vote ''yes'' on this en bloc package.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, before I introduce the next speaker, I just want to say a few words about SESAME, because it is an extraordinary project, and I thank the gentleman for bringing it to this body's attention.

Mr. Speaker, I yield 1 minute to the gentleman from Tennessee (Mr. COHEN).

□ 1600

Mr. COHEN. Mr. Speaker, I thank Chairman LOWEY for yielding. I appreciate the opportunity to speak.

In this en bloc amendment, there are four amendments that I offered. I have offered them for 4 years. They have been accepted, now, for 2 years. They are emoluments amendments. They will say we can't spend money at businesses that the President owns.

Well, we shouldn't. No President should be in the business of getting money from the government, and it wasn't until Donald Trump became President that this became a problem.

He does it at his hotels. He does it at his golf clubs. He has done it having airplanes stop at different airports than they normally do for refueling so they will end up having to spend the night at his golf club in Scotland. And recently, it came up that he asked his Ambassador to England to get one of his golf clubs in Scotland the opportunity to host the British Open and make a ton of money.

The Presidency should be about serving the country and serving the people and supporting democracy, not about supporting yourself and putting money in your pocket.

Ms. GRANGER. Mr. Speaker, I urge a ''no'' vote on this en bloc package, and I yield back the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, first of all, I thank the gentlewoman for her generosity and for recognizing the importance of the work that we are doing.

Mr. Speaker, I want to speak to my amendments and thank the Rules Committee for these amendments. I guess I have to speak very quickly.

We have been committed over the years to stopping the trafficking of endangered species, and I am glad that I have established a focus on protecting the endangered species like Cecil the lion.

Mr. Speaker, I thank the Rules Committee for that amendment, as well as the amendment that I have been working on for many years to stop female genital mutilation, to highlight the extensive amount of mutilation in developing nations across the world.

I was also very pleased to have an amendment that provided for the authority of the Secretary of Agriculture or any Federal agency, to stop them from eliminating assistance and benefits to victims of trafficking as permitted by 22 U.S.C. 7105.

We know that victims of human trafficking are the most vulnerable, and my city of Houston has been the epicenter of human trafficking.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mrs. LOWEY. Mr. Speaker, I yield an additional 1 minute to the gentlewoman from Texas.

Ms. JACKSON LEE. Mr. Speaker, I want to also applaud the fact that I was able to get an amendment in that increases the funding by $2 million, through the U.S. Department of Agriculture, for the 1890s land-grant colleges, which are 28 historically Black colleges. It helps those who are in food deserts.

And, Mr. Speaker, my district has now some percentage of COVID–19 who are, in essence, underwater, suffering, and food distribution, or the lack of food, is very evident.

We have suffered in my region with toxic poisoning from chemicals, and we now have $5 million that has been in the Department of the Interior to highlight the need to support culturally competent Federal, State, and local public health and environmental protection efforts.

Mr. Speaker, I want to say to Fifth Ward Texas that they have been heard in the Halls of the United States Congress; they will not any longer be contaminated by creosote and having the numbers of cancers that they have experienced, as I have knocked on doors and had people telling me about their families dying because the railroad's creosote contaminated their backyards and the trees that they grew and the fruit that they grew.

How horrendous that we would have that.

I am very glad that our amendments were included in this legislation.

The SPEAKER pro tempore. The time of the gentlewoman has again expired.

Mrs. LOWEY. Mr. Speaker, I yield an additional 30 seconds to the gentlewoman from Texas.

Ms. JACKSON LEE. Mr. Speaker, the chairwoman has been enormously gracious for me to be able to conclude my remarks by indicating again the importance of the historically Black colleges getting an extra $2 million; emphasizing that Fifth Ward Texas, the home of Barbara Jordan and Mickey Leland, older neighborhoods in the historically minority communities, won't suffer any longer by toxic poisoning because of chemicals that have been placed without care; and to be able to thank them, as well, for taking care of the endangered species and those who are trafficked and those, as well, with female genital mutilation.

Mr. Speaker, I close my remarks by simply saying the COVID–19 dollars are needed. I thank the chairwoman for that. We are suffering in Houston, and we are going to fight to stop community spread by more testing, more testing, more testing.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. CARBAJAL).

Mr. CARBAJAL. Mr. Speaker, I thank Chairwoman LOWEY for yielding to me.

I rise in support of an amendment that includes a provision I coauthored with Representative PANETTA to send a clear message to this administration that our public lands are not for sale.

We will not put the interests of Big Oil over our people and sit idly by as the Trump administration seeks to open up the Carrizo Plain National Monument and other public lands in my district for oil and gas development.

Mr. Speaker, I urge my colleagues to vote ''yes.''

Mrs. LOWEY. Mr. Speaker, I yield back the balance of my time.

Mr. GRIJALVA. Mr. Speaker, my amendment will direct $4,000,000 within the International Border and Water Commission to clarify the responsibility for the maintenance of the International Outfall Interceptor (IOI). This is in addition to, and separate from, the funding that currently exists for the long overdue repairs to the IOI.

The International Outfall Interceptor is the infrastructure that transports wastewater from Sonora, Mexico and Arizona to the Nogales International Wastewater Treatment Plant.

The IOI pipeline covers approximately 8.5 miles. Under a 1944 water utilization treaty, Mexico can treat water in the United States. The International Border and Water Commission is tasked with managing international infrastructure negotiations and operates the Nogales International Sanitation Project.

On average, 92 percent of the water treated daily at the Nogales International Wastewater Treatment Plant is from Mexico and 8 percent from the surrounding community.

Unfortunately, due to damage and aging infrastructure, the International Outfall Interceptor needs costly and urgent repairs. Wastewater constantly emerges from the IOI and pollutes surrounding rivers and streams. Rains carry the polluted stormwater into Nogales, Arizona and exposes downstream populations to extraordinary public health risk.

In 2017, I called on the Governor of Arizona to commence the Disaster Declaration process for the State of Arizona to secure immediate federal assistance to remedy and prevent raw sewage exposure to Arizona residents.

Every year during the monsoon season the health of residents along the Arizona southern border are put at risk, due to this ongoing issue. While Arizona residents are very familiar with this issue, other communities along the United States-Mexico border experience similar health risks due to similar issues.

The IBWC has finalized engineering plans and already identified an existing $34.2 million to begin the urgent repairs to the IOI. My amendment further directs $4,000,000 within the International Border and Water Commission to clarify the responsibility to sustain the maintenance and operation of the International Outfall Interceptor (IOI).

This has been an ongoing international issue that impacts the safety and well-being of communities across Southern Arizona. In the past, Senators and Member of Congress on both sides of the aisle of the Arizona delegation have collaborated to remedy the situation. I would like to thank Senator MCSALLY for championing this issue in the Senate.

I would like to thank the Chairwoman and the committee for their work on this bill. I appreciate the opportunity to speak on this amendment, and I would urge all my colleagues to support this amendment. We must finally find a solution to protect the health of residents along the United States-Mexico border.

Mr. COX of California. Mr. Speaker, I rise today to advocate for amendment No. 33 to H.R. 7608, the Department of State, Foreign Operations, and Related Programs Appropriations Act for Fiscal Year 2021. My colleagues on both sides of the aisle have come together to support this amendment, which should appropriate $1.4 million in foreign aid for ongoing humanitarian demining in Nagorno Karabakh—Artsakh.

USAID's demining program has eliminated nearly 4,000 landmines and over 57,000 items of unexploded ordnance, saving many lives from these remnants of war. The program has also transformed over 62,000 acres of former minefield and battlefield into land that can be used productively.

However, we know that significant landmine contamination remains. Nagomo Karabakh has suffered from one of the worst mine accident rates in the world, with nearly 400 civilian casualties since 1994—a quarter of which have been children. Just last month an 11-year old boy named Hovannes found a submunition while digging in his family's garden. Because Hovannes had received U.S.-funded mine risk education about how to identify the weapon and stay safe, he told his family about the item, who contacted the U.S. demining program. The submunition was safely removed the next day.

Continued funding for the demining program will unquestionably save lives and generate peace and stability in the region. The United States' demining program in Nagomo Karabakh represents the only source of U.S. support in the region, and the only demining assistance available to the families of Karabakh. Without an appropriation of $1.4 million, the U.S. demining program will close, and families in the region, who are still waiting for their land to be made safe, will suffer indefinitely—families that are of utmost importance to the many Armenian American communities in my district and throughout our nation.

Landmine clearance is a bipartisan U.S. priority that will provide critical humanitarian relief to countless families in Nagomo Karabakh who continue to live in constant threat of danger. I urge my colleagues to support this amendment and help provide much needed stability to this region, while continuing to support a constructive relationship between the U.S., Nagomo Karabakh, and Armenia.

Mr. ROUDA. Mr. Speaker, I rise in support of my amendment to H.R. 7608, which highlights the contributions of Vietnamese, Laotian, and Cambodian immigrants and discourages attempts to increase repatriations to those countries.

In 2008, the United States reached a formal agreement with Vietnam which contains specific restrictions on the repatriation of certain individuals to Vietnam. Under this agreement, any Vietnamese national who arrived in the United States before our two nations established formal diplomatic relations on July 12, 1995 is barred from being repatriated to Vietnam. This provision benefits our communities by keeping families together and allowing people who have lived here for decades to continue making a positive impact on their communities. Under this Administration, there has been a renewed push to increase deportations to Southeast Asian countries, including the weaponization of visa sanctions to unilaterally push for broadened repatriation agreements.

I am proud to represent a community where we honor the thousands of men, women, and children who arrived in the United States after the Vietnam War in search of a better life, and I call upon this Administration to cease attempts to renegotiate repatriation agreements to allow for greater numbers of repatriations to these countries.

I would like to thank Chairwoman LOWEY and the House Committee on Appropriations for including report language we requested to prevent the use of funds to negotiate or enter into an agreement with the Governments of Laos or Vietnam for the repatriation of these individuals. I also would like to thank my colleagues, Representatives ALAN LOWENTHAL, LOU CORREA, and ZOE LOFGREN, for their support of this amendment and their continued hard work on behalf of Vietnamese and Southeast Asian American communities.

Ms. JACKSON LEE. Mr. Speaker, I rise to speak in strong support of Jackson Lee Amendment No. 84 to H.R. 7608, the State, Foreign Operations, Agriculture, Rural Development, Interior, Environment, Military Construction, and Veterans Affairs Appropriations Act.

I thank Chairman MCGOVERN and Ranking Member COLE for making this Jackson Lee amendment in order for House consideration of H.R. 7608.

This Jackson Lee Amendment is straightforward and makes the bill even better. I believe they would command the support of a majority of the House and urge my colleagues to vote in favor of them.

The amendment is to Division C—Department of the Interior, Environment.

Jackson Lee Amendment No. 84 provides $5 million to highlight the need to support culturally competent federal, state, and local public health and environmental protection efforts to address cancer clusters impacting overburdened communities in the gulf coast region, which is home to a refinery row that runs from Mobile to Houston Texas.

In the 18th Congressional District Creosote contamination in my district has had long term consequences for the residents of the 5th Ward.

I have worked for years to address Environmental Justice issues in and around my District, by bringing agencies and communities together for meaningful dialogues.

In April of 2019, I held a meeting between residents, local public health and Union Pacific Railroad regarding contamination in the 5th Ward area of Houston. Predecessor R.R. was South Pacific

The meeting was to discuss letters that Union Pacific sent to residents informing them that they could not dig water wells in their yards due to creosote contamination.

During this meeting residents expressed frustration at not getting questions answered regarding their concerns about the safety of water and soil due to the contamination and the alarming number of cancers occurring among residents.

After hearing the discussion, I asked about a study to investigate the situation and provide answers to residents.

A cancer cluster study was performed by the Texas Department of State Health Services and found that there is a higher incidence of certain types of cancers and cancer deaths among residents of Kashmere Gardens and the Fifth Ward.

Southern Pacific operated the open pit of creosote in the residential area that treated railroad ties and light post for decades.

Southern Pacific was acquired by Union Pacific, which continued to operate a wood treatment facility, dipping railroad ties in the preservative creosote.

The creosote emitted fumes, leached into the soil and ran through ditches when it rained or flooded.

Union Pacific closed their creosote treatment capacity, but the damage remained, because creosote is comprised of chemicals that in combination are listed as a hazardous substance by the Environmental Protection Agency.

To address the contamination Union Pacific requested and approved largely to leave the contamination in the ground without pursuing more extensive cleanup efforts, which has left residents battling to get regulators to force the company to take more responsibility for the thick mass of creosote that lurks beneath their properties.

These residents are right—the soil and water are killing them with cancer and Union Pacific has got to take strong action to remove this clear health threat that is causing cancers of the:

Lung and Bronchus;
Esophagus;
Larynx (throat);
Liver; and
Acute Myeloid Leukemia.

Rare is the case that a community meeting results in such a profound finding that and exposed an urgent need that should be addressed given the science behind the causes of cancer and the steps that much be taken to limit risks.

There are other communities throughout the Gulf Coast that may have creosote contamination linked to old railroad lines that may not be given the level of attention needed to address health risks.

Funding provided by this amendment will provide resources for those communities with cancer clusters.

I ask for your support for this Jackson Lee Amendment, which is needed to save lives.

Mr. LYNCH. Mr. Speaker, I rise in support of en bloc Amendment No. 2 which includes my amendment number 17 to the State and Foreign Operations division to provide an additional $5 million for U.S. demining activities.

Mr. Speaker, antipersonnel landmines continue to injure and kill thousands of men. women. and children every year. These devices arc indiscriminate and can explode years or even decades after wars are ended and peace agreements are signed. All it takes is for a car to pass or a person to walk over the wrong place at the wrong time to devastate a life and a family.

Thankfully, there are a number of humanitarian organizations that arc working tirelessly to find and safely remove these explosives. Unfortunately, despite their valiant efforts, there still remain many more antipersonnel landmines to be found and neutralized. I have had the opportunity to examine the impact of landmines in places like Lebanon, Somalia and Egypt, and believe that the United States has a moral obligation to do all it can to support demining efforts, and that is why I sought this increase.

I was proud to work with the Appropriations Committee in 2006 to get an increase of $10 million to the State Department's Humanitarian Demining account and am grateful that it has accepted my amendment for an increase of $5 million to this year's appropriations bill. This additional funding will save countless more lives and spare thousands from having to live with devastating injuries.

I would like to thank Appropriations Committee Chairwoman Lowey and Ranking member Granger for including this amendment in the en bloc.

The SPEAKER pro tempore. Pursuant to the rule, the previous question is ordered on the amendments en bloc offered by the gentlewoman from New York (Mrs. LOWEY).

The question is on the amendments en bloc.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. GRANGER. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

AMENDMENTS EN BLOC NO. 3 OFFERED BY MRS. LOWEY OF NEW YORK

Mrs. LOWEY. Mr. Speaker, pursuant to House Resolution 1060, I offer amendments en bloc.

The SPEAKER pro tempore. The Clerk will designate the amendments en bloc.

Amendments en bloc No. 3 consisting of amendment Nos. 15, 25, 36, 68, 74, 76, 77, 88, 89, 90, 95, 96, 101, 112, 120, and 124, printed in House Report 116–459, offered by Mrs. LOWEY of New York:

AMENDMENT NO. 15 OFFERED BY MR. LUETKEMEYER OF MISSOURI

At the end of division A (before the short title), insert the following:

SEC. ____. None of the funds appropriated or otherwise made available to any Federal department or agency by this Act may be used to make assessed or voluntary contributions on behalf of the United States to or for the Intergovernmental Panel on Climate Change, the United Nations Framework Convention on Climate Change, or the Green Climate Fund.

AMENDMENT NO. 25 OFFERED BY MR. PERRY OF PENNSYLVANIA

At the end of division A (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used for the United Nations Relief and Works Agency.

AMENDMENT NO. 36 OFFERED BY MR. WILSON OF SOUTH CAROLINA

Page 182, line 17, strike ''professionalize the LAF to''.

AMENDMENT NO. 68 OFFERED BY MR. BURGESS OF TEXAS

At the end of division C (before the short title) insert the following:

SEC. _____. None of the funds made available by this Act may be used by the Environmental Protection Agency to hire or pay the salary of any officer or employee of the Environmental Protection Agency under subsection (f) or (g) of section 207 of the Public Health Service Act (42 U.S.C. 209) who is not already receiving pay under either such subsection on the date of enactment of this Act.

AMENDMENT NO. 74 OFFERED BY MR. DUNCAN OF SOUTH CAROLINA

In division C, page 590, strike lines 14–20.

AMENDMENT NO. 76 OFFERED BY MR. GOSAR OF ARIZONA

At the end of division C (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used in contravention of Executive Order 13807.

AMENDMENT NO. 77 OFFERED BY MR. GOSAR OF ARIZONA

At the end of division C (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used in contravention of Executive Order 13817.

AMENDMENT NO. 88 OFFERED BY MR. MCKINLEY OF WEST VIRGINIA

At the end of division C (before the short title), insert the following:

SEC. ____. None of the funds made available by this division may be used in contravention of Executive Order 13868.

AMENDMENT NO. 89 OFFERED BY MRS. MILLER OF WEST VIRGINIA

Page 450, beginning on line 6, strike '': *Provided further*,'' and all that follows through ''permanently rescinded'' on line 16.

AMENDMENT NO. 90 OFFERED BY MRS. MILLER OF WEST VIRGINIA

Page 590, strike line 22 through line 2 on page 591.

AMENDMENT NO. 95 OFFERED BY MR. PERRY OF PENNSYLVANIA

At the end of division C (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used by the Environmental Protection Agency to take any of the actions described as a ''backstop'' in the December 29, 2009, letter from EPA's Regional Administrator to the States in the Watershed and the District of Columbia in response to the development or implementation of a State's watershed implementation and referred to in enclosure B of such letter.

AMENDMENT NO. 96 OFFERED BY MR. PERRY OF PENNSYLVANIA

At the end of division C (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to give formal notification under, or prepare, propose, implement, administer, or enforce any rule or recommendation pursuant to, section 115 of the Clean Air Act (42 U.S.C. 7415).

AMENDMENT NO. 101 OFFERED BY MR. SMITH OF MISSOURI

At the end of division C (before the short title), insert the following:

SEC. _____. None of the funds made available by this Act may be used to regulate lead in ammunition or fishing tackle under the Toxic Substances Control Act (15 U.S.C. 2601 et seq.).

AMENDMENT NO. 112 OFFERED BY MR. GIANFORTE OF MONTANA

Page 611, line 5, after the dollar amount, insert ''(reduced by $25,000,000) (increased by $25,000,000)''.

AMENDMENT NO. 120 OFFERED BY MR. KING OF IOWA

Strike section 129.

AMENDMENT NO. 124 OFFERED BY MRS. MILLER OF WEST VIRGINIA

Strike section 513.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentlewoman from New York (Mrs. LOWEY) and the gentlewoman from Texas (Ms. GRANGER) each will control 15 minutes.

The Chair recognizes the gentlewoman from New York.

Mrs. LOWEY. Mr. Speaker, I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from South Carolina (Mr. WILSON).

Mr. WILSON of South Carolina. Mr. Speaker, I thank the gentlewoman from Texas (Ms. GRANGER), the ranking member, for yielding.

I rise today in support of my amendment to enhance conditions on our aid to the Lebanese Armed Forces, LAF.

Mr. Speaker, Lebanon has historically been an appreciated partner of the United States in the Middle East and a wonderful example of pluralism and democracy.

Having witnessed decades of occupation by the brutal Assad regime in Syria, father and son, Lebanon saw the withdrawal of Syrian troops in 2005 after the Lebanese people rose up in the March 15 Cedar Revolution to demand their sovereignty and freedom.

Unfortunately, however, the gains made by the Cedar Revolution have been lost in recent years. The Lebanese people continue to protest in the streets for their rights to a democratic, nonsectarian, noncorrupt government. However, disturbingly, the LAF have worked to put down the protests, arresting protesters and committing human rights violations.

The LAF has also done nothing as Hezbollah builds precision-guided missiles and cross-border tunnel infrastructure to attack Israel in defiance of U.S. resolutions; yet, U.S. taxpayers continue to fund the LAF with over $100 million each year.

This aid was surely warranted in previous years during previous Lebanese Governments, but with the new government, the situation has changed, and U.S. policies should change accordingly.

It is time to stand with the people of Lebanon and Syria and ensure that U.S. tax dollars are not going to a military hijacked by a terrorist organization and committing human rights violations.

Mr. Speaker, I urge my colleagues to support my amendment.

Mrs. LOWEY. Mr. Speaker, I yield myself such time as I may consume, and I claim time in opposition.

There are many things in this en bloc that I oppose, and I could speak to each issue, but I want to reserve my comments for the attack on climate change.

Most of us, even my friends across the aisle, agree that climate change is a real global threat. Our military also believes this.

I cannot emphasize enough that climate change is exacerbating the root causes of conflict. We will see an increasing demand on our humanitarian aid and other resources if we do not address it now.

Prohibiting U.S. contributions to the multilaterals that combat climate change is a shortsighted, harmful policy that does not prepare our country to face this threat.

We cannot afford to stand idly by while others address climate change. We already feel its effects. We should not be alienating multilateral partners. We need to join the fight.

Mr. Speaker, I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Arizona (Mr. GOSAR).

Mr. GOSAR. Mr. Speaker, I thank the gentlewoman from Texas (Ms. GRANGER) for yielding and for all her hard work on the committee.

Mr. Speaker, I rise in support of this en bloc package. I particularly want to highlight my two amendments, both of which protect integral Trump administration executive orders.

The first protects Executive Order 13807, which pertains to streamlining environmental review and permitting processes for infrastructure projects. This executive order was the basis for new NEPA regulations that the Trump administration announced just last week.

Mr. Speaker, we need to get back to building things in this country. It seems every week is like groundhog week, it is infrastructure week, but if we are serious about addressing the problems with our aging infrastructure, we must get serious about modernizing outdated processes that unnecessarily slow down infrastructure projects.

Whether it is offshore wind, building electrical transition lines, or building solar energy projects on public lands, outdated regulations cause countless delays and cancellations of these important projects, costing jobs and economic opportunity for our constituents.

My second amendment protects Executive Order 13817, which directs the Federal Government to develop a strategy to ensure a secure and reliable supply of critical minerals.

The facts are, Mr. Speaker, that we are completely reliant on China for 20 critical minerals that go into producing everything from parts for fighter jets to cellphones.

Cobalt is a great example of the dangers of becoming reliant on China to meet these mineral needs. Sixty percent of the cobalt supply is mined in the Congo, where abhorrent child labor practices are well documented, and China now controls at least half of all cobalt production in that country.

Fortunately, the proposed Twin Metals mine would serve as a rare source of domestic cobalt, but, of course, my colleagues aim to shut that project down as well by including language in this bill aimed at preventing this project.

Mr. Speaker, I ask my colleagues to wake up and face the facts. We must harvest our own domestic resources and ingenuity before it is too late. Our long-term economic, energy, and national security depend upon it, even the climate change the gentlewoman from New York (Mrs. LOWEY) talked about.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. PANETTA).

Mr. PANETTA. Mr. Speaker, I thank Chairwoman LOWEY for yielding.

I rise today to offer an amendment to prohibit funds from being used to open up new Federal lands to oil and gas drilling in my and my neighboring district on the central coast of California. Based on recent orders, this administration would use those Federal lands to extract natural resources rather than explore their natural wonders.

In my district, our economy and well-being are intrinsically tied to our environment. That is why we have taken critical steps to invest in clean infrastructure rather than new leases for fossil fuels. That is because we feel strongly that our public lands are not disposable and should not be disrupted.

That is why I offered this amendment, and that is why I will continue to fight to safeguard our Federal public lands.

□ 1615

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from South Carolina (Mr. DUNCAN).

(Mr. DUNCAN asked and was given permission to revise and extend his remarks.)

Mr. DUNCAN. Mr. Speaker, I rise in support of my amendment which strikes harmful language in the underlying bill that would prevent any funding to be used by the U.S. Fish and Wildlife Service to process permits for lawfully sport-hunted trophies from the countries of Tanzania, Zimbabwe, or Zambia.

Sportsmen groups and conservation groups, both here at home in America and internationally, all agree that well-regulated hunting in the countries affected by the shortsighted language found in section 436 of the underlying bill, is just reckless pandering to special-interest animal rights groups.

The irony is this language will have an adverse effect and hurt populations of the remaining wild lions and elephants which these emotionally driven, science deniers claim to be advocating for.

But what about those who live and work in the countries affected by this legislation? How do they feel about this Congress mindlessly targeting their livelihoods?

Well, it may come as a great shock to those on the other side of the aisle, but just this week a letter was sent to the Speaker of the House by local representatives of millions of rural Africans who object to this attack on their basic human right to sustainably use their natural resources on which their communities' livelihoods depend.

They understand, better than the folks here in this body, that sustainable hunting practices which they utilize lead not only to benefits for their wildlife populations and their ecosystems, but to the betterment of their fellow man and their communities.

In many cases, the population of these species exceed the carrying capacity of their habitats. If left unmanaged, they threaten the viable habitats as well as the safety of humans in these rural areas.

Experts, including scientific and management authorities in those countries, the parties to the Convention on International Trade in Endangered Species of Wild Fauna and Flora, the International Union for Conservation of Nature, and the U.S. Fish and Wildlife Service, credit sustainable hunting programs as a cornerstone of the successful conservation and wildlife management strategies that are responsible for these wildlife populations. Any law that discourages, rather than facilitates, these hunting programs will have an adverse impact on sound ecosystem conservation.

The language, which this amendment will strike, is not backed by science. To the contrary, the best conservation science clearly shows that populations of lions and elephants in the affected countries are some of the highest found anywhere on the entire continent.

Mr. Speaker, it is for these reasons I urge adoption of this amendment.

Mrs. LOWEY. Madam Speaker, I yield 2 minutes to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ), the chairwoman of the Subcommittee on Military Construction, Veterans Affairs, and Related Agencies.

Ms. WASSERMAN SCHULTZ. Madam Speaker, I would like to take a moment to address Congresswoman MILLER and Congressman KING's amendments in the en bloc. Their amendments would strike provisions of the bill that block the administration from diverting funds from critical military construction projects to the border wall.

The bill also prohibits the administration from backfilling projects in fiscal years 2016 to 2020 that were previously canceled for construction of the border wall, and the amendments strike that provision as well.

Stealing military construction funds from the intended purpose has a direct impact on military readiness, compromises our national security, and the safety and welfare of servicemembers and their families.

Thirty percent of the Department of Defense infrastructure, according to the Department of Defense, is in poor or failing condition. The military construction funds provided and approved by Congress were intended for specific projects as requested by the services.

To support these two amendments is to declare that catering to xenophobia is more important than making sure we have the best fighting force in the world.

The amendments in question seek to grant the President the power of a monarch and allow him to steal funding from our troops and bypass Congress at will.

I thought Mexico was supposed to pay for the border wall. Instead, these amendments ask our heroes in uniform to pay for it. We have to take a stand against that, and we do that in this bill.

We stand up for our troops. These amendments steal from our troops. I ask my colleagues to vote against the en bloc amendment.

Ms. GRANGER. Madam Speaker, I yield 1½ minutes to the gentlewoman from West Virginia (Mrs. MILLER).

Mrs. MILLER. Madam Speaker, I rise today to speak in favor of three amendments I have submitted in the Republican en bloc.

An amendment to stop my colleagues across the aisle from cutting funding for our border wall. We still have a crisis on our southern border, and we need to stop illegal drugs from entering our country.

An amendment to support innovation in the gas industry. American energy is clean, affordable, and efficient. We must capitalize on our American energy dominance to rebuild our economy, expand trade, and create stable jobs.

And an amendment to make sure our police remain funded. We cannot let our liberal colleagues defund the police. This overcorrection will lead our country to a dark place. Our police officers protect our communities and keep us safe. I am proud to support our police.

Mrs. LOWEY. Madam Speaker, I yield 30 seconds to the gentlewoman from Michigan (Ms. TLAIB). Welcome to her children, too.

Ms. TLAIB. Madam Speaker, I rise today in support of my amendment, which increases funds for lead drinking water pipe replacement by $500 million, to a total of $1 billion.

This amendment is an investment to remove the 6 to 10 million lead service lines that contaminate our tap water across our Nation, and the over 600,000 lines alone in Michigan.

Contaminated water is a fact of life for Michigan's 13th Congressional District. Too many of our families and communities are suffering, and it is time we step up our investments to guarantee environmental justice for all.

I thank Chairwoman MCCOLLUM for working with me on this amendment to secure historic funding to replace lead pipes. And I also thank my colleagues, Representatives KILDEE and SLOTKIN for their partnership on this.

Ms. GRANGER. Madam Speaker, I yield 2 minutes to the gentleman from North Dakota (Mr. ARMSTRONG).

Mr. ARMSTRONG. Madam Speaker, I rise today in support of Representative DUNCAN's amendment to strike from the bill section 436, which prohibits the issuance of an import permit for a sport-hunted trophy of an elephant or lion taken in Tanzania, Zimbabwe, or Zambia.

Simply put, this import prohibition would harm the economic development of African countries and put the wildlife and habitat in those countries at risk.

This is exactly what the Zambian Foreign Minister told me when I met with him:

Regulated, sustainable hunting can be used for economic development just like any other natural resource. And in the vast majority of instances, hunting revenue and game fees are the greatest and most accessible asset for rural people.

By creating a market for regulated hunting of these animals, African countries promote conservation and undermine incentives for illegal poaching.

A U.S. import ban undermines those markets in African countries, which perpetuates unsustainable poaching, underground markets, poverty, and economic underdevelopment.

The individuals who seek to prevent African countries from responsibly using their natural resources are the same who strive to end the production of agriculture in States like North Dakota.

They impart a flawed moral view on others without understanding the economic and cultural ramifications that harm the communities that produce these resources. It is paternalistic and, quite frankly, it is condescending and, in fact, counterproductive to a robust conservation of the magnificent animals and the habitat in which those animals live.

Hunters and sportsmen are truly the world's best conservationists, and the resources we deploy go toward antipoaching programs; defend against destruction of vital habitat; and incentivize local communities to come together to protect their wildlife.

I urge the adoption of the Duncan amendment, which will promote sustainable hunting markets with African countries.

Mrs. LOWEY. Madam Speaker, I reserve the balance of my time.

Ms. GRANGER. Madam Speaker, I yield 1 minute to the gentleman from Pennsylvania (Mr. PERRY).

Mr. PERRY. Madam Speaker, I thank the ranking member, Ms. GRANGER from Texas.

I have three amendments included in this en bloc amendment.

The first one prohibits any funds in the State and Foreign Ops Division from being provided to the United Nations Relief and Works Agency, UNRWA.

In 2018, President Trump made the correct decision to defund UNRWA. Unfortunately, this bill seeks to reverse course and provide funding to this organization.

I remind everybody, this organization, rather than pursuing its mission, chooses to foster and promote and anti-Semitism and violence against Israelis. In spite of repeated demands by the U.S., UNRWA continues this kind of abhorrent behavior.

The second amendment prohibits the EPA from using funds in this bill to take retaliatory actions against States that fall short of the EPA-mandated Chesapeake Bay TMDL.

In 2010, the EPA seized the States' authority to determine their own method of compliance and threatened to take over the water quality plans if the States failed to comply.

These coercive measures have been tried and have failed. Water quality has not improved since the federalization of the Bay clean-up efforts. Preventing EPA from taking retaliatory action is imperative to the success of these efforts.

The final one prohibits the EPA from using funds pursuant to Section 115 of the Clean Air Act.

Section 115 of the Clean Air Act allows the EPA to mandate State emissions levels to whatever level the agency deems appropriate: if they find emissions endanger a foreign nation; and the endangered nation has a reciprocal agreement to prevent or control these emissions in their own nation.

I urge adoption of these amendments.

Mrs. LOWEY. Madam Speaker, I reserve the balance of my time.

Ms. GRANGER. Madam Speaker, I yield 2 minutes to the gentleman from Missouri (Mr. SMITH).

Mr. SMITH of Missouri. Madam Speaker, on the last day of the Obama-Biden administration, Fish and Wildlife issued a ''Director's Order'' setting in place an almost total ban on lead ammunition and tackle on Federal lands.

While Fish and Wildlife claimed that the rule was based on science, we know clearly it was not. The decision by the Obama-Biden administration was made solely to limit access to public land of sportsmen and fishermen.

As soon as I was made aware of this midnight rule, I worked with the incoming Trump administration to get it overturned. Fortunately, President

Trump acted quickly to undo this disastrous order. And since then he has only taken steps to increase access to public lands for sportsmen and fishermen alike.

Since President Trump's actions, Congress has taken additional steps to prevent the regulation of ammunition and tackle for sportsmen. Unfortunately, Democrats have decided to abandon the precedent.

My amendment simply reinstates a policy that Congress has carried in a bipartisan fashion for the past several years and continues support for the rights of sportsmen to access public land for recreational purposes.

I urge my colleagues to adopt the amendment.

Mrs. LOWEY. Madam Speaker, I reserve the balance of my time.

Ms. GRANGER. Madam Speaker, I yield 1 minute to the gentleman from Iowa (Mr. KING).

Mr. KING of Iowa. Madam Speaker, I rise in support of my amendment.

What it does is, it sees that in the underlying legislation there is language that strikes the President's ability to use the resources within the Department of Defense budget to build a wall or a road along the southern border. It would be a mistake to take that language out and—to have that language in there. We need to take the language out and let the President have the discretion to make these decisions. He has a mandate from the American people.

The southern border is such a risk that 80 to 90 percent of the illegal drugs coming through into the United States come from or through Mexico; 70,000 drug overdose deaths; the violence that comes from it; tens of millions of illegal aliens in America, and we have seen unemployment numbers in this country as high as 40 million throughout this COVID epidemic.

So to tie the President's hands and to take away the resources he has in front of him now, because it essentially says, no funds heretofore appropriated may be used either for a wall or a road.

I would say also that I came to this floor and from this very podium in 2006 with a model that demonstrated how easy it was to build a wall on the southern border. It is cost effective, and it preserves our security. This amendment gives the President back the authority to continue the construction of the wall.

Madam Speaker, I urge its adoption.

□ 1630

Ms. GRANGER. Madam Speaker, I urge a ''yes'' vote, and I yield back the balance of my time.

Mrs. LOWEY. Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Ms. OCASIO-CORTEZ). Pursuant to House Resolution 1060, the previous question is ordered on the amendments en bloc offered by the gentlewoman from New York (Mrs. LOWEY).

The question is on the amendments en bloc.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mrs. LOWEY. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

AMENDMENT NO. 1 OFFERED BY MR. ALLEN

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the question on the adoption of amendment No. 1, printed in House Report No. 116–459, on which further proceedings were postponed and on which the yeas and nays were ordered.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

The SPEAKER pro tempore. The question is on the amendment offered by the gentleman from Georgia (Mr. ALLEN).

The vote was taken by electronic device, and there were—yeas 88, nays 329, not voting 13, as follows:

[Roll No. 159]

YEAS—88

Allen
Amash
Amodei
Arrington
Babin
Baird
Banks
Biggs
Bishop (NC)
Brooks (AL)
Buchanan
Buck
Bucshon
Carter (GA)
Chabot
Cloud
Collins (GA)
Comer
Conaway
Crawford
Crenshaw
Curtis
Davidson (OH)
DesJarlais
Duncan
Estes
Ferguson
Foxx (NC)
Fulcher
Gaetz
Garcia (CA)
Gianforte
Gohmert
Gooden
Gosar
Graves (LA)
Graves (MO)
Griffith
Guthrie
Harris
Hern, Kevin
Hice (GA)
Higgins (LA)
Hill (AR)
Hudson
Huizenga
Johnson (LA)
Jordan
Joyce (PA)
Kelly (MS)
Kelly (PA)
King (IA)
LaHood
Lamborn
Latta
Long
Massie
McClintock
McHenry
Meuser
Mooney (WV)
Murphy (NC)
Norman
Nunes
Olson
Palmer
Perry
Rice (SC)
Roe, David P.
Rouzer
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Smith (MO)
Smith (NE)
Smucker
Steube
Stewart
Stivers
Taylor
Tiffany
Walberg
Walker
Wenstrup
Westerman
Williams
Woodall

NAYS—329

Adams
Aderholt
Aguilar
Allred
Armstrong
Axne
Bacon
Balderson
Barr
Barragán
Bass
Beatty
Bera
Bergman
Beyer
Bilirakis
Bishop (GA)
Bishop (UT)
Blumenauer
Blunt Rochester
Bonamici
Bost
Boyle, Brendan F.
Brady
Brindisi
Brooks (IN)
Brown (MD)
Brownley (CA)
Budd
Burchett
Burgess
Bustos
Butterfield
Calvert
Carbajal
Cárdenas
Carson (IN)
Carter (TX)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Cheney
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Cline
Clyburn
Cohen
Cole
Connolly
Cook
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Davis, Rodney
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Doyle, Michael F.
Emmer
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fitzpatrick
Fleischmann
Fletcher
Flores
Fortenberry
Foster
Frankel
Fudge
Gabbard
Gallagher
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (OH)
Gonzalez (TX)
Gottheimer
Granger
Graves (GA)
Green (TN)
Green, Al (TX)
Grijalva
Grothman
Guest
Haaland
Hagedorn
Harder (CA)
Hartzler
Hastings
Hayes
Heck
Herrera Beutler
Higgins (NY)
Himes
Holding
Hollingsworth
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Hurd (TX)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (SD)
Johnson (TX)
Joyce (OH)
Kaptur
Katko
Keating
Keller
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
King (NY)
Kinzinger
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Kustoff (TN)
LaMalfa
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Lesko
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lucas
Luetkemeyer
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Marchant
Marshall
Mast
Matsui
McAdams
McBath
McCarthy
McCaul
McCollum
McEachin
McGovern
McKinley
McNerney
Meeks
Meng
Mfume
Miller
Mitchell
Moolenaar
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Newhouse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Palazzo
Pallone
Panetta
Pappas
Pascrell
Payne
Pence
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Posey
Pressley
Price (NC)
Quigley
Raskin
Reed
Reschenthaler
Rice (NY)
Richmond
Rodgers (WA)
Rogers (AL)
Rogers (KY)
Rose (NY)
Rose, John W.
Rouda
Roy
Roybal-Allard
Ruiz
Ruppersberger
Rush
Rutherford
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Shimkus
Simpson
Sires
Slotkin
Smith (NJ)
Smith (WA)
Soto
Spanberger
Spano
Speier
Stanton
Stauber
Stefanik
Steil
Stevens
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tipton
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Turner
Underwood
Upton
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walden
Walorski
Waltz
Wasserman Schultz
Waters
Watkins
Watson Coleman
Webster (FL)
Welch
Wexton
Wild
Wilson (FL)
Wilson (SC)
Wittman
Womack
Wright
Yarmuth
Young
Zeldin

NOT VOTING—13

Abraham
Byrne
Dunn
Gibbs
Loudermilk
Mullin
Riggleman
Roby
Rooney (FL)
Suozzi
Timmons
Weber (TX)
Yoho

□ 1721

Messrs. BRINDISI, PALLONE, LARSEN of Washington, Ms. CASTOR of

Florida, Mr. COX of California, Mrs. RODGERS of Washington, Messrs. GREEN of Texas, McCARTHY, BURGESS, Mrs. LESKO, Messrs. HOYER, MEEKS, CLINE, MITCHELL, and ROY changed their vote from ''yea'' to ''nay.''

Messrs. MASSIE, BAIRD, FERGUSON, CARTER of Georgia, MURPHY of North Carolina, AUSTIN SCOTT of Georgia, and BANKS changed their vote from ''nay'' to ''yea.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Clay (Grijalva)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Frankel (Clark (MA))
Garamendi (Boyle, Brendan F.)
Gomez (Gallego)
Hastings (Wasserman Schultz)
Horsford (Kildee)
Jayapal (Raskin)
Johnson (TX) (Jeffries)
Khanna (Sherman)
Kirkpatrick (Gallego)
Kuster (NH) (Brownley (CA))
Lawson (FL) (Evans)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Boyle, Brendan F.)
Lowenthal (Beyer)
Moore (Beyer)
Napolitano (Correa)
Pascrell (Sires)
Payne (Wasserman Schultz)
Pingree (Cicilline)
Porter (Wexton)
Price (NC) (Butterfield)
Rush (Underwood)
Serrano (Jeffries)
Sewell (AL) (DelBene)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

AMENDMENTS EN BLOC NO. 2 OFFERED BY MRS. LOWEY OF NEW YORK

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the question on the adoption of amendments en bloc No. 2, printed in House Report No. 116–459, on which further proceedings were postponed and on which the yeas and nays were ordered.

The Clerk will redesignate the amendments en bloc.

The Clerk redesignated the amendments en bloc.

The SPEAKER pro tempore. The question is on the amendments en bloc offered by the gentlewoman from New York (Mrs. LOWEY).

The vote was taken by electronic device, and there were—yeas 223, nays 194, not voting 13, as follows:

[Roll No. 160]

YEAS—223

Adams
Aguilar
Allred
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Fitzpatrick
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Katko
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Trahan
Trone
Underwood
Upton
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—194

Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brindisi
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Burgess
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Finkenauer
Fleischmann
Fletcher
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Garcia (CA)
Gianforte
Gohmert
Golden
Gonzalez (OH)
Gooden
Gosar
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Holding
Hollingsworth
Horn, Kendra S.
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamb
Lamborn
Latta
Lesko
Long
Lucas
Luetkemeyer
Marchant
Marshall
Massie
Mast
McAdams
McCarthy
McCaul
McClintock
McHenry
McKinley
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Peterson
Posey
Reed
Reschenthaler
Rice (SC)
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Tiffany
Tipton
Torres Small (NM)
Turner
Van Drew
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Wright
Young
Zeldin

NOT VOTING—13

Abraham
Byrne
Dunn
Gibbs
Keating
Loudermilk
Mullin
Riggleman
Roby
Rooney (FL)
Suozzi
Timmons
Yoho

□ 1803

Ms. WATERS changed her vote from ''nay'' to ''yea.''

So the en bloc amendments were agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. SUOZZI. Madam Speaker, I was in district with the Secretary of VA. Had I been present, I would have voted ''nay'' on rollcall No. 159 and ''yea'' on rollcall No. 160.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Clay (Grijalva)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Frankel (Clark (MA))
Garamendi (Boyle, Brendan F.)
Gomez (Gallego)
Hastings (Wasserman Schultz)
Horsford (Kildee)
Jayapal (Raskin)
Johnson (TX) (Jeffries)
Khanna (Sherman)
Kirkpatrick (Gallego)
Kuster (NH) (Brownley (CA))
Lawson (FL) (Evans)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Boyle, Brendan F.)
Lowenthal (Beyer)
Moore (Beyer)
Napolitano (Correa)
Pascrell (Sires)
Payne (Wasserman Schultz)
Pingree (Cicilline)
Porter (Wexton)
Price (NC) (Butterfield)
Rush (Underwood)
Serrano (Jeffries)
Sewell (AL) (DelBene)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

AMENDMENTS EN BLOC NO. 3 OFFERED BY MRS. LOWEY OF NEW YORK

The SPEAKER pro tempore (Ms. JACKSON LEE). Pursuant to clause 8 of rule XX, the unfinished business is the vote on the adoption of amendments en bloc No. 3, printed in House Report No. 116–459, offered by the gentlewoman from New York (Mrs. LOWEY) on which the yeas and nays were ordered.

The Clerk will redesignate the amendments en bloc.

The Clerk redesignated the amendments en bloc.

The SPEAKER pro tempore. The question is on the amendments en bloc.

The vote was taken by electronic device, and there were—yeas 187, nays 230, not voting 13, as follows:

[Roll No. 161]

YEAS—187

Aderholt
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Burgess
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Garcia (CA)
Gianforte
Gohmert
Gonzalez (OH)
Gooden
Gosar
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Holding
Hollingsworth
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
Kind
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Peterson
Posey
Reed
Reschenthaler
Rice (SC)
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Tiffany
Tipton
Turner
Upton
Van Drew
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Wright
Young
Zeldin

NAYS—230

Adams
Aguilar
Allred
Amash
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fitzpatrick
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Heck
Higgins (NY)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NOT VOTING—13

Abraham
Byrne
Dunn
Gibbs
Loudermilk
Marchant
Mullin
Riggleman
Roby
Rooney (FL)
Smith (NJ)
Timmons
Yoho

□ 1838

Messrs. CRIST, THOMPSON of California, RYAN, LYNCH, McNERNEY, GARCIA of Illinois, SEAN PATRICK MALONEY of New York, HUFFMAN, and DAVID SCOTT of Georgia changed their vote from ''yea'' to ''nay.''

Messrs. POSEY, HIGGINS of Louisiana, ROY, and NORMAN changed their vote from ''nay'' to ''yea.''

So the en bloc amendments were rejected.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mrs. ROBY. Madam Speaker, I was unable to vote on Thursday, July 23, due to a family medical emergency. Had I been present, I would have voted as follows: ''nay'' on rollcall No. 157, ''nay'' on rollcall No. 158, ''nay'' on rollcall No. 159, ''nay'' on rollcall No. 160, and ''yea'' on rollcall No. 161.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Clay (Grijalva)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Frankel (Clark (MA))
Garamendi (Boyle, Brendan F.)
Gomez (Gallego)
Hastings (Wasserman Schultz)
Horsford (Kildee)
Jayapal (Raskin)
Johnson (TX) (Jeffries)
Khanna (Sherman)
Kirkpatrick (Gallego)
Kuster (NH) (Brownley (CA))
Lawson (FL) (Evans)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Boyle, Brendan F.)
Lowenthal (Beyer)
Moore (Beyer)
Napolitano (Correa)
Pascrell (Sires)
Payne (Wasserman Schultz)
Pingree (Cicilline)
Porter (Wexton)
Price (NC) (Butterfield)
Rush (Underwood)
Serrano (Jeffries)
Sewell (AL) (DelBene)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

AMENDMENT NO. 62 OFFERED BY MR. ALLEN

The SPEAKER pro tempore. It is now in order to consider amendment No. 62 printed in House Report 116–459.

Mr. ALLEN. Madam Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of division C (before the short title), insert the following:

SEC. _____. Each amount made available by this Act (other than an amount required to be made available by a provision of law) is hereby reduced by 5 percent.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentleman from Georgia (Mr. ALLEN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Georgia.

Mr. ALLEN. Madam Speaker, this bill that we are debating here is a partisan travesty and spends entirely more than this government can afford. That is why I rise again today to offer an amendment to cut spending to the Interior and Environment portion of the bill.

In addition to its overspending, this bill attempts to delegitimize President Trump's replacement for the Obama administration's overreaching WOTUS rule. The farmers and landowners in my district will tell you how devastating that would be.

It continues down the path that the far left have been touting this entire Congress, implementing socialist Green New Deal policies disguised as emergency funding, but this couldn't be further from the truth. This bill not only spends more of Americans' taxpayer dollars, but forces others to spend more, forcing onerous regulations on American business owners that would ultimately lead to higher costs for our American families.

Continuing to adhere to the Obama administration's outdated and repressive regulations would be detrimental not only to the energy sector workers, but to millions of American families whose budgets depend on affordable and reliable fuel and natural gas, and would jeopardize America's energy independence.

Today's minibus totals $219.6 billion in discretionary spending, plus another $37.5 billion in emergency spending, busting the budget agreement and increasing funds in the form of BCA cap-exempt funding, with almost a third of the funding of this division not subject to the BCA caps.

And let me remind you that under the Democratic majority, we can't

even stick to the budget that was agreed to. The Interior and Environment division would provide funding at a whopping 41.4 percent above the fiscal year 2020 enacted level and 59 percent over the President's request.

While the President's budget proposed to reduce or eliminate programs in the EPA that are better left to States, communities, and private individuals, the House's proposal for Interior and Environment maintains or increases spending on EPA programs.

I am a former business owner, and just like any good business owner or family knows, you must operate within a budget and make tough choices to live within your means. As Members of the people's House, we must hold ourselves to the same standard that American workers and families do. My simple amendment is a good place to start.

□ 1845

My amendment would reduce interior and environmental spending by 5 percent for fiscal year 2021. I am going to do some quick math for you. My amendment would cut about $2.7 billion.

Even with my 5 percent cut, this division would still dramatically increase spending for fiscal year 2021 compared to fiscal year 2020. To be honest, I wish we could cut more, but this is a place that I believe we can start.

Even with my amendment, we still will be spending a lot of taxpayer dollars, so I believe my Democratic colleagues could easily support this.

Our national debt crisis can no longer be ignored, and my colleagues must take a serious look at Washington spending in order to start taking back control.

Madam Speaker, earlier today I mentioned my 13 beautiful grandchildren, and I am excited that we have another one on the way. I believe it is all of our duties to do everything possible to avoid placing a $26 trillion, and growing, national debt burden on the backs of the next generation.

My amendment is just a small, first step toward bringing fiscal responsibility back to Washington.

I urge all of my colleagues in this body to support my amendment today.

Madam Speaker, I reserve the balance of my time.

Ms. MCCOLLUM. Madam Speaker, I claim the time in opposition to the amendment.

The SPEAKER pro tempore. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Madam Speaker, this amendment indiscriminately cuts programs in this bill, not giving one bit of thought to the merit of the program within the bill that it would cut.

For instance, it would cut—well, it would cut the Indian Health Service, and that would mean fewer patients seen, especially during the COVID pandemic, which we know has affected the Native American population in a very dramatic, painful, and hurtful way.

It would mean fewer safety inspectors, ensuring that accidents and oil spills do not occur, which means endangering the lives of oil rig workers and our environment.

It would worsen our Nation's drinking water and sanitation infrastructure deferred maintenance problem, which means more children would be exposed to lead in their drinking water.

More generally, investments in our environmental infrastructure and our public lands would be halted, and the associated jobs would be lost, jobs Americans desperately need.

More importantly, this amendment, as I said, would contribute to lives being lost in Indian Country. And I do not say that lightly, Madam Speaker. Tribes are being particularly hard-hit by the coronavirus, and this amendment would only compound the problem.

And let me tell you a little more about what critical programs would be cut in Indian Country. It would mean cuts to basic healthcare and diabetes programs. It would mean cuts to child and maternal health. As we know, our Native brothers and sisters—my Native sisters in particular, suffer high infant mortality rates. It would mean cuts to mental health service at a time when this population in our country, the indigenous people, who were here first, would be suffering even more than they are today with the mental health crisis, as they cannot go to their customs and traditions when mourning the loss of lives because of not being able to gather.

It has been a nonpartisan goal of the Committee on Appropriations—a nonpartisan goal of this entire body—to work to improve the health status of our Native American brothers and sisters. This amendment guts those efforts. It will set Indiana Country back. I dare say, it could set Indian Country back by decades, because we have so much more work to do to address the health disparity.

This amendment would not encourage agencies to do more with less. It would simply force agencies, and especially those serving our Native American Nations, to do less for their Tribal members, less healthcare.

So I urge Members to strongly oppose this amendment, and I reserve the balance of my time.

Mr. ALLEN. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, let me try to understand what we are saying here. We have a $25 trillion or $26 trillion and growing debt in this country. I mean, is there no concern for future generations?

And when you look at the explosion of this debt—I mean, when I saw the appropriations package, I could not believe it. I mean, we can't even live within a budget? I mean, what kind of message are we sending to our children and grandchildren here?

We can't leave them with an insurmountable debt simply because we as a body refuse to take some commonsense steps to take back control of this spending. We can't even cut 5 percent?

I am deeply concerned about the future of this country, and I urge a ''yes'' vote on my amendment today.

Madam Speaker, I yield back the balance of my time.

Ms. MCCOLLUM. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, once again, this is an across-the-board indiscriminate cut. We all might agree that there are programs and activities that take place in these bills that we could see a cut with. But this is an across-the-board 5 percent cut, which will deeply, deeply affect the gains that we have been struggling to make in a nonpartisan way in Indian Country, and I simply cannot be silent while that happens.

We have to do what we can do to make sure that the treaty and obligations that this United States Government entered into with the First Nations, who were here first, are honored, and part of that is healthcare.

Madam Speaker, I ask others to join me to oppose this amendment, which if passed, will harm the American people and do, in my opinion, irreparable damage to the healthcare and education of our Native American brothers and sisters.

I oppose this amendment. I encourage my colleagues to join me.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the previous question is ordered on the amendment offered by the gentleman from Georgia (Mr. ALLEN).

The question is on the amendment.

The question was taken; and the Speaker pro tempore announced that the noes appear to have it.

Mr. ALLEN. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

The Chair understands that amendment No. 66 will not be offered.

AMENDMENT NO. 67 OFFERED BY MR. TONKO

The SPEAKER pro tempore. It is now in order to consider amendment No. 67 printed in House Report 116–459.

Mr. TONKO. Madam Speaker, as the designee of Ms. BLUNT ROCHESTER, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of division C of the bill (before the short title) insert the following:

SEC. ____. None of the funds made available by this Act may be used to finalize, implement, or enforce the proposed rule titled ''Review of the National Ambient Air Quality Standards for Particulate Matter'' published in the Federal Register by the Environmental Protection Agency on April 30, 2020 (85 Fed. Reg. 24094 et seq.).

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentleman from New York (Mr. TONKO) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

Mr. TONKO. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today as the designee of my very good friend, Congresswoman BLUNT ROCHESTER, to offer and support this amendment.

Every person deserves to breathe clean air. As we battle a global public health pandemic, that truth could not be more important.

Time and time again, the administration has chosen to ignore the latest public health science, allowing our air to remain polluted and our communities to be less safe.

The EPA's most recent failure to propose air quality standards that will protect human health is unacceptable, and it will put tens of thousands of lives at risk.

Fine particulate matter, commonly known as soot, is a dangerous pollutant. In particular, it puts low wealth and communities of color at greatest risk. These are the communities that are already experiencing staggering death rates from COVID–19, made worse by decades of exposure to toxic pollution.

The EPA has chosen to retain its existing inadequate standard, despite ample peer-reviewed studies clearly showing that a stronger standard is, indeed, justified.

Even the EPA's own more limited assessment of the health impacts calculated that strengthening the standard would prevent thousands of premature deaths.

This amendment is simple. It would prohibit the EPA from finalizing its insufficiently protective review of the National Ambient Air Quality Standards for particulate matter.

The American people need an Environmental Protection Agency that will listen to doctors and scientists and take the steps necessary to protect the health and well-being of all Americans, regardless of their race, income, or ZIP Code.

We are in the midst of a global health pandemic. Protecting our health could not be more important than at this very moment.

I, indeed, urge my colleagues to support this amendment and give the EPA the opportunity to finalize a stronger standard that will actually protect human health and the environment.

Madam Speaker, I reserve the balance of my time.

Mr. SHIMKUS. Madam Speaker, I claim the time in opposition.

The SPEAKER pro tempore. The gentleman from Illinois is recognized for 5 minutes.

Mr. SHIMKUS. Madam Speaker, I yield 2 minutes to the gentleman from Ohio (Mr. JOYCE), my colleague and friend.

Mr. JOYCE of Ohio. Madam Speaker, I rise in opposition to the amendment. This amendment interferes with an already rigorous scientific and public review process before the process has even been completed.

The public comment period closed less than a month ago, and the EPA is in the process of considering more than 66,000 public comments received and making corresponding changes to the proposal.

The EPA's proposal to maintain the standards set by President Obama comes after careful consideration of the most current available scientific evidence and risk and exposure information and with consultation and confirmation by the agency's independent science advisors.

By maintaining the current national particulate matter standard, the EPA continues to protect our environment and the health of the American citizens without placing additional burdens on communities.

There already too many States and counties currently struggling to meet the current standards, which are already among the strictest safeguards in the world. For these areas of our Nation, the solution is to help them meet the bar, not raise the bar.

The EPA remains publicly committed to helping these areas succeed, and to Chair MCCOLLUM's credit, this bill gives the EPA the resources necessary to keep doing so.

We are on the right track. The U.S. has made incredible strides in reducing particulate matter concentrations across the Nation. As a result of the Clean Air Act, programs and efforts by State, local, and Tribal Governments, as well as technological improvements, average fine particulate matter concentrations in the U.S. fell by 39 percent between 2000 and 2018, while average coarse particulate matter concentrations fell by 31 percent during the same period.

Madam Speaker, the process that Congress created and continues to fund in this bill is working. Now it is our job to get out of the way.

Vote ''no'' on the amendment, and let the EPA do its job.

Mr. TONKO. Madam Speaker, I reserve the balance of my time.

Mr. SHIMKUS. Madam Speaker, who has the right to close?

The SPEAKER pro tempore. The gentleman from New York has the right to close.

Mr. SHIMKUS. Madam Speaker, I rise in opposition to this amendment.

Madam Speaker, this amendment would prohibit the use of any funds to finalize or implement or enforce the EPA's recent proposal to maintain the current Particulate Matter National Air Ambient Quality Standard.

In April of this year, the EPA proposed retaining the existing particulate matter standard. The standard is 12 micrograms per cubic meter of air. It was last reviewed and substantially tightened in 2013 during the previous administration.

The current EPA undertook the required 5-year review of the PM standard. In a resounding 5-to-1 decision, the EPA's Clean Air Scientific Advisory Committee voted to retain the standard.

The CASAC determined that there were substantial uncertainties with studies alleging to demonstrate health effects below the current standard.

Following the requirements of the regulatory process, the EPA conducted a science-based review and analysis of the relevant data, and it proposed retaining the current PM standards.

So if I have this right, the EPA conducted a scientific review and analysis, it followed the requisite Administrative Procedures Act process, and it made a regulatory proposal which it still will take public comment on, review the feedback, and eventually make a final determination.

So where is the misstep here that requires this kind of amendment? Did the agency falter by listening to science? Did the agency falter by following the rulemaking process?

What this amendment does is replace EPA's science-based analysis and proposal with a politically motivated Congressional edict.

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PM2.5 emissions have dropped 37 percent over the last two decades. Combined pollutant emissions have declined 74 percent since 1970. The U.S. has some of the lowest PM2.5 emissions in the world, including five times below the global average and seven times below Chinese levels, thanks to our rigorous Clean Air Act process.

Our air is cleaner, and under this administration, our economy has simultaneously been stronger. Facts, science, and process, that is what we should be dictating our environmental regulatory process.

Indeed, we should support a rigorous standard-setting process for the Clean Air Act. Getting this right is vital. Setting standards unnecessarily low is dangerous.

The economic, social, and physical collapse of communities that follow when factories pull out or power plants close due to new standards profoundly harms families, especially the most vulnerable. Getting it right is exactly what is happening right now with the administration's proposals for particulate matter standards.

The problem with my committee colleague's amendment is that it stops this important process in its tracks. It will deprive the public of the benefit of a sound science process to protect public health for all populations. Stopping the scientific process does not protect public health.

Support for this amendment undermines the Clean Air Act. I urge a ''no'' vote on this amendment.

Madam Speaker, I will close with this. For my colleagues who promote science, when you politically vote for science standards without the scientific process, you kind of destroy the

whole EPA process. With that, I ask for a ''no'' vote on this amendment.

Madam Speaker, I yield back the balance of my time.

Mr. TONKO. Madam Speaker, I will repeat. Every individual deserves the right to breathe clean air. Certainly, this pandemic has proven that certain areas, certain neighborhoods, certain populations, have been at risk. It has been proven by the impact that COVID–19 has borne on so many individuals and communities.

I would like to thank Representatives BLUNT ROCHESTER, MCEACHIN, and RUSH for authorizing this important amendment and for their tireless work to achieve environmental justice in carrying out our Nation's environmental laws.

Madam Speaker, I thank Chair MCCOLLUM of the Interior, Environment, and Related Agencies Subcommittee for her work on this great bill to protect public health and the environment.

EPA has a requirement to put forward standards that are based on sound science and protective at the same time of human health. The PM proposal has failed to do so.

Madam Speaker, I urge my colleagues to support this amendment to ensure environmental protection extends to each and every American.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the previous question is ordered on the amendment offered by the gentleman from New York (Mr. TONKO).

The question is on the amendment.

The question was taken; and the Speaker pro tempore announced that the ayes appear to have it.

Mr. TONKO. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

AMENDMENT NO. 86 OFFERED BY MR. KENNEDY

The SPEAKER pro tempore. It is now in order to consider amendment No. 86 printed in House Report 116–459.

Mr. KENNEDY. Madam Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of division C (before the short title), insert the following:

SEC. __. (a) None of the funds made available by this Act may be used to—

(1) rescind the September 2015 Bureau of Indian Affairs Record of Decision on the Trust Acquisition and Reservation Proclamation for 151 Acres in the City of Taunton, Massachusetts, and 170 Acres in the Town of Mashpee, Massachusetts, for the Mashpee Wampanoag Tribe;

(2) revoke the reservation proclamation Proclaiming Certain Lands as Reservation for the Mashpee Wampanoag (81 Fed. Reg. 948); or

(3) annul the determination that such lands are eligible for gaming under the Indian Gaming Regulatory Act.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentleman from Massachusetts (Mr. KENNEDY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Massachusetts.

Mr. KENNEDY. Madam Speaker, I yield myself 2 minutes.

Madam Speaker, I want to thank the chairman for his leadership on this bill and for the support of this amendment.

Madam Speaker, in 1620, 400 years ago, the Pilgrims settled on Wampanoag land in Plymouth, Massachusetts. For literally four centuries, the Mashpee Wampanoag people have been fighting for their sovereignty, for their land, and for their survival. And for generations, they have been met with resistance from a government that should be protecting and empowering them.

In the last few months, Madam Speaker, their fight has arrived at a crossroads created by a Trump administration that has treated Tribes with nothing but contempt since the day of his inauguration.

Because of decisions made by this administration, the Mashpee Wampanoag's land may be stolen from them again in the coming weeks.

We have a responsibility to do what is right, to learn from the mistakes of generations before us, to recognize that this land wasn't land to be discovered or to be taken. It belonged to Tribes like the Mashpee long before the Pilgrims arrived.

Madam Speaker, we need to pass this amendment to right the wrongs of the past, to prevent them from becoming the wrongs of the present.

Madam Speaker, I reserve the balance of my time.

Mr. GOSAR. Madam Speaker, I rise in opposition to this amendment.

The SPEAKER pro tempore. The gentleman Arizona is recognized for 5 minutes.

Mr. GOSAR. Madam Speaker, I rise today in opposition, very strong opposition, to this amendment.

The amendment continues the efforts in this House to halt enforcement of a Federal court action on this matter in order to build a massive 400,000-square-foot off-reservation gaming complex for the benefit of Genting, a foreign Malaysian gaming company.

Since we considered this legislation last year, there have been a number of important events, including just last month when the U.S. Attorney's Office in Boston served a Federal grand jury subpoena to the Mashpee Wampanoag Tribe last month for a hefty number of documents and financial records.

Yet, here we are once again, misguidedly considering the establishment of two separate reservations for the Mashpee Tribe of Massachusetts.

One reservation will be the town of Mashpee, the Tribe's historic reservation lands. No casino will be allowed within ''the geographic boundaries of the town of Mashpee.''

The other reservation will be 50 miles away from Mashpee in the city of Taunton. This site is not part of the Tribe's historic reservation and was selected by the Tribe and Genting for a billion-dollar casino project because of its proximity to the Providence, Rhode Island, casino market, a 20-mile distance.

There is no reason for the second reservation other than to build an off-reservation casino 50 miles away from where the Mashpee Tribe currently resides.

In 1988, Congress enacted the Indian Gaming Regulatory Act with the intent to restrict casinos to Tribes' original reservations in order to protect the States and the rights of citizens of those States.

By placing land in trust for the Mashpee Tribe for gaming in Taunton, this amendment creates an off-reservation casino, which is inconsistent with congressional intent. This is often called reservation shopping, and it is an abuse of the Indian Gaming Regulatory Act.

Now, the Tribe's lawyers knew that reservation shopping was a political headache, so they went to bureaucrats within the BIA to obtain the two reservations through administrative action. But let's be honest, this isn't about the Mashpee Tribe. This is about Genting Malaysia. This amendment is really about just a financial bailout for Genting.

The Tribe is swamped with more than $500-plus million in debt to Genting, and there is no way the Tribe can ever pay this back and still make enough money to sustain itself. Genting, therefore, will be the real owner of the project, not the Tribe.

This kind of arrangement, where the creditor practically controls the financial futures of a debtor Tribe, is contrary to the Indian Gaming Regulatory Act, which requires every Tribal casino to be 100 percent tribally owned.

Moreover, the American Principles Project reports on the ties between convicted lobbyist Jack Abramoff and the Mashpee Wampanoag Tribe, stating, ''The expansive Abramoff investigation uncovered major corruption within the Mashpee Wampanoag Tribe. Its chief, Glenn Marshall, pled guilty in 2009 to multiple Federal charges, including embezzling Tribal funds and campaign finance violations committed while working with Abramoff to secure Federal recognition'' in 2007.

This disastrous project has garnered its broad share of opposition, including President Trump, Democrats, and Republicans. The project is also strenuously opposed by the other federally recognized Tribe in Massachusetts.

For Members on both sides of the aisle, do you really want your name tied to a Tribe that only received Federal recognition in 2007 as a result of shady lobbying by Jack Abramoff? Do

you really want to vote for a $500 million bailout for a foreign gaming corporation?

More importantly, while everyone is innocent until proven guilty, prudence suggests that Congress wait until the completion of the ongoing Federal grand jury investigation before acting on any gambling legislation related to a foreign entity and an Indian Tribe that appears to be the target of that investigation.

In short, this amendment attempts, once again, to force an off-reservation casino, bails out a foreign corporation from major financial problems of its own making, undoes the judgment of a Federal court, and contradicts a Supreme Court ruling.

Madam Speaker, I urge all Members of both sides of the aisle to vote against this amendment.

Madam Speaker, I reserve the balance of my time.

Mr. KENNEDY. Madam Speaker, I yield such time as he may consume to the gentleman from Massachusetts (Mr. KEATING).

Mr. KEATING. Madam Speaker, I speak in favor of this amendment.

On March 27, 2 weeks after the U.S. Government had declared a state of emergency due to the COVID–19 virus, leaders of the Mashpee Wampanoag Tribe, the Tribe that helped the Pilgrim forefathers survive the devastation of illness and starvation in their first winter, received a phone call from the U.S. Secretary of the Interior's office.

Now, you would think that maybe they were going to see how the Tribe was doing, a Tribe that is disproportionately affected by the virus. Maybe they were calling to see if they needed any help. Regrettably, that wasn't the case.

In an act with discretionary timing, and one of the most reprehensible acts I have witnessed since I have been here in this Congress, they were informing them that, on behalf the U.S. Government, they were taking away their land, their buildings, their medical center, and leaving them in financial ruins.

Now, fortunately, the D.C. Circuit judge rebuffed this unconscionable act, calling it arbitrary, capricious, contrary to law, and unusually so, calling it an abuse of power.

Now, due to the close relationship between the White House and the lobbying group that is dealing with this, this could rear its ugly head again.

This amendment is different than the three that we passed before, in terms of legislation. It is much more narrow. All it does is make sure the Tribe, the Tribe which helped the Pilgrims survive their first year, is allowed to do so themselves in the coming year.

Mr. KENNEDY. Madam Speaker, I am prepared to close, and I reserve the balance of my time.

Mr. GOSAR. Madam Speaker, once again, the facts are the facts. I know there are gut-wrenching applications. I dealt with Tribes my whole life. But the facts are the facts. This amendment is egregious. The facts are the facts.

Two reservational applications is incomprehensible. It violates the very law that we actually passed.

Now, if you disagree with the Indian Gaming Regulatory Act, be my guest, change it. But that is not what we do. We follow the law. The law is the law.

Madam Speaker, with that, I would ask everybody to vote against this amendment.

Madam Speaker, I yield back the balance of my time.

Mr. KENNEDY. Madam Speaker, I stand today with my colleagues from Massachusetts in support of the Mashpee Wampanoag Tribe and in support of Tribal sovereignty, and I ask my colleagues to pass this amendment.

Madam Speaker, I yield back the balance of my time.

Mr. LANGEVIN. Madam Speaker, I rise in opposition to the amendment offered by my friend and colleague from Massachusetts.

This amendment would effectively prevent the Department of Interior from moving forward with a decision to revoke tribal lands from being held in trust. Although I appreciate my colleague's advocacy on behalf of the tribe in his state, the tribal land trust process is based on complex legal precedent and has no business being included in a bill to fund the federal government. We are familiar with the complexities of tribal law in Rhode Island as the Supreme Court's decision in Carcieri v. Salazar had implications for our state. But any legislative remedy for Carcieri shouldn't lie in an ad hoc approach that favors one particular tribe.

What's more, this amendment could cause serious economic harm to Rhode Island. It effectively preserves the opportunity for the construction of a new casino in Taunton, Massachusetts, by putting pending administrative decisions on hold for the next year. My colleagues in the Massachusetts delegation are hoping for a last minute judicial or administrative reversal that would allow the stalled casino project to begin. The project would be in direct competition with established casinos just over the state line. Twin River and Tiverton casinos have been important economic drivers in my state, generating hundreds of millions of dollars each year. We are already feeling the economic impacts of the coronavirus pandemic in Rhode Island, as I know our neighbors are in Massachusetts. If this amendment becomes law, it could compound the economic pain for our businesses, their workers, and our state.

I urge my colleagues to oppose this amendment.

Mr. CICILLINE. Madam Speaker, I rise today to speak in strong opposition to this amendment. This amendment would seek to ignore a U.S. Supreme Court federal standard and allow the Mashpee Wampanoag Tribe to open an off-reservation casino right on the border of Rhode Island.

Under the Indian Reorganization Act, the U.S. Department of Interior is only allowed to take land into trust for tribes recognized before 1934. The Mashpee Wampanoag Tribe became federally recognized in 2007. This amendment will set a dangerous precedent and undermine both a U.S. Supreme Court ruling and disregard the U.S. Department of Interior's most recent ruling.

An off-reservation casino would result in an overwhelming economic loss to my state's economy. The COVID–19 pandemic has dealt a great blow to my state, hitting the travel and tourism industry particularly hard. Casinos in Rhode Island generated $300 million in annual revenue before closing due to the pandemic. An off-reservation casino would further devastate the financial loss to my state currently facing a 12.4 percent unemployment rate in June, higher than the national average. We as a Congress should not be circumventing the court's decision and allow a one-time carve out for the building of a casino that is bad for Rhode Island. Regardless of this amendment, the Mashpee Tribe will still be a federally recognized tribe and will continue to receive federal benefits.

Make no mistake, this amendment does not aim to help the Mashpee Wampanoag Tribe, but instead help lobbyists secure a win for their own interests. This amendment will do more than just greatly damage the Rhode Island economy, it will put Congress on a path of hand-picking winners and losers over the court's decision. This amendment would signal it's okay for lobbyists and hedge funds to be the decision makers in Congress, and not the representatives of the people. I urge my colleagues to join me in strongly opposing this amendment.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the previous question is ordered on the amendment offered by the gentleman from Massachusetts (Mr. KENNEDY).

The question is on the amendment.

The amendment was agreed to.

A motion to reconsider was laid on the table.

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AMENDMENT NO. 102 OFFERED BY MR. SMITH OF MISSOURI

The SPEAKER pro tempore. It is now in order to consider amendment No. 102 printed in House Report 116–459.

Mr. SMITH of Missouri. Madam Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 507, line 19, after the first dollar amount, insert ''(reduced by $564,452,000)''.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentleman from Missouri (Mr. SMITH) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Missouri.

Mr. SMITH of Missouri. Madam Speaker, waters of the U.S., social cost of carbon, the Clean Power Plan rules, these are just a few of the crushing regulations issued by the Obama-Biden Presidency.

During the Obama-Biden administration, the EPA issued nearly 4,000 regulations. These rules totaled tens of thousands of pages in Federal regulations and billions of dollars in compliance costs. The families, farmers, and

small businesses of Missouri could not keep up.

Thankfully, since taking office, President Trump has kept his promise to deliver regulatory relief to the American people. He has removed seven regulations for every new one added, saving households thousands of dollars a year in regulatory costs.

The other side would have you believe that reining in the EPA by reducing funding leads to dirtier air and dirtier water when, in fact, the opposite is the case. Under President Trump, emissions have fallen in every major category and overall have dropped 7 percent since 2017. Right now, we have the cleanest air since 1970. That is 50 years.

Democrats want to take us back to Obama-Biden era spending policies with this funding bill, which breaks the recently agreed to spending caps and returns us to the regulatory machine of the prior administration that harms small businesses and family farmers. But the American people are not interested in returning to the increased costs and overregulation of that administration.

My amendment simply reduces funding for the EPA to reflect President Trump's budget request.

Madam Speaker, I urge all of my colleagues to support this amendment, and I reserve the balance of my time.

Ms. MCCOLLUM. Madam Speaker, I rise in opposition to this amendment.

The SPEAKER pro tempore. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Madam Speaker, for 4 years in a row, President Trump has set up a truly—well, he sent us a budget that is just not workable when it comes to his budget request.

On a bipartisan amendment, especially when it comes to the EPA, we have passed budgets at the end and sent them over to the EPA with more money than the President has requested. And why? Because we know we have to fight to have clean air, clean water. We need to have good scientists. We need to have researchers. We need to have people out doing inspections. We need to have our Environmental Protection Agency working.

As I pointed out, the Congress has overwhelmingly rejected these requests for the President's cuts to the EPA. I predict we are going to see that happen again, for a fourth year in a row. That is because the EPA's environmental programs and management account does vital work, really important work protecting our air and drinking water, restoring our waterways, and safeguarding us from toxic chemicals.

It has been reported worldwide, because of COVID, we all know people are driving less. We know that our factories, unfortunately, aren't running the way they should be, and a lot of people are out of work. So, yes, the air quality has improved because of the President's mishandling of the COVID emergency that we are facing. But we don't want to go back to those pollution levels. We want to work together in a bipartisan way.

Another thing that the gentleman cuts are the geographic programs hugely popular in this Congress, and here, they are overwhelmingly supported bipartisanly—program work like the Great Lakes, Chesapeake Bay, Puget Sound, Long Island Sound, and the Florida estuaries. These programs would be devastated if we adopted the President's budget.

Members on both sides of the aisle asked for robust funding in these accounts. Rural communities that rely upon technical assistance grants in this account, we help them to make sure that they can afford safe drinking water for their constituents and that they can safely manage their sewer and wastewater systems. We worked together to help rural communities.

Consumers rely on the EPA's ENERGY STAR program to help them choose energy-efficient appliances, which save them money and help the environment. Madam Speaker, I can speak from personal experience, having sold appliances for many years, how important that ENERGY STAR was to someone when they were making a decision because they wanted to save money on their electric bill.

Well, the Trump budget, the way it was presented to our subcommittee, would have slashed all these programs and much more, and the impacts to public health would be devastating.

The American people overwhelmingly agree that we should be investing more to protect our families from pollution, not less.

Madam Speaker, I urge my colleagues to oppose this amendment, and I reserve the balance of my time.

Mr. SMITH of Missouri. Madam Speaker, more money is not always the answer. The right policies, efficiency, is the answer.

As I said earlier, for the first time in 50 years, under Trump's policies and Trump's spending, we have the cleanest air since 1970.

I am not sure why the majority is concerned about cutting funding for the EPA when they have included $13 billion in additional emergency funding in this bill for the EPA alone.

My amendment is not about preventing the EPA from doing its job. It is about ensuring that the EPA does the job we gave it to do and nothing else.

Now is not the time to return to the spending habits and overregulation of the Obama-Biden era. If this funding amount is good enough for the President, it is good enough for me.

Madam Speaker, I yield back the balance of my time.

Ms. MCCOLLUM. Madam Speaker, I am glad the gentleman brought up the $15 billion in the EPA's emergency spending budget.

It is for wastewater treatment. That is for clean drinking water. That is for infrastructure. That is for jobs. That is so the next generation inherits clean water and a sewage waste disposal system that they don't find crumbling all around them because of neglect and because we have not lived up to our obligation to take care of those infrastructure investments.

For 50 years, the EPA has been responsible for protecting health and the environment, and they have been doing a job in cleaning up the environment, as I mentioned with the restoration programs. The Chesapeake Bay, it is amazing what has happened, the Great Lakes.

Congressman JOYCE and I are constantly working with other Great Lakes representatives, Republicans, Democrats, and Independents, who ask us to do even more in investing.

These Trump administration budget cuts that the gentleman would have us return to would cripple the EPA's ability to accomplish those missions. I urge my colleagues to oppose the amendment.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the previous question is ordered on the amendment offered by the gentleman from Missouri (Mr. SMITH).

The question is on the amendment.

The question was taken; and the Speaker pro tempore announced that the ayes appear to have it.

Ms. MCCOLLUM. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

AMENDMENT NO. 103 OFFERED BY MR. SMITH OF MISSOURI

The SPEAKER pro tempore. It is now in order to consider amendment No. 103 printed in House Report 116–459.

Mr. SMITH of Missouri. Madam Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 506, line 21, after the first dollar amount, insert ''(reduced by $260,612,000)''.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the gentleman from Missouri (Mr. SMITH) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Missouri.

Mr. SMITH of Missouri. Madam Speaker, once again, I rise to advocate in favor of the fiscal sanity of the Trump administration.

Just like my last amendment, this amendment prevents the Democrats from taking us back to the Obama-Biden era policies of overregulation and overspending.

The Obama-Biden EPA brought us thousands of new regulations, tens of thousands of new pages in the Federal

Register, and billions in compliance costs for American farmers, small businesses, and families, much of this backed by flawed research with a political agenda.

The Office of Science and Technology aids in the regulatory process and is responsible for the faulty research that led to costly regulations like the social cost of carbon and the Clean Power Plan.

The American people need transparent research without an agenda. They don't need Obama-Biden era regulations and spending policies.

The amendment, once again, simply reduces funding for the EPA to reflect President Trump's budget request.

Madam Speaker, I urge all of my colleagues to support this amendment, and I reserve the balance of my time.

Ms. MCCOLLUM. Madam Speaker, I rise in opposition to the amendment.

The SPEAKER pro tempore. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Madam Speaker, as I said on the other amendment, for 4 years in a row, President Trump has sent us truly appalling budget request numbers for the EPA, and the Congress has overwhelmingly rejected these requests on a bipartisan basis. As I said, I predict we will do that again for the fourth year in a row.

The EPA's science and technology account does vital research on health effects of toxic chemicals and pollutants. Now, the Trump administration, by not doing this research and by not moving forward, protects corporate polluters' profits, not the health and safety of the American people. That is why, in my opinion, the administration's budget proposes to cut hundreds of millions of dollars for funding research on things like PFAS.

Now, in my constituency, I have several major municipalities that can no longer just take the water out of the ground the way that they had before, send it to the homeowners, and they could turn on their tap and safely drink it. No, it has to be filtered for PFAS. We need research. We need standards on it.

Lead. How many discussions have we had on this House floor? How many parents have we heard from? How many children have we heard from about the effects of lead in water?

Mercury. I am from Minnesota. We have fish advisories because of mercury. Pregnant women have to be careful how much fish they consume. We have postings when we go to our lakes about how much fish we can consume. Mercury is a concern to many of us.

And climate change. I am not afraid to talk about climate change. I was just on the phone with the Secretary of the Air Force, and we were talking about what we are going to have to spend in Alaska. You know, the permafrost is causing issues with radar installations not being stable—climate change. The permafrost, which is disappearing, is affecting the ability for runways and safe landings. Climate change.

So, do we need to do the research on climate change? It is a national security issue. I am glad the EPA is out there looking at it, working with other agencies within the United States.

People across this country overwhelmingly agree we should be investing more research in PFAS. We should be getting the lead out of our water. We should be understanding what is going on with mercury. We should also be addressing the effects of climate change and, most of all, protecting our families from pollution.

I urge my colleagues to oppose this amendment. Madam Speaker, I reserve the balance of my time.

Mr. SMITH of Missouri. Madam Speaker, if you listen to my Democrat colleagues, you would think the EPA could not go on without this funding that we are trying to reduce. It is about being efficient.

This administration, as I had said earlier, under President Trump, emissions have fallen in every major category and overall have dropped 7 percent since 2017. Right now, we have the cleanest air since 1970.

Throwing money at an issue you care about is not the solution. Being efficient in government is the solution, and that is what the Trump EPA has done.

□ 1930

So they have asked for this particular amount of money, and I am making sure that we are giving the EPA what they need, not busting the spending caps which were agreed to by Republicans and Democrats by their current proposal.

Let's keep the spending caps. Let's adopt my amendment.

Madam Speaker, I yield back the balance of my time.

Ms. MCCOLLUM. Madam Speaker, I will read from the National Geographic, published April 8, 2020:

''As the novel coronavirus tears around the world, it's exploiting our biggest weaknesses, from creaking health care systems to extreme social inequality. Its relationship with one pervasive and neglected problem, however, has been more tangled: Air pollution has intensified the pandemic. . . .''

So we need to do studies on that, and the EPA works on that, but at the same time, the coronavirus has temporarily cleaned the skies.

As I said earlier, for 50 years, the EPA has been responsible for protecting public health and the environment.

We need to do research to understand how to protect public health and the environment; and more importantly than ever, we need to understand how to protect public health and the environment for people who have long been neglected, the people who are suffering the most right now, and that is the inequality, the injustice we are seeing between Black and Brown people in the United States.

We need to do better with the EPA for addressing social injustices that have affected those populations most by living in polluted areas and being subjected to pollution. I want to work on that in Congress. The administration's cuts would cripple the EPA's ability to achieve that mission.

Madam Speaker, if I understand correctly, the gentleman has yielded his time.

Madam Speaker, I urge my colleagues to oppose this amendment, and I yield back the balance of my time.

The SPEAKER pro tempore. Pursuant to House Resolution 1060, the previous question is ordered on the amendment offered by the gentleman from Missouri (Mr. SMITH).

The question is on the amendment.

The amendment was rejected.

A motion to reconsider was laid on the table.

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of H.R. 7608 is postponed.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore (Mr. KIM) laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, July 23, 2020.

Hon. NANCY PELOSI,
The Speaker, House of Representatives, Washington, DC.

DEAR MADAM SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on July 23, 2020, at 2:00 p.m.:

That the Senate passed S. 906.

That the Senate passed S. 4065.

With best wishes, I am,

Sincerely,

ROBERT F. REEVES,
Deputy Clerk.

WOMEN SHOULD BE ALLOWED TO SERVE IN DIGNITY

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Mr. Speaker, sometimes it is very difficult to respond to something that is so much out of the ordinary, but I rise today to refer to my colleague, ALEXANDRIA OCASIO-CORTEZ, and to make mention of the incident that occurred where she was described in unflattering words.

Those words were denigrating to a woman. They were equally denigrating to women of color.

One's views in this place are protected by the Constitution and protected by the First Amendment, but it is particularly sad when one's particular gender is called out and degraded, for women have been the backbone of this Nation. They have helped

build this country. They serve in the United States military.

Our Member of Congress from The Bronx, New York, has equally been elected by her constituents, and deserves the kind of respect and understanding that all of those who take the oath deserve. I am appalled by the words that were used against her.

I stand with her remarks of expression of the right to have different views, and I also stand with her as a woman who would respect that service and that unique service that we who have come to this place where we could not be for many, many years to serve, she should be allowed to serve, and serve in dignity.

HONORING REPRESENTATIVE JOHN LEWIS

(Ms. MCCOLLUM asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MCCOLLUM. Mr. Speaker, I was on my way out and I saw the beautiful white flowers that are sitting on my side of the aisle celebrating the life of John Lewis.

Last night, I had the radio on and I was listening to C–SPAN, and I heard the wonderful, wonderful stories on both sides of the aisle of people celebrating John's life and what he meant to them.

As I was preparing for this bill and working on this bill, working on the inequalities of years of systemic racism and how it has infected the environment made me even want to champion this bill that was before us today even more, as a remembrance of all the work that needs to be done.

As people were sharing their stories of John, what came to mind for me was talking about gardening. He loved to garden and he had a few plants, and we would talk about them.

He loved to fish, and the one thing I would always tease him about, Mr. Speaker, is going to Minnesota and going ice fishing.

Well, John, that is going to have to wait, but I look forward to seeing you again in the heavens, and we will go ice fishing.

WE NEED TO FIGHT FOR OUR COUNTRY

(Mr. NORMAN asked and was given permission to address the House for 1 minute.)

Mr. NORMAN. Mr. Speaker, I will quote from the great Alexander Fraser, who wrote about the decline of democracy. The nations have progressed through this sequence. Very few have existed past 200 years, but they all come to an end.

They go ''from bondage to spiritual faith; from spiritual faith to great courage; from courage to liberty; from liberty to abundance; from abundance to selfishness; from selfishness to . . . apathy; from apathy to dependence; from dependence back into bondage.''

I think now we are at a point in time in history where we have got to fight for our freedom, we have got to fight for our country.

Mr. Speaker, I ask that people now get involved who have never been involved before.

AMERICA IS A GREAT NATION

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2019, the gentleman from Texas (Mr. ARRINGTON) is recognized for 60 minutes as the designee of the minority leader.

GENERAL LEAVE

Mr. ARRINGTON. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous materials on the topic of my Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. ARRINGTON. Mr. Speaker, we are here as lovers of liberty, as patriots, as people concerned about the future of our country, just citizen legislators, people who have children and grandchildren and who want our posterity to inherit the blessings of liberty and all of the opportunities this great Nation has afforded not only myself and my colleagues, but all Americans.

America is a great nation, and God has truly blessed America. America has been a blessing to the world, and as President Trump has said, we must keep America great.

It is not just what that statement means to our citizens and to our children and the next generation of Americans; it is what America means and what this great experiment at liberty and democracy means for the entire world.

Mr. Speaker, we are going to talk about the substance of that greatness, the true substance of it.

I would suggest that what makes America great is the American people and the values, the beliefs—what defines us—our culture, what we esteem.

That is what we must remember as we legislate, as we lead and represent our citizens throughout this great land, that what makes America great and what will keep America great are America's values. We must defend them. We must promote them.

□ 1945

We must fight for a future that has those values of faith, In God We Trust, one Nation under the sovereignty of God, with a firm belief, as John Adams says, that the Constitution is only good for a moral and religious people, for example.

He understood that, at the foundation of this great country, that we would only be able to persist, and we have only persisted as the longest democracy in the history of the world because we bow the knee to our sovereign God, who, as Ben Franklin said, if a sparrow cannot fall to the ground apart from His will, then a Nation cannot rise apart from it. And I would submit that this great Nation cannot persist without that.

We recognize that you can pass all the laws you want and, certainly, laws have their place in civil order, and the enforcement of those laws are critical for the domestic tranquility of our country. But you are not going to change anyone's heart through passing laws.

And John Adams and our Founders understood that if this republic would continue for generations it would be because we always remembered that above and beyond passing good laws and making good policy is that we would recognize that we have a higher accountability, and that accountability is Almighty God, that same God whose providential hand was with this Nation from the very beginning and, I pray, will continue with all of us, on both sides of the aisle.

Every person that swears an oath and has the good fortune and privilege of serving, I pray God's gracious and providential hand will continue to guide us in the challenges that we face today.

We have our 21st century challenges, just like every generation has and, I would submit, we must return to what made this country great.

Tonight, we are going to reflect on America's values, America's culture, and America's heritage, and why it matters to fight and defend those values.

I have dear friends who are much more articulate, Mr. Speaker, than I am on this, and they speak from the heart. They speak with personal conviction. They ran for office to serve, and to strive for a more perfect union, and to hand this country better than we found it to their children and grandchildren.

One of those individuals is RALPH NORMAN, from the great State of South Carolina, a businessman who decided that he would make tremendous sacrifice. He has got a beautiful and big family, and he said this is the best way he can love his grandchildren is to love his country through service and through making it better by passing the right laws and upholding the right values.

Mr. Speaker, I yield to the gentleman from South Carolina (Mr. NORMAN).

Mr. NORMAN. Mr. Speaker, I want to thank the gentleman for having this Special Order. It couldn't come at a more unique time. The history, defining America's values, our culture, and our heritage, now more than ever, need to be spotlighted.

The gentleman summed it up well. It boils down to three things, faith, family, and country; faith, family, and country.

America finds herself in an hour of peril. In the recent weeks and months,

we have seen the unhinging of civil order and the near collapse of the rule of law in certain cities.

This Chamber should serve as the shining example for the rest of our great country. Sadly, we are failing to live up to that expectation. Instead of open and honest debate, we are allowing the ''cancel culture'' to creep inside these hallowed Halls that have stood for centuries.

We hear calls for a ''national conversion,'' a ''wider debate,'' or a ''public reckoning,'' and every day, we are denied it. A new regime of liberal gatekeepers is intent on enforcing this new dogma, even in institutions previously sworn to uphold the importance of the free exchange of ideas.

Instead of opportunities for many in America to grow and evolve through discourse, Americans are now losing their livelihood and loved ones over newly invented apostasies. I invite my colleagues on the other side of the aisle to join me in denouncing this uncivil and, to be honest with you, un-American way of disagreeing. We must remind the American people of our beautiful land what it looks like to agreeably disagree.

From the exchange of ideas, we can achieve the negotiations and compromises that make up the foundation and the fabric of this great Nation and are the stepping-stones to a more perfect Union.

The Federal Government has an obligation to make sure that any institution it supports upholds the Bill of Rights, including the right of freedom of speech.

It does not give you, however, the right to tear down this great Nation. It does not give you the right to tear down people's dreams, money that was put in, dollars that were put in to building a lifelong business, to destroy.

You do not build America up by tearing down America. We cannot do this in the current state of cancelation.

Until we can once again welcome disagreement, debate, and a healthy exchange of ideas, I fear for our future; I fear for our children; and I fear for our grandchildren.

In the words of Winston Churchill, who had the fantastic quote when Great Britain was under siege by Germany, he said:

> There will be a time when doing your best is not good enough. We must do what is required.

And I will call on all Americans and, really, on both sides of the aisle, to do what is required to keep America great; to make it even greater; and to go for what made this country great, to uphold our Constitution, our Bill of Rights, and our God-given freedoms that can only come from God.

Mr. Speaker, I thank Congressman ARRINGTON for having this Special Order.

Mr. ARRINGTON. Mr. Speaker, I thank the gentleman, and I consider him a great friend. As he spoke, I was thinking about the statement that Alexis de Tocqueville made that, I think, truly hits at the heart of this experiment that has persisted as the greatest beacon of liberty in all the land and, I mean, in all the globe, and that is America is great because America is good. And part of our goodness is civil discourse and debate.

Mr. Speaker, I am going to introduce another classmate and colleague of ours, JIM BANKS; and he was part of our class that came in and said from the outset we need civil discourse. We have strong convictions. We have deeply held beliefs, and we will fight for the traditional American values that we believe have made America great.

But we can do that right here, without tearing a single person down, and contributing to the swampiness of this place and being a great example to generations of Americans.

The gentleman represents that. He is a great statesman, a great American. I thank him for his time.

The next colleague of mine, from the Hoosier State, who is, no doubt, a freedom fighter, and who I am terribly honored to serve with, and to know his beautiful family, his wife, Amanda, and his three children. I thank Representative BANKS for joining us and taking part in this discussion about defending America's values.

Mr. Speaker, I yield to the gentleman from Indiana (Mr. BANKS).

Mr. BANKS. Mr. Speaker, I thank my friend and colleague from the great State of Texas for organizing this important conversation that we are having here this evening. There is so much, as the gentleman has already said, that makes America great, our history, our culture, our values, our people.

But, Mr. Speaker, 300 years ago, colonists left their homes to come to these shores and become free. They didn't want to be bullied for their beliefs anymore.

Our Founding Fathers thought this freedom was so important they enshrined it in the First Amendment. But it is under attack more than ever today in the form of what has become known as the ''cancel culture.''

If you hold the wrong beliefs; if you support the wrong candidate; if you affiliate yourself with the wrong party; if you watch the wrong news network, you can get canceled; which means that they can take your job, they can take your privacy and your reputation away from you in a flash.

You can even get canceled for not doing something. If you refuse to utter or endorse the so-called politically correct movements or phrases, they will come to destroy you.

This is an affront to the very idea of what America is and who we are, as Americans, and I vow to fight it with every fiber of my being.

I appreciate my colleague from Texas organizing this Special Order to talk about these important issues, but from the bottom of my heart, this is what is on my mind and my heart as we serve in this body today. We have got to do everything we can to change it.

Mr. ARRINGTON. Mr. Speaker, I thank my beloved brother in Christ and dear friend for not only his service as a Member of Congress, but for his service in wearing the uniform.

I think, at its core, this mission that we have to steward and to protect, as the Federal Government's limited—emphasis on limited—role in the affairs of our great citizenry, is to keep us safe and keep us free.

I thank the gentleman for doing that for his whole career. And God bless him for his service, both in the military and here in the United States Congress. I am honored to serve with him.

Now, another liberty loving Texan who has been in public service, who has been a prosecutor, and has been a leader for our Lone Star State; and, now, he too, has been willing to leave a lot of good things behind, including a loving family, to come up here to this city and to fight for our freedom, to change the culture of this place so that it serves the people who hold the sovereignty and the future in their hands. He is a dear friend, and I am honored to have him, CHIP ROY, of the great State of Texas.

Mr. Speaker, I yield to the gentleman from Texas (Mr. ROY).

Mr. ROY. Mr. Speaker, my father is a proud west Texan, also a proud graduate of Texas Tech University, as the gentleman well knows. And I just appreciate the gentleman's passion for this country and what he is doing by giving us this time to talk in defense of the greatness of our Nation.

Now, I wouldn't think I would be standing on the floor of the House of Representatives having to defend the greatness of the United States of America. We were sitting in this very Chamber, in the State of the Union address, when the President of the United States was touting the greatness of this country, and only about half of this body stood up to clap its hands to agree about the greatness of this country.

I just want to say, you know, as a Member of this body, of one-435th, and one-half of one-third of the Federal Government, I believe this country is great.

□ 2000

I am proud of this country. I am unapologetically proud to be an American. Flaws we have because we are flawed men and flawed women. We know that. It is certainly a tenet of my faith, and that is faith in the Almighty and faith in the Lord and my Savior Jesus Christ. But for Him, I would be condemned because we are flawed. But we have to remember that this country has stood for something greater.

Just a few weeks ago, I went up to Independence Hall in Philadelphia on the 244th anniversary of our separation from the crown. I went into Independence Hall on that day on July 2, the actual day that we separated from the

crown. It was an honor to be there. I went up there to record a video. I never thought I would have to record a video saying why this building, Independence Hall, and why these monuments are important.

It is not the bricks; it is not the mortar; it is not the marble; and it is not the iron. It is the ideals they represent. It is the ideals that this country was founded upon, and it is those ideals that carry forward.

We will never measure up to those ideals because we are flawed human beings, but we will always be striving to achieve the greatness that our Founders laid out for us and that our forefathers and our current brothers and sisters have died and bled for.

When we go down to the World War II Memorial and see 4,000—and I can't remember the exact number—4,100 almost stars on that monument, that is one for every 100 Americans who gave their life thousands of miles away in Europe and in the Pacific, fighting for something far greater than they.

It wasn't for conquest. It was to stop tyranny. It was to stop fascism. It was to stop the spread of that around the globe. That is what our country represents.

We had the great clash in our Civil War a mere 80 years after our founding. Few republics in the history of mankind would have survived that. But it was because it was for the fulfillment of the Declaration. It was a fight for the fulfillment of those ideals and the greatness of this country.

That greatness is exemplified by our heritage. My grandmother was a single mom in west Texas, in Sweetwater, Texas, because my grandfather died of cancer when my dad was 7 years old. Now, imagine her finding out my father had polio—a pandemic—in September 1949 while my grandfather was dying of cancer. Then he passes away in November, and my dad coming home from the hospital for a few days each week to be able to see his dad, whom he had only seen for 2 years because his dad was in the Pacific.

Then my grandmother, a single mom in west Texas, runs and becomes the first woman elected county clerk in Nolan County, Texas. She raises my dad and gets him through therapy. My dad is still alive and walking today because of her hard work, taking on double jobs.

He goes on to be the first to go to college, Texas Tech. I go on to be the first to go to graduate school, and now here I am in Congress.

This story is not unique. Each and every one of us has one of those stories. That is the greatness of this country. Her dad, my grandmother's dad, had lost the farm in the Depression.

How many stories do you know like that?

He went on to be the janitor in a church in Sweetwater, Texas, for the rest of his life after he lost the farm. It was noble. It was noble because he was raising my grandmother and raising my dad, who was newly without a father.

That was what we do. That is what we do as Americans. That is our greatness. I am just, frankly, not going to apologize for it. I am not. I love this country.

As we sit here in the face of a pandemic, why is our leadership telling our country to cower in fear? That is not the American way. That polio that struck my father? We beat it.

Mr. Speaker, 30,000 kids died and 300,000 got injured. MITCH MCCONNELL is one of them. My dad is one of them. He walks with a hobble today. But we beat it with the Salk vaccine.

We beat the Germans. We beat the Japanese. We have been fighting and standing up against the evils of totalitarianism. We took down the Soviet Union when Mr. Reagan said ''tear down that wall'' to Mr. Gorbachev. That is who we are as a country. I am just not going to apologize for it.

Here is the thing: Why aren't we talking as a group together on a bipartisan basis instead of tearing each other down? Why aren't we talking about the great things that we have been achieving?

Fifty million tests. Think about that. Fifty million tests—more than Russia, India, and the U.K. combined. That is an extraordinary achievement.

How many ventilators? How many PPE, et cetera?

I have all sorts of numbers, but we have an extraordinary production: 19 billion gloves, 775 million surgical masks, 187 million N95 respirators, 32 million face shields, and we keep pumping them out.

Doctors have been working through the night, trying to figure out how to keep people alive and work through this pandemic and fight through it. Our fatality rate is going down, and it has been going down for 12 consecutive weeks.

We should be applauding that and championing that. We shouldn't be backbiting about what the President says or what somebody in this body says. We should be championing the greatness of this country to overcome this pandemic because that is what we are doing.

We should be making the American people confident to be able to get their kids back to school. Why? Because this virus—God, thank You—this virus doesn't attack our kids, at least the data currently shows that. We can adapt if that changes. But that is the clear truth.

Let's listen to the epidemiologists from Stanford like Dr. Ioannidis and Dr. Scott Atlas. Let's listen to the reports from Oxford and Yale, hardly some institutions of far-rightwing extremism. These are doctors who are telling us that our kids can go back to school, that we can go back to work, and that we can keep our country open.

Why does that matter? Because being closed is harming our kids and harming our society. Forty-five percent of Black-owned businesses have been crippled, crushed, and closed during this. A study by Harvard said that 110,000 American small businesses would likely close their doors permanently. We have seen the jobless claims, almost 50 million jobless claims. I think we are hovering around 20 million still. These are real people, real people's lives.

Next week is the 9-year anniversary since I was diagnosed with Hodgkin's lymphoma. I walked into the doctor's office, and I asked the doctor: Well, what are my chances, doc?

I have stage 3.

He said: Well, I am not going to tell you that number because, for you, it is zero percent or 100 percent. What are you going to choose?

I chose 100 percent because I wanted to live. I wanted to see my then-4-month-old daughter grow up. I wanted to see my then-2-year-old son grow up. That is what we need for this country.

Choose 100 percent. Choose the way for us to succeed as a country and march forward.

When I saw that great doctor, a great man from Syria, he told me that story, and he gave me his plan for me for my treatment. It is now the treatment—it was a trial drug that is now the standard of care for Hodgkin's lymphoma patients. But I went and got a second opinion, a third opinion, and a fourth opinion. Why? Because that is what you do, and that is what we should be doing right now, listening to all the experts.

This body should have hearing after hearing, calling in people for the experts. But we are not having these hearings. Why not? Why have we only met something like, ballpark, 13 of the last 90-something days? Someone explain that to me.

Someone explain to me how the Founding Fathers in 1793, when 5,000 out of 50,000 Philadelphians died from yellow fever, they found a way to meet and have this body meet. Instead, what do we get? Proxy voting.

Do you know what that means, American people? We have people on boats, calling in to hearings to register their votes. Think about that. That is not what the Constitution means.

I am proud to be in court tomorrow, litigating that against the Speaker of the House. We will be right here in court because it is unconstitutional.

But more important than that, it means we are not here leading. We are not here on the floor of the House of Representatives doing our job and projecting confidence to the American people that we can all meet and do what we are supposed to do.

We should have hearing after hearing after hearing, calling epidemiology experts about what we can do to ensure that the American people go back to work confidently, go to school, go to work, create wealth, create opportunity, and get back on our feet.

I am not going to use up much more of the gentleman's time, but I do want to say this: This stuff is all related. If

you think the lawlessness on the streets of Portland and the dead babies—Black, White, and otherwise in Chicago, New York, and Atlanta; the 8-year-old girl who got killed with her mom; the gentleman walking across the street holding his 8-year-old daughter's hand; a Black man and a Black girl, he got gunned down in the streets of New York; a 1-year-old infant in New York; a 3-year-old Black baby boy in Chicago; a 19-year-old Black young man in a so-called autonomous zone in Seattle—they are dead and they are gone because of lawlessness, because we are refusing to do our job to stand up for the very rule of law that sets this country apart from the rest of the world and always has. That is all related.

When you shut your country down, Mr. Speaker, the mental impact of that is real. And that is not just me. There are smart doctors who believe that.

John Ioannidis, whom I said was from Stanford University, asserted that extended lockdowns might not be the best approach. One of the bottom lines is that we don't know how long social distancing measures and lockdowns can be maintained without major consequences to the economy, society, and mental health.

Ioannidis wrote: ''Unpredictable evolutions may ensue, including financial crisis, unrest, civil strife, war, and a meltdown of the social fabric.''

I feel extremely sad that my predictions were verified.

The leaders of this body, all 435 of us, have an obligation to be here to do our job, to hold hearings, to speak the truth, to seek the truth, and to speak the truth to the American people.

I don't take it cavalierly. My 77-year-old father, I didn't see him between Christmas and July Fourth to protect him. My kids are going back to school on August 20 in Austin, Texas.

Do I worry about my family? Of course I do. But we are going to get back in the saddle, and we are going to get back to do our jobs and get this country moving forward.

To my friend from Texas, I am sorry I took up too much time. I thank my friend for doing this. I love this country. I will never apologize for loving this country, and we are going to work together to get this country back in the saddle.

Mr. ARRINGTON. Mr. Speaker, as we say in west Texas, amen and amen. I could listen to Representative ROY all night because he speaks from his heart and from a passion for his country and for his fellow countrymen. He is a truth seeker and a fighter for all that is good about this country.

We are glad the gentleman is here as part of the great delegation of Texas. We are all better in this body because of his presence and his service as a Member of Congress.

May God bless the gentleman. I thank him for his words tonight.

Now, I want to invite another colleague who is a lover of freedom and a great patriot, who is unabashed and beaming in his pride for the United States of America.

Mr. ALLEN is another gentleman who could be doing a lot of things. He is an accomplished businessman who could be doing a lot of things and spending a lot of quality time with his children and grandchildren, but, once again, he believes that the best way he can love his family and love those grandchildren is to hand them a better, stronger, safer, and freer United States of America.

Mr. Speaker, I yield to the gentleman from the 12th District of Georgia (Mr. ALLEN), who is my dear friend.

Mr. ALLEN. Mr. Speaker, I want to thank the gentleman from Texas for holding this special order.

This is a topic that we need to have a family discussion on. This Congress needs to sit down together and have a family discussion on where we are as a nation because I am deeply troubled by the state of our Nation, and most of my constituents who talk with me on a daily basis ask me what in the world is going on.

I go back to my childhood. I grew up on a farm, and I learned the value of hard work. I tell people that outside of this President, my daddy was the hardest worker that I have ever known. I am not sure he could outwork this President.

Mr. Speaker, my dad was one of five people in my county that you would go to see if you were going to run for public office. That is how much he cared about his community; that is how much he cared about that county; and that is how much he cared about his State.

I will be honest with you. My mother, my brother, my sister, and I would get upset with him because he spent time doing things outside of the home, trying to make our county and our State a better place to live. So, one day, I asked him about it.

I said: Dad, why are you so involved in public service?

He said: Son, I grew up in the Great Depression, and I fought in World War II. And in both times, I really thought there was a possibility we were going to lose this country.

I think he made a covenant with God that he would do everything he could to sustain the great Nation that he had the opportunity to grow up in and farm and to be involved in education and all the amazing work that my father did for that community. But he left me with this—and my dear friend, RALPH NORMAN, talked about this tonight.

My dad said: Son, you have to understand one thing. Apathy is the enemy of freedom.

□ 2015

You look at voter turnout, and you look at folks who say, ''I really don't want to get involved,'' or, ''I don't want to get out and knock on doors or make phone calls.''

Folks, I am going to sound the alarm. I am going to sound the alarm for a lot of different people groups.

Take the small business community. The small business community generates about 50 percent of the jobs in this country. Seventy percent of all the new jobs created in this amazing economy we had before COVID–19 were generated by the small business community.

The first reason I ran for Congress was because of the war on past administrations on small business.

Let me tell you, small business, you need to get involved in this process, because if we aren't careful, there will be another war on small business.

I came down here today to talk about two amendments, and a lot of those amendments dealt with the regulatory environment that, prior to President Trump, was destroying the small business community.

You know, one of the greatest privileges that I have had in my life—and I think this is maybe the greatest gift I have ever received from God—is the privilege to give people the opportunity to have a good job, to have the dignity and respect they deserve, to empower them to be what God created them to be, and to allow them to provide for their family, their country, and their church.

There is no greater satisfaction that I have found in this country—I have not found one person who is unhappy, that is not filled with joy when they are serving others. And we still have a tremendous amount of that going on in this country.

But over the past few months, we have seen radical progressive attacks on our Nation. What started as legitimate and peaceful protests has since been hijacked by violent lawbreakers.

Now, let's be clear, the mob wants total anarchy. And we are seeing it play out before our eyes, and it started long before we got here. Now we are experiencing attacks on law enforcement. I saw that in my generation on the military.

The destruction of Presidential memorials, the establishment of so-called autonomous zones. If you ask these folks who are destroying these things, they don't even know who they are, but all that does is that represents authority.

Well, I was fortunate almost 20 years ago to become—well, I had a spiritual awakening, and I began to have this thirst for the Bible. And so I began to research the Bible and to try to run my business and to exhibit leadership skills and to deal with the issues of our culture based on Biblical history and what is going on in the Bible.

Well, Romans 13 is very clear about authority. God ordains all authority. And I encourage you to read Romans 13, because it will tell you and describe to you the issues involved with authority and what happens to a nation when those who rebel against authority, what can happen.

In fact, I also am involved in many Bible studies here in Congress, and it has been quite an education for me to

understand what is the relationship between God and government in our culture.

Obviously, we heard tonight that this Nation was founded based on people who came here seeking religious freedom. And so if you look at exactly why God ordained government 4,000 years ago, it was one thing, and that is to restrain evil. That is to deal with anarchy. That is to deal with exactly what we are faced with right now.

Mr. Speaker, Members of this body are turning away from God. We should be one voice here condemning this anarchy and evil we are seeing across this country.

Well, I believe the best way forward is for our State and local governments to step up. The Federal Government also has a unique role to play.

Like I said, Speaker PELOSI and Democratic leaders have shown time and time again that they would rather pass partisan, political messaging bills than work with Republicans on bipartisan legislation—like meaningful police reform.

My dear friend Senator TIM SCOTT has worked tirelessly to provide police reform that I believe will work for America. The police force needs it. They need our support. And I will tell you, they have my support. Yes, there are going to be bad outcomes. It is the human condition. We talked about that as well.

But there should be, at this time in the history of our country, under this pandemic, unprecedented bipartisanship. But, clearly, over the last few weeks, it shows that we would rather appease those on what we term the radical left than work toward a more perfect Union.

Please, my friends, please, America, wake up.

Mr. Speaker, I hope my colleagues across the aisle realize sooner than later that appeasing the mob will never stop. It will never be enough. It is just like government funding. I have seen that in reality with this pandemic. It is a feeding frenzy, and we are seeing it play out right before our eyes here.

And let me tell you something: We need to look and try to look into the future. Say, for example, if we were born today, when we look back and understand why we are leaving our children and grandchildren—and I don't know how many generations—400, 500 years—the obligation of this debt. I don't know of any nation in history that has done something like that. I mean, that in itself is a crisis.

Yet we are continuing to explode the debt. When I saw the appropriations package, I could not believe it. We are trying to fight the pandemic. Yes, we have created a lot of debt to deal with that, and, yes, you are going to have to deal with emergencies. But just to go and spend money that you don't have?

People say, well, this is taxpayer money. This is not taxpayer money, folks. This is maybe 400 to 500 years down the road. Now, how are you going to explain that to your children and grandchildren?

Mr. Speaker, there are seven influences in our culture: There is the church. There is family. There is education. There is arts and entertainment. There is the media. There is the government. And there is the business.

And where do those influences stand today?

The church has been mitigated. Our Founders—yes, they didn't do it perfect, but let me tell you, the church was a tremendous influence in the founding of this country. When they couldn't agree, they brought in the great ministers. And the ministers would reveal the Scriptures and tell those Founders: This is how you come together.

We don't have that here. I have never heard somebody stand up and say: This is what the Scripture says and this is why we need to come together, and this is how we need to move forward.

I did say on this House floor in a Special Order on Bible Week that I believe that the Bible has an answer to every problem we have got, if we just researched it and we had someone to come down and tell us how we should go. There are profits everywhere. We listen to them on Sunday mornings.

Come on, folks, we need wise counsel.

Then there is the family. The family has been devastated. Fifty percent of the children in this country are born in single-parent homes. I don't blame children for being angry. And single moms, I tell you, my heart goes out to them.

Education, you know, we took the values that God gave us out of the education system, and we are seeing the fruits of that right now.

Arts and entertainment are supporting everything out there that, frankly, is very difficult for us to understand. The media, the media is so biased today.

The government, the government is trying to fix everything. Let me tell you, the more problems we have in this society, the more this government has got to spend. Folks, there is not enough money in the world to fix a culture in anarchy. It won't work.

The business community, the business community is under siege. Like I said, the reason I ran for Congress is there was a war on small business.

Big business, I will tell you, I am disappointed in some of these large companies that are buying in to some of these things that we see today—the anarchy, the other things.

Mr. Speaker, I think it is time in America that we stand up and defend the Nation we love. And those who wish to harm it—yes, people ask me: Do you think we are under God's judgment?

I say: No, I think that would be a lot more difficult than what we are seeing right now.

When you are under the judgment of God, you have got to look back at what Israel went through. But I can tell you this. God could have stopped this pandemic like that. God can stop this anarchy like that. But God has removed his protection, in my opinion, from this Nation. And until we repent from our evil ways and confess our sin, then God will heal our land, and that is the only hope that we have.

Mr. ARRINGTON. Mr. Speaker, my colleague and brother in Christ speaks the truth. And as I said, we can pass all the laws we want, Representative ALLEN, but we cannot pass laws that change the human heart.

We must return to those core values, to that relationship with God to remember that the greatest commandment is to love God with all your heart, soul, mind, and strength, and to love your neighbor. And it is hard to find a lot of love in this world today.

Mr. Speaker, may I inquire how much time is remaining on my Special Order.

The SPEAKER pro tempore. The gentleman from Texas has 13 minutes remaining.

Mr. ARRINGTON. Mr. Speaker, the rise of socialism in this country is real. Probably in times past it was used hyperbolically against Big Government, liberals, but it is real, and it is hard to believe that such a destructive system of government and deceptive ideology has become mainstream in these United States. This beacon of freedom, this great experiment—not accident, but experiment—and liberty and democracy.

How do I know? Because people don't put their name to legislation on behalf of the 800,000 to a million American citizens they represent if they don't mean it.

□ 2030

H.R. 1 through H.R. 10 are just more government control, less freedom to we, the people, government takeover of elections, the Federal Government takeover of healthcare, taking over agriculture and energy and government seeping into every facet of our lives.

One of our central values, as we think about the defense of American values, is the value of freedom. And the central purpose of government is to protect our freedom. The central tenet of our democratic republic is that sovereignty resides, not in the State, but in we, the people.

There has been no other nation in the world, in the history of the world, that has done more because of that powerful force of freedom that elevates and unleashes the human spirit like nothing in the world, save and except the love of God, and no other country that holds freedom in such high regard and puts such a premium on freedom, on liberty, has done more to lift people out of poverty, to protect human rights and fundamental God-given freedoms.

No other nation has raised the standard of living or contributed to the quality of life, not only in this Nation, but in nations around the world, like the United States of America.

And I would submit, Mr. Speaker, that in large part, outside—save and except the providential hand and favor of Almighty God, that God that my colleague, Representative RICK ALLEN, implored us to return to, to repent and return and cry out for mercy—save and except for that, it has been freedom.

And this freedom is a remarkable thing. It is an attribute, it is a privilege, it is a responsibility, and people are literally risking their lives today—people will die this week just trying to get here.

They are not trying to get into Venezuela. They are not trying to get into Cuba. God bless those people and the poor citizens of those countries that don't have what we have that empowers us to be the envy of the world. And that is a tremendous responsibility.

And there is no doubt that is a core value. And I say: How are we losing this? How do we actually have a debate, a sincere debate, a legitimate debate, about government control, central planning, socialism as an ideology and as a system of government, when we have the backdrop of all of this history?

No, it is not perfect. We were striving for a more perfect Union. Imperfect people striving for a more perfect Union. And that is the legacy that has been handed to us. That is our mission and our calling.

I think about the erosion of the values we have talked about this evening. I think about the entitlement culture that we have created. I say ''we.'' I say Republicans and Democrats alike. We continue to expand the government as the answer to all that ails us, as the solution to every problem, with no regard for the cost and consequence.

$23 trillion before COVID; $4 trillion by the end of this year added on top of it. We will surpass our highest debt load per GDP in the history of this great Nation. Not since World War II have we been up over 108 percent debt-to-GDP. That is where we are heading.

And we have done that, and it has been at no cost. We don't hit anybody's pocketbook, and we don't cut someone's pet project and their favorite program to offset the cost.

So why wouldn't people think you can get everything for free? Why wouldn't we have created a generation of Americans that think things are really free, at no cost?

Well, there will be a rude awaking when the chickens come home to roost with respect to our fiscal affairs, because this $27–$28 trillion, on our way, is a deferred tax on our children. And it is unconscionable. It is immoral. And it is un-American for a generation of leaders to do that to our posterity.

On top of that, we have had the tyranny of usurpation of the will of the people. Listen, let's debate issues of immigration, let's debate all issues, and may the will of the people prevail. That is the way it works. Not by executive fiat, not by judicial activism, some judge making the determination of what is best. The people know what's best.

I believe that that government fiat and the tyranny of unelected bureaucrats and judges making policy decisions is another way we have accelerated the decline of this country, and we have moved away from these values.

I think now we are seeing maybe another phase of this. Mob tyranny, people running around in the streets destroying property, assaulting police officers and law-abiding citizens. It is just a free-for-all. No law, no order; chaos.

And our great American cities are just burning, I believe, in large part, because our local leaders in these cities, they are scared because they have been intimidated. And that is how the mob works, through fear and intimidation, and nobody is standing up to them.

But the people who have the resources, the people who are law-abiding contributors to those cities, and the best employers, they will eventually leave. But the poorest among our fellow countrymen in those cities, they can't go anywhere.

Mr. Speaker, I think the President is doing exactly what he should do. I am very sensitive to government intervention, and I think it is a very delicate thing when you intervene in civil affairs. That is a local and State issue.

But when you have this kind of mob violence that is unabated, when you have systems of law enforcement and local leaders that are overwhelmed and either unwilling or incapable of stopping it and you are risking the lives of our fellow Americans and their rights are being trampled and local law enforcement and Federal law enforcement officers are being assaulted and our buildings are being burned, Mr. Speaker, we have got to do something.

There is an appropriate way to engage, and this President has done that, through civil law enforcement officers of this Government to go protect that property, to protect those law enforcement and other Federal personnel, and to come alongside the local law enforcement there in Portland and Seattle so that they can keep some semblance of order and protection for their people. Because the local leaders have completely abdicated it.

And Americans all over are just scratching their heads and their hearts are breaking and they are tremendously concerned about what happens. And there is one thought that you just let it all burn to the ground, and that will be the lesson for Americans all over this country, in cities and communities, all over this country. We could do that.

Or we could say: You know what? Those are American citizens, by God. Those are American citizens, and nobody is coming to their help.

I hope we support this President as he is taking a measured approach to come alongside those local law enforcement officers who have been totally disrespected, dismissed, and either partially defunded or significantly defunded, and certainly hamstrung to do their job.

You watch as these criminals shoot fireworks in their faces and as they rough them up and call them names. It is just a sad scenario for a Nation as great as ours.

We are big enough to have the protests. That is as American as apple pie. Peaceful assembly, peaceful protest, speaking your truth to power, that is what made this country great. But what we are seeing in Seattle and Portland must stop. And we all must condemn it, Mr. Speaker.

And as for me, I stand with this President, and I say use every resource—use every resource in civil law enforcement to keep the peace, to protect our citizens and protect the taxpayers' Federal property in all these cities where their local leaders have completely lost control.

Mr. Speaker, thank you for the indulgence tonight, and I yield back the balance of my time.

HOUSE BILLS APPROVED BY THE PRESIDENT

The President notified the Clerk of the House that on the following dates he had approved and signed bills of the following titles:

March 26, 2020

H.R. 1365. An Act to make technical corrections to the Guam World War II Loyalty Recognition Act.

H.R. 4803. an Act to facilitate the automatic acquisition of citizenship for lawful permanent resident children of military and Federal Government personnel residing abroad, and for other purposes.

March 27, 2020:

H.R. 748. An Act to amend the Internal Revenue Code of 1986 to repeal the excise tax on high cost employer-sponsored health coverage.

April 10, 2020:

H.R. 4771. An Act to amend title 38, United States Code, to permit appellants to appear in cases before the Board of Veterans' Appeals by picture and voice transmission from locations other than facilities of the Department of Veterans Affairs, and for other purposes.

April 24, 2020:

H.R. 266. An Act making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2019, and for other purposes.

April 28, 2020:

H.R. 6322. An Act to make certain improvements in the educational assistance benefits under the laws administered by the Secretary of Veterans Affairs in the case of changes to courses of education by reason of emergency situations, and for other purposes.

May 29, 2020:

H.R. 943. An Act to authorize the Director of the United States Holocaust Memorial Museum to support Holocaust Memorial Museum to support Holocaust education programs, and for other purposes.

June 5, 2020:

H.R. 7010. An Act to amend the Small Business Act and the CARES Act to modify certain provisions related to the forgiveness of loans under the paycheck protection program, to allow recipients of loan forgiveness

under the paycheck protection program to defer payroll taxes, and for other purposes.

SENATE BILLS AND JOINT RESOLUTION APPROVED BY THE PRESIDENT

The President notified the Clerk of the House that on the following dates he had approved and signed bills and a joint resolution of the Senate of the following titles:

March 26, 2020:

S. 760. An Act to enable registered apprenticeship programs to better serve veterans, and for other purposes.

S. 1678. An Act to express United States support for Taiwan's diplomatic alliances around the world.

April 10, 2020:

S.J. Res. 66. A joint resolution providing for the appointment of Denise O'Leary as a citizen regent of the Board of Regents of the Smithsonian Institution.

June 16, 2020:

S. 2746. An Act to require the Director of the Federal Bureau of Investigation to provide information on suicide rates in law enforcement, and for other purposes.

S. 3414. An Act to authorize major medical facility projects for the Department of Veterans Affairs for fiscal year 2020, and for other purposes.

S. 3744. An Act to condemn gross human rights violations of ethnic Turkic Muslims in Xinjiang, and calling for an end to arbitrary detention, torture, and harassment of these communities inside and outside China.

ENROLLED BILL SIGNED

Gloria J. Lett, Deputy Clerk of the House, reported and found truly enrolled a bill of the House of the following title which was thereupon signed by the Speaker:

H.R. 1957. An Act to amend title 54, United States Code, to establish, fund, and provide for the use of amounts in a National Parks and Public Land Legacy Restoration Fund to address the maintenance backlog of the National Park Service, the United States Fish and Wildlife Service, the Bureau of Land Management, the Forest Service, and the Bureau of Indian Education, and to provide permanent, dedicated funding for the Land and Water Conservation Fund, and for other purposes.

ADJOURNMENT

The SPEAKER pro tempore. Pursuant to section 4(b) of House Resolution 967, the House stands adjourned until 9 a.m. tomorrow.

Thereupon (at 8 o'clock and 41 minutes p.m.), under its previous order, the House adjourned until tomorrow, Friday, July 24, 2020, at 9 a.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

4762. A letter from the Director, Bureau of Consumer Financial Protection, transmitting the Bureau's interim final rule — Treatment of Certain COVID-19 Related Loss Mitigation Options Under the Real Estate Settlement Procedures Act (RESPA), Regulation X; Interim Final Rule [Docket No. CFPB-2020-0022] received July 7, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

4763. A letter from the Director, Bureau of Consumer Financial Protection, transmitting the Bureau's interpretive rule — Truth in Lending (Regulation Z); Determining ''Underserved'' Areas Using Home Mortgage Disclosure Act Data received July 7, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

4764. A letter from the Associate General Counsel for Legislation and Regulations, Department of Housing and Urban Development, transmitting the Department's final rule — Federal Housing Administration (FHA): Section 232 Healthcare Facility Insurance Program--Updating Section 232 Program Regulations for Memory Care Residents [Docket No.: FR 6022-F-02] (RIN: 2502-AJ46) received July 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

4765. A letter from the Program Specialist, Chief Counsel's Office, Office of the Comptroller of the Currency, Department of the Treasury, transmitting the Department's final rule — Employment Contracts, Mutual to Stock Conversions [Docket ID: OCC-2018-0041] (RIN: 1557-AE21) received July 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

4766. A letter from the Acting Director, Office of Management and Budget, transmitting A Supplemental Update of the Budget for Fiscal Year 2021, pursuant to 31 U.S.C. 1106(a); Public Law 97-258, Sec. 1106(a); (96 Stat. 911) (H. Doc. No. 116—139); to the Committee on the Budget and ordered to be printed.

4767. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's Report to Congress on the Social and Economic Conditions of Native Americans: Fiscal Year 2016, pursuant to 42 U.S.C. 2992-1; Public Law 88-452, Sec. 811A (as added by Public Law 102-375, Sec. 822(12)); (106 Stat. 1299); to the Committee on Education and Labor.

4768. A letter from the President and Chief Executive Officer, Executive Vice President and Chief Financial Officer, Federal Home Loan Bank of Chicago, transmitting the Bank's Statement of the System of Internal Controls for 2019, pursuant to 31 U.S.C. 9106(a)(1); Public Law 97-258 (as amended by Public Law 101-576, Sec. 306(a)); (104 Stat. 2854); to the Committee on Oversight and Reform.

4769. A letter from the SVP/Chief Accounting Officer, Federal Home Loan Bank of Des Moines, transmitting the Bank's 2019 Management Report, pursuant to 31 U.S.C. 9106(a)(1); Public Law 97-258 (as amended by Public Law 101-576, Sec. 306(a)); (104 Stat. 2854); to the Committee on Oversight and Reform.

4770. A letter from the President and Chief Executive Officer, Federal Home Loan Bank of Indianapolis, transmitting The Bank's Statement on the System of Internal Controls for 2019, pursuant to 31 U.S.C. 9106(a)(1); Public Law 97-258 (as amended by Public Law 101-576, Sec. 306(a)); (104 Stat. 2854); ; to the Committee on Oversight and Reform.

4771. A letter from the Director, Office of Acquisition Policy, General Services Administration, transmitting the Administration's summary presentation of final rules — Federal Acquisition Regulation; Federal Acquisition Circular 2020-07; Introduction [Docket No.: FAR-2020-0051, Sequence No. 3] received July 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

4772. A letter from the President and Chief Executive Officer, Chief Operating Officer, Chief Accounting Officer, Federal Home Loan Bank of Pittsburgh, transmitting the Bank's Statement on the System of Internal Controls for 2019, pursuant to 31 U.S.C. 9106(a)(1); Public Law 97-258 (as amended by Public Law 101-576, Sec. 306(a)); (104 Stat. 2854); to the Committee on Oversight and Reform.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. CURTIS:

H.R. 7733. A bill to authorize the imposition of sanctions with respect to the deliberate concealment or distortion of information about public health emergencies of international concern, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ARRINGTON (for himself, Mr. REED, Mr. WENSTRUP, Mr. LAHOOD, and Mr. SMITH of Nebraska):

H.R. 7734. A bill to provide much needed liquidity to America's job creators; to the Committee on Ways and Means, and in addition to the Committee on the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KIND (for himself and Mr. KELLY of Pennsylvania):

H.R. 7735. A bill to provide a tax credit to live event venues that provided refunds on tickets for events that were cancelled due to the coronavirus pandemic; to the Committee on Ways and Means.

By Mr. ALLEN:

H.R. 7736. A bill to require elementary schools and secondary schools to provide an option for safe, in-person attendance during school year 2020-2021; to the Committee on Education and Labor.

By Mr. CARTER of Texas:

H.R. 7737. A bill to amend the Federal Pell Grant Program to support career training opportunities for young Americans; to the Committee on Education and Labor.

By Mr. CARTWRIGHT (for himself, Mr. ROONEY of Florida, Ms. BARRAGÁN, Mr. CÁRDENAS, Ms. MOORE, Mr. GRIJALVA, Mr. MORELLE, Mr. SAN NICOLAS, Mr. CASE, Mr. TRONE, and Mr. COHEN):

H.R. 7738. A bill to require the integration of climate-resilience considerations into all development work of the United States, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CASTEN of Illinois (for himself, Mr. COHEN, Ms. DEAN, Mr. FITZPATRICK, Mr. GARCÍA of Illinois, Mr. GONZALEZ of Texas, Ms. HAALAND, Mrs. HAYES, Mr. HECK, Ms. JACKSON LEE, Mr. LARSON of Connecticut, Ms. LEE of California, Mr.

TED LIEU of California, Ms. NORTON, Mr. SAN NICOLAS, Ms. SPEIER, Mr. VARGAS, and Ms. WILD):

H.R. 7739. A bill to establish eligibility requirements for education support professionals under the Family and Medical Leave Act of 1993, and for other purposes; to the Committee on Education and Labor, and in addition to the Committees on Oversight and Reform, and House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CHABOT:

H.R. 7740. A bill to prioritize support for small business concerns with 10 or fewer employees by setting aside funds and increasing access to funding and other assistance, and for other purposes; to the Committee on Small Business.

By Mr. CICILLINE (for himself, Mrs. BEATTY, and Mr. CARSON of Indiana):

H.R. 7741. A bill to promote airline passenger safety during the COVID-19 public health emergency; to the Committee on Transportation and Infrastructure.

By Mr. DAVIDSON OF OHIO (for himself and Mr. BUDD):

H.R. 7742. A bill to require the Attorney General to report on potential violations of Bill of Rights during the COVID-19 pandemic, and for other purposes; to the Committee on the Judiciary.

By Ms. DELAURO (for herself, Mr. KENNEDY, Ms. NORTON, Ms. HAALAND, Ms. OMAR, Ms. WILSON of Florida, Mr. SAN NICOLAS, Mr. LOWENTHAL, Ms. GARCIA of Texas, Mr. GARCÍA of Illinois, Mrs. WATSON COLEMAN, Mr. EVANS, Ms. JACKSON LEE, Mr. COOPER, Mrs. HAYES, Ms. LEE of California, Ms. BONAMICI, Mr. CÁRDENAS, and Ms. SPANBERGER):

H.R. 7743. A bill to require the Secretary of Housing and Urban Development to establish a national evictions database, and for other purposes; to the Committee on Financial Services.

By Mr. GOMEZ (for himself, Ms. DELAURO, Mr. DANNY K. DAVIS of Illinois, Mr. CARSON of Indiana, Ms. JUDY CHU of California, Mr. CISNEROS, Mr. GOTTHEIMER, Mrs. HAYES, Mr. HUFFMAN, Ms. JAYAPAL, Mr. KHANNA, Mr. LANGEVIN, Mr. LOWENTHAL, Ms. MOORE, Ms. NORTON, Mr. PANETTA, Mr. PASCRELL, Ms. PORTER, Ms. SÁNCHEZ, Mr. SAN NICOLAS, Ms. SHERRILL, Ms. SPEIER, and Mr. SUOZZI):

H.R. 7744. A bill to provide Federal reimbursement of qualified State paid leave programs, and for other purposes; to the Committee on Education and Labor.

By Mr. HARDER of California:

H.R. 7745. A bill to direct the Secretary of Agriculture to establish a grant program to address the effects of the COVID-19 pandemic on State and local fairs, and for other purposes; to the Committee on Agriculture.

By Mr. HILL of Arkansas (for himself and Mr. GONZALEZ of Ohio):

H.R. 7746. A bill to direct the Secretary of Education to establish a formula grant program to provide funds to assist educational agencies with expenses related to resuming educational activities during the 2020-2021 school year arising from the COVID-19 pandemic, and for other purposes; to the Committee on Education and Labor.

By Ms. KELLY of Illinois (for herself and Mr. MAST):

H.R. 7747. A bill to direct the Secretary of Veterans Affairs to submit to Congress an annual report on the Solid Start program of the Department of Veterans Affairs, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. KENNEDY (for himself and Mr. CÁRDENAS):

H.R. 7748. A bill to ensure that after a declaration of a major disaster affected States, local governments, and Indian tribal governments receive immediate approval for services and assistance provided under section 416 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act; to the Committee on Transportation and Infrastructure.

By Mr. LAHOOD (for himself and Mr. FERGUSON):

H.R. 7749. A bill to amend the Internal Revenue Code of 1986 to encourage the transfer of intangible property from controlled foreign corporations to United States shareholders; to the Committee on Ways and Means.

By Mr. LUJÁN (for himself, Mr. BUTTERFIELD, Mr. KENNEDY, Mr. LOEBSACK, Mr. MCNERNEY, Mr. CÁRDENAS, Mr. GRIJALVA, Mr. CASE, Mr. PASCRELL, Ms. NORTON, Mr. WELCH, Mr. O'HALLERAN, and Mr. VEASEY):

H.R. 7750. A bill to prohibit unfair or deceptive acts or practices in connection with the public health emergency resulting from COVID-19, and for other purposes; to the Committee on Energy and Commerce.

By Mrs. MILLER (for herself and Mr. MCKINLEY):

H.R. 7751. A bill to enhance the security of the United States and its allies, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PAPPAS (for himself and Ms. KUSTER of New Hampshire):

H.R. 7752. A bill to direct the Attorney General to establish a grant program to provide for the qualified accreditation and recertification of local law enforcement agencies, and for other purposes; to the Committee on the Judiciary.

By Mrs. RODGERS of Washington (for herself and Mr. RUSH):

H.R. 7753. A bill to direct the Secretary of Commerce, in coordination with the heads of other relevant Federal departments and agencies, to conduct an interagency review of and report to Congress on ways to increase the global competitiveness of the United States in attracting foreign direct investment; to the Committee on Energy and Commerce.

By Mr. RUSH:

H.R. 7754. A bill to establish licensing standards for law enforcement, and for other purposes; to the Committee on the Judiciary.

By Ms. SCANLON (for herself and Mr. RASKIN):

H.R. 7755. A bill to amend the Help America Vote Act of 2002 to increase voting accessibility for individuals with disabilities and older individuals, and for other purposes; to the Committee on House Administration.

By Ms. SCHAKOWSKY (for herself and Ms. CASTOR of Florida):

H.R. 7756. A bill to require online marketplaces to verify and disclose certain information regarding high-volume third party sellers of consumer products to inform consumers; to the Committee on Energy and Commerce.

By Mr. SCHRADER (for himself and Mr. MULLIN):

H.R. 7757. A bill to codify a statutory definition for long-term care pharmacies; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. AUSTIN SCOTT of Georgia (for himself and Mr. HAGEDORN):

H.R. 7758. A bill to provide for assistance to rural health, education, and public safety facilities affected by the COVID-19 pandemic, and for other purposes; to the Committee on Agriculture.

By Mr. SMITH of Missouri (for himself, Mr. MCKINLEY, Mrs. MILLER, Mr. LONG, Mr. ARMSTRONG, Mr. WESTERMAN, Mr. DAVID P. ROE of Tennessee, and Mr. FORTENBERRY):

H.R. 7759. A bill to amend title XVIII of the Social Security Act to authorize the Secretary of Health and Human Services to forgive the repayment, extend the timeline of repayment, and lower the interest rate of Medicare hospital accelerated payments made during the COVID-19 public health emergency, and for other purposes; to the Committee on Ways and Means.

By Ms. SPANBERGER (for herself, Mr. JOHNSON of South Dakota, Mrs. NAPOLITANO, Mr. FITZPATRICK, Mr. RASKIN, Mr. WELCH, and Mr. COX of California):

H.R. 7760. A bill to make a supplemental appropriation for the COVID-19 Telehealth Program of the Federal Communications Commission for the fiscal year ending September 30, 2020; to the Committee on Appropriations, and in addition to the Committee on the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SWALWELL of California (for himself, Mr. JOYCE of Ohio, Mr. CISNEROS, Mr. COOPER, Ms. DEAN, Mr. FITZPATRICK, Mr. HASTINGS, Mrs. HAYES, Mr. LARSON of Connecticut, Ms. LEE of California, Ms. MENG, Mr. MOULTON, Mr. ROUDA, Mr. RUPPERSBERGER, Ms. SCANLON, Mr. THOMPSON of Mississippi, Mrs. TRAHAN, and Mr. VARGAS):

H.R. 7761. A bill to provide for student loan forgiveness for public service workers whose employment may have been affected by the coronavirus disease 2019 (COVID-19) pandemic; to the Committee on Education and Labor.

By Ms. TORRES SMALL of New Mexico (for herself and Mr. HORSFORD):

H.R. 7762. A bill to provide continued support for workers during the COVID-19 pandemic, and for other purposes; to the Committee on Ways and Means.

By Mr. VELA (for himself and Mr. MOONEY of West Virginia):

H.R. 7763. A bill to direct the Secretary of Education to develop and disseminate an evidence-based curriculum for kindergarten through grade 12 on substance use disorders; to the Committee on Education and Labor.

By Ms. VELÁZQUEZ (for herself, Ms. MOORE, Mr. NADLER, Mr. ESPAILLAT, Mr. COOPER, Mr. RASKIN, Mr. SMITH of Washington, Ms. DELBENE, Ms. ROYBAL-ALLARD, Mr. WELCH, and Ms. NORTON):

H.R. 7764. A bill to temporarily modify child nutrition programs due to COVID-19, and for other purposes; to the Committee on Education and Labor.

By Mr. WALBERG:

H.R. 7765. A bill to amend title II of the Social Security Act to provide for a minimum annual cost-of-living increase for Social Security benefits, and for other purposes; to the Committee on Ways and Means.

By Mrs. WALORSKI (for herself and Mr. ARRINGTON):

H.R. 7766. A bill to amend the Internal Revenue Code of 1986 to increase the research

tax credit and provide better access to the credit for business startups; to the Committee on Ways and Means.

By Mr. WENSTRUP (for himself and Mr. ARRINGTON):

H.R. 7767. A bill to amend the Internal Revenue Code of 1986 to provide for credits against tax for domestic medical and drug manufacturing and advanced medical manufacturing equipment; to the Committee on Ways and Means.

By Mr. CONAWAY:

H. Con. Res. 104. Concurrent resolution expressing the sense of Congress that Hong Kong's loss of judicial and political autonomy would expose individuals residing in the United States to a judicial system subservient to the Chinese Communist Party, and that the United States should suspend its extradition treaty with Hong Kong until it can be certified that Hong Kong's judicial independence has been reestablished; to the Committee on Foreign Affairs.

By Mr. ALLRED (for himself and Mr. RESCHENTHALER):

H. Res. 1062. A resolution affirming the nature and importance of the United States-Iraq bilateral relationship, including security and economic components of the relationship; to the Committee on Foreign Affairs, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GOHMERT (for himself, Mr. BIGGS, Mr. HICE of Georgia, Mr. WEBER of Texas, Mr. HARRIS, and Mr. CRAWFORD):

H. Res. 1063. A resolution raising a question of the privileges of the House; to the Committee on House Administration.

By Ms. JOHNSON of Texas (for herself, Mrs. WATSON COLEMAN, Mr. CORREA, Mr. CISNEROS, Mr. THOMPSON of Mississippi, Mr. VARGAS, Mr. GARCÍA of Illinois, Ms. VELÁZQUEZ, Mr. CÁRDENAS, Ms. ESCOBAR, Mrs. NAPOLITANO, Mr. LOWENTHAL, Mr. SMITH of Washington, Ms. BASS, Mr. NADLER, Mr. SOTO, Ms. FUDGE, Mr. HIGGINS of New York, Ms. BARRAGÁN, Ms. CLARK of Massachusetts, Mr. EVANS, Mr. ESPAILLAT, Ms. PORTER, Mr. KENNEDY, Ms. JUDY CHU of California, Ms. OCASIO-CORTEZ, Mr. SABLAN, Mr. HASTINGS, Mr. BEYER, Mr. JOHNSON of Georgia, Mr. SERRANO, Mr. COHEN, Mr. KHANNA, Mr. LAWSON of Florida, Ms. SCANLON, Ms. SÁNCHEZ, Mr. MOULTON, Ms. BLUNT ROCHESTER, Mr. PANETTA, Ms. BONAMICI, and Mr. BLUMENAUER):

H. Res. 1064. A resolution supporting the goals and ideals of Black, indigenous, and people of color (''BIPOC'') Mental Health Awareness Month in July 2020; to the Committee on Oversight and Reform.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. CURTIS:

H.R. 7733.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8

By Mr. ARRINGTON:

H.R. 7734.

Congress has the power to enact this legislation pursuant to the following:

''The Congress enacts this bill pursuant to Section 7&8 of Article I of the United State Constitution.''

By Mr. KIND:

H.R. 7735.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of Article I of the U.S. Constitution

By Mr. ALLEN:

H.R. 7736.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1 of the United States Constitution

By Mr. CARTER of Texas:

H.R. 7737.

Congress has the power to enact this legislation pursuant to the following:

Section 8 of Article I of the U.S. Constitution

By Mr. CARTWRIGHT:

H.R. 7738.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3. To regulate commerce with foreign nations, and among the several states, and with the Indian tribes.

By Mr. CASTEN of Illinois:

H.R. 7739.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 Clause 1

By Mr. CHABOT:

H.R. 7740.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. CICILLINE:

H.R. 7741.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8.

By Mr. DAVIDSON of Ohio:

H.R. 7742.

Congress has the power to enact this legislation pursuant to the following:

Under Article I, Section 8 of the Constitution, Congress has the power ''to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or any Department or Officer thereof''.

By Ms. DELAURO:

H.R. 7743.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I of the United States Constitution and its

By Mr. GOMEZ:

H.R. 7744.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States

By Mr. HARDER of California:

H.R. 7745.

Congress has the power to enact this legislation pursuant to the following:

U.S. Const. art. I, sec. 8

By Mr. HILL of Arkansas:

H.R. 7746.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 1 of the United States Constitution.

By Ms. KELLY of Illinois:

H.R. 7747.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 or Section 8 of Article 1 of the Constitution

By Mr. KENNEDY:

H.R. 7748.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. LAHOOD:

H.R. 7749.

Congress has the power to enact this legislation pursuant to the following:

The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States; . . .

By Mr. LUJÁN:

H.R. 7750.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mrs. MILLER:

H.R. 7751.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. PAPPAS:

H.R. 7752.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18 of the United States Constitution states that ''Congress shall have the authority to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mrs. RODGERS of Washington:

H.R. 7753.

Congress has the power to enact this legislation pursuant to the following:

Article I, Sec. 8, Clause 3

By Mr. RUSH:

H.R. 7754.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Ms. SCANLON:

H.R. 7755.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section VIII.

By Ms. SCHAKOWSKY:

H.R. 7756.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

The Congress shall have Power . . . To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. SCHRADER:

H.R. 7757.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section I; and Article I, Section 8, Clause 18 of the United States Constitution.

By Mr. AUSTIN SCOTT of Georgia:

H.R. 7758.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Mr. SMITH of Missouri:

H.R. 7759.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Ms. SPANBERGER:

H.R. 7760.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Mr. SWALWELL of California:

H.R. 7761.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Ms. TORRES SMALL of New Mexico:

H.R. 7762.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3 of the U.S. Constitution.

By Mr. VELA:

H.R. 7763.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18: The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the forgoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Ms. VELÁZQUEZ:

H.R. 7764.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

The Congress shall have Power to . . . provide for the . . . general Welfare of the United States; . . .

By Mr. WALBERG:

H.R. 7765.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section I. All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

Section 8.

1) The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States.

By Mrs. WALORSKI:

H.R. 7766.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. WENSTRUP:

H.R. 7767.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 616: Mr. COLLINS of Georgia.

H.R. 804: Ms. SPANBERGER.

H.R. 906: Mr. GRIFFITH, Mr. PALAZZO, Ms. CLARK of Massachusetts, Mr. GREEN of Texas, Mr. LAMALFA, Mr. SCHIFF, Mr. WILLIAMS, and Ms. MATSUI.

H.R. 1329: Mr. HASTINGS.

H.R. 1554: Mr. LOWENTHAL.

H.R. 1643: Mrs. FLETCHER.

H.R. 1878: Mr. JOHNSON of Georgia.

H.R. 2468: Mr. VAN DREW.

H.R. 2848: Mr. PHILLIPS.

H.R. 3010: Ms. BROWNLEY of California, Mr. TAKANO, and Mr. KATKO.

H.R. 3654: Mr. FORTENBERRY and Ms. MCCOLLUM.

H.R. 4681: Mr. SERRANO, Mr. LARSON of Connecticut, Mr. KINZINGER, and Mr. WESTERMAN.

H.R. 4986: Ms. VELÁZQUEZ.

H.R. 5044: Mr. KIND.

H.R. 5481: Mr. BALDERSON.

H.R. 5871: Mr. PETERS.

H.R. 5873: Mr. GONZALEZ of Texas, Mr. OLSON, Mr. STEWART, Mr. FLEISCHMANN, Mr. RYAN, and Mr. CÁRDENAS.

H.R. 5916: Mr. GIANFORTE.

H.R. 5949: Mr. SWALWELL of California, Mr. SCHNEIDER, and Ms. WEXTON.

H.R. 5995: Mr. ZELDIN, Mr. BAIRD, and Mr. PERLMUTTER.

H.R. 6077: Mr. LAMBORN and Mr. WEBER of Texas.

H.R. 6233: Mrs. HAYES.

H.R. 6338: Mr. GOODEN and Mr. DESJARLAIS.

H.R. 6420: Mr. O'HALLERAN and Mr. COSTA.

H.R. 6729: Mr. EVANS.

H.R. 6805: Mr. WEBER of Texas and Mr. BILIRAKIS.

H.R. 6829: Ms. KUSTER of New Hampshire.

H.R. 7012: Mr. DESAULNIER.

H.R. 7027: Mrs. LEE of Nevada.

H.R. 7073: Mr. HECK.

H.R. 7078: Ms. BARRAGÁN and Mrs. HAYES.

H.R. 7142: Mr. HARDER of California and Mr. FITZPATRICK.

H.R. 7153: Ms. CASTOR of Florida.

H.R. 7154: Ms. NORTON.

H.R. 7158: Mr. COHEN and Mr. SAN NICOLAS.

H.R. 7216: Ms. HOULAHAN, Mr. ESPAILLAT, Mrs. FLETCHER, Mr. COHEN, and Mr.HARDER of California.

H.R. 7228: Mr. MORELLE.

H.R. 7235: Mr. KILDEE.

H.R. 7269: Mr. BACON.

H.R. 7272: Ms. NORTON and Mr. COHEN.

H.R. 7288: Mr. GRIJALVA, Ms. PINGREE, Ms. Craig, Mr. LOWENTHAL, Mr. VISCLOSKY, Ms. GABBARD, Mrs. NAPOLITANO, and Mrs. DAVIS of California.

H.R. 7328: Ms. PINGREE.

H.R. 7397: Mr. ROY.

H.R. 7414: Mr. KIND.

H.R. 7477: Mr. SAN NICOLAS.

H.R. 7490: Mr. THOMPSON of California.

H.R. 7508: Mr. KIM.

H.R. 7557: Mr. GRIJALVA.

H.R. 7569: Ms. JACKSON LEE, Mr. MCGOVERN, Ms. SCHAKOWSKY, Ms. HAALAND, Mr. DANNY K. DAVIS of Illinois, Mr. TRONE, and Ms. NORTON.

H.R. 7577: Mr. DAVID P. ROE of Tennessee.

H.R. 7606: Mr. BABIN, Mr. WRIGHT, and Mr. VEASEY.

H.R. 7615: Mr. REED and Mr. STEWART.

H.R. 7619: Mr. FITZPATRICK.

H.R. 7640: Mr. COLE, Ms. HAALAND, and Mr. MCGOVERN.

H.R. 7645: Mrs. HAYES.

H.R. 7647: Ms. BLUNT ROCHESTER, Mr. THOMPSON of Mississippi, Mr. SUOZZI, Mr. BUTTERFIELD, Mr. GALLEGO, and Mr. SAN NICOLAS.

H.R. 7679: Mr. KELLY of Mississippi, Mr. GIBBS, and Mr. HAGEDORN.

H.R. 7690: Ms. SPANBERGER, Mr. STAUBER, Ms. PINGREE, and Mr. ABRAHAM.

H.R. 7691: Ms. PINGREE, Ms. VELÁZQUEZ, Ms. BROWNLEY of California, Mrs. NAPOLITANO, and Mr. LOWENTHAL.

H.R. 7699: Mr. BALDERSON and Mr. FITZPATRICK.

H.R. 7710: Mrs. HARTZLER, Mr. CONAWAY, Mr. COLE, and Mr. HAGEDORN.

H.R. 7719: Mr. RUPPERSBERGER, Ms. MENG, Ms. KUSTER of New Hampshire, Mr. POCAN, Mr. EVANS, and Mr. SOTO.

H.R. 7724: Mrs. DEMINGS, Mr. TONKO, Ms. ROYBAL-ALLARD, Mr. CROW, Mrs. BUSTOS, Ms. BONAMICI, Mr. HASTINGS, Ms. ESHOO, Ms. BARRAGÁN, and Mrs. TORRES of California.

H.R. 7732: Mrs. MURPHY of Florida.

H.J. Res. 29: Mr. GARCIA of California.

H. Con. Res. 20: Mr. SCHNEIDER and Mr. JACOBS.

H. Res. 694: Mrs. LURIA.

H. Res. 821: Ms. SHALALA.

H. Res. 1042: Mr. MFUME and Mr. DOGGETT.

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PROCEEDINGS AND DEBATES OF THE 116th CONGRESS, SECOND SESSION

Vol. 166 WASHINGTON, THURSDAY, JULY 23, 2020 *No. 130*

Senate

The Senate met at 9:30 a.m. and was called to order by the President pro tempore (Mr. GRASSLEY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

We acknowledge today, O Lord, Your power, mercy, and grace. We need Your power, for the challenges we face require more than human wisdom. We need Your mercy, for we transgress Your love and fall short of Your glory. We need Your grace, for we cannot offer anything to merit Your favor or gain Your love.

Lord, empower our Senators for today's journeys. Give them confidence to draw near to You that they may find grace to help them in this time of need. May they pass their days in the companionship of Your everlasting presence. Lord, enable them to learn the stewardship of time, energy, and abundance. Guide their gifts with Your wisdom as You help them with their decisions.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The PRESIDING OFFICER (Mr. TILLIS). The Senator from Iowa.

Mr. GRASSLEY. Mr. President, I ask unanimous consent to speak for 1 minute in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

WELLES DECLARATION ANNIVERSARY

Mr. GRASSLEY. Mr. President, on this very day in 1940, Acting Secretary of State Sumner Welles issued a statement outlining U.S. policy toward the Soviet Union's annexation of the Baltic States. It began: ''During these past few days the devious processes whereunder the political independence and territorial integrity of the three small Baltic Republics—Estonia, Latvia, and Lithuania—were to be deliberately annihilated by one of their more powerful neighbors, have been rapidly drawing to their conclusion.''

It expressed the sympathy of the people of the United States for democratic self-government and, at the same time, articulated the policy of the United States to oppose predatory activities using force or the threat of force or any intervention in the affairs of another sovereign state. The United States continued to recognize the sovereignty of the Baltic States throughout about 50 years of Soviet occupation.

Things that go around come around. Now we have a historical footnote. Vladimir Putin has been trying to rewrite this history for his own devious purposes—reverting to the absurd Soviet claim that the Baltics in 1940 joined the Soviet Union voluntarily.

There are also clear parallels we ought to take notice of to this current Russian occupation of parts of the Republic of Georgia and the Ukraine. The principles in Secretary of State Welles' Declaration are as relevant today as they were 80 years ago.

CORONAVIRUS

Mr. GRASSLEY. Mr. President, on another issue—and more current—earlier this year, after the longest economic expansion in U.S. history, the government told the American people to stay home and businesses to close—the first time in 240 years of our country. Countless lives have been saved because Americans heeded their government's call. And at the same time, whether they wanted to or not, they were sacrificing for their fellow Americans.

There is no doubt that containing this virus has caused economic pain not seen since the Great Depression. Hopefully, we are racing toward a vaccine answer to this pandemic. In the meantime, Americans must continue to sacrifice, just as previous generations did for the sake of their neighbors, families, friends, and loved ones.

Make no mistake, we will beat this virus, and the United States of America will emerge stronger and even more prosperous than before.

Today, Senate Republicans, hopefully, will unveil an unprecedented expansion of previous assistance to help our country get through this crisis. As Finance Committee chairman, I look forward to introducing further assistance to individuals, relief for workers and employers, support for patients, providers, and foster youth, and additional flexibilities for State and local governments to fight this disease and the economic pain that has come before it.

I call on my colleagues to, once again, work together and not let partisan politics or gamesmanship get in the way of delivering for the American people.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. SCHUMER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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CORONAVIRUS

Mr. SCHUMER. Mr. President, faced with the greatest economic challenge in 75 years and the greatest public health threat in a century, we Senate Democrats have been waiting for months for our Republican colleagues in the Senate to get serious about another round of emergency relief for the American people.

Now that Senate Republicans have finally woken up to the calamity in our country, they have given up wishing it would go away, following the President's wishing everything would go away, to the detriment of this country. Our Republican colleagues have been so divided, so disorganized, and so unprepared that they have to struggle to draft even a partisan proposal within their own conference. This is before they talk to a single Democrat. This is before they even consider what the House has done.

It does seem that sometime soon, Republicans may finally unveil a legislative proposal, but because they are so disorganized and divided, they can't agree on a series of smaller bills that don't even amount to one coherent proposal. Even after all this time, it appears the Republican legislative response to COVID is ununified, unserious, unsatisfactory. Let me repeat that. Despite hitting the ''pause'' button on the Senate for 3 months, despite waiting more than 60 days after the House Democrats passed their plan to start work on their own, the Senate Republican response to COVID is ununified, unsatisfactory, and, fundamentally, unserious.

From what we know, their proposal or series of proposals will not include food assistance for hungry kids. Families where the parent has lost a job through no fault of her or his own can't feed their kids in this proposal, as we hear about it.

From what we know, it will not include rental assistance or extend the moratorium on evictions that is keeping tens of millions of Americans with a roof over their heads. Millions of Americans have lost their jobs through no fault of their own. They can't pay the rent or the mortgage, and our Republican friends say: Evict them.

It will not provide hazard pay to our essential workers, who have been risking their lives and their families' lives ever since this crisis began. It will not make the necessary investments in communities of color that have been ravaged by this virus disproportionately so. It will not provide the new funding that State and local governments need to keep the busdrivers and sanitation workers, teachers, and so many others on the job. From what we know, it will not even include funding to ensure that our elections are safe this fall during this COVID crisis.

Remarkably, the likely centerpiece of the Republican legislative response to COVID is not an aid package for the 20 to 30 million unemployed Americans or a massive influx of resources to test and trace and finally stop the spread of this evil disease. The centerpiece of the Republican proposal is a liability shield to protect big corporations from lawsuits if they put their workers at risk—seriously. As COVID continues to surge throughout our country and unemployment numbers rose again for the first time in weeks, Leader MCCONNELL has made corporate immunity the centerpiece of this Republican response. Once again, the Republican Senate is far more comfortable providing relief to big corporations than relief to American workers and American families.

How about instead of shielding corporations from liability, we shield renters from eviction? How about instead of shielding corporations from liability, we shield the unemployed from poverty?

Even in those areas where the Senate Republicans seem to be moving a bit in our direction, it looks like they are coming up way short. Republicans aren't talking about providing enough resources for our schools to reopen safely. According to reports, the White House and Senate Republicans want to extend the enhanced unemployment benefits the Democrats secured in the CARES Act but only provide a percentage of a worker's former wage.

That is right, America. If you have lost your job through no fault of your own and can't go back to work because this administration has mismanaged the crisis, Republicans want you to take a 30-percent pay cut in the middle of this crisis.

Worse still, because Republicans dithered and delayed for so long, there will be an interruption in unemployment benefits. Eviction protections will expire no matter what we do because they waited until the last minute and, even at this last minute, can't seem to get their act together.

Leader MCCONNELL and Senate Republicans dismissed the House-passed Heroes Act because it included a few items that Republicans didn't think were absolutely necessary.

Senate Republicans can't even get their act together to provide the basics—food for kids, keeping Americans in their homes, preventing the unemployed from going into poverty, and giving the economy the needed help so we can overcome this recession.

You can't say you support essential workers and then refuse to give them hazard pay. You can't say you want to fix racial issues and then throw millions of Americans of color out of housing and off unemployment benefits during a pandemic. You can't say you want to honor John Lewis and then refuse to provide funding for safe elections.

Congress needs to act quickly, but the developing Republican proposals are not going to get the job done. We need to immediately enter bipartisan, bicameral negotiations to develop a proposal that actually meets the moment and matches the scale of the crisis.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. HYDE-SMITH). Without objection, it is so ordered.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

LEGISLATIVE SESSION

NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2021—Resumed

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of S. 4049, which the clerk will report.

The senior assistant legislative clerk read as follows:

A bill (S. 4049) to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

Pending:

Inhofe amendment No. 2301, in the nature of a substitute.

McConnell (for Portman) amendment No. 2080 (to amendment No. 2301), to require an element in annual reports on cyber science and technology activities on work with academic consortia on high priority cybersecurity research activities in Department of Defense capabilities.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

VOTE ON AMENDMENT NO. 2080

Mr. MCCONNELL. Madam President, I know of no further debate.

The PRESIDING OFFICER. If there is no further debate, the question is on agreeing to amendment No. 2080.

The amendment (No. 2080) was agreed to.

VOTE ON AMENDMENT NO. 2301, AS AMENDED

The PRESIDING OFFICER. The question is on agreeing to amendment No. 2301, as amended.

Mr. MCCONNELL. Madam President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

The result was announced—yeas 88, nays 12, as follows:

[Rollcall Vote No. 138 Leg.]

YEAS—88

Alexander	Fischer	Reed
Baldwin	Gardner	Risch
Barrasso	Graham	Roberts
Bennet	Grassley	Romney
Blackburn	Hassan	Rosen
Blumenthal	Hawley	Rounds
Blunt	Heinrich	Rubio
Boozman	Hirono	Sasse
Brown	Hoeven	Schatz
Burr	Hyde-Smith	Schumer
Cantwell	Inhofe	Scott (FL)
Capito	Johnson	Scott (SC)
Cardin	Jones	Shaheen
Carper	Kaine	Shelby
Casey	King	Sinema
Cassidy	Klobuchar	Smith
Collins	Lankford	Stabenow
Coons	Leahy	Sullivan
Cornyn	Loeffler	Tester
Cortez Masto	Manchin	Thune
Cotton	McConnell	Tillis
Cramer	McSally	Toomey
Crapo	Menendez	Udall
Cruz	Moran	Van Hollen
Daines	Murkowski	Warner
Duckworth	Murphy	Whitehouse
Durbin	Murray	Wicker
Enzi	Perdue	Young
Ernst	Peters	
Feinstein	Portman	

NAYS—12

Booker	Kennedy	Paul
Braun	Lee	Sanders
Gillibrand	Markey	Warren
Harris	Merkley	Wyden

The amendment (No. 2301), as amended, was agreed to.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The assistant bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Calendar No. 483, S. 4049, a bill to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

Mitch McConnell, Mike Crapo, Pat Roberts, John Cornyn, John Barrasso, Cory Gardner, Roy Blunt, Thom Tillis, Marsha Blackburn, Mike Rounds, Shelley Moore Capito, Kevin Cramer, John Thune, James M. Inhofe, Jerry Moran, Joni Ernst, John Boozman.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on S. 4049, a bill to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

The yeas and nays resulted—yeas 86, nays 14, as follows:

[Rollcall Vote No. 139 Leg.]

YEAS—86

Alexander	Feinstein	Peters
Baldwin	Fischer	Portman
Barrasso	Gardner	Reed
Bennet	Graham	Risch
Blackburn	Grassley	Roberts
Blumenthal	Hassan	Rosen
Blunt	Hawley	Rounds
Boozman	Heinrich	Rubio
Braun	Hirono	Sasse
Burr	Hoeven	Schatz
Cantwell	Hyde-Smith	Schumer
Capito	Inhofe	Scott (FL)
Cardin	Johnson	Scott (SC)
Carper	Jones	Shaheen
Casey	Kaine	Shelby
Cassidy	King	Sinema
Collins	Klobuchar	Smith
Coons	Lankford	Stabenow
Cornyn	Leahy	Sullivan
Cortez Masto	Loeffler	Tester
Cotton	Manchin	Thune
Cramer	McConnell	Tillis
Crapo	McSally	Toomey
Cruz	Menendez	Udall
Daines	Moran	Warner
Duckworth	Murkowski	Whitehouse
Durbin	Murphy	Wicker
Enzi	Murray	Young
Ernst	Perdue	

NAYS—14

Booker	Lee	Sanders
Brown	Markey	Van Hollen
Gillibrand	Merkley	Warren
Harris	Paul	Wyden
Kennedy	Romney	

The PRESIDING OFFICER (Mr. SCOTT of Florida). On this vote, the yeas are 86, the nays are 14.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Mr. President, I ask for the opportunity to address the issue before us.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROTESTS

Mr. MERKLEY. Mr. President, across America, crowds have been assembling, saying: This is a moment in which we must not only have a national conversation about public safety and racism, but we need action. We need to change the scenario that exists in so many places where public safety departments have seen one group of citizens in a community as their clients and another group of citizens as the threat, which leads to systemic racism, differences in approach depending on the color of the skin of the person that you are dealing with. It may be as simple as saying: Let's stop that person. They have dark skin, and they are driving through this neighborhood, and maybe they don't belong here. Let's stop that person because they have dark skin, and maybe they are dealing drugs.

That is systemic racism and profiling.

This is a discussion about what value we should aim for here in America. That value is that every member of the community is a client; that there is the goal of providing equal public safety services to all and treating each and every person the same regardless of the color of their skin; and to have each public safety officer say ''How would I respond differently if I saw three young teenagers running toward a house and they were Black rather than White?'' and taking that into account and saying ''Would it change that? Would I respond the same?''

They are all our clients. We are here to serve everyone. That is the national discussion. People come into the streets and protest.

This is a group of African-American, Black American protesters in Oregon. One of them is wearing a T-shirt saying ''We March, we sit down, we speak up, we die.''

When I read that, I was thinking about the experience I had a number of years ago when a Black American was working with me rebuilding a house, helping me out for a few weeks. We went out into suburban Maryland. This was back in the 1980s. We were trying to find a particular part or piece of equipment. We didn't know where that speciality store was. We pulled up next to a sheriff. The sheriff's car had two White sheriffs in it and a shotgun propped up between the seats.

I said to my friend: Hey, roll down your window and ask those sheriffs where this place is.

He started to roll down the window. He looked over and saw the two White sheriffs with the gun between them, and he never said a word. He just turned back. He looked straight ahead, and he looked terrified.

I saw those sheriffs as people who work for me—who should work for everyone—and we could ask them for their help. He saw them as people who—if he started a dialogue with them, he might end up in deep trouble, in physical harm. That is what this conversation is about. That is what we are seeking to change in America.

This idea of protesting for change is as American as apple pie. This is as American as the American Revolution, people standing up and saying: This is not right. Freedom of speech and freedom of assembly are core values of what it means to be a ''we the people'' republic.

These protesters—often African American, often of many races—have been coming together. There have been some folks—often younger folks—who have come to cause a bit of trouble that goes beyond simple protesting.

We had a challenge in Portland of White extremists—often dressing in camouflage, antifa members who are looking for a fight—conflicting, often late at night. Portland has worked very hard to deescalate that situation—to deescalate it, to empower the message that the protesters are bringing about restructuring systemic racism, ending systemic racism. These acts, these conflicts, take away from that message.

As they worked so hard to deescalate, along came President Trump. Trump had a different objective: He wanted to escalate violence on the

streets of Portland. I can tell you, there is a huge difference between protesting and making your message known and respecting that and having a government that respects it. It is our government, our ''we the people'' government. And this a government—an Executive in the Oval Office who deploys Federal forces to create chaos and violence and to attack peaceful protesters.

I have come to the floor twice in the last 2 days to go through and show the camouflaged, battle-ready troops deployed by Trump who are coming in a secret fashion, eliminating any indication of whom they work for. Are they Customs and Border Protection? Are they Federal Protective Service? Are they U.S. Marshals? They have no identity and have stripped all their unique identifiers, which means they can club a peaceful protester, they can shoot them in the head, and nobody knows who did it because there is no ID on their uniform. There is no accountability and no discipline and outrageous attacks on peaceful protesters.

I was here speaking yesterday, and I asked for consideration be given on this floor for my amendment to end secret policing. It is a very simple amendment that says: You wear identification of your agency. You wear a unique identifier. You don't go outside your mission of protecting a Federal building unless you are in partnership with a Governor or a mayor. It is that simple. So simple.

But my Republican colleague came down and objected to consideration of this amendment. I think, in essence, he didn't believe the story I am presenting. He didn't believe the story I am telling you about peaceful protesters being attacked. Maybe because it is so outside the conception of what a President would do, the thought is just hard to acknowledge, that we have a President who embraces this secret police strategy of assaulting peaceful protesters and grabbing people out of the crowd and throwing them into unmarked vans. It is hard to imagine.

It is hard to imagine a President of the United States admiring authoritarian dictators across the planet, but we have a President who admires the authoritarian dictator-style tactics of Duterte in the Philippines and who admires the Crown Prince, who assassinated and dismembered an American-based reporter for the Washington Post. We have a President who admires Putin, who crushes the civil rights of his people. We have a President who admires the strong-arm tactics Erdogan is employing in Turkey. That is what we have. Until now, he didn't bring the secret police to the streets of America; now he has.

I am going to try a different way of conveying what is going on and do it in the voices of women who were there at the protests 2 nights ago to try to convey what is happening on the streets of Portland and how terribly, terribly wrong it is.

The message ''All Mothers Were Summoned When He Called Out to His Mama'' is a reference to George Floyd dying with a policeman's knee on his neck, cutting off either his air or his carotid artery, blood supply to his brain or both, killing him. So mamas have responded. They said: Let's go join the protesters as well. Surely this is not the case, that they are attacking peaceful protesters.

They formed a group who went down, and they did things like dancing and chanting and handing out flowers, like this woman here. Isn't she beautiful? She is coming down, holding a sunflower. Others were holding mums.

It is unimaginable that a President of the United States would send Federal troops to attack women like this, holding peaceful flowers and dancing and singing in the streets. But they were scared because they knew that peaceful protesters had been attacked previously, so some of them wore goggles, and some of them wore bike helmets.

But let's hear from the women in their own words. Two of these women work on my team. I didn't know they were going to go down. I didn't know until last night that they had gone down the previous night, that they had been there. They had experiences, and they chose to share their experiences. I have maybe another five or six things that women wrote up about their experiences and posted them. I will try to share those, reading it in their voice.

The first one is from Stacey Jochimsen:

I joined the Wall of Moms in Portland on Tuesday night to support black and brown Americans and voice my concerns about police violence in our city. I showed up in cut off shorts and a yellow shirt—the identifier for the Portland Wall of Moms—I was wearing sneakers and carrying yellow mums and sunflowers that other moms had gifted me on my way in.

We participated in hours of dancing, chanting, and singing. It was a beautiful protest on a warm Oregon night. I saw no violence, I felt safe. We were demanding change. We were standing up for our black and brown brothers and sisters; we were there to amplify their voices. Was there graffiti? Sure there was. Graffiti is not violence.

At around 11 p.m., the Wall of Moms was called to the front of the federal courthouse. We went. We stood—arms linked—facing the building, creating a wall of protection between protesters and the building. We were moms called to use our privilege to keep others safe, and we tried.

While we stood, arms linked, officers in fatigues and gas masks (we assume were federal, they were unidentified) rushed from the building and from behind us. There was no warning. They took a woman to the ground and hog-tied her on the steps of the Courthouse. They swiped at cell phones and yelled at us from behind gas masks. They pointed weapons at us. Us. We were non-violent, peaceful demonstrators. We were moms in Converse sneakers holding flowers. I am still trembling at the sight of their weapons pointed at us. I have never felt so threatened and unsafe as I did at that moment. I had the realization that these officers really are not here to protect, they are here to harm. Were we going to be shot? Would I be struck in the head by a canister? Am I going to make it home to my children?

We held our line as they threw flashbangs and shot tear gas canisters at us. I was peaceful, I was standing still and holding hands with women around me—surely they would not shoot at me. I could feel the women on both sides of me trembling. The officers pointed their weapons at us. I put my hands in the air and begged them not to hurt us. They shot more tear gas. The tear gas overwhelmed us—the pain was unimaginable. It burned my eyes, my throat, my skin. I did not bring goggles or a helmet to this protest. I wore a tank top and shorts. Why would I need a helmet and goggles at a peaceful protest?

I coughed to the point of vomiting. We ran. Fellow protesters came to us with water bottles and helped clean our eyes. Another brought wipes to clean our skin. We coughed, we vomited, and we cried.

Today, I am still shaking. I cannot focus. I am scared. I am jumping at loud noises. My heart is racing simply recalling the events of last night. I am worried about what the federal officers are going to do to my fellow Oregonians tonight.

Let me be clear: there was violence on Tuesday night, but none of it was from protesters. The only violence I encountered that night was from federal police officers.

I am grateful that I made it home to my kids last night. Others were not so fortunate.

Thank you, Stacey, for sharing your firsthand account of the night before last—Tuesday night—on the streets of Portland, when Federal officers attacked peaceful demonstrators, where there was no violence except the violence of the officers on the protesters.

This next recounting is from Amy Bacher.

She writes:

Pre-protest normalcy. There are people hanging out in a downtown park by the Justice Center. They are wearing masks, playing music, and, thanks to Riot Ribs, eating free food. The Wall of Moms gathers a short distance from there, where they hand out sunflowers and yellow carnations. Protective gear is also distributed, like helmets, due to issues with the Federal police firing ammunition. Medics hand out water and other safety gear to everyone to try to keep protesters safe.

Usually, about a few hours into the protests, the secret police come out. It is unclear who they are now because there are no markings for what unit—who they are with—and they fire at the protesters. When it was the Portland Police Bureau, they were allowed to have their badges covered.

My experience yesterday included the following: About 2,000 people gathered, chanted, gave speeches, and danced in the blocks in front of the Justice Center and Federal Building in the name of Black Lives Matter. People were serious about wearing masks. A small, white plane circled the protest area repeatedly. It appeared to be the same or similar aircraft of the plane that circled earlier protests around Revolution Hall. There were a few protesters trying to block a door of the Federal Building and post graffiti. One of the chants we shouted in front of the Federal Building was, ''Tell me what democracy looks like.'' Then ''this is what democracy looks like.'' We were all using our voices.

The next moment, though, about 15 to 20 large men in camouflage and military gear appeared like they were ready for war. They had no name tags or identifiers. We had no idea if they were soldiers, what branch they were from, or why they were there. Almost all of them were holding pepper spray guns

and looked like they had customized sidearms. They stood under the eaves of the Federal Building. The Wall of Moms were there in yellow T-shirts, stretch pants, and sneakers, basically. There was a long line—more than a block long—facing the Federal Building. We were trying to stand in front of all the other protesters who had already been gassed for some 50-plus days, thinking that Trump's military would not fire on moms. We were wrong. There was no ask by officers in front of us to step back, move, or do anything at all. The officers started kicking tear gas directly at us, shoving a nearby mom in the neck, and pepper-spraying another mom in the face at close range.

I had not been tear-gassed before and can't believe that it's allowed, especially with such frequency. It produces violent and immediate bodily reactions and should not be used on peaceful protesters. There is a near-immediate reaction. You can't see without pain of blinking. It feels like you are inhaling fire into your lungs and like your skin is being burned. My lungs are still burning 24 hours later. These are weapons of war that should not be used on Portlanders exercising their constitutional right to freedom or assembly. If, after 54 days, officers are still using these weapons of war and it is not working, we should be asking why—why they are still deemed effective or legal. Just before the first tear gas was thrown, three to four of the other officers tackled a woman to the ground and hog-tied her. We didn't see where she was taken. At least four women were arrested from that group.

Then she gives a reference to the story on the web and how to find it. She also notes that Federal agents pepper-sprayed the first aid tent, which could be a crime when done in war.

Federal agents went by the Riot Ribs free food cart in the park and pepper-sprayed the food and the grilles.

That is where she ends her commentary.

Thank you very much, Amy, for sharing your story of what happened the night before last.

I hope that all of America is recognizing that what we would never conceive of happening in America is happening—Federal agents, Federal officers, being deployed to attack peaceful protests. As these two women point out, there was graffiti, but it was not violent.

From one of the other letters I am about to read, I note:

There were young folks pounding on the plywood that covers the doors of the Federal Building, but that, too, wasn't violent. The only violence came from the Federal officers.

This next story was posted by Krista. She writes:

So the nonviolent Wall of Moms just got gassed for absolutely no reason.

Then she puts in the tags ''PDX protest'' and ''Black Lives Matter.''

I don't need cookies for being there. Please. I have the privilege of taking the night off to let my lungs rest. Black and Brown people don't get to change their skin color to take a break from systemic and personal racism. Also, Black women have been on the frontlines for decades. The Wall of Moms is getting a lot of attention, but we are not the story. Abolishing racist systems and ending police brutality against people of color is the real story.

If you want to get involved but aren't able to go downtown, please consider making a donation to ''Don't Shoot Portland.''

Honestly, the leaf blowers helped so much on Monday. I was wishing that the dads would come out in force again Tuesday because the moms got gassed bad. It was brutal. I am still coughing and burning 4 hours later.

Come on, dads. Until we have meaningful change, the protests will continue. Don't give up yet.

Krista makes a point that I want to accentuate time and again: Black Americans have been protesting, putting their lives at risk night after night after night—all kinds of protesters coming together and all kinds of skin color coming together in order to say Black lives matter and that we have to end systemic racism.

My colleague is here to speak.

Madam President, I ask unanimous consent to reserve the balance of my time.

The PRESIDING OFFICER (Mrs. FISCHER). Without objection, it is so ordered.

The Senator from Connecticut.

Mr. BLUMENTHAL. Madam President, I thank my colleague from Oregon for his eloquence and for the power of his remarks. He speaks not only for Oregon but for America. He speaks for every one of our communities and States that ought to fear this overreach. It was, indeed, one of the main fears of our Founding Fathers that the misuse and abuse of our military and policing power—of violating fundamental rights—would encroach on our basic liberties.

Now, let's be very real. Federal forces were used before to restore order in the face of violence after the Rodney King incident, after the killing of Martin Luther King in 1968, in Little Rock in 1957, in Oxford, MS, in 1962, and in going further back in our history, after the Pullman Strike and after the Detroit race riots in 1943, but this time is different. This time is fundamentally different.

As my colleague has so powerfully described from the descriptions and the photographs that he has brought to the Senate floor, what we have here is not some violent encroachment by one group against another and not just some use of violence. We have peaceful protests. In fact, the purpose and effect of the use of Federal forces here has been to incite and fuel violence. It was the same purpose that Richard Nixon sought to use Federal force when protesters against the Vietnam war came to Washington. It was Richard Nixon who said that law and order was the political issue of his day, but the use of Federal forces here is not to restore order or to enforce the law. It is, instead, to incite lawbreaking and violence.

What is different also is the use of unidentified, military-like forces. We have seen a growth over the past years in the form of such forces that are available to the President to use. The Customs and Border Patrol, the Department of Transportation, and other agencies have militarized Federal law enforcement agents. They have put them in camouflage, and they have given them armaments. They have taught them tactics that, in effect, turn them into military-style forces. They have become secret police when they are unidentified. They are like the little, green men in Russia who show up at demonstrations and throw people into vans to disappear them. That is what they have been doing in Oregon. So whereas before the National Guard might have been called out as a show of force to restore order, now we have a perniciously different use of military force in the name of law enforcement.

I will say, as someone whose career as a U.S. attorney and then as an attorney general for 20 years was involved in law enforcement, I am ashamed and embarrassed to use, in effect, secret police in this way, supposedly in the name of law enforcement but, in reality, as a political tool. If you have any doubt about the political purposes here, just watch the latest Trump ads, which are the other side of this coin—raising fear, exhorting people to panic, and then responding on the streets in communities with this excessive use of force.

Exactly what our Founding Fathers feared was this unchecked use of military power. That is why the bill that my colleague from Oregon has introduced and that I have cosponsored is so very important, because there must be a check. Accountability is vital. Identification is key. People need to know who these people of law enforcement supposedly are, and we need accountability from them.

We also need accountability through the Insurrection Act. In having been joined by many of my colleagues, I have offered a bill, the CIVIL Act, that would apply these same checks on the President's power as apply when the President uses military abroad. He must be accountable to Congress. He must come to Congress and explain the purposes and the reasons for his use of military power. He should have no more leeway when he uses troops abroad than he would at home and vice versa. If he uses American troops against American citizens, he ought to be accountable no less than when he uses them abroad. The same is true of this policing power.

The importance of this moment cannot be underestimated. It is a moment of reckoning for racial justice, but for justice in our entire country. I believe that we must act on both sides of the aisle. We have an obligation to assure that this power is checked, because those police forces are coming to your city and your community—to Albuquerque, to Chicago, and, potentially, to Hartford, Stamford, and New Haven, CT, without the permission or invitation of our local officials.

Again, it is a fundamental difference between many past uses of political power and this one. And it may be rationalized or disguised as an effort to combat violence in the streets, but we know the purpose and intent and effect of the use of these policing forces.

So whether they are the Department of Justice or Homeland Security or Department of Transportation or the Secret Service, the goal is the same—to intimidate and incite, not to restore order.

The shame and disgrace to this Nation is palpable. When our allies, when people abroad look to the United States, they see us as an exception to the rule of force unchecked by the rule of law. Too often, force, not law, applies to subjugate rights. We are an exceptional nation because we believe in the rule of law, but what we are seeing right now is a corruption of the rule of law, in fact, using the disguise and misusing the name of law and order to push forward an agenda of hatred and bias and subjugation of basic rights. It is a shameful and tragic time for America.

My hope is Americans will rise up, that they will object with their voices and, ultimately, with their votes.

I yield the floor back to my colleague from Oregon.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Madam President, I thank my colleague from Connecticut for bringing his experience in the legal world to bear on this extraordinary development of secret police being deployed on the streets of America.

As we heard from the President, he wants to expand this model. It was first in DC. Then it was Portland. Now he is talking about Philadelphia and Baltimore, Chicago and Detroit, Oakland. In other words, all across America, as the President says, where there happens to be Democratic mayors, he wants to go create that same mayhem.

Thank you for bringing your expertise to bear on this.

I had just read the story from Krista about the moms and the protesters all getting, as she put, it ''GASSED BAD.'' She said, ''It was brutal. . . . coughing and burning 4 hours later.'' Then she closes with, ''C'mon dads . . . we have [to have] meaningful change. Don't give up. . . . ''

I was thinking about what I am describing, as I read these stories, or what these women are describing is the transition from this setting, where women are dancing; they are holding flowers; they are singing; they are chanting; they are eating ribs; and what unfolded a few moments later. And what unfolded?

Two of these stories, so far, have described the sudden appearance of large men in camouflage, armed with sidearms, who shortly started to shoot them, gas them, spray them, throw flashbang grenades, tackle them—in one case, hogtie a woman who was a few feet away.

And you can see how terrifying—these are men dressed for war against women dancing and holding flowers. This is beyond wrong. This is inconceivable. These unmarked, no agency, no unique identifier secret police—what my colleague just referred to like the little green men in Russia, coming to sweep people off the streets and throw them into unmarked vans.

These pictures, I understand, are from 2 nights ago, and people were describing to me how batons were brought down—one on the neck of a woman—how they were thrown to the ground. This is showing maybe some of that right there. I can't imagine how terrified this woman was.

Think about this: Within this week where we are recognizing John Lewis passing away—here is John Lewis on the Edmund Pettus Bridge being beaten by so-called public safety officers; I think they were Alabama police, but I am not sure who they were; they have badges; at least they weren't secret police—and this scene from 2 nights ago in Portland, these women being assaulted by these men ready for war with every armament you can think about, including impact projectiles; that is, rubber bullets and gas and flashbang grenades and batons, assaulting these women dressed in yellow T-shirts.

I want to stress, as this last letter did, that for weeks and weeks and weeks before there was a ''wall of moms,'' protesters of every race were coming down to say we must reform systemic racism in America, and they, too, were peacefully protesting, and they, too, were standing, often with arms linked.

The outrage over the Federal troops being deployed with these secret police tactics has swelled the numbers, including this most recent protest, but let's not think for a moment there haven't been people of great courage week after week, many of them organized and led by the Black population and Black leaders of Portland.

How is it possible—Edmund Pettus Bridge, where a little over a year ago I was standing with my daughter and John Lewis, remembering what happened back when, when out-of-control leaders sent well-armed men to brutally assault peaceful protesters, and now, once again, we have out-of-control men, the President of the United States, sending well-armed men to brutally beat peaceful protesters. How is this conceivable?

Protesters of all kinds have been working hard to basically say let's have public safety that works for all. But what is the President doing? While he is sending these forces to brutally beat peaceful protesters, he is running campaign ads, and here it is: ''You won't be safe in Joe Biden's America. Paid for by Donald J. Trump for President.''

He is deliberately assaulting peaceful protesters in order to run campaign commercials that say he is a strong man who can reduce violence in America.

Let us all beware how twisted this is, how evil this is, how wrong this is, how much of an assault on the civil liberties of Americans this is, and how much we have a responsibility, having taken an oath to the Constitution, to put an end to it, which is why I am down here for the third day in a row saying: Let's insist that Federal officers be identified by whom they represent, the agency. Let's insist Federal officers have a unique identifier. Let's insist that if their mission is to protect a Federal building, they are on the perimeter of the Federal building, not sweeping through the streets of Portland, throwing people into unmarked vans.

That is my amendment. That is the amendment I am asking to be considered on this floor. Isn't it our responsibility to debate when egregious things happen in America, like a strongman, authoritarian President trampling on the Constitution by assaulting peaceful protestors with Federal forces? Isn't it our responsibility to debate it and vote on whether secret police are allowed in the United States of America?

I have been reading these letters from the women who were down there. I will read one or two more, and then I am going to yield to my colleague from Oregon.

As the two Senators from Oregon, we have heard from hundreds of people who have been protesting peacefully over these weeks and how hard local leaders have worked to deescalate, and how Trump, sending in these Federal forces to beat protestors—peaceful protestors—has completely escalated the situation, rather than deescalating it, all so Donald Trump can run a campaign commercial and try to persuade you he should be President.

This story recounting is written by Joy, and she was down there with Krista, so she starts out:

> I don't know how my friend, Krista, managed to take a picture during the madness of this moment. I could not see anything and was struggling to breathe through the mass of foamy snot provoked by teargas that filled my mask.

And she had posted a picture that Krista had taken of her right after she had been gassed. I don't think I have the—do I have the picture? I might have. Let me see if we can—no. If I find it, I will put it up.

> Getting gassed was painful and scary, yet still I felt secure and cared for by the several helpers that aided us with water and saline eye washes. Several people checked in to see if we were ok and help. That is the beautiful part of this otherwise unpleasant image. This is me on my knees, being helped by strangers. The ugly part of this moment is what happened before this . . . the moment when federal agents blasted us with teargas and rubber bullets despite ZERO provocation from our line of moms . . . we were simply standing side by side with linked arms. That's it. For no apparent reason they shot at a bunch of moms without giving a single warning. Nope, no warning. No request to move. They just blasted away at us like they were playing a video game.

I yield to my colleague from Oregon and reserve the balance of my time.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Madam President, I want to thank my colleague for putting a human face—the face of Oregonians—on this Federal invasion of our State.

And I want to talk just for a moment and ask my colleague a question because, yesterday, here in Washington, as our constituents were finding this horrific invasion of their constitutional rights—the moms and others, when they were peacefully protesting—what we saw in the Senate Intelligence Committee, I say to Senator MERKLEY, was an example of just how disconnected the Trump administration is from reality as they try to find these figleafs to cover up for their violation of the constitutional rights of our citizens.

We had a nominee for a top legal position in the Trump administration—a top position, legal position, that is greatly going to affect the constitutional rights of the people we are honored to represent—the rights that are now being violated, as we have said repeatedly here on the floor.

The nominee's name was Patrick Hovakimian, and I asked him a couple of basic questions, questions that our constituents are asking.

I asked him: Do you believe that Federal forces can patrol American cities over the objections of State and local officials and away from Federal buildings?

That is something you and I get asked all the time by our constituents.

Then I also asked him: Do you believe that unidentified Federal forces in unmarked cars can drive around seizing and detaining American citizens?

This is also something we are very familiar with. I pointed out American troops, our soldiers who so courageously fight the terrorists, wear their identification. Again, he just ducked and bobbed and weaved. At one point—and then he repeated it—he said: Senator, just give my best wishes to the people of Portland.

I asked again for a responsive answer, and he wished us best wishes again for these people who are getting gassed, like Sharon Meieran—whom the Senator and I talked about, a personal friend of our family, an emergency room doctor—getting hit with a tear gas canister—''sending best wishes'' to the people you and I represent.

So it seems to me—and I would be interested in the Senator's thoughts because he has spent a lot of time thinking through where this is headed because we in Oregon were kind of the test tube. We were the people who were going to be first. The President has said that he is going on to other cities.

Both of us share a great interest in healthcare. I sure as hell wish that he would attack the coronavirus with half of the intensity with which he has attacked our cities. We are going to talk some more about that.

Let me get the Senator's reaction to what I think is the central question, and I really pondered this as we were listening to these nonanswers yesterday by a top Trump official. By the way, he is in a top position now in the Justice Department responsible for knowing about these legal issues that reflect the violations of the constitutional rights of our constituents, and then he gets a bigger job, a bigger role in these issues. I thought to myself, it seems to me, without drawing a line in the sand, America may be looking down the barrel of martial law in the middle of a Presidential election. I would be interested in the thoughts my colleague because I have been amazed at the number of Senators who have come up and said: You know, RON, that really seems to be what it has come down to.

My colleague is a student of history and has brought so much specific documentation, such as the cases he has been spelling out. I would be interested in my colleague's assessment of where he thinks this is going.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. I thank the Senator for asking for my thoughts on this.

Just before he spoke, I had described the story of Joy, who talked about the hit that her friend Krista had taken during this chaos after she had been gassed. I did check, and here is the picture of her. You can see her whole face is inflamed. There are so many people who can't see. They are dazed, and their lungs are on fire, and Patrick Hovakimian is sending best wishes to the people of Oregon.

It reminds me of a cartoon I saw when I was young in which Lucy goes out after it is observed how cold Snoopy is, out shivering on top of his doghouse during a snowstorm, and Lucy goes out and says ''Hope you stay warm,'' and goes back into her house. Yeah—''Best wishes, but I am not doing a thing to help you out.''

I would love for Mr. Hovakimian to say: I will come and stand there. I will see what is really going on, and if peaceful protesters are being attacked, that is simply unacceptable, and as a leader I will take it to President Trump and tell President Trump that we don't do secret police in America. We don't sweep people into vans, and if you really want me to take this position, that is what I am going to change the policy to because that is what you do in a republic. We are not a dictatorship.

That is what I would like to hear him say in response to your question to him.

You asked about martial law. Secret police operating as rogue operators outside the framework of law, outside of the cooperation of the Governor or the mayor sound like the equivalent of martial law to me.

Mr. WYDEN. Madam President, how much additional time does my colleague have?

The PRESIDING OFFICER. The junior Senator from Oregon has 26 minutes postcloture.

The Senator from Oregon.

Mr. MERKLEY. Madam President, I thank my colleague from Oregon for his intense representation of these legal issues and the role of the Intelligence Committee, noting that this has all the trappings of a President bent on the equivalent of martial law, operating in this rogue fashion, shredding the constitutional rights of people, sending Federal officers to attack peaceful protesters.

I was reading the stories of women who were down at the protests the night before last. The next one is from Stephanie.

She says:

I went downtown again last night to peacefully protest. To use my voice and my 1st Amendment rights. To feel safe—repeat: TO FEEL SAFE—against these anonymous federal agents. I wore:

—A bike helmet
—Goggles
—A double mask
—Ear plugs

And I was still terrified. The #WallofMoms stood locked, arm in arm, right up against the fence line at the federal courthouse. We stood between these federal agents dressed in war gear and unarmed protesters shouting behind us. Sweat poured down my back. The Moms stood for hours. On my bike ride home I texted [an individual] Geoff [not me] each time I stopped and called Amy . . . to have a ''buddy'' on the phone with me. Every time I heard a car, my heart skipped a beat. Is it a crew of federal kidnappers, ready to throw me into a van? This administration has been chipping away at our rights since day 1, but this past week in Portland has been an acceleration. Wake up, especially those supporting them. We are in a crisis of great magnitude and we are about to lose control.

Candace Jimenez, member of the Confederated Tribes of Warm Springs, said she came out to protest after the deployment of Federal agents, and said:

We have been dealing with that for 500 years. We understand the trauma, the terrorism, and the harm it causes.

Bev writes:

In less than eight hours, a group of moms helped me put together this #WallofMoms.

We tried in earnest to give the kids a break by shifting the pervasive narrative that protesters are rioters.

Case and point, we wore our whitest whites to show we weren't there to make trouble, we showed up to prove that the feds are the violent ones. . . . And we were right. Kids took down fences and did some skateboarding, two or three kids [banged] on walls, but the other people were peaceful.

I want to tell you that I didn't vomit or pee my pants after being gassed, but I did. I guess I lost control . . . and soon after I couldn't open my eyes.

To be clear, we moms weren't armed, [we weren't] throwing rocks, [we weren't] throwing water. That didn't happen.

We were gassed for chanting ''Leave the kids alone.''

I want you to think about what's happening in this country and ask yourself how you're going to help change it.

Heather was down at the protests, and I don't have her picture, her larger picture, but I can tell you that she posted a picture. She is very pregnant. How gutsy I think that is that she was there, even as she is about to give birth.

She writes:

I am . . . 9mo pregnant . . . and I stood between the police and the rest of the protesters last night with about 40 other moms. My unborn baby is the topic of many Twitter debates right now and symbolizes a thousand year old debate among those who want to stifle women's freedom. Right now I have even more power than usual and I am here to use it.

I am SAFE. Thanks everybody for your concern. But we are NOT OK.

Until all women can carry a pregnancy to term . . . and birth without worrying about unnecessary trauma and death we are not OK.

I show up for all of the pregnant women who have lost their babies or their lives at the hands of racist and sexist systems and people. I show up for the women who have had a hard time getting pregnant because of the everyday stress caused by racism. I march for all of the Black mothers who rightfully agonize about their children's safety outside of their homes. I march for anyone who has been injured physically or mentally by police brutality, citizen brutality, systemic inequity, intergenerational trauma and poverty. I march for the White people finally waking up—see me and get [me], get out, pay up, and listen! I march for all of us because this is a problem for ALL of us. When you say ALL lives matter take into account what you are doing in your life to improve the world for ALL people. . . . Are you worried about my unborn child? (please answer these questions in your hearts.) Get the hell out there and stand up for a better world for my baby and his generation.

Madam President, I reserve the balance of my time and yield to my colleague from Oregon.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Parliamentary inquiry, how much time does my colleague have on his hour remaining?

The PRESIDING OFFICER. The junior Senator from Oregon has 20 minutes.

Mr. WYDEN. Thank you, I will take a few, and we are very pleased that our colleague from Illinois is here and has been a very significant ally in this.

Senator MERKLEY, one of the reasons I so appreciate your taking this time is that it reminds me a bit of what Jews faced in the 1930s.

My family fled the Nazis in the 1930s. Not all of our family got out. My father's great-uncle Max was one of the last gassed in Theresienstadt, and Jewish families saw that a democratically elected government can transform into a murderous regime before the eyes of its citizens very quickly. There isn't any bright line when it happens, no cinematic moment where everything changes—just a moment, as we talked about earlier, in which bureaucrats and lawyers and police begin to follow the bidding of their leader while perverting the rules of their Republic.

This was not a singular event. From Europe to Asia to the Americas, democratically elected governments were undermined and replaced by authoritarian regimes—often while retaining the trappings of a democracy. Bureaucrats claimed they were just following rules, soldiers and police—just following orders. Then they just wished us best wishes.

Rarely did these leaders start with majority support, but terror, combined with the abuse of the elections process—which we are also very concerned about—allows them to claim power from the ballot box.

It seems to me you are laying out that it is our sacred duty to learn from this history, to bring this history to the floor and, as I tried to say with respect to the threat of martial law, to draw a bright line when a government, instituted to protect liberty, is being used to attack liberty. We shouldn't, we cannot, and we can't wait until we have a gun at our back to raise the alarm.

The government isn't going to defend itself. The same Attorney General that has taken an oath to defend the Constitution will sit idly by while citizens are detained without charge and violently assaulted by the government. The same police officer charged with defending our citizens will commit those assaults if that is what they are directed to do.

If the Executive and any government served by the bureaucracy will take all the power they can unless a brave judiciary and a strong legislature step up and, as you have outlined here on this floor, say: ''No more.''

This Congress has been way too pliant in yielding, and it has emboldened the executive branch, led by Donald Trump, to ignore the constraints that have traditionally protected our liberty.

So my question is—it seems to me you are standing up for these kinds of core values of freedoms that are what we stand for as Americans and that this has been the beacon all around the world for over a century. I believe what you are saying—and I think it would be helpful for you to put it in your own words—what you are saying is that we have to be out here working on your legislation and working on these key kinds of measures because without this effort, there is a real danger, on our watch, that the light of liberty will fade away? And it seems to me what you are saying is that we are better than this.

I would like your reaction to that because I think if you look at the march of history, which in the Wyden household is very, very personal—to have lost family to Hitler's murderous regime. I would like to hear your thoughts about this kind of challenge we face and how important the work in front of us is to make sure that light of liberty doesn't fade away.

Mr. MERKLEY. Madam President.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Madam President, my colleague described how his family was affected by fascism in Germany and how his family members died for fascism—attacking them, imprisoning them in concentration camps, and putting them to death. Don't we all believe that every German citizen should have stood up to that fascism and said: Not here; not by our government; not by our people.

That is exactly why we are on the floor right now to say: Secret police—not here, not by our government, and not allowed in our Republic. Sweeping people off the street into unmarked vans—not allowed, not here, not our government, and we will put an end to it. Gassing, assaulting, and batoning peaceful protesters on the streets of our city—not here, not allowed, and we will put an end to it.

I yield to my colleague, who I believe wishes to speak.

Mr. DURBIN. Madam President.

The PRESIDING OFFICER. The assistant Democratic leader.

Mr. DURBIN. Madam President, I would like to direct a question to the junior Senator from Oregon through the Chair.

I thank both my colleagues from Oregon. I especially thank my colleague Senator MERKLEY, who contacted me last weekend when the situation was unfolding in Portland and talked to me about his reaction to it and what he was hearing from the people of the State he represents.

Of course, there was genuine concern in the city of Chicago, which I am honored to represent, because this President in the White House had been taking swipes at that city for years now, and we fully anticipated that the atrocity that was occurring in Portland could occur in Chicago as well.

I just want to say to the Senator from Oregon: Thank you for your leadership on this. Thank you for bringing this issue to the floor and to the floor of the Senate.

This is an issue we should be voting on. We should have voted on it this week. There was no excuse for it. We have risen to the occasion before when a historic occurrence brings to our attention that the Senate should speak and express itself. We should have done it this week on the issue that you brought, and I hope we can resort to this issue quickly—if not today, as quickly as possible afterward.

I am a cosponsor of the legislation the Senator is offering, and it is basic. It is fundamental. As I recall, and I will ask the Senator from Oregon, what you are asking for is, if the Federal Government is going to send out the so-called law enforcement protective forces and such, that they identify themselves and that they not come into a community anonymously, without any indication of who they are.

I am reminded of the Russian invasion of Ukraine—eastern portions of Ukraine, the Donetsk region—and Vladimir Putin was very careful that his invaders not wear Russian uniforms. They were known as little green men. We have a comparable situation here where the Federal forces are not identifying the agencies they represent but coming to the streets of Portland in camouflage.

The Senator from Oregon, I would like you to please, if you would, respond. Has this not been the case? Has this been documented?

Mr. MERKLEY. To my colleague from Illinois, that is exactly right, as seen in this picture and the testimony of all those who are present.

Mark Morgan, the Customs and Border Protection Commissioner, said that is not the case, and he said: ''Our personnel are clearly marked as federal [law enforcement officers] & have unique identifiers.'' They were not. They are operating, as you say, like little green men, secret police.

Mr. DURBIN. I would like to ask another question through the Chair to the Senator from Oregon.

Is it not also true that many of these Federal agencies have defined responsibilities and defined areas of jurisdiction? For example, in the city of Chicago, as probably is the case in Portland, OR, there is a Federal protective service that has a specific building and facility and personnel in that facility that they are responsible for. Is that not the case in Oregon?

Mr. MERKLEY. That is the case.

Mr. DURBIN. And in this situation, have these Federal agents of some different agency or whatever extended their reach of jurisdiction beyond that Federal protective facility?

Mr. MERKLEY. They have.

Mr. DURBIN. How far?

Mr. MERKLEY. Well, they have been present in the streets. I don't know just how many blocks from the Federal building but certainly not just in the perimeter of the Federal property. They have swept through streets. They have vans that have gone through the streets. They have grabbed protesters and thrown them into vans. So they have departed significantly from, if you will, the mission of defending the Federal building.

Mr. DURBIN. Directing another question to the Senator through the Chair.

What has been the coordination of this Federal activity with local and State law enforcement in Portland, OR?

Mr. MERKLEY. Madam President, I request unanimous consent that our dialogue be credited to my colleague's 1 hour because I am afraid my minutes will run out.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MERKLEY. You asked about coordination. My understanding is that there was not an invitation from the mayor to come, and there was not a conversation with the Governor. There certainly was no conversation with Senator WYDEN and me and the other members of the delegation. The Portland police have indicated that they have not worked in cooperation with these Federal forces. They may have been engaged in what they call deconfliction, and I don't know the full extent of that.

Mr. DURBIN. Well, I don't know if I am on my own time at this moment or——

The PRESIDING OFFICER. You are.

Mr. DURBIN. Fine. So I will still continue, without objection, with colloquy between myself and the junior Senator from Oregon.

Let me say to the Senator that we were concerned at the beginning of this week, because of your experience, with what might happen in the city of Chicago. Senator DUCKWORTH and I sent a letter to the President of the United States expressing that concern.

I ask unanimous consent that the letter dated July 21, 2020, to President Trump, along with the press release dated July 22, 2020, describing its contents, be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

U.S. SENATE,
Washington, DC, July 21, 2020.

President DONALD J. TRUMP,
The White House,
Washington, DC.

DEAR PRESIDENT TRUMP: You have indicated that you may send additional federal agents to the City of Chicago to conduct policing activities that traditionally are handled by local law enforcement. We strongly urge you to refrain from taking this action, which is opposed by Governor Pritzker, Mayor Lightfoot and other local leaders. This week, we introduced legislation with other Senate Democrats to prevent you from overriding local authorities in this manner.

Any involvement by federal law enforcement in community policing activity must be conducted in coordination with, and with the approval of, local officials. In this time of heightened tension, we cannot have federal law enforcement operating at cross-purposes with local leaders.

In recent days, your Administration has deployed federal law enforcement agents in the streets of Portland, Oregon, without any visible identifying information. These federal agents have reportedly used excessive force against peaceful protestors and detained residents in unmarked vehicles. Such conduct is unacceptable anywhere in the United States and must not happen in the Chicagoland area.

On February 10, 2017, we sent you a letter suggesting a range of ways in which the federal government could play a helpful and supportive role in reducing violence in Chicago. We noted that ''[p]ublic safety is primarily a local responsibility, but the federal government must be an engaged partner in public safety efforts alongside local officials, law enforcement, and community stakeholders.'' We recommended that your Administration take steps to assist local violence prevention efforts, including:

Enhancing Department of Justice (DOJ) programs that improve community policing;

Directing DOJ to promote mentoring and job training programs for youth and formerly incarcerated individuals;

Improving mentoring and violence prevention initiatives and boosting funding for recidivism reduction programs;

Directing DOJ to abide by its commitment to help implement policing reforms recommended by the Department's Civil Rights Division;

Closing gaps in the FBI gun background check system and in federal firearm laws that enable straw purchasers and gun traffickers to flood Chicago's streets with illicit guns;

Prioritizing career and youth training programs to address lack of economic opportunity in neighborhoods hit hard by violence; and

Redirecting resources that you are devoting to construction of your border wall and committing those resources instead to the efforts discussed above.

It has been more than three years since then, and you have not replied to our letter nor followed through with our suggestions. We reiterate that these steps would be more effective in reducing violence in Chicago than replicating the destabilizing role that you have directed federal law enforcement to play in Portland.

With the right leadership, federal law enforcement can serve as valuable partners in supporting local efforts and helping reduce violence in American communities, rather than contravening local efforts and exacerbating tensions. It's not too late for you to demonstrate such leadership.

Sincerely,

RICHARD J. DURBIN,
U.S. Senator.
TAMMY DUCKWORTH,
U.S. Senator.

[Press Release, July 22, 2020]

DURBIN, DUCKWORTH STATEMENT ON EXPANSION OF DOJ OPERATION LEGEND TO CHICAGO

THE EXPANSION OF OPERATION LEGEND WILL CONSIST OF AN INCREASED FEDERAL LAW ENFORCEMENT PRESENCE FROM FBI, DEA, ATF, U.S. MARSHALS, AND HSI, FOCUSED ON PROVIDING SUPPORT TO EXISTING VIOLENT CRIME TASK FORCES

WASHINGTON.—U.S. Senators Dick Durbin (D–IL) and Tammy Duckworth (D–IL) today released the following statement regarding the Department of Justice (DOJ) announcing an expansion of Operation Legend to Chicago, Illinois. Operation Legend is DOJ's violent crime reduction initiative with the stated goal to provide support and assistance to state and local law enforcement partners as they work to combat violent crime, and gun violence in particular. Durbin and Duckworth are set to speak with U.S. Attorney John Lausch about Operation Legend today.

''After needless threats from the President, we're relieved the Trump Administration says they plan to work with local officials and authorities in Chicago rather than undermine local law enforcement and endanger our civil rights, as their agents have done in Portland. We will continue closely monitoring the Administration's efforts to ensure they follow through with this commitment.

''More than three years ago, we sent President Trump a letter suggesting a range of ways in which the Federal Government could work in partnership with local officials to provide support and resources to assist in public safety, violence prevention, and economic development efforts in Chicago. While we are hopeful that today's announcement means the Administration has reconsidered and will take a more positive approach, President Trump still has not replied to our letter nor followed through with our suggestions. We reiterate that these steps would be more effective in reducing violence in Chicago than any effort the Administration may take to replicate the destabilizing role it played in Portland.''

In their 2017 letter which they reiterated yesterday, Durbin and Duckworth recommended that the Trump Administration take steps to assist local violence prevention efforts, including:

Enhancing Department of Justice (DOJ) programs that improve community policing;

Directing DOJ to promote mentoring and job training programs for youth and formerly incarcerated individuals;

Improving mentoring and violence prevention initiatives and boosting funding for recidivism reduction programs;

Directing DOJ to abide by its commitment to help implement policing reforms recommended by the Department's Civil Rights Division;

Closing gaps in the FBI gun background check system and in federal firearm laws that enable straw purchasers and gun traffickers to flood Chicago's streets with illicit guns;

Prioritizing career and youth training programs to address lack of economic opportunity in neighborhoods hit hard by violence; and

Redirecting resources that are being devoted to construction of border wall and committing those resources instead to the efforts discussed above.

The expansion of Operation Legend will consist of an increased federal law enforcement presence in Albuquerque, New Mexico, and in Chicago, Illinois. This federal law enforcement presence will consist of experienced investigative agents from FBI, DEA, ATF, U.S. Marshals, and HSI, focused on providing support to existing violent crime task forces.

Mr. DURBIN. Madam President, I would say to the Senator from Oregon that the Department of Justice made an announcement yesterday that they were, in fact, sending, I assume, a number of Federal agents—150—into Chicago in pursuit of an operation known as Operation Legend. This is an operation which began July 8, 2020, by the Federal Government starting in Kansas City because of the death of a 4-year-old young man, Legend Taliferro, shot and killed in the early morning hours in Kansas City on June 29.

I received a phone call this morning from John Lausch, the U.S. attorney for the Northern District of Illinois, a man whom I was instrumental in selecting and supporting and still do support to this day—his professional activities—who gave me his personal assurance that what happened in Oregon was not going to happen in Chicago; that this Operation Legend, as he described it to me, was in coordination with State and local law enforcement in the city of Chicago, the State of Illinois, to make certain that their activities were coordinated and known in advance and that they were focusing on gun violence and drug trafficking in the city of Chicago.

I have also been alerted by Mayor Lori Lightfoot that she has received the same assurances and briefing, as well as Governor J.B. Pritzker of Illinois.

So our circumstances are different from the ones that Portland faced. I will tell you that we are going to hold Mr. Lausch and the Department of Justice and all others to their word that we will not see in Chicago anything like we witnessed in the streets of Portland, OR.

I just want to say in closing to the Senator from Oregon: Thank you for bringing this to our attention because when we were alerted—the Governor, the mayor of Chicago—Senator DUCKWORTH and I both jumped on this immediately and contacted the Trump administration for clarity about what was going to happen in Chicago. We have been given these assurances.

I ask unanimous consent that the lengthy press release, which describes the activities that are going to take place, again, with the knowledge and coordination of local law enforcement, be printed in the RECORD at this point.

There being no objection, the material was ordered to be printed in the RECORD as follows:

[Press Release, July 21, 2020]

DURBIN, DUCKWORTH CALL OUT PRESIDENT TRUMP ON REPORTS OF PLAN TO SEND SECRET POLICE TO CHICAGO

SENATORS INTRODUCE LEGISLATION TO BLOCK THE TRUMP ADMINISTRATION FROM DEPLOYING FEDERAL FORCES AS A SHADOWY PARAMILITARY AGAINST AMERICANS

WASHINGTON.—Following reports that President Donald Trump wants to send federal agents into cities, including Chicago, to conduct policing activities that are traditionally handled by local law enforcement, U.S. Senators Dick Durbin (D–IL) and Tammy Duckworth (D–IL) today sent a letter to President Trump calling on him to refrain from taking this action, which is opposed by Governor Pritzker, Mayor Lightfoot, and other local leaders.

''With the right leadership, federal law enforcement can serve as valuable partners in supporting local efforts and helping reduce violence in American communities, rather than contravening local efforts and exacerbating tensions. It's not too late for you to demonstrate such leadership,'' Durbin and Duckworth wrote.

Yesterday, Durbin and Duckworth joined Senators Jeff Merkley (D–OR), Ron Wyden (D–OR), and 17 of their Senate colleagues to introduce the Preventing Authoritarian Policing Tactics on America's Streets Act, which was also introduced as an amendment to the National Defense Authorization Act. The bill would block the Trump Administration from deploying federal forces as a shadowy paramilitary against Americans. The legislation comes after a week in which heavily armed, unmarked federal forces in unmarked vehicles were filmed grabbing protesters off the street in Portland, Oregon.

In February 2017, Durbin and Duckworth sent a letter to President Trump suggesting a range of ways in which the federal government could work in partnership with local officials to provide support and resources to assist in public safety, violence prevention, and economic development efforts in Chicago.

Full text of today's letter is available here and below:

JULY 21, 2020.

DEAR PRESIDENT TRUMP: You have indicated that you may send additional federal agents to the City of Chicago to conduct policing activities that traditionally are handled by local law enforcement We strongly urge you to refrain from taking this action, which is opposed by Governor Pritzker, Mayor Lightfoot and other local leaders. This week, we will introduce legislation with other Senate Democrats to prevent you from overriding local authorities in this manner.

Any involvement by federal law enforcement in community policing activity must be conducted in coordination with, and with the approval of, local officials. In this time of heightened tension, we cannot have federal law enforcement operating at cross-purposes with local leaders.

In recent days, your Administration has deployed federal law enforcement agents in the streets of Portland, Oregon, without any visible identifying information. These federal agents have reportedly used excessive force against peaceful protestors and detained residents in unmarked vehicles. Such conduct is unacceptable anywhere in the United States and must not happen in the Chicagoland area.

On February 10, 2017, we sent you a letter suggesting a range of ways in which the federal government could play a helpful and supportive role in reducing violence in Chicago. We noted that ''[p]ublic safety is primarily a local responsibility, but the federal government must be an engaged partner in public safety efforts alongside local officials, law enforcement, and community stakeholders.'' We recommended that your Administration take steps to assist local violence prevention efforts, including:

Enhancing Department of Justice (DOJ) programs that improve community policing;

Directing DOJ to promote mentoring and job training programs for youth and formerly incarcerated individuals;

Improving mentoring and violence prevention initiatives and boosting funding for recidivism reduction programs;

Directing DOJ to abide by its commitment to help implement policing reforms recommended by the Department's Civil Rights Division;

Closing gaps in the FBI gun background check system and in federal firearm laws that enable straw purchasers and gun traffickers to flood Chicago's streets with illicit guns;

Prioritizing career and youth training programs to address lack of economic opportunity in neighborhoods hit hard by violence; and

Redirecting resources that you are devoting to construction of your border wall and committing those resources instead to the efforts discussed above.

It has been more than three years since then, and you have not replied to our letter nor followed through with our suggestions. We reiterate that these steps would be more effective in reducing violence in Chicago than replicating the destabilizing role that you have directed federal law enforcement to play in Portland.

With the right leadership, federal law enforcement can serve as valuable partners in supporting local efforts and helping reduce violence in American communities, rather than contravening local efforts and exacerbating tensions. It's not too late for you to demonstrate such leadership.

Sincerely, * * *

Mr. DURBIN. Madam President, what happened in Portland, OR, is unacceptable in the United States of America. We have heard the historical analogies from the senior Senator from Oregon where authoritarian central governments moved into an area and took control. We have seen the historic parallel in the eastern reaches of Ukraine, in Crimea. We know what it looks like because history has shown us. We don't want this occurring in the United States of America.

I am sorry for those who were injured and bear the scars of this Federal incursion in the city of Portland, OR. I stand with the junior Senator from Oregon. We will call and we will pass, I hope, on a bipartisan basis the reassertion of the basic principles of this country when it comes to the separation of powers and when it comes to the dignity which we ask in the streets of America under our Constitution.

I thank the junior Senator from Oregon.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Madam President, I thank my colleague so much for coming down to stand up for the people of

his home State and say that ''secret police don't belong in my State, in my city of Chicago, or anywhere in the United States'' and that we should act on this floor to make sure that is not the case.

We must work and fight for the citizens all across this country. It would be the right thing for us to debate my simple amendment that says: ID, and you stay in the near vicinity of a Federal property, and you don't engage in these attacks on peaceful protesters.

We should debate it. If people disagree with it, they should stand up and explain why. Maybe we can come to a common understanding. Do you know how rare it is for Senators to come down and actually have dialogue and debate? It just doesn't happen. On something as important as this, shouldn't every Member be here weighing in and considering it?

How much time do I have left?

The PRESIDING OFFICER. The junior Senator from Oregon has 18 minutes.

Mr. MERKLEY. I am going to read another story from a woman who was at the protest 2 nights ago. Her name is Tiffany. She says:

I was there. Let it be known that police fired on peaceful protesters. The Feds are here. This is really happening in #portland. . . . knowing the risks, in the middle of a pandemic, mothers of our city formed a chain to protect the peaceful protesters. We stood united with flowers, yellow shirts . . . and peace signs.

I thought I would put up again the picture of this protester with her flowers.

She continues:

Behind the safety of their fence, the police fired upon a small number of us with their ''non-lethal'' bullets. As a symbol, I used my baby's blanket to attempt to shield myself. They therefore knew exactly what they were doing. They heard our peaceful calls and fired anyway.

When the fence fell, and the mothers continued to protest peacefully from the side, the police threw tear gas at us. We had to [scatter] into the streets, stumbling, trying to keep our masks on, trying to avoid more gas and cars.

When we attempted to regroup, the Feds had arrived. Some of us just trying to make our way to our cars, found our way blocked by federal agents in full combat gear.

Full combat gear.

They too fired gas at unarmed protesters, including myself. I yelled ''You are in violation of the US Constitution. You are in violation of the Bill of Rights. I own my home in Portland, Oregon. I pay my taxes in Portland, Oregon. I have a right to walk on my own street without being assaulted by my government. I have a right to be here''. . . . They silenced us with more gas.

See the images for yourself.

When the government attempts to take your liberty, that is when it is appropriate to risk your life. Nonetheless, you will notice we took every precaution to stop the spread. Every single one of us wore a mask. We had people spraying hand sanitizer from spray bottles. But you know, once you got gassed, it is very hard not to spread water droplets. Gas makes your nose and eyes pour water like a faucet! Not necessarily nonlethal force when we are in the middle of a Pandemic.

I reserve the balance of my time, and yield to my colleague from Connecticut.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. MURPHY. Madam President, I appreciate the Senator breaking for a moment to allow me to just a say few words. I might pose a question to him, if he chooses to answer with the remaining part of his time.

I want to make sure that my remarks are counted toward my time, not Senator MERKLEY's time.

The PRESIDING OFFICER. Correct.

Mr. MURPHY. Senator MERKLEY and I serve on the Foreign Relations Committee together, and what we have watched together, over the course of our time on that committee, is a reversal of what was called by some scholars ''the end of history.'' There was this idea that democracy was going to be triumphant in the world; that in the wake of the fall of the Soviet Union and the Berlin Wall, democracy—participatory, open democracies—and capitalist economies had, effectively, won the fight and that it was just a matter of time before the rest the world was living in a system like ours that respects the rule of law and allows for those who want to protest their government to do so under the protection of law. And much of our outreach to the Communist Party in China during the 1980s and 1990s came under the presumption that even China would eventually fall under the crushing weight of an advancing democracy.

We now know that to not be true because we are at a moment in time in which we hear on the Foreign Relations Committee uninterrupted testimony of countries that we would have, even just a decade ago, accepted and named as a democracy, starting to slide away from the rule of law, away from the protection of speech into something else.

Now, you don't go from a democracy into an autocracy overnight. So many of the countries we are concerned about are in that transition. We hope that an active United States, playing a role for democracy promotion in the world, can help pull them back. But it is a reminder—it is a reminder—that democracy in many ways is a very unnatural mechanism to control or run your life or society.

I always remind my constituents back home that there aren't many other things in life that are really important that you run by democratic vote. You don't run your business by democratic vote. Your kid's sports team doesn't run by democratic vote. I love my 8-year-old and 11-year-old, but they don't get an equal vote in the decisions in my household.

Democracy is fairly unnatural. We don't really choose it as a mechanism to run other institutions in this country, but we reserve it for government. We reserve it for government, but it only remains, it only survives, it only perseveres if we tend to it, and we have not been tending to it over the last 3 years.

I rise to support Senator MERKLEY and his effort because I have watched what these other governments do at the outset—these would be autocrats—what they do to try to gently begin to quell people's interest in free speech. The tactics that are being used in Portland, the tactics that were used just down the street, in the Nation's Capital, the tactics that are being contemplated for other cities throughout this country are reminiscent of tactics that have been proven successful in other countries to try to push people back inside their homes and to try to disincentivize their interests in speaking up against power, because, I am going to tell you, as word spreads that if you run out to the streets to protest your government, you may be requisitioned and shoved into an unmarked vehicle, if you are a single mom, who can't disappear for an hour, never mind a day, you aren't going to be that interested in going out and speaking freely. All of a sudden, if the government is starting to come down like a ton of bricks with Federal troops, with sweeps of peaceful protesters off the streets and into confinement, it does start to chill people's interest in standing up. And that is why governments across the world have tried to pioneer these practices.

They say they are still democracies. They say they still observe the rule of law, but, then, when people try to go out and protest, they throw the military at them. They start to snatch people off the streets, and, all of a sudden, people start to think to themselves that they are better off just staying in their homes. They are better off not protesting their government because the consequences now feel too significant.

I know, Senator MERKLEY, that a lot of folks claim that we are engaged in a hyperbole when we talk about the risks to democracy presented by this administration, but through our collective seats on the Senate Foreign Relations Committee, we see what is happening around the world. We see the ways in which, drip by drip, an open participatory democracy can all of a sudden start to foreclose the rights of people to be able to petition their government.

We should just remember that over the course of history, it is .001 percent of citizens who have lived in a democracy. This is not actually how the world has chosen to organize itself. We now have these templates. We now have these models provided to us by people like the leader in Turkey or the new President in the Philippines by which we should be cautioned in the ways in which we start to constrain speech, the ways in which we start to punish speech, the ways in which we start to make people believe that there is so much risk in speaking out against their government that they are better off just accepting whatever comes their way.

So I come to the floor today as someone who introduced legislation requiring the identification of military forces when they are doing crowd control. The minute that I saw those unmarked officers on the streets of the Nation's Capital, I knew how dangerous it was. I know enough about the history of our own country to know that vigilante justice, masked from identification, is reminiscent of some of the worst moments in American history. I know that we should be students of our own history to understand the danger to democracy presented by unidentified, unaccountable agents of justice, but I also know, as a student of the world today, that there are plenty of examples overseas that should caution us as well.

Maybe there isn't a question in there, Senator MERKLEY, but I am just so appreciative of your efforts, so appreciative that you have allowed me and the legislation that I have offered with Senator SCHUMER to require identification of Federal security forces to be added to the bill that you are offering. I will be with you every step of the way, if we are not successful in getting it included in the legislation pending today, to make sure it finds a way into law. I think your legislation is a cornerstone of our strategy to protect democracy for the next 240 years.

Mr. MERKLEY. Would my colleague from Connecticut yield for a question?

Mr. MURPHY. I would.

Mr. MERKLEY. For clarification, will my question be credited to my colleague's time, and can I ask unanimous consent that that it be credited to his time?

The PRESIDING OFFICER (Mr. YOUNG). If the Senator for Connecticut yields for a question, it comes off his time.

Mr. MURPHY. I would yield for a question, then.

Mr. MERKLEY. Thank you.

You made the point about lack of identification. I have here the picture of how these have been deployed. I will make sure you can see it as well.

Many are in camouflage—the generic police, with no sense of what agency they are part of, no unique identifier, even as the head of their organization—it was later clarified, and we found out, that they were CBP, Customs and Border Protection.

He said: Of course, they have unique identifiers and, of course, they are marked as Federal law enforcement—which they are not. But if one of these individuals, in the course of attacking protesters, shoots them with a rubber bullet that fractures their forehead and puts them in critical condition in the hospital, would we have any idea how to hold that officer accountable if they have no ID?

Mr. MURPHY. Thank you for the question.

This is what led me to join with many of my other colleagues, as I mentioned, including Senator SCHUMER, to introduce the legislation in the wake of the protests in our Nation's Capital.

Accountability is also a cornerstone of the rule of law. The only way that we can aggrieve abuses of power is to know who committed those abuses of power.

Listen, these troops or these riot officers were ordered to be in that space. Let's be honest that the vast majority of these patriotic law enforcement officers are trying to do the right thing. But we know, because we have seen the video, that there have been repeated—repeated—abuses on the streets of Portland, on the streets of New York City, and on the streets of the Nation's Capital. When those occur, frankly, it should be in the interest of law enforcement leadership themselves to be able to hold those individuals accountable so that we can make sure that the blame is not ascribed to every single individual who is uniformed and on these streets, but that we hold the specific individuals, or the individuals who ordered them to take those actions, accountable.

So as a broad question, Americans should want to know what agency these individuals are representing, and they should at least have a badge number attached to them so that we can make sure that individual actions have a line of accountability. But I would argue that the agency themselves should want that if they are really in the business of making sure that any abuses of power by their officers or by their soldiers or by their police are held to account as well.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Mr. President, I thank my colleague from Connecticut for his intense effort to defend the civil rights of citizens—not only of his State but all Americans—and for the truth he speaks that, when you have anonymous officers in war gear attacking peaceful crowds and committing, really, disturbing acts of violence against them, it is an unacceptable thing in our democracy.

He has noted that there was this conversation about the triumph of democracy as a strategy and it was going to spread and where we were going to find ourselves by this time was a world ruled by ''we the people'' governments across the land and how that is not the case.

He mentioned several countries that have been backsliding, and I think we could add to that those places like Poland and Hungary. I believe he mentioned Turkey.

It is tempting to be a strongman, and we have heard the President of the United States convey his admiration for these strongmen across the planet. But then he starts to bring their secret police, fascist tactics to the streets of America, and we have an obligation—under our oaths of office and simply as citizens of this Nation—to stand up and say no.

I have been reading letters from women who were on the frontline down in the peaceful protests, clarifying that there was no violence except the violence of the Federal agents against them.

Here is another such letter:

> I am a mom. I am a nurse. I live in Portland. I was peacefully protesting police brutality and racism tonight alongside other moms as part of the protests in downtown Portland. I had my arms linked with my own mom and my close friend when Federal agents in camo rushed us with guns pointed. They paused for a split second (as if to consider if they were really going to enact violence on a group of unarmed moms) then they pushed people down to my left. We were [chanting] ''don't hurt our kids.'' They threw flash-bangs at our feet. They tear gassed the crowd.
>
> I will not be silent. This is not ok. Don't just consume the line that it is a bunch of anarchists the police and feds are attacking. That is not ok. Black lives matter.

I have many more letters of people explaining what happened. They all are basically the same: There were some kids doing some graffiti; there was some pounding on the door of the Federal courthouse, but there was no violence. The only violence came from the Feds attacking the peaceful protesters.

I am going to reserve the balance of my time. I see my colleague is here from the State of Utah.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Mr. President, I would inquire how much time I have remaining, please.

The PRESIDING OFFICER. The Senator has 12 minutes postcloture time remaining.

Mr. MERKLEY. Mr. President, I have been using this time to share stories from women who have been down at the peaceful protests in Portland and then as they relay that they are attacked even though there is no violence in the protest. And they are attacked in an incredibly violent way.

This is not, of course, the story the administration is telling the world, the President is telling the world. He says: There is violence, and we stopped it.

The truth is, it was a peaceful protest, and Trump's Federal agents, dressed in war outfits, assaulted those protesters, as you heard in letter after letter after letter.

It is almost like acts in a play. You have women holding flowers, like this sunflower, and some had mums. They are dancing. They are singing.

Act 2, the camouflaged secret police, Trump's secret police, come onto the street—no agency identifier, no unique identifier—and then they start assaulting the women. That is act 3, the assault.

These women are describing that assault in graphic terms. It is tear gas. It is flashbang grenades. It is pepper spray. It is batons. It is a woman a few feet away being hogtied. It is a woman a few feet away being knocked to the ground. That is act 3.

And why is this happening? Because the President likes the authoritarian, secret-police tactics of dictators around the world and wants them to

bring them to the United States of America and is bringing them to the United States of America.

Maybe the moment he is doing it—right now—is because he is running campaign ads about what a good person he is to stop violence in America.

Let's understand that the President of the United States is creating violence in the streets so he can run campaign ads to say that he will stop the violence. That is this play.

It feels like a Greek tragedy. It feels like something that would never happen in America—but it is.

I have been relaying these letters that describe it in so much better terms than anyone can. This letter is from Karen—or this Facebook post is from Karen.

She says:

Mixed feelings this morning, waking up eyes still stinging and a metallic taste in my mouth after ending the night of nonviolent protest with the #WallofMoms being gassed, shot at, and manhandled to the ground without provocation. Here's what happened.

The majority of the night was a calm gathering spent listening to speakers, chanting, singing, and marching. Toward 11:30ish, folks gathered on the steps of the Justice Center. I intentionally positioned at the front line with the Moms to see for myself the truth.

There were definitely some idiot kids yelling stupid and unproductive things, but mainly we gathered calmly, sweating in the heat, holding signs and chanting in solidarity with BlackLivesMatter. More experienced protesters told the Moms without gas masks to get a few layers of people back since they knew to expect CS gas again tonight. The only physical actions taken before all hell broke loose is that some of the protesters were banging and kicking loudly on the thick plywood wall that had been constructed to block the entrance to the Justice Center.

We waited and then suddenly some kind of bullets . . . started shooting out of a small hole cut in the plywood, I felt a few stings like small pebbles or sand, it didn't really hurt but it scared me. Then some kind of smoky stuff (tear gas in hindsight) was in the air. I already couldn't see very well since my swim goggles had fogged up, but I didn't feel any burning etc. Those without respirators started leaving when they couldn't see or breathe. Huge loud noises and explosions (?''flashbangs'') were going off in front and behind us. Some of us linked arms and stood together as there were (?where they came from) all these big officers in black riot gear with batons starting to push us off the steps of the Justice Center. We tried to hold our ground but then one Mom a few down the row from me was grabbed pulled back toward the group of officers and they started to drag her away. She must have said something inflammatory, but she was linked arms and could not have hit them, thrown objects, or resisted anything. We tried to pull her back to us for her safety and then suddenly I was grabbed by 3–4 officers who were shouting to each other to ''pull her down, get her on the ground'' etc. (indeed they shoved and pulled me to the ground, grabbing both arms and my backpack to do so). Someone from the Moms said, ''let's go, they are surrounding us, we can't do anything now.'' By then the swim goggles had leaked and my eyes were burning and tearing and I . . . couldn't see, and I just crouched on the ground in a ball and put both hands up. Then—I heard the officers asking if I was ok. Asking if I could stand (I couldn't since I couldn't see). At least one of them said ''I'm trying to help you.'' The crowd was yelling ''leave her alone'' and came from behind me and were coaching me to keep my hands up and stay still. Sat there awhile shaking, getting my bearings, and finally I asked if I was being detained or if I could leave. Heard several back and forth conversations between the officers about ''she resisted us'' and ''she tried to help her friend get away.'' [And then someone else said] ''if she's willing to leave, just let her go.'' I kind of scootched back on my butt into the crowd and then some kind soul asked if he could help me up and get away from the gas, took my arm and we walked up the block back into the park. Some other kind soul asked if we needed Maalox for our eyes (that helped a little) and then we were out of the bitter cloud.

I felt sorry for the officers actually, who were only doing what they were told by some pretty evil higher-ups (to disperse nonviolent crowds by force), and as far as my experience last night, actually seemed to try to do their best not to truly hurt me (possibly because I am white, female, and was wearing yellow to identify as a Mom).

I got away with some scraped knees and a sore hip, plus the stinging eyes and metallic taste which will soon pass. But also—worst—a heavy heart. It really is senseless out there. I don't have answers and am no longer convinced that showing up is helping anything. However, I am pretty sure if the Feds hadn't been called in this would have continued to fade as hopefully productive real change and progress were made involving the city government and PD about the actual issues—concern about police brutality and social inequities for POC [people of color]—but now look at us.

We should look at these protesters who are calling for justice, for policing that treats everyone equally, and it doesn't profile, doesn't provide public safety protection to some and ignore others. It doesn't view some citizens as the clients and other citizens as the threat. It doesn't change their actions when they see a group with white skin versus black skin or dark skin.

That conversation is being destroyed by the President of America. He is trying to replace that argument for a better America that treats people with respect and honors the civil rights of all with a different America where secret police are deployed to beat the hell out of peaceful protesters and then put up campaign ads to say that he will fix it.

We cannot let this story go unanswered. At a minimum, collectively, all 100 of us should say: No secret police—they wear identifiers for agencies. They wear unique identifiers, and they don't go marching through the streets of our city. They stay to protect the Federal property they are charged to protect. They don't attack peaceful protesters with flashbangs and tear gas and pepper spray and rubber bullets and batons. We don't do that here in America.

I hope all 100 Senators will stand up and say: Yes, let's have a debate on a very simple amendment that says yes to ID on uniforms—there are no secret police—and yes to staying on your Federal property or the near vicinity if that is your mission, so we don't have folks on an unrestricted mission of sweeping through our streets, grabbing people, and throwing them into vans as we have seen on the streets of Portland.

I am asking that this Senate do its job to address this issue, to hold a debate—long or short, as my colleagues would prefer—and vote. It is important we raise our voice. It is important we vote. It is important we have accountability. It is important that we defend the Constitution of the United States and the citizens of the United States.

The PRESIDING OFFICER. The Senator from Oklahoma.

UNANIMOUS CONSENT REQUEST—AMENDMENT NOS. 2127; 2180; 2305; 2308, AS MODIFIED; 2399; 2431; 2449; 2459; 2484, REFILE OF 2421; 2486, REFILE OF 2330; 1752; 1876; 2221; 2295; 2407; 2410; 2412; 2432; 2438; 2439; 2436; 2446, AS MODIFIED; 2453; 2430; 2461, AS MODIFIED; 2437; 2471; AND 2429

Mr. INHOFE. Mr. President, I ask unanimous consent that the following amendments be called up en bloc and the Senate vote on adoption of the amendments en bloc with no intervening action or debate.

Before I read the names, which I will do, I make that request: I ask unanimous consent for the following amendments to be called up en bloc and the Senate vote on adoption of the amendments en bloc with no intervening action. I am going to list all of the amendments so there is no misunderstanding.

The reason we are going to do this—we talked about this last night. These have been hotlined. There are a total of about 28 amendments. I will be naming in the RECORD those that I am asking the consent for: Sullivan, No. 2127; Toomey, No. 2180; Rubio, No. 2305; Cruz, No. 2308, as modified; Grassley, No. 2399; Fischer, No. 2431; Perdue, No. 2449; Perdue, No. 2459; Tillis, No. 2484, refile of No. 2421; Portman, No. 2486, which is a refile of No. 2330; Peters, No. 1752; Cardin, No. 1876; Heinrich, No. 2221; Klobuchar, No. 2295; Udall, No. 2407; Schumer, No. 2410; Booker, No. 2412; Duckworth, No. 2432; King, No. 2438; King, No. 2439; Grassley, No. 2436; Moran, No. 2446, as modified; Cassidy, No. 2453; Crapo, No. 2430; Reed, No. 2461, as modified; Klobuchar, No. 2437; Warner, No. 2471; and Bennet, No. 2429.

The PRESIDING OFFICER. Is there objection?

The Senator from Oregon.

UNANIMOUS CONSENT REQUEST—AMENDMENT NO. 2457

Mr. MERKLEY. Mr. President, reserving the right to object, would my colleague from Oklahoma modify the request to include unanimous consent to call up amendment No. 2457, an amendment to limit Federal law enforcement officers from operating in a secret fashion on the streets of America without identification; that there be 2 hours for debate, equally divided between opponents and proponents; that upon the use or yielding back of time, the Senate vote in relation to the amendment with no intervening action or debate?

The PRESIDING OFFICER. Does the Senator so modify his request?

Mr. INHOFE. Mr. President, reserving the right to object, this is an issue that we have talked about for some time, and we have spent a whole year on this bill. We have covered these issues before. I do object to that modification.

The PRESIDING OFFICER. Is there objection to the original request?

The Senator from Montana.

UNANIMOUS CONSENT REQUEST—AMENDMENT NO. 2481

Mr. DAINES. Mr. President, reserving the right to object, I am here to speak about a very important issue facing our veterans in Montana. In Montana, we are home to one of the largest veteran per capita population in the Nation. It is an extraordinary privilege for me to represent our veterans.

I am the son of a veteran, a marine. In the U.S. Senate, I represent Montana's brave men and women who serve our country in uniform, and I have had the opportunity to hear concerns from our veterans in all corners of our State. That is why I am here today.

Last spring, the widow of a Montana veteran, Patricia Pardue, who lives in Northwest Montana, approached me with a heartbreaking story. Patricia saw nearly all of her pension benefits that her husband had earned in service to our country stripped away by a scam artist.

This scam artist is also referred to as a pension poacher. This scam artist was receiving Patricia's full VA pension, charging her for services that would have been free at the VA.

Sadly, Patricia's story is not a rare occurrence. There are bad actors across the country taking advantage of innocent Montanans like Patricia, and they need to be stopped. After hearing her story, I introduced a bipartisan bill to protect our veterans and their families from these pension poachers.

My bill has the support of Senators across both sides of the aisle, as well as the support of the Military Order of the Purple Heart of the USA, the National Association of County Veterans Service Officers, the Iraq and Afghanistan Veterans Association, and other military and veterans associations.

This is a bipartisan bill. It punishes those who act illegally by providing advice or representation to veterans without proper accreditation from the VA. It is a shame we are even in this position today, that there are people out there looking to take advantage of our Nation's heroes.

Today, there are no legal consequences for these people—these shameful and unpatriotic individuals who steal money from our Nation's veterans. It is shameful. That is why I am fighting to include this bipartisan bill as an amendment to the defense legislation, the NDAA, before us today—to protect our servicemembers throughout their lives, not just while in uniform but always.

Right now, we can take an important step to do everything in our power to ensure veterans and their families keep their benefits, not lose them to scammers. The longer we wait to fix this issue, the longer we are failing our veterans and their financial well-being.

We can fix that right here, right now. That is why I am calling on my colleagues today to adopt my amendment to the NDAA—to protect our veterans, to protect the great men and women who have served in the defense of our country.

I will stand by the Montana veterans, and I will continue fighting this fight until we get this done. Therefore, I ask the Senator to modify his request to include the Daines amendment, No. 2481.

The PRESIDING OFFICER. Does the Senator from Oklahoma so modify his request?

The Senator from Rhode Island.

Mr. REED. Mr. President, this is a meritorious issue, obviously, involving veterans. But at this late juncture, after the weeks we have spent in deliberation both in the committee and then on the floor, it is not yet—this particular amendment—ready so that there is no opposition on my side. Since there is opposition, I would like to inform the Senate and the chairman of that situation.

Mr. INHOFE. Mr. Chairman, I would agree it is hard to find anything with more merit than this. It is something I want to work very hard to accomplish. However, we do have an agreement that this would violate.

For that reason, I object.

The PRESIDING OFFICER. Is there objection to the original request?

The Senator from Utah.

Mr. ROMNEY. Mr. President, reserving the right to object.

Mr. Chairman, I came to the floor earlier this week to implore my colleagues to debate the administration's proposal to withdraw troops from Germany and to vote on my amendment aimed at evaluating such a move.

As I committed in my remarks at that time, I am objecting to the managers' package on the basis that the Senate has not been afforded the opportunity to have that debate.

The proposed removal of our troops from Germany is a matter of extreme significance for our national security and our military readiness. A decision of this magnitude should not occur without the input of the U.S. Senate. The failure to debate such a consequential matter is a disservice to this Chamber, to our Nation, and to our allies.

My amendment seeks to evaluate such a withdrawal and affirm our support for Germany, our support for our NATO allies, and our national security interests, and it sends a strong message to our adversaries like Russia. Therefore, I ask the Senator to modify his request to include the Romney amendment No. 1885.

The PRESIDING OFFICER. Does the Senator so modify his amendment?

Mr. INHOFE. Reserving the right to object.

We have a President who has put this plan together. We spent a lot of time on this. The Senate has been heard. We actually discussed this as we put together our bill.

For that reason, I do object to the modification.

The PRESIDING OFFICER. Is there objection to the original request?

Mr. ROMNEY. Mr. President, I object.

The PRESIDING OFFICER. Objection is heard.

Mr. LEAHY. Mr. President, every year, the Senate considers sweeping legislation to authorize operations of the Department of Defense and certain functions of the Department of Energy. The fiscal year 2021 National Defense Authorization Act provides a roadmap for spending for national defense, spending which reflects over half of the annual Federal budget. Its importance is enormous, and its consideration important. Regrettably, the Senate in recent years has reduced consideration of the NDAA to a perfunctory exercise occupying a couple of weeks of debate, and little consideration of amendments. While I support much of what is included in this authorizing package, I cannot support its passage.

I am most concerned that the FY21 NDAA includes authorization for testing of nuclear devices. Where our President fails to lead in global diplomacy and common decency, he seems enthralled with an approach favored by autocrats and dictators: demonstrations of military might over strategic partnerships and alliances. I am concerned that, under this administration, we are inexorably trending toward a new nuclear arms race, where demonstrations of power have taken the place of treaties that made the use of history's most dangerous weapons less likely.

Coupled with authorization to build a new nuclear warhead, the Senate's fiscal year 2021 National Defense Authorization Act goes beyond the nuclear modernization plan set in action by the Obama administration in concert with ratifying New START. Rather, it takes scientifically dubious and strategically unnecessary steps to support the President's seemingly exclusive interest in brandishing—literally—our military might. Congress and Presidents of both parties have worked for decades to help the world avoid repeating the precarious situation of the 1960s; I worry we are starting a slow march back to that edge.

Like many Senators, I am disappointed that a simple amendment I have authored to provide resources through the Department of Defense to communities who are the home to significant military missions through our National Guard did not receive consideration. The men and women of our National Guard are members of our communities. They are our mothers and fathers, our husbands and wives, our coworkers and neighbors. The important missions they serve help not only our

communities, but our national defense. The Department of Defense should not only support the men and women who serve in uniform, but also the communities in which they partner. This simple, straightforward amendment would have provided $20 million for the Department of Defense to support multiple communities where certain military missions that serve the national defense are based. As communities across the country support our military's missions, so, too, should our Department of Defense serve their needs.

I am also disappointed that the Senate has rejected an amendment to rein in the dramatically escalating budget of the Department of Defense. As the vice chairman of the Senate Appropriations Committee, I have worked with the Republican leadership and with Chairman SHELBY in recent years to strike budget agreements that have resulted in parity between defense and nondefense spending. At the same time, amid a national and international public health crisis, the time has never been more critical to infuse more resources in public health, education, and business development programs. The Sanders amendment would have maintained full support for the personnel needs of the Department, as well as the critical medical research supported through the Department of Defense. It would, however, have also taken some of the Department's sweeping budget and reserved it for underfunded domestic needs. This is long overdue.

The Senate will pass this bill today, and we will need to reconcile differences with the House. While I will not vote for the Senate bill as it currently stands, there are many provisions that merit support. The bill continues a streak in recent years of improving support for the health and safety of military servicemembers and their families and, this year, also authorizes $44 million for vaccine and biotech research support for COVID–19 response that benefits everyone. The bill includes limitations on the use of the military against protestors, following the administration's actions against protestors in the Nation's Capitol, and the photo-op that followed. It includes a provision to begin the process for renaming U.S. military facilities named after Confederate generals. Our bases today should reflect the foundational belief that we are all created equal, not glorify those who sought to perpetuate slavery and destroy the Union.

I am also very pleased that a project I have worked on many years to heal the wounds of the Vietnam war has been advanced. Over the last 2 years, we have included an authorization and the Appropriations Committee has funded a project to remediate dioxin contamination at the Bien Hoa Airbase. This year, we also include an authorization for a partnership with the Vietnamese Government for recovering remains of missing in action in Vietnam. For more than 40 years, the Vietnamese Government has provided indispensable assistance in locating the remains of more than 700 U.S. MIAs. This provision will enable the Department of Defense to reciprocate by providing archival data and other assistance to Vietnam. I want to thank Senators HIRONO and KAINE for their help in sponsoring this amendment in committee and Chairman INHOFE and Ranking Member REED for accepting it.

I hope that an agreed upon fiscal year 2021 National Defense Authorization Act will address these concerns. While I cannot vote to pass this bill today, I hope to be able to support a conference agreement that supports our men and women in uniform and their families, meets the defense needs of our Nation, and reflects the values that have made American the beacon of hope for generations.

Mr. INHOFE. We are at the point now where I would like to make a few comments, and I would like to ask our ranking member to make some comments. This has been a long time in the making.

I have said several times on the floor that this, in my opinion, is the most important bill of the year. It is something we have done every year. This will be the 60th consecutive year that we have actually done this bill.

It is never easy. One reason it is not easy is because everybody knows it is going to pass, so people want to be a part of it and put their many amendments that aren't even germane on this bill. We are now to the point where, in just a few minutes, we are going to be voting on the final passage of the National Defense Authorization Act for Fiscal Year 2021.

When Senator REED and I introduced this bill, we thought we had a good bill. The bill was really led by the Members. This never happened before. We started off with over 700 requests and amendments so that the Members themselves have drawn this bill together. It is not as if it is put together by a committee; it was put together by all of us here in the Chamber. The committee approved it 25 to 2. That is overwhelming. I think everyone understands that.

We filed it with the hopes of adding a few more amendments on the Senate floor. We did that. We added more than 140 amendments altogether. We even had some debates and rollcall votes on amendments, something we haven't done probably in the last 5 years or so.

Now we are voting on a great bill, a bill that every Senator had the chance to make his or her remark on. Once the Senate passes this bill, we will still have more work to do. We still have to go over to the House and pass their bill. We have to go to conference with the House. We will do that. We have done that every year for many, many years. Our next step would be, of course, to do the conference.

Then we will work to make sure, once again, this is a bipartisan conference report that both parties can support and the President can sign.

It has been bipartisan. All these amendments—each group amendment that the ranking member, Senator REED, yesterday talked about—were equally divided between Democrats and Republicans. I have not seen it this way in the past. We will make sure, once again, that we have the same bipartisan effort.

I have said it many times over the past several days and several weeks that the NDAA is one of our most important responsibilities. There is a document I refer to now and then that nobody reads anymore called the Constitution. In that Constitution, it tells us what we are supposed to be doing here. What we are supposed to be doing here is exactly what we are doing today.

The National Defense Authorization Act is how we fulfill that responsibility, and we have done this every year for 60 years in a row now. It is a sacred responsibility we all have to all Americans, especially our troops and their families—those in harm's way. Every day they wake up, lay their lives on the line to defend our Nation and our values and freedom, democracy, and peace.

Right now, the main challenge to our security comes from authoritarian regimes that stand against all of our values. I am talking about China and Russia and others—primarily China and Russia.

The way we win against our adversaries is by making sure our fights never start by sending a strong message that ''you can't win; don't even try.'' That is what we are doing with this bill.

The National Defense Strategy Commission report is significant because this is the second time now we have done this. This is a book that was put together by six leading Democrats, six leading Republicans—all very knowledgeable on this issue. It is called the ''Common Defense.'' This is what we have used as our blueprint. We stayed pure with that all the way through.

The NDAA makes sure that we have the personnel, the equipment, the training, and the organization needed to support the strategy that is found in this book. If we get it right, we will be set on a steady course toward a peaceful, free, and prosperous world—not just for us but for our children and our grandchildren as well. Kay and I have been married for 60 years. We have 20 kids and grandkids. We know something about this and the significance of this.

The backbone of all of this is our men and women in uniform, so this bill is for them. The bill provides for a 3-percent pay raise, the largest one in over a decade. It also takes care of the families and makes sure their spouses have employment opportunities, children have access to good schools and childcare, and they are all living with a quality roof over their heads.

These are priorities that go beyond party. That is why this bill has passed for the last 59 years in a row with bipartisan support, and that is why we are going to do it again today.

There is talk out there that people in Washington don't really work that hard. Let me assure you, they do in this case. We have been blessed with a couple of leaders, this great committee we have that put this together. Those leaders include John Bonsell. John Bonsell has been working in this effort with me for well over 20 years, and he was a great leader of this group. On the Democratic side, the minority side, Liz King has worked hand in hand with John Bonsell. The whole team has worked together.

Developing a bill that comes out of committee with only two dissenting votes is not something that is done every day. I want to personally thank those individuals on our side, and we will ask Senator REED to do the same on the minority side.

We want to thank not just John Bonsell but John Wason, Tom Goffus, Stephanie Barna, Greg Lilly, Marta Hernandez, Rick Berger, Jennie Wright, Adam Barker, Augusta BinnsBerkey, Al Edwards, Sean O'Keefe, Brad Patout, Jason Potter, Katie Sutton, Eric Trager, Dustin Walker, T.C. Williams, Otis Winkler, Gwyneth Woolwine, Katie Magnus, Arthur Tellis, Leah Brewer, Debbie Chiarello, Gary Howard, Tyler Wilkinson, John Bryant, Griffin Cannon, Keri-Lyn Michalke, Soleil Sykes, Brittany Amador, Jillian Schofield.

We will cover those from the minority side in just a moment.

From my personal office: Luke Holland, Andrew Forbes, Leacy Burke, Don Archer, Travis Tarbox—who just got his promotion to major yesterday—Brian Brody, Dan Hillenbrand, Jake Hinch, Devin Barrett, Laurie Fitch, and Whitney Fulluo.

Lastly, from the floor staff: Robert Duncan, Chris Tuck, Megan Mercer, Tony Hanagan, Katherine Foster, Brian Canfield, Abigail Baker, Anna Carmack, and Maddie Sanborn.

It is because of the tireless work of all these fine people—we are talking about the members of the committee, the personal staff, and we are talking about the staff in the cloakrooms—I want to thank them all. This is our only opportunity to do that.

We are going to hear now from the ranking member, Senator REED, and then, after that, we will vote and look forward to this year's NDAA passing with a strong bipartisan majority.

Senator REED.

Mr. REED. Thank you very much, Mr. Chairman.

Mr. President, I rise, once again, to express my support for the National Defense Authorization Act of Fiscal Year 2021. I want to commend the chairman for his leadership and his thoughtfulness throughout this whole process.

I am pleased, as we all are, that we will be voting soon on passage. I believe this is an excellent bill. I believe it provides the men and women of our military with resources and the authorizations needed to defend our Nation, while at the same time taking care of their families. It was crafted after a series of thoughtful hearings, discussion, and debate on both sides of the aisle. It was passed out of committee with strong bipartisan support.

Most importantly, I am very pleased that this bill has had such full consideration on the Senate floor. For the first time in a long time, we were able to come to an agreement to debate and vote on several amendments. In addition, we were able to adopt over 140 amendments from Members on both sides of the aisle.

I want to, again, thank Senator INHOFE for his leadership getting the Defense authorization bill to this point, overcoming the many challenges posed by the pandemic and by other factors that made this a very unusual year. I look forward to working with him as we go into conference.

Finally, I would like to thank the committee staff who have worked so hard. I specifically want to recognize, as the chairman has, the staff director, John Bonsell, for the Republicans and the staff director for the Democrats, Elizabeth King. They worked together. They are diligent. They are bipartisan. They are thoughtful. They are the best examples of a staff member of the U.S. Senate.

I would also like to thank my staff on the Democratic side: Jody Bennett, Carolyn Chuhta, Jon Clark, Jonathan Epstein, Jorie Feldman, Creighton Greene, Ozge Guzelsu, Gary Leeling, Kirk McConnell, Maggie McNamara Cooper, Bill Monahan, Mike Noblet, John Quirk, Arun Seraphin, Fiona Tomlin, and, once again, staff director Elizabeth King.

Also, let me thank the floor staff and the leadership staff. You have been part of this process for the last several weeks, and you have done a remarkable job. We thank you for that very, very much. You facilitated our efforts.

Finally, I would urge all of my colleagues to vote for this very excellent bill.

I yield the floor.

Mr. INHOFE. Mr. President, I know of no further debate.

The PRESIDING OFFICER. The clerk will read the title of the bill for the third time.

The bill was ordered to be engrossed for a third reading and was read the third time.

The PRESIDING OFFICER. The bill having been read the third time, the question is, Shall the bill pass?

Mr. INHOFE. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

The result was announced—yeas 86, nays 14, as follows:

[Rollcall Vote No. 140 Leg.]

YEAS—86

Alexander	Fischer	Reed
Baldwin	Gardner	Risch
Barrasso	Graham	Roberts
Bennet	Grassley	Romney
Blackburn	Hassan	Rosen
Blumenthal	Hawley	Rounds
Blunt	Heinrich	Rubio
Boozman	Hirono	Sasse
Burr	Hoeven	Schatz
Cantwell	Hyde-Smith	Schumer
Capito	Inhofe	Scott (FL)
Cardin	Johnson	Scott (SC)
Carper	Jones	Shaheen
Casey	Kaine	Shelby
Cassidy	King	Sinema
Collins	Klobuchar	Smith
Coons	Lankford	Stabenow
Cornyn	Loeffler	Sullivan
Cortez Masto	Manchin	Tester
Cotton	McConnell	Thune
Cramer	McSally	Tillis
Crapo	Menendez	Toomey
Cruz	Moran	Udall
Daines	Murkowski	Van Hollen
Duckworth	Murphy	Warner
Durbin	Murray	Whitehouse
Enzi	Perdue	Wicker
Ernst	Peters	Young
Feinstein	Portman	

NAYS—14

Booker	Kennedy	Paul
Braun	Leahy	Sanders
Brown	Lee	Warren
Gillibrand	Markey	Wyden
Harris	Merkley	

The bill (S. 4049), as amended, was passed.

(The bill, as amended, will be printed in a future edition of the RECORD.)

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of William Scott Hardy, of Pennsylvania, to be United States District Judge for the Western District of Pennsylvania.

Mitch McConnell, Chuck Grassley, Cindy Hyde-Smith, Michael B. Enzi, Tim Scott, Marco Rubio, Lamar Alexander, James E. Risch, David Perdue, Bill Cassidy, Pat Roberts, John Cornyn, Lindsey Graham, Thom Tillis, Deb Fischer, Mike Crapo, Kevin Cramer.

The PRESIDING OFFICER. By unanimous consent the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of William Scott Hardy, of Pennsylvania, to be United States District Judge for the Western District of Pennsylvania, shall be brought to a close?

The yeas are nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from North Carolina (Mr. BURR), the Senator from Louisiana (Mr. CASSIDY), the Senator from Arizona (Ms. MCSALLY), and the Senator from Utah (Mr. ROMNEY).

Mr. DURBIN. I announce the Senator from Virginia (Mr. KAINE), the Senator from Vermont (Mr. LEAHY), the Senator from Vermont (Mr. SANDERS), and the Senator from Arizona (Ms. SINEMA) are necessarily absent.

The PRESIDING OFFICER (Mr. SCOTT of Florida). Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 60, nays 32, as follows:

[Rollcall Vote No. 141 Ex.]

YEAS—60

Alexander	Fischer	Murphy
Baldwin	Gardner	Perdue
Barrasso	Graham	Portman
Blackburn	Grassley	Risch
Blunt	Hassan	Roberts
Boozman	Hawley	Rounds
Braun	Hoeven	Rubio
Capito	Hyde-Smith	Sasse
Carper	Inhofe	Scott (FL)
Casey	Johnson	Scott (SC)
Collins	Jones	Shaheen
Cornyn	Kennedy	Shelby
Cotton	King	Sullivan
Cramer	Lankford	Tester
Crapo	Lee	Thune
Cruz	Loeffler	Tillis
Daines	Manchin	Toomey
Enzi	McConnell	Warner
Ernst	Moran	Wicker
Feinstein	Murkowski	Young

NAYS—32

Bennet	Harris	Rosen
Blumenthal	Heinrich	Schatz
Booker	Hirono	Schumer
Brown	Klobuchar	Smith
Cantwell	Markey	Stabenow
Cardin	Menendez	Udall
Coons	Merkley	Van Hollen
Cortez Masto	Murray	Warren
Duckworth	Paul	Whitehouse
Durbin	Peters	Wyden
Gillibrand	Reed	

NOT VOTING—8

Burr	Leahy	Sanders
Cassidy	McSally	Sinema
Kaine	Romney	

The PRESIDING OFFICER. On this vote, the yeas are 60, and the nays are 32.

The motion is agreed to.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The senior assistant legislative clerk read nomination of William Scott Hardy, of Pennsylvania, to be United States District Judge for the Western District of Pennsylvania.

The PRESIDING OFFICER. The Senator from Massachusetts.

MODIFICATION TO AMENDMENT—S. 4049

Ms. WARREN. Mr. President, as if in legislative session, I ask unanimous consent that notwithstanding the passage of S. 4049, the clerk be authorized to correct the instruction line on amendment No. 2417.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (S. 2417), as modified, is as follows:

(Purpose: To modify the requirements for the Department of Energy response to the review by the Nuclear Weapons Council of the budget of the National Nuclear Security Administration)

Beginning on page 1036, strike line 7 and all that follows through page 1037, line 8, and insert the following:

''(3) DEPARTMENT OF ENERGY RESPONSE.—

''(A) IN GENERAL.—If the Council submits to the Secretary of Energy a written description under paragraph (2)(B)(i) with respect to the budget request of the Administration for a fiscal year, the Secretary shall include as an appendix to the budget request submitted to the Director of the Office of Management and Budget—

''(i) the funding levels and initiatives identified in the description under paragraph (2)(B)(i); and

''(ii) any additional comments the Secretary considers appropriate.

''(B) TRANSMISSION TO CONGRESS.—The Secretary of Energy shall transmit to Congress, with the budget justification materials submitted in support of the Department of Energy budget for a fiscal year (as submitted with the budget of the President under section 1105(a) of title 31, United States Code), a copy of the appendix described in subparagraph (A).''.

Strike Sections 3112, 3113, 3114, 3115, 3116.

The PRESIDING OFFICER. The Senator from Ohio.

UNANIMOUS CONSENT REQUESTS—S. 3685 AND S. 4097

Mr. BROWN. Mr. President, as if in legislative session, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs be discharged and the Senate proceed to the immediate en bloc consideration of the following bills: S. 3685, the Emergency Rental Assistance and Rental Market Stabilization Act, which I am a prime sponsor of, and S. 4097, Senator WARREN's bill, the Protecting Renters from Evictions and Fees Act. I further ask that the bills be considered read a third time and passed en bloc and the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

Mr. CRAPO. Mr. President.

The PRESIDING OFFICER. The Senator from Idaho.

Mr. CRAPO. Mr. President, reserving the right to object, we have discussed this before on the floor, and I will not go through that entirely in my part of the discussion here.

Four months ago with the CARES Act, we came together and unanimously passed a package that provided historic support, significant support, in the rental markets, as this request focuses on. I believe that in the coming days, we can come to that same kind of consensus and deal with this important issue. Because of that, I object.

The PRESIDING OFFICER. The objection is heard.

Mr. BROWN. Mr. President.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. I am disappointed. I knew it was coming from Senator CRAPO. He is my friend, and I appreciate the cooperation, but this is so much more serious than what we did a few months ago.

We have been asking just down the hall—Senator MCCONNELL was just in. We have asked him week after week after week—April, May, June, half of July—to do something about this impending problem we have.

This is why we have to do this now. Tomorrow, millions of families face a massive cliff, and they face another one in a week. Right now, millions of Americans are in danger of losing their homes. In the CARES Act, we put a temporary moratorium on evictions and foreclosures for renters and homeowners and properties with federally backed loans, as well as for renters receiving Federal assistance. It is a good thing entirely, just not enough. This rental eviction moratorium expires tomorrow.

The last thing we need—imagine this: In the middle of a public health crisis, people who get evicted roam the streets, or they go to an overcrowded shelter, or they go live in their cousin's basement—all potentially spreading the virus.

We know the moratorium didn't go far enough. It only covered 28 percent of renters. We should be extending and expanding the moratorium. We should be passing my emergency rental assistance bill to get people through this pandemic, not kicking them out on the streets.

We already had a housing crisis in this country before the coronavirus hit. Many of the professions we are now recognizing as essential—one essential worker, a grocery store worker, said:

> I don't feel essential. They call me essential. I feel expendable because I don't make much money, and they don't protect you at work.

Many of those people recognized as essential aren't paid enough to afford housing.

Think about this: One-quarter of all renters—one out of four renters—before the pandemic were paying half or more of their income in rent. One thing happens in their lives, and they are on the streets. Now we are seeing millions of people all at once have those same emergencies. They are facing impossible choices between rent and grocery or prescriptions or draining their savings or going to a payday lender. More than 40 percent—40 percent—of Black and Latinx renters report they are unlikely to be able to make their next payment—40 percent.

Some people don't have any choice at all. Their only option is eviction. Those evictions are already happening in Columbus, the capital city in Ohio, the largest city in Ohio. In Columbus, they have turned the convention center into an eviction court—an eviction court at the convention center. More eviction filings will be coming if we do nothing.

For all those renters who have been protected from eviction by the CARES Act, back rent will suddenly be due. They will owe for March and April and May and June. The same goes for the millions who aren't protected under

the CARES Act but got relief from a temporary State or local moratorium or court closure.

On top of that, at the end of next week, the additional $600 a week in UI benefits expires. Senator WYDEN has done yeoman's work. It is incredible what he was able to do for this unemployment that kept millions and millions and millions—tens of thousands of Oregonians and hundreds of thousands of Ohioans were kept in their homes because of this $600 unemployment check that they got weekly. Now, because Senator MCCONNELL doesn't care, President Trump doesn't care, those people are going to lose that $600. What do they do then? We know that UI didn't cover everyone, but for many people, that $600 was the difference between being able to pay their bills and skipping meals or draining their savings or having to turn to a payday lender.

We need to extend the assistance to help families afford their food and prescriptions. We need to provide emergency rental assistance to keep a roof over their heads.

This problem isn't some distant cliff. We are all about to go home for the week. This doesn't happen a month from now or 3 months from now; this happens starting this week. It happens when unemployment expires. It happens when these moratoria around the country expire.

What is President Trump doing? What is Majority Leader MCCONNELL doing? Nothing. Maybe going to Mar-a-Lago, maybe going back to Kentucky. I don't know. What are they doing about this impending cliff? Nothing.

We asked them in March. We asked them in April, in May, and in June. Two-thirds of the way into July, they still refuse to help.

Because of this President's failures, this crisis isn't getting any better, the virus continues to spread, people continue to die, small businesses continue to suffer.

Why would we let up on the relief people need now? The work we do in this body to get help to people simply can't make up for the lack of leadership from the White House, but it can mitigate some of the damages.

The House passed the Heroes Act nearly 2 months ago. That would have eliminated these cliffs. It would have provided $100 billion in emergency relief. But do you know what? That bill has been on the majority leader's desk collecting dust since May.

For millions of families about to lose their unemployment, about to lose their homes, and not able to feed their kids, the bills keep coming, the clock keeps ticking, the stress keeps mounting. People are tired of this lack of action and lack of accountability.

They are tired of being betrayed—''betrayed'' is the right word—betrayed by this President, who is supposed to look out for them. They are tired of feeling like no one is on their side. That is why we need to do this.

We are supposed to be the greatest country on Earth. The American people should not have to fend for themselves in the middle of a once-in-a-generation crisis. It is time to lead where the President has failed. It is time for Leader MCCONNELL to let us do our job. It is time to keep families from losing their homes. That is really clear.

I yield the floor to the sponsor of this other bill that is so very important, Senator WARREN.

The PRESIDING OFFICER. The Senator from Massachusetts.

Ms. WARREN. Mr. President, I thank Senator BROWN for the leadership on this.

I am very sorry that the Republicans will not agree to moving forward on this bill today. The urgency of the moment cannot be overstated.

President Trump's utterly failed response to the coronavirus pandemic has allowed a dangerous virus to spread, uncontrolled, throughout our Nation. More than 4 million Americans have contracted coronavirus, and more than 140,000 people are dead.

While the death toll mounts, the President's failure to control the spread of COVID–19 has caused a second crisis, following closely on the heels of the virus. Our economy is in shambles, and now we are forced to fight on two fronts: to keep families safe from the coronavirus and safe from the economic fallout.

So I am here on the Senate floor today to talk about one piece of the economic emergency unfolding in our country. Right now, we are just days away from a completely preventable housing crisis. The CARES Act eviction moratorium is currently protecting more than 12 million renters from losing their homes while the virus rages across our country. On Friday at midnight, those protections will disappear, allowing a tsunami of evictions that will hit communities of color and low-income families the hardest unless we act now.

Let us be clear. Eviction is not a new problem in this country. Too many families were already on the financial brink before the virus crashed our economy. Close to 40 percent of adults don't have enough cash to cover an unexpected $400 expense. More than half of households didn't have enough savings to cover 3 months without income. More than one in four renters were paying more than half of their income to housing.

Now families are facing the worst economic crisis of their lifetime. About 30 million Americans are officially unemployed or out of work. One-half of all Americans have lost employment income since the start of this pandemic, and communities of color have been hit the hardest. It is not possible to fix this economy without containing the virus, but we can make sure that millions of Americans don't lose their homes because President Trump closed his eyes and hoped that the pandemic would just go away.

This is really a commonsense solution. My bill, the Protecting Renters from Evictions and Fees Act, would extend the Federal eviction moratorium through March of 2021, and it would expand the moratorium to protect every single renter.

Congress should pass this bill immediately, and we should pair it with Senator BROWN's bill to create a $100 billion emergency rental assistance fund to help struggling renters make their payments. Families would get the help they need to stay in their homes and stay current on their rent, and landlords would get their payments. This would help families. It would cover landlords, and it would help protect renters and communities from the spread of coronavirus.

So the answer is really simple. The Senate can—and must—pass these two bills today because the consequences of inaction would be devastating.

More than one out of every three renters have already missed a housing payment. More than one-third of renters have little or no confidence that they can make the next payment.

And let's be clear about who is most at risk. Closer to half of Black and Latinx renters aren't sure they will be able to make the next housing payment. Black Americans are already more likely to be renters because of decades of racist Federal policies that denied Black families Federally insured mortgages, and our government failed to protect Black homeowners from predatory mortgages leading up to the great recession. So when the economy crashed, millions of Black Americans lost their homes, wiping out nearly all of the gains in Black homeownership since the 1968 Fair Housing Act.

Failing to institute an eviction moratorium would further deepen existing racial injustices. Letting eviction protections evaporate at midnight on Friday will also result in widespread housing disruption and needlessly cause long-term harm to millions of families' future housing, financial stability, and their health. It will put more families at risk of homelessness at a time when providers are already stretching every dollar to connect unhoused Americans with sheltering resources, and it will take away one of the most critical protections from furthering the spread of coronavirus: safe, stable housing.

President Trump's shameful inaction has allowed this virus to spread throughout every community in our country. He has denied the scope and seriousness of this pandemic. He has dismissed calls to take lifesaving action, and he has refused to use the powers of the Federal Government to implement even the most basic mitigation measures.

But crisis does not stop growing just because those in power refuse to acknowledge it. That is true for the spread of the coronavirus, and it is also true for the looming eviction crisis.

This is about our values. The Senate has the opportunity—right now—to

stop a massive wave of evictions that will displace families right in the middle of a global pandemic. My colleagues understood the stakes in March when Congress passed the existing eviction moratorium into law. I urge them to join me now in continuing this life-saving protection while providing emergency rental assistance to keep renters housed, landlords paid, and most of all, to keep families safe.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

UNANIMOUS CONSENT REQUEST—S. 4143

Mr. WYDEN. Mr. President, as if in legislative session, I ask unanimous consent that the Committee on Finance be discharged from further consideration of S. 4143; that the bill be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

The Senator from Wyoming.

Mr. BARRASSO. Mr. President, reserving the right to object, the CARES Act provides an additional $600 per week to those who are receiving, through their States, unemployment insurance. In Wyoming we have a generous unemployment insurance program to help people who are out of work, and the CARES Act adds to that, essentially, a bonus payment of $600 additional per week. For a 40-hour workweek, that comes down to an average of about a $15-an-hour bonus for not being able to go back to work, and that is on top of their regular unemployment benefits.

Well, since the CARES Act has passed, what we have seen is that this additional $600 per week means that most recipients are paid more for not working than they would make if they actually were on the job working. This fact has been confirmed by news reports, by academic researchers, and by the Congressional Budget Office.

Even former Obama administration Treasury Secretary Tim Geithner, along with President Obama's Chair of the Council of Economic Advisers, agrees that $600 per week on top of unemployment insurance through the States is too much.

We have ''help wanted'' signs all around my State. I talked to the people at unemployment insurance, who run the program. They tell me that they are having many people who are getting paid much more than if they would work, if they would take the jobs where you have employers out there hoping, looking for employees to come and work.

You can't continue to pay people more to not work than to work. Yet instead of trying to address this identifiable and correctible problem, today my colleagues are asking that we vote to extend the $600-per-week bonus payments and continue these untargeted payments for many months into the future.

As a matter of fact, NANCY PELOSI, Speaker of the House, living on Fantasy Island, wants to extend these for 6 more months, all the way until the end of January. The CBO and other researchers and economists have looked at this and said this would be a heavy wet blanket on the economy. It would prevent 10 million people from going back to work—going all the way until the end of January.

It is likely that such a proposal would cost $1 trillion—$1 trillion—and much of that is we are talking about paying people to not work instead of helping people work.

So I hope my colleagues will join me in better targeting help to the unemployed in a way that doesn't pay people more when they are sitting at home not working than they would make at work.

We are working on a plan now to provide additional help for the unemployed if they can't go back to work because their job isn't there, isn't available; if, for health purposes, they can't go back to work; but do it in a way that the Democrats have claimed that they want to do but haven't even proposed. We need to make it much more closely aligned with lost wages.

So we are going to be introducing this plan shortly, and I hope my colleagues on the other side of the aisle will engage with us in that effort.

For these reasons, I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Oregon.

Mr. WYDEN. Mr. President, I am going to get into the substance of my colleague's arguments in a moment, but I just want to be clear to all the people in America, the 30-plus million who are having problems making rent, having problems buying groceries, who in just 2 days—2 days—come Saturday, are going to be in a position where, based on what they tell me, they are telling their kids: Hey, you probably have to eat a little bit less because the unemployment is ending.

The fact is, the other body passed a bill so that folks would be able to make rent and buy groceries. On this side of the aisle, the Democratic leader and I introduced legislation to tie the benefits to economic conditions on the ground. One of the reasons we did is my colleagues on the other side said that benefits ought to taper off if unemployment goes down. That is what our bill does.

But here is the message that I think folks who are walking on an economic tightrope this weekend need to hear. On this side of the aisle, we have been ready to go for weeks—essentially, months—to have bipartisan negotiations to work this issue out. As of this afternoon, with benefits expiring in 2 days, the other side of the aisle has no piece of legislation on offer. Let me repeat that: no piece of legislation on offer.

Let me repeat that—no piece of legislation on offer. On this side of the aisle, they write lots of bills to help multinational corporations—lots of bills to help the powerful and the special interests, but as of this afternoon, there is not a bill to help those folks who this weekend are going to be saying: We are not going to be able to make rent in a few days. We are not going to be able to feed our families, not going to be able to pay for the car insurance. People aren't spending this money on luxuries. They are spending it on essentials. To a great extent, they kept the economy afloat for the last few months.

The other point I want to make is that this did not have to happen. Not only do we have legislation ready to discuss with our colleagues that incorporates some of their ideas, we have been reaching out again and again. Yet MITCH MCCONNELL, who took all of July off when he could have been getting this piece of legislation together—those big 2 weeks, and he could have been getting the legislation together—basically, actively—didn't happen by osmosis—actively gave short shrift to the needs of the unemployed and made no effort, none whatever, even though we reached out continually to Republicans, saying that this weekend—and the pain that working families have this weekend didn't have to happen. We wanted to do everything we can, working with our colleagues, to prevent it.

Now, for purposes of this discussion, I want to make sure people understand what this discussion really means to working families in this country. I was at home, at food banks and the like—lines for blocks—people who had never needed to go to a pantry or a food program were waiting in line because they had been hit by this economic wrecking ball.

There are people who are worried about losing their homes and losing their cars, being unable to fill their prescriptions. As I mentioned, think about what it means when you have to tell your kid you ought to eat less because they don't know whether they will have enough cash to stock the pantry next month.

As I said, Republicans' response to this over the last few days—last few weeks—I went to school on a basketball scholarship, and I remember when you could basically play stall ball, go into four corners offense, basically run down the clock. And then at the end, as my distinguished colleague from Wyoming tried to do, say: Well, it is the fault of the poor people. It is the fault of those poor people. I am going to touch on what this really is all about.

When we began the negotiations—and I was the point person for the Democrats—in the Finance room—I offered basic wage replacement as our position for dealing with this issue. Secretary of Labor Scalia said: It can't be done. The States can't administer it. Western civilization is pretty much going to end if we try to do this. And then he folded his arms, and, for days, basically refused to negotiate about alternatives.

Understand that we started with the approach of basic wage replacement. Secretary Scalia said it can't be done. States are stuck with old technology. I didn't disagree with that. Gave a billion dollars to the States to help them update technology too. I said: We are not going to tell those workers, Mr. Scalia, to pound sand.

I basically said we are going to average the benefit—$600. Some people will get a bit more than they would; some people are going to get a bit less, but families are going to have a chance, based on what the State employment offices told us, to actually get benefits.

I know that it hasn't worked out too well in the State of Florida—the President of the Senate, and I am sure he will want to talk about this in the debate—but at least millions of people in this country got a chance to make rent, buy groceries, pay medicine because we said we are going to take a sum of money that the States told us they can actually, for the most part, administer.

The Finance Committee held a hearing on unemployment insurance this summer. I particularly wanted to know how we might look at administering these benefits in the future because I knew that we would all want to hear if there had been reforms and what the case might be for changes. During that hearing just a few weeks ago, the National Association of State Workforce Agencies—the experts on this issue on how the benefits are to be administered—said that—their words—any reduction or change in benefits will absolutely lead to a lapse in benefits.

You would think colleagues on the other side would say: My goodness. We don't want that to happen. These State workforce agencies said there would be a lapse in benefits no matter what you cut, $100, whatever the amount was, there would be a lapse in benefits. The gap in benefits could last a week or two, potentially, up to a month. I have been pointing out to Senators you can't eat retroactivity. And yet, everything I have heard that colleagues want to do now—remember, they don't have a bill. They do not have a bill. They are taking the weekend off. We have a bill on this side. The Democratic leader, myself—supported by our caucus—we have a bill. We are ready to talk. They don't have a bill to do anything for those people who are going to be hurting this weekend.

After that hearing, you would have thought people—Republican Senators on the other side—would say, you know, we have to figure out what to do. We have to make sure that people aren't going to fall between the cracks, through no fault of their own. Remember, so many of them are at home because of government policies, the quarantine, and the—of course, the pattern is particularly ominous now because folks who were furloughed at the beginning, then got brought back, and now with the spike, they are getting laid off again. There you have it—National Association of State Workforce Agencies says that any change can lead to a lapse in benefits.

I guess my colleagues on the other side walked out there and said: No big deal. It is just a few weeks. Tell that to the people who aren't going to have enough money to make rent and buy groceries next week. Tell that to their face rather than just leave town and say: We will talk about it another time, and we will see about 2, 3, 4 weeks and what people are going to have to do without this lifeline, which I believe is going to be a disaster.

The lapse that is being forced on this country right now is because Senate Republicans would not step up. They would not step up along the way—after the hearing, during the July break. They did not step up. The lapse is going to lead to eviction; it is going to lead to hunger; it is going to lead to desperation for millions of Americans. And the only way to avoid it is by acting now, by passing the American Workforce Rescue Act that Senator SCHUMER and I introduced. We just tried to pass it.

If our bill had passed, the people who are going to be hurting this weekend, who aren't going to be able to make rent, who aren't going to be able to buy groceries—would have some sense of security. They would be able to go to bed at night this weekend, had our bill passed, knowing that there would be an opportunity to work with the other body and get this resolved and get it resolved quickly.

Now those people know one thing, and that is that they better plan for yet more uncertainty and more pain. As my colleagues say, maybe it will get worked out in a few weeks—even though what they are talking about working out—and remember, there is no bill. We have never seen a piece of paper, but they are talking about cutting the lifeline over 50 percent. That is their proposal—cutting it more than 50 percent.

At a minimum—at a minimum, I believe, that what the Republicans are now looking at is some kind of approach that after Secretary Scalia has told the Senate that the States can't do full wage replacement for individual workers; that they are not capable of doing it; the technology is too old; it can't get the math; it can't get individually tailored benefits out in a timely way—apparently, my colleagues are using that model for their so-called idea that they want to talk about.

I have already mentioned the fact that they believe the argument for this is that it could be done in a few weeks. People are going to be hurting for those few weeks. Nobody has an answer to that. Everybody ought to understand that I was the first one to offer full wage replacement—I would say to the President of the Senate—and it was Secretary Scalia who said it couldn't be administered and has never changed his mind on that point.

My view is, the proposal that adds a whole lot of complexity to the unemployment system is a proposal designed to fail. That, apparently, is what Senate Republicans are talking about.

At a minimum, this delay in the Senate is going to cause a lapse in benefits. On top of that, it has been reported the Republicans could attempt to cut the benefit by well over 50 percent.

I just ask, how can anybody look at the State of the country and how powerful people and special interests can be doing so well and then decide to cut the economic lifeline for working families by well over 50 percent when the country is in the middle of a pandemic, when there are 60- or 70,000 new COVID cases every day and climbing, when there are 800, 900, 1,000 COVID cases every day and climbing, when the number of new unemployment claims, which before this year had never crossed 700,000, has been 1.3 million or higher for 18 straight weeks, and, in fact, the number of new claims went up this week for the first time since April—a sign that the recovery is going in reverse.

As I mentioned, what I am hearing about at home are businesses that reopened in May and June and are laying off their workers for a second time.

One-third of Americans couldn't make their last rent payment. Parents who lost their jobs are wondering how they are going to feed their children. I just say to my colleagues who may be who may be following this, this is an unthinkable level of pain and suffering and uncertainty to needlessly inflict on 30 million Americans.

It is not just about those who have already lost work. It is about the millions of others who are worried that their pink slip might come in August or September or October. They need support too. In fact, the papers are full of stories of small businesses closing and closing permanently. I expect that all those people are worried that they haven't been laid off yet, but a pink slip may be coming their way in August or September or October. They may have a word or two for their Senators who are able to find plenty of time to write bills to help multinational corporations but can't find the time to stand up for unemployed folks who are hurting.

Before I wrap up this afternoon, I want to touch on this argument that Republicans have been flogging away on for months now that these unemployment benefits are way too generous, and, somehow, they are convinced that it makes sense to insult the American worker and say that all these workers are sitting around lazily at home instead of going back to work. That argument does not pass the smell test.

I am going to be very specific about why that argument trotted out again by my friend from Wyoming is way off base.

First of all, the same Republicans who celebrated the May and June job reports are now talking about how lazy

workers are by refusing to go back to their jobs. You simply cannot have it both ways.

Second, not one of my Republican colleagues brought forward real evidence to suggest that workers across the country are turning down work. These anecdotes just don't hold water. According to one recent analysis, more than two-thirds of workers who were hired in June went back to jobs that paid less than supercharged unemployment benefits.

Third, it is an insult to American workers to say that they would rather sit at home than to earn their pay at work.

If any one of my Republican colleagues were to go out and meet the Oregonians I have spoken to and who have been furloughed or laid off during the pandemic, they will hear from people who desperately want to go back to their jobs when it is safe. These are people who believe in the dignity of work and people who want to provide for their families. It is an insult to call them lazy.

I want to inject a note of reality into this because my Republican colleagues have been so fixated on this argument. I have talked to a lot of unemployed workers. I said: Back east, the Senate Republicans say all unemployed folks are lazy, and they don't want to work and all the rest.

So many of the unemployed look at me incredulous, and they say: Ron, ask them how in the world have they came up with that completely wrong idea.

They usually say: If I am given a choice between unemployment or the chance to have a job in the private economy, where I have a future and where I can build upward economic mobility—they usually say: Ron, tell those Republicans in Washington, DC, it is a no-brainer; of course, I am going to take the job that gives me an opportunity for a future, the chance to work in the private sector and climb the ladder of economic mobility. I am going to take that every time, rather than unemployment, which has been uncertain.

That is my response to the off-base kind of argument presented by Senator BARRASSO. If Republicans want to go home this weekend and insult the work ethic of millions of Americans who believe in the dignity of work, that is their constitutional right.

The country, obviously, is nowhere near the end of this pandemic. Businesses are going to keep closing—some temporarily, others permanently. We are looking at the worst unemployment crisis since the Great Depression.

The benefits we put together initially, the supercharged unemployment benefits—and I am especially proud that we said that as for the law, which really hadn't been updated since the 1930s, that we would modernize the law and allow gig workers and the self-employed and independent contractors and part-timers to be brought into the system. Those supercharged benefits that we negotiated in the Finance Committee room—which, by the way, were signed off by Secretary Mnuchin. This was not done in the dead of night with only one side going along with the effort. These were negotiated with Secretary Mnuchin, who actually endorsed it at a press conference. These supercharged unemployment benefits have been the one thing that has kept millions of families—millions of families—from being in a position where they couldn't feed their families, couldn't make rent, and, literally, facing the kind of despair, the kind of fear that has made the number of requests for mental health services go through the stratosphere because people are so worried. And this question of their economic future is just one reason.

Supercharged unemployment benefits have helped keep the economy afloat and have helped prevent true economic meltdowns. And even with the lifeline, so many are barely hanging on. They fall behind on their bills. I mentioned the threat of hunger. Senator BROWN just talked about how important it is to act on housing assistance.

It would be a historic failure, morally and economically, to slash this lifeline that is so important to getting workers through a pandemic. The Democratic leader, Senator SCHUMER, and I listened carefully to all sides. We thought about the need, given the fact that there are predictions of high unemployment for some time to come. We said: Let's come up with a dependable safety net that provides some measure of predictability with respect to how the government is going to approach these issues in the future.

My colleagues have said that they want a system that has the benefits taper off as unemployment goes down. Well, what the Democratic leader and I have proposed does exactly that.

I believe that yesterday there was a story in the Washington Post where, I think, they were talking about unemployment at 15 percent. When unemployment reaches those kinds of levels—and we saw that story of people waiting and waiting for hours. In fact, I don't have the exact percentage.

Mr. President, I ask unanimous consent that the story about the unemployment calamity in Oklahoma be printed in the RECORD at this point.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[July 20, 2020]

'A VERY DARK FEELING': HUNDREDS CAMP OUT IN OKLAHOMA UNEMPLOYMENT LINES

(By Annie Gowen)

TULSA.—John Jolley never thought he'd be sleeping in his car awaiting unemployment benefits. But there he was, the owner of a once-successful advertising agency, taking a sweaty nap in a Subaru wagon in a convention center parking lot at 1:45 a.m. on a Wednesday.

The pandemic sent his business into a free fall, and now Jolley wanted to be first in line for an unemployment claims event beginning in five hours. He barely dozed, afraid that if he fell into a deep sleep, he would miss the early-morning handout of tickets for appointments with state agents.

There would be just 400 tickets handed out for that day's event. When those ran out, there would be 400 more for appointments the following day.

''I just didn't want to be number 803,'' Jolley said.

In the four months since the pandemic began, nearly 50 million workers have filed unemployment claims nationwide, a flood that's overwhelmed some states, freezing antiquated computer systems and jamming websites and phone lines for days. State benefit agencies in some parts of the country have evoked memories of Great Depression bread lines.

Many have been struggling to get their regular unemployment benefits as well as the $600–a-week federal pandemic unemployment assistance passed in March that begins running out for millions of Americans later this week. Congress returned Monday to begin hammering out the details of another massive coronavirus bill, with Republicans assembling a $1 trillion package that probably will extend but reduce the size of that benefit. Democrats are backing a more wide-ranging $3 trillion relief bill passed by the House in May.

In Oklahoma, one of the poorest states, unemployment—which reached a record 14.7 percent in April—has pushed many to the point of desperation, with savings depleted, cars repossessed and homes sold for cash.

Even though the unemployment rate dropped to 6.6 percent in June, the backlog has created unprecedented delays. Oklahoma had approved 235,000 of about 590,000 filed claims by June 21—a total $2–4 billion payout, far more than in previous years. About 6,000 state claims are pending.

The Oklahoma Employment Security Commission staff has tried to combat the delays by holding mega-processing events at large arenas in Oklahoma City and Tulsa this month, with masks and social distancing required. So far, they've managed to help 6,200 people. Jolley's unemployment claim was approved in March but had been stalled, a problem that hadn't been fixed after nine phone calls and hours on hold with the OESC.

The 58-year-old single father arrived in the parking lot of the River Spirit Expo center in Tulsa around 9 p.m. on a sultry night with a heat index approaching 100 degrees. The landmark 75-foot statue of the Golden Driller—a nod to Tulsa's oil and gas hub—towered over one side of the dark parking lot, his face painted over with a surgical mask.

Dozens more sat in the parking lot overnight with Jolley, unable to get their questions answered through the unemployment agency's overloaded phone system. Some said they had been notified that their claim was denied as fraudulent. Jolley quickly bonded with the woman in the next car over, a manicurist named Cindy La, 60, the two swapping tips on how they thought the event would unfold.

That afternoon, as Jolley gathered up the paperwork he'd need for his claim, he felt a sense of sadness as profound as anything he'd felt since the pandemic began.

''It's a very dark feeling,'' he said. ''You just kind of feel like you're in a boat without a rudder and you're riding the waves. After all these years you worked hard at your company, tried to be a good guy and be fair to your clients, you just feel like you're losing control of your future.''

OLD COMPUTERS, NEW CAREERS

At 4:30 a.m., several OESC staffers emerged from the convention center to hand out the appointment numbers. The process quickly

degenerated into a free-for-all, the crowd growing restive, pushing and shoving to get the limited supply of appointment tickets. Jolley moved to the front of the line, trying to protect his new friend, La, by reaching down and plucking two tickets—No. 69 for her and No. 64 for him.

Others were not so lucky. The numbers quickly ran out, and people were told they had to return the following day. Eventually, staffers referred people to the three new events added for the coming week because of the demand.

Ashley Love, 31, a former customer advocate for Enterprise Rent-A-Car, had risen at 4 a.m. to take her 2-year-old daughter to her mother's home before heading to the convention center, only to be told she had to come back the next day. She was laid off in March, when the pandemic nearly obliterated the travel industry. Her benefits inexplicably stopped four weeks ago, the agency website saying only she was on a ''verification hold.''

''It's appalling, I don't understand how they can do this to people,'' Love said. ''One day, I called 15 times in two hours, and they either don't answer or take your calls and hang up on you.''

Love was getting down to the last she has, having run through $4,000 in savings. Even before her benefits froze, she was getting only about $137 a week, plus $600 a week from the federal government's pandemic emergency assistance program, due to expire around the end of the month. Her regular monthly bills—rent, car payment, insurance—are $2,091.

She has continued her search for a job, even contemplating whether she should ''Find Something New''—as the White House's new ad campaign suggests—researching how she could get certification to start a career in teaching.

Shelley Zumwalt, the interim director of Oklahoma's unemployment agency, said the state's system uses a mainframe computer from 1978 that was quickly overwhelmed by the volume of claims. ''My first day, I sat down with one of the claims agents and said, 'Show me what you do,' and a green screen popped up and she pushed F9,'' Zumwalt said. ''That was the clearest thing to me that I was dealing with a technology that was older than I am.''

She launched the series of more than a dozen mega-events July 1 after several days in June when desperate people began showing up to the OESC office in Oklahoma City and waiting in line with coolers, camp chairs and tents.

''I'm not okay with people having to camp out to get their claims processed,'' Zumwalt said.

Some who showed up at the event had received notes from the OESC that they had been approved for unemployment benefits when they hadn't yet applied, convinced they had been victims of fraud. Zumwalt said that about 90,000 claims have been flagged as fraudulent.

Last month, the U.S. Labor Department's Office of Inspector General, working with the OESC, said it had stopped payment on 3,800 unemployment insurance claims, including 1,300 filed from IP addresses in London, saving the state nearly $16 million.

Many real Oklahomans in need of assistance are suffering through the complicated unemployment process, too. The state has rejected more than half of the unemployment claims filed through June 21, some for gig or self-employed workers who must be denied regular unemployment insurance before they can qualify for the federal government's Pandemic Unemployment Assistance, Zumwalt said.

Many who showed up at the Tulsa convention center were navigating government assistance for the first time, such as Sarah Miller, 29, a single mother of three who was told not to come back to her job as a nursing home aide after she experienced symptoms consistent with covid–19 in March. Her unemployment claim has been pending since April 12.

''I need this. I need it,'' she said. ''I've never been one to do unemployment, but with all that's going on, I don't really have any other option. I have to be home with my kids; I can't afford to pay a babysitter or do day care. Got to do what I got to do.''

'WE'RE ALL GLITCHES'

Jolley had time to go home before his 6:30 a.m. appointment, shower and change into cargo shorts and a shirt printed with tiny steaks and barbecues. He was among the first into the cavernous Expo center, where claims seekers sat down in folding chairs six feet apart.

Staffers handed out bottles of water, Kind granola bars and a flier that advertised drive-up distribution at the local food pantry, ''Soup's On at the Community Kitchen.'' Jolley tucked the flier along with other documents in a blue folder he labeled ''Unemployment.''

As he waited for his name and number to be called, Jolley looked around at the others sitting in their socially distanced chairs and was reminded of the animated Disney movie ''Wreck-It Ralph,'' which he watches with his 7-year-old, Pearl. In it, Ralph is a lumbering video game villain who hopes to restart his life by helping a video game princess stuck in a computer glitch.

In a way, everyone in this room is a glitch, he said, just like Princess Vanellope in the movie.

''People that are here, we're all glitches,'' he said. ''We fell through the cracks. The computer system didn't work for us.''

Jolley has a degree in petroleum engineering but started Big Guys Inc. advertising in 1995 as a hedge against the ups and downs of the oil market. For a long time, the company provided a good living, even during the 2008 recession. He sells ad space for mom-and-pop businesses—tree trimmers, DUI lawyers—posted in bathrooms in airports, restaurants and concert venues.

''It's a captive audience with disposable income,'' he quipped, that old joke. ''Or it was before this.''

He had always thought he would do this until he retired, especially after life dealt him the surprise of Pearl and he became a single dad at 50. Now, he was just hoping his misfortune would be temporary, that business would revive as things normalized, with concerts and other events supposed to restart in Oklahoma in August.

When his name was called, he went behind black curtains where claims agents were working on their ancient computer program. He gave a written summary of his many contacts with the agency to Ashley Testerman, an agent in a black cotton mask.

''I brought a cheat sheet,'' he said.

''You have no payments; let's see if you are in the system,'' she said.

In the end, after all that—the numerous phone calls, the hours wasted on hold, the evening spent sleeping in his car—all he needed was a working PIN number, and Jolley was able to file claims for all the weeks he had missed since April.

''I feel so relieved,'' he said afterward, joking that he might do a Jed Clampett-like jig in the parking lot on his way out the door. But the joy would be temporary. His last sobering exchange with the claims agent stuck in his mind.

''We don't know what the future holds,'' he had said. ''What happens if everything shuts down again?''

What then?

Mr. WYDEN. I close by way of saying that I came to the floor some time ago to ask unanimous consent to make sure that this weekend, when millions of people are hurting—remember, the suffering starts in 2 days. It starts on Saturday—2 days in Florida, in Oregon, in Wyoming, and all over the country. MITCH MCCONNELL's response was: Let's take a break; we can take off. He didn't seem to see those hurting people in Kentucky. Maybe they will have something to say to him this weekend.

I will tell you, I think it is a big mistake for Senate Republicans to have frittered away weeks on end, when we could have had a dialogue and we could have talked about ideas.

The Presiding Officer has talked to me a number of times since he has been here about healthcare. I enjoy talking to my colleagues and working on ideas to try to find a way to address concerns and solve problems. There wasn't one single effort—not one—to pick up on any of the ideas that I have been discussing here. In fact, I tried to reach out to colleagues on the other side and told them that I heard them say repeatedly that benefits should taper down as the unemployment rate goes down. Well, that is the heart of our bill on this side.

The hurt and pain that working families are going to face this Saturday and Sunday—2 days from now—did not have to happen. It didn't have to happen. Our side has a bill to work on. The other side, I gather, has some ideas. We have not seen a single piece of paper, but I know that all those people who are hurting can't eat retroactively. They can't eat all the Republican theories about delay and haggling.

I believe these working families deserve a whole lot better. They deserve some predictability and certainty that when they are hurting—through no fault of their own—their government isn't going to turn its back on them and say: We don't care if your kids can't eat and you don't have a roof over your head. Our country has always been better than that.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

CARES 2

Mr. MCCONNELL. Mr. President, as I said on Tuesday, our Nation stands at a critical midway point in our fight against the coronavirus. We made it through the springtime lockdowns. Americans' sacrifices saved our medical system. The Senate's historic CARES Act helped millions of families make it through, but this terrible virus is still with us. It kills more Americans every day. Some areas that have reopened have seen cases spike. Our hospitals, healthcare providers, and especially our vulnerable citizens are nowhere near out of the woods.

Meanwhile, although the early days of our economic recovery have beaten expectations and surprised the experts, we have really only begun to repair the

damage. More than 17 million Americans are still jobless. Far too many families are still hurting. This is not over. America's fight continues, so Congress's support for our people must continue as well.

The Senate majority has assembled a framework for CARES 2. The administration has requested additional time to review the fine details, but we will be laying down this proposal early next week. We have an agreement in principle on the shape of the package. It is the framework that will enable Congress to make law and deliver more relief to the American people that is tailored precisely to this phase of the crisis.

Chairmen GRASSLEY, ALEXANDER, COLLINS, RUBIO, SHELBY, and BLUNT, and Senators CORNYN and ROMNEY have each spearheaded a part of CARES 2. On Monday, these committee chairmen and Republican Members will introduce each component. The sum of these efforts will be a strong, targeted piece of legislation aimed directly at the challenges we face right now.

Our country is in a middle ground between the strict lockdowns of a few months ago and the future day when a vaccine will put all of this, finally, behind us. Our project now is to build a middle ground that is smart and safe but more sustainable.

We are still waging a healthcare war against the virus, and we cannot let up on that. We need to continue to strengthen the defenses we have built—encouraging mask-wearing, supporting testing, and racing toward treatments and vaccines.

At the same time, the greatest country in world history also needs to get back on offense. We need to carefully but proactively step back toward normalcy. This disease has already stolen the lives of more than 140,000 Americans. It has stolen a half a year of our national life. We cannot let the robbery continue without a fight. We cannot let this pandemic rob us indefinitely of our children's educations and the livelihoods of 17 million American workers.

We need to get Americans back to work and school while continuing to fight for our Nation's health. That is what CARES 2 is designed to do. Our proposal will not waste the American people's time with go-nowhere socialist fantasies. We aren't choreographing political stunts or teeing up the same old partisan trench warfare. Our proposal will focus on three things: kids, jobs, and healthcare.

No. 1, kids. A functioning society needs to educate its children and young adults. Our kids need us to invest in their futures, and working parents need some certainty. We need as many K–12 schools, colleges, and universities as possible to be safely welcoming students this fall.

Chairman ALEXANDER, Chairman SHELBY, and Chairman BLUNT are finalizing an ambitious package of funding and policy to help our schools reopen. They will lay out a reopening-related funding package for schools and universities north of $100 billion. That is more money than the House Democrats proposed for a similar fund.

There will be several important policies to help childcare providers, to grant new flexibility to elementary and secondary schools, and more.

No. 2, jobs and the economy. Two provisions of the CARES Act worked especially well to help households stay afloat and help as many workers as possible stay employed.

As Chairman GRASSLEY will explain, Republicans want to send a second round of direct payments to American households, and Senator COLLINS and Senator RUBIO have crafted a sequel to their historic and incredibly successful Paycheck Protection Program. It would give the hardest hit small businesses an opportunity to receive second loans if they continue to pay their workers.

We also intend to continue some temporary Federal supplement to unemployment insurance while fixing the obvious craziness of paying people more to remain out of the workforce. Small business owners across the country have explained how this dynamic is slowing rehiring and recovery. So we are going to provide help but make sure it is suited to reopening the economy.

But temporary relief cannot be our endgame. Americans do not just want to scrape by; they want to thrive again. They want a road back to the incredible job market we had just a few months ago. So Chairman GRASSLEY will also lay out bold policies to incentivize retention, encourage the rehiring of laid-off Americans, and help businesses obtain PPE, testing, and supplies to protect their employees and entice customers.

Think of it this way: In the spring, our economy needed life support. Today, while continuing to support families, we must also get the economy into physical therapy so it can actually regain its strength.

Finally, in looking to the long term, the COVID–19 crisis has weakened the critical Federal trust funds that Americans rely on. As Senator ROMNEY will explain, our proposal includes a bipartisan bill, cosponsored by Senate Democrats, to help a future Congress evaluate bipartisan proposals for protecting and strengthening the programs that Americans count on.

Now, our third pillar is the most important of all—healthcare. Our entire reopening and recovery depend on knocking this awful virus onto its heels.

So as Chairmen ALEXANDER, BLUNT, GRASSLEY, and SHELBY will explain, CARES 2 will continue to treat the root causes of this medical crisis: more resources for hospitals and healthcare workers; more help to keep sprinting toward diagnostics, treatments, and vaccines; new policies to shield seniors from a spike in Medicare premiums; and new legislation that will leave us with better surge capacity to produce medical countermeasures right here at home the next time a crisis strikes.

There is one more essential element that ties schools, jobs, and healthcare all together—legal protections to prevent our historic recovery efforts from simply lining the pockets of trial lawyers.

We will preserve accountability in cases of actual gross negligence or intentional misconduct, but we are going to make sure that nurses and doctors who fought an unknown enemy are not swamped by a tidal wave of malpractice suits. And we will make sure that school districts, colleges, churches, nonprofits, and employers that obey official guidance do not have to delay reopening because they are afraid they will spend 10 years in court.

So this is where Senate Republicans are focused—more support for healthcare, more direct help for American families, and strong policies to help our country pivot into a safe reopening. We will propose to continue and renew some of the most successful CARES Act policies, while adding bold new ideas to help get schools and jobs open for the American people. This is the package our country needs. This is what we will introduce.

We are repeating the successful strategy that produced the historic, bipartisan CARES Act back in March. First, I asked a number of Republicans to spearhead a serious first draft. Then we put those elements together and invited our Democratic colleagues to the table. And guided by our roadmap, working with the administration, the Senate reached a bipartisan outcome.

Earlier this week, even Speaker PELOSI and Leader SCHUMER seemed to concede that things go better when Republicans lead. They themselves said the real work on this next bill would only begin after Republicans laid out the framework.

Well, I am glad my Democratic friends see things the same way I do. I just hope they meet our serious, fact-based proposal with the productive and bipartisan spirit that got us the CARES Act, rather than the cynical partisanship that led them to block police reform just last month.

Doctors and nurses will need Democrats to come to the table. Unemployed Americans will need Democrats to come to the table. Working parents and school children will need Democrats to come to the table.

We have known all along the American people would defeat this virus by understanding that we are all in this together—every single one of us.

If we want to deliver more historic relief, the Senate will need to remember the very same thing.

ORDER OF BUSINESS

Mr. President, I ask unanimous consent that notwithstanding rule XXII, the postcloture time on the Hardy nomination be considered expired and the confirmation vote on that nomination occur at 5:30 p.m. on Monday, July 27.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

Mr. MCCONNELL. Mr. President, I move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I move to proceed to executive session to consider Calendar No. 647.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of David Cleveland Joseph, of Louisiana, to be United States District Judge for the Western District of Louisiana.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of David Cleveland Joseph, of Louisiana, to be United States District Judge for the Western District of Louisiana.

Mitch McConnell, Chuck Grassley, Cindy Hyde-Smith, Michael B. Enzi, Tim Scott, Marco Rubio, Lamar Alexander, James E. Risch, David Perdue, Bill Cassidy, Pat Roberts, John Cornyn, Lindsey Graham, Thom Tillis, Deb Fischer, Mike Crapo, Kevin Cramer.

LEGISLATIVE SESSION

Mr. MCCONNELL. Mr. President, I move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I move to proceed to executive session to consider Calendar No. 641.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Dana T. Wade, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Dana T. Wade, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development.

Mitch McConnell, Thom Tillis, Cindy Hyde-Smith, Pat Roberts, Roy Blunt, John Thune, Cory Gardner, Deb Fischer, Shelley Moore Capito, David Perdue, Mike Crapo, Marco Rubio, Lindsey Graham, John Cornyn, Roger F. Wicker, Michael B. Enzi, Marsha Blackburn.

LEGISLATIVE SESSION

Mr. MCCONNELL. Mr. President, I move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I move to proceed to executive session to consider Calendar No. 705.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Marvin Kaplan, of Kansas, to be a Member of the National Labor Relations Board for the term of five years expiring August 27, 2025. (Reappointment)

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Marvin Kaplan, of Kansas, to be a Member of the National Labor Relations Board for the term of five years expiring August 27, 2025. (Reappointment)

Mitch McConnell, Joni Ernst, John Thune, Cindy Hyde-Smith, Roy Blunt, John Cornyn, Marsha Blackburn, Deb Fischer, John Barrasso, Shelley Moore Capito, Todd Young, John Boozman, Lamar Alexander, David Perdue, Kevin Cramer, Tim Scott, Michael B. Enzi.

LEGISLATIVE SESSION

Mr. MCCONNELL. Mr. President, I move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I move to proceed to executive session to consider Calendar No. 707.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Lauren McGarity McFerran, of the District of Columbia, to be a Member of the National Labor Relations Board for the term of five years expiring December 16, 2024. (Reappointment)

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Lauren McGarity McFerran, of the District of Columbia, to be a Member of the National Labor Relations Board for the term of five years expiring December 16, 2024. (Reappointment)

Mitch McConnell, Joni Ernst, John Thune, Cindy Hyde-Smith, Roy Blunt, John Cornyn, Marsha Blackburn, Deb Fischer, John Barrasso, Shelley Moore Capito, Todd Young, John Boozman, Lamar Alexander, David Perdue, Kevin Cramer, Tim Scott, Michael B. Enzi.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the mandatory quorum calls for the cloture motions be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

The PRESIDING OFFICER. The Senator from Hawaii.

REMEMBERING JOHN LEWIS

Ms. HIRONO. Mr. President, as we finally begin negotiations on the next COVID bill, I note that Democrats were ready to come to the table with a sense of urgency at least 2 months ago, when the House passed the Heroes Act.

Before I begin my remarks on education today, I want to pay tribute to the life and work of an extraordinary public servant, my friend Congressman John Lewis.

John was a remarkable man, whose deep convictions and concerted actions made an indelible mark on American history, and we could certainly spend hours chronicling his contributions to public life, from his speech at the March on Washington and the march across the Edmund Pettus Bridge on Bloody Sunday to his leadership on gun safety, civil rights, and voting rights during his time in Congress.

John meant so much to our country, but he also meant a lot to each of us

who had the privilege to call him a friend and colleague. Almost everyone who served with John in his three-plus decades in the House has a story or two to tell. I certainly do.

I fondly remember traveling with John to Ireland as part of a peace and reconciliation summit organized by the Faith and Politics Institute in 2014. During our trip, I remember how young Irish activists connected with John's powerful work as a civil rights leader committed to nonviolent resistance to oppression and peaceful reconciliation.

The following year, I proudly marched across the Edmund Pettus Bridge with John to mark the 50th anniversary of Bloody Sunday. One of the most cherished pictures in my office is one of John, me, and the late Hawaii Congressman Mark Takai from that day, and we were all wearing lei flown in from Hawaii.

Mark, whom we also lost too soon to pancreatic cancer 4 years ago, and I organized the delivery of hundreds of lei that day to commemorate the gift from Hawaii's Rev. Abraham Akaka to Dr. Martin Luther King, Jr., 50 years ago for the third march in Selma. News footage from that time showed Dr. King and other leaders wearing the white carnation lei sent by Reverend Akaka, the brother of the late Senator Dan Akaka.

Over the years, that photo of the three of us in our fresh lei has always brought a smile to my face.

I know many of my colleagues have similar stories to share, and it has been meaningful to hear so many people on both sides of the aisle recognize John's life and work in statements and speeches.

It is certainly appropriate to honor John with our words, but it would be better if we honored John through our actions, because while John was certainly a gifted orator, he was also a man of action—of ''good trouble.''

The best way for us to honor John's extraordinary life's work would be for the Senate to vote on and pass the Voting Rights Advancement Act, now renamed in John's honor. Action, not just words.

CORONAVIRUS

On education, last week we heard two unbelievable and frankly horrifying statements from the Trump administration about its push to reopen our schools. On CNN's ''State of the Union,'' Secretary of Education Betsy DeVos claimed that ''there's nothing in the data that suggests that kids being in school is in any way dangerous.'' Later in the week, White House Press Secretary Kayleigh McEnany responded to criticism of the President's position on school reopenings and said: ''The science should not stand in the way of this.''

These comments reflect a President and an administration's disregard for the health and safety of our teachers, students, and families.

The President and his enablers accuse Democrats of pushing back on his administration's reckless policies for political reasons. The truth is, if there is one thing President Trump has made clear time and again, it is that he doesn't do anything without a self-serving political motive.

Come on. We all want our schools to open, including the teachers, parents, and the students I have spoken with. But, of course, we want schools to open safely, without risking exposure to the virus, and I really don't understand why Betsy DeVos doesn't get this.

Reopening our schools safely in the midst of this pandemic would be challenging even with competent leadership in the White House and the Department of Education. Instead, we have a President and Secretary of Education who threaten to withhold funding for schools that refuse to reopen, who support sweeping mandates for schools to reopen before it is safe to do so, and who push the CDC to weaken its guidelines on schools reopening.

The cavalier disregard for our students, teachers, principals, and administrative staff has produced considerable uncertainty in States and local communities already under tremendous stress during this pandemic. Increasingly, they are forced to create their own guidelines, leaving students, teachers, parents, and principals unsure about how to return to school safely. This uncertainty is contributing to a growing anxiety across our country, but it is a more proximate concern in Hawaii, where school districts are scheduled to reopen on August 4—less than 2 weeks away.

Earlier this summer, the Hawaii Department of Education and the Hawaii State Teachers Association corroborated on a plan to provide individual schools a measure of freedom to decide how best to begin the school year. At the time, the low numbers of COVID cases provided optimism that some schools could reopen for at least some in-person instruction at the beginning of the school year. An evolving set of facts on the ground, including a rise in new COVID infections in our State, led the Hawaii State Teachers Association to announce its opposition to resuming in-person instruction on August 4.

The Hawaii Government Employees Association, HGEA, and United Public Workers, UPW, represent school support staff. Both unions have joined HSTA in urging the State to delay students returning to classrooms, citing ''lack of health strategies to mitigate the spread of the coronavirus on public school campuses.'' Their position reflects the importance of relying on science and public health data to make decisions about our schools.

If circumstances warrant, our policies should change to ensure a safe learning environment. As school districts confront difficult choices with painful tradeoffs, our students and educators deserve certainty, resources, and support from the Federal Government.

I heard this message consistently in my conversations with educators and students in Hawaii over the last 2 weeks during our State work period. Teachers are particularly concerned about how looming budget shortfalls in Hawaii could lead to a massive round of teacher layoffs and furloughs and broader cuts to education programs. These layoffs and furloughs would have devastating consequences for educators, their families, and the students they teach.

An elementary teacher in Kona on Hawaii Island told me how the threat of furloughs and budget cuts are impacting his life. He is the son of Central American immigrants and a first-generation college graduate. He and his fiance, who is also a teacher, would like to buy a home and start a family, but they can't proceed with their plans under the threat of being furloughed. He has been a teacher for 9 years and loves his job.

Teachers are also concerned about being forced to return to school to teach without adequate childcare for their own school-age children, some of whom may be physically in classrooms or not. A middle school teacher in Ewa on Oahu had to quit her job and return to Maryland so her parents could care for her infant daughter. The school has been forced to fill the position with substitute teachers who are not certified.

Another major concern for teachers is the learning loss that accelerates when students are not in class.

A high school science teacher on Maui is worried that his students do not have the technology and devices they need to be successful in a distance learning model. Teachers must share computer carts because their school doesn't have enough laptops for each student. He is worried about how students will complete their assignments if they are learning from home 2 or more days a week.

A teacher at my alma mater, Kaimuki High School, added that many of her students either share laptops or don't have access to a laptop or tablet at home.

Student government leaders I have spoken with have also shared their concerns about learning loss and how the pandemic has transformed their education.

A recent graduate headed to college in Boston commented that distance learning was difficult for her to navigate because she did not have access to technology growing up. She described the move to distance learning as ''frantic'' and explained that it was ''discouraging'' to continue her studies without the student-teacher interactions she previously had.

A rising senior at Moanalua High School in Honolulu shared how difficult it was to stay motivated through distance learning, especially as his peers stopped participating. He acknowledged that he had probably experienced learning loss.

Another senior found it harder to learn online because she is a visual

learner. Some of her teachers did not offer visual lessons, so she had to teach herself. She also found that less interaction with teachers made it more difficult for her to complete her assignments.

These stories underscore the urgency and immediacy of the challenges we face in reopening our schools.

It is time for the Senate to step up and confront this crisis in American education. The first thing we should do is pass the Heroes Act—legislation our colleagues in the House passed over 2 months ago. Heroes provides an additional $90 billion in an education-stabilization fund, but we should go even further. Recently, I joined 40 of my Democratic colleagues to request an additional $175 billion for K–12 schools through the Elementary and Secondary Emergency Relief Fund. These funds would help schools purchase cleaning supplies and laptop computers and implement programs to make sure we are meeting the social, emotional, and academic needs of our students.

Hawaii's superintendent estimates this need would cost $234 million for our students just in Hawaii. We have a statewide school system with about 180,000 students K–12. These programs are especially important for our vulnerable students from economically disadvantaged backgrounds, students with disabilities, English language learners, and others.

We should also pass the Child Care is Essential Act, which would provide $50 billion for childcare providers who desperately need financial assistance to continue operating. How do we expect people to go back to work if they don't have childcare options?

This crisis in American education requires a robust national effort to meet the needs. Instead of stepping up to meet this moment, we have a President and Education Secretary who have shown they do not care about our students and our teachers. That means the rest of us must care—the Senate. We are a separate, coequal branch of government. We need to step up in this enormous vacuum of leadership by putting the safety of our teachers and our children before the President's political self-interests.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. SULLIVAN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO DYLAN NICHOLSON, TREVOR MORGAN, MASON DALLMANN, A.J. SIMEON, AND SKYE MORGAN

Mr. SULLIVAN. Mr. President, it is that time of the week where I get to come down and talk about an Alaskan—this time five Alaskans—who is doing great things for our community, our State, and sometimes our country. It is what we call the Alaskan of the Week or Alaskans of the Week. This is one of my favorite parts of the job. I know the Presiding Officer loves these speeches too. When we had pages here, they really loved it. We will get them back here soon, hopefully.

In all seriousness, of course, our country is facing very challenging times, and we have been tested as a nation and as a State on so many levels. If you read the newspaper, you think there is nothing going right, but I will tell you one thing I certainly see in my State. I was home for 3 weeks this past State work period, and I noticed this. There is empathy, kindness, understanding, and people working together and coming together. That is the big story, and I think we ought to keep an eye on that.

People are putting aside their own interests to help their neighbors, to help the elderly, our elders, our seniors. People are partaking in conversations about the soul of our Nation—sometimes uncomfortable conversations but I think overall constructive, important conversations in trying to help each other, to make our communities better, stronger, and make our country better and stronger as we struggle through an unprecedented pandemic.

I certainly see that across my State, and I am certain that the Presiding Officer sees that in his State, and it is really the best of America. It is important to remember that.

One of the reasons I love doing this ''Alaskan of the Week'' speech is because we get to highlight this not just for people in Alaska but for the country, people who are working hard for each other—maybe not getting the recognition they deserve but still doing very important work.

This week, I am going to honor five very fine, young Alaskans, young heroes who, because of their bravery and instincts and courage, very well likely saved lives. They are our Alaskans of the week. But before I talk about them, I always give an update of what is going on back home.

The weather has been glorious in many areas. There has been a lot of Sun—the midnight Sun, of course. There is even more Sun than in Florida right now at this time. The salmon are choking our rivers. I was out in Naknek, in the Crystal Bay region. There are huge sockeye salmon runs happening right now, which is great.

There is also struggling in other parts of the State. Fire season is upon us. This is something we have every year. I used to be the commissioner of natural resources in charge of our Division of Forestry—the brave men and women who fight fires in Alaska and all over the country, really. Sometimes we have really challenging fire seasons. Last summer was a really challenging one for us. Firefighters across the country came and helped Alaska with our challenges. They happened primarily by lightning strikes—thousands in a day, you will get in Alaska. In just 1 day, there are thousands.

So far, the fire season in Alaska—knock on wood—this summer has not been nearly as intense as last summer, but our firefighters are still out there taking on huge fires. You don't read about them in the lower 48. It is dangerous work—very dangerous work.

That brings me to the story of our Alaskans of the week: Dylan Nicholson, who is 13 years old; Trevor Morgan and Mason Dallmann, both 17 years old; A.J. Simeon, who is 19; and Skye Morgan, who is 18.

On the afternoon of May 28, just 2 months ago, these five young men from Aniak, AK—a village of about 500 people that sits 300 miles west of Anchorage—were driving in a truck and on a four-wheeler in a gravel pit area a few miles away from the village. On their way back home, they passed a lake by the road and saw a small yellow airplane that was in the lake. It obviously had just crashed. Obviously, it had just crashed. Inside the plane were three emergency firefighters and a pilot. They had been on their way to the Kenai Peninsula south of Anchorage to support firefighters there. This is late May.

To the boys—these young men—the plane seemed to materialize out of thin air. One of them, Trevor Morgan, is quoted as saying: ''I was like, 'Dang man, that wasn't there 30 seconds ago,' '' and now there is a plane in the lake.

When they heard the shouting coming from the plane and people emerging, the young men sprung into action. The 13-year-old, Dylan, called his aunt, who works at the Alaska State Trooper dispatch office. Then they did something very brave. They jumped into the freezing water.

Now, remember, this is May in Alaska. That lake was probably frozen over just a couple of months earlier. They helped two of the passengers out through the mud and onto the shore. They loaded them into a truck and drove them to a nearby clinic. Two of the other passengers, however, were still stuck in the plane in the water because they were too badly injured to leave the plane.

So, Mason Dallmann, 17 years old, waded out into the water where he stayed with them to make sure they could hang on until help arrived. Now, remember, this is freezing water. By the way, it was thick with diesel oil coming from the engine, so highly dangerous if somehow this was going to ignite.

He was in there keeping them comforted for about 30 minutes. He didn't leave their side. One passenger who was badly injured grabbed onto Mason, and Mason said: Don't worry. I am not going to leave you.

Eventually, 30 minutes in the freezing cold water full of diesel, first responders came and helped get the men out of the plane and transported them to a clinic and a hospital. Two of them

suffered severe injuries, but, fortunately, all of them are recovering, and they are recovering thanks to these five young men and boys who spotted the plane in the first place, which wasn't a given, since it was miles away from town, and then they reacted and got them help.

''We are very fortunate,'' said Alaska State Forest Director Chris Maisch, whom I know very well. He said: ''You couldn't have asked for a better emergency response in this rural community from [these] young people.''

Aniak City Councilman David Mattson arrived at the crash scene when the rescue was going on. He calls the action of these young men ''heroic.'' Councilman Mattson said: Being a hero means going above and beyond for other people—putting others before themselves. And that is what those boys did—at such a young age. And such a quick reaction time. It is so inspiring.

He had lived in other cities across the country, but he gives credit to the way these boys were raised in the valleys of Aniak. He said:

> We are a big family out here. It doesn't matter what you look like, or who you are or what you do—you're a fellow citizen and if you need help, [people in this part of Alaska in America] we jump in and help [others].

So these are just a few stellar examples of young Americans, young Alaskans, our next generation, who are out there doing their part—doing their part to help us during these challenging times. With young men and women like these all across our Nation and all across my State, we know we are going to continue to thrive as a country, as Americans, and as Alaskans, no matter what. We know it.

So to Dylan, Trevor, Mason, A.J., Skye, and your families, thank you for being an inspiration to us all. Thank you for your courage. Thank you for jumping in a cold lake to save lives. Thank you for your heroism. Thank you for stepping up when your community and people in need really needed you without asking any questions and without hesitating. Congratulations on being our Alaskans of the Week.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the en bloc consideration of the following nominations: Executive Calendar Nos. 567 and 629.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the nominations en bloc.

The senior assistant legislative clerk read the nominations of Grant C. Jaquith, of New York, to be a Judge of the United States Court of Appeals for Veterans Claims for the term of fifteen years; and Scott J. Laurer, of Virginia, to be a Judge of the United States Court of Appeals for Veterans Claims for the term of fifteen years.

Thereupon, the Senate proceeded to consider the nominations, en bloc.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate vote on the nominations en bloc with no intervening action or debate; that if confirmed, the motions to reconsider be considered made and laid upon the table en bloc; and that the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

The question is, Will the Senate advise and consent to the Jaquith and Laurer nominations, en bloc?

The nominations were confirmed en bloc.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to legislative session for a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

S. 3841

Mr. GRASSLEY. Mr. President, I am pleased that earlier today the Senate passed S. 3841 by unanimous consent. This is a commonsense measure that will ensure the $1,200 economic impact payments Congress provided to help individuals meet essential needs during these trying times don't instead end up in the pockets of creditors and debt collectors.

The CARES Act, which authorized the economic impact payments, sought to ensure that individuals in need received 100 percent of the payment they are eligible for by generally exempting such payments from administrative offset for past due debts owed to Federal or State agencies. However, as currently written, this language does not protect these payments from bank garnishment or levy by creditors or debt collectors.

The bill we passed today will further the original intent under the CARES Act of ensuring that the economic impact payments go to help individuals struggling to make ends meet as a result of government-enforced lockdowns and economic fallout of the current pandemic. It does this by extending protections against bank garnishment to economic impact payments that are very similar to what is provided to Social Security benefits under current law. Moreover, it continues the policy under the CARES Act of providing an exception for child support enforcement orders to ensure noncustodial parents who owe back child support fulfill their legal and moral obligations to their children.

I would like to thank Senators BROWN, WYDEN, and SCOTT of South Carolina for working with me on this important bill. I hope that the House passes an identical measure as soon as possible so that we can get a bill to the President's desk and these protections can be put into effect.

TRIBUTE TO MARGIE MONTGOMERY

Mr. MCCONNELL. Mr. President, people of faith across my hometown of Louisville gathered recently to mark 50 years of fighting for the unborn in the Bluegrass State. Together, they celebrated the Louisville Right to Life Association and its inspirational work for the most vulnerable in our society. I was proud to offer my congratulations to these champions for life. Today, I would like to look back to the group's founding and a remarkable Kentuckian's choice to pick up the phone.

One evening in 1970, Margie Montgomery watched a troubling editorial on the local news. The segment argued for the removal of legal restrictions on abortions. To say my friend was shocked would be an understatement. She called the station to voice her strong opposition. Before long, Margie appeared on that same news program to deliver a genuine and heartfelt defense of life.

That broadcast was just the beginning. What followed was a campaign of advocacy, organizing, and hard work. Margie spoke up, and she began a movement.

Her passion ignited people of faith and conscience across our Commonwealth. The Louisville group grew into a statewide organization, the Kentucky Right to Life Association. Margie helped create a grassroots network of pro-life volunteers who give voice to the voiceless.

Their work is certainly making a difference. Today, the majority of Kentuckians proudly stand on the side of life. Margie's courageous witness led thousands to join her cause.

For decades, I have had the privilege to work with Margie on many pro-life issues. I look forward to our frequent meetings, both in Kentucky and our Nation's Capital. Along with so many Kentuckians, I am constantly inspired by her passion and drawn in by her compassion. The movement is lucky to have a steadfast and loving leader like Margie.

Tragically, innocent life is still under threat in our Commonwealth and our Nation. There is more work that must be done so all people can enjoy their God-given right to life. As we continue fighting for those who are unable to fight for themselves, I am grateful Kentucky has Margie to champion our cause. It is an honor to join all those who celebrate her golden anniversary of advocacy, and I wish her many more years of celebrating the gift of life.

Mr. President, the Courier-Journal in Louisville recently published a profile

of Margie's leadership for the sanctity of life. I ask unanimous consent that the column by former Kentucky State Representative Bob Heleringer be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Louisville Courier-Journal, July 14, 2020]

A DETERMINED MARGIE MONTGOMERY HAS BEEN DEFENDING THE SANCTITY OF HUMAN LIFE FOR 50 YEARS

(By Bob Heleringer)

In 1970, a gentleman named Bob Schulman occasionally appeared during the late evening news on WHAS–TV to read on-air editorials (''One Man's Opinion''). Wearing his trademark bow tie, he looked and spoke like a college professor. One night, he said it was time to liberalize the abortion laws in this country, to remove the legal restrictions that had made this medical procedure a criminal offense.

Watching at home that evening was a 37-year-old wife, mother, civic volunteer, Rosemont College graduate and former city editor of the Irvington (New Jersey) Herald newspaper, Margaret Anne ''Margie'' Montgomery. Alarmed, the then-president of the League of Catholic PTA called the station the next morning and was cordially invited by Mr. Schulman himself to give a response.

After she gave the first of what became thousands of public, passionate addresses defending the sanctity of all human life, her telephone rang for a week—some were complete strangers but all agreed with Mrs. Montgomery that ''something had to be done.''

Right there in her kitchen, a national, state and local Right-to-Life movement was born. (The ''right to Life'' is one of the ''self-evident'' unalienable rights proclaimed by the Declaration of Independence.) This Thursday evening, about 700 socially distanced people will gather at the Crowne Plaza hotel for the 47th annual ''Celebration of Life'' dinner that will also honor Margie Montgomery's remarkable 50 years of service on behalf of the greatest civil rights cause in our beloved country since the abolition of slavery.

When the movement she began outgrew her house, in 1973, Mrs. Montgomery opened a full-time operation in St. Matthews, where she still today, from a tiny and cramped corner office in a nondescript office building, oversees the state's lobbying efforts in Frankfort and Washington, D.C., runs an annual statewide convention, organizes the annual pro-life rallies in Frankfort and downtown Louisville on the anniversary of Roe v. Wade, the pernicious Supreme Court decision that legalized the killing of our preborn sisters and brothers, coordinates a double full-page ad in this newspaper on that anniversary with thousands of names of Louisvillians, organizes the yearly dinner with a national figure giving a keynote address, presides over the annual Walk for Life up and down Shelbyville Road, quarterbacks a political action committee that strives to elect pro-life candidates to public office (people like her that will ''do something''), and still appears at every school and civic group that will have her to give one of her ''talks,'' the central theme of which is ''abortion stops a beating heart.''

Now into the sixth decade of her vocation, this soft-spoken but determined woman has been the Gold Star Mother who won't let America ever forget the staggering human toll of this heretofore unknown constitutional ''right:'' the 61,628,584 babies' lives ''terminated'' (through 2017). She is still Kentucky's first responder whenever and wherever human life is threatened, the full-throated voice for those who have no voice.

She didn't hesitate to use that voice when she confronted the very man who wrote the infamous Roe decision: Justice Harry Blackmun. When the University of Louisville law school favored Mr. Blackmun in 1983 with its Brandeis Medal, Mrs. Montgomery was in attendance.

When it was her turn in the receiving line, as he extended his hand, she asked, ''How can you sleep at night knowing how many lives have been lost because of your terrible decision?'' The associate justice of the United States Supreme Court audibly gasped and, as he withdrew his hand, Mrs. Montgomery quietly said, ''I will pray for you.''

Thanks to those efforts, and those of thousands of volunteer women and men from all over this commonwealth, Kentucky can fairly be called America's most pro-life state with an overwhelmingly prolife congressional delegation and state legislature.

Elections have consequences, some good. Pre-natal killings in our state have declined from a high of 11,000 a year to ''only'' 3,000. Legislation Mrs. Montgomery advocated, the ''Choose Life'' license plates, finances more than 50 crisis pregnancy centers in Kentucky that, if only a woman will assent to let her baby live, she will be sheltered, protected, nurtured and financially supported. (As of 2017, there are 2,752 of these life-affirming centers throughout the country.)

This, then, is Margie Montgomery's most inspiring legacy: Her unwavering commitment to preserve, protect and defend all human life has directly led to an untold and unknown number of human lives being saved by women in crisis who got a timely word of encouragement and support, looked at a leaflet, spotted a billboard message, read an ad in a church bulletin, called a crisis hotline, saw their unborn baby move on a sonogram or ultrasound and blessed God's creation by giving humanity one more life to marvel at, appreciate, love and cherish. Those saved people walk among us every single day. As the Talmud says (paraphrasing): ''(S)he who saves a life, saves the entire world.''

REMEMBERING MARIA WHELAN

Mr. DURBIN. Mr. President, on June 10, we lost an extraordinary advocate for children and families in Illinois. For more than four decades, Maria Whelan fought to ensure equal access to quality and affordable childcare. Today, we pay tribute to her hard work and life.

Maria was born on December 4, 1950, in East Hampton, NY. She was the third of 12 children. Ten cousins lived just down the road. Maria went to Clarke College and completed her master's at the University of Chicago. She supported herself working as a waitress and a janitor. It was in Chicago that she met Jack Wuest. They married and raised three daughters in Chicago's North Side neighborhood of Rogers Park.

In 1976, Maria was working with educators and advocates to help families when the local afterschool program's sponsoring agency closed. Maria and some of these folks formed what would later become the Carole Robertson Center for Learning. She served as the center's first executive director until 1989. Maria helped the center become a thriving center for quality early childhood education. Maria continued her fight for families as the director of children services for the Illinois Department of Human Services and then the senior program officer for the Chicago Community Trust. In 2000, she became the president and CEO for Illinois Action for Children, which provides 150,000 children and families every year access to high-quality early care and education opportunities.

Under Maria's leadership, Illinois Action for Children expanded its scope. She helped create the Healthy Food Program, which helps families stretch their dollars by reimbursing childcare providers for the cost of feeding children with healthy food. Maria was instrumental in the development of Innovation Zones that connect critically important resources in some of Chicago's most underserved communities.

The Innovation Zones led to the transformative Community Systems Statewide Supports Program, which helps communities improve early childhood services with training, planning, and collaboration. Maria also helped move Illinois Action for Children into direct early childhood services with its early learning program centers in Chicago's South and West suburbs.

There was no one like Maria. Maria was tough, smart, passionate, and an authority on what needed to be done to best serve families in Illinois. I made it a point to meet with her. She made partnerships that mattered. Maria helped them launch the Lunch Bus with the Greater Chicago Food Depository to provide free summer meals to children.

Maria enjoyed reading, classical music, and spending time with her family in Vermont. And she always loved a good laugh. We will miss her smile, her wit, and her heart. She is survived by her husband Jack; her three daughters, Catherine Mary, Ellen Rose, and Maeve Margaret; her three grandchildren, Teddy, Archie, and Evie; and her nine brothers and sisters.

REMEMBERNG JOHN ''JACK'' DUNFEY

Mr. LEAHY. Mr. Presient, the global community has lost one of our most active advocates for peace. On June 22, John Philip Dunfey passed away. Known as Jack to his many friends around the world, he was a World War II veteran, founder and CEO of Omni Hotels International, and the owner of Parker House. His impact, however, was far wider. Jack was an ardent supporter of social justice issues throughout his life.

Jack lead human rights missions to many corners of the world, helping to free prisoners in Cuba, remove landmines in Angola and monitor the election in South Africa won by Nelson Mandela.

Jack was the founder and chairman of the Global Citizens Circle, fostering

cross-cultural and intergenerational dialogue about important social change. Together with friends on both sides of the aisle, Dunfey was appointed by President Ronald Reagan to the commission that founded the U.S. Institute for Peace. He was also a founding board member of the American Ireland Fund, an organization working to bring peace to Ireland. These important organizations will far outlive Jack, continuing his legacy and helping to improve lives across the globe.

He lived a life true to his favorite saying, ''We make a living by what we get, but we make a life by what we give.'' Jack gave abundantly, and the world owes him a debt of gratitude.

My thoughts are with Jack's wife, Lisa, and their family during this difficult time.

I ask unanimous consent that the full obituary for John Philip Dunfey be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DUNFEY, JOHN PHILIP FOUNDER AND CHAIRMAN, GLOBAL CITIZENS CIRCLE; FOUNDER AND CEO, OMNI HOTELS INTERNATIONAL ALSO OWNED AND RENOVATED PARKER HOUSE (1968–1988)

John Philip Dunfey, a World War II veteran who dedicated much of his life to fostering world peace and social justice, died at age 96 on June 22, 2020, in Hampton, NH. Known as ''Jack'' to friends, he spent decades of behind-the-scenes work in support of causes such as the peace process in Northern Ireland and human rights efforts in South Africa, Cuba, Central America, South America, and the Middle East. Notably, Dunfey spearheaded his family's efforts in 1974 to launch Global Citizens Circle. Originally known as New England Circle, the not-for-profit entity continues its mission almost 50 years later to ''. . . gather diverse, intergenerational voices addressing critical issues and building the trust needed for sustainable change in ourselves, our nation, and our world.''

Dunfey was born in Lowell, MA, on January 7, 1924, to former millworkers, Catherine A. Manning and LeRoy W. Dunfey. The fifth of twelve children, Jack began his work career as did all his siblings at a very young age in his parents' small luncheonette in the Acre section of Lowell. After graduating from Lowell's Keith Academy, Jack joined the U.S. Air Force in 1943, attaining the rank of first lieutenant while serving as a B–24 and B–29 pilot instructor.

Following his honorable discharge in 1946, he earned his Bachelor of Science degree in business at the University of New Hampshire in 1952. He also led his family's business. From 1950 to 1988, the enterprise expanded from New England-area luncheonettes, clam stands, and pizza shops to the Dunfey Hotel Corporation, whose hallmark became refurbishing downtrodden inner-city hotels. When the Corporation acquired Omni Hotels International—with its dozens of properties worldwide, including London and Paris—Jack kept the corporate headquarters rooted in Hampton, NH, to help preserve the close employee-management relationship that was so much a part of the early family business. The acquisition and restoration of the historic Parker House Hotel in Boston in 1968—in the era of assassinations, the Vietnam War, and Civil Rights Movement—provided Jack and his siblings a prominent base to advance their beliefs in social justice.

For many years, he led human rights missions into neglected corners of the world with his personal goal of releasing political prisoners. His favorite saying was: ''We make a living by what we get, but we make a life by what we give.'' He was kind, thoughtful and generous with his immediate and extended family and with the larger human family. The missions to Cuba, for his meetings with Fidel Castro, led to the release of 87 prisoners, the removal of landmines in Angola, and the freeing up of food supplies to enter Ethiopia.

While a staunch Democrat, Jack was noted for working across party lines to achieve his objectives. In 1984 President Ronald Reagan, a staunch Republican, appointed Dunfey as one of the nine-member commission founders of the United States Institute for Peace, tasked with promoting conflict resolution and peace worldwide. Jack was also a founding board member of the American Ireland Funds. He and his brothers, Bob and Walter, were recognized as bridge-builders and advocates of cross-community dialogue during the Troubles in Northern Ireland. When John Hume and David Trimble were awarded the Nobel Peace Prize in 1994, they invited Jack and Bob to travel with them and their families to Oslo. That same year, Jack was also appointed an independent, international monitor in South Africa's historic first election of Nelson Mandela as president.

Jack is survived by his wife, Lisa Timpé Dunfey, Boston, MA; three children, Susan Dunfey, Rye, NH; David Dunfey, Sebastian, Florida; Stephen Dunfey, Portsmouth, NH; and three siblings, Eileen Dunfey Robinson, Bradenton, Florida; Jerry Dunfey and his wife, Nadine Hack, Lutry, Switzerland; Eleanor Dunfey and her husband, James Freiburger, Exeter, NH; and many nieces, nephews and cousins whom he cherished. Jack was preceded in death by his son, Philip; and Joan Lannan Dunfey, the mother of his children, as well as eight siblings: Roy, Paul, Kay, Mary, Bud ''Bill,'' Robert ''Bob,'' Richard ''Dick,'' and Walter. Because of COVID–19 restrictions, the family plans a Memorial to celebrate Jack's life at a later date.

BUDGET SCOREKEEPING REPORT

Mr. ENZI. Mr. President, I rise to submit to the Senate the budget scorekeeping report for July 2020. This is my second scorekeeping report since I filed the deemed budget resolution for fiscal year 2021 on May 4, 2020, as required by the Bipartisan Budget Act of 2019, BBA19. The report compares current-law levels of spending and revenues with the amounts agreed to in BBA19. In the Senate, this information is used to determine whether budgetary points of order lie against pending legislation. The Republican staff of the Budget Committee and the Congressional Budget Office prepared this report pursuant to section 308(b) of the Congressional Budget Act. The information included in this report is current through July 17, 2020.

Since I filed the last scorekeeping report on June 4, 2020, three measures with significant enforceable budgetary effects have been enacted. Two of those measures, the Paycheck Protection Program Flexibility Act of 2020, P.L. 116–142, and the Emergency Aid for Returning Americans Affected by Coronavirus Act, P.L. 116–148, were designated as emergencies by Congress and are not subject to budgetary enforcement. The third measure, the Hong Kong Autonomy Act, P.L. 116–149, increased both direct spending and revenues due to its imposed sanctions regime. Over the fiscal year 2021–2030 period, P.L. 116–149 would increase spending by $21 million and revenues by $28 million for a total deficit reduction of $7 million.

Budget Committee Republican staff prepared Tables A–G.

Table A provides the amount by which each Senate authorizing committee exceeds or falls below its allocations for budget authority and outlays under the fiscal year 2020 and fiscal year 2021 deemed budget resolutions. This information is used for enforcing committee allocations pursuant to section 302 of the CBA. Committee compliance with allocation remains consistent with last month's report with the exception of the Banking, Housing, and Urban Affairs Committee. Passage of the Hong Kong Autonomy Act led to spending in excess of that committee's allowable levels over the fiscal year 2021–2025 and fiscal year 2021–2030 periods by $4 million and $21 million, respectively. Spending in this bill is largely due to increased receipts to the United States Victims of State Sponsored Terrorism Fund that are then spent without further appropriation.

Tables B and C provide the amount by which the Senate Committee on Appropriations is below or exceeds the statutory spending limits. This information is used to determine points of order related to the spending caps found in sections 312 and 314 of the CBA. The tables show that the Appropriations Committee is compliant with spending limits for fiscal years 2020 and 2021. The figures included in Table C reflect advanced and permanent appropriations that have already been enacted but will become available for obligation in fiscal year 2021.

Tables D and E display figures related to limits on the use of changes in mandatory programs, CHIMPs, in appropriations bills. These $15 billion limits, found in the fiscal year 2018 budget resolution for fiscal year 2020 and section 207 of BBA19 for fiscal year 2021, currently show the Appropriations Committee in compliance.

Tables F and G provide the amount of budget authority enacted for 2020 and 2021, respectively, that have been designated as either for an emergency or for overseas contingency operations, OCO, pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985, as amended. Funding that receives either of these designations results in cap adjustments to enforceable discretionary spending limits. There is no limit on either emergency or OCO spending; however, any Senator may challenge the designation with a point of order to strike the designation on the floor.

In addition to the tables provided by Budget Committee Republican staff, I

am submitting CBO tables which I will use to enforce budget totals approved by Congress.

Because legislation can still be enacted that have an effect on fiscal year 2020, CBO provided spending and revenue reports for both fiscal year 2020 and fiscal year 2021. This information is used to enforce aggregate spending levels in budget resolutions under CBA section 311. CBO's estimates show that current levels of spending for fiscal year 2020 exceed amounts in last year's budget resolution by $68.6 billion in budget authority and $55.1 billion in outlays—2020, Tables 1–2. Revenues are $114.8 billion below the revenue floor. As well, Social Security outlays are at levels assumed for 2020, while Social Security revenues are $16 million above levels assumed in budget.

For fiscal year 2021, the current law levels are $1,180.0 billion and $667.8 billion in budget authority and outlays, respectively, below allowable levels—2021, Tables 1–2. This spending room will be spent down as regular appropriations bills are enacted for fiscal year 2021. Revenues and Social Security levels are at the levels assumed by the fiscal year 2021 deemed budget for this budget year. Over the fiscal year 2021–2025 and fiscal year 2021–2030 period, revenues are $5 million and $28 million, respectively, greater than revenue levels assumed in the deemed budget resolution. These revenue increases are due to the enactment of the Hong Kong Autonomy Act earlier this month.

CBO's report also provides information needed to enforce the Senate pay-as-you-go, PAYGO, rule (2021, Table 3). This rule is enforced under section 4106 of the 2018 budget resolution. The Senate PAYGO scorecard currently shows an enacted deficit decrease of $1 million over the fiscal year 2020–2025 period and $7 million over the fiscal year 2020–2030 period due to passage of the Hong Kong Autonomy Act. The budgetary effects of P.L. 116–142 and P.L. 116–148 are not included in this table due to the emergency designations included in the acts based on authorities included in section 4112 of the fiscal year 2018 congressional budget resolution, H. Con. Res. 71, 115th Congress.

This submission also includes a table tracking the Senate's budget enforcement activity on the floor since the enforcement filing on May 4, 2020. Since that filing, one point of order was raised. On June 15, 2020, I raised a PAYGO point of order against S. Amdt. 1617, the Great American Outdoors Act, which CBO estimated as increasing the on-budget deficit by more than $17 billion over the fiscal year 2020–2030 period. This point of order was waived by the Senate by a vote of 68–30.

All years in the accompanying tables are fiscal years.

I ask unanimous consent that the accompanying tables be printed in the RECORD.

There being no ojbection, the material was ordered to be printed in the RECORD, as follows:

TABLE A.—SENATE AUTHORIZING COMMITTEES—ENACTED DIRECT SPENDING ABOVE (+) OR BELOW (−) BUDGET RESOLUTIONS

[In millions of dollars]

	2020	2021	2021–2025	2021–2030
Agriculture, Nutrition, and Forestry				
Budget Authority	10,430	0	0	0
Outlays	10,430	0	0	0
Armed Services				
Budget Authority	32	0	0	0
Outlays	35	0	0	0
Banking, Housing, and Urban Affairs				
Budget Authority	169	0	4	21
Outlays	169	0	4	21
Commerce, Science, and Transportation				
Budget Authority	7	0	0	0
Outlays	7	0	0	0
Energy and Natural Resources				
Budget Authority	0	0	0	0
Outlays	0	0	0	0
Environment and Public Works				
Budget Authority	8,058	0	0	0
Outlays	415	0	0	0
Finance				
Budget Authority	50,913	0	0	0
Outlays	49,452	0	0	0
Foreign Relations				
Budget Authority	2	0	0	0
Outlays	37	0	0	0
Homeland Security and Governmental Affairs				
Budget Authority	0	0	0	0
Outlays	0	0	0	0
Judiciary				
Budget Authority	12	0	0	0
Outlays	12	0	0	0
Health, Education, Labor, and Pensions				
Budget Authority	−720	0	0	0
Outlays	−997	0	0	0
Rules and Administration				
Budget Authority	0	0	0	0
Outlays	0	0	0	0
Intelligence				
Budget Authority	0	0	0	0
Outlays	0	0	0	0
Veterans' Affairs				
Budget Authority	0	0	0	0
Outlays	0	0	0	0
Indian Affairs				
Budget Authority	0	0	0	0
Outlays	0	0	0	0
Small Business				
Budget Authority	0	0	0	0
Outlays	0	0	0	0
Total				
Budget Authority	68,903	0	4	21
Outlays	59,560	0	4	21

This table is current through July 17, 2020. This table tracks the spending effects of legislation enacted compared to allowable levels. Each authorizing committee's initial 2020 allocation can be found in the Senate Budget Committee Chairman's Congressional Record filing on September 9, 2019. Initial allocations for the 2021, 2021–2025, and 2021–2030 periods can be found in the Chairman's May 4, 2020 filing.

TABLE B.—SENATE APPROPRIATIONS COMMITTEE—ENACTED REGULAR DISCRETIONARY APPROPRIATIONS [1]

[Budget authority, in millions of dollars]

	2020	
	Security [2]	Nonsecurity [2]
Statutory Discretionary Limits	666,500	621,500
Amount Provided by Senate Appropriations Subcommittee		
Agriculture, Rural Development, and Related Agencies	0	23,493
Commerce, Justice, Science, and Related Agencies	5,695	64,980
Defense	622,522	143
Energy and Water Development	24,250	24,093
Financial Services and General Government	35	23,793
Homeland Security	2,383	48,085
Interior, Environment, and Related Agencies	0	35,989
Labor, Health and Human Services, Education, and Related Agencies	0	183,042
Legislative Branch	0	5,049
Military Construction, Veterans Affairs, and Related Agencies	11,315	92,171
State, Foreign Operations, and Related Programs	0	46,685
Transportation and Housing and Urban Development, and Related Agencies	300	73,977
Current Level Total	666,500	621,500
Total Enacted Above (+) or Below (−) Statutory Limits	0	0

This table is current through July 17, 2020.

[1] This table excludes spending pursuant to adjustments to the discretionary spending limits. These adjustments are allowed for certain purposes in section 251(b)(2) of BBEDCA.

[2] Security spending is defined as spending in the National Defense budget function (050) and nonsecurity spending is defined as all other spending.

TABLE C.—SENATE APPROPRIATIONS COMMITTEE—ENACTED REGULAR DISCRETIONARY APPROPRIATIONS [1]

[Budget authority, in millions of dollars]

	2021	
	Security [2]	Nonsecurity [2]
Statutory Discretionary Limits	671,500	626,500
Amount Provided by Senate Appropriations Subcommittee		
Agriculture, Rural Development, and Related Agencies	0	7
Commerce, Justice, Science, and Related Agencies	0	0
Defense	45	0
Energy and Water Development	0	0
Financial Services and General Government	0	0
Homeland Security	0	9
Interior, Environment, and Related Agencies	0	0
Labor, Health and Human Services, Education, and Related Agencies	0	24,679
Legislative Branch	0	1
Military Construction, Veterans Affairs, and Related Agencies	0	83,233
State, Foreign Operations, and Related Programs	0	0
Transportation and Housing and Urban Development, and Related Agencies	0	4,400
Current Level Total	45	112,329
Total Enacted Above (+) or Below (−) Statutory Limits	−671,455	−514,171

This table is current through July 17, 2020.

[1] This table excludes spending pursuant to adjustments to the discretionary spending limits. These adjustments are allowed for certain purposes in section 251(b)(2) of BBEDCA.

[2] Security spending is defined as spending in the National Defense budget function (050) and nonsecurity spending is defined as all other spending.

TABLE D.—SENATE APPROPRIATIONS COMMITTEE—ENACTED CHANGES IN MANDATORY SPENDING PROGRAMS (CHIMPS)

[Budget authority, millions of dollars]

	2020
CHIMPS Limit for Fiscal Year 2020	15,000
Senate Appropriations Subcommittees	
Agriculture, Rural Development, and Related Agencies	0
Commerce, Justice, Science, and Related Agencies	5,737
Defense	0
Energy and Water Development	0
Financial Services and General Government	0
Homeland Security	0
Interior, Environment, and Related Agencies	0
Labor, Health and Human Services, Education, and Related Agencies	9,263
Legislative Branch	0
Military Construction, Veterans Affairs, and Related Agencies	0
State, Foreign Operations, and Related Programs	0
Transportation, Housing and Urban Development, and Related Agencies	0
Current Level Total	15,000
Total CHIMPS Above (+) or Below (−) Budget Resolution	0

This table is current through July 17, 2020.

TABLE E.—SENATE APPROPRIATIONS COMMITTEE—ENACTED CHANGES IN MANDATORY SPENDING PROGRAMS (CHIMPS)

[Budget authority, millions of dollars]

	2021
CHIMPS Limit for Fiscal Year 2021	15,000
Senate Appropriations Subcommittees	
Agriculture, Rural Development, and Related Agencies	0
Commerce, Justice, Science, and Related Agencies	0
Defense	0
Energy and Water Development	0
Financial Services and General Government	0
Homeland Security	0
Interior, Environment, and Related Agencies	0
Labor, Health and Human Services, Education, and Related Agencies	0
Legislative Branch	0
Military Construction, Veterans Affairs, and Related Agencies	0
State, Foreign Operations, and Related Programs	0
Transportation, Housing and Urban Development, and Related Agencies	0
Current Level Total	0
Total CHIMPS Above (+) or Below (−) Budget Resolution	−15,000

This table is current through July 17, 2020.

TABLE F.—SENATE APPROPRIATIONS COMMITTEE—ENACTED EMERGENCY AND OVERSEAS CONTINGENCY OPERATIONS SPENDING

[Budget authority, millions of dollars]

Emergency and Overseas Contingency Operations Designated Spending	2020			
	Emergency		Overseas Contingency Operations	
	Security [1]	Nonsecurity [1]	Security [1]	Nonsecurity [1]
Additional Supplemental Appropriations for Disaster Relief Act, 2019 (P.L. 116–20) [2]	0	8	0	0
Consolidated Appropriations Act, 2020 (P.L. 116–93)	1,771	0	70,855	0
Further Consolidated Appropriations Act, 2020 (P.L. 116–94)	6,229	535	645	8,000
United States-Mexico-Canada Agreement Implementation Act (P.L. 116–113)	0	843	0	0
Families First Coronavirus Response Act (P.L. 116–127)	82	2,389	0	0
Coronavirus Aid, Relief, and Economic Security (CARES) Act (P.L. 116–136)	10,525	319,158	0	0
Paycheck Protection Program and Health Care Enhancement Act (P.L. 116–139)	0	162,100	0	0
Current Level Total	18,607	485,033	71,500	8,000

This table is current through July 17, 2020.

[1] Security spending is defined as spending in the National Defense budget function (050) and nonsecurity spending is defined as all other spending.

[2] The Additional Supplemental Appropriations for Disaster Relief Act, 2019 was enacted after the publication of CBO's May 2019 baseline but before the Senate Budget Committee Chairman published the deemed budget resolution for 2020 in the Congressional Record. Pursuant to the Bipatisan Budget Act of 2019, the budgetary effects of this legislation have been incorporated into the current level as previously enacted funds.

TABLE G.—SENATE APPROPRIATIONS COMMITTEE—ENACTED EMERGENCY AND OVERSEAS CONTINGENCY OPERATIONS SPENDING

[Budget authority, millions of dollars]

Emergency and Overseas Contingency Operations Designated Spending	2020			
	Emergency		Overseas Contingency Operations	
	Security [1]	Nonsecurity [1]	Security [1]	Nonsecurity [1]
Current Level Total	0	0	0	0

his table is current through July 17, 2021.

[1] Security spending is defined as spending in the National Defense budget function (050) and nonsecurity spending is defined as all other spending.

U.S. CONGRESS,
CONGRESSIONAL BUDGET OFFICE,
Washington, DC, July 23, 2020.

Hon. MIKE ENZI,
Chairman, Committee on the Budget, U.S. Senate, Washington, DC.

DEAR MR. CHAIRMAN: The enclosed report shows the effects of Congressional action on the fiscal year 2020 budget and is current through July 17, 2020. This report is submitted under section 308(b) and in aid of section 311 of the Congressional Budget Act, as amended.

The estimates of budget authority, outlays, and revenues are consistent with the allocations, aggregates, and other budgetary levels printed in the Congressional Record on September 9, 2019, pursuant to section 204 of the Bipartisan Budget Act of 2019 (Public Law 116–37).

Since our last letter dated June 4, 2020, the Congress has cleared and the President has signed the following legislation that has significant effects on budget authority, outlays, and revenues in fiscal year 2020:

Paycheck Protection Program Flexibility Act of 2020 (Public Law 116–142); and

Emergency Aid for Returning Americans Affected by Coronavirus Act (Public Law 116–148).

Sincerely,

PHILLIP L. SWAGEL,
Director.

Enclosure.

TABLE 1.—SENATE CURRENT LEVEL REPORT FOR SPENDING AND REVENUES FOR FISCAL YEAR 2020, AS OF JULY 17, 2020

[In billions of dollars]

	Budget Resolution	Current Level	Current Level Over/Under (—) Resolution
On-Budget			
Budget Authority	4,318.8	4,387.4	68.6
Outlays	3,947.1	4,002.2	55.1
Revenues	2,740.5	2,625.7	—114.8
Off-Budget			
Social Security Outlays [a]	961.2	961.2	0.0
Social Security Revenues	940.4	940.4	0.0

Source: Congressional Budget Office.

[a] Excludes administrative expenses paid from the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund of the Social Security Administration, which are off-budget, but are appropriated annually.

TABLE 2.—SUPPORTING DETAIL FOR THE SENATE CURRENT LEVEL REPORT FOR ON-BUDGET SPENDING AND REVENUES FOR FISCAL YEAR 2020, AS OF JULY 17, 2020

[In millions of dollars]

	Budget Authority	Outlays	Revenues
Previously Enacted [a b]			
Revenues	n.a.	n.a.	2,740,538
Permanents and other spending legislation	2,397,769	2,309,887	n.a.
Authorizing and Appropriation legislation	0	595,528	0
Offsetting receipts	—954,573	—954,573	n.a.
Total, Previously Enacted	1,443,196	1,950,842	2,740,538
Enacted Legislation			
Authorizing Legislation			
Continuing Appropriations Act, 2020, and Health Extenders Act of 2019 (Div. B, P.L. 116–59)	693	667	0
Further Continuing Appropriations Act, 2020, and Further Health Extenders Act of 2019 (Div. B, P.L. 116–69)	8,058	415	0
Women's Suffrage Centennial Commemorative Coin Act (P.L. 116–71)	—2	—2	0
Fostering Undergraduate Talent by Unlocking Resources for Education Act (P.L. 116–91)	—720	—997	0
National Defense Authorization Act for Fiscal Year 2020 (P.L. 116–92)	32	35	1
Further Consolidated Appropriations Act, 2020 (Div. I–K, M–Q, P.L. 116–94)	8,360	6,720	—34,449
United States-Mexico-Canada Agreement Implementation Act (P.L. 116–113)	—19	—9	10
Coronavirus Preparedness & Response Supplemental Appropriation Act, 2020 (P.L. 116–123)	110	110	0
Families First Coronavirus Response Act (P.L. 116–127)	53,072	53,276	—80,388
A bill to make technical corrections to the Guam World War II Loyalty Recognition Act (P.L. 116–132)	12	12	0
Paycheck Protection Program Flexibility Act of 2020 (P.L. 116–142) [c]	—	—	—
Emergency Aid for Returning Americans Affected by Coronavirus Act (P.L. 116–148) [c]	—	—	—
Subtotal, Authorizing Legislation	69,596	60,227	—114,826
Appropriation Legislation [a b]			
Continuing Appropriations Act, 2020, and Health Extenders Act of 2019 (Div. A, P.L. 116–59) [d]	0	128	0
Consolidated Appropriations Act, 2020 (P.L. 116–93)	884,979	530,980	0
Further Consolidated Appropriations Act, 2020 (Div. A–H, P.L. 116–94) [c]	1,585,345	1,239,739	0
United States-Mexico-Canada Agreement Implementation Act (Title IX, P.L. 116–113)	843	334	0
Coronavirus Preparedness & Response Supplemental Appropriation Act, 2020 (P.L. 116–123)	7,767	1,041	0
Families First Coronavirus Response Act (P.L. 116–127)	2,471	843	0
Coronavirus Aid, Relief, and Economic Security Act (P.L. 116–136)	329,501	98,680	0
Paycheck Protection Program and Health Care Enhancement Act (P.L. 116–139)	162,100	113,132	0
Subtotal, Appropriation Legislation	2,973,006	1,984,877	0
Total, Enacted Legislation [c]	3,042,602	2,045,104	—114,826
Entitlements and Mandatories	—98,431	6,242	0
Total Current Level [b c]	4,387,367	4,002,188	2,625,712
Total Senate Resolution [f]	4,318,804	3,947,105	2,740,538
Current Level Over Senate Resolution	68,563	55,083	n.a.

TABLE 2.—SUPPORTING DETAIL FOR THE SENATE CURRENT LEVEL REPORT FOR ON-BUDGET SPENDING AND REVENUES FOR FISCAL YEAR 2020, AS OF JULY 17, 2020—Continued

[In millions of dollars]

	Budget Authority	Outlays	Revenues
Current Level Under Senate Resolution	n.a.	n.a.	114,826

Source: Congressional Budget Office.
n.a. = not applicable; P.L. = public law; — = excluded from current level.
[a] Sections 1001–1004 of the 21st Century Cures Act (P.L. 114–255) require that certain funding provided for 2017 through 2026 to the Department of Health and Human Services—in particular the Food and Drug Administration and the National Institutes of Health—be excluded from estimates for the purposes of the Balanced Budget and Emergency Deficit Control Act of 1985 (Deficit Control Act) and the Congressional Budget and Impoundment Control Act of 1974 (Congressional Budget Act). Therefore, the amounts shown in this report do not include $567 million in budget authority and $798 million in estimated outlays.
[b] For purposes of enforcing section 311 of the Congressional Budget Act in the Senate, the aggregate spending and revenue levels for 2020 published in the Congressional Record on September 9, 2019, by the Chairman of the Senate Committee on the Budget pursuant to section 204 of the Bipartisan Budget Act of 2019 (P.L. 116–37) do not include budget authority, outlays, or revenues for off-budget amounts. As a result, amounts in this current level report do not include those items.
[c] Spending and revenue effects designated as an emergency pursuant to Section 4112 of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018, do not count for certain budgetary enforcement purposes in the Senate. These amounts, which are not included in the current level totals, are as follows:

	Budget Authority	Outlays	Revenues
Coronavirus Aid, Relief, and Economic Security Act (P.L. 116–136)	1,442,111	927,876	−568,425
Paycheck Protection Program and Health Care Enhancement Act (P.L. 116–139)	321,335	321,335	0
Student Veteran Corona virus Response Act of 2020 (P.L. 116–140)	5	5	0
Paycheck Protection Program Flexibility Act of 2020 (P.L. 116–142)	0	0	−9,498
Emergency Aid for Returning Americans Affected by Corona virus Act (P.L. 116–148)	1	1	0
Total	1,763,452	1,249,217	−577,923

[d] Section 124 of the Continuing Appropriations Act, 2020 (division A of P.L. 116–59), appropriated funding for the Ukraine Security Assistance Initiative (within the jurisdiction of the Subcommittee on Defense) and designated those amounts as funding for overseas contingency operations. That provision took effect upon enactment on September 27, 2019.
[e] In consultation with the House and Senate Committees on the Budget and the Office of Management and Budget, rescissions of emergency funding that was not designated as an emergency requirement pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 shall not count for certain budgetary enforcement purposes. These amounts, which are not included in the current level totals, are as follows:

	Budget Authority	Outlays	Revenues
Further Consolidated Appropriations Act, 2020 (Division H, P.L. 116–94)	−7	0	0

[f] Section 204 of the Bipartisan Budget Act of 2019 requires the Chairman of the Senate Committee on the Budget to publish the aggregate spending and revenue levels for fiscal year 2020; those aggregate levels were first published in the Congressional Record on September 9, 2019. The Chairman of the Senate Committee on the Budget has the authority to revise the budgetary aggregates for the budgetary effects of certain revenue and spending measures pursuant to the Congressional Budget Act of 1974 and H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018, as updated by the Bipartisan Budget Act of 2019.

	Budget Authority	Outlays	Revenues
Original Aggregates printed on September 9, 2019	3,703,553	3,680,696	2,740,538
Revisions:			
Adjustment for P.L. 116–59, Continuing Appropriations Act, 2020, and Health Extenders Act of 2019	693	795	0
Adjustment for P.L. 116–69, Further Continuing Appropriations Act, 2020, and Further Health Extenders Act of 2019	4,750	4,050	0
Adjustment for P.L. 116–93, Consolidated Appropriations Act, 2020, and P.L. 116–94, Further Consolidated Appropriations Act, 2020	107,126	47,534	0
Adjustment for P.L. 116–113, United States-Mexico-Canada Agreement Implementation Act	843	334	0
Adjustment for P.L. 116–123, Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020	7,767	1,041	0
Adjustment for P.L. 116–127, Families First Coronavirus Response Act, and P.L. 116–136, the CARES Act, and P.L. 116–139, Paycheck Protection Program and Health Care Enhancement Act	494,072	212,655	0
Revised Senate Resolution	4,318,804	3,947,105	2,740,538

U.S. CONGRESS,
CONGRESSIONAL BUDGET OFFICE,
Washington, DC, July 23, 2020.

Hon. MIKE ENZI,
Chairman, Committee on the Budget,
U.S. Senate, Washington, DC.

DEAR MR. CHAIRMAN: The enclosed report shows the effects of Congressional action on the fiscal year 2021 budget and is current through July 17, 2020. This report is submitted under section 308(b) and in aid of section 311 of the Congressional Budget Act, as amended.

The estimates of budget authority, outlays, and revenues are consistent with the allocations, aggregates, and other budgetary levels printed in the Congressional Record on May 4, 2020, pursuant to section 205 of the Bipartisan Budget Act of 2019 (Public Law 116–37).

Since our last current level dated June 4, 2020, the Congress has cleared and the President has signed the following legislation that has significant effects on budget authority, outlays, and revenues in fiscal year 2021:

Paycheck Protection Program Flexibility Act of 2020 (Public Law 116–142); and

Emergency Aid for Returning Americans Affected by Coronavirus Act (Public Law 116–148).

Sincerely,

PHILLIP L. SWAGEL,
Director.

Enclosure.

TABLE 1.—SENATE CURRENT LEVEL REPORT FOR SPENDING AND REVENUES FOR FISCAL YEAR 2021, AS OF JULY 17, 2020

[In billions of dollars]

	Budget Resolution	Current Level	Current Level Over/Under (−) Resolution
On-Budget			
Budget Authority	3,832.2	2,652.2	−1,180.0
Outlays	4,008.7	3,340.9	−667.8
Revenues	2,800.4	2,800.4	0.0
Off-Budget			
Social Security Outlays [a]	1,016.3	1,016.3	0.0
Social Security Revenues	1,001.1	1,001.1	0.0

Source: Congressional Budget Office.
[a] Excludes administrative expenses paid from the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund of the Social Security Administration, which are off-budget, but are appropriated annually.

TABLE 2.—SUPPORTING DETAIL FOR THE SENATE CURRENT LEVEL REPORT FOR ON-BUDGET SPENDING AND REVENUES FOR FISCAL YEAR 2021, AS OF JULY 17, 2020

[In millions of dollars]

	Budget Authority	Outlays	Revenues
Previously Enacted [a b c]			
Revenues	n.a.	n.a.	2,800,378
Permanents and other spending legislation	2,509,325	2,416,969	n.a.
Authorizing and Appropriation legislation	0	810,690	0
Offsetting receipts	−1,029,908	−1,030,145	n.a.
Total, Previously Enacted	1,479,417	2,197,514	2,800,378
Enacted Legislation			
Authorizing Legislation			
Paycheck Protection Program Flexibility Act of 2020 (P.L. 116–142) [c]	—	—	—
Emergency Aid for Returning Americans Affected by Coronavirus Act (P.L. 116–148) [c]	—	—	—

TABLE 2.—SUPPORTING DETAIL FOR THE SENATE CURRENT LEVEL REPORT FOR ON-BUDGET SPENDING AND REVENUES FOR FISCAL YEAR 2021, AS OF JULY 17, 2020—Continued

[In millions of dollars]

	Budget Authority	Outlays	Revenues
Total, Enacted Legislation	0	0	0
Entitlements and Mandatories	1,172,808	1,143,371	0
Total Current Level [b c]	2,652,225	3,340,885	2,800,378
Total Senate Resolution [d]	3,832,200	4,008,705	2,800,378
Current Level Over Senate Resolution	n.a.	n.a.	n.a.
Current Level Under Senate Resolution	1,179,975	667,820	n.a.
Memorandum			
Revenues, 2021–2030			
Senate Current Level [c]	n.a.	n.a.	35,724,106
Senate Resolution	n.a.	n.a.	35,724,078
Current Level Over Senate Resolution	n.a.	n.a.	28
Current Level Under Senate Resolution	n.a.	n.a.	n.a.

Source: Congressional Budget Office.
n.a. = not applicable; P.L. = public law; — = excluded from current level.
[a] Sections 1001–1004 of the 21st Century Cures Act (P.L. 114–255) require that certain funding provided for 2017 through 2026 to the Department of Health and Human Services—in particular the Food and Drug Administration and the National Institutes of Health—be excluded from estimates for the purposes of the Balanced Budget and Emergency Deficit Control Act of 1985 (Deficit Control Act) and the Congressional Budget and Impoundment Control Act of 1974 (Congressional Budget Act). Therefore, the amounts shown in this report do not include $646 million in estimated prior outlays.
[b] For purposes of enforcing section 311 of the Congressional Budget Act in the Senate, the aggregate spending and revenue levels for 2021 published in the Congressional Record on May 4, 2020, by the Chairman of the Senate Committee on the Budget pursuant to section 205 of the Bipartisan Budget Act of 2019 (P.L. 116–37) do not include budget authority, outlays, or revenues for off-budget amounts. As a result, amounts in this current level report do not include those items.
[c] Current level excludes budgetary effects designated as an emergency pursuant to section 4112 of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018. As a result, this report excludes $68,534 million in budget authority, $72,977 million in outlays, and all revenue effects stemming from legislation enacted before the Chair of the Senate Committee on the Budget published aggregate spending and revenues for fiscal year 2021 in the Congressional Record on May 4, 2020. It also excludes the budgetary effects of other laws, enacted this session, which were designated as emergency requirements in accordance with section 4112 of H. Con. Res 71. Those amounts are as follows:

	Budget Authority	Outlays	Revenues
Paycheck Protection Program Flexibility Act of 2020 (P.L. 116–142)	0	0	−8,091
Emergency Aid for Returning Americans Affected by Coronavirus Act (P.L. 116–148)	1	1	0
Total	1	1	−8,091

[d] Section 205 of the Bipartisan Budget Act of 2019 requires the Chair of the Senate Committee on the Budget to publish the aggregate spending and revenue levels for fiscal year 2021; those aggregate levels were first published in the Congressional Record on May 4, 2020. The Chair of the Senate Committee on the Budget has the authority to revise the budgetary aggregates for the budgetary effects of certain revenue and spending measures pursuant to the Congressional Budget Act of 1974 and H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018, as updated by the Bipartisan Budget Act of 2019:

	Budget Authority	Outlays	Revenues
Original Aggregates Printed on May 4, 2020:	3,832,200	4,008,705	2,800,378

TABLE 3.—SUMMARY OF THE SENATE PAY-AS-YOU-GO SCORECARD AS OF JULY 17, 2020

[In millions of dollars]

	2020	2021	2020–2025	2020–2030
Beginning Balance [a]	0	0	0	0
Enacted Legislation [b c]				
Paycheck Protection Program Flexibility Act of 2020 (H.R. 7010, P.L. 116–142) [d]	—	—	—	—
Uyghur Human Rights Policy Act of 2020 (S. 3744, P.L. 116–145)	*	*	*	*
Emergency Aid for Returning Americans Affected by Coronavirus Act (S. 4091, P.L. 116–148) [d]	—	—	—	—
Hong Kong Autonomy Act (H.R. 7440, P.L. 116–149)	0	0	−1	−7
	*	*	−1	−7
Impact on Deficit	*	*	−1	−7
Total Change in Outlays	*	*	4	21
Total Change in Revenues	*	*	5	28

Source: Congressional Budget Office.
* = between −$500,000 and $500,000; = excluded from PAYGO scorecard.
[a] On May 4, 2020, the Chairman of the Senate Committee on the Budget reset the Senate's Pay-As-You-Go Scorecard to zero for all fiscal years.
[b] The amounts shown represent the estimated effect of the public laws on the deficit.
[c] Excludes off-budget amounts.
[d] All amounts in this Act are designated as emergency requirements pursuant to section 4112(a) of H. Con. Res. 71 (115th Congress).

ENFORCEMENT REPORT OF POINTS OF ORDER RAISED SINCE THE FY 2021 ENFORCEMENT FILING

Vote	Date	Measure	Violation	Motion to Waive	Result
118	June 15, 2020	S.Amdt. #1617, Great American Outdoors Act, to H.R. 1957	4106(a)-Senate-Pay-As-You-Go Violation [1]	Sen. Gardner (R–CO)	68–30, waived

[1] Senator Enzi raised a point of order against the measure pursuant to section 4106(a) of H. Con. Res. 71, the Concurrent Resolution on the Budget for Fiscal Year 2018, because the amendemt would increase on-budget deficits.

FY2021 NATIONAL DEFENSE AUTHORIZATION ACT

Ms. COLLINS. Mr. President, I rise today to express my support for the National Defense Authorization Act, which passed the Senate today with strong bipartisan support, and to highlight a number of its important provisions, as well as amendments that I have authored to support robust shipbuilding and to ensure the Navy is prepared for future pandemics.

The NDAA represents one of Congress's most important responsibilities. For the past 59 consecutive years, Congress has come together in a bipartisan manner to craft this annual legislation. The NDAA authorizes funding to support our brave military members serving overseas, including a 3 percent pay raise for our troops in this year's bill, and sets policy for our Nation's military and critical national defense priorities. I commend Chairman INHOFE and Ranking Member REED for their leadership and bipartisan work on this important legislation, which contains many provisions important to Maine and the Nation. Let me emphasize how proud I am of Maine's many contributions to our national defense.

I am pleased that the NDAA includes authorization for two Arleigh-Burke destroyers, one of which will be built by the highly skilled men and women at Bath Iron Works. In Maine, we are very proud of the vital role that Bath Iron Works plays in contributing to our national security. BIW is known throughout the fleet for the high-quality of its ships, proving time and again that ''Bath Built is Best Built.''

To ensure we have the ships we need to provide for a strong national defense, the bill also contains an amendment I authored with Senator KING as my cosponsor, which would prohibit the Navy from reducing the current 104-ship destroyer requirement unless the Secretary submits a formal certification and report to Congress justifying such a change. This process would require the Secretary of the Navy to certify that any proposed reductions in the number of ships would not jeopardize our national security and that the Navy would be able to

mitigate any reduction in anti-air and ballistic missile defense capabilities if the number of DDG–51 destroyers were in fact reduced from current plans. My intention is to ensure that we continue to maintain a strong Navy capable of projecting power and maintaining presence anywhere across the globe.

In January, when news began to leak that the Department's budget request would dramatically reduce procurement of DDG–51's in the 5-year budget plan, I sent a letter to Defense Secretary Esper expressing my strong objections. To date, the Navy has still not adequately justified such deep cuts in ship procurement, which would have devastating effects on our defense industrial base, including our private shipyards. This amendment and this bill will help to protect our shipbuilding industrial base, which will be essential to reach the goal of a 355-ship Navy.

This bill also includes important provisions for the Portsmouth Naval Shipyard in Kittery. The NDAA authorizes $160 million for the first phase of funding for PNSY's Multi-Mission Dry Dock No. 1 extension military construction project, which will be authorized and funded over 3 years due to its large size. This project will ensure our Nation's submarines stay well maintained and at sea for years to come.

In addition, the NDAA contains provisions I championed along with Senator SHAHEEN, which will help our PNSY firefighters develop alternative work schedules and exempt public shipyard workers from DOD's government lodging program when it would adversely affect their mission.

In further support of both our public and private shipyards, the bill also includes an amendment I authored that directs the Navy to report on its plans to prevent and mitigate the impacts of future pandemics, including at private and public shipyards, by focusing on the health and safety of the shipyard workers. Amidst the current COVID–19 pandemic, I led a number of bipartisan letters from the Maine delegation and spoke with the Secretary of the Navy to encourage the Department to do more to protect our shipyard workers' health and safety. My amendment continues that effort, and I again thank Chairman INHOFE and Ranking Member REED for adopting it as part of their substitute amendment.

This NDAA also makes continued investments in America's air power, authorizing 95 fifth-generation Joint Strike Fighter aircraft and seven CH–53K King Stallion helicopters. The workers at Pratt & Whitney's North Berwick factory are proud of their contributions in making the F–35's top-of-line engine the best in the sky, and Hunting Dearborn in Fryberg has been making important contributions to both the F–35 and CH–53K programs for years.

The NDAA also provides important authorizations for the Maine National Guard, including a provision ensuring that Maine Guard members who were activated to respond to the COVID–19 pandemic can receive transitional health benefits. The Maine National Guard has done a phenomenal job supporting our State during the health crisis, taking on tasks such as fit-testing healthcare workers for N95 masks, helping the Maine CDC inventory its supplies and deliver PPE and ventilators across the State, and setting up an external triage tent outside of the Togus VA Medical Center.

This bill also provides authorization for an important perimeter security construction project at the Navy's detachment in Cutler, Maine, which will ensure the security of an important installation that allows Navy commanders to communicate with U.S. and NATO ships, planes, and submarines operating in the Atlantic. This project was the Navy's No. 1 unfunded military construction priority.

There are so many other provisions of this bill that I am proud to support. Just to identify a few, the United States-Israel Security Assistance Authorization Act of 2020, which I cosponsored, was incorporated into the bill and would authorize important security assistance, energy and agricultural cooperation, and provide other authorities to support our steadfast ally Israel.

Another amendment I offered which was incorporated into the bill would require DOD to study its military requirements for negative air pressure room containment systems which are used to isolate patients with contagious illnesses, necessary equipment I believe is essential for DOD to successfully combat and contain future pandemics.

The bill also authorizes the creation of a new Pacific Deterrence Initiative to provide increased security assistance and engagement throughout the Indo-Pacific region in response to an increasingly aggressive Chinese Communist Party.

Enactment of this NDAA is vitally important for the security of our Nation, our servicemembers and their families. I look forward to the Senate's conference with the House and quickly sending the final fiscal year 2021 NDAA to the President's desk.

ADDITIONAL STATEMENTS

TRIBUTE TO MICHELLE COOLICAN

● Mr. RUBIO. Mr. President, today I am pleased to recognize Michelle Coolican, the Flagler County Teacher of the Year from Buddy Taylor Middle School in Palm Coast, FL.

Michelle believes the Teacher of the Year award goes beyond her personal achievement; she considers it an honor for the entire teaching profession. She credits her colleagues, the school's administration for its learning environment, and the students she works with every day for this recognition.

Superintendent Jim Tager noted Michelle's ability to connect with her students by promoting learning through community projects and classroom experiments. She enjoys making her students excited to study science, and they have learned to expect a new project each time they enter her classroom.

Michelle has taught science for 13 years at Buddy Taylor Middle School. She also serves as an adviser for the school's after-school STEM club.

I extend my best wishes to Michelle for receiving this award and look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO LEENA HALL-YOUNG

● Mr. RUBIO. Mr. President, today I am pleased to honor Leena Hall-Young, the Duval County Teacher of the Year at Raines High School in Jacksonville, FL.

Leena is a tenth grade language arts teacher at Raines High School where she considers her role as a teacher to be a facilitator in releasing every child's potential. Superintendent Diana Greene describes Leena as a vibrant and talented educator who has dedicated her career to her students. Leena is credited with fostering a professional learning environment for her colleagues. Under her leadership, her school has seen reading proficiency rates increase by double digits.

Leena is the chairwoman of the English language arts department and helps to create learning opportunities for her colleagues by supporting first year teachers. She also participates in Duval County's Innovative Educator Program.

I extend my best wishes and thanks to Leena for her passion as a teacher, and I look forward to learning of her continued good work.●

TRIBUTE TO SAMANTHA HOWER

● Mr. RUBIO. Mr. President, today I have the privilege to honor Samantha Hower, the Lee County Teacher of the Year from Mariner High School in Cape Coral, FL.

Samantha is the Visual Arts Teacher at Mariner High School and has worked for 7 years in the Lee County School District. Under Samantha's leadership, the school's STEM Academy has become the STEAM Academy, with an art curriculum added to science, technology, engineering, and math. She also began the school's first National Art Honor Society and supports nearby elementary and middle school art programs.

Samantha holds that an education is able to transform a child's entire life. She urges her students to ask the question why: Why do they like something, and why do they do what they do? She does this until they begin to ask these questions themselves. When this happens, Samantha knows they have found comfort in taking risks.

While Samantha always wants her students to do their best and earn good grades, she strives for them to walk out of her classroom knowing how to think and respond to circumstances with prudence. Since opening her advanced placement classes to all students 2 years ago, her students have produced the highest AP 2D studio art scores in the school district. Her goal is to prepare her students for college and careers through gaining experience and developing skills above and beyond their peers.

I am pleased to recognize Samantha for her hard work. I extend to her my warmest regards, and I look forward to hearing of her continued success in the years ahead.●

TRIBUTE TO RYAN MITCHELL

● Mr. RUBIO. Mr. President, today I recognize Ryan Mitchell, the Hamilton County Teacher of the Year from Hamilton County High School in Jasper, FL.

Ryan is an instructional coach at Hamilton County High School and has worked with Hamilton County Schools since 2018. He assists middle school and high school teachers with instructional modeling, lessons and planning, and demonstrating various methods of teaching. He also monitors students' progress from within the schools.

Ryan believes he would not have received this award if not for the support of his family and friends. He is grateful for the countless relationships he has developed in Hamilton County and throughout Florida. It is these relationships that have made him the teacher he is today.

Ryan is also very thankful for his students and considers it an honor to be their teacher. Each day, he looks forward to teaching his students, knowing they are the next generation of future leaders. Ryan makes sure he is available to answer all of his student's questions, and he hopes they learn half as much from him as he learns from them.

I offer my sincere gratitude to Ryan for his work to help students. I look forward to hearing of his continued good work in the years to come.●

TRIBUTE TO TRAVIS O'STEEN

● Mr. RUBIO. Mr. President, today I am pleased to recognize Travis O'Steen, the Dixie County Teacher of the Year at Dixie County High School in Cross City, FL.

Travis currently teaches U.S. history at Dixie County High School. Travis earned his bachelor's degree in religion and history from William Carey University. After completing his world travels, he felt he could bring his studies and global experience as a teacher to his students. Previously, he taught finance, English, and the performing arts for high school students.

Travis has always been interested in learning why people believe in what they do. This has led him to travel the world to research history, cultures, and archaeology. After returning home, he found that these teaching experiences enhanced his own classroom instruction. This enhanced knowledge has enabled him to help his students to better understand and develop a passion for American and world history.

I express my sincere thanks and appreciation to Travis for his devotion to helping his students to succeed. I look forward to hearing of his continued success in his future endeavors.●

TRIBUTE TO ROB PASCHALL

● Mr. RUBIO. Mr. President, today I recognize Rob Paschall, the Orange County Teacher of the Year at West Creek Elementary School in Orlando, FL.

Rob has been an educator for 27 years and currently teaches fifth grade at West Creek Elementary School. In the past year, more than 80 percent of Rob's students demonstrated learning gains, one of many measurable changes credited to his teaching practices. Outside of the classroom, Rob regularly sponsors the school safety patrols, serves as a teacher liaison for the PTA, and works closely with the Florida Department of Education's Writing Rangefinder Committee.

Throughout his educational career, Rob looks to find at least one success each day worth celebrating. He believes in teaching intentionally and works to understand his student's unique learning styles. Rob develops lesson plans designed to meet the needs of each student, highlighting their strengths and finding areas in need of improvement.

Colleagues describe Rob as a humble teacher that enjoys educating younger generations. He strives to help his students improve each day and attributes their growth and success to their dedication and hard work.

I would like to express my sincere appreciation to Rob for his strong commitment to his students. I look forward to hearing of his continued good work in the years to come.●

TRIBUTE TO LORI PRICE

● Mr. RUBIO. Mr. President, today I recognize Lori Price, the St. Johns County Teacher of the Year from the Webster School in St. Augustine, FL.

Lori teaches first grade at the Webster School and believes in giving her students the opportunity to succeed no matter their circumstances. She is honored to be the person who pushes her students to go above and beyond what is expected of them.

A veteran teacher of more than 30 years, Lori has a positive approach to teaching math. She prompts her students to think like mathematicians so they can develop confidence in their ability to solve problems.

Lori has faith in her students and considers it her job as an educator to help them reach their potential. She sets high expectations in the classroom to allow students to see challenges as opportunities. She loves to create a space in which children can confidently undertake challenges.

In addition to organizing the St. Johns County Math Conference and presenting at various mathematics conferences, Lori also offers monthly professional development meetings for her fellow math teachers. She is passionate about investing in her colleagues and hopes her work makes an impact on students in her district and beyond.

I convey my best wishes to Lori for her dedication to her students. I look forward to hearing of her continued success.●

TRIBUTE TO PAUL RICHARDSON

● Mr. RUBIO. Mr. President, today I honor Paul Richardson, the Bay County Teacher of the Year at Tom P. Haney Technical Center in Callaway, FL.

Paul is an instructor in welding technology and teaches the foundational program at Tom P. Haney Technical Center. His class covers a broad base of knowledge and skills such as management, environmental issues, and safety. Paul's goal is to prepare students for employment in the welding industry. He also instructs advanced welding technology for students who have demonstrated a mastery of his foundational program.

Paul is the first instructor at Tom P. Haney Technical Center to receive this award. It is also the first time Bay County has named a technical school teacher ''Teacher of the Year.'' Paul credited his colleagues for this achievement, noting their combined work helps students with their education. He was thankful to see that the importance of technical education was recognized.

I extend my sincere thanks and gratitude to Paul for his dedication to his students, and I look forward to hearing of his continued good work in the years ahead.●

TRIBUTE TO VANESSA VALLE

● Mr. RUBIO. Mr. President, today I am pleased to honor Vanessa Valle, the Miami-Dade County Teacher of the Year at Hialeah Gardens High School in Hialeah Gardens, FL.

While in high school, one of Vanessa's teachers inspired her to become a teacher. Since then, she has dedicated her life to educate and transform the lives of students, similar to how hers was changed.

Vanessa considers her job to be more than just teaching and imparting knowledge onto her students. She also seeks to bring empathy to the classroom and commits to helping turn their dreams into reality. Vanessa's colleagues note she is always willing to go the extra mile to help not only her students, but also her fellow teachers.

Vanessa teaches English to students of all levels at Hialeah Gardens High School and has taught for more than 15 years. She also serves as the lead teacher for the school's academy of law studies, is a literacy coach, and is the chair of the reading department. She currently is studying to earn her doctorate degree in English education at Florida International University.

I would like to thank Vanessa for her dedication and look forward to hearing of her continued good work in the years to come.●

TRIBUTE TO SYNDIE WHITE

● Mr. RUBIO. Mr. President, today I honor Syndie White, the Palm Beach County Teacher of the Year at Elbridge Gale Elementary School in Wellington, FL.

Syndie is a math, science, and social studies teacher for third graders at Elbridge Gale Elementary School. She also tutors struggling students, leads an engineering club, runs a robotics program, and dedicates her spare time to mentoring young women at her school and at church.

Syndie credits her success to her father. Watching his hard work ethic for more than 30 years taught her that anything is possible for her to achieve. She works to bring passion and hard work, not only to her classroom, but also to extracurricular school activities she undertakes.

Syndie's colleagues consider her the epitome of what a teacher should be. She engages with her students in the classroom and views being their teacher as a privilege for her own sake, instead of as a job or seeking special recognition.

I extend my sincere thanks to Syndie for her hard work and dedication to students. I look forward to hearing of her continued good work in the coming years.●

TRIBUTE TO KIRK TAPLEY

● Mr. RUBIO. Mr. President, today I honor Kirk Tapley, the Alachua County Teacher of the Year at Howard Bishop Middle School in Gainesville, FL.

Kirk teaches advanced world history at Howard Bishop Middle School, where he was once a student. He considers it a privilege to teach in the same classroom where he first learned world history. His desire to give back to the school district that gave to him led Kirk to pursue his teaching career in Alachua County.

Colleagues know Kirk for his unconventional approach to teaching. To conduct review sessions, Kirk performs his own adaptations to popular songs, where he replaces well-known lyrics with history lessons as a way of helping students to retain what they are learning.

I would like to convey my sincere gratitude to Kirk for his passion to teach and engage his students and extend my best wishes for his continued success.●

TRIBUTE TO NICOLE THORNTON

● Mr. RUBIO. Mr. President, today I recognize Nicole Thornton, the Levy County Teacher of the Year at Bronson Middle/High School in Bronson, FL.

Nicole possesses a ''nothing-is-impossible'' mentality and a ''will-do'' attitude when advising students of opportunities in and outside of the classroom.

As a guidance counselor, Nicole understands the challenges that students face upon graduation, and she works hard to ensure they are prepared. She advises her students on their future academics, as she is passionate about secondary school education. Nicole is always looking to providing a path for students to develop socially and emotionally.

Nicole has more than 15 years of experience in education administration, including leadership and teaching positions. She has been at Bronson Middle/High School since 2018. She previously worked as an assistant principal in Ocala, FL. Nicole earned her doctorate in education from Walden University in 2013 and her master of education from National-Louis University and 2007.

I extend my sincere thanks and gratitude to Nicole for her dedication to students, and I offer my best wishes for her continued success in the coming years.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mr. Pate, one of his secretaries.

PRESIDENTIAL MESSAGE

REPORT ON THE CONTINUATION OF THE NATIONAL EMERGENCY THAT WAS ORIGINALLY DECLARED IN EXECUTIVE ORDER 13882 OF JULY 26, 2019, WITH RESPECT TO THE SITUATION IN MALI—PM 56

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on Banking, Housing, and Urban Affairs:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622(d)) provides for the automatic termination of a national emergency unless, within 90 days before the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the national emergency declared with respect to the situation in Mali in Executive Order 13882 of July 26, 2019, is to continue in effect beyond July 26, 2020.

The situation in Mali, including repeated violations of ceasefire arrangements made pursuant to the 2015 Agreement on Peace and Reconciliation in Mali; the expansion of terrorist activities into southern and central Mali; the intensification of drug trafficking and trafficking in persons, human rights abuses, and hostage-taking; and the intensification of attacks against civilians, the Malian defense and security forces, the United Nations Multidimensional Integrated Stabilization Mission in Mali (MINUSMA), and international security presences, continues to pose an unusual and extraordinary threat to the national security and foreign policy of the United States. Therefore, I have determined that it is necessary to continue the national emergency declared in Executive Order 13882 with respect to the situation in Mali.

DONALD J. TRUMP.
THE WHITE HOUSE, *July 23, 2020.*

MESSAGE FROM THE HOUSE

At 11:10 a.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, in which it request the concurrence of the Senate:

H.R. 7573. An act to direct the Joint Committee on the Library to replace the bust of Roger Brooke Taney in the Old Supreme Court Chamber of the United States Capitol with a bust of Thurgood Marshall to be obtained by the Joint Committee on the Library and to remove certain statues from areas of the United States Capitol which are accessible to the public, to remove all statues of individuals who voluntarily served the Confederate States of America from display in the United States Capitol, and for other purposes.

The message further announced that the House has agreed to the amendment of the Senate to the bill (H.R. 2486) to reauthorize mandatory funding programs for historically Black colleges and universities and other minority-serving institutions, with amendments, in which it requests the concurrence of the Senate.

ENROLLED BILL SIGNED

The message also announced that the Speaker has signed the following enrolled bill:

H.R. 1957. An act to amend title 54, United States Code, to establish, fund and provide for the use of amounts in a National Parks and Public Land Legacy Restoration Fund to address the maintenance backlog of the National Park Service, the United States Fish and Wildlife Service, the Bureau of Land Management, the Forest Service, and the Bureau of Indian Education, and to provide permanent, dedicated funding for the Land and Water Conservation Fund, and for other purposes.

The enrolled bill was subsequently signed by the President pro tempore (Mr. GRASSLEY).

MEASURE HELD AT THE DESK

The following measure was ordered held at the desk, by unanimous consent:

S. 3841. A bill to protect 2020 recovery rebates for individuals from assignment or garnishment, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–5116. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Trichoderma atroviride strain SC1; Exemption from the Requirement of a Tolerance'' (FRL No. 10008–04–OCSPP) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5117. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Long Chain Alcohols; Exemption from the Requirement of a Tolerance'' (FRL No. 10011–33–OCSPP) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5118. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Hexythiazox; Pesticide Tolerances'' (FRL No. 10008–84–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5119. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Permethrin; Pesticide Tolerances'' (FRL No. 10009–45–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5120. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Magnesium sulfate; Exemption from the Requirement of a Tolerance'' (FRL No. 10010–64–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5121. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Quinclorac; Pesticide Tolerances'' (FRL No. 10010–91–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5122. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''S-metolachlor; Pesticide Tolerances'' (FRL No. 10011–10–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5123. A communication from the Associate General Counsel for Regulations and Legislation, Office of Housing, Department of Housing and Urban Development, transmitting, pursuant to law, the report of a rule entitled ''Federal Housing Administration (FHA): Section 232 Healthcare Facility Insurance Program-Updating Section 232 Program-Updating Section 232 Program Regulations for Memory Care Residents'' (RIN2502–AJ46) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–5124. A communication from the Chairman of the Board of Governors, Federal Reserve System, transmitting, pursuant to law, the 106th Annual Report of the Federal Reserve Board covering operations for calendar year 2019; to the Committee on Banking, Housing, and Urban Affairs.

EC–5125. A communication from the Director, Bureau of Consumer Financial Protection, transmitting, pursuant to law, the report of a rule entitled ''Payday, Vehicle Title, and Certain High-Cost Installment Loans'' (RIN3170–AA80) received in the Office of the President of the Senate on July 22, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–5126. A communication from the Program Specialist, Office of the Comptroller of the Currency, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Employment Contracts, Mutual to Stock Conversions'' (RIN1557–AE21) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–5127. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Significant New Use Rules on Certain Chemical Substances (19–6.B)'' (FRL No. 10009–89–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Environment and Public Works.

EC–5128. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Wisconsin; Redesignation of the Wisconsin Portion of the Chicago-Naperville, Illinois-Indiana-Wisconsin Area to Attainment of the 2008 Ozone Standard'' (FRL No. 10011–74–Region 5) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Environment and Public Works.

EC–5129. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval of Air Quality Implementation Plans; New York; Infrastructure SIP Requirements for the 2012 PM2.5 NAAQS; Interstate Transport Provisions'' (FRL No. 10011–41–Region 2) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Environment and Public Works.

EC–5130. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Missouri; Removal of Control of Emissions from Bakery Ovens'' (FRL No. 10011–87–Region 7) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Environment and Public Works.

EC–5131. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Missouri; Control of Emissions From Lithographic and Letterpress Printing Operations'' (FRL No. 10012–10–Region 7) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5132. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of State Plans for Designated Facilities and Pollutants; Arizona; Control of Emissions from Existing Municipal Solid Waste Landfills'' (FRL No. 10001–01–Region 9) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5133. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Idaho; Updates to Materials Incorporated by Reference'' (FRL No. 10007–42–Region 10) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5134. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Significant New Use Rules on Certain Chemical Substances (19–5.B)'' (FRL No. 10009–78–OCSPP) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5135. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Revisions to Appendix P to 40 CFR Part 51, Concerning Minimum Emission Reporting Requirements in SIPs'' (FRL No. 10011–71–OAR) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5136. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Maryland; 1997 8-hour Ozone NAAQS Limited Maintenance Plan for the Kent and Queen Anne's Counties Area'' (FRL No. 10011–80–Region 3) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5137. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval and Designation of Areas; Kentucky; Redesignation of the Jefferson County 2010 1-Hour Sulfur Dioxide Nonattainment Area to Attainment'' (FRL No. 10011–97–Region 4) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5138. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Minor Corrections to Emergency Planning and Community Right-to-Know Regulations: Trade Secrecy Claims and Emergency Planning Notification; Amendment'' (FRL No. 10012–00–OLEM) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5139. A communication from the Director of the Regulatory Management Division,

Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; South Carolina; NOx SIP Call and Removal of CAIR'' (FRL No. 10012–02–Region 4) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5140. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Florida; Public Notice Procedures for Minor Operating Permits'' (FRL No. 10012–12–Region 4) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works .

EC–5141. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Georgia; Air Quality Control, VOC Definition'' (FRL No. 10012–13–Region 4) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works .

EC–5142. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''National Emission Standards for Hazardous Air Pollutants; Iron and Steel Foundries Major Source Residual Risk and Technology Review and Area Source Technology Review'' (FRL No. 10010–46–OAR) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Environment and Public Works.

EC–5143. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Oregon; 2010 Sulfur Dioxide NAAQS Interstate Transport Requirements'' (FRL No. 10011–28–Region 10) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Environment and Public Works.

EC–5144. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Clean Air Plans; 2006 Fine Particulate Matter Nonattainment Area Requirements; San Joaquin Valley, California'' (FRL No. 10011–44–Region 9) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Environment and Public Works.

EC–5145. A communication from the Program Manager, Migratory Bird Office, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Revision of Federal Migratory Bird Hunting and Conservation Stamp (Duck Stamp) Contest Regulations'' (RIN1018–BE20) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Environment and Public Works.

EC–5146. A communication from the Associate Director for Legislative and Regulatory Affairs, Council on Environmental Quality, Executive Office of the President, transmitting, pursuant to law, a rule entitled ''Update to the Regulations Implementing the Procedural Provisions of the National Environmental Policy Act'' (RIN0331–AA03) received during adjournment of the Senate in the office of the President of the Senate on July 15, 2020; to the Committee on Environment and Public Works.

EC–5147. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Treasury Decision (TD): Qualified Business Income Decision'' ((RIN1545–BP12) (TD 9899)) received during adjournment of the Senate in the Office of the President of the Senate on July 8, 2020; to the Committee on Finance.

EC–5148. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Food Additives Permitted for Direct Addition to Food for Human Consumption; Vitamin D2 Mushroom Powder'' (Docket No. FDA–2018–F–3230) received during adjournment of the Senate in the Office of the President of the Senate on July 15, 2020; to the Committee on Health, Education, Labor, and Pensions.

EC–5149. A communication from the Department Director, Substance Abuse and Mental Health Services Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Confidentiality of Substance Use Disorder Patient Records'' (RIN0930–AA32) received during adjournment of the Senate in the Office of the President of the Senate on July 17, 2020; to the Committee on Health, Education, Labor, and Pensions.

EC–5150. A communication from the Director, Centers for Disease Control and Prevention, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Health, United States, 2018''; to the Committee on Health, Education, Labor, and Pensions.

EC–5151. A communication from the Director, Office of Acquisition Policy, General Services Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Acquisition Regulation; Federal Acquisition Circular 2020–08, Small Entity Compliance Guide'' (FAC 2020–08) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–5152. A communication from the Director, Office of Acquisition Policy, General Services Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Acquisition Regulation; FAR Case 2019–009, Prohibition on Contracting with Entities Using Certain Telecommunications and Video Surveillance Services or Equipment'' (RIN9000–AN92) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–5153. A communication from the Director, Office of Acquisition Policy, General Services Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Acquisition Regulation; Federal Acquisition Circular 2020–08, Introduction'' (FAC 2020–08) received in the Office of the President of the Senate on July 21, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–5154. A communication from the Executive Director, Interstate Commission on the Potomac River Basin, transmitting, pursuant to law, the Commission's Seventy-Ninth Financial Statement for the period of October 1, 2018 through September 30, 2019; to the Committee on Homeland Security and Governmental Affairs.

EC–5155. A communication from the Secretary of Transportation, transmitting, pursuant to law, the Department's fiscal year 2019 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5156. A communication from the Acting Director, Office of Personnel Management, transmitting, pursuant to law, the Office's fiscal year 2019 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, without amendment:

S. 3461. A bill to designate the facility of the United States Postal Service located at 2600 Wesley Street in Greenville, Texas, as the ''Audie Murphy Post Office Building''.

S. 3462. A bill to designate the facility of the United States Postal Service located at 909 West Holiday Drive in Fate, Texas, as the ''Ralph Hall Post Office''.

S. 3839. A bill to designate the facility of the United States Postal Service located at 2719 South Webster Street in Kokomo, Indiana, as the ''Opha May Johnson Post Office''.

S. 4126. A bill to designate the facility of the United States Postal Service located at 104 East Main Street in Port Washington, Wisconsin, as the ''Joseph G. Demler Post Office''.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. GRAHAM for the Committee on the Judiciary.

Brett H. Ludwig, of Wisconsin, to be United States District Judge for the Eastern District of Wisconsin.

Christy Criswell Wiegand, of Pennsylvania, to be United States District Judge for the Western District of Pennsylvania.

John W. Holcomb, of California, to be United States District Judge for the Central District of California.

Todd Wallace Robinson, of California, to be United States District Judge for the Southern District of California.

R. Shireen Matthews, of California, to be a United States District Judge for the Southern District of California.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. CORNYN:

S. 4290. A bill to provide much needed liquidity to America's job creators; to the Committee on Finance.

By Mr. GARDNER:

S. 4291. A bill to provide appropriations for the deployment of rural broadband, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. COTTON:

S. 4292. A bill to prohibit Federal funds from being made available to teach the 1619 Project curriculum in elementary schools and secondary schools, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. MERKLEY:

S. 4293. A bill to promote airline passenger safety during the COVID–19 public health

emergency; to the Committee on Commerce, Science, and Transportation.

By Mr. MENENDEZ (for himself, Mr. DURBIN, Mr. MANCHIN, Ms. WARREN, Mr. WYDEN, Ms. KLOBUCHAR, Ms. HIRONO, Mr. SCHATZ, Mrs. GILLIBRAND, Mr. MARKEY, Mr. VAN HOLLEN, and Mr. BLUMENTHAL):

S. 4294. A bill to provide supplemental appropriations to the Community Development Financial Institutions Fund, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. PAUL:

S. 4295. A bill to amend title XVIII of the Social Security Act to ensure access to certain drugs and devices under the Medicare program; to the Committee on Finance.

By Mr. PORTMAN:

S. 4296. A bill to provide the Administrator of the Drug-Free Communities Support Program the authority to waive the Federal fund limitation for the Drug-Free Communities Support Program; to the Committee on the Judiciary.

By Mr. CRUZ (for himself, Mr. TILLIS, Mr. PERDUE, and Mrs. LOEFFLER):

S. 4297. A bill to allow participants in certain retirement plans to delay their 2020 contributions to such plans to 2021 or 2022, and for other purposes; to the Committee on Finance.

By Mr. MORAN (for himself, Ms. KLOBUCHAR, Mr. LANKFORD, and Ms. SMITH):

S. 4298. A bill to amend the Agricultural Marketing Act of 1946 to direct the Secretary of Agriculture to make grants for improvements to meat and poultry facilities to allow for interstate shipment, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Ms. CORTEZ MASTO (for herself, Mr. BLUNT, Ms. KLOBUCHAR, and Mr. CRAMER):

S. 4299. A bill to provide grants for tourism and events support and promotion in areas affected by the Coronavirus Disease 2019 (COVID–19), and for other purposes; to the Committee on Environment and Public Works.

By Mr. GARDNER:

S. 4300. A bill to amend the Asia Reassurance Initiative Act of 2018 to require the Secretary of Defense to carry out the Pacific Deterrence Initiative; to the Committee on Foreign Relations.

By Mr. HAWLEY:

S. 4301. A bill to encourage States to permit members of the Armed Forces who are outside of the State under orders to renew a permit to carry a concealed firearm through the mail, and for other purposes; to the Committee on the Judiciary.

By Mr. YOUNG (for himself and Mr. CASSIDY):

S. 4302. A bill to utilize national service programs to directly respond to the novel coronavirus disease (COVID–19) outbreak; to the Committee on Health, Education, Labor, and Pensions.

By Mr. REED:

S. 4303. A bill to improve State short-term compensation programs, and for other purposes; to the Committee on Finance.

By Mr. VAN HOLLEN (for Mr. MARKEY (for himself and Mr. VAN HOLLEN)):

S. 4304. A bill to prohibit actions to terminate or withdraw the United States from certain international agreements without a joint resolution of approval, and for other purposes; to the Committee on Foreign Relations.

By Mr. WHITEHOUSE (for himself, Mr. DURBIN, Mr. BROWN, Ms. BALDWIN, and Ms. WARREN):

S. 4305. A bill to amend title 11, United States Code, to provide bankruptcy protections for medically distressed debtors, and for other purposes; to the Committee on the Judiciary.

By Ms. DUCKWORTH:

S. 4306. A bill to invest in workers and jobs, address important legacy costs in coal country, and drive development of advanced manufacturing and technologies; to the Committee on Finance.

By Mrs. MURRAY:

S. 4307. A bill to amend section 402 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 to extend the eligibility period for supplemental security income benefits for refugees, asylees, and certain other humanitarian immigrants, and for other purposes; to the Committee on Finance.

By Ms. SINEMA (for herself, Mr. CORNYN, and Ms. HARRIS):

S. 4308. A bill to amend the Social Security Act to include special districts in the coronavirus relief fund, to direct the Secretary to include special districts as an eligible issuer under the Municipal Liquidity Facility, and for other purposes; to the Committee on Finance.

By Mrs. SHAHEEN (for herself, Ms. MURKOWSKI, Mr. SANDERS, Mr. BARRASSO, Ms. HIRONO, Mr. CRAMER, Ms. CORTEZ MASTO, Mr. SULLIVAN, Ms. HASSAN, Ms. ROSEN, and Mr. HOEVEN):

S. 4309. A bill to amend the Community Services Block Grant Act to clarify that the maximum allotment provision does not apply to supplemental appropriations for fiscal year 2020; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WARNER:

S. 4310. A bill to prohibit in-person instructional requirements during the COVID–19 emergency; to the Committee on Health, Education, Labor, and Pensions.

By Mr. DAINES (for himself, Mr. BARRASSO, and Mr. CRAMER):

S. 4311. A bill to amend the Mineral Leasing Act to eliminate an administrative fee, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. LEE:

S. 4312. A bill to amend the National Environmental Policy Act of 1969 to provide for project delivery programs, and for other purposes; to the Committee on Environment and Public Works.

By Mrs. SHAHEEN (for herself and Mr. ROUNDS):

S. 4313. A bill to establish a grant program for purposes of providing training to physicians on the health effects of exposure to perfluoroalkyl and polyfluoroalkyl substances; to the Committee on Health, Education, Labor, and Pensions.

By Mr. DURBIN (for himself, Ms. BALDWIN, and Ms. SMITH):

S. 4314. A bill to amend the Internal Revenue Code of 1986 to address the teacher and school leader shortage in early childhood, elementary, and secondary education, and for other purposes; to the Committee on Finance.

By Mr. KING (for himself and Ms. MURKOWSKI):

S. 4315. A bill to authorize the Secretary of Health and Human Services to award grants to eligible entities to conduct testing and contact tracing for COVID–19, and related activities such as supported isolation, through mobile health units and, as necessary, at individuals' residences, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WHITEHOUSE (for himself, Mr. REED, and Mrs. GILLIBRAND):

S. 4316. A bill to provide Federal reimbursement of qualified State paid leave programs, and for other purposes; to the Committee on Finance.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. CORTEZ MASTO (for herself, Mr. MENENDEZ, Mr. BOOKER, Ms. HARRIS, Mr. WYDEN, Mr. VAN HOLLEN, Mr. CARDIN, Ms. STABENOW, Ms. ROSEN, Ms. SMITH, Ms. BALDWIN, Ms. KLOBUCHAR, Mr. CASEY, and Ms. WARREN):

S. Res. 657. A resolution supporting the goals and ideals of Black, indigenous, and people of color (''BIPOC'') Mental Health Awareness Month in July 2020; to the Committee on Health, Education, Labor, and Pensions.

By Ms. BALDWIN (for herself and Mr. JOHNSON):

S. Con. Res. 41. A concurrent resolution expressing the sense of Congress that the Secretary of the Navy should name the next Virginia-class submarine of the United States Navy the ''USS Wisconsin''; to the Committee on Armed Services.

ADDITIONAL COSPONSORS

S. 651

At the request of Mr. CASEY, the name of the Senator from Delaware (Mr. CARPER) was added as a cosponsor of S. 651, a bill to amend the Internal Revenue Code of 1986 to increase the age requirement with respect to eligibility for qualified ABLE programs.

S. 802

At the request of Mr. DAINES, the name of the Senator from Georgia (Mrs. LOEFFLER) was added as a cosponsor of S. 802, a bill to amend part A of title IV of the Social Security Act, and for other purposes.

S. 1720

At the request of Mr. ROUNDS, the name of the Senator from South Carolina (Mr. SCOTT) was added as a cosponsor of S. 1720, a bill to amend the Federal Meat Inspection Act and the Poultry Products Inspection Act to allow the interstate sale of State-inspected meat and poultry, and for other purposes.

S. 2499

At the request of Mr. MERKLEY, the names of the Senator from Minnesota (Ms. SMITH) and the Senator from Nevada (Ms. ROSEN) were added as cosponsors of S. 2499, a bill to effectively staff the public elementary schools and secondary schools of the United States with school-based mental health services providers.

S. 3062

At the request of Mr. CASEY, the name of the Senator from Maryland (Mr. VAN HOLLEN) was added as a cosponsor of S. 3062, a bill to amend the Safe Drinking Water Act to repeal a certain exemption for hydraulic fracturing, and for other purposes.

S. 3103

At the request of Mr. LANKFORD, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 3103, a bill to amend title XVIII of the Social Security Act to restore

State authority to waive for certain facilities the 35-mile rule for designating critical access hospitals under the Medicare program.

S. 3419

At the request of Mr. INHOFE, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 3419, a bill to amend the Packers and Stockyards Act, 1921, to provide for the establishment of a trust for the benefit of all unpaid cash sellers of livestock, and for other purposes.

S. 3455

At the request of Mr. HAWLEY, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S. 3455, a bill to prohibit certain individuals from downloading or using TikTok on any device issued by the United States or a government corporation.

S. 3612

At the request of Mr. CORNYN, the names of the Senator from Missouri (Mr. BLUNT) and the Senator from Wyoming (Mr. ENZI) were added as cosponsors of S. 3612, a bill to clarify for purposes of the Internal Revenue Code of 1986 that receipt of coronavirus assistance does not affect the tax treatment of ordinary business expenses.

S. 3705

At the request of Mr. MORAN, the names of the Senator from Kansas (Mr. ROBERTS) and the Senator from North Carolina (Mr. TILLIS) were added as cosponsors of S. 3705, a bill to establish a private-public partnership to preserve jobs in the aviation manufacturing industry, and for other purposes.

S. 3768

At the request of Mr. GARDNER, his name was added as a cosponsor of S. 3768, a bill to protect older adults and people with disabilities living in nursing homes, intermediate care facilities, and psychiatric hospitals from COVID–19.

S. 3812

At the request of Mr. MENENDEZ, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of S. 3812, a bill to amend title 38, United States Code, to expand eligibility for hospital care, medical services, and nursing home care from the Department of Veterans Affairs to include veterans of World War II.

S. 3814

At the request of Mr. BENNET, the names of the Senator from Mississippi (Mrs. HYDE-SMITH), the Senator from Texas (Mr. CORNYN), the Senator from Nevada (Ms. CORTEZ MASTO), the Senator from Hawaii (Mr. SCHATZ), the Senator from Rhode Island (Mr. WHITEHOUSE), the Senator from Arkansas (Mr. COTTON), the Senator from New Mexico (Mr. HEINRICH), the Senator from New York (Mrs. GILLIBRAND), the Senator from Alaska (Ms. MURKOWSKI) and the Senator from New Jersey (Mr. BOOKER) were added as cosponsors of S. 3814, a bill to establish a loan program for businesses affected by COVID–19 and to extend the loan forgiveness period for paycheck protection program loans made to the hardest hit businesses, and for other purposes.

S. 3815

At the request of Mrs. FEINSTEIN, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 3815, a bill to permit the search and retention of certain records with respect to conducting criminal background checks, and for other purposes.

S. 3872

At the request of Mr. BRAUN, the names of the Senator from Maine (Ms. COLLINS), the Senator from North Dakota (Mr. CRAMER) and the Senator from Arkansas (Mr. BOOZMAN) were added as cosponsors of S. 3872, a bill to amend the Federal Food, Drug, and Cosmetic Act to establish a time-limited provisional approval pathway, subject to specific obligations, for certain drugs and biological products, and for other purposes.

S. 3881

At the request of Mr. CASEY, the names of the Senator from Maryland (Mr. VAN HOLLEN) and the Senator from Alabama (Mr. JONES) were added as cosponsors of S. 3881, a bill to increase support for State Children's Health Insurance programs during the COVID–19 emergency, and for other purposes.

S. 3893

At the request of Mr. THUNE, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 3893, a bill to amend the Food Security Act of 1985 to allow for emergency use of certain land during a pandemic, and for other purposes.

S. 3998

At the request of Mr. KING, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 3998, a bill to amend title XVIII of the Social Security Act to simplify payments for telehealth services furnished by Federally qualified health centers or rural health clinics under the Medicare program, and for other purposes.

S. 3999

At the request of Mr. KING, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 3999, a bill to amend title XVIII of the Social Security Act to ensure access to mental health and behavioral health services furnished through telehealth under the Medicare program.

S. 4035

At the request of Mr. DAINES, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 4035, a bill to establish and provide for the use of amounts in a Trail Stewardship for Economic Recovery Fund, and for other purposes.

S. 4071

At the request of Mr. RUBIO, the name of the Senator from Louisiana (Mr. CASSIDY) was added as a cosponsor of S. 4071, a bill to amend the Internal Revenue Code of 1986 to adjust identification number requirements for taxpayers filing joint returns to receive Economic Impact Payments.

S. 4081

At the request of Ms. STABENOW, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 4081, a bill to provide a grant program for elementary schools, secondary schools, and institutions of higher education to help offset costs associated with complying with guidelines, recommendations, and other public health communications issued by the Centers for Disease Control and Prevention, or a State, Indian Tribe, Tribal organization, or locality related to mitigating the hazards presented by COVID–19.

S. 4106

At the request of Mr. BRAUN, the names of the Senator from Georgia (Mr. PERDUE) and the Senator from North Carolina (Mr. TILLIS) were added as cosponsors of S. 4106, a bill to amend the Public Health Service Act to provide for hospital and insurer price transparency.

S. 4117

At the request of Mr. CRAMER, the names of the Senator from North Carolina (Mr. BURR), the Senator from Louisiana (Mr. CASSIDY), the Senator from Colorado (Mr. GARDNER) and the Senator from Mississippi (Mr. WICKER) were added as cosponsors of S. 4117, a bill to provide automatic forgiveness for paycheck protection program loans under $150,000, and for other purposes.

S. 4143

At the request of Mr. SCHUMER, the names of the Senator from Hawaii (Ms. HIRONO) and the Senator from Connecticut (Mr. BLUMENTHAL) were added as cosponsors of S. 4143, a bill to extend the unemployment insurance provisions of the Coronavirus Aid, Relief, and Economic Security (CARES) Act for the duration of the economic recovery, and for other purposes.

S. 4150

At the request of Mr. REED, the name of the Senator from Alabama (Mr. JONES) was added as a cosponsor of S. 4150, a bill to require the Secretary of the Treasury to provide assistance to certain providers of transportation services affected by the novel coronavirus.

S. 4152

At the request of Mr. HOEVEN, the names of the Senator from North Dakota (Mr. CRAMER) and the Senator from Alabama (Mr. JONES) were added as cosponsors of S. 4152, a bill to provide for the adjustment or modification by the Secretary of Agriculture of loans for critical rural utility service providers, and for other purposes.

S. 4156

At the request of Mr. INHOFE, the name of the Senator from Nebraska (Mrs. FISCHER) was added as a cosponsor of S. 4156, a bill to require the Secretary of Agriculture to provide relief

from hardship due to the COVID–19 pandemic to agricultural producers, and for other purposes.

S. 4160

At the request of Mr. THUNE, the names of the Senator from Ohio (Mr. BROWN) and the Senator from Maine (Ms. COLLINS) were added as cosponsors of S. 4160, a bill to enable certain hospitals that were participating in or applied for the drug discount program under section 340B of the Public Health Service Act prior to the COVID–19 public health emergency to temporarily maintain eligibility for such program, and for other purposes.

S. 4162

At the request of Mrs. FISCHER, the names of the Senator from Georgia (Mr. PERDUE) and the Senator from North Dakota (Mr. CRAMER) were added as cosponsors of S. 4162, a bill to provide certainty for airport funding.

S. 4174

At the request of Ms. COLLINS, the names of the Senator from Missouri (Mr. BLUNT), the Senator from Connecticut (Mr. MURPHY) and the Senator from Alaska (Mr. SULLIVAN) were added as cosponsors of S. 4174, a bill to provide emergency appropriations to the United States Postal Service to cover losses related to the COVID–19 crisis and to direct the Board of Governors of the United States Postal Service to develop a plan for ensuring the long term solvency of the Postal Service.

S. 4181

At the request of Mr. REED, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 4181, a bill to establish a Library Stabilization Fund to respond to and accelerate the recovery from coronavirus.

S. 4214

At the request of Mr. PORTMAN, the name of the Senator from Tennessee (Mrs. BLACKBURN) was added as a cosponsor of S. 4214, a bill to provide a payroll tax credit for certain expenses associated with protecting employees from COVID–19.

S. 4220

At the request of Mr. MERKLEY, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 4220, a bill to limit the use of Federal law enforcement officers for crowd control, and for other purposes.

S. 4221

At the request of Ms. ERNST, the name of the Senator from North Carolina (Mr. BURR) was added as a cosponsor of S. 4221, a bill to provide for grants to support the provision of child care by reopening and maintaining the operation of child care programs.

S. 4227

At the request of Ms. ROSEN, the names of the Senator from Massachusetts (Mr. MARKEY) and the Senator from Maryland (Mr. VAN HOLLEN) were added as cosponsors of S. 4227, a bill to improve access to economic injury disaster loans and emergency advances under the CARES Act, and for other purposes.

S. 4232

At the request of Mr. HEINRICH, the names of the Senator from New Mexico (Mr. UDALL) and the Senator from Alaska (Ms. MURKOWSKI) were added as cosponsors of S. 4232, a bill to amend title VI of the Social Security Act to extend the coverage of Coronavirus Relief Fund payments to Tribal Governments.

S. 4252

At the request of Mr. WYDEN, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 4252, a bill to provide funding for States to improve their unemployment compensation programs, and for other purposes.

S. 4262

At the request of Mr. MENENDEZ, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 4262, a bill to direct the Secretary of Health and Human Services to develop an action plan, make targeted grants, and develop public awareness campaigns with respect to COVID–19 and the disproportionate impact of the COVID–19 pandemic on racial and ethnic minorities and other vulnerable populations.

S. 4283

At the request of Mr. WYDEN, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 4283, a bill to provide funding for States to improve their unemployment insurance technology systems, and for other purposes.

S. 4287

At the request of Mr. DAINES, his name was added as a cosponsor of S. 4287, a bill to amend title 38, United States Code, to establish presumptions of service-connection for members of the Armed Forces who contract Coronavirus Disease 2019 under certain circumstances, and for other purposes.

S. RES. 458

At the request of Mr. LANKFORD, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. Res. 458, a resolution calling for the global repeal of blasphemy, heresy, and apostasy laws.

S. RES. 509

At the request of Mr. TOOMEY, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. Res. 509, a resolution calling upon the United Nations Security Council to adopt a resolution on Iran that extends the dates by which Annex B restrictions under Resolution 2231 are currently set to expire.

S. RES. 655

At the request of Mr. BROWN, the names of the Senator from Virginia (Mr. WARNER) and the Senator from New York (Mrs. GILLIBRAND) were added as cosponsors of S. Res. 655, a resolution declaring racism a public health crisis.

AMENDMENT NO. 1943

At the request of Ms. KLOBUCHAR, the names of the Senator from California (Ms. HARRIS), the Senator from Vermont (Mr. SANDERS) and the Senator from Massachusetts (Mr. MARKEY) were added as cosponsors of amendment No. 1943 intended to be proposed to S. 4049, an original bill to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 2334

At the request of Mr. COTTON, the name of the Senator from Georgia (Mrs. LOEFFLER) was added as a cosponsor of amendment No. 2334 intended to be proposed to S. 4049, an original bill to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 2399

At the request of Mr. GRASSLEY, the name of the Senator from Indiana (Mr. BRAUN) was added as a cosponsor of amendment No. 2399 intended to be proposed to S. 4049, an original bill to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 2417

At the request of Ms. CANTWELL, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of amendment No. 2417 proposed to S. 4049, an original bill to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 2437

At the request of Ms. KLOBUCHAR, the names of the Senator from New Mexico (Mr. UDALL), the Senator from Maine (Ms. COLLINS), the Senator from California (Mrs. FEINSTEIN), the Senator from Virginia (Mr. WARNER), the Senator from Vermont (Mr. SANDERS), the Senator from New Hampshire (Ms. HASSAN), the Senator from Vermont (Mr. LEAHY), the Senator from New Jersey (Mr. MENENDEZ), the Senator from Massachusetts (Ms. WARREN), the Senator from Tennessee (Mrs. BLACKBURN), the Senator from New Hampshire (Mrs. SHAHEEN), the Senator from New York (Mrs. GILLIBRAND), the Senator from Delaware (Mr. COONS), the Senator from New Jersey (Mr. BOOKER), the Senator from California (Ms. HARRIS) and the Senator from Massachusetts (Mr. MARKEY) were added as cosponsors of amendment No. 2437 intended to be proposed to S. 4049, an original bill to

authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTION

By Mr. REED:

S. 4303. A bill to improve State short-term compensation programs, and for other purposes; to the Committee on Finance.

Mr. REED. Mr. President, with the U.S. economy reeling, millions of families struggling, and COVID–19 cases soaring in states around the country, this is exactly the wrong time to cut off or massively cut back unemployment insurance as Republicans are proposing.

Unemployment insurance is a financial lifeline to tens of millions of Americans. And it also provides a big boost for small businesses . . . and communities. Because in addition to helping those who've lost their jobs, it effectively injects needed spending into local economies. Cars don't run without fuel, and the economy won't run without consumers.

The President failed to listen to public health experts and that hurt public health and the economy. He downplayed the pandemic, derided the science, and tried to force states to rush their re-openings.

Now he is failing to listen to economic experts across the spectrum who widely agree that four months into this crisis, the jobs picture is worsening. Experts are once again warning the President and Republicans now is NOT the time to cut off unemployment insurance.

Today, more than 31 million Americans—roughly one out of five workers—are collecting unemployment and thousands of businesses are shutting their doors. More than 1.4 million workers filed for unemployment for the first time just last week. Those who predicted a quick V shaped recovery . . . who misled Americans that the virus would just disappear on its own were wrong. There will be no economic recovery until we get the virus under control.

Congress needs to end the short-sighted approach and start taking the long view. We need a smarter, coordinated, evidence-based approach that recognizes reality: things are bad. Cutting off UI would make them exponentially worse.

But look: Hope is not lost. We have the tools, the assets, the advantages to turn things around. There are proven, effective measures that we can take, both on the public health front and the economic front. Let's focus on the economic front:

Economist Mark Zandi of Moody's Analytics notes that unemployment benefits are the most effective dollar-for-dollar stimulus to the economy, with each dollar of UI translating into $1.61 of economic activity. Cutting off $600 would slash the weekly income of 20 million households in half or more overnight. In a recent study, Ernie Tedeschi, a former economist at the Department of Treasury, projects that what will follow is a two percent decrease in the nation's gross domestic product and 1.7 million fewer jobs by the end of this year.

This is not surprising. If Senate Republicans let the enhanced pandemic unemployment assistance expire, it could tank consumer spending while increasing business closings that will lead to even more unemployment. It could also further exacerbate this public health crisis by forcing more Americans into desperate situations.

That is why I, along with Senator MICHAEL BENNET and Congressman DON BEYER, have proposed the Worker Relief and Security Act. This legislation would take politics out of the equation and use ''automatic stabilizers'' based on actual unemployment rates to ensure the help goes where it is needed, when it is needed, and expires when it is no longer needed—rather than leaving it up to Congress and an arbitrary date.

And look, it's not just individuals who are struggling. Businesses need help too. That is why I have backed the bipartisan RESTART Act and today I am introducing the Workforce Retention Act, which would strengthen and expand work sharing programs that many businesses are effectively using to keep their workers. This program is a win-win that offers businesses increased flexibility and payroll support, while keeping more Americans attached to their jobs.

Right now, business owners who want to keep their doors open are facing the prospect of having to let go some percentage of their workforce because of circumstances far beyond their control. Businesses that are particularly dependent on foot traffic, such as the hospitality and tourism industries, are only looking at re-opening later this year or early next year. In many cases, businesses are also set to lose out on the considerable expense and time they have put in to hire and train these workers.

With work sharing, struggling companies can reduce hours instead of their workforce and it helps employers save money on rehiring costs, while employees who participate in work sharing keep their jobs and receive a portion of unemployment insurance benefits to make up for lost wages. Especially in this pandemic, work sharing programs would allow businesses to retain their employees, easily putting them back on full-time status once business picks up, and avoid having to lay them off in the first place.

As part of the Middle Class Tax Relief and Job Creation Act, Congress enacted legislation that I authored, the Layoff Prevention Act of 2012, which provided temporary federal financing for 100% of work sharing benefits paid to workers. According to the Department of Labor, work sharing saved approximately 570,000 jobs in the wake of the Great Recession. Multiple studies have found that communities that adopted more robust work-sharing programs weathered the recession with lower unemployment rates.

Mark Zandi estimates that temporary financing of work share offers a very high ''bang for the buck'' of $1.69 . . . making it a critical companion to traditional UI benefits. It's another win-win policy that has been field-tested and demonstrated to work well in more than 20 states across the country. Simply put, work sharing helps more workers, businesses, and communities stay afloat, and positions them for a stronger economic recovery.

The Workforce Retention Act that I am introducing today along with Senators WHITEHOUSE, MERKLEY, and VAN HOLLEN, enhances the program and encourages states with existing work share laws to utilize them more frequently. It incentivizes states without work sharing laws to stop denying their businesses an easy and effective way to retain employees. This legislation is supported by the National Employment Law Center and the Economic Policy Institute.

It builds off the $100 million initiative included in the CARES Act, stemming from my Layoff Prevention Act of 2020, by extending federal financing for states with permanent and temporary work sharing programs by two years. It would incentivize states to structure their work sharing laws to reduce barriers to entry for companies . . . particularly for small businesses that have been hard hit by this pandemic. Our bill also provides much-needed federal grants to state unemployment agencies to improve implementation and administration.

States would also qualify under a new grant program for meeting certain enrollment incentive benchmarks and increasing the number of work share claims as a percentage of their overall unemployment insurance weekly claims.

This is a cost-effective job preservation program and we need to invest in ensuring it is accessible to help more businesses, preserve more jobs, and save taxpayers billions of dollars in the long run.

Our economy can't afford more of the same mistakes that have deepened this crisis and steepened the economic climb back out. America controls its own destiny, and we have the tools and know-how to succeed. Other nations have fared much better during this crisis because their elected leadership took COVID more seriously. They encouraged people to wear masks. Other heads of state didn't taunt regions into reopening before it was safe to do so. And they invested in unemployment insurance and economic stimulus.

Ending unemployment insurance in the midst of a surging pandemic could

make a desperate situation worse for individuals and harm the economy. Being jobless in these uncertain times and relying on unemployment is stressful enough. If Congress cuts benefits off too soon and tries to prematurely push workers into unsafe environments, it will cost families, businesses, and communities alike.

It is beyond the pale that the Administration and Senate Republicans purposely put off action for months. Everyone knew the virus was not going to disappear. It's a perfect example of the Trump view of one set of rules that provides benefits for him, and nothing for everyone else. Incompetence and willful avoidance is not a policy, and it's time for Republicans to stop drawing up new ways to seem like they're helping people and come to the table with solid ideas that actually do something meaningful.

It is my hope that we can proceed in a bipartisan manner on another round of coronavirus legislation. This next relief bill must include extended and enhanced unemployment insurance benefits tied to economic and health conditions, and expanded work sharing, to keep families, businesses, and states solvent through this crisis. I urge my colleagues to join us in supporting these needed initiatives.

By Mr. DURBIN (for himself, Ms. BALDWIN, and Ms. SMITH):

S. 4314. A bill to amend the Internal Revenue Code of 1986 to address the teacher and school leader shortage in early childhood, elementary, and secondary education, and for other purposes; to the Committee on Finance.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4314

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Retaining Educators Takes Added Investment Now Act'' or the ''RETAIN Act''.

SEC. 2. PURPOSE.

The purpose of this Act is to create a refundable tax credit for early childhood educators, teachers, early childhood education program directors, school leaders, and school-based mental health services providers in early childhood, elementary, and secondary education settings that rewards retention based on the time spent serving high-need students.

SEC. 3. FINDINGS.

Congress finds the following:

(1) The shortage of experienced, qualified early childhood educators and elementary school and secondary school teachers is a national problem that compromises the academic outcomes and long-term success of students.

(2) The shortage is the result of many factors including low pay, frequent turnover in school leadership, poor teaching conditions, and inadequate teacher supports.

(3) The shortage is worse in high-poverty areas where the factors contributing to the shortage are particularly acute and have an increased negative impact on teachers of color remaining in the field.

(4) A child's access to high-quality early childhood education is critical to supporting positive outcomes, and early childhood educators—

(A) play an important role in setting the foundation for future learning, and

(B) promote the development of vital skills, habits, and mindsets that children need to be successful in school and in life.

(5) In 2015, the national median pay of early childhood educators was a mere $28,570, with many early childhood educators relying on government assistance programs such as Medicaid, the supplemental nutrition assistance program established under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.), or the temporary assistance for needy families program established under part A of title IV of the Social Security Act (42 U.S.C. 601 et seq.), and struggling to provide for their own families.

(6) Studies have demonstrated that well-qualified, experienced teachers are the single most important school-based element contributing to a child's academic achievement and success.

(7) In 2016, the average teacher salary in public elementary schools and secondary schools was only $58,950, which is on average 21.4 percent less than other college graduates working in non-teaching fields, and with many teachers struggling with large amounts of student loan debt.

(8) An experienced, well-qualified education workforce must also be reflective of the diversity of the student body across race, ethnicity, and disability.

(9) Experienced, well-qualified school leaders and school-based mental health service providers are essential for providing strong educational opportunities and services for students and promoting teacher retention through improved professional supports and teaching conditions.

SEC. 4. REFUNDABLE TAX CREDIT FOR TEACHER AND SCHOOL LEADER RETENTION.

(a) IN GENERAL.—Subpart C of part IV of subchapter A of chapter 1 of subtitle A of the Internal Revenue Code of 1986 is amended by inserting after section 36B the following new section:

''SEC. 36C. TEACHER AND SCHOOL LEADER RETENTION CREDIT.

''(a) ALLOWANCE OF CREDIT.—

''(1) IN GENERAL.—In the case of an individual who is employed in a position described in paragraph (2) during a school year ending with or within the taxable year, there shall be allowed as a credit against the tax imposed by this subtitle for the taxable year an amount equal to the applicable amount (as determined under subsection (b)).

''(2) ELIGIBLE POSITIONS.—The positions described in this paragraph shall consist of the following:

''(A) An eligible early childhood educator.

''(B) An eligible early childhood education program director.

''(C) An eligible early childhood education provider.

''(D) An eligible teacher.

''(E) An eligible paraprofessional.

''(F) An eligible school-based mental health services provider.

''(G) An eligible school leader.

''(b) APPLICABLE AMOUNT.—

''(1) IN GENERAL.—For purposes of this section, the applicable amount shall be an amount determined based on the number of school years for which the individual has been continuously employed in any position described in subsection (a)(2), as follows:

''(A) Subject to paragraph (2), for the first year of employment, $5,800.

''(B) For the second continuous year of employment, $5,800.

''(C) For the third and fourth continuous year of employment, $7,000.

''(D) For the fifth, sixth, seventh, eighth, and ninth continuous year of employment, $8,700.

''(E) For the tenth continuous year of employment, $11,600.

''(F) For the eleventh, twelfth, thirteenth, fourteenth, and fifteenth continuous year of employment, $8,700.

''(G) For the sixteenth continuous year of employment, $7,000.

''(H) For the seventeenth, eighteenth, nineteenth, and twentieth continuous year of employment, $5,800.

''(2) FIRST YEAR.—For purposes of the first year of employment ending with or within a taxable year, an individual must have been so employed for a period of not less than 4 months before the first day of such taxable year.

''(3) LIMITATION BASED ON TOTAL NUMBER OF SCHOOL YEARS.—In the case of any individual who has been employed in any position described in subsection (a)(2) for a total of more than 20 school years, the applicable amount shall be reduced to zero.

''(c) INFLATION ADJUSTMENT.—

''(1) IN GENERAL.—In the case of any taxable year beginning after 2021, each of the dollar amounts in subsection (b)(1) shall be increased by an amount equal to—

''(A) such dollar amount, multiplied by

''(B) the cost-of-living adjustment determined under section 1(f)(3) for such calendar year by substituting 'calendar year 2020' for 'calendar year 2016' in subparagraph (A)(ii) thereof.

''(2) ROUNDING.—If any increase determined under paragraph (1) is not a multiple of $100, such increase shall be rounded to the nearest multiple of $100.

''(d) SUPPLEMENTING, NOT SUPPLANTING, STATE AND LOCAL EDUCATION FUNDS.—

''(1) IN GENERAL.—A State educational agency or local educational agency shall not reduce or adjust any compensation, or any assistance provided through a loan forgiveness program, to an employee of the State educational agency or local educational agency who serves in any position described in subsection (a)(2) due to the individual's eligibility for the credit under this section.

''(2) METHODOLOGY.—Upon request by the Secretary of Education, a State educational agency or local educational agency shall reasonably demonstrate that the methodology used to allocate amounts for compensation and for loan forgiveness to the employees described in paragraph (1) at qualifying schools or qualifying early childhood education programs ensures that employees at each qualifying school or qualifying early childhood education program in the State or served by the local educational agency, respectively, receive the same amount of State or local funds for compensation and loan forgiveness that the qualifying school or qualifying early childhood education program would receive if the credit under this section had not been enacted.

''(e) INFORMATION SHARING.—The Secretary of Education and the Secretary of Health and Human Services shall provide the Secretary with such information as is necessary for purposes of determining whether an early childhood education program or an elementary school or secondary school satisfies the requirements for a qualifying early childhood education program or a qualifying school, respectively.

''(f) DEFINITIONS.—For purposes of this section—

''(1) ESEA DEFINITIONS.—The terms 'elementary school', 'local educational agency', 'secondary school', and 'State educational

agency' have the meanings given the terms in section 8101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

''(2) ELIGIBLE EARLY CHILDHOOD EDUCATION PROGRAM DIRECTOR.—The term 'eligible early childhood education program director' means an employee or officer of a qualifying early childhood education program who is responsible for the daily instructional leadership and managerial operations of such program.

''(3) ELIGIBLE EARLY CHILDHOOD EDUCATION PROVIDER.—The term 'eligible early childhood education provider' means an individual—

''(A) who—

''(i) has an associate's degree or higher degree in early childhood education or a related field, or

''(ii) is enrolled during the taxable year in a program leading to such an associate's or higher degree and is making satisfactory progress toward such degree, and

''(B) who is responsible for the daily instructional leadership and managerial operations of a qualifying early childhood education program in a home-based setting.

''(4) ELIGIBLE EARLY CHILDHOOD EDUCATOR.—The term 'eligible early childhood educator' means an individual—

''(A) who—

''(i) has an associate's degree or higher degree in early childhood education or a related field, or

''(ii) is enrolled during the taxable year in a program leading to such an associate's or higher degree and is making satisfactory progress toward such degree,

''(B) who has credentials or a license under State law for early childhood education, as applicable, and

''(C) whose primary responsibility is for the learning and development of children in a qualifying early childhood education program during the taxable year.

''(5) ELIGIBLE PARAPROFESSIONAL.—The term 'eligible paraprofessional' means an individual—

''(A) who is a paraprofessional, as defined in section 3201 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7011),

''(B) who meets the applicable State professional standards and qualifications pursuant to section 1111(g)(2)(M) of such Act (20 U.S.C. 6311(g)(2)(M)),

''(C) whose primary responsibilities involve working or assisting in a classroom setting, and

''(D) who is employed in a qualifying school or a qualifying early childhood education program.

''(6) ELIGIBLE SCHOOL-BASED MENTAL HEALTH SERVICES PROVIDER.—The term 'eligible school-based mental health services provider' means an individual—

''(A) described in section 4102(6) of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7112(6)), and

''(B) who is employed in a qualifying school or a qualifying early childhood education program.

''(7) ELIGIBLE SCHOOL LEADER.—The term 'eligible school leader' means a principal, assistant principal, or other individual who is—

''(A) an employee or officer of a qualifying school, and

''(B) responsible for the daily instructional leadership and managerial operations in the qualifying school.

''(8) ELIGIBLE TEACHER.—The term 'eligible teacher' means an individual who—

''(A) is an elementary school or secondary school teacher who, as determined by the State or local educational agency, is a teacher of record who provides direct classroom teaching (or classroom-type teaching in a nonclassroom setting) to students in a qualifying school, and

''(B) meets applicable State certification and licensure requirements, including any requirements for certification obtained through alternative routes to certification, in the State in which such school is located and in the subject area in which the individual is the teacher of record.

''(9) QUALIFYING EARLY CHILDHOOD EDUCATION PROGRAM.—

''(A) IN GENERAL.—The term 'qualifying early childhood education program' means an early childhood education program, as defined in section 103 of the Higher Education Act of 1965 (20 U.S.C. 1003), that, regardless of setting—

''(i) serves children who receive services for which financial assistance is provided in accordance with the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), the Head Start Act (42 U.S.C. 9831 et seq.), or the child and adult care food program established under section 17 of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766), and

''(ii) participates in a State tiered and transparent system for measuring program quality.

''(B) SPECIAL RULE.—Notwithstanding subparagraph (A), an early childhood program that does not satisfy the requirements of subparagraph (A)(ii) shall be deemed to be a qualifying early childhood education program until September 30, 2021, if the program—

''(i) satisfies all requirements of subparagraph (A) except for clause (ii) of such subparagraph, and

''(ii)(I) meets the Head Start program performance standards described in section 641A(a) of the Head Start Act (42 U.S.C. 983a(a)), if applicable, or

''(II) is accredited by a national accreditor of early learning programs as of the date of enactment of the Retaining Educators Takes Added Investment Now Act.

''(10) QUALIFYING SCHOOL.—The term 'qualifying school' means—

''(A) a public elementary school or secondary school that—

''(i) is in the school district of a local educational agency that is eligible for assistance under part A of title I of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311 et seq.), or

''(ii) is served or operated by an educational service agency that is eligible for such assistance, or

''(B) an elementary school or secondary school that is funded by the Bureau of Indian Education and that is in the school district of a local educational agency that is eligible for such assistance.''.

(b) W-2 REPORTING OF CONTINUOUS EMPLOYMENT FOR CERTAIN POSITIONS AT QUALIFYING EARLY CHILDHOOD EDUCATION PROGRAMS OR QUALIFYING SCHOOLS.—Section 6051(a) of the Internal Revenue Code of 1986 is amended by striking ''and'' at the end of paragraph (16), by striking the period at the end of paragraph (17) and inserting '', and'', and by inserting after paragraph (17) the following new paragraph:

''(18) in the case of an employee who is employed in a position described in subsection (a)(2) of section 36C, the number of school years for which such employee has been continuously employed in any such position.''.

(c) CONFORMING AMENDMENTS.—

(1) The table of sections for subpart C of part IV of subchapter A of chapter 1 of subtitle A of the Internal Revenue Code of 1986 is amended by inserting after the item relating to section 36B the following:

''Sec. 36C. Teacher and school leader retention credit.''.

(2) Section 6211(b)(4)(A) of such Code is amended by striking ''and 36B, 168(k)(4)'' and inserting ''36B, and 36C''.

(3) Paragraph (2) of section 1324(b) of title 31, United States Code, is amended by inserting ''36C,'' after ''36B,''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2020.

SEC. 5. DEVELOPING INTERAGENCY DATA SERIES.

The Secretary of Labor, in coordination with the Secretary of Treasury, the Secretary of Education, and the Secretary of Health and Human Services, shall—

(1) develop and publish on the Internet website of the Bureau of Labor Statistics a data series that captures—

(A) the average base salary of teachers in elementary schools and secondary schools, disaggregated by—

(i) employment in public elementary schools and secondary schools that receive assistance under part A of title I of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311 et seq.),

(ii) employment in public elementary schools and secondary schools that do not receive such assistance, and

(iii) geographic region, and

(B) the average base salary of early childhood educators, disaggregated by highest level of degree attained, and

(2) update the data series under paragraph (1) on an annual basis.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 657—SUPPORTING THE GOALS AND IDEALS OF BLACK, INDIGENOUS, AND PEOPLE OF COLOR (''BIPOC'') MENTAL HEALTH AWARENESS MONTH IN JULY 2020

Ms. CORTEZ MASTO (for herself, Mr. MENENDEZ, Mr. BOOKER, Ms. HARRIS, Mr. WYDEN, Mr. VAN HOLLEN, Mr. CARDIN, Ms. STABENOW, Ms. ROSEN, Ms. SMITH, Ms. BALDWIN, Ms. KLOBUCHAR, Mr. CASEY, and Ms. WARREN) submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 657

Whereas July 2020 is ''BIPOC Mental Health Awareness Month'';

Whereas the goals of BIPOC Mental Health Awareness Month (formerly known as ''Minority Mental Health Awareness Month'') are—

(1) to recognize disparities in the incidence of mental health-related challenges faced by Black, indigenous, and people of color (referred to in this preamble as ''BIPOC'') communities;

(2) to raise awareness of the systemic drivers of those disparities;

(3) to educate patients, caregivers, and the family members of individuals who may be in need of care on the importance of recognizing the signs of mental illness, seeking evaluation and accepting diagnosis, receiving and adhering to mental health treatment, and counseling;

(4) to highlight the necessity of culturally informed and culturally effective mental health services to increase receptivity to treatment among communities of color and to reduce the social and cultural stigma associated with mental health services;

(5) to underscore the need to dismantle the barriers to access faced by individuals who seek mental health care services; and

(6) to overcome and repair the mental harm and trauma that are experienced by people of color and caused by systematic racism and racial bias;

Whereas the Coronavirus Disease 2019 (COVID–19) pandemic, which has disproportionately impacted communities of color, is expected to have grave and potentially long-term mental health implications due to the traumatic stress associated with pandemic conditions, including stress from—

(1) the loss of resources to meet immediate and future needs;

(2) grief and concerns for the safety of family and loved ones;

(3) reduced social interaction and increased isolation and loneliness;

(4) the stigma and xenophobia against Asian-American communities, including many incidents of hate during the COVID–19 pandemic, leading to negative mental health outcomes; and

(5) a lack of consideration for pre-existing social-environmental disparities when addressing the disproportionate impact of COVID–19 on communities of color;

Whereas, even in nonpandemic times, the psychosocial stress of racial discrimination, including exclusion from health, educational, social, and economic resources, contributes to poorer health quality and higher rates of chronic health conditions for communities of color;

Whereas BIPOC communities, already burdened by disparities in chronic illnesses like lung disease, asthma, heart conditions, sickle cell disease, and diabetes, disproportionately suffer from the mental health disorders that are commonly associated with those chronic illnesses;

Whereas environmental strains, such as poverty, unsafe neighborhoods, and chronic racial and ethnic discrimination, among other social determinants of health, can significantly increase distress and the overall mental and emotional well-being of poor youth of color;

Whereas an emerging body of research shows that past trauma inflicted on racial and ethnic minorities has the potential to affect the descendants of the survivors of that trauma;

Whereas, despite the necessity of diverse scientific and health care workforces and culturally informed and culturally effective science and research to address mental health disparities, including disparities in care, and decades of efforts to diversify those workforces, there continues to be a challenging pattern of continued underrepresentation of people of certain genders and racial and ethnic groups in those fields;

Whereas mental health services and supports often are not aligned with the National Standards for Culturally and Linguistically Appropriate Services in Health and Health Care;

Whereas the lack of linguistically appropriate mental health services and the lack of information about where to find those services decreases the likelihood that families of color will seek help;

Whereas investment in linguistically appropriate mental health services will—

(1) reverse the trend of families of color not seeking help; and

(2) drive an increase in use of those services by people of color who experience mental health-related challenges;

Whereas the Office of Minority Health of the Department of Health and Human Services has determined that Black adults are 20 percent more likely than their White peers to report serious psychological distress;

Whereas the suicide death rate for Black youth has risen from 2.55 per 100,000 in 2007 to 4.82 per 100,000 in 2017;

Whereas Black youth under the age of 13 are twice as likely as White youth of the same age group to die by suicide;

Whereas Black males ages 5 through 11 are more likely than their White peers to die by suicide;

Whereas, in 2018, 42 percent of Black adults with a serious mental illness received no treatment, compared with 35.9 percent of the total adult population of the United States;

Whereas chronic underfunding of Federal treaty obligations for health services for Tribal Nations has contributed to disparate mental health outcomes for American Indians and Alaska Natives, who experience post-traumatic stress disorder more than twice as often as the general population;

Whereas, between 2000 and 2020, the suicide rate for American Indian and Alaska Native women and men has increased by 139 percent and 71 percent, respectively, compared with a 33 percent increase for the total adult population in the United States;

Whereas suicide is the second leading cause of death for American Indian and Alaska Native youth ages 10 through 24;

Whereas the suicide rate for American Indian and Alaska Native youth is 2.5 times higher than the national average and the highest across all ethnic and racial groups;

Whereas Latino adults and children face barriers to accessing mental health services, including a lack of insurance, the high cost of health services, low wages, poor transportation, work stress, and immigration factors;

Whereas research shows that, in the Hispanic population, older adults and youth are more susceptible than other Hispanic adults to mental distress relating to immigration and acculturation;

Whereas fewer treatment and prevention services reach Hispanics than other racial or ethnic groups in the United States due to the lack of professionals being equipped to support culturally specific challenges;

Whereas, in 2017, suicide was the leading cause of death for Asian Americans ages 15 through 24;

Whereas, in 2015, Asian adults with any mental illness had the lowest rates of use of health services, prescription medication, and outpatient services among all racial groups;

Whereas the rate of suicide among Asian-American women over the age of 65 is the highest of any group in that age range;

Whereas the rate of suicide among Bhutanese refugees is twice the rate of suicide for the general population of the United States;

Whereas Native Hawaiian youth in Hawaii have significantly higher suicide rates than other adolescents;

Whereas Native Hawaiians and Pacific Islanders face greater stigma than is faced by the general population of the United States faces in accessing mental health care;

Whereas the first BIPOC Mental Health Awareness Month (then known as ''Minority Mental Health Awareness Month'') was designated in honor of the late Bebe Moore Campbell, who showed great dedication and commitment to moving communities—

(1) to support mental wellness through effective treatment options; and

(2) to increase access to mental health treatment and services; and

Whereas communities of color have shown deep mental-health resiliency in the face of decades and centuries of trauma and discrimination, underscoring the efficacy and importance of resilience-focused and culturally and contextually grounded prevention and early intervention strategies in mental health: Now, therefore, be it

Resolved, That the Senate supports the goals and ideals of BIPOC Mental Health Awareness Month in July 2020, which include bringing attention to the mental health disparities faced by communities of color in the United States, such as American Indians, Alaska Natives, Asian Americans, Blacks, Latinos, and Native Hawaiians and other Pacific Islanders.

SENATE CONCURRENT RESOLUTION 41—EXPRESSING THE SENSE OF CONGRESS THAT THE SECRETARY OF THE NAVY SHOULD NAME THE NEXT VIRGINIA-CLASS SUBMARINE OF THE UNITED STATES NAVY THE ''USS WISCONSIN''

Ms. BALDWIN (for herself and Mr. JOHNSON) submitted the following concurrent resolution; which was referred to the Committee on Armed Services:

S. CON. RES. 41

Whereas Wisconsin has a rich and historical connection to the United State Navy, evidenced particularly by the fact that the submarine fleet of the United States Navy produced 28 freshwater submarines for the World War II war effort;

Whereas the first USS Wisconsin (BB–9) was an 11,565-ton Illinois-class battleship that was commissioned in 1901, sailed as the flagship of both the Pacific Squadron and Asiatic Fleet, and went on to sail in the Great White Fleet that circumnavigated the globe;

Whereas the USS Wisconsin (BB–64), commonly known as ''Big Wisky'' and ''the Last Battleship'', was commissioned in 1944 and served in every major conflict until its decommissioning in 1991, including World War II, the Korean War, and the Persian Gulf War;

Whereas the USS Wisconsin (BB–64) continues to play a vital role in educating visitors to Hampton Roads, Virginia, about the famed history of the ship;

Whereas individual citizens of Wisconsin have played a crucial role in the history of the United States Navy, including—

(1) Admiral Marc A. Mitscher, who was one of the first aviators of the United States Navy and was born in Hillsboro, Wisconsin; and

(2) Green Bay native Vice Admiral James H. Flatley, Jr., who was a key figure in the Battle of the Coral Sea and the Guadalcanal campaign;

Whereas 63 citizens of Wisconsin have been recipients of a Medal of Honor, including 10 citizens of Wisconsin who have received a Medal of Honor from the Department of the Navy; and

Whereas there has not been a USS Wisconsin in service for nearly 3 decades: Now, therefore, be it

Resolved by the Senate (the House of Representatives concurring), That the Secretary of the Navy should name the next Virginia-class submarine of the United States Navy the ''USS Wisconsin''.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2491. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table.

SA 2492. Mr. MORAN (for himself, Ms. CANTWELL, and Mr. PETERS) submitted an

amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, supra; which was ordered to lie on the table.

SA 2493. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, supra; which was ordered to lie on the table.

SA 2494. Mr. REED submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, supra; which was ordered to lie on the table.

SA 2495. Mr. BOOZMAN submitted an amendment intended to be proposed by him to the bill S. 4049, supra; which was ordered to lie on the table.

SA 2496. Mr. CRUZ (for himself, Ms. SINEMA, Mr. WICKER, Ms. CANTWELL, Mr. KAINE, Mr. CORNYN, and Mr. RUBIO) submitted an amendment intended to be proposed by him to the bill S. 4049, supra; which was ordered to lie on the table.

SA 2497. Mr. DURBIN (for himself, Ms. DUCKWORTH, Mr. PERDUE, Mr. BLUMENTHAL, Mr. JONES, Mr. MURPHY, Mr. CASEY, and Ms. KLOBUCHAR) submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 2491. Ms. CANTWELL submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. ESTABLISHMENT OF FEDERAL ADVISORY COMMITTEE ON THE DEVELOPMENT AND IMPLEMENTATION OF ARTIFICIAL INTELLIGENCE.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—The Secretary of Commerce shall establish a Federal advisory committee to advise the Secretary on matters relating to the development of artificial intelligence.

(2) DESIGNATION.—The Federal advisory committee established under paragraph (1) shall be known as the ''Federal Advisory Committee on the Development and Implementation of Artificial Intelligence'' (in this section referred to as the ''Advisory Committee'').

(b) PURPOSES OF THE ADVISORY COMMITTEE.—

(1) ADVICE.—The Advisory Committee shall provide advice to the Secretary on matters relating to the development and use of artificial general intelligence and narrow artificial intelligence, including on the following as they relate to artificial intelligence:

(A) The competitiveness of the United States, including matters relating to the promotion of public and private sector investment and innovation into the development of artificial intelligence.

(B) Workforce, including matters relating to the potential for using artificial intelligence for rapid retraining of workers, due to the possible effect of technological displacement and to increase the labor force participation of all workers, including traditionally underrepresented populations, including minorities, low-income populations, and persons with disabilities.

(C) Education, including matters relating to science, technology, engineering, and mathematics education to prepare the United States workforce as the needs of employers change.

(D) Ethics training and development for individuals, including both private and government technologists, working on and using artificial intelligence.

(E) Matters relating to open sharing of data and the open sharing of research on artificial intelligence.

(F) International cooperation and competitiveness, including matters relating to the competitive international landscape for artificial intelligence-related industries.

(G) Accountability and legal rights, including matters relating to the responsibility for any violations of laws by an artificial intelligence system and the compatibility of international regulations.

(H) Matters relating to machine learning bias through core cultural and societal norms.

(I) Matters relating to how artificial intelligence can serve or enhance opportunities in rural communities.

(J) Government efficiency, including matters relating to how to promote cost saving and streamline operations.

(K) Matters relating to individual civil rights, including an assessment regarding how rights are or will be affected by the use of artificial intelligence technology and whether such uses should be subject to additional controls, oversight, or limitations.

(L) Matters relating to urbanization and the development of smart cities.

(2) STUDY.—The Advisory Committee shall study and assess the following:

(A) How the term ''artificial intelligence'' should be defined for purposes of this section and how the relevant scope of the Advisory Committee should be defined, including how such definitions relate to artificial systems and both narrow and general forms of artificial intelligence. In carrying out this subparagraph, the Advisory Committee shall consider the following:

''(1) The term 'artificial intelligence' includes the following:

''(A) Any artificial systems that perform tasks under varying and unpredictable circumstances, without significant human oversight, or that can learn from their experience and improve their performance. Such systems may be developed in computer software, physical hardware, or other contexts not yet contemplated. They may solve tasks requiring human-like perception, cognition, planning, learning, communication, or physical action. In general, the more human-like the system within the context of its tasks, the more it can be said to use artificial intelligence.

''(B) Systems that think like humans, such as cognitive architectures and neural networks.

''(C) Systems that act like humans, such as systems that can pass the Turing test or other comparable test via natural language processing, knowledge representation, automated reasoning, and learning.

''(D) A set of techniques, including machine learning, that seek to approximate some cognitive task.

''(E) Systems that act rationally, such as intelligent software agents and embodied robots that achieve goals via perception, planning, reasoning, learning, communicating, decisionmaking, and acting.

''(2) The term 'artificial general intelligence' means a notional future artificial intelligence system that exhibits apparently intelligent behavior at least as advanced as a person across the range of cognitive, emotional, and social behaviors.

''(3) The term 'narrow artificial intelligence' means an artificial intelligence system that addresses specific application areas such as playing strategic games, language translation, self-driving vehicles, and facial or other image recognition.''.

(B) How to create a climate for public and private sector investment and innovation in artificial intelligence.

(C) The possible benefits and effects that the development of artificial intelligence may have on the economy, workforce, and competitiveness of the United States.

(D) Whether and how networked, automated, artificial intelligence applications and robotic devices will displace or create jobs and how any job-related gains relating to artificial intelligence can be maximized.

(E) How bias can be identified and eliminated in the development of artificial intelligence and in the algorithms that support them, including with respect to the following:

(i) The selection and processing of data used to train artificial intelligence.

(ii) Diversity in the development of artificial intelligence.

(iii) The ways and places the systems are deployed and the potential harmful outcomes.

(F) Whether and how to incorporate ethical standards in the development and implementation of artificial intelligence.

(G) How the Federal Government can encourage technological progress in implementation of artificial intelligence that benefits the full spectrum of social and economic classes.

(H) How the privacy rights of individuals are or will be affected by technological innovation relating to artificial intelligence.

(I) Whether technological advancements in artificial intelligence have or will outpace the legal and regulatory regimes implemented to protect consumers.

(J) How existing laws, including those concerning data access and privacy, should be modernized to enable the potential of artificial intelligence.

(K) How the Federal Government utilizes artificial intelligence to handle large or complex data sets.

(L) How ongoing dialogues and consultations with multi-stakeholder groups can maximize the potential of artificial intelligence and further development of artificial intelligence technologies that can benefit everyone inclusively.

(M) How the development of artificial intelligence can affect cost savings and streamline operations in various areas of government operations, including health care, cybersecurity, infrastructure, and disaster recovery.

(N) Such other matters as the Advisory Committee considers appropriate.

(3) REPORTS AND RECOMMENDATIONS.—

(A) REPORT BY ADVISORY COMMITTEE.—Not later than 540 days after the date of the enactment of this Act, the Advisory Committee shall submit to the Secretary and to Congress a report on the findings of the Advisory Committee and such recommendations as the Advisory Committee may have for administrative or legislative action relating to artificial intelligence.

(B) RECOMMENDATIONS OF SECRETARY.—Not later than 90 days after receiving the report submitted under subparagraph (A), the Secretary shall review the report and submit to Congress such recommendations as the Secretary may have with respect to the matters contained in the report submitted under subparagraph (A).

(c) MEMBERSHIP.—

(1) VOTING MEMBERS.—

(A) IN GENERAL.—The Advisory Committee shall be composed of 19 voting members who shall be appointed by the Secretary, with advisement from the Chair and Ranking Member of the Committee on Commerce, Science, and Transportation of the Senate and the Chair and Ranking Member of the Committee on Energy and Commerce of the House of Representatives, for purposes of the Advisory Committee from among individuals with expertise in matters relating to workforce development, ethics, privacy, artificial intelligence, or computer science.

(B) REPRESENTATION.—In carrying out subparagraph (A), the Secretary shall ensure that voting members are appointed as follows:

(i) Five members from the academic or research community.

(ii) Six members from private industry, at least 1 of whom shall be from a small business concern.

(iii) Six members from civil society, at least 2 of whom shall be from groups that advocate for civil liberties or civil rights.

(iv) Two members from labor organizations or groups, including those that represent the unique interests of traditionally underrepresented populations.

(C) GEOGRAPHICAL DIVERSITY.—In carrying out subparagraph (A), the Secretary shall ensure that the voting members of the Advisory Committee come from diverse geographical locations within the United States.

(2) NONVOTING MEMBERS.—The Advisory Committee shall also be composed of such nonvoting members as the Secretary considers appropriate, except that the Secretary shall appoint at least 1 such member from each of the following:

(A) The Department of Education.

(B) The Department of Justice.

(C) The Department of Labor.

(D) The Department of Transportation.

(E) The Department of Homeland Security.

(F) The Federal Trade Commission.

(G) The National Institute of Standards and Technology.

(H) The National Science Foundation.

(I) The National Science and Technology Council.

(J) Individuals in the intelligence community (as defined in section 3 of the National Security Act of 1947 (50 U.S.C. 3003)) who are approved by the Director of National Intelligence for purposes of this paragraph.

(K) The Privacy and Civil Liberties Oversight Board.

(L) Such other nonvoting members as the voting members of the Advisory Committee consider appropriate.

(3) CHAIRPERSON.—The Secretary shall appoint a chairperson for the Advisory Committee from among the members appointed under paragraph (1).

(d) MEETINGS.—The Advisory Committee shall meet—

(1) in person no less frequently than twice each year; and

(2) via telepresence no less frequently than once every 2 months.

(e) POWERS.—In order to carry out its duties under subsection (b), the Advisory Committee may—

(1) hold such hearings, sit and act at such times and places, take such testimony, and receive such evidence as the Advisory Committee considers appropriate;

(2) submit to Congress such recommendations as the Advisory Committee considers appropriate;

(3) submit to Federal agencies such recommendations as the Advisory Committee considers appropriate;

(4) issue reports, guidelines, and memoranda;

(5) hold or host conferences and symposia;

(6) enter into cooperative agreements with third-party experts to obtain relevant advice or expertise, and oversee staff;

(7) establish subcommittees; and

(8) establish rules of procedure.

(f) TRAVEL EXPENSES.—The members of the Advisory Committee shall be allowed travel expenses, including per diem in lieu of subsistence, at rates authorized for employees of agencies under subchapter I of chapter 57 of title 5, United States Code, while away from their homes or regular places of business in the performance of services for the Advisory Committee.

(g) FUNDING.—Except as provided in paragraph (2), amounts to carry out this section shall be derived from amounts appropriated or otherwise made available to the Secretary.

SA 2492. Mr. MORAN (for himself, Ms. CANTWELL, and Mr. PETERS) submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of division A, add the following:

TITLE XVII—NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS

SEC. 1701. REFERENCES TO NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS ACT OF 2002.

Except as otherwise expressly provided, whenever in this title an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3001 et seq.).

Subtitle A—General Provisions

SEC. 1711. STRENGTH AND DISTRIBUTION IN GRADE.

Section 214 (33 U.S.C. 3004) is amended to read as follows:

"SEC. 214. STRENGTH AND DISTRIBUTION IN GRADE.

''(a) GRADES.—The commissioned grades in the commissioned officer corps of the Administration are the following, in relative rank with officers of the Navy:

''(1) Vice admiral.

''(2) Rear admiral.

''(3) Rear admiral (lower half).

''(4) Captain.

''(5) Commander.

''(6) Lieutenant commander.

''(7) Lieutenant.

''(8) Lieutenant (junior grade).

''(9) Ensign.

''(b) GRADE DISTRIBUTION.—The Secretary shall prescribe, with respect to the distribution on the lineal list in grade, the percentages applicable to the grades set forth in subsection (a).

''(c) ANNUAL COMPUTATION OF NUMBER IN GRADE.—

''(1) IN GENERAL.—Not less frequently than once each year, the Secretary shall make a computation to determine the number of officers on the lineal list authorized to be serving in each grade.

''(2) METHOD OF COMPUTATION.—The number in each grade shall be computed by applying the applicable percentage to the total number of such officers serving on active duty on the date the computation is made.

''(3) FRACTIONS.—If a final fraction occurs in computing the authorized number of officers in a grade, the nearest whole number shall be taken. If the fraction is one-half, the next higher whole number shall be taken.

''(d) TEMPORARY INCREASE IN NUMBERS.—The total number of officers authorized by law to be on the lineal list during a fiscal year may be temporarily exceeded if the average number on that list during that fiscal year does not exceed the authorized number.

''(e) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228(a) and officers recalled from retired status shall not be counted when computing authorized strengths under subsection (c) and shall not count against those strengths.

''(f) PRESERVATION OF GRADE AND PAY.—No officer may be reduced in grade or pay or separated from the commissioned officer corps of the Administration as the result of a computation made to determine the authorized number of officers in the various grades.''.

SEC. 1712. RECALLED OFFICERS.

(a) IN GENERAL.—Section 215 (33 U.S.C. 3005) is amended to read as follows:

"SEC. 215. NUMBER OF AUTHORIZED COMMISSIONED OFFICERS.

''(a) IN GENERAL.—The total number of authorized commissioned officers on the lineal list of the commissioned officer corps of the Administration shall not exceed 500.

''(b) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228 and officers recalled from retired status or detailed to an agency other than the Administration—

''(1) may not be counted in determining the total number of authorized officers on the lineal list under this section; and

''(2) may not count against such number.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 215 and inserting the following:

''Sec. 215. Number of authorized commissioned officers.''.

SEC. 1713. OBLIGATED SERVICE REQUIREMENT.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.) is amended by adding at the end the following:

"SEC. 216. OBLIGATED SERVICE REQUIREMENT.

''(a) IN GENERAL.—

''(1) REGULATIONS.—The Secretary shall prescribe the obligated service requirements for appointments, training, promotions, separations, continuations, and retirements of officers not otherwise covered by law.

''(2) WRITTEN AGREEMENTS.—The Secretary and officers shall enter into written agreements that describe the officers' obligated service requirements prescribed under paragraph (1) in return for such appointments, training, promotions, separations, continuations, and retirements as the Secretary considers appropriate.

''(b) REPAYMENT FOR FAILURE TO SATISFY REQUIREMENTS.—

''(1) IN GENERAL.—The Secretary may require an officer who fails to meet the service requirements prescribed under subsection (a)(1) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the training provided to that officer by the Secretary as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve.

''(2) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the

Secretary under paragraph (1) is, for all purposes, a debt owed to the United States.

''(3) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11 that is entered less than five years after the termination of a written agreement entered into under subsection (a)(2) does not discharge the individual signing the agreement from a debt arising under such agreement.

''(c) WAIVER OR SUSPENSION OF COMPLIANCE.—The Secretary may waive the service obligation of an officer who—

''(1) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that officer; or

''(2) is—

''(A) not physically qualified for appointment; and

''(B) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the officer's own misconduct or grossly negligent conduct.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 215 the following:

''Sec. 216. Obligated service requirement.''.

SEC. 1714. TRAINING AND PHYSICAL FITNESS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 1713(a), is further amended by adding at the end the following:

''SEC. 217. TRAINING AND PHYSICAL FITNESS.

''(a) TRAINING.—The Secretary may take such measures as may be necessary to ensure that officers are prepared to carry out their duties in the commissioned officer corps of the Administration and proficient in the skills necessary to carry out such duties. Such measures may include the following:

''(1) Carrying out training programs and correspondence courses, including establishing and operating a basic officer training program to provide initial indoctrination and maritime vocational training for officer candidates as well as refresher training, mid-career training, aviation training, and such other training as the Secretary considers necessary for officer development and proficiency.

''(2) Providing officers and officer candidates with educational materials.

''(3) Acquiring such equipment as may be necessary for training and instructional purposes.

''(b) PHYSICAL FITNESS.—The Secretary shall ensure that officers maintain a high physical state of readiness by establishing standards of physical fitness for officers that are substantially equivalent to those prescribed for officers in the Coast Guard.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 1713(b), is further amended by inserting after the item relating to section 216 the following:

''Sec. 217. Training and physical fitness.''.

SEC. 1715. AVIATION ACCESSION TRAINING PROGRAMS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 1714(a), is further amended by adding at the end the following:

''SEC. 218. AVIATION ACCESSION TRAINING PROGRAMS.

''(a) DEFINITIONS.—In this section:

''(1) ADMINISTRATOR.—The term 'Administrator' means the Under Secretary of Commerce for Oceans and Atmosphere and the Administrator of the National Oceanic and Atmospheric Administration.

''(2) MEMBER OF THE PROGRAM.—The term 'member of the program' means a student who is enrolled in the program.

''(3) PROGRAM.—The term 'program' means an aviation accession training program of the commissioned officer corps of the Administration established pursuant to subsection (b).

''(b) AVIATION ACCESSION TRAINING PROGRAMS.—

''(1) ESTABLISHMENT AUTHORIZED.—The Administrator, under regulations prescribed by the Secretary, shall establish and maintain one or more aviation accession training programs for the commissioned officer corps of the Administration at institutions described in paragraph (2).

''(2) INSTITUTIONS DESCRIBED.—An institution described in this paragraph is an educational institution—

''(A) that requests to enter into an agreement with the Administrator providing for the establishment of the program at the institution;

''(B) that has, as a part of its curriculum, a four-year baccalaureate program of professional flight and piloting instruction that is accredited by the Aviation Accreditation Board International;

''(C) that is located in a geographic area that—

''(i) experiences a wide variation in climate-related activity, including frequent high winds, convective activity (including tornadoes), periods of low visibility, heat, and snow and ice episodes, to provide opportunities for pilots to demonstrate skill in all weather conditions compatible with future encounters during their service in the commissioned officer corps; and

''(ii) has a climate that can accommodate both primary and advanced flight training activity at least 75 percent of the year; and

''(D) at which the Administrator determines that—

''(i) there will be at least one student enrolled in the program; and

''(ii) the provisions of this section are otherwise satisfied.

''(3) LIMITATIONS IN CONNECTION WITH PARTICULAR INSTITUTIONS.—The program may not be established or maintained at an institution unless—

''(A) the senior commissioned officer or employee of the commissioned officer corps who is assigned as an advisor to the program at that institution is given the academic rank of adjunct professor; and

''(B) the institution fulfills the terms of its agreement with the Administrator.

''(4) MEMBERSHIP IN CONNECTION WITH STATUS AS STUDENT.—At institutions at which the program is established, the membership of students in the program shall be elective, as provided by State law or the authorities of the institution concerned.

''(c) MEMBERSHIP.—

''(1) ELIGIBILITY.—To be eligible for membership in the program, an individual must—

''(A) be a student at an institution at which the program is established;

''(B) be a citizen of the United States;

''(C) contract in writing, with the consent of a parent or guardian if a minor, with the Administrator, to—

''(i) accept an appointment, if offered, as a commissioned officer in the commissioned officer corps of the Administration; and

''(ii) serve in the commissioned officer corps for not fewer than four years;

''(D) enroll in—

''(i) a four-year baccalaureate program of professional flight and piloting instruction; and

''(ii) other training or education, including basic officer training, which is prescribed by the Administrator as meeting the preliminary requirement for admission to the commissioned officer corps; and

''(E) execute a certificate or take an oath relating to morality and conduct in such form as the Administrator prescribes.

''(2) COMPLETION OF PROGRAM.—A member of the program may be appointed as a regular officer in the commissioned officer corps if the member meets all requirements for appointment as such an officer.

''(d) FINANCIAL ASSISTANCE FOR QUALIFIED MEMBERS.—

''(1) EXPENSES OF COURSE OF INSTRUCTION.—

''(A) IN GENERAL.—In the case of a member of the program who meets such qualifications as the Administrator establishes for purposes of this subsection, the Administrator may pay the expenses of the member in connection with pursuit of a course of professional flight and piloting instruction under the program, including tuition, fees, educational materials such as books, training, certifications, travel, and laboratory expenses.

''(B) ASSISTANCE AFTER FOURTH ACADEMIC YEAR.—In the case of a member of the program described in subparagraph (A) who is enrolled in a course described in that subparagraph that has been approved by the Administrator and requires more than four academic years for completion, including elective requirements of the program, assistance under this subsection may also be provided during a fifth academic year or during a combination of a part of a fifth academic year and summer sessions.

''(2) ROOM AND BOARD.—In the case of a member eligible to receive assistance under paragraph (1), the Administrator may, in lieu of payment of all or part of such assistance, pay the room and board expenses of the member, and other educational expenses, of the educational institution concerned.

''(3) FAILURE TO COMPLETE PROGRAM OR ACCEPT COMMISSION.—A member of the program who receives assistance under this subsection and who does not complete the course of instruction, or who completes the course but declines to accept a commission in the commissioned officer corps when offered, shall be subject to the repayment provisions of subsection (e).

''(e) REPAYMENT OF UNEARNED PORTION OF FINANCIAL ASSISTANCE WHEN CONDITIONS OF PAYMENT NOT MET.—

''(1) IN GENERAL.—A member of the program who receives or benefits from assistance under subsection (d), and whose receipt of or benefit from such assistance is subject to the condition that the member fully satisfy the requirements of subsection (c), shall repay to the United States an amount equal to the assistance received or benefitted from if the member fails to fully satisfy such requirements and may not receive or benefit from any unpaid amounts of such assistance after the member fails to satisfy such requirements, unless the Administrator determines that the imposition of the repayment requirement and the termination of payment of unpaid amounts of such assistance with regard to the member would be—

''(A) contrary to a personnel policy or management objective;

''(B) against equity and good conscience; or

''(C) contrary to the best interests of the United States.

''(2) REGULATIONS.—The Administrator may establish, by regulations, procedures for determining the amount of the repayment required under this subsection and the circumstances under which an exception to repayment may be granted. The Administrator may specify in the regulations the conditions under which financial assistance to be

paid to a member of the program will not be made if the member no longer satisfies the requirements in subsection (c) or qualifications in subsection (d) for such assistance.

''(3) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to repay the United States under this subsection is, for all purposes, a debt owed to the United States.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 1714(b), is further amended by inserting after the item relating to section 217 the following:

''Sec. 218. Aviation accession training programs.''.

SEC. 1716. RECRUITING MATERIALS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 1715(a), is further amended by adding at the end the following:

''SEC. 219. USE OF RECRUITING MATERIALS FOR PUBLIC RELATIONS.

''The Secretary may use for public relations purposes of the Department of Commerce any advertising materials developed for use for recruitment and retention of personnel for the commissioned officer corps of the Administration. Any such use shall be under such conditions and subject to such restrictions as the Secretary shall prescribe.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 1715(b), is further amended by inserting after the item relating to section 218 the following:

''Sec. 219. Use of recruiting materials for public relations.''.

SEC. 1717. TECHNICAL CORRECTION.

Section 101(21)(C) of title 38, United States Code, is amended by inserting ''in the commissioned officer corps'' before ''of the National''.

Subtitle B—Parity and Recruitment

SEC. 1721. EDUCATION LOANS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by adding at the end the following:

''SEC. 267. EDUCATION LOAN REPAYMENT PROGRAM.

''(a) AUTHORITY TO REPAY EDUCATION LOANS.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty who have skills required by the commissioned officer corps, the Secretary may repay, in the case of a person described in subsection (b), a loan that—

''(1) was used by the person to finance education; and

''(2) was obtained from a governmental entity, private financial institution, educational institution, or other authorized entity.

''(b) ELIGIBLE PERSONS.—To be eligible to obtain a loan repayment under this section, a person must—

''(1) satisfy one of the requirements specified in subsection (c);

''(2) be fully qualified for, or hold, an appointment as a commissioned officer in the commissioned officer corps of the Administration; and

''(3) sign a written agreement to serve on active duty, or, if on active duty, to remain on active duty for a period in addition to any other incurred active duty obligation.

''(c) ACADEMIC AND PROFESSIONAL REQUIREMENTS.—One of the following academic requirements must be satisfied for purposes of determining the eligibility of an individual for a loan repayment under this section:

''(1) The person is fully qualified in a profession that the Secretary has determined to be necessary to meet identified skill shortages in the commissioned officer corps.

''(2) The person is enrolled as a full-time student in the final year of a course of study at an accredited educational institution (as determined by the Secretary of Education) leading to a degree in a profession that will meet identified skill shortages in the commissioned officer corps.

''(d) LOAN REPAYMENTS.—

''(1) IN GENERAL.—Subject to the limits established under paragraph (2), a loan repayment under this section may consist of the payment of the principal, interest, and related expenses of a loan obtained by a person described in subsection (b).

''(2) LIMITATION ON AMOUNT.—For each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(3), the Secretary may pay not more than the amount specified in section 2173(e)(2) of title 10, United States Code.

''(e) ACTIVE DUTY SERVICE OBLIGATION.—

''(1) IN GENERAL.—A person entering into an agreement described in subsection (b)(3) incurs an active duty service obligation.

''(2) LENGTH OF OBLIGATION DETERMINED UNDER REGULATIONS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the length of the obligation under paragraph (1) shall be determined under regulations prescribed by the Secretary.

''(B) MINIMUM OBLIGATION.—The regulations prescribed under subparagraph (A) may not provide for a period of obligation of less than one year for each maximum annual amount, or portion thereof, paid on behalf of the person for qualified loans.

''(3) PERSONS ON ACTIVE DUTY BEFORE ENTERING INTO AGREEMENT.—The active duty service obligation of persons on active duty before entering into the agreement shall be served after the conclusion of any other obligation incurred under the agreement.

''(4) CONCURRENT COMPLETION OF SERVICE OBLIGATIONS.—A service obligation under this section may be completed concurrently with a service obligation under section 216.

''(f) EFFECT OF FAILURE TO COMPLETE OBLIGATION.—

''(1) ALTERNATIVE OBLIGATIONS.—An officer who is relieved of the officer's active duty obligation under this section before the completion of that obligation may be given any alternative obligation, at the discretion of the Secretary.

''(2) REPAYMENT.—An officer who does not complete the period of active duty specified in the agreement entered into under subsection (b)(3), or the alternative obligation imposed under paragraph (1), shall be subject to the repayment provisions under section 216.

''(g) RULEMAKING.—The Secretary shall prescribe regulations to carry out this section, including—

''(1) standards for qualified loans and authorized payees; and

''(2) other terms and conditions for the making of loan repayments.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 266 the following:

''Sec. 267. Education loan repayment program.''.

SEC. 1722. INTEREST PAYMENTS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by section 1721(a), is further amended by adding at the end the following:

''SEC. 268. INTEREST PAYMENT PROGRAM.

''(a) AUTHORITY.—The Secretary may pay the interest and any special allowances that accrue on one or more student loans of an eligible officer, in accordance with this section.

''(b) ELIGIBLE OFFICERS.—An officer is eligible for the benefit described in subsection (a) while the officer—

''(1) is serving on active duty;

''(2) has not completed more than three years of service on active duty;

''(3) is the debtor on one or more unpaid loans described in subsection (c); and

''(4) is not in default on any such loan.

''(c) STUDENT LOANS.—The authority to make payments under subsection (a) may be exercised with respect to the following loans:

''(1) A loan made, insured, or guaranteed under part B of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq.).

''(2) A loan made under part D of such title (20 U.S.C. 1087a et seq.).

''(3) A loan made under part E of such title (20 U.S.C. 1087aa et seq.).

''(d) MAXIMUM BENEFIT.—Interest and any special allowance may be paid on behalf of an officer under this section for any of the 36 consecutive months during which the officer is eligible under subsection (b).

''(e) COORDINATION WITH SECRETARY OF EDUCATION.—

''(1) IN GENERAL.—The Secretary shall consult with the Secretary of Education regarding the administration of this section.

''(2) REIMBURSEMENT AUTHORIZED.—The Secretary is authorized to reimburse the Secretary of Education—

''(A) for the funds necessary to pay interest and special allowances on student loans under this section (in accordance with sections 428(o), 455(l), and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1078(o), 1087e(l), and 1087dd(j)); and

''(B) for any reasonable administrative costs incurred by the Secretary of Education in coordinating the program under this section with the administration of the student loan programs under parts B, D, and E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq., 1087a et seq., 1087aa et seq.).

''(f) SPECIAL ALLOWANCE DEFINED.—In this section, the term 'special allowance' means a special allowance that is payable under section 438 of the Higher Education Act of 1965 (20 U.S.C. 1087–1).''.

(b) CONFORMING AMENDMENTS.—

(1) Section 428(o) of the Higher Education Act of 1965 (20 U.S.C. 1078(o)) is amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 268 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively,'' after ''Armed Forces''.

(2) Sections 455(l) and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1087e(l) and 1087dd(j)) are each amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 268 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively'' after ''Armed Forces''.

(c) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 1721(b), is further amended by inserting after the item relating to section 267 the following:

''Sec. 268. Interest payment program.''.

SEC. 1723. STUDENT PRE-COMMISSIONING PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by section 1722(a), is further amended by adding at the end the following:

''SEC. 269. STUDENT PRE-COMMISSIONING EDUCATION ASSISTANCE PROGRAM.

''(a) AUTHORITY TO PROVIDE FINANCIAL ASSISTANCE.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty, the Secretary may provide financial assistance to a person described in subsection (b) for expenses of the person while the person is pursuing on a full-time basis at an accredited educational institution (as determined by the Secretary of Education) a program of education approved by the Secretary that leads to—

''(1) a baccalaureate degree in not more than five academic years; or

''(2) a postbaccalaureate degree.

''(b) ELIGIBLE PERSONS.—

''(1) IN GENERAL.—A person is eligible to obtain financial assistance under subsection (a) if the person—

''(A) is enrolled on a full-time basis in a program of education referred to in subsection (a) at any educational institution described in such subsection;

''(B) meets all of the requirements for acceptance into the commissioned officer corps of the Administration except for the completion of a baccalaureate degree; and

''(C) enters into a written agreement with the Secretary described in paragraph (2).

''(2) AGREEMENT.—A written agreement referred to in paragraph (1)(C) is an agreement between the person and the Secretary in which the person—

''(A) agrees to accept an appointment as an officer, if tendered; and

''(B) upon completion of the person's educational program, agrees to serve on active duty, immediately after appointment, for—

''(i) up to three years if the person received less than three years of assistance; and

''(ii) up to five years if the person received at least three years of assistance.

''(c) QUALIFYING EXPENSES.—Expenses for which financial assistance may be provided under subsection (a) are the following:

''(1) Tuition and fees charged by the educational institution involved.

''(2) The cost of educational materials.

''(3) In the case of a program of education leading to a baccalaureate degree, laboratory expenses.

''(4) Such other expenses as the Secretary considers appropriate.

''(d) LIMITATION ON AMOUNT.—The Secretary shall prescribe the amount of financial assistance provided to a person under subsection (a), which may not exceed the amount specified in section 2173(e)(2) of title 10, United States Code, for each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(2).

''(e) DURATION OF ASSISTANCE.—Financial assistance may be provided to a person under subsection (a) for not more than five consecutive academic years.

''(f) SUBSISTENCE ALLOWANCE.—

''(1) IN GENERAL.—A person who receives financial assistance under subsection (a) shall be entitled to a monthly subsistence allowance at a rate prescribed under paragraph (2) for the duration of the period for which the person receives such financial assistance.

''(2) DETERMINATION OF AMOUNT.—The Secretary shall prescribe monthly rates for subsistence allowance provided under paragraph (1), which shall be equal to the amount specified in section 2144(a) of title 10, United States Code.

''(g) INITIAL CLOTHING ALLOWANCE.—

''(1) TRAINING.—The Secretary may prescribe a sum which shall be credited to each person who receives financial assistance under subsection (a) to cover the cost of the person's initial clothing and equipment issue.

''(2) APPOINTMENT.—Upon completion of the program of education for which a person receives financial assistance under subsection (a) and acceptance of appointment in the commissioned officer corps of the Administration, the person may be issued a subsequent clothing allowance equivalent to that normally provided to a newly appointed officer.

''(h) TERMINATION OF FINANCIAL ASSISTANCE.—

''(1) IN GENERAL.—The Secretary shall terminate the assistance provided to a person under this section if—

''(A) the Secretary accepts a request by the person to be released from an agreement described in subsection (b)(2);

''(B) the misconduct of the person results in a failure to complete the period of active duty required under the agreement; or

''(C) the person fails to fulfill any term or condition of the agreement.

''(2) REIMBURSEMENT.—The Secretary may require a person who receives assistance described in subsection (c), (f), or (g) under an agreement entered into under subsection (b)(1)(C) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the assistance provided to that person as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve under the agreement.

''(3) WAIVER.—The Secretary may waive the service obligation of a person through an agreement entered into under subsection (b)(1)(C) if the person—

''(A) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that person; or

''(B) is—

''(i) not physically qualified for appointment; and

''(ii) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the person's own misconduct or grossly negligent conduct.

''(4) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the Secretary imposed under paragraph (2) is, for all purposes, a debt owed to the United States.

''(5) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11, United States Code, that is entered less than five years after the termination of a written agreement entered into under subsection (b)(1)(C) does not discharge the person signing the agreement from a debt arising under such agreement or under paragraph (2).

''(i) REGULATIONS.—The Secretary may prescribe such regulations and orders as the Secretary considers appropriate to carry out this section.

''(j) CONCURRENT COMPLETION OF SERVICE OBLIGATIONS.—A service obligation under this section may be completed concurrently with a service obligation under section 216.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 1722(c), is further amended by inserting after the item relating to section 268 the following:

''Sec. 269. Student pre-commissioning education assistance program.''.

SEC. 1724. LIMITATION ON EDUCATIONAL ASSISTANCE.

(a) IN GENERAL.—Each fiscal year, beginning with the fiscal year in which this title is enacted, the Secretary of Commerce shall ensure that the total amount expended by the Secretary under section 267 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (as added by section 1721(a)), section 268 of such Act (as added by section 1722(a)), and section 269 of such Act (as added by section 1723(a)) does not exceed the amount by which—

(1) the total amount the Secretary would pay in that fiscal year to officer candidates under section 203(f)(1) of title 37, United States Code (as added by section 1735(d)), if such section entitled officer candidates to pay at monthly rates equal to the basic pay of a commissioned officer in the pay grade O–1 with less than 2 years of service, exceeds

(2) the total amount the Secretary actually pays in that fiscal year to officer candidates under section 203(f)(1) of such title (as so added).

(b) OFFICER CANDIDATE DEFINED.—In this section, the term ''officer candidate'' has the meaning given the term in paragraph (4) of section 212(b) of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3002), as added by section 1735(c).

SEC. 1725. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 10, UNITED STATES CODE, AND EXTENSION OF CERTAIN AUTHORITIES APPLICABLE TO MEMBERS OF THE ARMED FORCES TO COMMISSIONED OFFICER CORPS.

(a) APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 10.—Section 261(a) (33 U.S.C. 3071(a)) is amended—

(1) by redesignating paragraphs (13) through (16) as paragraphs (22) through (25), respectively;

(2) by redesignating paragraphs (7) through (12) as paragraphs (14) through (19), respectively;

(3) by redesignating paragraphs (4) through (6) as paragraphs (8) through (10), respectively;

(4) by inserting after paragraph (3) the following:

''(4) Section 771, relating to unauthorized wearing of uniforms.

''(5) Section 774, relating to wearing religious apparel while in uniform.

''(6) Section 982, relating to service on State and local juries.

''(7) Section 1031, relating to administration of oaths.'';

(5) by inserting after paragraph (10), as redesignated, the following:

''(11) Section 1074n, relating to annual mental health assessments.

''(12) Section 1090a, relating to referrals for mental health evaluations.

''(13) Chapter 58, relating to the Benefits and Services for members being separated or recently separated.''; and

(6) by inserting after paragraph (19), as redesignated, the following:

''(20) Subchapter I of chapter 88, relating to Military Family Programs, applicable on an as-available and fully reimbursable basis.

''(21) Section 2005, relating to advanced education assistance, active duty agreements, and reimbursement requirements.''.

(b) EXTENSION OF CERTAIN AUTHORITIES.—

(1) NOTARIAL SERVICES.—Section 1044a of title 10, United States Code, is amended—

(A) in subsection (a)(1), by striking ''armed forces'' and inserting ''uniformed services''; and

(B) in subsection (b)(4), by striking ''armed forces'' both places it appears and inserting ''uniformed services''.

(2) ACCEPTANCE OF VOLUNTARY SERVICES FOR PROGRAMS SERVING MEMBERS AND THEIR FAMILIES.—Section 1588 of such title is amended—

(A) in subsection (a)(3), in the matter before subparagraph (A), by striking ''armed forces'' and inserting ''uniformed services''; and

(B) by adding at the end the following new subsection:

''(g) SECRETARY CONCERNED FOR ACCEPTANCE OF SERVICES FOR PROGRAMS SERVING MEMBERS OF NOAA CORPS AND THEIR FAMILIES.—For purposes of the acceptance of services described in subsection (a)(3), the term 'Secretary concerned' in subsection (a) shall include the Secretary of Commerce with respect to members of the commissioned officer corps of the National Oceanic and Atmospheric Administration.''.

(3) CAPSTONE COURSE FOR NEWLY SELECTED FLAG OFFICERS.—Section 2153 of such title is amended—

(A) in subsection (a)—

(i) by inserting ''or the commissioned officer corps of the National Oceanic and Atmospheric Administration'' after ''in the case of the Navy''; and

(ii) by striking ''other armed forces'' and inserting ''other uniformed services''; and

(B) in subsection (b)(1), in the matter before subparagraph (A), by inserting ''or the Secretary of Commerce, as applicable,'' after ''the Secretary of Defense''.

SEC. 1726. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by inserting after section 261 the following:

''SEC. 261A. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

''The provisions of law applicable to the Armed Forces under the following provisions of title 37, United States Code, shall apply to the commissioned officer corps of the Administration:

''(1) Section 403(l), relating to temporary continuation of housing allowance for dependents of members dying on active duty.

''(2) Section 415, relating to initial uniform allowances.

''(3) Section 488, relating to allowances for recruiting expenses.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 261 the following:

''Sec. 261A. Applicability of certain provisions of title 37, United States Code.''.

SEC. 1727. PROHIBITION ON RETALIATORY PERSONNEL ACTIONS.

(a) IN GENERAL.—Subsection (a) of section 261 (33 U.S.C. 3071), as amended by section 1725(a), is further amended—

(1) by redesignating paragraphs (8) through (25) as paragraphs (9) through (26), respectively; and

(2) by inserting after paragraph (7) the following:

''(8) Section 1034, relating to protected communications and prohibition of retaliatory personnel actions.''.

(b) CONFORMING AMENDMENT.—Subsection (b) of such section is amended by adding at the end the following: ''For purposes of paragraph (8) of subsection (a), the term 'Inspector General' in section 1034 of such title 10 shall mean the Inspector General of the Department of Commerce.''.

(c) REGULATIONS.—Such section is further amended by adding at the end the following:

''(c) REGULATIONS REGARDING PROTECTED COMMUNICATIONS AND PROHIBITION OF RETALIATORY PERSONNEL ACTIONS.—The Secretary may prescribe regulations to carry out the application of section 1034 of title 10, United States Code, to the commissioned officer corps of the Administration, including by prescribing such administrative procedures for investigation and appeal within the commissioned officer corps as the Secretary considers appropriate.''.

SEC. 1728. EMPLOYMENT AND REEMPLOYMENT RIGHTS.

Section 4303(16) of title 38, United States Code, is amended by inserting ''the commissioned officer corps of the National Oceanic and Atmospheric Administration,'' after ''Public Health Service,''.

SEC. 1729. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS FOR PURPOSES OF CERTAIN HIRING DECISIONS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by this title, is further amended by adding at the end the following:

''SEC. 269A. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

''(a) IN GENERAL.—In any case in which the Secretary accepts an application for a position of employment with the Administration and limits consideration of applications for such position to applications submitted by individuals serving in a career or career-conditional position in the competitive service within the Administration, the Secretary shall deem an officer who has served as an officer in the commissioned officer corps for at least three years to be serving in a career or career-conditional position in the competitive service within the Administration for purposes of such limitation.

''(b) CAREER APPOINTMENTS.—If the Secretary selects an application submitted by an officer described in subsection (a) for a position described in such subsection, the Secretary shall give such officer a career or career-conditional appointment in the competitive service, as appropriate.

''(c) COMPETITIVE SERVICE DEFINED.—In this section, the term 'competitive service' has the meaning given the term in section 2102 of title 5, United States Code.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 269, as added by section 1723(b), the following new item:

''Sec. 269A. Treatment of commission in commissioned officer corps as employment in Administration for purposes of certain hiring decisions.''.

Subtitle C—Appointments and Promotion of Officers

SEC. 1731. APPOINTMENTS.

(a) ORIGINAL APPOINTMENTS.—Section 221 (33 U.S.C. 3021) is amended to read as follows:

''SEC. 221. ORIGINAL APPOINTMENTS AND REAPPOINTMENTS.

''(a) ORIGINAL APPOINTMENTS.—

''(1) GRADES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), an original appointment of an officer may be made in such grades as may be appropriate for—

''(i) the qualification, experience, and length of service of the appointee; and

''(ii) the commissioned officer corps of the Administration.

''(B) APPOINTMENT OF OFFICER CANDIDATES.—

''(i) LIMITATION ON GRADE.—An original appointment of an officer candidate, upon graduation from the basic officer training program of the commissioned officer corps of the Administration, may not be made in any other grade than ensign.

''(ii) RANK.—Officer candidates receiving appointments as ensigns upon graduation from the basic officer training program shall take rank according to their proficiency as shown by the order of their merit at date of graduation.

''(2) SOURCE OF APPOINTMENTS.—An original appointment may be made from among the following:

''(A) Graduates of the basic officer training program of the commissioned officer corps of the Administration.

''(B) Subject to the approval of the Secretary of Defense, graduates of the military service academies of the United States who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(C) Graduates of the State maritime academies who—

''(i) otherwise meet the academic standards for enrollment in the training program described in subparagraph (A);

''(ii) completed at least three years of regimented training while at a State maritime academy; and

''(iii) obtained an unlimited tonnage or unlimited horsepower Merchant Mariner Credential from the United States Coast Guard.

''(D) Licensed officers of the United States merchant marine who have served two or more years aboard a vessel of the United States in the capacity of a licensed officer, who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(3) DEFINITIONS.—In this subsection:

''(A) MILITARY SERVICE ACADEMIES OF THE UNITED STATES.—The term 'military service academies of the United States' means the following:

''(i) The United States Military Academy, West Point, New York.

''(ii) The United States Naval Academy, Annapolis, Maryland.

''(iii) The United States Air Force Academy, Colorado Springs, Colorado.

''(iv) The United States Coast Guard Academy, New London, Connecticut.

''(v) The United States Merchant Marine Academy, Kings Point, New York.

''(B) STATE MARITIME ACADEMY.—The term 'State maritime academy' has the meaning given the term in section 51102 of title 46, United States Code.

''(b) REAPPOINTMENT.—

''(1) IN GENERAL.—Except as provided in paragraph (2), an individual who previously served in the commissioned officer corps of the Administration may be appointed by the Secretary to the grade the individual held prior to separation.

''(2) REAPPOINTMENTS TO HIGHER GRADES.—An appointment under paragraph (1) to a position of importance and responsibility designated under section 228 may only be made by the President.

''(c) QUALIFICATIONS.—An appointment under subsection (a) or (b) may not be given to an individual until the individual's mental, moral, physical, and professional fitness to perform the duties of an officer has been established under such regulations as the Secretary shall prescribe.

''(d) ORDER OF PRECEDENCE.—Appointees under this section shall take precedence in

the grade to which appointed in accordance with the dates of their commissions as commissioned officers in such grade. The order of precedence of appointees whose dates of commission are the same shall be determined by the Secretary.

''(e) INTER-SERVICE TRANSFERS.—For inter-service transfers (as described in Department of Defense Directive 1300.4 (dated December 27, 2006)) the Secretary shall—

''(1) coordinate with the Secretary of Defense and the Secretary of the Department in which the Coast Guard is operating to promote and streamline inter-service transfers;

''(2) give preference to such inter-service transfers for recruitment purposes as determined appropriate by the Secretary; and

''(3) reappoint such inter-service transfers to the equivalent grade in the commissioned officer corps.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 221 and inserting the following:

''Sec. 221. Original appointments and reappointments.''.

SEC. 1732. PERSONNEL BOARDS.

Section 222 (33 U.S.C. 3022) is amended to read as follows:

''SEC. 222. PERSONNEL BOARDS.

''(a) CONVENING.—Not less frequently than once each year and at such other times as the Secretary determines necessary, the Secretary shall convene a personnel board.

''(b) MEMBERSHIP.—

''(1) IN GENERAL.—A board convened under subsection (a) shall consist of five or more officers who are serving in or above the permanent grade of the officers under consideration by the board.

''(2) RETIRED OFFICERS.—Officers on the retired list may be recalled to serve on such personnel boards as the Secretary considers necessary.

''(3) NO MEMBERSHIP ON 2 SUCCESSIVE BOARDS.—No officer may be a member of two successive personnel boards convened to consider officers of the same grade for promotion or separation.

''(c) DUTIES.—Each personnel board shall—

''(1) recommend to the Secretary such changes as may be necessary to correct any erroneous position on the lineal list that was caused by administrative error; and

''(2) make selections and recommendations to the Secretary and the President for the appointment, promotion, involuntary separation, continuation, and involuntary retirement of officers in the commissioned officer corps of the Administration as prescribed in this title.

''(d) ACTION ON RECOMMENDATIONS NOT ACCEPTABLE.—If any recommendation by a board convened under subsection (a) is not accepted by the Secretary or the President, the board shall make such further recommendations as the Secretary or the President considers appropriate.

''(e) AUTHORITY FOR OFFICERS TO OPT OUT OF PROMOTION CONSIDERATION.—

''(1) IN GENERAL.—The Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps may provide that an officer, upon the officer's request and with the approval of the Director, be excluded from consideration for promotion by a personnel board convened under this section.

''(2) APPROVAL.—The Director shall approve a request made by an officer under paragraph (1) only if—

''(A) the basis for the request is to allow the officer to complete a broadening assignment, advanced education, another assignment of significant value to the Administration, a career progression requirement delayed by the assignment or education, or a qualifying personal or professional circumstance, as determined by the Director;

''(B) the Director determines the exclusion from consideration is in the best interest of the Administration; and

''(C) the officer has not previously failed selection for promotion to the grade for which the officer requests the exclusion from consideration.''.

SEC. 1733. POSITIONS OF IMPORTANCE AND RESPONSIBILITY.

Section 228 (33 U.S.C. 3028) is amended—

(1) in subsection (c)—

(A) in the first sentence, by striking ''The Secretary shall designate one position under this section'' and inserting ''The President shall designate one position''; and

(B) in the second sentence, by striking ''That position shall be filled by'' and inserting ''The President shall fill that position by appointing, by and with the advice and consent of the Senate,'';

(2) in subsection (d)(2), by inserting ''or immediately beginning a period of terminal leave'' after ''for which a higher grade is designated'';

(3) by amending subsection (e) to read as follows:

''(e) LIMIT ON NUMBER OF OFFICERS APPOINTED.—The total number of officers serving on active duty at any one time in the grade of rear admiral (lower half) or above may not exceed five, with only one serving in the grade of vice admiral.''; and

(4) in subsection (f), by inserting ''or in a period of annual leave used at the end of the appointment'' after ''serving in that grade''.

SEC. 1734. TEMPORARY APPOINTMENTS.

(a) IN GENERAL.—Section 229 (33 U.S.C. 3029) is amended to read as follows:

''SEC. 229. TEMPORARY APPOINTMENTS.

''(a) APPOINTMENTS BY PRESIDENT.—Temporary appointments in the grade of ensign, lieutenant junior grade, or lieutenant may be made by the President.

''(b) TERMINATION.—A temporary appointment to a position under subsection (a) shall terminate upon approval of a permanent appointment for such position made by the President.

''(c) ORDER OF PRECEDENCE.—Appointees under subsection (a) shall take precedence in the grade to which appointed in accordance with the dates of their appointments as officers in such grade. The order of precedence of appointees who are appointed on the same date shall be determined by the Secretary.

''(d) ANY ONE GRADE.—When determined by the Secretary to be in the best interest of the commissioned officer corps, officers in any permanent grade may be temporarily promoted one grade by the President. Any such temporary promotion terminates upon the transfer of the officer to a new assignment.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 229 and inserting the following:

''Sec. 229. Temporary appointments.''.

SEC. 1735. OFFICER CANDIDATES.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.) is amended by adding at the end the following:

''SEC. 234. OFFICER CANDIDATES.

''(a) DETERMINATION OF NUMBER.—The Secretary shall determine the number of appointments of officer candidates.

''(b) APPOINTMENT.—Appointment of officer candidates shall be made under regulations, which the Secretary shall prescribe, including regulations with respect to determining age limits, methods of selection of officer candidates, term of service as an officer candidate before graduation from the basic officer training program of the Administration, and all other matters affecting such appointment.

''(c) DISMISSAL.—The Secretary may dismiss from the basic officer training program of the Administration any officer candidate who, during the officer candidate's term as an officer candidate, the Secretary considers unsatisfactory in either academics or conduct, or not adapted for a career in the commissioned officer corps of the Administration. Officer candidates shall be subject to rules governing discipline prescribed by the Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps.

''(d) AGREEMENT.—

''(1) IN GENERAL.—Each officer candidate shall sign an agreement with the Secretary in accordance with section 216(a)(2) regarding the officer candidate's term of service in the commissioned officer corps of the Administration.

''(2) ELEMENTS.—An agreement signed by an officer candidate under paragraph (1) shall provide that the officer candidate agrees to the following:

''(A) That the officer candidate will complete the course of instruction at the basic officer training program of the Administration.

''(B) That upon graduation from such program, the officer candidate—

''(i) will accept an appointment, if tendered, as an officer; and

''(ii) will serve on active duty for at least four years immediately after such appointment.

''(e) REGULATIONS.—The Secretary shall prescribe regulations to carry out this section. Such regulations shall include—

''(1) standards for determining what constitutes a breach of an agreement signed under subsection (d)(1); and

''(2) procedures for determining whether such a breach has occurred.

''(f) REPAYMENT.—An officer candidate or former officer candidate who does not fulfill the terms of the obligation to serve as specified under subsection (d) shall be subject to the repayment provisions of section 216(b).''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 233 the following:

''Sec. 234. Officer candidates.''.

(c) OFFICER CANDIDATE DEFINED.—Section 212(b) (33 U.S.C. 3002(b)) is amended—

(1) by redesignating paragraphs (4) through (6) as paragraphs (5) through (7), respectively; and

(2) by inserting after paragraph (3) the following:

''(4) OFFICER CANDIDATE.—The term 'officer candidate' means an individual who is enrolled in the basic officer training program of the Administration and is under consideration for appointment as an officer under section 221(a)(2)(A).''.

(d) PAY FOR OFFICER CANDIDATES.—Section 203 of title 37, United States Code, is amended by adding at the end the following:

''(f)(1) An officer candidate enrolled in the basic officer training program of the commissioned officer corps of the National Oceanic and Atmospheric Administration is entitled, while participating in such program, to monthly officer candidate pay at monthly rates equal to the basic pay of an enlisted

member in the pay grade E–5 with less than two years of service.

''(2) An individual who graduates from such program shall receive credit for the time spent participating in such program as if such time were time served while on active duty as a commissioned officer. If the individual does not graduate from such program, such time shall not be considered creditable for active duty or pay.''.

SEC. 1736. PROCUREMENT OF PERSONNEL.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.), as amended by section 1735(a), is further amended by adding at the end the following:

''SEC. 235. PROCUREMENT OF PERSONNEL.

''The Secretary may take such measures as the Secretary determines necessary in order to obtain recruits for the commissioned officer corps of the Administration, including advertising.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 1735(b), is further amended by inserting after the item relating to section 234 the following:

''235. Procurement of personnel.''.

SEC. 1737. CAREER INTERMISSION PROGRAM.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.), as amended by section 1736(a), is further amended by adding at the end the following:

''SEC. 236. CAREER FLEXIBILITY TO ENHANCE RETENTION OF OFFICERS.

''(a) PROGRAMS AUTHORIZED.—The Secretary may carry out a program under which officers may be inactivated from active duty in order to meet personal or professional needs and returned to active duty at the end of such period of inactivation from active duty.

''(b) PERIOD OF INACTIVATION FROM ACTIVE DUTY; EFFECT OF INACTIVATION.—

''(1) IN GENERAL.—The period of inactivation from active duty under a program under this section of an officer participating in the program shall be such period as the Secretary shall specify in the agreement of the officer under subsection (c), except that such period may not exceed three years.

''(2) EXCLUSION FROM RETIREMENT.—Any period of participation of an officer in a program under this section shall not count toward eligibility for retirement or computation of retired pay under subtitle C.

''(c) AGREEMENT.—Each officer who participates in a program under this section shall enter into a written agreement with the Secretary under which that officer shall agree as follows:

''(1) To undergo during the period of the inactivation of the officer from active duty under the program such inactive duty training as the Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps shall require in order to ensure that the officer retains proficiency, at a level determined by the Director to be sufficient, in the technical skills, professional qualifications, and physical readiness of the officer during the inactivation of the officer from active duty.

''(2) Following completion of the period of the inactivation of the officer from active duty under the program, to serve two months on active duty for each month of the period of the inactivation of the officer from active duty under the program.

''(d) CONDITIONS OF RELEASE.—The Secretary shall—

''(1) prescribe regulations specifying the guidelines regarding the conditions of release that must be considered and addressed in the agreement required by subsection (c); and

''(2) at a minimum, prescribe the procedures and standards to be used to instruct an officer on the obligations to be assumed by the officer under paragraph (1) of such subsection while the officer is released from active duty.

''(e) ORDER TO ACTIVE DUTY.—Under regulations prescribed by the Secretary, an officer participating in a program under this section may, in the discretion of the Secretary, be required to terminate participation in the program and be ordered to active duty.

''(f) PAY AND ALLOWANCES.—

''(1) BASIC PAY.—During each month of participation in a program under this section, an officer who participates in the program shall be paid basic pay in an amount equal to two-thirtieths of the amount of monthly basic pay to which the officer would otherwise be entitled under section 204 of title 37, United States Code, as a member of the uniformed services on active duty in the grade and years of service of the officer when the officer commences participation in the program.

''(2) SPECIAL OR INCENTIVE PAY OR BONUS.—

''(A) PROHIBITION.—An officer who participates in a program under this section shall not, while participating in the program, be paid any special or incentive pay or bonus to which the officer is otherwise entitled under an agreement under chapter 5 of title 37, United States Code, that is in force when the officer commences participation in the program.

''(B) NOT TREATED AS FAILURE TO PERFORM SERVICES.—The inactivation from active duty of an officer participating in a program under this section shall not be treated as a failure of the officer to perform any period of service required of the officer in connection with an agreement for a special or incentive pay or bonus under chapter 5 of title 37, United States Code, that is in force when the officer commences participation in the program.

''(3) RETURN TO ACTIVE DUTY.—

''(A) SPECIAL OR INCENTIVE PAY OR BONUS.—Subject to subparagraph (B), upon the return of an officer to active duty after completion by the officer of participation in a program under this section—

''(i) any agreement entered into by the officer under chapter 5 of title 37, United States Code, for the payment of a special or incentive pay or bonus that was in force when the officer commenced participation in the program shall be revived, with the term of such agreement after revival being the period of the agreement remaining to run when the officer commenced participation in the program; and

''(ii) any special or incentive pay or bonus shall be payable to the officer in accordance with the terms of the agreement concerned for the term specified in clause (i).

''(B) LIMITATION.—

''(i) IN GENERAL.—Subparagraph (A) shall not apply to any special or incentive pay or bonus otherwise covered by that subparagraph with respect to an officer if, at the time of the return of the officer to active duty as described in that subparagraph—

''(I) such pay or bonus is no longer authorized by law; or

''(II) the officer does not satisfy eligibility criteria for such pay or bonus as in effect at the time of the return of the officer to active duty.

''(ii) PAY OR BONUS CEASES BEING AUTHORIZED.—Subparagraph (A) shall cease to apply to any special or incentive pay or bonus otherwise covered by that subparagraph with respect to an officer if, during the term of the revived agreement of the officer under subparagraph (A)(i), such pay or bonus ceases being authorized by law.

''(C) REPAYMENT.—An officer who is ineligible for payment of a special or incentive pay or bonus otherwise covered by this paragraph by reason of subparagraph (B)(i)(II) shall be subject to the requirements for repayment of such pay or bonus in accordance with the terms of the applicable agreement of the officer under chapter 5 of title 37, United States Code.

''(D) REQUIRED SERVICE IS ADDITIONAL.—Any service required of an officer under an agreement covered by this paragraph after the officer returns to active duty as described in subparagraph (A) shall be in addition to any service required of the officer under an agreement under subsection (c).

''(4) TRAVEL AND TRANSPORTATION ALLOWANCE.—

''(A) IN GENERAL.—Subject to subparagraph (B), an officer who participates in a program under this section is entitled, while participating in the program, to the travel and transportation allowances authorized by section 474 of title 37, United States Code, for—

''(i) travel performed from the residence of the officer, at the time of release from active duty to participate in the program, to the location in the United States designated by the officer as the officer's residence during the period of participation in the program; and

''(ii) travel performed to the residence of the officer upon return to active duty at the end of the participation of the officer in the program.

''(B) SINGLE RESIDENCE.—An allowance is payable under this paragraph only with respect to travel of an officer to and from a single residence.

''(5) LEAVE BALANCE.—An officer who participates in a program under this section is entitled to carry forward the leave balance existing as of the day on which the officer begins participation and accumulated in accordance with section 701 of title 10, but not to exceed 60 days.

''(g) PROMOTION.—

''(1) IN GENERAL.—An officer participating in a program under this section shall not, while participating in the program, be eligible for consideration for promotion under subtitle B.

''(2) RETURN TO SERVICE.—Upon the return of an officer to active duty after completion by the officer of participation in a program under this section—

''(A) the Secretary may adjust the date of rank of the officer in such manner as the Secretary shall prescribe in regulations for purposes of this section; and

''(B) the officer shall be eligible for consideration for promotion when officers of the same competitive category, grade, and seniority are eligible for consideration for promotion.

''(h) CONTINUED ENTITLEMENTS.—An officer participating in a program under this section shall, while participating in the program, be treated as a member of the uniformed services on active duty for a period of more than 30 days for purposes of—

''(1) the entitlement of the officer and of the dependents of the officer to medical and dental care under the provisions of chapter 55 of title 10; and

''(2) retirement or separation for physical disability under the provisions of subtitle C.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to authorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 1736(b), is further amended by inserting after the item relating to section 235 the following:

''Sec. 236. Career flexibility to enhance retention of officers.''.

Subtitle D—Separation and Retirement of Officers

SEC. 1741. INVOLUNTARY RETIREMENT OR SEPARATION.

Section 241 (33 U.S.C. 3041) is amended by adding at the end the following:

''(d) DEFERMENT OF RETIREMENT OR SEPARATION FOR MEDICAL REASONS.—

''(1) IN GENERAL.—If the Secretary determines that the evaluation of the medical condition of an officer requires hospitalization or medical observation that cannot be completed with confidence in a manner consistent with the officer's well-being before the date on which the officer would otherwise be required to retire or be separated under this section, the Secretary may defer the retirement or separation of the officer.

''(2) CONSENT REQUIRED.—A deferment may only be made with the written consent of the officer involved. If the officer does not provide written consent to the deferment, the officer shall be retired or separated as scheduled.

''(3) LIMITATION.—A deferment of retirement or separation under this subsection may not extend for more than 30 days after completion of the evaluation requiring hospitalization or medical observation.''.

SEC. 1742. SEPARATION PAY.

Section 242 (33 U.S.C. 3042) is amended by adding at the end the following:

''(d) EXCEPTION.—An officer discharged for twice failing selection for promotion to the next higher grade is not entitled to separation pay under this section if the officer—

''(1) expresses a desire not to be selected for promotion; or

''(2) requests removal from the list of selectees.''.

Subtitle E—Other National Oceanic and Atmospheric Administration Matters

SEC. 1751. CHARTING AND SURVEY SERVICES.

(a) IN GENERAL.—Not later than 270 days after the development of the strategy required by section 1002(b) of the Frank LoBiondo Coast Guard Authorization Act of 2018 (33 U.S.C. 892a note), the Secretary of Commerce shall enter into not fewer than 2 multi-year contracts with 1 or more private entities for the performance of charting and survey services by vessels.

(b) CHARTING AND SURVEYS IN THE ARCTIC.—In soliciting and engaging the services of vessels under subsection (a), the Secretary shall particularly emphasize the need for charting and surveys in the Arctic.

SEC. 1752. CO-LOCATION AGREEMENTS.

(a) IN GENERAL.—Notwithstanding any other provision of law, in fiscal year 2020 and each fiscal year thereafter, and subject to the availability of appropriations, the Administrator of the National Oceanic and Atmospheric Administration may execute noncompetitive co-location agreements for real property and incidental goods and services with entities described in subsection (b) for periods of not more than 30 years, if each such agreement is supported by a price reasonableness analysis.

(b) ENTITIES DESCRIBED.—An entity described in this subsection is—

(1) the government of any State, territory, possession, or locality of the United States;

(2) any Tribal organization (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304));

(3) any subdivision of—

(A) a government described in paragraph (1); or

(B) an organization described in paragraph (2); or

(4) any organization that is—

(A) organized under the laws of the United States or any jurisdiction within the United States; and

(B) described in section 501(c) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code.

(c) COLLABORATION AGREEMENTS.—Upon the execution of an agreement authorized by subsection (a) with an entity, the Administrator may enter into agreements with the entity to collaborate or engage in projects or programs on matters of mutual interest for periods not to exceed the term of the agreement. The cost of such agreements shall be apportioned equitably, as determined by the Administrator.

SEC. 1753. SATELLITE AND DATA MANAGEMENT.

Section 301 of the Weather Research and Forecasting Innovation Act of 2017 (15 U.S.C. 8531) is amended—

(1) in subsection (c)(1), by striking subparagraph (D) and inserting the following:

''(D) improve—

''(i) weather and climate forecasting and predictions; and

''(ii) the understanding, management, and exploration of the ocean.''; and

(2) in subsection (d)—

(A) in paragraph (1)—

(i) by striking ''data and satellite systems'' and inserting ''data, satellite, and other observing systems''; and

(ii) by striking ''to carry out'' and all that follows and inserting the following: ''to carry out—

''(A) basic, applied, and advanced research projects and ocean exploration missions to meet the objectives described in subparagraphs (A) through (D) of subsection (c)(1); or

''(B) any other type of project to meet other mission objectives, as determined by the Under Secretary.'';

(B) in paragraph (2)(B)(i), by striking ''satellites'' and all that follows and inserting ''systems, including satellites, instrumentation, ground stations, data, and data processing;''; and

(C) in paragraph (3), by striking ''2023'' and inserting ''2030''.

SEC. 1754. IMPROVEMENTS RELATING TO SEXUAL HARASSMENT AND ASSAULT PREVENTION AT THE NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION.

(a) REPORTING.—Subtitle C of title XXXV of the National Defense Authorization Act for Fiscal Year 2017 (33 U.S.C. 894 et seq.) is amended—

(1) in section 3541(b)(3)(B) (33 U.S.C. 894(b)(3)(B)), by striking ''can be confidentially reported'' and inserting ''can be reported on a restricted or unrestricted basis''; and

(2) in section 3542(b)(5)(B) (33 U.S.C. 894a(b)(5)(B)), by striking ''can be confidentially reported'' and inserting ''can be reported on a restricted or unrestricted basis''.

(b) INVESTIGATIVE REQUIREMENT.—Such subtitle is amended—

(1) by redesignating sections 3546 and 3547 as sections 3548 and 3549, respectively; and

(2) by inserting after section 3545 the following:

''SEC. 3546. INVESTIGATION REQUIREMENT.

''(a) REQUIREMENT TO INVESTIGATE.—

''(1) IN GENERAL.—The Secretary of Commerce, acting through the Under Secretary for Oceans and Atmosphere, shall ensure that each allegation of sexual harassment reported under section 3541 and each allegation of sexual assault reported under section 3542 is investigated thoroughly and promptly.

''(2) SENSE OF CONGRESS ON COMMENCEMENT OF INVESTIGATION.—It is the sense of Congress that the Secretary should ensure that an investigation of an alleged sexual harassment reported under section 3541 or sexual assault reported under section 3542 commences not later than 48 hours after the time at which the allegation was reported.

''(b) NOTIFICATION OF DELAY.—In any case in which the time between the reporting of an alleged sexual harassment or sexual assault under section 3541 or 3542, respectively, and commencement of an investigation of the allegation exceeds 48 hours, the Secretary shall notify the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Natural Resources of the House of Representatives of the delay.

''SEC. 3547. CRIMINAL REFERRAL.

''If the Secretary of Commerce finds, pursuant to an investigation under section 3546, evidence that a crime may have been committed, the Secretary shall refer the matter to the appropriate law enforcement authorities, including the appropriate United States Attorney.''.

(c) CLERICAL AMENDMENT.—The table of contents in section 2(b) of such Act is amended by striking the items relating to sections 3546 and 3547 and inserting the following new items:

''Sec. 3546. Investigation requirement.
''Sec. 3547. Criminal referral.
''Sec. 3548. Annual report on sexual assaults in the National Oceanic and Atmospheric Administration.
''Sec. 3549. Sexual assault defined.''.

SEC. 1755. UPDATE TO ENVIRONMENTAL SENSITIVITY INDEX PRODUCTS OF NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION FOR GREAT LAKES.

(a) UPDATE REQUIRED FOR ENVIRONMENTAL SENSITIVITY INDEX PRODUCTS FOR GREAT LAKES.—Not later than 180 days after the date of the enactment of this Act, the Under Secretary for Oceans and Atmosphere shall commence updating the environmental sensitivity index products of the National Oceanic and Atmospheric Administration for each coastal area of the Great Lakes.

(b) PERIODIC UPDATES FOR ENVIRONMENTAL SENSITIVITY INDEX PRODUCTS GENERALLY.—Subject to the availability of appropriations and the priorities set forth in subsection (c), the Under Secretary shall—

(1) periodically update the environmental sensitivity index products of the Administration; and

(2) endeavor to do so not less frequently than once every 7 years.

(c) PRIORITIES.—When prioritizing geographic areas to update environmental sensitivity index products, the Under Secretary shall consider—

(1) the age of existing environmental sensitivity index products for the areas;

(2) the occurrence of extreme events, be it natural or man-made, which have significantly altered the shoreline or ecosystem since the last update;

(3) the natural variability of shoreline and coastal environments; and

(4) the volume of vessel traffic and general vulnerability to spilled pollutants.

(d) ENVIRONMENTAL SENSITIVITY INDEX PRODUCT DEFINED.—In this section, the term ''environmental sensitivity index product'' means a map or similar tool that is utilized to identify sensitive shoreline, coastal, or offshore resources prior to an oil spill event in order to set baseline priorities for protection and plan cleanup strategies, typically including information relating to shoreline type, biological resources, and human use resources.

(e) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There is authorized to be appropriated to the Under Secretary $7,500,000 to carry out subsection (a).

(2) AVAILABILITY.—Amounts appropriated or otherwise made available pursuant to paragraph (1) shall be available to the Under Secretary for the purposes set forth in such paragraph until expended.

SA 2493. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

In section 806(a)(1), strike subparagraphs (C) and (D) and insert the following:

(C) taking actions to address domestic barriers (including regulatory, administrative, and statutory barriers) to expand capacity or diversify sources of supply;

(D) taking a combination of actions described under subparagraphs (A), (B), and (C); or

(E) taking no actions, restrictions, or additional investment.

SA 2494. Mr. REED submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. EXTENSION OF PERIOD FOR ADJUSTMENT OF STATUS FOR CERTAIN LIBERIAN NATIONALS.

Section 7611(b)(1)(A) of the National Defense Authorization Act for Fiscal Year 2020 (Public Law 116–92) is amended by striking ''1 year After the date of enactment of the Act'' and inserting ''July 1, 2021.''

SA 2495. Mr. BOOZMAN submitted an amendment intended to be proposed by him to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title V, add the following:

SEC. 549. MEASURES FOR PERSONAL AND PROFESSIONAL DEVELOPMENT OF MEMBERS OF THE ARMED FORCES WHO ARE QUARANTINED IN CONNECTION WITH THE CORONAVIRUS DISEASE 2019 (COVID–19).

(a) DEVELOPMENT OF MEASURES REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall develop measures to ensure the personal and professional development of members of the Armed Forces (including cadets and midshipmen at the military service academies) who are quarantined in connection with the Coronavirus Disease 2019 (COVID–19).

(b) SCOPE OF MEASURES.—The measures required by subsection (a) shall provide for the following:

(1) The availability to members of the Armed Forces quarantined in connection with the Coronavirus Disease 2019 of each of the following:

(A) Behavioral and mental health resources, including access to mental health providers, counselors, and chaplains.

(B) Physical activity and exercise.

(C) Resources and other platforms relating to professional development and self improvement

(2) The availability of peer-to-peer interactions among members described in paragraph (1), including access of cadets and midshipmen at the military service academies to cadre, coaches, and coaching staff.

(3) The availability of communication between units deployed and stationed at home regarding synchronization of quarantine plans for units with members described in paragraph (1).

(4) Such other matters relating to the personal and professional development of members of the Armed Forces who are quarantined in connection with the Coronavirus Disease 2019 as the Secretary considers appropriate.

(c) COMMENCEMENT OF IMPLEMENTATION.—The measures developed pursuant to subsection (a) shall be implemented beginning not later than 90 days after the completion of the development of the measures pursuant to that subsection.

SA 2496. Mr. CRUZ (for himself, Ms. SINEMA, Mr. WICKER, Ms. CANTWELL, Mr. KAINE, Mr. CORNYN, and Mr. RUBIO) submitted an amendment intended to be proposed by him to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title XVI, add the following:

SEC. 1610. CONTINUATION OF THE INTERNATIONAL SPACE STATION.

(a) PRESENCE IN LOW-EARTH ORBIT.—

(1) SENSE OF CONGRESS.—It is the sense of Congress that—

(A) it is in the national and economic security interests of the United States to maintain a continuous human presence in low-Earth orbit;

(B) the International Space Station is a strategic national security asset vital to the continued space exploration and scientific advancements of the United States; and

(C) low-Earth orbit should be utilized as a testbed to advance human space exploration, scientific discoveries, and United States economic competitiveness and commercial participation.

(2) HUMAN PRESENCE REQUIREMENT.—The United States shall continuously maintain the capability for a continuous human presence in low-Earth orbit through and beyond the useful life of the International Space Station.

(b) MAINTAINING A NATIONAL LABORATORY IN SPACE.—

(1) SENSE OF CONGRESS.—It is the sense of Congress that—

(A) the United States national laboratory in space, which currently consists of the United States segment of the International Space Station (designated as a national laboratory under section 70905 of title 51, United States Code)—

(i) benefits the scientific community and promotes commerce in space;

(ii) fosters stronger relationships among the National Aeronautics and Space Administration (referred to in this section as ''NASA'') and other Federal agencies, the private sector, and research groups and universities;

(iii) advances science, technology, engineering, and mathematics education through utilization of the unique microgravity environment; and

(iv) advances human knowledge and international cooperation;

(B) after the International Space Station is decommissioned, the United States should maintain a national microgravity laboratory in space;

(C) in maintaining a national microgravity laboratory described in subparagraph (B), the United States should make appropriate accommodations for different types of ownership and operational structures for the International Space Station and future space stations;

(D) the national microgravity laboratory described in subparagraph (B) should be maintained beyond the date on which the International Space Station is decommissioned and, if possible, in cooperation with international space partners to the extent practicable; and

(E) NASA should continue to support fundamental science research on future platforms in low-Earth orbit and cis-lunar space, short duration suborbital flights, drop towers, and other microgravity testing environments.

(2) REPORT.—The Administrator of NASA shall produce, in coordination with the National Space Council and other Federal agencies as the Administrator considers relevant, a report detailing the feasibility of establishing a microgravity national laboratory Federally Funded Research and Development Center to undertake the work related to the study and utilization of in-space conditions.

(c) CONTINUATION OF AUTHORITY.—

(1) IN GENERAL.—Section 501(a) of the National Aeronautics and Space Administration Authorization Act of 2010 (42 U.S.C. 18351(a)) is amended by striking ''2024'' and inserting ''2030''.

(2) MAINTENANCE OF THE UNITED STATES SEGMENT AND ASSURANCE OF CONTINUED OPERATIONS OF THE INTERNATIONAL SPACE STATION.—Section 503(a) of the National Aeronautics and Space Administration Authorization Act of 2010 (42 U.S.C. 18353(a)) is amended by striking ''2024'' and inserting ''2030''.

(3) RESEARCH CAPACITY ALLOCATION AND INTEGRATION OF RESEARCH PAYLOADS.—Section 504(d) of the National Aeronautics and Space Administration Authorization Act of 2010 (42 U.S.C. 18354(d)) is amended by striking ''2024'' each place it appears and inserting ''2030''.

(4) MAINTAINING USE THROUGH AT LEAST 2030.—Section 70907 of title 51, United States Code, is amended—

(A) in the section heading, by striking ''**2024**'' and inserting ''**2030**''; and

(B) by striking ''2024'' each place it appears and inserting ''2030''.

(d) TRANSITION PLAN REPORTS.—Section 50111(c)(2) of title 51, United States Code, is amended—

(1) in the matter preceding subparagraph (A), by striking ''2023'' and inserting ''2028''; and

(2) in subparagraph (J), by striking ''2028'' and inserting ''2030''.

(f) DEPARTMENT OF DEFENSE ACTIVITIES ON INTERNATIONAL SPACE STATION.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall—

(A) identify and review each activity, program, and project of the Department of Defense completed, being carried out, or planned to be carried out on the International Space Station as of the date of the review; and

(B) provide to the appropriate committees of Congress a briefing that describes the results of the review.

(2) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this subsection, the term ''appropriate committees of Congress'' means—

(A) the Committee on Armed Services, the Committee on Commerce, Science, and Transportation, and the Committee on Appropriations of the Senate; and

(B) the Committee on Armed Services, the Committee on Science, Space, and Technology, and the Committee on Appropriations of the House of Representatives.

SA 2497. Mr. DURBIN (for himself, Ms. DUCKWORTH, Mr. PERDUE, Mr. BLUMENTHAL, Mr. JONES, Mr. MURPHY, Mr. CASEY, and Ms. KLOBUCHAR) submitted an amendment intended to be proposed to amendment SA 2301 proposed by Mr. INHOFE to the bill S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle C of title VII, add the following:

SEC. 752. PILOT PROGRAM TO PROMOTE MILITARY READINESS IN THE PROVISION OF PROSTHETIC AND ORTHOTIC CARE.

(a) GRANTS REQUIRED.—

(1) IN GENERAL.—The Secretary of Defense shall carry out a pilot program to assess the feasibility and advisability of awarding grants to institutions determined by the Secretary to be eligible for the award of such grants to enable such institutions to establish or expand an existing accredited master's degree program in orthotics and prosthetics.

(2) PRIORITY.—The Secretary shall give priority in the award of grants under this section to institutions that have entered into a partnership with a facility or program administered by the Department of Defense that offers students training or experience in meeting the unique needs of members of the Armed Forces who have experienced limb loss or limb impairment, including by offering clinical rotations at a public or private sector orthotics and prosthetics practice that serves members of the Armed Forces or veterans, including the following facilities or programs:

(A) Walter Reed National Military Medical Center.

(B) Brooke Army Medical Center.

(C) The Orthotics and Prosthetics Outcomes Research Program of the Department of Defense.

(3) FUTURE PREFERENCE.—In fiscal years after fiscal year 2021, the Secretary shall give preference in the award of grants under this section to qualified, eligible applicants for such grants that were not awarded a grant in fiscal year 2021.

(b) APPLICATIONS.—

(1) REQUEST FOR PROPOSALS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall issue a request for proposals from institutions eligible for grants under this section.

(2) APPLICATION.—An institution that seeks the award of a grant under this section shall submit to the Secretary an application therefor at such time, in such manner, and accompanied by such information as the Secretary may require, including—

(A) demonstration of a willingness and ability to participate in a partnership described in subsection (a)(2); and

(B) demonstration of an ability to achieve and maintain an accredited orthotics and prosthetics program after the end of the grant period.

(c) GRANT USES.—An institution awarded a grant under this section shall use grant amounts for any purpose as follows:

(1) To establish or expand an accredited orthotics and prosthetics master's degree program.

(2) To train doctoral candidates in orthotics and prosthetics, or in fields related to orthotics and prosthetics, to prepare such candidates to instruct in orthotics and prosthetics programs.

(3) To train and retain faculty in orthotics and prosthetics education, or in fields related to orthotics and prosthetics education, to prepare such faculty to instruct in orthotics and prosthetics programs.

(4) To fund faculty research projects or faculty time to undertake research in orthotics and prosthetics for the purpose of furthering the teaching abilities of such faculty.

(d) ADMISSIONS PREFERENCE.—To the extent practicable, an institution awarded a grant under this section shall give preference to veterans in admission to the master's degree program in orthotics and prosthetics established or expanded under this section.

(e) LIMITATION ON GRANT AMOUNT.—The amount of any grant awarded to an institution under this section may not exceed $3,000,000.

(f) PERIOD OF USE OF FUNDS.—An institution awarded a grant under this section may use the grant amount for a period of three years after the award of the grant.

(g) REPORT.—

(1) IN GENERAL.—Not later than 180 days after awarding the first grant under this section, the Secretary shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report on the pilot program conducted under this section.

(2) ELEMENTS.—The report required by paragraph (1) shall include a description of the pilot program and other such matters relating to the pilot program as the Secretary considers appropriate.

AUTHORITY FOR COMMITTEES TO MEET

Mr. MCCONNELL. Mr. President, I have 5 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON ENERGY AND NATURAL RESOURCES

The Committee on Energy and Natural Resources is authorized to meet during the session of the Senate on Thursday, July 23, 2020, at 10 a.m., to conduct a hearing.

COMMITTEE ON FOREIGN RELATIONS

The Committee on Foreign Relations is authorized to meet during the session of the Senate on Thursday, July 23, 2020, at 10 a.m., to conduct a hearing on nominations.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Thursday, July 23, 2020, at 10 a.m., to conduct a hearing on nominations.

COMMITTEE ON SMALL BUSINESS AND ENTREPRENEURSHIP

The Committee on Small Business and Entrepreneurship is authorized to meet during the session of the Senate on Thursday, July 23, 2020, at 10 a.m., to conduct a hearing.

SUBCOMMITTEE ON COMMUNICATION, TECHNOLOGY, INNOVATION, AND THE INTERNET

The Subcommittee on Communication, Technology, Innovation, and The Internet of the Committee on Commerce, Science, and Transportation is authorized to meet during the session of the Senate on Thursday, July 23, 2020, at 10 a.m., to conduct a hearing.

PRIVILEGES OF THE FLOOR

Mr. SULLIVAN. Mr. President, I ask unanimous consent that the following interns in Senator PAUL's office be granted floor privileges until August 8, 2020: Sean Piwowar and Jessica Zepeda.

The PRESIDING OFFICER. Without objection, it is so ordered.

APPOINTMENTS

The PRESIDING OFFICER. The Chair, on behalf of the President pro tempore, upon the recommendation of the Democratic Leader, pursuant to Public Law 116–113, and in consultation with the Ranking Member of the Senate Committee on Finance, appoints the following individuals to the Independent Mexico Labor Expert Board: Sandra M. Polaski of the District of Columbia and Timothy J. Beaty of Virginia.

PROTECTING 2020 RECOVERY REBATES FOR INDIVIDUALS FROM ASSIGNMENT OR GARNISHMENT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Finance be discharged from further consideration of S. 3841 and the Senate proceed to its immediate consideration. I further ask that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table; further, that the bill be held at the desk, and should the Senate receive from the House of Representatives a bill, the text of which is identical to that of S. 3841, the Senate proceed to its immediate consideration, the bill be considered read a third time and passed, the motion to reconsider be considered made and laid upon the table with no intervening action or debate, and S. 3841 be indefinitely postponed.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The bill (S. 3841) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 3841

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. PROTECTION OF 2020 RECOVERY REBATES.

(a) IN GENERAL.—Subsection (d) of section 2201 of the CARES Act (Public Law 116–136) is amended—

(1) by redesignating paragraphs (1), (2), and (3) as subparagraphs (A), (B), and (C), and by moving such subparagraphs 2 ems to the right,

(2) by striking ''REDUCTION OR OFFSET.—Any credit'' and inserting ''REDUCTION, OFFSET, GARNISHMENT, ETC.—

''(1) IN GENERAL.—Any credit'', and

(3) by adding at the end the following new paragraphs:

''(2) ASSIGNMENT OF BENEFITS.—

''(A) IN GENERAL.—The right of any person to any applicable payment shall not be transferable or assignable, at law or in equity, and no applicable payment shall be subject to, execution, levy, attachment, garnishment, or other legal process, or the operation of any bankruptcy or insolvency law.

''(B) ENCODING OF PAYMENTS.—As soon as practicable, but not earlier than 10 days after the date of the enactment of this paragraph, in the case of an applicable payment that is paid electronically by direct deposit through the Automated Clearing House (ACH) network, the Secretary of the Treasury (or the Secretary's delegate) shall—

''(i) issue the payment using a unique identifier that is reasonably sufficient to allow a financial institution to identify the payment as an applicable payment, and

''(ii) further encode the payment pursuant to the same specifications as required for a benefit payment defined in section 212.3 of title 31, Code of Federal Regulations.

''(C) GARNISHMENT.—

''(i) ENCODED PAYMENTS.—In the case of a garnishment order received after the date that is 10 days after the date of the enactment of this paragraph and that applies to an account that has received an applicable payment that is encoded as provided in subparagraph (B), a financial institution shall follow the requirements and procedures set forth in part 212 of title 31, Code of Federal Regulations, except a financial institution shall not, with regard to any applicable payment, be required to provide the notice referenced in sections 212.6 and 212.7 of title 31, Code of Federal Regulations. This paragraph shall not alter the status of applicable payments as tax refunds or other nonbenefit payments for purpose of any reclamation rights of the Department of Treasury or the Internal Revenue Service as per part 210 of title 31 of the Code of Federal Regulations.

''(ii) OTHER PAYMENTS.—If a financial institution receives a garnishment order, other than an order that has been served by the United States or an order that has been served by a Federal, State, or local child support enforcement agency, that has been received by a financial institution after the date that is 10 days after the date of the enactment of this paragraph and that applies to an account into which an applicable payment that has not been encoded as provided in subparagraph (B) has been deposited electronically or by an applicable payment that has been deposited by check on any date in the lookback period, the financial institution, upon the request of the account holder, shall treat the amount of the funds in the account at the time of the request, up to the amount of the applicable payment (in addition to any amounts otherwise protected under part 212 of title 31, Code of Federal Regulations), as exempt from a garnishment order without requiring the consent of the party serving the garnishment order or the judgment creditor.

''(iii) LIABILITY.—A financial institution that acts in good faith in reliance on clauses (i) or (ii) shall not be subject to liability or regulatory action under any Federal or State law, regulation, court or other order, or regulatory interpretation for actions concerning any applicable payments.

''(D) DEFINITIONS.—For purposes of this paragraph—

''(i) ACCOUNT HOLDER.—The term 'account holder' means a natural person whose name appears in a financial institution's records as the direct or beneficial owner of an account.

''(ii) ACCOUNT REVIEW.—The term 'account review' means the process of examining deposits in an account to determine if an applicable payment has been deposited into the account during the lookback period. The financial institution shall perform the account review following the procedures outlined in section 212.5 of title 31, Code of Federal Regulations and in accordance with the requirements of section 212.6 of title 31, Code of Federal Regulations.

''(iii) APPLICABLE PAYMENT.—The term 'applicable payment' means any payment of credit or refund by reason of section 6428 of the Internal Revenue Code of 1986 (as so added) or by reason of subsection (c) of this section.

''(iv) GARNISHMENT.—The term 'garnishment' means execution, levy, attachment, garnishment, or other legal process.

''(v) GARNISHMENT ORDER.—The term 'garnishment order' means a writ, order, notice, summons, judgment, levy, or similar written instruction issued by a court, a State or State agency, a municipality or municipal corporation, or a State child support enforcement agency, including a lien arising by operation of law for overdue child support or an order to freeze the assets in an account, to effect a garnishment against a debtor.

''(vi) LOOKBACK PERIOD.—The term 'lookback period' means the two month period that begins on the date preceding the date of account review and ends on the corresponding date of the month two months earlier, or on the last date of the month two months earlier if the corresponding date does not exist.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date of the enactment of this Act.

ORDERS FOR MONDAY, JULY 27, 2020

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 4 p.m., Monday, July 27; further, that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day, and morning business be closed; further, that following leader remarks, the Senate proceed to executive session to resume consideration of the Hardy nomination, under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL MONDAY, JULY 27, 2020, at 4 P.M.

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 5:24 p.m., adjourned until Monday, July 27, 2020, at 4 p.m.

CONFIRMATIONS

Executive nominations confirmed by the Senate July 23, 2020:

THE JUDICIARY

GRANT C. JAQUITH, OF NEW YORK, TO BE A JUDGE OF THE UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS FOR THE TERM OF FIFTEEN YEARS.

SCOTT J. LAURER, OF VIRGINIA, TO BE A JUDGE OF THE UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS FOR THE TERM OF FIFTEEN YEARS.

EXTENSIONS OF REMARKS

HONORING CONGRESSMAN JOHN LEWIS

SPEECH OF

HON. NANCY PELOSI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Wednesday, July 22, 2020

Ms. PELOSI. Madam Speaker, All week America has been in mourning—as we will be for so many weeks to come—as we grieve the passing of one of the greatest heroes of American history: Congressman John Lewis, the Conscience of the Congress.

Thank you, Chairman HAKEEM JEFFRIES, for arranging this tribute to John's beautiful life.

John Lewis was a titan of the civil rights movement. His goodness, faith and bravery transformed our nation—from the determination with which he met discrimination at lunch counters and on Freedom Rides, to the courage he showed as a young man facing down violence on Edmund Pettus Bridge, to the moral leadership he brought to the Congress for more than 30 years.

In the halls of the Capitol, he was fearless in his pursuit of a more perfect union, whether through his Voter Empowerment Act to defend the ballot, his leadership on the Equality Act to end discrimination against LGBTQ Americans, his work as a Senior Member of Ways & Means to ensure that we invest in our values or his commitment to health justice as he fought for the Affordable Care Act.

As John declared 57 years ago during the March on Washington, standing in the shadow of the Lincoln Memorial: "Our minds, souls, and hearts cannot rest until freedom and justice exist for all the people"—words that ring true today.

How fitting it is that even in the last weeks of his battle with cancer, John summoned the strength to visit the peaceful protests in Washington, D.C.

At Black Lives Matter Plaza, he stood with the newest generation who poured into the streets to take up the unfinished work of racial justice; helping complete the march that he began more than a half a century ago in Selma.

His visit with the Mayor of Washington, D.C., painted an iconic picture of justice: an image that will endure, and will inspire our nation for years to come.

John Lewis believed that every person had a spark of divinity making them worthy of respect. To honor John Lewis's life, we must maintain his fight, persisting and resisting until the rights and dignity of all are respected.

What a perfect tribute it would be for the Senate to pass voting rights legislation to safeguard the right to the ballot that John risked his life and dedicated his strength to defending.

Many of us remember how John, a man of goodness and faith, was so moved by the visit of Pope Francis to Washington and by his Joint Address to Congress, to which he felt a great link.

John later said, "Though I was reluctant to openly shed tears, I cried within to hear his words. I was deeply moved to realize I had a connection in some way with some of those he mentioned [including] Thomas Merton, a monk whose words I studied during non-violence training in the Civil Rights Movement."

"It was amazing that the Pope mentioned the Selma-to-Montgomery March because during the first attempt to March to Montgomery, now known as Bloody Sunday, I carried one of Thomas Merton's books in my backpack."

Thomas Merton, a force for non-violence and peace, like John, once wrote, "We are not at peace with others because we are not at peace with ourselves, and we are not at peace with ourselves because we are not at peace with God."

But John Lewis was a heavenly man who was at peace—with himself, with his fellow man and with God. When I spoke with him the day before he passed, he told me that he was ready to go home.

God truly blessed America with the life and leadership of John Lewis.

Here in the Congress, John was revered and beloved on both sides of the aisle and both sides of the Capitol. We knew that he always worked on the side of the angels—and now, we are comforted to know that he is with them.

May John's goodness be an inspiration that moves us not to hate, but to hope; may his strength inspire us not to fear, but to fight for what is right—and to, in the face of injustice, make "good trouble, necessary trouble."

And may it be a comfort to John's son, John Miles, his entire family, Michael Collins and his entire staff that so many mourn their loss and are praying for them at this sad time.

CONGRATULATING HIS EXCELLENCY FAYÇAL GOUIA ON THE CONCLUSION OF HIS TENURE AS TUNISIA'S AMBASSADOR TO THE UNITED STATES

HON. ALCEE L. HASTINGS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. HASTINGS. Madam Speaker, I rise today as the co-chair of the Tunisia Caucus, a caucus I have had the pleasure of co-chairing with my friend, Congressman DAVID SCHWEIKERT of Arizona,

As co-chairs of the Tunisia Caucus, we wish to extend our deepest gratitude and highest praise to His Excellency Fayçal Gouia, Tunisia's Ambassador to the United States, as he concludes his impressive and valuable ambassadorship.

The Ambassador's career has been as impressive as it has been dedicated to the people of Tunisia—a more dedicated son to his mother country would be difficult to find.

Ambassador Gouia has multiple degrees and has studied at the National Defense University in the United States as well as the National Defense Institute in Tunis. With his impressive educational credentials, Ambassador Gouia has represented his country the world over including Indonesia, the Philippines, Singapore, Thailand, Malaysia, Brunei, and of course, the United States.

Fortunately for the next generation of Tunisian diplomats, the Ambassador has shared his deep and broad experience with students at the Diplomatic Institute for Training and Studies of Tunis and at the High Institute of Human Sciences, University of Tunis. This is an invaluable opportunity for these students and does a great service for Tunisia's standing around the world—a standing as revered as it is today in large part because of Ambassador Gouia's diligent and meaningful work on behalf of the people of Tunisia and their government.

Madam Speaker, on a personal note, the co-chairs have enjoyed immensely their meetings and dinners with the Ambassador. His insights are always enlightening as we all work to make stronger the solid and long-lasting bond between the United States and Tunisia. It is a friendship borne long ago that has only grown stronger over the years as both countries dedicate themselves to the cause of liberty, justice, and democracy.

Madam Speaker, we again thank the Ambassador for his counsel, integrity, and friendship and wish him, his wife, and his two daughters, nothing but peace and prosperity as they embark on their latest journey.

RECOGNIZING THE CAREER OF LISA A. BAKER

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. GARAMENDI. Madam Speaker, I rise today to congratulate Lisa A. Baker, Chief Executive Officer of Yolo County Housing on her retirement from the agency after 14 successful years. While Ms. Baker was with Yolo Housing, the agency was twice named HUD's PHA of the Year, added 264 affordable partnership units, 104 affordable managed units, 400 voucher units, received 23 awards from HUD, and nearly doubled their annual revenue. It has been my pleasure to work with Ms Baker throughout her tenure at Yolo Housing, and I look forward to seeing her next chapter in life.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

HONORING THE CAREER OF LIZ HARRISON

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. COSTA. Madam Speaker, I rise today to recognize Liz Harrison, on the occasion of her retirement from television news after 38 years on the air. Liz has been a familiar face and name with ABC 30 in the Fresno, California community.

Liz, a native of Virginia, attended the College of William and Mary in Williamsburg, Virginia, before graduating from the University of Florida with a degree in Broadcasting. Liz is married to Keith Allen, who works alongside her in the television news industry.

Liz joined Fresno's local ABC affiliate in 1982, a time when women were underrepresented in the news industry. Throughout her career, Liz has served as co-anchor of Action News Live at 5 and at 11. She has covered nearly every type of news story and is proud to have given a voice to so many who's stories needed to be told. In 2010, Liz and photo journalist Richard Harmelink won an Emmy Award for excellence in reporting for their story on the U.S. military training for war in Iraq and Afghanistan.

Liz's passion for her work led her to take on the intern coordinator position at the station, where she trained and mentored college students as they pursued a career in television news. She has given her time to numerous organizations, including Mighty Moms Foundation, the Art of Life Cancer Foundation, and the Fresno Rescue Mission.

For 38 years, Liz dedicated her career to telling the stories of the San Joaquin Valley. She has left a lasting impression on our community. Liz is dedicated to her family. She is the proud mom to five children and looks forward to spending more time with her grandchildren. She is also a breast cancer survivor and a role model.

Madam Speaker, it is with great respect that I ask my colleagues in the U.S. House of Representatives to join me in congratulating Liz Harrison on her career and retirement. I ask that you join me in wishing Liz continued success as she begins her next chapter, as the owner of a leadership, coaching and teaching business.

HONORING JOSEPH DANIEL HEGEMAN

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. GRAVES of Missouri. Madam Speaker, I proudly pause to recognize a special member of my staff. After two and a half years of service, Joseph Daniel Hegeman will be leaving his post in my Kansas City District Office.

Joe took over the field operations in 14 counties in the Great Northwest portion of my district in 2017. He has been an integral member of my field team throughout that time. Joe was tireless in making sure the people of the Sixth Congressional District were treated fairly by federal agencies and that their concerns were heard by me and his colleagues in Washington. This is especially true as many of the counties Joe represented were hard hit by floods and agricultural crises in 2019. My staff and I relied on Joe to not only assist my hardest hit constituents, but on his background and knowledge of agricultural practices and farm-to-market programs to best form Congress's response to these issues. I am honored to have had Joe on my staff and my constituents were incredibly served by his efforts.

I have received many kind words from constituents praising the outstanding service Joe has provided. His professionalism and dedication to this office and my constituents was a great example of how government should work. While I am losing a valuable member of my team, I am excited for Joe to begin the next chapter of his life.

Madam Speaker, I proudly ask you to join me in thanking Joseph Daniel Hegeman for his years of service to the people of the Sixth Congressional District. I know Joe's colleagues, family and friends join with me in thanking him for his commitment to others and wishing him the best of luck in all his endeavors and many years of success to come.

IN RECOGNITION OF THE SERVICE OF POLICE CAPTAIN DUSTIN KRUEGER

HON. HALEY M. STEVENS

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Ms. STEVENS. Madam Speaker, I rise today to recognize the outstanding career of Captain Dustin Krueger as he marks his retirement from the Northville Police Department.

Captain Krueger has worked in the Northville community for more than twenty-seven years. During his decades of service, he served as a DARE instructor, Taser Instructor, Active Shooter Instructor, Western Wayne Mobile Field Force Squad Leader, and a Bicycle Officer. He rose through the ranks quickly by demonstrating strong leadership and commitment to his work. He was promoted to Sergeant in 2001 and Captain in 2014. Captain Krueger received numerous honors throughout his career, including the 1995 and 2018 Police Officer of the Year Awards.

In 2018, Captain Krueger was appointed Acting Chief of Police, where he provided decisive leadership and stability during a time of transition. His unfailing dedication to the department and distinguished character were assets to his fellow officers and the community. We, in Michigan's 11th Congressional District, are so very grateful for his service.

Madam Speaker, I ask my colleagues to join me in reflecting on the remarkable career of Captain Dustin Krueger and his many contributions to his community in Northville, Michigan.

PERSONAL EXPLANATION

HON. F. JAMES SENSENBRENNER, Jr.

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. SENSENBRENNER. Madam Speaker, due to a medical emergency, I was physically absent from the House of Representatives on July 22, 2020. On that day, I missed 4 recorded votes. Had I been present for those votes. I would have voted as follows:

On Roll Call No. 153 on the adoption of the Rep. Chu House Amendment to Senate Amendment to H.R. 2486, had I been present, I would have voted "Nay."

On Roll Call No. 154 on the adoption of the Rep. Jayapal House Amendment to Senate Amendment to H.R. 2486, had I been present, I would have voted "Nay."

On Roll Call No. 155 on the concurring in the Senate Amendment to H.R. 1957, had I been present, I would have voted "Nay."

On Roll Call No. 156 on the passage of H.R. 7573, had I been present, I would have voted "Yay."

RUSSIAN CYBER ATTACKS ON COVID RESEARCH CENTERS

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. HUDSON. Madam Speaker, I rise today to strongly condemn the recently reported Russian cyberattacks on United States, United Kingdom and Canadian COVID–19 research centers.

As the world continues to battle the COVID–19 pandemic, Vladimir Putin's regime has once again lived up to its reputation for lawlessness and cynicism by targeting vaccine research and development organizations with "the intention of stealing information and intellectual property relating to the development and testing of COVID–19 vaccines," as assessed by U.S., British and Canadian intelligence agencies.

Sadly, neither this appalling cyberattack, nor the pitiful Kremlin denials which followed, are too surprising to those of us who watch Russia closely.

As a Member of the U.S. Delegation to the Parliamentary Assembly of the Organization for Security and Cooperation in Europe—the OSCE PA—and Chairman of the Committee on Political Affairs and Security, I regularly participate in difficult discussions with Russian political leaders about Moscow's geopolitical misconduct. The Kremlin's campaign across the OSCE space and beyond is aimed at destabilizing and undermining the international order by any means necessary, to include the invasion and occupation of OSCE participating States, the assassination of political opponents abroad, disinformation and more.

On July 7, 2020, I communicated directly to the OSCE PA which included the presence of the Russian head of delegation how seriously the United States is taking reports of Russian monetary bounties to Taliban-linked insurgents for the killing of American and NATO soldiers in Afghanistan. The fact of Kremlin support to the Taliban had already surfaced in a hearing of the United States Helsinki Commission which I chaired on June 12, 2019, in open testimony by former Deputy Assistant Secretary of Defense for Russia Michael Carpenter.

Madam Speaker, I will continue to work with colleagues here at home and across the Atlantic to ensure the Kremlin's bald-faced denials of its malign actions are countered, and that Vladimir Putin's regime faces the appropriate consequences for its actions. The

OSCE Parliamentary Assembly has proven time and again its value as a forum to counter disinformation and foster cooperation to counter common threats. A result of these most recent reports, I intend to advocate for that body to prioritize results-oriented discussions on state-sponsored cyberattacks in our region in its upcoming work session.

Madam Speaker, please join me in condemning the Kremlin's latest despicable actions.

HONORING JAKOB F. MULLINS

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. GRAVES of Missouri. Madam Speaker, I proudly pause to recognize Jakob F. Mullins, Jakob is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 1357, and earning the most prestigious award of Eagle Scout.

Jakob has been very active with his troop, participating in many scout activities. Over the many years Jakob has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community, Most notably, Jakob has contributed to his community through his Eagle Scout project. Jakob helped clean over 250 military markers at New Hope Cemetery in Liberty, Missouri.

Madam Speaker, I proudly ask you to join me in commending Jakob F. Mullins for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

HONORING EDWARD M. BARTHOLOMEW, JR. FOR HIS LIFETIME OF SERVICE TO CITY OF GLENS FALLS, WARREN COUNTY AND THE ENTIRE NORTH COUNTRY REGION

HON. ELISE M. STEFANIK

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Ms. STEFANIK. Madam Speaker, I rise today to honor Edward M. Bartholomew Jr. for his lifetime of service to the City of Glens Falls, Warren County and the entire North Country region.

Edward Bartholomew Jr. served in many important roles over the course of his over 40-year long career. Elected Mayor of the City of Glens Falls at the age of 28, Edward set to work revitalizing the community, making the Civic Center a success, building a modern baseball park, improving critical infrastructure and establishing the Greater Glens Falls Transit System. Over the course of his two terms in office, from 1978 to 1985, he cemented his reputation as someone who can grasp all the aspects of a challenge and accomplish his objectives despite daunting obstacles.

In 2010, after spending time in the State Senate, Ed returned to lead the Economic Development Corporation (EDC) of Warren County. Over the next decade, he used his expertise, tireless work ethic and sterling reputation to accomplish many more important projects. As President of the EDC, he secured federal, state and local funding for major public works projects and businesses throughout Warren County. He recently succeeded in securing a $10 million Downtown Revitalization Initiative Grant for Glens Falls which is currently funding important redevelopment work on South Street. Edward had been working around the clock through the COVID–19 pandemic, helping local businesses that were suffering due to the shutdown, even creating a new loan program for struggling small businesses.

Ed Bartholomew was an extraordinary leader for the Warren County community and beyond. He was tireless in his efforts focused on economic development and opportunity for every family in the region. He was a joy to work with and he understood the nexus of local, state, and federal government and how to deliver results for our region. He was also incredibly kind and will be greatly missed. I am honored to recognize his leadership in the CONGRESSIONAL RECORD on behalf of New York's 21st Congressional District.

BRINGING JOBS TO SOUTH CAROLINA

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. WILSON of South Carolina. Madam Speaker, this month, the Midlands of South Carolina has been chosen as the location for major job creators.

The University of South Carolina and Navatek, LLC have been awarded a $9.2 million contract by the U.S. Office of Naval Research for the research of power and energy systems and the development of digital twin prototypes. This is a win-win for all parties, especially the people of South Carolina. I am grateful that projects like these will grow our STEM-focused workforce, resulting in more career opportunities and good-paying jobs.

I am grateful that Nephron Pharmaceuticals Corporation plans a new $215 million investment in Lexington County, bringing 380 new full-time jobs to the area by 2024. CEO Lou Kennedy has been a superstar for creating jobs and supporting the community. This is great news for Lexington County, and I commend Nephron for creating important job opportunities in Lexington.

In conclusion, God Bless our Troops, and we will never forget September 11th in the Global War on Terrorism.

HONORING MARTIN (MARTY) GRIFFIN, JR.

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. HUFFMAN. Madam Speaker, I rise today in recognition of Martin (Marty) Griffin, Jr. who celebrates his 100th birthday on Thursday, July 23, 2020.

Born in 1920 and raised in Utah, Mr. Griffin's passion for the environment started at an early age when he spent time as a Boy Scout in West Marin and the Bolinas Lagoon. His passion developed as he studied botany and zoology at the University of California at Berkeley from 1938–1942. He went on to study medicine at Stanford University before opening a medical practice in Marin County, where he was well known for prescribing his patients time outdoors in nature.

In the 1950's, Mr. Griffin worked hard to successfully lead the effort to preserve Richardson Bay. And, as land acquisition chairman of the Marin Audubon Society for eleven years, he worked tirelessly to protect open space in Marin County and stop projects like a city on the east shore of Tomales Bay or a planned nuclear facility near Bodega Bay. In 1962, Mr. Griffin founded Audubon Canyon Ranch, an environmental non-profit known for its instrumental work to protect landscapes in Marin County including the Bolinas Lagoon, Richardson Bay, Tomales Bay, and parts of what is now the Point Reyes National Seashore. Audubon Canyon Ranch became a nonprofit educational center that has taught generations of people the importance of protecting and respecting our environment.

Furthering his environmental stewardship footprint, in 1972 Mr. Griffin cofounded the Environmental Forum of Marin, which provides environmental training programs for environmental advocates and volunteers in Marin County. For 15 years starting in the 1980's, Mr. Griffin also served as the Sonoma Developmental Center's public health director where he led teams fighting against Hepatitis B and AIDS. In 1990, Mr. Griffin founded the Russian River Task Force, the Russian River Environmental Forum, and co-founded Friends of the Russian River, now known as the Russian RiverKeepers, all of which are instrumental in protecting the Russian River. In 1998, Mr. Griffin wrote a book, Saving the Marin-Sonoma Coast, which was later adapted into a 2012 documentary called Rebels with a Cause, a local favorite for many environmentalists to this day.

In addition to his many personal and professional accolades, Mr. Griffin's work has been recognized by many environmental groups such as the Environmental Education Council of Marin, which awarded Mr. Griffin the Environmental Leader of Marin Award in 2007. He has also received the Bay Nature Award in 2011 for his lifetime achievement as a conservation leader, the inaugural John Muir Legacy Conservation Award from the John Muir Association in 2013, and the Marin Conservation league's Peter Behr Lifetime Achievement Award in 2020. Further, in 2018 Mr. Griffin was recognized by the University of California at Berkeley, School of Public Health as one of the 75 most influential living alumni. The school also honored him and his loving wife Joyce by creating the Martin and Joyce Griffin Terrace Garden at the school's new campus.

Mr. Griffin has been an inspiration and mentor to me personally and to many environmentalists over the years. Madam Speaker, on behalf of those individuals and many more to come, I urge my colleagues to join us in expressing deep appreciation for Mr. Griffin's many achievements and enduring commitment to protecting the environments of Marin and Sonoma Counties, and in wishing him a very happy 100th birthday.

IN RECOGNITION OF THE SERVICE OF MAYOR BRYAN K. BARNETT

HON. HALEY M. STEVENS

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Ms. STEVENS. Madam Speaker, it is my honor to rise today to recognize the outstanding service of my dear friend and hometown mayor, Bryan K. Barnett, as he concludes his tenure as the 77th President of the U.S. Conference of Mayors.

Mayor Barnett is currently serving his fourth elected term as Mayor of Rochester Hills, Michigan, where he has fostered a distinguished community to live, work and raise a family. Through his leadership, Rochester Hills has become a national model in public safety, innovation, and civic engagement. I am proud to be represented by such a considerate and dedicated public figure.

He brought his extensive experience and unshakable hope with him to his role as President of the U.S. Conference of Mayors this past year, where he was responsible for leading our nation's cities through what remains to be one of the greatest challenges of our lifetimes: the coronavirus pandemic. In this crisis, and throughout the implementation of resulting federal directives, he has shown relentless dedication to securing the necessary resources to keep our communities safe, and our businesses strong. Mayor Barnett has played an integral role in our pandemic response in Michigan's 11th District, and I am grateful for his steadfast partnership as we work toward recovery together.

In leading the organization, Mayor Barnett will be remembered for his unyielding optimism, commitment to bipartisan consensus, and belief in the unique power of local government. As he passes the presidential baton onto our good friend, Louisville Mayor Greg Fischer, we can be confident that the U.S. Conference of Mayors will continue to prosper and deliver for our cities.

Madam Speaker, I ask my colleagues to join me in reflecting on the unparalleled service of Mayor Bryan K. Barnett and his far-reaching contributions to our country as President of the U.S. Conference of Mayors.

RECOGNIZING THE RETIREMENT OF COLONEL ROBERT CAMERON, UNITED STATES ARMY

HON. SCOTT PERRY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. PERRY. Madam Speaker, I'm honored to congratulate Colonel

(COL) Robert Cameron upon his retirement following thirty-three years of outstanding service to the Pennsylvania Army National Guard and the United States Army. COL Cameron has sacrificed a great deal of his life to both the Commonwealth of Pennsylvania and our Nation, and I'm privileged not only to commemorate his career, but to have served alongside him in uniform.

Robert Cameron entered the military on July 20, 1987, first as an enlisted Soldier and then as a commissioned officer in both the Armor branch and the Judge Advocate General (JAG) Corps. During his 12 years as an Armor officer, he served as an Executive Officer and Company Commander in the 28th Infantry Division—the oldest, continuously serving Division in the Nation. In 2002, he transitioned to the JAG Corps, in which he culminated his military career. He has served in myriad and numerous roles, consistently executing each with excellence—to include Operational Law Attorney, Trial Counsel, Chief of Legal Assistance, Defense Counsel, Brigade Judge Advocate, Command Judge Advocate, Deputy Staff Judge Advocate, and Division Staff Judge Advocate. COL Cameron's final duty position was serving as the State Judge Advocate for the Joint Forces Headquarters, Pennsylvania National Guard—the most senior legal adviser in the command.

Throughout his storied and honorable career, COL Cameron's duty positions oversaw numerous missions of high priority/visibility. He served as the Staff Judge Advocate and senior legal adviser to the Commander during domestic operations designated as National Special Security Events, including: The World Meeting of Families (Pope Francis' 2015 visit to Philadelphia, PA; and Military Support to Civilian Authorities for the 2016 Democratic National Convention in Philadelphia.

COL Cameron deployed in support of three different operational assignments: Operation Stabilization Force, Bosnia (2002–03); Operation Iraqi Freedom (2008–09); and most recently, Operation Spartan Shield, Kuwait (2018). He also served in support of numerous OCONUS warfighter exercises, to include Operations Bright Star (Egypt), and Rochambeau (France).

At various points throughout his career, COL Cameron solidified and redefined the foundation for SJA operations by re-implementing staff assistance visits to units at all levels, and reporting requirements—allowing for seamless transition of incoming and outgoing personnel. While deployed in the Middle East in 2018, he was the first National Guard Judge Advocate to present at the Global Update for the Worldwide CLE, in addition to ensuring consistent legal coverage for the U.S. Embassy in Kuwait.

COL Cameron's impact—and his military legacy—is evidenced by the highly professional and competent Judge Advocates and Paralegals to whom he has served as mentor; those who will continue his legacy of professionalism and highest standard of service to the Soldiers of the United States Army.

Upon his retirement, COL Cameron earned an honorary promotion to Brigadier General on the Pennsylvania National Guard Retired List.

Madam Speaker, please join me in commending Colonel Robert Cameron on his distinguished career, and selfless and tireless service to our Nation. I congratulate him on a job exceptionally well done and wish him Godspeed in his future adventures.

HONORING MADELYN MARIE ''MIDGE'' PANOZZO SEYMOUR'S 90TH BIRTHDAY

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. COSTA. Madam Speaker, I rise today to honor Madelyn Marie ''Midge'' Panozzo Seymour on the special occasion of her 90th birthday. Midge has dedicated her life to her beloved family and the betterment of her community.

Midge was born into a large Italian family in the Roseland District of Chicago's South Side. From a young age, Midge learned the importance of political and social advocacy, in part from her father, Anthony Panozzo, a local ward boss. This would go on to shape the direction of her life.

While attending Stephens College, Midge met the love of her life, Dennis Seymour at a party in St. Louis, Missouri. Soon after, they married and would become the proud parents of six children. Their loving marriage and partnership are an example for many today. After 66 years of marriage, they continue to lead a life of love and happiness in Escondido, California.

Madelyn's greatest joy in life are her children. Her loving and nurturing ways not only impacted her own children, but every child that entered her life. Her children proudly say that to call Midge ''the best mother ever'' would be an understatement. Every child that entered Midge's life was shown the same attentiveness, as if they were one of her own. She would be a mother figure to her children's friends and make sure they were well taken care of. Not only did Midge help young children in different capacities, but she committed her life to promoting literacy. She would mentor young people on reading, and supported victims/survivor' services across the nation. For the past 50 years, Dennis and Midge have donated to important causes that benefit children.

Madam Speaker, I ask my colleagues in the U.S. House of Representatives to join me in celebrating Madelyn Marie ''Midge'' Panozzo Seymour's 90th birthday. I wish Midge, her husband Dennis and their family continued health and happiness.

HONORING KEEGAN YANCEY

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. GRAVES of Missouri. Madam Speaker, I proudly pause to recognize Keegan Yancey. Keegan is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 1138, and earning the most prestigious award of Eagle Scout.

Keegan has been very active with his troop, participating in many scout activities. Over the many years Keegan has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Keegan has contributed to his community through his Eagle Scout project. Keegan organized a team of fellow scouts and adult volunteers to hand out informational material for the Midwest Transplant Network at a local youth soccer tournament, bringing a focus on the need for organ donors in his community.

Madam Speaker, I proudly ask you to join me in commending Keegan Yancey for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

GREAT AMERICAN OUTDOORS ACT

HON. DAVID B. MCKINLEY

OF WEST VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. MCKINLEY. Madam Speaker, Yesterday, I mistakenly voted against the Great American Outdoors Act As cosponsor of the House companion to this bill, I support permanent, full funding for the Land and Conservation Fund and funding for deferred maintenance in the National Parks System. This important piece of legislation would protect and ensure safe access to important locations in West Virginia like the Monongahela National Forest or the New River Gorge National River. The continued operation of locations like these would further generate $9 billion annually in consumer spending and support 91,000 jobs across West Virginia.

HAPPY BIRTHDAY BARBARA ''B.J.'' DURHAM

HON. DANNY K. DAVIS

OF ILLINIOS

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. DANNY K. DAVIS of Illinois. Madam Speaker, I would like to wish Ms. Barbara B.J. Durha a happy birthday and recognize her service to our nation as an educator and author.

Ms. Durham was born in Chicago and attended Beasley Elementary school where she would find her passion for education by the 4th grade,thanks to her teacher Mrs. Ollie MacLemore. Ms. Durham would use that passion later in life to train future educators like herself. Barbara Durham is also the author of the wonderful book "Willie Lee: A little slave boy who was determined to learn how to read and be free!" and is working on her next book in honor of her 4th grade teacher, Mrs. Ollie McLemore.

On behalf of the great city of Chicago,I would like to thank Ms. Durham for her services to this great nation and wish her a very happy birthday.

PERSONAL EXPLANATION

HON. BEN RAY LUJÁN

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. LUGÁN. Madam Speaker, during Roll Call Vote Number 148 on H.R. 6395, I recorded my vote as Yes when I intended to have voted No.

HONORING AMY REISCH

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. HUFFMAN. Madam Speaker, I rise today in recognition of Amy Reisch who is retiring from the First 5 Marin Children and Families Commission (First 5 Marin) after 20 years as its visionary executive director, culminating a career spanning almost 50 years of exemplary public service.

Born in 1949 in Omaha, Nebraska, to Harold and Celia Lewis, Ms. Reisch's passion for equity started at an early age when she and her sister Beth attended a progressive summer camp where many of the campers and staff were from different racial, religious, economic, and ethnic backgrounds. After graduating from high school in Philadelphia, Ms. Reisch obtained a degree in Sociology from the University of Pennsylvania, followed by a Master of Social Work from the City University of New York Hunter Graduate School of Social Work. She went on to apply her educational acumen through employment with several important organizations serving children and families including FOCUS on Women's Education and Advocacy at the University of Pennsylvania; Jewish Family and Children's Services of San Francisco, the Peninsula, Marin and Sonoma Counties; YWCA of San Francisco, Marin, and San Mateo; Northern California Coalition of Civil Rights; and as a board member of the United Way of the Bay Area.

First 5 Marin was created by Proposition 10 in 1998 and authorized by the Mann County Board of Supervisors in 1999. The Act allows a levy on taxes from cigarettes and other tobacco products to be used for funding early childhood development programs. First 5 Marin used this revenue to enhance early learning programs and experiences for school age children, helping them to have more successful academic careers and equal opportunities in life. As Executive Director for First 5 Marin, Ms. Reisch was well known for her intelligent, passionate and innovative approach to delivering services to children and families in Marin. During her 20 years as Executive Director, her ability to seek out diverse board members with different expertise and backgrounds enabled her to build a Commission representing all children and families in Marin County, regardless of their background.

Under her leadership, First 5 Mann funded programs including the CARES program to provide stipends to educators in early childhood classrooms for continuing professional development and training; the Children's Health Initiative to provide outreach and enrollment assistance for health insurance for individuals who are not eligible for public programs; the School Readiness Program that offers free Kindergarten preparation for children who need it, and the Children's Oral Health Project to provide free oral health screenings and dental cleanings to Marin's preschools and child care facilities.

Among her many skills and talents, Ms. Reisch has a knack for bringing together community leaders from the nonprofit, public, and private sectors to build partnerships to improve services for children, youth and families. Her ability to create strong working partnerships including with the County of Mann and the Mann Community Foundation, and to bring together other influential thought leaders and funders most recently culminated with the formation of MarmKids, an advocacy group for children of all ages in Marin. This work started in 2009, with key leaders from around the county who developed an ambitious and comprehensive vision for all children in Marin. The organization's advocacy led to a community funding measure to establish a dedicated funding stream for children and youth in Marin County to improve children's health and well-being. Although that measure was narrowly defeated in November 2016, the work lives on thanks to her enduring leadership. In establishing Marin Communications Forum, First 5 Marin furthers public education and coalition-building at no cost through monthly gatherings with experts who share information and inspiration on ways to best serve children and families in Marin County.

Ms. Reisch extended her reach and many skills and talents to First 5's Bay Area Regional Executive Director group and the First 5 Association of California's executive committee. Her work has been recognized by many groups and organizations over the years including by the Marin County Office of Education for her leadership in increasing access to high quality preschools in 2008, and by the Marin County Board of Supervisors who named Ms Reisch as their Children's Health Initiative Champion in 2009. Further, Ms. Reisch and First 5 Marin received a Certificate of Recognition from the California State Legislature for promoting programs that help children prepare to enter school with emotional and social development through inclusion and equity.

Ms. Reisch's enduring commitment to outreach and advocacy to promote the structural changes needed to advance equity and develop tomorrow's healthy and well-educated public leaders is a gift that will keep on giving after she retires. Madam Speaker, please join me in expressing deep appreciation for Ms. Reisch's career, and in wishing her much fun and love with her daughters and grandchildren and the best of luck in all her future endeavors.

IN RECOGNITION OF STEVE MADDOX BEING NAMED THE 2019 WORLD DAIRY EXPO'S DAIRYMAN OF THE YEAR

HON. TJ COX

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. COX of California. Madam Speaker, I rise today to recognize Mr. Steve Maddox, Sr. of RuAnn and Maddox Dairies on being named the 2019 World Dairy Expo's Dairyman of the Year.

Steve Maddox, a third-generation dairyman from Riverdale in Fresno County, knows that dairy farming is not just a career—it's a way of life, and a life that proudly unites generations of his family. In 1957, Steve's father Doug Maddox started RuAnn Dairy. That's where Steve's love for dairy farming was kindled. When the family purchased a farm in 1980, he took on new responsibilities managing the new farm, Maddox Dairy.

The family's operations have grown tremendously since 1980. Currently, Steve manages the 3,200 milking cows at Maddox Dairy, while his brother Patrick Maddox manages another 1,100 head at the original RuAnn Dairy. Steve's commitment to the industry goes beyond his own dairy operation. He was one of the initial directors of the board for California Dairies, Inc., and served as board secretary for over 10 years. He also sat on the board

and provided direction to the National Milk Producers Federation and was also involved with the creation of the producer-owned dairy cooperative DairyAmerica, Inc.

Additionally, through his commitment to the dairy industry, the Maddox Dairy has served as a model for genetic innovation for dairymen throughout the United States. The Maddox Dairy began as a grade commercial herd, however, through genetic advancement and embryo transfer, the herd has transitioned to 100 percent registered Holsteins. Both RuAnn and Maddox Dairies are committed to advancing genetics in the industry and today they export their dairy cattle genetics to 35 countries.

Due to the hard work and commitment of local family farmers like Steve Maddox, Fresno County is amongst the top ag producing counties in the nation and the 21st Congressional District is the largest dairy producing district in the country.

I offer my sincerest congratulations to Mr. Maddox for being named the 2019 World Dairy Expo's Dairyman of the Year and wish him continued success as he continues to provide leadership to our nation's dairy industry.

PERSONAL EXPLANATION

HON. RALPH LEE ABRAHAM

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. ABRAHAM. Madam Speaker, on Wednesday, July 22, I was unavoidably detained on Roll Call Votes No. 153 and No. 154. Had I been present to vote I would have voted ''NAY'' on Roll Call Vote No. 153 and ''NAY'' on Roll Call No. 154.

IN MEMORY OF REVEREND DOCTOR CORDY TINDELL ''C.T.'' VIVIAN

HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. BISHOP of Georgia. Madam Speaker, it is with a heavy heart and solemn remembrance that I rise today to pay tribute to an outstanding Man of God, iconic civil rights pioneer, dedicated leader, and dear friend of longstanding, Rev. Dr. Cordy Tindell ''C.T.'' Vivian. Sadly, Rev. Vivian transitioned from labor to reward on Friday, July 17, 2020, at the age of 95. He leaves in his wake many heavy hearts among his family, friends, community, and across the nation. A homegoing service celebrating his life was held Thursday, July 23, 2020, at Providence Missionary Baptist Church in Atlanta, Georgia.

Cordy Tindell Vivian, or ''C.T.'' as he was affectionately known, was born on July 30, 1924, in Boonville, Missouri to the late Mr. Robert Cordie and Ms. Euzetta Tindell Vivian. In 1930, his mother and grandmother moved to Macomb, Illinois to allow C.T. to attend nonsegregated schools and a local college. He attended Macomb High School, where he graduated in 1942, before matriculating at Western Illinois State Teachers College (now Western Illinois University). At Western Illinois, he planned to major in English literature, but when he was prohibited from joining a club for English majors, he withdrew from school in protest. He then moved to Peoria, Illinois to work at the Carver Community Center as a Recreation Director. While in Peoria, he participated in his first series of sit-in demonstrations, which resulted in the successful integration of Barton's Cafeteria in 194 7.

While studying for the ministry at American Baptist Theological Seminary (now called American Baptist College) in Nashville, Tennessee, in 1959, he met Rev. James Lawson and some of his ''disciples'' including Diane Nash, Bernard Lafayette, James Bevel, and John R. Lewis. He and his fellow disciples led a months-long, nonviolent desegregation protest at public facilities that forced the city to change its policy. After spearheading the campaign in Nashville, Rev. Vivian served as a replacement for an injured member of the Congress of Racial Equality (C.O.R.E) on the Freedom Ride to Mississippi. Later, he helped organize Tennessee's contingent for the 1963 March on Washington and was invited to join the staff of Rev. Dr. Martin Luther King, Jr. By 1965, Rev. Vivian had become the Director of National Affiliates for the Southern Christian Leadership Conference (SCLC), a close ally of Dr. King, and a key figure in organizing nonviolent civil rights protests throughout the South. That same year, he led a group of protesters to the steps of the Dallas County courthouse in Selma, Alabama, where he encountered Sheriff Jim Clark, who blocked the group and responded by knocking him down with a billy club in front of live cameras. Rev. Vivian, nonviolently, stood up and continued to preach and advocate for the right to vote. The footage from that incident and others including one involving John Lewis were broadcasted on national television creating outrage and widespread support for the movement and ultimately resulting in the passage by Congress of the Voting Rights Act 1965.

Yet, Madam Speaker, Dr. Vivian's profound servant leadership did not stop there. In 1972, Dr. Vivian became Dean of the Chapel at Shaw University and National Director of the Seminary Without Walls. He worked with the Community Organization for the National Council of Churches, for a division of overseas ministries, and participated in a number of agricultural missions. He served on the United Nations Commission on Human Rights Education where he organized the National Center for Human Rights Education. He then returned to lead the SCLC in 2012 as its Interim President helping to restore and enhance its credibility. He received numerous awards, but the most prestigious was the Presidential Medal of Freedom presented by President Barack Obama in 2013.

Rev. Vivian accomplished much in his life, but none of it would have been possible without the Grace of God and the love and the support of his late wife, Octavia Geans Vivian; his children, Jo Anna, Denise, Cordy Jr. (deceased), Kira, Mark, Anita, and Albert; and other loved ones, all of whom will miss him dearly.

Rev. Vivian once said ''Leadership is found in the action to defeat that which would defeat you . . . You are made by the struggles you choose.'' To that end, he founded the C.T. Vivian Leadership Institute in 2007 with the sole purpose of educating visitors on the correlation between the Civil Rights Movement in the U.S. and contemporary Human Rights Movements across the globe.

Madam Speaker, my wife, Vivian, and I, along with countless others throughout Georgia and the nation salute Reverend Doctor C.T. Vivian for his outstanding accomplishments in the ministry and his life of service and sacrifice for the betterment of humankind. I ask my colleagues in the House of Representatives to join us in extending our deepest condolences to Reverend Vivian's family, friends, loved ones, and all who grieve his loss. We pray that they will be consoled and comforted by an abiding faith and the Holy Spirit in the days, weeks, and months ahead.

IN RECOGNITION OF JEFF HUCKABY BEING NAMED THE ORGANIC TRADE ASSOCIATION'S ORGANIC FARMER OF THE YEAR

HON. TJ COX

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. COX of California. Madam Speaker, I rise today to recognize Mr. Jeff Huckaby, President of Grimmway Farms and Cal Organic, for being named the Organic Trade Association's Organic Farmer of the Year.

A fourth-generation farmer, Jeff was born and raised in the small town of Arvin in the southernmost tip of California's Central Valley. He began farming at the age of 11 when he would wake up at the crack of dawn to help on his grandfather's farm. Jeff began his career with Grimmway in 1999 and it wasn't long before he started his work with organic farming. In 2000, as farm manager, he took over all of Grimmway's organic production in California. Jeff would also become general manager of Cal Organic Farms after its purchase by Grimmway in 2001.

Under his guidance and leadership, Grimmway's Cal Organic has grown to be the largest carrot company in the world and the largest organic vegetable producer in the nation. Today, Cal Organic grows over 65 vegetables on 45,000 acres across several states and is proud to state that 100 percent of its produce is grown in the United States.

This true American company is notable for their outstanding accomplishments. They are the largest supplier of organic vegetables to Whole Foods and Albertsons/Vons supermarkets, the leading supplier of organic carrots sold by Walmart and Kroeger and, remarkedly, are the sole supplier for every carrot that Costco sells in the U.S. and many other countries.

Through his work Jeff has garnered a well-earned reputation for his expertise in organic farming. Many have sought his knowledge including the California Department of Food and Agriculture, the U.S. Department of Agriculture and the House Agriculture Committee where he has testified about the role and importance of organic production in our nation.

I am honored to congratulate Jeff on this well-deserved recognition of his unparalleled work ethic, countless achievements, and his outstanding role in organic farming and in the agriculture industry overall.

TRIBUTE TO LIEUTENANT GENERAL STEPHEN M. ''STEPH'' TWITTY

HON. JAMES E. CLYBURN

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 23, 2020

Mr. CLYBURN. Madam Speaker, I rise today to pay tribute to a great leader, an exceptional officer, and a dear friend. Lieutenant General Stephen M. ''Steph'' Twitty, my fellow South Carolina State University (SCSU) alumnus and Omega Psi Phi fraternity brother, will soon retire after more than 36 years in the U.S. Army, and I commend him for his extraordinary service to our country.

Lt. Gen. Twitty is a native of Chesnee, South Carolina and his hometown has honored him by naming State Highway 11 in his honor. The local American Legion Post 48 proudly displays signage proclaiming him as a native son.

While growing up as a self-proclaimed ''country boy,'' Steph fell in love with the military. His grandfather, Spc. Carson Mackerson, served 11 years in the segregated U.S. Army Air Corps during World War II. As a child, his grandfather ran him through infantry maneuvers in the yard and inspired him to join the National Guard as a junior in high school.

He matriculated at SCSU and joined the Reserved Officers Training Corps (ROTC) program, which had about 600 cadets at that time. Lt. Gen. Twitty graduated among the top of his ROTC class in 1985, and having a choice of any assignment, he chose to follow in his grandfather's footsteps and become an Army infantryman.

He is part of a proud tradition at SCSU which boasts of 22 ROTC graduates who have attained the rank of general officer. Lt. Gen. Twitty is a shining example of a dedication to excellence and leadership that SCSU's ROTC program instills in its cadets. He was named a Distinguished Alumnus in 2004 and inducted into the SCSU ROTC Hall of Fame in 2009. He has given back by establishing a program in which senior Army officers provide mentorships and leadership development to ROTC cadets at SCSU.

Lt. Gen. Twitty has earned a master's degree in Public Administration from Central Michigan University and a master's in National Security Strategy from the National Defense University. He has served five combat tours in Iraq, Afghanistan, and Kuwait. His service has taken him to 174 countries and every continent except Antarctica, and he has held some of the most critical positions in defense of our nation.

After his first assignment with the 101st Airborne Division at Ft. Campbell, he deployed with the 24 Infantry Division during Operation Desert Storm. He has commanded infantry units at the company, battalion, and brigade levels. Lt. Gen. Twitty's assignments as a general officer include deputy commander and commander of the 1st Armored Division, Deputy Chief of Staff of the International Security Assistance Force in Afghanistan, and commander of the First United States Army.

For the past two years, Lt. Gen. Twitty has been the deputy commander of United States European Command in Stuttgart, Germany. During this period of extraordinary change and challenge in Europe's security environment. He improved relationships with NATO allies and European partners and through his strategic vision, Lt. Gen. Twitty successfully led his command through some of the most complex national security issues facing the United States. The foundations he established will allow NATO and our Armed Forces to meet every mission requirement in Europe. According to Forces Command Commanding General Robert Abrams, ''Lt. Gen. Twitty has provided outstanding leadership, advice, and sound professional judgment.''

His numerous awards and decorations include the Silver Star Medal, the nation's third highest award for valor. He received the honor for his extraordinary combat leadership of the 3rd Infantry Division's 3rd Battalion 15th Infantry Regiment during the initial assault on Baghdad, Iraq in 2003. He was inducted in the U.S. Army ROTC Hall of Fame in 2018.

Lt. Gen. Twitty is married to the former Karen Wilson. They have two daughters, Ashley and Brooke. The family has served alongside him throughout his career, and their service is appreciated as well.

Madam Speaker, I ask you and our colleagues to join me in thanking Lt. Gen. Twitty for his commitment to service, sacrifices for, and contribution to this great nation and wishes of success in his future endeavors.

Daily Digest

HIGHLIGHTS

Senate passed S. 4049, National Defense Authorization Act, as amended.

Senate

Chamber Action

Routine Proceedings, pages S4433–S4489

Measures Introduced: Twenty-seven bills and two resolutions were introduced, as follows: S. 4290–4316, S. Res. 657, and S. Con. Res. 41. **Pages S4470–71**

Measures Reported:

S. 3461, to designate the facility of the United States Postal Service located at 2600 Wesley Street in Greenville, Texas, as the ''Audie Murphy Post Office Building''.

S. 3462, to designate the facility of the United States Postal Service located at 909 West Holiday Drive in Fate, Texas, as the ''Ralph Hall Post Office''.

S. 3839, to designate the facility of the United States Postal Service located at 2719 South Webster Street in Kokomo, Indiana, as the ''Opha May Johnson Post Office''.

S. 4126, to designate the facility of the United States Postal Service located at 104 East Main Street in Port Washington, Wisconsin, as the ''Joseph G. Demler Post Office''. **Page S4470**

Measures Passed:

National Defense Authorization Act: By 86 yeas to 14 nays (Vote No. 140), Senate passed S. 4049, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, after taking action on the following amendments and motion proposed thereto: **Pages S4434–48**

Adopted:

McConnell (for Portman) Amendment No. 2080 (to Amendment No. 2301), to require an element in annual reports on cyber science and technology activities on work with academic consortia on high priority cybersecurity research activities in Department of Defense capabilities. **Page S4434**

By 88 yeas to 12 nays (Vote No. 138), Inhofe Amendment No. 2301, in the nature of a substitute. **Pages S4434–35**

During consideration of this measure today, Senate also took the following action:

By 86 yeas to 14 nays (Vote No. 139), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on the bill. **Page S4435**

A unanimous-consent agreement was reached providing that notwithstanding the passage of S. 4049, the Clerk be authorized to correct the instruction line on Reed (for Cantwell/Manchin) Amendment No. 2417 (to Amendment No. 2301), to modify the requirements for the Department of Energy response to the review by the Nuclear Weapons Council of the budget of the National Nuclear Security Administration. **Page S4449**

Protect 2020 Recovery Rebates: Committee on Finance was discharged from further consideration of S. 3841, to protect 2020 recovery rebates for individuals from assignment or garnishment, and the bill was then passed. **Pages S4488–89**

A unanimous-consent agreement was reached providing that the bill be held at the desk, and should the Senate receive from the House of Representatives a bill, the text of which is identical to that of S. 3841, Senate proceed to its immediate consideration, the bill be considered read a third time and passed, the motion to reconsider be considered made and laid upon the table, with no intervening action or debate, and S. 3841 be indefinitely postponed. **Page S4488**

Appointments:

Independent Mexico Labor Expert Board: The Chair, on behalf of the President pro tempore, upon the recommendation of the Democratic Leader, pursuant to Public Law 116–113, and in consultation with the Ranking Member of the Senate Committee

on Finance, appointed the following individuals to the Independent Mexico Labor Expert Board: Sandra M. Polaski of the District of Columbia and Timothy J. Beaty of Virginia. **Page S4488**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, a report on the continuation of the national emergency that was originally declared in Executive Order 13882 of July 26, 2019, with respect to the situation in Mali; which was referred to the Committee on Banking, Housing, and Urban Affairs. (PM–56) **Page S4468**

Hardy Nomination—Agreement: Senate resumed consideration of the nomination of William Scott Hardy, to be United States District Judge for the Western District of Pennsylvania. **Pages S4448–49**

During consideration of this nomination today, Senate also took the following action:

By 60 yeas to 32 nays (Vote No. EX. 141), Senate agreed to the motion to close further debate on the nomination. **Page S4449**

A unanimous-consent agreement was reached providing that notwithstanding Rule XXII, the post-cloture time on the nomination be considered expired and the vote on confirmation of the nomination occur at 5:30 p.m., on Monday, July 27, 2020. **Page S4489**

A unanimous-consent agreement was reached providing that at approximately 4 p.m., on Monday, July 27, 2020, Senate resume consideration of the nomination. **Page S4489**

Joseph Nomination—Cloture: David Cleveland Joseph, of Louisiana, to be United States District Judge for the Western District of Louisiana. **Page S4456**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of William Scott Hardy, to be United States District Judge for the Western District of Pennsylvania. **Page S4456**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S4456**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S4456**

Wade Nomination—Cloture: Senate began consideration of the nomination of Dana T. Wade, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development. **Page S4456**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of David Cleveland Joseph, of Louisiana, to be United States District Judge for the Western District of Louisiana. **Page S4456**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S4456**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S4456**

Kaplan Nomination—Cloture: Senate began consideration of the nomination of Marvin Kaplan, of Kansas, to be a Member of the National Labor Relations Board. **Page S4456**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Dana T. Wade, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development. **Page S4456**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S4456**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S4456**

McFerran Nomination—Cloture: Senate began consideration of the nomination of Lauren McGarity McFerran, of the District of Columbia, to be a Member of the National Labor Relations Board. **Page S4456**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Marvin Kaplan, of Kansas, to be a Member of the National Labor Relations Board. **Page S4456**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S4456**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S4456**

Nominations Confirmed: Senate confirmed the following nominations:

Grant C. Jaquith, of New York, to be a Judge of the United States Court of Appeals for Veterans Claims for the term of fifteen years.

Scott J. Laurer, of Virginia, to be a Judge of the United States Court of Appeals for Veterans Claims for the term of fifteen years. **Page S4489**

Messages from the House: **Page S4468**

Measures Held at the Desk: Page S4469
Executive Communications: Pages S4469–70
Executive Reports of Committees: Page S4470
Additional Cosponsors: Pages S4471–74
Statements on Introduced Bills/Resolutions: Pages S4474–76
Additional Statements: Pages S4466–68
Amendments Submitted: Pages S4477–88
Authorities for Committees to Meet: Page S4488
Privileges of the Floor: Page S4488

Record Votes: Four record votes were taken today. (Total—141) Pages S4434–35, S4448–49

Adjournment: Senate convened at 9:30 a.m. and adjourned at 5:24 p.m., until 4 p.m. on Monday, July 27, 2020. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S4489.)

Committee Meetings

(Committees not listed did not meet)

U.S. SPECTRUM POLICY

Committee on Commerce, Science, and Transportation: Subcommittee on Communications, Technology, Innovation, and the Internet concluded a hearing to examine the state of United States spectrum policy, after receiving testimony from Tom Power, CTIA, Washington, D.C.; H. Mark Gibson, CommScope, Inc., Ashburn, Virginia; Roslyn Layton, Aalborg University, Copenhagen, Denmark; and Michael Calabrese, New America Open Technology Institute, Palo Alto, California.

COVID–19 AND PUBLIC LANDS, FORESTS, AND NATIONAL PARKS

Committee on Energy and Natural Resources: Committee concluded an oversight hearing to examine the impacts of the COVID–19 pandemic on users of public lands, forests, and national parks, after receiving testimony from Kelly R. Hepler, Association of Fish and Wildlife Agencies, Pierre, South Dakota; Douglas Kemper, Colorado Water Congress, Denver; and Ethan L. Lane, National Cattlemen's Beef Association, Will Shafroth, National Park Foundation, and Jessica Turner, Outdoor Recreation Roundtable, all of Washington, D.C.

NOMINATIONS

Committee on Foreign Relations: Committee concluded a hearing to examine the nominations of Lisa S. Kenna, of Vermont, to be Ambassador to the Republic of Peru, Leora Rosenberg Levy, of Connecticut, to be Ambassador to the Republic of Chile, who was introduced by Senator Murphy, Aldona Z. Wos, of North Carolina, to be Ambassador to Canada, and William W. Popp, of Missouri, to be Ambassador to the Republic of Guatemala, all of the Department of State, after the nominees testified and answered questions in their own behalf.

BUSINESS MEETING

Committee on the Judiciary: Committee ordered favorably reported the nominations of John W. Holcomb, to be United States District Judge for the Central District of California, Brett H. Ludwig, to be United States District Judge for the Eastern District of Wisconsin, R. Shireen Matthews, and Todd Wallace Robinson, both to be a United States District Judge for the Southern District of California, and Christy Criswell Wiegand, to be United States District Judge for the Western District of Pennsylvania.

MINORITY SMALL BUSINESSES

Committee on Small Business and Entrepreneurship: Committee concluded a hearing to examine capital access for minority small businesses, focusing on COVID–19 resources for an equitable and sustainable recovery, including S. 3742, to establish a program in the Department of the Treasury to allocate funds to States, units of general local government, and Indian Tribes to provide assistance to certain small businesses, S. 2549, to allow nonprofit child care providers to participate in the loan programs of the Small Business Administration, H.R. 748, to amend the Internal Revenue Code of 1986 to repeal the excise tax on high cost employer-sponsored health coverage, and H.R. 6800, making emergency supplemental appropriations for the fiscal year ending September 30, 2020, after receiving testimony from Talibah M. Bayles, TMB Tax and Financial Services, Birmingham, Alabama; Ron Busby, U.S. Black Chambers, Inc., and Marla Bilonick, Latino Economic Development Center, both of Washington, D.C.; and Fabiana Estrada, ACCION, Miami, Florida.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 35 public bills, H.R. 7733–7767; and 4 resolutions, H. Con. Res. 104; and H. Res. 1062–1064, were introduced. **Pages H3836–38**

Additional Cosponsors: **Page H3839**

Reports Filed: There were no reports filed today.

Speaker: Read a letter from the Speaker wherein she appointed Representative Cuellar to act as Speaker pro tempore for today. **Page H3695**

Recess: The House recessed at 9:45 a.m. and reconvened at 10 a.m. **Pages H3699–H3700**

Privileged Resolution—Intent to Offer: Representative Gohmert announced his intent to offer a privileged resolution. **Pages H3701–02**

Point of Personal Privilege: Representative Ocasio-Cortez rose to a point of personal privilege and was recognized to proceed for one hour. **Pages H3702–08**

Recess: The House recessed at 1:50 p.m. and reconvened at 2:04 p.m. **Page H3715**

Department of State, Foreign Operations, and Related Programs Appropriations Act, 2021: The House considered H.R. 7608, making appropriations for the Department of State, foreign operations, and related programs for the fiscal year ending September 30, 2021. Consideration is expected to resume tomorrow, July 24th. **Pages H3715–H3829**

Pursuant to the Rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 116–59 shall be considered as adopted. **Page H3708**

Agreed to:

Lowey en bloc amendment No. 1 consisting of the following amendments printed in H. Rept. 116–459: Barr (No. 2) that increases and decreases by $25 million the United States International Development Finance Corporation to counter China's Belt and Road Initiative; Jackson Lee (No. 11) that increases by $1,000,000 and decreases by $1,000,000 to combat the trafficking of endangered species; Jackson Lee (No. 12) that increases by $1,000,000 and decreases by $1,000,000 to combat the practice of Female Genital Mutilation; Levin (MI) (No. 14) that prohibits the use of funds to support the forced relocation of refugees to the remote island of Bhasan Char, where more than 300 Rohingya refugees have been held; Lynch (No. 16) that provides for an increase of $1.5 M to Non-proliferation, Antiterrorism, Demining And Related Programs for increased Counterterrorism financing activities; McCaul (No. 19) that decreases the Capital Investment Fund and increases the Nonproliferation, Anti-Terrorism, Demining and Related Programs Account by $25,000,000; Murphy (FL) (No. 20) that provides that, of the $3.34 billion appropriated for the Department of State's Economic Support Fund, funding made available for programs to promote democracy and the rule of law in Venezuela shall be increased by $3 million, from $30 million to $33 million; Perry (No. 26) that reduces and increases the budgetary authority for the Global Health Programs Account by the same amount for the purpose of combatting the prevalence of Female Genital Mutilation around the world; Rose (NY) (No. 30) that decreases the Overseas Program account by $500,000 and increases the Diplomatic Policy and Support account by $500,000 for the purpose of increasing the budget for the Office of the Special Envoy To Monitor and Combat Anti-Semitism; Schweikert (No. 32) that increases and decreases Development Assistance by $1,000,000 to highlight the importance of mitigating aquatic plastic pollution; Titus (No. 34) that increases and decreases by $1 million the Diplomatic Programs Office of International Religious Freedom account for the purpose of encouraging the State Department to denounce Turkey for taking formal action to change the status of Hagia Sophia, a UNESCO World Heritage Site spiritually significant to people of many faiths and backgrounds, from a museum to a mosque; and to engage with Turkey for the purpose of returning its status to a museum so as to welcome people of all faiths and those who have marveled at its architectural and artistic splendor; Wagner (No. 35) that increases by $5 million funding for child protection compacts, raising the overall funding level for the International Narcotics and Law Enforcement account to $50 million and for programs to combat trafficking in persons to $72 million; decreases by the same amount funds for necessary expenses of the Department of State and Foreign Service not otherwise provided for, Overseas Programs; Adams (No. 37) that increases funding by $3,000,000 for the Office of Urban Agriculture; Cohen (No. 38) that provides $750,000 in funding for the USDA's Office of Inspector General to complete an audit report of the USDA's Animal Plant and Health Inspection Service's Administration of the Horse Protection Program, Enforcement of the Horse Protection Act, and the Slaughter Horse Transport Program no later than July 31st, 2021; Courtney (No. 40) that provides

$750,000 for the National Institute of Food and Agriculture's Agriculture and Food Research Initiative to research innovative practices to increase carbon storage in agricultural land, including Enhanced Rock Weathering; research priority areas should include: carbon sequestration, practices for practical application, air quality impacts on surrounding communities, impact on soil health, and health impacts on workers and consumers; Rodney Davis (IL) (No. 41) that increases and de-creases funds by $10,000,000 for the National Institute of Food and Agriculture's Agriculture and Food Research Initiative; González-Colón (PR) (No. 42) that increases the amount for the Nutrition Assistance Program in Puerto Rico by $528,585,000 for Fiscal Year 2021; Gottheimer (No. 43) that increases and decreases the Agriculture Processing, Research, and Marketing Programs account by $5.7 billion to highlight the losses American dairy farmers have faced during the COVID–19 pandemic, and to call for additional resources to help dairy farmers; Graves (LA) (No. 44) that increases and decreases the USDA–ARS buildings and facilities account by $1 million; Jackson Lee (No. 45) that clarifies that nothing in the bill restricts the authority of the Secretary of Agriculture or any federal agency head from providing assistance and benefits to victims of trafficking as permitted by 22 U.S.C. § 7105(b) of the Victims of Trafficking and Violence Protection Act of 2000; Jackson Lee (No. 46) that increases funding by $2,000,000 for the USDA agency that provides grant research funding for ''1890s Land Grant Universities,'' which are 28 Historically Black Colleges and Universities; LaMalfa (No. 47) that increases funding for the distance learning, telemedicine, and broadband program by $25,000,000, offset by a decrease in the Office of the Chief Information Officer fund by $5,000,000 and a decrease in the Agriculture Buildings and Facilities by $20,000,000; LaMalfa (No. 48) that increases and decreases $50,000,000 for Rural Utilities Service's Distance Learning, Telemedicine, and Broadband Program for the purpose of expanding broadband in areas that do not currently have broadband; Sean Patrick Maloney (NY) (No. 49) that increases funding for the Crop Protection and Pest Management Program under the National Institute of Food and Agriculture by $1 million; Neguse (No. 50) that transfers $1 million in funding to the USDA Office of the Inspector General for expenses necessary for the enforcement of anti-animal cruelty statutes; Panetta (No. 51) that removes and adds $5,000,000 from the U.S. Department of Agriculture's Office of the Undersecretary for Research, Education, and Economics for the purpose of instructing the Office of the Chief Scientist to complete a strategic plan for the Agriculture Advanced Research and Development Authority (AGARDA) not later than 180 days after the enactment of this Act; Panetta (No. 52) that increases and decreases funding within the USDA's Office of the Secretary by $500,000,000 to elevate the need for an emergency program through USDA's Farm Service Agency focused on reimbursing producers, processors, and other agricultural employers for personal protective equipment and other safety measures for their employees; Plaskett (No. 53) that provides for funding of the micro-grants for food security program at the authorized level of $10 million; Scalise (No. 54) that decreases by $6,000,000 the USDA Office of the General Counsel account and increases by $6,000,000 the amount for the Center for Food Safety and Applied Nutrition account; this increase is to carry out the activities in Section 778 of this Title to implement options for regulating the export of shrimp to the United States from other countries; Sherrill (No. 55) that provides $10 million for the FDA's Center for Drug Evaluation and Research; Soto (No. 56) that increases funding by $1 million for High-Priority Research And Extension Initiatives—Fertilizer Management Initiative at the Department of Agriculture—National Institute of Food and Agriculture authorized in Sec. 7209 in the 2018 Farm Bill; Soto (No. 57) that increases and decreases funding by $2,276,000 for the collaborative effort of the Office of Regulatory Affairs and other offices within the FDA to provide further re-sources and further implementation of the Food and Veterinary Medicine Program Strategic Plan to enhance the security and reliability of U.S. supply chains during COVID–19 for food, pharmaceuticals, and other essential medical equipment and supplies through technologies such as blockchain; Welch (No. 59) that increases funding for Dairy Business Innovation Initiatives by $5 million; reduces funding for USDA Office of the General Counsel by a corresponding amount; Welch (No. 60) that increases and decreases funding for FDA Salaries and Expenses by $5 million for the purpose of enforcing dairy standards of identity; Barragán (No. 63) that transfers $1 million in funding from the Department of Interior Operations to the Environmental Protection Agency's Targeted Airshed Grant Program; Cohen (No. 69) that increases and decreases funds to require the Bureau of Land Management to utilize $11,000,000 of its Wild Horse and Burro Program budget to implement PZP humane, reversible fertility control to manage wild horse populations; Courtney (No. 71) that increases and decreases funds by $300,000 to highlight the New England Scenic National Trail (NET); Dingell (No. 73) that prohibits funds from being used to (1) withdraw the Environmental Protection Agency's Notice of Proposed Rulemaking to

designate PFOA and PFOS as hazardous substances under section 102 of CERCLA; and (2) to withdraw EPA's preliminary regulatory determination to regulate PFOA and PFOS as drinking water contaminants under the Safe Drinking Water Act; Escobar (No. 75) that increases and decreases funding by $1 million for the construction of water and wastewater projects along the United States-Mexico Border under the State and Tribal Assistance Grants account, to highlight the continued lack of high quality colonia water infrastructure and encourage the EPA to prioritize projects benefiting colonias; Gottheimer (No. 79) that increases funding for the United States Holocaust Memorial Museum by $1 million to expand outreach initiatives to educate more Americans about the history of the Holocaust and antisemitism and other forms of hatred, bigotry, and intolerance; Hudson (No. 80) that increases the EPA Science and Technology account by $2 million to study the relationship between PFAS exposure and susceptibility to COVID–19; Hudson (No. 81) that increases and decreases by $2,487,000 funds appropriated for the development of Effluent Limit Guidelines as part of the EPA's PFAS Action Plan to emphasize the need to include the chemical GenX; Hudson (No. 82) that increases and decreases funding by $466,173,000 to the Capital Improvement and Maintenance Account to highlight the need for Forest Service road construction; Schweikert (No. 99) that decreases Departmental Operations by $500,000 and increases Environmental Programs and Management by $500,000, to highlight the need for the Environmental Protection Agency to focus on implementing new technologies for mobile air quality monitoring; Sherrill (No. 100) that provides an additional $2,000,000 for the United States Geological Survey to be used to perform surveys, investigations, and research for harmful algal blooms; Speier (No. 104) that increases and decreases funding to clarify that pending Water Infrastructure Finance and Innovation Act Program applicants should not be required to restart the application process in order for the agency to assess applications against project eligibility criteria; Barr (No. 106) that transfers $5,000,000 from the VHA's Medical Community of Care Account to the VHA's Medical Services account for the explicit use for equine assisted therapy within the VA's Adaptive Sports Grant (ASG) Program, given the promising results reported using equine assisted therapy for veterans with post-traumatic stress disorder; Bergman (No. 107) that increases and decreases funding in the Veterans Health Administration Medical Services' account by $300,000,000 to focus additional efforts within the Office of Rural Health on solutions that will bring more connectivity to Veterans living in rural and remote areas; Carbajal (No. 108) that increases and decreases funding by $5,000,000 to direct the Secretary to change the phone system to have local Community Based Outpatient Center answer calls rather than having all calls routed to the major VA Medical Centers in an effort to reduce wait times for veterans on the phone and to provide more timely health services; Carbajal (No. 109) that provides $3 million for the Veterans Transportation Program to assist veterans in attending all their medical appointments in a timely manner; Craig (No. 111) that increases the Veterans Health Administration Medical Services' account by $1.5M to expand the Rural Health Resource Centers program; Golden (No. 113) that increases and decreases funding in the Veterans Minor Construction account to focus additional efforts to provide better access to long-term beds for veterans suffering from substance use disorder; Gottheimer (No. 114) that increases funding for the VA Office of the Inspector General by $1.3 million to expand oversight of state-run veterans' homes supported and monitored by the VA, many of which have been afflicted by the COVID–19 pandemic; Gottheimer (No. 115) that increases funding for VA medical community care by $1 million to expand access for veterans who are unable to visit a VA Medical Center; reduces VA Departmental Administration, General Administration by $1 million; Graves (LA) (No. 116) that increases and decreases the VA's Medical Facilities account to highlight the urgent need to streamline the VA lease process to meet the critical care needs of America's veterans; Hartzler (No. 117) that amends Division D to increase and decrease by $5 million the VA's medical services account in order to direct that $5 million be used to provide funding for the VA to utilize non-profit post traumatic growth organizations as a treatment for PTSD; Hill (AR) (No. 118) that increases by $1 million the Office of General Counsel for the purposes of training state-level veteran service officers; Kim (No. 119) that increases funding by $1,000,000 for VA medical services to expand access to ride share programs for veterans going to community-based outpatient clinics in urban and suburban areas with parking and transportation limitations that are also facing ongoing delays in acquiring replacement facilities; LaMalfa (No. 121) that increases and decreases by $1 million the VA Departmental Administration, General Administration account, to highlight the need for veterans to receive legal assistance from State VA-approved lawyers willing to provide pro-bono services, and to coordinate with State VAs to ensure veterans are made aware of such assistance;

Lipinski (No. 122) that increases funding for construction grants of veterans state extended care facilities by $3 million, with the additional funding intended to provide support to assist states acquire, construct, alter and remodel nursing home, hospital, and domiciliary care facilities to help adapt to needs associated with stopping the spread of COVID–19 and meet other needs; reduces funding for Departmental Administration, General Administration by the corresponding amount; Lynch (No. 123) that provides for an increase of $1.5 million for suicide prevention efforts through the PREVENTS Initiative offset by a reduction from the General Administration account; Murphy (FL) (No. 125) that increases funding for Veterans Health Administration, Medical Services by $1.5 million, with the additional funding intended for the Telehealth and Connected Care account, which supports home telehealth, home telehealth prosthetics, and clinic-based telehealth; reduces funding for Departmental Administration, General Administration by the corresponding amount; Norton (No. 126) that increases and decreases funding by $1 million for the Veterans Benefits Administration to provide support to law school clinical programs that assist veterans with legal matters; Pappas (No. 127) that ensures that $5 million of the funds appropriated to the Office of Resolution Management is spent on completing VA's EEO Program Manager realignment initiative at VBA and VHA in accordance with VA policy; Porter (No. 128) that increases the Veterans Health Administration Medical Services' account by $2 million for the purpose of increasing gender-specific care for women; Ruiz (No. 129) that increases and decreases funding to VA Medical Services account to conduct educational outreach to veterans to enroll in the burn pits registry, additional research using the registry, and other activities concerning the maintenance of the registry; Sherrill (No. 130) that increases funding for the Burn Pits Center of Excellence by $1,000,000; Waters (No. 131) that authorizes an additional $2,000,000 for the purpose of expenses in the administration of veterans' medical, hospital, nursing home, domiciliary, construction, supply, and research activities; and Welch (No. 132) that increases and decreases the Medical Research and Prosthetics Account for the purpose to encourage the VA to study the impact of COVID–19 on veterans who have been exposed to burn pits and other airborne hazards during their service; **Pages H3799–H3806**

Lowey en bloc amendment No. 2 consisting of the following amendments printed in H. Rept. 116–459: Bera (No. 3) that prohibits funds from being used to withdraw from the U.S.-South Korea Mutual Defense Treaty, in light of recent reporting that the administration is considering withdrawing U.S. forces from the Korean peninsula; Cicilline (No. 4) that increases and decreases by $1 million the Diplomatic Programs account for the purpose of discouraging the State Department from using the final report of the Commission on Unalienable Rights as a framework for addressing human rights inside the United States Government, or abroad; to discourage publishing or translating the final report; and to discourage the State Department from pushing aside the modern human rights that the United States helped establish in favor of narrower protections for women, including reproductive rights; for members of the LGBTQI community; and for other minorities; Cohen (No. 5) that prohibits the use of funds to enter into any new contract, grant, or cooperative agreement with any Trump related business listed in the President Trump's Annual Financial Disclosure Report submitted to the Office of Government Ethics as well as certain Trump related properties listed on the Trump Organization's website; Escobar (No. 6) that increases and decreases funding for USAID by $1 million to emphasize the need for a binational COVID–19 testing strategy between the United States and Mexico and encourage the agency to include recommendations for such a strategy in its review of the international response to the COVID–19 pandemic; Foster (No. 7) that increases and decreases by $10,000,000 the Non-proliferation, Anti-terrorism, Demining, and Related Programs (NADR) account to emphasize the need to fund the Synchrotron-Light for Experimental Science and Applications project in order to promote scientific diplomacy and peace in the Middle East; Gottheimer (No. 8) that prohibits funds from being used to promote the sale or export of electronic nicotine delivery systems, or ''e-cigarettes,'' in addition to tobacco products; Grijalva (No. 9) that increases and decreases by $4,000,000 the International Border and Water Commission, United States and Mexico, Construction account, to emphasize the responsibility for the maintenance of the International Outfall Interceptor (IOI); Hastings (No. 10) that increases and decreases $10 million in Economic Support Fund funding for programs benefiting the Ethiopian-Israeli community; Jayapal (No. 13) that increases set-aside for Global Internet Freedom account by $2.5 million, which prioritizes countries whose governments restrict freedom of expression on the Internet, and that are important to the national interest of the United States; Lynch (No. 17) that provides for an increase of $5 million to Non-proliferation, Antiterrorism, Demining And Related Programs for increased demining activities to be offset with a reduction to Human Resources; Malinowski (No. 18) that prohibits use of DOS funds to facilitate the transfer or sale of air-to-ground munitions to Saudi Arabia and

the UAE in recognition of the continuing devastation to civilians caused by US-provided weapons in the Yemen conflict; Ocasio-Cortez (No. 21) that increases funding for the Economic Support Fund by $5,000,000 and decreases funding for the International Narcotics Control and Law Enforcement account by the same amount; Ocasio-Cortez (No. 22) that prevents the use of funds to transfer lethal military equipment or crowd control equipment to Bolivia given the recent human rights abuses there; Panetta (No. 23) that prohibits the use of funds to withdraw the United States from NATO; Panetta (No. 24) that prohibits use of funds to withdraw the United States from the World Health Organization; Phillips (No. 27) that provides that, of the $3.34 billion appropriated for the Economic Support Fund and the $900 million appropriated for Development Assistance, funding made available for the Local Works program shall be increased by $5 million, from $50 million to $55 million; Porter (No. 28) that increases and decreases the Democracy Fund account by $2 million to highlight the importance of protecting journalists and civil society activists around the world; Porter (No. 29) that increases and decreases the Economic Support Fund account by $1 million to highlight the importance of programs that help foreign governments and civil society in such countries improve budget transparency; Rouda (No. 31) that increases and decreases the Migration and Refugee Assistance account by $2 million to highlight the contributions of Vietnamese, Laotian, and Cambodian immigrants and to discourage attempts to increase repatriations to those countries; Speier (No. 33) that increases the Economic Support Fund (ESF) by $1,400,000 to fund USAID's demining program in Nagorno-Karabakh and decreases the Educational and Cultural Exchange Programs (ECE) account by $1,400,000; Cohen (No. 39) that prohibits the use of funds to enter into any new contract, grant, or cooperative agreement with any Trump related business listed in the President Trump's Annual Financial Disclosure Report submitted to the Office of Government Ethics as well as certain Trump related properties listed on the Trump Organization's website; Waters (No. 58) that prohibits the use of funds to implement Executive Order 13917, which authorizes the Secretary of Agriculture to use the authorities contained in the Defense Production Act to keep meat and poultry processing facilities operational during the COVID–19 emergency; Adams (No. 61) that increases funding by $2,000,000 for the Environmental Justice program area within the EPA Environmental Programs and Management account; Beyer (No. 64) that increases and decreases funding by $5,000,000 with the intent to ensure US Park Police match other Interior law enforcement and adopt body cameras; Beyer (No. 65) that increases and decreases funds by $500,000 to highlight the need for a GAO study of the civil rights of protesters and the effects of the use of non-lethal tactics during protests on the protesters; Cohen (No. 70) that prohibits the use of funds to enter into any new contract, grant, or cooperative agreement with any Trump related business listed in the President Trump's Annual Financial Disclosure Report submitted to the Office of Government Ethics as well as certain Trump related properties listed on the Trump Organization's website; Dingell (No. 72) that prohibits funds from being used to implement, administer, or enforce the final rule entitled ''Update to the Regulations Implementing the Procedural Provisions of the National Environmental Policy Act'' published by the Council on Environmental Quality in the Federal Register on July 16, 2020; Gottheimer (No. 78) that increases and decreases the U.S. Geological Survey account by $5 million to underscore the need to fight the scourge of Harmful Algal Blooms (HABs) in bodies of water in New Jersey and across the country; Huffman (No. 83) that prohibits funds from being used to offer any tracts available for oil and gas leasing in the Arctic National Wildlife Refuge; Jackson Lee (No. 84) that increases and decreases funding by $5 million to highlight the need to support culturally competent federal, state, and local public health and environmental protection efforts to address cancer clusters impacting overburdened communities in the gulf coast region, which is home to a refinery row that runs from Mobile to Houston, Texas; Jayapal (No. 85) that prohibits use of funds for enforcement of the National Park Service's final rule that will allow trophy hunting practices to kill hibernating bears and wolf pups on Alaska's federal lands; Lowenthal (No. 87) that limits funds toward oil and gas leasing in the NPRA to protect the Special Areas designated in the 2013 Integrated Activity Plan of the National Petroleum Reserve—Alaska (NPRA); Neguse (No. 91) that increases funding for the Collaborative Forest Landscape Restoration Program (CFLRP) by $5 million; Ocasio-Cortez (No. 92) that increases and decreases funds by $2 million in section 104(k) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA) account by $2 million for Brownfields grants with the intent of directing at least 10 percent of such grants be provided to areas in which at least 20 percent of the population has lived under the poverty level over the past 30 years as determined by censuses and the most recent Small Area Income and Poverty Estimates, and that not less than an additional 20 percent of funds be used for projects in low-income

community census tracts as defined in 26 U.S.C. § 45D(e)(1); O'Halleran (No. 93) that reduces funding of the Office of the Secretary of the Interior by $15 million to preserve funding for relocated Native Americans; Panetta (No. 94) that prohibits funds from being used to nominate or accept a nomination or an expression of interest for any Federal lands for oil and gas leasing within the areas covered by the Bureau of Land Management's Final Central Coast Resource Management Plan Amendment, the Resource Management Plan for the Bakersfield Field Office, or the Carrizo Plain National Monument Resource Management Plan; Porter (No. 97) that prevents funds from being used to reject any application for a grant due to the use of the term ''global warming'' or the term ''climate change'' in the application; Porter (No. 98) that prevents funds from being used for the centralization process established in the EPA's FOIA Regulations Update published on June 26, 2019; Tlaib (No. 105) that doubles the funding level for lead pipe replacement, raising the amount appropriated for reducing lead in drinking water to $1 billion; and Cohen (No. 110) that prohibits the use of funds to enter into any new contract, grant, or cooperative agreement with any Trump related business listed in the President Trump's Annual Financial Disclosure Report submitted to the Office of Government Ethics as well as certain Trump related properties listed on the Trump Organization's website (by a yea-and-nay vote of 223 yeas to 194 nays, Roll No. 160); and **Pages H3806–18, H3822**

Kennedy (amendment No. 86 printed in H. Rept. 116–459) that prohibits funds from being used by the Department of the Interior to rescind the decision to take the lands of the Mashpee Wampanoag Tribe into federal trust or revoke other associated actions related to the Tribe. **Pages H3826–27**

Rejected:

Allen (amendment No. 1 printed in H. Rept. 116–459) that sought to reduce spending in Division A by 5% (by a yea-and-nay vote of 88 yeas to 329 nays, Roll No. 159); **Pages H3798–99, H3821–22**

Lowey en bloc amendment No. 3 consisting of the following amendments printed in H. Rept. 116–459: Leutkemeyer (No. 15) that sought to prohibit federal contributions to the Intergovernmental Panel on Climate Change (IPCC), the United Nations Framework Convention on Climate Change (UNFCC), and the Green Climate Fund (GCF), which advise governments around the world on climate change; Perry (No. 25) that sought to state that none of the funds made available by this Act may be used for the United Nations Relief and Works Agency; Wilson (No. 36) that sought to require LAF to directly confront terrorism and Hezbollah's influence; Burgess (No. 68) that sought to prohibit funds made available by this Act from being used by the Environmental Protection Agency (EPA) to higher or pay the salary of any officer or employee of the EPA to utilize the Title 42 special pay authority; Duncan (No. 74) that sought to strike Section 436 which prohibits funds made available by this act to be used to issue a permit for the import of a sport-hunted trophy of an elephant or lion taken in Tanzania, Zibabwe, or Zambia; Gosar (No. 76) that sought to prevent funds from being used in contravention of President Trump's Executive Order 13807 (Establishing Discipline and Accountability in the Environmental Review and Permitting Process for Infrastructure Projects); Gosar (No. 77) that sought to prevent funds from being used in contravention of President Trump's Executive Order 13817 (Federal Strategy to Ensure Secure and Reliable Supplies of Critical Minerals); McKinley (No. 88) that sought to prevent funds from being used in contravention of Executive Order 13868, ''Promoting Energy Infrastructure and Economic Growth''; Miller (No. 89) that sought to strike the provision that reduces funding to the United States Park Police by $50,000 per day if the Secretary of the Interior fails to provide Congress information requested in the report within 10 days of enactment of this Act; Miller (No. 90) that sought to strike the provision that blocks funding for finalizing the proposed rule entitled ''Oil and Natural Gas Sector: Emission Standards for New, Reconstructed, and Modified Sources Review'' published by the Environmental Protection Agency; Perry (No. 95) that sought to prohibit the use of funds for the EPA to take any ''backstop'' actions in response to the Watershed Implementation Plan submitted by any jurisdiction pursuant to the Chesapeake Bay TMDL; Perry (No. 96) that sought to prohibit the use of funds to give formal notification under, or prepare, propose, implement, administer, or enforce any rule or recommendation pursuant to section 115 of the Clean Air Act; Smith (MO) (No. 101) that sought to prevent funds from being used to regulate lead in ammunition and fishing tackle under the Toxic Substances Control Act; Gianforte (No. 112) that sought to restore funding to replace aging weapons storage facilities to improve security and safety around our nation's nuclear warheads; King (IA) (No. 120) that sought to strike language that impedes the President's border wall construction, under Division D, Title I; and Miller (No. 124) that sought to strike a provision that would prohibit construction at the southern border, including roads, the border wall, fence, or barrier (by a yea-and-nay vote of 187 yeas to 230 nays, Roll No. 161); and

Pages H3818–21, H3822–23

Smith (MO) (amendment No. 103 printed in H. Rept. 116–459) that sought to reduce funding for EPA Science and Technology to match the President's FY21 Budget request. **Pages H3828–29**

Proceedings Postponed:

Allen (amendment No. 62 printed in H. Rept. 116–459) that seeks to reduce spending in Division C by 5%; **Pages H3823–26**

Tonko (amendment No. 67 printed in H. Rept. 116–459) that seeks to prohibit funds from being used by the EPA to finalize, implement, or enforce the proposed rule, ''Review of the National Ambient Air Quality Standards for Particulate Matter'' published in the Federal Register by the Environmental Protection Agency on April 30, 2020, which fails to protect, within an adequate margin of safety, communities of color from harmful air pollution during a global public health pandemic, where those communities are experiencing a disproportionately high death rate made worse by decades of exposure to toxic pollution; and **Pages H3824–26**

Smith (MO) (amendment No. 102 printed in H. Rept. 116–459) that seeks to reduce funding for the EPA Environmental programs and management to match the President's FY 21 budget request. **Pages H3827–29**

H. Res. 1060, the rule providing for consideration of the bill (H.R. 7608) was agreed to by a yea-and-nay vote of 230 yeas to 188 nays, Roll No. 158, after the previous question was ordered by a yea-and-nay vote of 230 yeas to 189 nays, Roll No. 157. **Pages H3708–15**

Presidential Message: Read a message from the President wherein he notified Congress that the national emergency declared in Executive Order 13882 with respect to the situation in Mali is to continue in effect beyond July 26, 2020—referred to the Committee on Foreign Affairs and ordered to be printed (H. Doc. 116–138). **Page H3715**

Senate Referrals: S. 906 was held at the desk. S. 4065 was held at the desk. **Page H3829**

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on page H3829.

Quorum Calls—Votes: Five yea-and-nay votes developed during the proceedings of today and appear on pages H3713–14, H3714–15, H3821–22, H3822, and H3822–23.

Adjournment: The House met at 9 a.m. and adjourned at 8:41 p.m.

Committee Meetings

ON FARM ENERGY PRODUCTION: IMPACTS ON FARM INCOME AND RURAL COMMUNITIES

Committee on Agriculture: Subcommittee on Commodity Exchanges, Energy, and Credit held a hearing entitled ''On Farm Energy Production: Impacts on Farm Income and Rural Communities''. Testimony was heard from public witnesses.

UNDERFUNDED AND UNPREPARED: EXAMINING HOW TO OVERCOME OBSTACLES TO SAFELY REOPEN PUBLIC SCHOOLS

Committee on Education and Labor: Subcommittee on Early Childhood, Elementary, and Secondary Education held a hearing entitled ''Underfunded and Unprepared: Examining How to Overcome Obstacles to Safely Reopen Public Schools''. Testimony was heard from Michael Hinojosa, Superintendent, Dallas Independent School District, Texas; Penny Schwinn, Commissioner of Education, Tennessee Department of Education; and public witnesses.

THE HEROES ACT: PROVIDING FOR A STRONG ECONOMIC RECOVERY FROM COVID–19

Committee on Financial Services: Full Committee held a hearing entitled ''The Heroes Act: Providing for a Strong Economic Recovery from COVID–19''. Testimony was heard from public witnesses.

THE TRUMP ADMINISTRATION'S FY2021 FOREIGN ASSISTANCE BUDGET REQUEST

Committee on Foreign Affairs: Full Committee held a hearing entitled ''The Trump Administration's FY2021 Foreign Assistance Budget Request''. Testimony was heard from John Barsa, Acting Administrator, U.S. Agency for International Development.

MISCELLANEOUS MEASURES

Committee on the Judiciary: Full Committee held a markup on H.R. 2678, the ''No President is Above the Law Act''; H.R. 7694, the ''Abuse of the Pardon Prevention Act''; and to Ratify Subcommittee Assignments. H.R. 2678 and H.R. 7694 were ordered reported, as amended. Subcommittee Assignments were approved.

THE TRANSFORMATION OF THE PUERTO RICO ELECTRIC POWER AUTHORITY (PREPA)

Committee on Natural Resources: Full Committee held a hearing entitled ''The Transformation of the Puerto Rico Electric Power Authority (PREPA)''. Testimony was heard from Edison Aviles, Chair, Puerto Rico

Energy Bureau; Jose Ortiz, Executive Director, Puerto Rico Electric Power Authority; Fermin Fontanes, Executive Director, Puerto Rico Public-Private Partnerships Authority; and public witnesses.

EMPOWERING WOMEN AND GIRLS AND PROMOTING INTERNATIONAL SECURITY

Committee on Oversight and Reform: Subcommittee on National Security held a hearing entitled "Empowering Women and Girls and Promoting International Security". Testimony was heard from Kelley Currie, Ambassador-at-Large for Global Women's Issues, Department of State; Michelle Bekkering, Assistant Administrator, Bureau for Economic Growth, Education and Environment, U.S. Agency for International Development; Stephanie Hammond, Acting Deputy Assistant of Defense for Stability and Humanitarian Affairs, Department of Defense; and Cameron Quinn, Officer for Civil Rights and Civil Liberties, Department of Homeland Security.

LEGISLATIVE MEASURES

Committee on Veterans' Affairs: Full Committee held a hearing on H.R. 6039, to require the Secretary of Veterans Affairs to seek to enter into an agreement with the city of Vallejo, California, for the transfer of Mare Island Naval Cemetery in Vallejo, California, and for other purposes; H.R. 6082, the "Forgotten Vietnam Veterans Act"; H.R. 4908, the "Native American PACT Act"; H.R. 2791, the "Department of Veterans Affairs Tribal Advisory Committee Act of 2019"; H.R. 4526, the "Brian Tally VA Employment Transparency Act"; H.R. 3582, to amend title 38, United States Code, to expand the scope of the Advisory Committee on Minority Veterans, and for other purposes; H.R. 96, to amend title 38, United States Code, to require the Secretary of Veterans Affairs to furnish dental care in the same manner as any other medical service, and for other purposes; H.R. 4281, the "Access to Contraception Expansion for Veterans Act"; H.R. 3010, the "Honoring All Veterans Act"; H.R. 7163, the "VA FOIA Reform Act of 2020"; H.R. 7111, the "Veterans Economic Recovery Act of 2020"; H.R. 2435, the "Accelerating Veterans Recovery Outdoors Act"; H.R. 7287, to clarify the licensure requirements for contractor medical professionals to perform medical disability examinations for the Department of Veterans Affairs; H.R. 3228, the "VA Mission Telehealth Clarification Act"; H.R. 6141, the "Protecting Moms Who Served Act"; H.R. 6493, the "Veterans Benefits Fairness and Transparency Act"; H.R. 7445, to amend title 38, United States Code, to expand eligibility for home loans from the Secretary of Veterans Affairs to certain members of the reserve components of the Armed Forces; legislation on the Burial Equity for Guards and Reserves Act of 2020; legislation to amend title 38, United States Code, to extend certain employment and reemployment rights to members of the National Guard who perform State active duty; and legislation to amend title 38, United States Code, to clarify the scope of procedural rights of members of the uniformed services with respect to their employment and reemployment rights, and for other purposes. Testimony was heard from Maria Llorente, Assistant Deputy Undersecretary for Health for Patient Care Services, Veterans Health Administration, Department of Veterans Affairs; and public witnesses.

TRADE, MANUFACTURING, AND CRITICAL SUPPLY CHAINS: LESSONS FROM COVID–19

Committee on Ways and Means: Subcommittee on Trade held a hearing entitled "Trade, Manufacturing, and Critical Supply Chains: Lessons from COVID–19". Testimony was heard from public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR FRIDAY, JULY 24, 2020

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

Committee on Oversight and Reform, Subcommittee on Environment, hearing entitled "FEMA's Natural Disaster Preparedness and Response Efforts During the Coronavirus Pandemic", 9 a.m., 2154 Rayburn and Webex.

Next Meeting of the **SENATE**

4 p.m., Monday, July 27

Senate Chamber

Program for Monday: Senate will resume consideration of the nomination of William Scott Hardy, to be United States District Judge for the Western District of Pennsylvania, with a vote on confirmation thereon at 5:30 p.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9 a.m., Friday, July 24

House Chamber

Program for Friday: Continue consideration of H.R. 7608—Department of State, Foreign Operations, and Related Programs Appropriations Act, 2021.

Extensions of Remarks, as inserted in this issue.

HOUSE

Abraham, Ralph Lee, La., E672
Bishop, Sanford D., Jr., Ga., E672
Clyburn, James E., S.C., E673
Costa, Jim, Calif., E668, E670
Cox, TJ, Calif., E671, E672
Davis, Danny K., Ill., E671
Garamendi, John, Calif., E667
Graves, Sam, Mo., E668, E669, E670
Hastings, Alcee L., Fla., E667
Hudson, Richard, N.C., E668
Huffman, Jared, Calif., E669, E671
Luján, Ben Ray, N.M., E671
McKinley, David B., W.Va., E671
Pelosi, Nancy, Calif., E667
Perry, Scott, Pa., E670
Sensenbrenner, F. James, Jr., Wisc., E668
Stefanik, Elise M., N.Y., E669
Stevens, Haley M., Mich., E668, E670
Wilson, Joe, S.C., E669

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